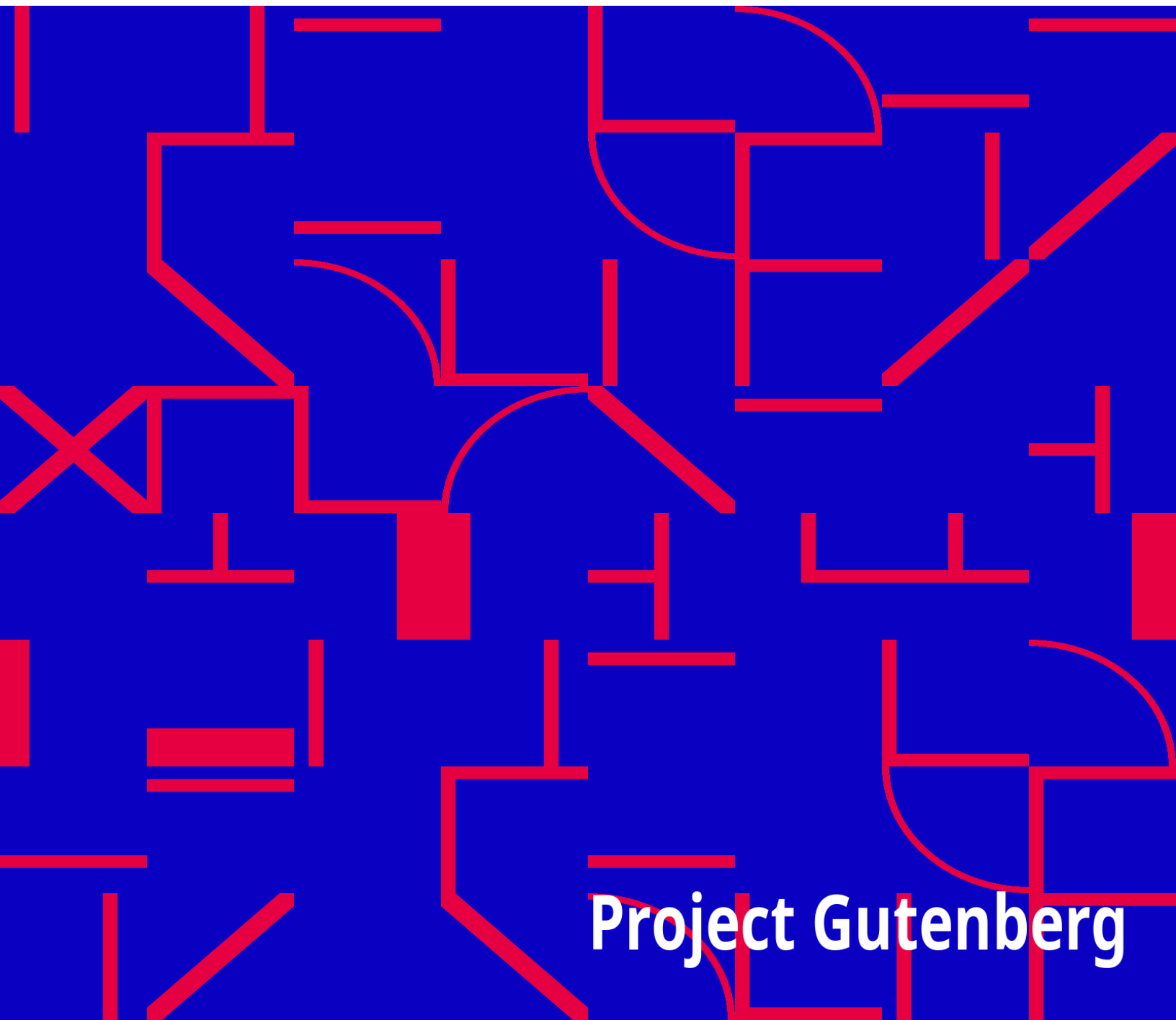


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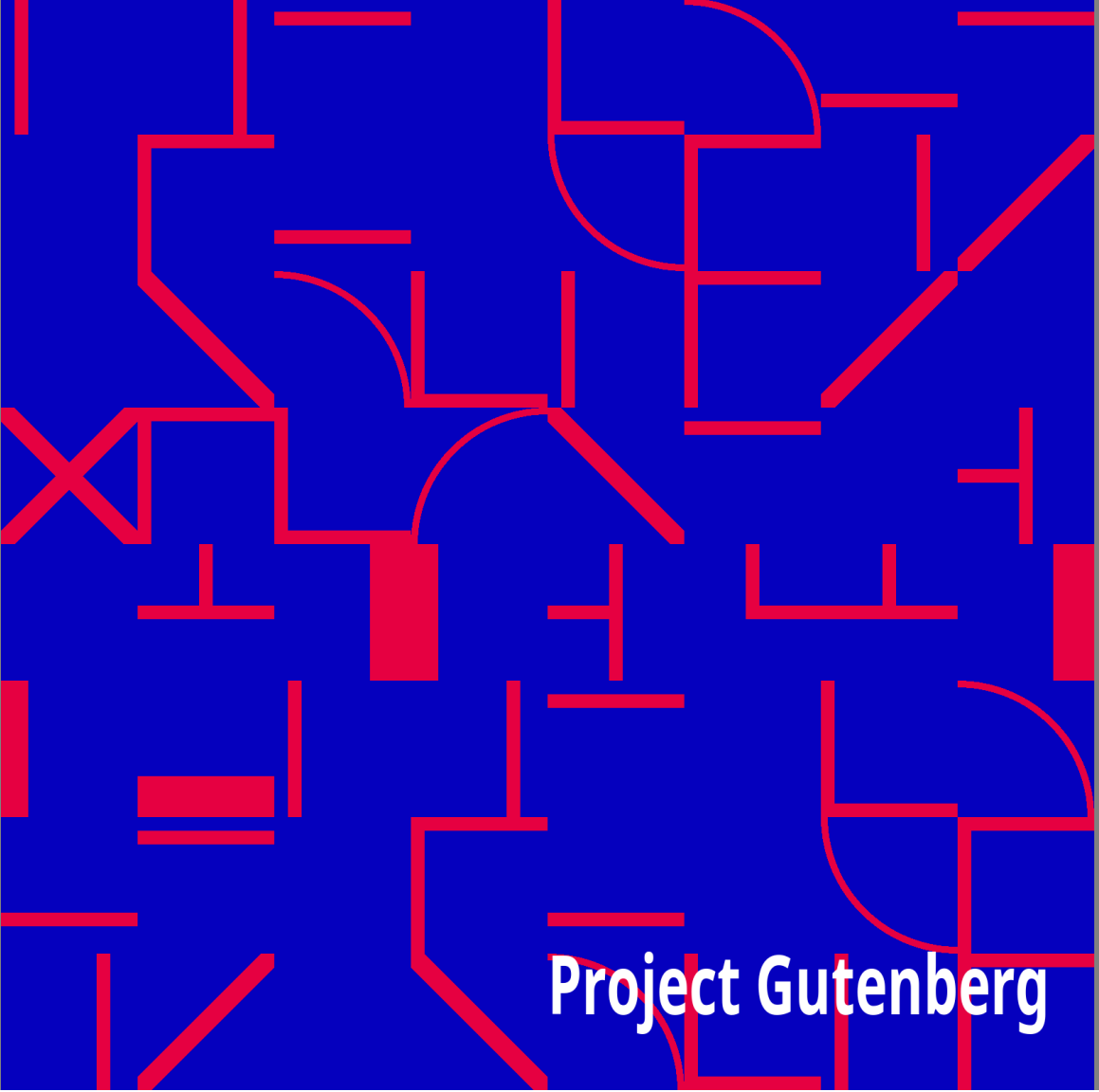
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**THE LIFE OF JOHN MILTON:
NARRATED IN CONNEXION
WITH THE POLITICAL,
ECCLESIASTICAL, AND
LITERARY HISTORY OF HIS
TIME. VOL. III. 1643-1649.**

BY DAVID MASSON, M.A., LL.D.

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BOOK I.

JULY 1643—MARCH 1643-4.

HISTORY:—FIRST EIGHT MONTHS OF THE WESTMINSTER ASSEMBLY: CIVIL WAR AND THE LONG PARLIAMENT CONTINUED.

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CHAPTER I

THE WESTMINSTER ASSEMBLY IN SESSION—THE SOLEMN LEAGUE AND COVENANT: SCOTTISH COMMISSIONERS IN THE ASSEMBLY—DEBATES ON CHURCH-GOVERNMENT: APOLOGETICAL NARRATION OF THE INDEPENDENTS—PARLIAMENTARY PROCEEDINGS—SCOTTISH AUXILIARY ARMY IN ENGLAND.

The Westminster Assembly held its first formal meeting in Henry the Seventh's Chapel on Saturday, July 1, 1643, after the impressive opening ceremonial of a sermon preached before a great congregation in the Abbey Church by the appointed Prolocutor, Dr. Twisse, on the text John xiv. 18, "*I will not leave you comfortless!*" About 69 of the members were present at that first meeting, many who attended afterwards not having yet come up from the country. Among the 69 were the few of "the Episcopal persuasion" who afterwards dropped off; and these were conspicuous by their canonical dresses among the bulk of the members in all sorts of plain Puritan suits. The average attendance subsequently seems to have been from 60 to 80. The place of meeting for some time continued to be King Henry the Seventh's Chapel; but this was changed, when the weather grew colder, for the celebrated Jerusalem Chamber, also in the close vicinity of the Houses of Parliament. [Footnote: The Ordinance of Parliament authorizing the change of the place of meeting to the Jerusalem Chamber is dated Sept. 23, 1643 see Lords Journals for that day] None but members of the Assembly were allowed to be present, and there was no deviation from this rule except on the very rarest occasions and by special authority from Parliament. The

Assembly sat commonly from nine in the morning till one or two P.M. The Prolocutor sat at one end of the room on a raised chair; his two Assessors were near him; and a table ran through the whole length of the room, at one end of which sat the Scribes, close to the Prolocutor, while the members were seated in tiers at the sides and other end. The forms of debate and voting were very much those of the House of Commons. Besides the meetings of the Assembly as such, there were afternoon meetings of Committees for the preparation of business for the Assembly. There were three such chief Standing Committees, to one or other of which every member belonged. [Footnote: Lightfoot's Notes of Assembly Works (ed. 1824), Vol. XIII, pp. 4, 5; and Baillie, II. 107-109]

FIRST BUSINESS OF THE ASSEMBLY: REVISION OF THE ARTICLES.

Not till Thursday, July 6, or indeed Saturday, July 8, was the Assembly constituted for actual business. On the first of these days the Regulations which had been drawn up by the two Houses of Parliament for the procedure of the Assembly were duly received; and on the second all the members of Assembly present took the solemn Protestation which had been settled for them by the Commons with the concurrence of the Lords. It was in these terms: "I, A. B., do seriously and solemnly protest, in the presence of Almighty God, that in this Assembly, wherein I am a member, I will not maintain anything in matters of Doctrine but what I think in my conscience to be truth, or in point of Discipline but what I shall conceive to conduce most to the glory of God and the good and peace of His Church." So sworn, the members were ready for their first work. That also had been rigidly prescribed for them by Parliament. On July 5 the Commons had ruled and the Lords had agreed "that the Assembly, in their beginning, in the first place shall take the ten first Articles of the Church of England into their

consideration, to vindicate them from all false doctrine and heresy." In other words, it was the pleasure of Parliament that the first business of the Assembly should consist in a revision and amendment of the Thirty-nine Articles, and that, by way of a commencement in this business, or specimen to Parliament of the manner in which it might be done, they were to confine themselves at first to the first Ten of the Articles. Accordingly, the Assembly at once addressed themselves to this business. It was with a view to it that they first adopted that machinery of Committees which was to be employed subsequently, with so much effect, in all the deliberations. The Divines of the Assembly were distributed, in the order in which their names stood in the Ordinance calling the Assembly, into three Committees for preparatory revision of the said Articles in such a manner that the whole Assembly might more clearly exercise its final judgment on them; while a fourth Committee, in which the lay-members were included, was to assist the others by procuring the most correct copies of the text of the Articles. To the first revising Committee, of which Dr. Burges was appointed chairman, were entrusted the first four Articles; to the second, of which Dr. Stanton was chairman, the fifth, sixth, and seventh Articles; and to the third, which had Mr. Gibbon for chairman, the eighth, ninth, and tenth.

Imagine the Assembly collectively in Henry the Seventh's Chapel, and its Committees distributively there or in other places of meeting, busy day after day, through the rest of the hot month of July, and then into August, over its appointed revision of the Articles. "*I. Of Faith in the Holy Trinity; II. Of the Word, or Son of God, which was made very Man; III. Of the going down of Christ into Hell; IV. Of the Resurrection of Christ; V. Of the Holy Ghost; VI. Of the Sufficiency of the Holy Scriptures for Salvation; VII. Of the Old Testament; VIII. Of the Three Creeds; IX. Of Original or Birth Sin; X. Of Free Will;*" imagine the Articles under these headings discussed successively, sentence by sentence and clause by clause, most of the sentences and clauses allowed to pass without change as perfectly

satisfactory, but here and there at intervals a phrase modified or omitted, or a slight addition made, so as to bring the meaning more sharply into accord with the letter of Scripture or the Calvinistic system of doctrine. Such mere imagination of the general process will suffice, and it is unnecessary to take account of the actual changes proposed in the phraseology of particular Articles. For, in fact, these first weeks of the Assembly's pains over the Articles of the Church were to be labour wasted. Before the end of August, and while they were still probing through the first Ten Articles, events had taken such a course that the Assembly was called upon to co-operate with the Parliament in matters of greater urgency.

THE SOLEMN LEAGUE AND COVENANT: SCOTTISH COMMISSIONERS TO THE ASSEMBLY.

The war, which had been on the whole in the King's favour hitherto, was going more and more against Parliament. In the north, Lord Fairfax had been beaten at Atherston Moor by the Earl of Newcastle (June 30); Sir William Waller, the hitherto unconquered, had been beaten twice in the south-west (at Lansdowne, July 5, and at Roundway Down, July 13); the Queen, coming from the north, had joined the King in his quarters, amid great rejoicing, after their seventeen months of separation; and Bristol, inefficiently defended by Nathaniel Fiennes, was on the point of yielding to Prince Rupert. It was time, in short, to do what it had long been in the mind of Parliament to do—call in once more the aid of the Scots.

On this the Parliament had already resolved. As it was judged likely, however, that the Scots would listen more readily to the application for armed aid if it were accompanied with some distinct proof of a desire for "uniformity of religion" between the two kingdoms, the Assembly was required to assist Parliament in pleading with the Scots. The Scottish Convention of Estates was then sitting (it had met, by express call, June

22); and the Scottish General Assembly was to meet on the 2nd of August. Let there be Commissioners from both the English Parliament and the Westminster Assembly to these two bodies; let the Assembly write letters to the Scottish Assembly, backing the political application with religious arguments; let every exertion be made to secure a new alliance with the Scottish nation! Accordingly, while the Assembly was pursuing its revision of the Articles, or occupying itself with such incidental matters as the appointment of ministers to preach before the two Houses, and the recommendation of a Fast Day extraordinary in London, their thoughts, like those of Parliament, were chiefly fixed on the issue of their joint embassy to Edinburgh. [Footnote: Lightfoot's Notes for July 1643; and my MS. chronology of events]

The Scots had foreseen the application. Three courses were before them. They might remain neutral; they might interfere as "redders," or mediators between the King and the English Parliament; or they might openly side with the Parliament and help it in the war. Great efforts had been made by the King to induce the Scots to the first course. [Footnote: Burnet's Dukes of Hamilton (ed. 52), pp. 279-298] Five or six of the Scottish noblemen who were with the King at Oxford had been sent back among their countrymen to labour for this end. All in vain. It had become clear to Argyle, Loudoun, Warriston, and the other Scottish leaders, that neutrality would be ruinous. Things were in this state when the Commissioners from the English Parliament and the Westminster Assembly arrived in Edinburgh (Aug. 7). The Scottish Convention of Estates was then still sitting; and the General Assembly of the Scottish Kirk, with Alexander Henderson again its Moderator (the third time he had been raised to this Presidency), was in the middle of its annual fortnight or so of Scottish ecclesiastical business—one item of the business this time being, I find, "the late extraordinary multiplying of witches," especially in Fifeshire. Both the Convention and the Assembly had been anxiously waiting for the English Commissioners,

and were delighted when they arrived. They were six in all—Sir William Armyn, Sir Harry Vane the younger, Mr. Hatcher, and Mr. Darley, from the Parliament; and Stephen Marshall and Philip Nye from the Westminster Divines. And what moving letters they brought with them—official letters from the Parliament and the Westminster Assembly to the Scottish Convention of Estates and General Assembly, and also a more private letter signed by about seventy English Divines! And how the Scots were impressed by the letters! The private letter of the seventy Divines in especial was "so lamentable" that, when it was read in the General Assembly, "it drew tears from many." And how all were struck by the ability and gravity of young Sir Harry Vane, and liked him and Stephen Marshall, but did not take so much to Mr. Nye, because of his known Independency! In short, in conferences between the English Commissioners and Commissioners appointed by the Scottish Convention and General Assembly to meet them, it was all arranged. There was, indeed, still some lingering question at first among the Scottish leaders whether it might not do to "go as redders or friends to both, without siding altogether with the Parliament;" but Warriston alone "did show the vanity of that notion and the impossibility of it." And so Vane and the other Commissioners could write to England that their mission had been successful, and that the armed aid of the Scottish nation might be expected.

Ay, but there was a special condition. The Commissioners had come to treat about "Scottish assistance to Parliament and a uniformity of religion," and it was the prospect held out in the second phrase that most reconciled the Scots to all that was involved in the first. The extension of Scottish Presbyterianism over all England and Ireland, or, at all events, the union of the two kingdoms in some common form of Church-government not essentially differing from Scottish Presbyterianism—for that object the Scots *would* strike in; for that object they *would* shed their blood, as fellow-soldiers with Englishmen, in the fields of England! Now the English

Commissioners, like wary men, and probably in accordance with their instructions, would fain have avoided any too definite a pledging of England to a particular ecclesiastical future. Nye, in especial, as an Independent, must have desired to avoid this; and Vane, as a man who did not know how far from his present opinions continued reasoning might carry him, may have felt with Nye. Hence, on the religious question, they tried to get off with generalities. If there were a league between the two kingdoms for their civil liberties, would not a uniformity in Church matters naturally follow? But this was not quite satisfactory to the Scottish Commissioners. "The English were for a civil league, we for a religious covenant," says Baillie; and the event has made the sentence memorable historically. Let England and Scotland unite first in subscribing one and the same document, swearing one and the same oath, which should base their alliance on a certain amount of mutual engagement in the matter of Religion! To such oaths of mutual allegiance the Scots, among themselves, had long been accustomed. They called them "Covenants." This agency of "Covenanting" had been a grand agency in Scottish History. Was not the present liberation of Scotland, the destruction of Episcopacy root and branch within its borders, the result of the "National Covenant" sworn to only five years and a half ago—that Covenant being but the renewal, with slight additions, of a document which had done not unimportant work in a former age? Why not have another Covenant for the present emergency—not that National or purely Scottish Covenant, but a Covenant expressly framed for the new purpose, and fit to be a religious pact between the two kingdoms? So argued the Scots with the English Commissioners; and, that the English Commissioners might see what was meant, Alexander Henderson, who was probably the author of the idea, and to whom, at any rate, the preparation of any extremely important document was always entrusted, produced a draft of the proposed Covenant. The English Commissioners did not altogether like this draft; but, after a good deal of

discussion, and apparently some suggestions from Vane tending to vagueness in the religious part and greater prominence of the civil, the draft was modified into a shape in which it was agreed to unanimously. On the 17th of August it was reported by Henderson to the General Assembly, and passed there not only unanimously and with applause, but with a most unusual show of emotion among old and young; and on the same day it passed the Scottish Convention. "This seems to be a new period and crise of the most great affair," writes Baillie, recording these facts. [Footnote: Acts of Scottish General Assembly of 1644; Baillie's Letters, II. 81-90; Burnet's Hamiltons, 298-307.]

Baillie was right. THE SOLEMN LEAGUE AND COVENANT, as Henderson's amended document of August 1643 was called (not the same thing at all, it is to be remembered, as the SCOTTISH NATIONAL COVENANT of 1638, though generally confounded therewith), became a most potent instrument in England. This, however, could not be foreseen at first. It remained to be seen whether the English Parliament would adopt the document which had been agreed to by their Commissioners in Edinburgh. In the faith that they would, or that they might be induced to do so, the Scottish General Assembly, before its rising (Aug. 19), not only sent cordial and sympathetic answers to the letters received from the Parliament and the Westminster Divines, but also complied with that request of the Parliament which desired the nomination of some Scottish ministers to be members of the Westminster Assembly. The ministers nominated were Henderson, Mr. Robert Douglas, Baillie, Mr. Samuel Rutherford, and Mr. George Gillespie; but it was thought right, if only to accustom the English to the principle of lay-eldership, to associate with these ministers the Earl of Cassilis, Lord Maitland, and Johnstone of Warriston. Of the eight Commissioners so appointed three were to be a quorum. Accordingly, Henderson, Gillespie, and Lord Maitland sailed for London at once (Aug. 30), leaving the others

to follow more at leisure. [Footnote: Acts of Scottish Assembly of 1643; and Baillie's Letters, II. 96-98.]

When Henderson reached London, he found his "Covenant" the universal topic. The Parliament had lost no time in referring the document to the Westminster Divines for their consideration; and there had been three or four days of debate over it in that Assembly (Aug. 28 and onwards). Some members, especially Dr. Cornelius Burges, took exceptions. On the whole, however, the feeling of the Assembly decidedly was that the Covenant was a splendid invention, might be adopted with a few verbal changes, and might lead to fine results. This was reported to Parliament Aug. 31; and Dr. Burges, continuing in his captiousness against this judgment of the Assembly, found himself in disgrace. The two Houses then proceeded to examine the Covenant for themselves. They also proposed some modifications of the document, and referred it back, with these, to the Assembly (Sept. 14). The arrival of Henderson and his two colleagues at this nick of time accelerated the conclusion. On the 15th of September, when they first appeared among the Westminster Divines, and Henderson first opened his mouth in the Assembly and expounded the whole subject of the relations between the two kingdoms, all opposition came to an end. The document passed, with only the modifications that had already seemed reasonable, and to which the Scots Commissioners had assented; and, "after all was done, "Mr. Prolocutor, at the desire of the Assembly, gave thanks "to God for the sweet concurrence of us in the Covenant." The words are Lightfoot's; who adds that, to make the joy complete, Dr. Burges came in radiant and repentant, expressing his complete satisfaction now with the Covenant, and begging to be forgiven. [Footnote: Burges had actually been suspended by Parliament from being a member of the Assembly for his contumacy in this affair, Sept. 2, 1643; but he was restored on his own humble petition, Sept. 15, the very day of his repentant reappearance in the Assembly. He had already on that day been called in before the Commons

and had explained "that it was very true he had unhappily taken exception to some things in the Covenant," but that "he hears there had been a review of this Covenant," and such an alteration "as will give him satisfaction." See Commons Journals of the two dates named.] The Covenant having thus been finally adjusted, the two Houses of Parliament were swift in enacting it. On the 21st of September, they ordered that it should be printed and published, and subscribed and sworn to by the whole English realm; and, on Monday the 25th, to set the example, there was a solemn meeting of the members of the two Houses and of the Divines of the Assembly in St. Margaret's Church, Westminster, at which 220 of the Commons and all the Divines then present swore to the new pact, and signed it with their names.—This was but the beginning. The Covenant was thenceforth the Shibboleth of Parliamentarianism. In London first, and then gradually through England, in towns, parishes, and parish churches, wherever Parliament prevailed, all had to sign it or swear to it if they would be considered friends to the cause of Parliament and allowed action and standing-room as true Englishmen. Oliver Cromwell, as a member of the House of Commons, signed it—if not among the 220 of the Commons who signed it originally on the 25th of September (at which time there is proof that he was absent from London), at least in due course; and Milton must have signed it, as a London householder. But, in fact, the signing went on for months and months, the Royal Proclamation from Oxford forbidding the Covenant (Oct. 9) only increasing the zeal for it. From Sept. 1643, onwards for some years, the test of being a Parliamentarian in England was "Have you signed the Covenant?" and the test of willingness to *become* a Parliamentarian, and of fitness to be forgiven for past malignancy or lukewarmness, was "Will you *now* sign the Covenant?" Such was the strange fortune of the hurried paper drawn up by Henderson's pen in some room in the High Street of Edinburgh.—In Scotland, it need hardly be said, the Covenant was sworn to with alacrity. As the document was, in its very

nature, a pact between the two kingdoms, proposed by the Scots, it was useless for them to swear until they had seen whether the English would accept the pact. But, as soon as it was known in Scotland that the Covenant had been adopted by the English and that the swearing in England had begun, the Scots did their part. There was some little grumbling at first over the verbal changes that had been made by the English in the text of the Covenant; but this ceased, and it was even agreed that the changes were for the better. Accordingly, on the 13th of October, 1643, most of the Scottish nobles in Edinburgh, including 18 of the Privy Council, swore solemnly to the Covenant in one of the city churches; and from that day on, for weeks and months, there was a general swearing to the Covenant by the whole people of Scotland, as by the Parliamentarians in England, district by district, and parish by parish. Thus the Scots came now to have two Covenants. There was their own *National Scottish Covenant*, peculiar to themselves; and there was the *Solemn League and Covenant*, in which they were joined with the English Parliamentarians. [Footnote: Lightfoot, XIII. 10-16; Baillie, II. 98, 99, and 102; Neal, III. 65-70; Stevenson, 515, 516; Parl. Hist. III. 172-174; Carlyle's *Cromwell* (ed. 1857), I. 137, 138.]

And what was this *Solemn League and Covenant*, the device of Henderson and the Scots for linking the Scottish and English nations in a permanent civil and religious alliance? The document is not nearly Henderson at his best, and it has not the deep ring, the fervour and fierceness, of the old Scottish Covenant. For its purpose, however, it was efficient enough, and not so very illiberal either, the necessity of such a league being allowed, and the time and other things considered. Here are the essential parts:—

We, Noblemen, Barons, Knights, Gentlemen, Citizens, Burgesses, Ministers of the Gospel, and Commons of all sorts, in the Kingdoms of

England, Scotland, and Ireland ... with our hands lifted up to the most high God, do swear:—

I. That we shall sincerely, really, and constantly, through the grace of God, endeavour, in our several places and callings, the preservation of the Reformed Religion in the Church of Scotland, in Doctrine, Worship, Discipline and Government, against our common enemies; [also] the Information of Religion in the Kingdoms of England and Ireland, in Doctrine, Worship, Discipline and Government, according to the Word of God and the example of the best Reformed Churches: and we shall endeavour to bring the Churches of God in the three Kingdoms to the nearest conjunction and uniformity in Religion, Confession of Faith, Form of Church-Government, Directory for Worship and Catechising, that we and our posterity after us may, as brethren, live in faith and love, and the Lord may delight to dwell in the midst of us.

II. That we shall in like manner, without respect of persons, endeavour the extirpation of Popery, Prelacy (*i.e.* Church-government by Archbishops, Bishops, their Chancellors and Commissaries, Deans, Deans and Chapters, Archdeacons, and all other ecclesiastical Officers depending on that Hierarchy), Superstition, Heresy, Schism, Profaneness, and whatsoever shall be found to be contrary to sound doctrine and the power of godliness; lest we partake in other men's sins, and thereby be in danger to receive of their plagues, and that the Lord may be one and his Name one in the three Kingdoms.

III. We shall with the same sincerity, reality, and constancy, in our several vocations, endeavour with our estates and lives mutually to preserve the rights and privileges of the Parliaments, and the liberties of the Kingdoms, and to preserve and defend the King's Majesty's person and authority, in the preservation and defence of the true Religion and Liberties of the

Kingdoms; that the world may bear witness with our consciences of our loyalty, and that we have no thoughts or intentions to diminish his Majesty's just power and greatness.

IV. We shall also with all faithfulness endeavour the discovery of all such as have been or shall be Incendiaries, Malignants, or evil Instruments, by hindering the Information of Religion, dividing the King from his People, or one of the Kingdoms from another, or making any faction or parties among the People contrary to the League and Covenant; that they may be brought to public trial, and receive condign punishment as the degree of their offences shall require or deserve, or the supreme judicatories of both Kingdoms respectively, or others having power from them for that effect, shall judge convenient.

V. And, whereas the happiness of a blessed Peace between these Kingdoms, denied in former times to our progenitors, is by the good Providence of God granted unto us, and hath been lately concluded and settled by both Parliaments, we shall, each one of us, according to our places and interest, endeavour that they may remain conjoined in a firm Peace and Union to all posterity, and that justice may be done upon the wilful opposers thereof in manner expressed in the precedent Article.

VI. We shall also, according to our places and callings, in this common cause of Religion, Liberty, and Peace of the Kingdoms, assist and defend all those that enter into this League and Covenant in the maintaining and pursuing thereof, and shall not suffer ourselves, directly or indirectly, by whatsoever combination, persuasion, or terror, to be divided and withdrawn from this blessed union and conjunction, whether to make defection to the contrary part, or give ourselves to a detestable indifferency and neutrality in this cause, which so much concerneth the glory of God, the good of the Kingdoms, and the honour of the King; but shall all the days of our lives

zealously and constantly continue therein against all opposition, and promote the same according to our power against all lets and impediments whatsoever; and what we are not able ourselves to suppress or overcome we shall reveal and make known, that it may be timely prevented or removed: all which we shall do as in the sight of God... [Footnote: Rushworth, V. 478-9, and Lords Journals, Sept. 18, 1643.—"Not so very illiberal either," I have said of the League and Covenant in the text; and reader of the Second Article, pledging to "endeavour the extirpation of Popery, Prelacy, Superstition, Heresy, Schism, Profaneness," will naturally demur. This Article, however, was but a repetition of what all, of both nations, who might sign the Covenant, including the English Parliament, were, by past actions and resolutions, already pledged to, neck-deep or more. The illiberality is to be charged not upon this particular League and Covenant, but upon the entire British mind of the time, with individual theorists excepted. It belonged to the Royalists equally with the Parliamentarians; the only difference being that the objects for "extirpation" in *their* policy were and had been the Calvinisms and Presbyterianisms that were now exulting in the power of counter-extirpation.—The most important Article of the six is the First, pledging to a recognition and defence of the Presbyterian Church of Scotland, and to an endeavour after a Reformation of Religion in England and Ireland "according to the Word of God," with a view to uniformity in the three Kingdoms. The insertion of the caution "according to the word of God" is said to have been owing to Vane, who did not want to pre-commit the English too much to exact Scottish Presbytery. The few other changes made by the English Parliament and Westminster Assembly in Henderson's original Edinburgh draft of the Covenant may be traced by a diligent reader in the proceedings of the Lords and Commons on this subject as recorded in their Journals between Aug. 31 and Sept. 15. The parenthetical definition of Prelacy in Art. II. was a suggestion of the

Assembly's; the bringing in of Ireland into the Covenant seems to have been a notion of the Commons.]

One effect of the Solemn League and Covenant was to clear away from the Westminster Assembly the few Anglicans who had till then tried to hang on to it. Dr. Featley alone, of this party, persisted in keeping his place for some time longer; but, on the discovery that he was acting as a spy in the King's interest and corresponding with Usher, he was expelled by the Parliament, sequestrated from his livings, and committed to prison (Sept. 30). On the other hand, the Assembly had now an accession of strength in the Commissioners deputed to it from the Kirk of Scotland. Two of these, Mr. Douglas and the Earl of Cassilis, never made their appearance; but the other six duly took their places, though not all at once. They were admitted by warrant of the Parliament, entitling them "to be present and to debate upon occasion"; but, as Commissioners from the Church of another nation, they declined being considered "members" in the ordinary sense. Practically, however, this was a mere formality; and the reader has now therefore to add to the list of the Assembly the following Scotchmen:—

DIVINES.

ALEXANDER HENDERSON: since 1639 one of the ministers of Edinburgh, and since 1640 Rector of the University of Edinburgh (annually re-elected). *ætat.* 60.—As Henderson has appeared again and again in this History, I have only to add here that my researches have more and more convinced me that he was, all in all, one of the ablest and best men of his age in Britain, and the greatest, the wisest, and most liberal, of the Scottish Presbyterians. They had all to consult him; in every strait and conflict he had to be appealed to, and came in at the last as the man of supereminent composure, comprehensiveness, and breadth of brow. Although the Scottish

Presbyterian rule was that no churchman should have authority in State affair's, it had to be practically waived in his case: he was a Cabinet Minister without office. The tradition in Scotland is perfectly just which recollects him as the second founder of the Reformed Church in that part of the island, its greatest man after Knox. Such is the tradition; and yet you may look in Encyclopædias and such-like works of reference published of late years in Scotland, and not find Henderson's name. The less wonder that he has never received justice in general British History! I undertake, however, that any free-minded English historian, investigating the course of even specially English History from 1638 to 1646, will dig up the Scottish Henderson for himself and see reason to admire him.—Henderson, it will be remembered, had been in London, on the Anglo-Scottish business, before. But his stay then had been for but seven months (Nov. 1640-June 1641). Now, as Scottish Commissioner to the Westminster Assembly, he was to remain in England for the best part of three years (Aug. 1643—Aug. 1646). It was the easier for him to give this service to English Parliamentarianism because he was an unmarried man. His Edinburgh congregation and Edinburgh University had to endure his absence as well as they could. Letters between Edinburgh and London could go and come by sea in ten or twelve days.

GEORGE GILLESPIE: one of the ministers of Edinburgh (formerly minister of the parish of Wemyss in Fifeshire): *ætat.* 3l.—He had flashed into notice in Scotland in 1637, when he was only four-and-twenty years of age. He was then but tutor in the household of the Earl of Cassilis; but he had written "*A Dispute against the English—Popish Ceremonies obtruded upon the Church of Scotland;*" and the publication of this treatise, happening opportunely in the crisis of the Scottish revolt against Laud's novelties, attracted immediate attention to him, and caused him to be regarded as one of the young hopes of Scottish Presbyterianism. Hence his appointment to the parish of Wemyss (1638); and hence his previous

mission to London, in company with Henderson, Baillie, and Blair (1640-41). Returning from that mission, he had been translated from Wemyss to Edinburgh; but hardly had he settled in Edinburgh when he was again sent off to London on this new business. His wife and family joined him in London. He took a very active part in the business of the Assembly. He died in 1648, soon after his return to Scotland, aged only 35, leaving various writings besides his first one. Among these were Notes of the Proceedings of the Assembly, chiefly during 1644. They were first published from the MSS. in 1846.

ROBERT BAILLIE: Professor of Divinity in the University of Glasgow (formerly minister of Kilwinning in Ayrshire): *ætat.* 41.—Baillie also had been on the former Scottish Commission to London; and it was sorely against his will that he was appointed on this second one. He followed Henderson and Gillespie in November 1643, leaving his wife and family in Glasgow. He also remained fully three years in London, attending the Assembly punctually, but not speaking much. Fortunately, however, he kept up his habit of jotting down in his note-books and his correspondence all he saw and heard, Baillie's *Letters and Journals* (first properly edited by Mr. David Laing in 1842) are among the most graphic books of contemporary memoir to be found in any language. His faculty of narration in his pithy native Scotch is nothing short of genius. Whenever we have an account from Baillie of anything he saw or was present at, it is worth all other accounts put together for accuracy and vividness. So in his account of Stratford's trial; and so in his account of his first impressions of the Westminster Assembly.

SAMUEL RUTHERFORD: one of the ministers of St. Andrews, and also Professor of Divinity in the University there (formerly minister of Anwoth, Kirkcudbright): *ætat.* 43.—Of him, as of the others, we have had to take note before. Much of his celebrity in Scottish ecclesiastical history and in

the history of Scottish theology had yet to be acquired; but for sixteen years he had been known as one of the most fervid spirits and most popular preachers in all Scotland. In what mood he accepted his commission to the Westminster Assembly may be judged from a private letter of his from St. Andrews, Oct. 20, 1643. "My heart beareth me witness," he there says, "and the Lord who is greater knoweth, my faith was never prouder than to be a common rough barrowman in Anwoth, and that I could not look at the honour of being ane mason to lay the foundations for many generations, and to build the waste places of Sion in another kingdom, or to have ane hand in the carved work in the cedar and almug trees in that new Temple." He went to London along with Baillie in November 1643, his wife and family either accompanying him or following him. He also remained in London three years or more, burying two of his children there. He was a much more frequent speaker in the Assembly than Baillie.

LAY COMMISSIONERS.

JOHN, LORD MAITLAND (eldest son of the Earl of Lauderdale), *ætat.* 27. —This young nobleman, who had a long and strange career before him, was now one of the most zealous of the Scottish Covenanters, and was selected by the Scottish Kirk, as one of the lay-elders to be sent to the Westminster Assembly, on account of his great ability and learning. He accompanied Henderson and Gillespie, and took his place in the Assembly in August 1645; and, from his first arrival in London, he was much courted by the Parliamentary leaders. Baillie and the rest were proud of their young noble. This was hardly, however, on account of his personal appearance; for he was a large-bodied young fellow, red-haired, of boisterous demeanour, and with a tongue too big for his mouth, so that he spluttered and frothed when he spoke. Ah! could the Scots but have foreseen, could the young fellow himself but have foreseen, what years would bring about!

SIR ARCHIBALD JOHNSTONE OF WARRISTON, Knt.: one of the Judges of the Scottish Court of Session (hence by courtesy "Lord Warriston"): *ætat. circ.* 35.—He had been, as we know, a leader among the Scottish Covenanters since 1637, and his knighthood and judgeship, conferred on him by the King in Edinburgh in 1641, had been the reluctant recognition of his activity during the four preceding years.—Beside Henderson and Argyle there is no man of the Scottish Presbyterians of that time more worthy of mark than Warriston. He had prodigious powers of work, requiring but three hours of sleep out of the twenty-four: and he was mutually crafty and long-headed, always ready with lawyer-like expedients. Bishop Burnet, who was his nephew, adds, "He went into very high notions of lengthened devotions, in which he continued many hours a day: he would often pray in his family two hours at a time, and had an unexhausted copiousness that way. What thought soever struck his fancy during these effusions, he looked on it as an answer of prayer, and was wholly determined by it." Such descriptions, and even parts of his own correspondence, might picture him as a kind of fanatical Machiavelli; but he seems to have been much liked and trusted by all who knew him. Baillie, for instance, addresses him familiarly and heartily as "Archibald" in his more private letters. He had much of his career still before him.—His judgeship and other business in Edinburgh prevented him from going to London along with the other Commissioners; but he took his place in the Westminster Assembly Feb. 1, 1643-4, and was for some time afterwards in England.

[Besides Lord Maitland and Lord Warriston, there were admitted into the Westminster Assembly from time to time other Scottish lay-commissioners, either to make up for the absence of the Earl of Cassilis originally appointed, or for other reasons. Thus in September 1643, when Henderson, Gillespie, and Lord Maitland took their places, ROBERT MALDRUM, a confidential agent of the Scots in London, was admitted along with them;

and the EARL OF LOUDOUN, LORD BALMERINO and even ARGYLE himself, sat in the Assembly at various times subsequently.]

Every respect was paid to the Scottish Commissioners in London. They had Worcester House in the City assigned, or rather re-assigned, them for a residence, with St. Antholin's church again made over to them for their preachings; [Footnote: Memoir of Baillie, by David Laing, in Baillie's Letters and Journals, p. li. In Cunningham's "London," and else where, Worcester House in the Strand, on the site of the present Beaufort Buildings, afterwards Lord Clarendon's house is made the residence of the Scottish Commissioners; but Mr. Laing points out that it was Worcester House or Worcester Place in the City, which had been the mansion of John Tiptoft, Earl of Worcester.] and they had a special bench of honour in the Assembly. And from that bench, day after day, week after week, month after month, they laboured to direct the Assembly, and, to a great extent, did direct it. For, as the mainly Presbyterian character and composition of the Assembly at its first meeting had been the result of the influence of Scottish example and of continued Scottish action in England for a year or two, so it was to Henderson's Covenant, and to the presence of the Scottish Commissioners in London, that the Assembly, while yet in its infancy, was indebted (if it was a debt) for a new impulse or twist in the strict Presbyterian direction. English Presbyterianism might be willing, but it was vague and uninformed; whereas here, in the Scottish Commissioners, were men who knew all about Presbyterianism, had every detail of it at their fingers' ends, had studied it nearly all their lives, and had worked it practically for five years. What a boon to England to be able to borrow for a year or two such a group of Scottish instructors! It was as if a crowd of Volunteers, right-minded and willing to learn, had secured a few highly-recommended regulars to be their drill-sergeants.

DEBATES IN THE ASSEMBLY: PRESBYTERIANISM AND INDEPENDENCY: THE *APOLOGETIC* NARRATION OF THE INDEPENDENTS.

It was not till October 12, 1643, that the real debating in the Assembly began. Till then they had been occupied with matters in which they could be pretty nearly of one mind, including their revision of the Thirty-nine Articles. In that business, where we left them at the Tenth Article (*antè*, p. 6), they had crawled on through five Articles more: viz.- "*XI. Of Justification by Faith*"; "*XII. Of Good Works*"; "*XIII. Of Works before Justification*"; "*XIV. Of Works of Supererogation*"; "*XV. Of Christ alone without Sin*"; and on the 12th of October they were busy over Article XVI. "*Of Sin after Baptism*." But on that day they received an order from the two Houses (and Scottish influence is here visible) to leave for the present their revision of the Thirty-nine Articles, and proceed at once to the stiffer questions of the new form of Church- government and the new Directory of Worship for England. [Footnote: Lightfoot's Notes, p. 17.] Of these questions the Assembly chose the first to begin with. On what a sea of troubles they were then launched!

(1) CHURCH OFFICERS AND OFFICES.—Under this heading alone they had debates extending over nearly three months (Oct. 1643—Jan. 1643-4), and labouring successively through such topics as these—Christ's Priesthood, Prophetship, and Kingship, with the nature of his Headship over the Church; the Church officers under Christ mentioned in Scripture (Apostles, Prophets, Pastors, Doctors or Teachers, Bishops or Overseers, Presbyters or Elders, Deacons, and Widows), with the nature of their functions respectively, and the proper discrimination between those of them that were extraordinary and temporary and those that were to be ordinary and permanent in the Church; the settling therefrom of the officers properly belonging to each modern Christian congregation, and especially whether

there should be ruling lay-elders along with the pastor or minister, and, if so, what should be their exact duties. Gradually, in the course of this long discussion, carried on day after day in the slowest syllogistic way, the differences of the Independents and the Erastians from the Presbyterian majority of the Assembly came out. On the question of lay-eldership, indeed, there was a more extensive contest. Such English Presbyterians as Mr. Vines, Mr. Palmer, and Mr. Gataker, joined with the Erastian Divines, Lightfoot and Coleman, and with the Independents, in wholly or partially opposing lay-eldership, against the advocacy of their brethren, Marshall, Calamy, Newcomen, Young (four of the Smectymnuans), Seaman, Herle, Walker, Whitaker and others, hacked by the Scottish Commissioners. On the whole, however, the votes were decidedly in favour of the Scottish Presbyterian arrangement of church offices. Henderson occasionally waived a point for the sake of accommodation.

(2) ORDINATION:—This subject and its adjuncts occupied the Assembly during some fourteen sittings in January 1643-4. Ordination having been defined to be "the solemn setting apart of a person to some public church office," it was voted, not without opposition, that such ordination is always to be continued in the church, and consequently that there should not be promiscuous preaching by all and sundry, but only preaching by authorized persons. But then who were to ordain? What were to be the qualifications for being ordained to the pastoral office? How far were the congregations or parishioners to have a voice in the election of their pastors? What was to be the ceremonial of ordination? On these points, or on some of them, the Independents fought stoutly, being carefully on their guard against anything that might endanger their main principle of the completeness of every congregation of believers within itself. Selden also interposed with perturbing Erastian arguments. On the whole, however, in this matter also the drift of the Assembly was as the Presbyterians wished. While it was agreed that "in extraordinary cases something

extraordinary may be done until a settled order can be had," it was voted that even in such cases there should be a "keeping as near as possibly may be to the rule;" which rule was indicated, so far at least, by the resolution that "preaching Presbyters may ordain," or that Bishops are not required for the act. But, before this subject of Ordination could be carried farther, it melted into a larger one.

(3) PRESBYTERIAL GOVERNMENT OR CONGREGATIONALISM:—This controversy, which had been underlying the whole course of the previous debating, emerged in express terms before the end of January 1643-4. Then began the real tug of the verbal war. It is unnecessary to enumerate all the items of the controversy. The battle was essentially between two principles of church-organization. Was every individual assembly, or association of Christians (it might be of hundreds of persons, or it might be of as few as seven persons, voluntarily drawn together), to be an independent ecclesiastical organism, entitled to elect its own pastor and other officers, and to exercise the powers of admonition and excommunication within itself—any action of surrounding congregations upon it being an action of mere observation and criticism, and not of power or jurisdiction; and no authority to belong to meetings of the office-bearers of congregations of the same city or neighbourhood, or to general synods of office-bearers, however useful for various purposes such occasional meetings and synods might be? This was what the Independents maintained; and to this the Presbyterians vehemently said Nay. It was not desirable, they said in the first place, that congregations themselves should be mere gatherings of Christians drawn together by chance affinities. That would be to put an end to the parochial system, with all the advantages of orderliness and effective administration that belonged to it. Let every congregation consist, as heretofore, mainly of the inhabitants of one parish or definitely marked ecclesiastical territory. Then let there be a strict inter-connectedness of all these parochial congregations over the whole land by

means of an ascending series of church-judicatories. Let the congregations of the same town or district be connected by a Presbyterial Court, consisting of the assembled ministers and the ruling lay-elders of all the congregations, periodically reviewing the proceedings of the said congregations individually, or hearing appeals from them; and let these Presbyteries or Presbyterial Courts be in like manner under the authority and review of Synods, embracing many Presbyteries within their bounds, and, finally, of National Assemblies of the whole Church. Fierce and hot waxed the war between the two systems. Much turned on the practice of the apostolic churches or primitive Christian communities of Jerusalem Ephesus, Antioch, Corinth, &c., as it could be gathered from various passages of Scripture: and great was the display of learning, Hebraic and Hellenistic, over these passages on both sides. Goodwin as the chief speaker for the Independents; but he was aided by Nye, Burroughs, Bridge, and Simpson; and Selden struck in, if not directly for Congregationalism, at least so as to perplex the Presbyterians. On the other side Marshall and the other Smectymnuans were conspicuous, with Vines, Seaman, Burges, Palmer, Herle, and Whitaker. Henderson looked on and assisted when required. But no one on this side was more energetic than Henderson's young colleague, Gillespie. His countryman Baillie was in raptures with him, and in writing to Scotland and to Holland could not praise him enough. "Of a truth" he says in one letter, "there is no man whose parts in a public debate I do so admire. He has studied so accurately all the points that ever yet came to our Assembly, he has got so ready, so assured, so solid a way of public debating, that, however there be in the Assembly divers very excellent men, yet, in my poor judgment, there is not one who speaks more rationally and to the point than that brave youth has done ever." On one occasion Gillespie, on a question of sheer learning, dared to grapple even with the great Selden, and with such effect, according to tradition (Scottish!), that even Selden reeled. And so on and on, from January 1643-

4, through February, March, and April, the debate proceeded, and there seemed to be no likely end to it. For, though Congregationalism was maintained but by a small knot of men in the Assembly, they fought manfully, inch by inch, and there were various reasons why the majority, instead of overwhelming them by a conclusive vote or two, allowed them to struggle on. For one thing, though Baillie thought there was a "woful longsomeness" in the slow English forms of debating at such a time, it was felt by the English members that, in so important a business as the settling of a new constitution for the National Church, hurry would be unbecoming. But, besides this, the Assembly was not a body legislating in its own right. It had been called only to advise the Parliament; and, though its deliberations were with closed doors, was not all that it did from day to day pretty well known, not only in Parliament, but in London and throughout the country? Might not the little knot of Independents fighting within the Assembly represent an amount of opinion out of doors too large to be trifled with? [Footnote: In Lightfoot's Notes of the Assembly and Gillespie's similar Notes, the proceedings which I have endeavoured to summarize in this paragraph and the two preceding may be traced in detail—Lightfoot's Notes traversing, with great minuteness, the whole of the time under notice; and Gillespie's beginning at Feb. 2, 1643-4. Prefixed to Gillespie's Notes, as edited by Meek in 1846, there is, however, a very useful set of official minutes of the proceedings from Oct. 17, 1643, onwards, by the Scribes of the Assembly; which may be compared with Lightfoot's more extensive jottings. There are excellent and luminous notices of the Assembly's proceedings during most of the time indicated in Baillie, II. 106-174. Neal is very confused in his account of the Assembly, and does not seem to have studied its proceedings well. In Hetherington's *History of the Westminster Assembly* there is a fairish popular account, compiled from Lightfoot and Gillespie, but charged with the author's strong personal Presbyterianism. The traditional part of the story of Gillespie's fight with Selden (which had

come down, I believe, through the careful Scottish Church antiquary, Wodrow) is given by Mr. Hetherington in his History of the Assembly, but more fully and interestingly in his Memoir of Gillespie, prefixed to Meek's Edition of Gillespie's Notes.]

None knew this better than the little knot of Independents in the Assembly itself. They had already acted on the knowledge. Foreseeing that the determination of the great question in the Assembly would inevitably be against them, they had taken the precaution, before the question came on in its final form, to record an appeal from the Assembly to Parliament and public opinion. This they had done in a so-called *Apologetical Narration*, presented to Parliament, and published and put in circulation not later than the beginning of January 1643-4. [Footnote: I find it registered at Stationers' Hall, Dec. 30, 1643.] It is a tract of some thirty quarto pages, signed openly by the five writers—Thomas Goodwin, Sidrach Simpson, Philip Nye, Jeremiah Burroughs, and William Bridge. Having explained first that they had been in no haste to press their peculiar opinions, and would have preferred to disclose them gradually, but that recent experience had left them no option but to appeal to Parliament as "the supreme judicatory of this kingdom," and "the most sacred refuge and asylum for mistaken and misjudged innocence," they proceed to a historical sketch of their doings while they had been in Holland, and an exposition of their differences from their Presbyterian brethren. Three principles of practical conduct, they say, had taken firm hold of them—*first*, that their supreme rule in church-matters, out of themselves, should be the pattern of the primitive or apostolic churches; *secondly*, that they would not bind themselves by their present judgment in any matter against a possible future change of judgment; and, *thirdly*, that they would study accommodation, as far as they could, to the judgments of others. Acting on these principles, but foreseeing the condemnation of their Congregationalism by the Assembly, they hoped at least that the issue would be so regulated finally by Parliament that they

might not be driven into exile again, but might be permitted "to continue in their native country, with the enjoyment of the ordinances of Christ, and an indulgence in some lesser differences," so long as they continued peaceable subjects. [Footnote: Neal, III. 131-133, *Narration* itself, also Hanbury's *Historical Memorials relating to the Independents*, Vol. II. (1841), pp. 221-230.]

This appeal to Cæsar by the five leading Independents had by no means pleased the rest of the Assembly. Though they acknowledged the great ability and even the moderation of the dissentients, they thought it an unfriendly stroke of policy on their part to have thus sheltered themselves by anticipation under the power outside. But, indeed, it was more than a stroke of personal policy. The five knew that they were speaking not for themselves only, but for all that might adhere to them. Their act reminded the Assembly of what was otherwise becoming apparent—to wit, that the Assembly was after all but an imperfect representation of contemporary English opinion. It was an ark floating on a troubled sea, with its doors and windows well pitched, and perhaps with Noah on board, but not all Noah's family, and certainly not specimens of all the living creatures, even of non-episcopal kinds, that were to survive into the new order of things. What if, on the subsidence of the waters, the survivors in this ark should find themselves confronted with another population, which, having survived somehow on chance spars and rafts, must be included in the new community, and yet would insist that questions should be kept open in that community that had been settled by votes passed within the ark? That such was likely to be the case the Presbyterians already had proof.

What, then, were they to do? In the first place, as they believed Noah to be within *their* ark, they were to trust to his power, and the veneration that would be accorded to him, when he should re-emerge. In other words, they were to press on the Presbyterian theory in the Assembly, allowing "the

Five Dissenting Brethren," as they were now called, the most prolix liberty of speech and reasoning, but always beating them in the final vote so as to secure a thoroughly Presbyterian report to Parliament at the last. But, in the second place, as the Independents had appealed to public opinion against such a contingency, it was necessary not only to carry Presbyterianism within the Assembly, but also to argue for it out of doors. Hence, through the year 1644, among the shoals of pamphlets that came from the London press (including Fast-day Sermons, Sermons before the Lords and Commons, &c., by the most eminent members of Assembly) there were not a few pleas for Presbytery, intended to counteract the effects of the *Apologetical Narration* and other pleas for Congregationalism. Rutherford's *Temperate Plea for Paul's Presbytery in Scotland, or Modest Dispute touching Independency of particular Congregations*, and the same author's *Peaceable Plea for the Government of the Church of Scotland*, had preceded the *Apologetical Narration*; but the express answers to the *Narration* were numerous. One of the most celebrated of these was a pamphlet entitled *Some Observations and Annotations upon the Apologetical Narration*, addressed to the Parliament and the Assembly by a writer who signs himself merely "A. S.," but is known to have been a certain Dr. Adam Steuart, a Scot residing in London, but who soon afterwards received a call to Leyden. To this pamphlet there were replies on the part of the Independents, especially one entitled *M. S. to A. S.* (a title changed in a second edition into "*A Reply of Two of the Brethren to A.S.*"); again "A.S." responded; and so the controversy went on, pamphlets thickening on pamphlets. [Footnote: Lowndes's *Bibl. Manual*, by Bohn, Article "Steuart, Adam;" Baillie, II. 216; and Hanbury's *Hist. Memorials relating to the Independents*, II. 251 *et seq.*, and 341 *et seq.*, where there are full accounts of the pamphlets, with extracts.]

PROCEEDINGS OF PARLIAMENT TO FEB. 1643-4: STATE OF THE WAR: THE SCOTTISH AUXILIARY ARMY.

Meanwhile, notwithstanding this ominous difference in the Assembly on the great question of Church-government, all parties in the Assembly were co-operating harmoniously with each other and with Parliament in other important items of the general "Reformation" which was in progress. The chief of these items may be grouped under headings:—

Simplification of Church Service, and Suppression of unpopular Rites and Symbols.—This process, which had been going on naturally from the beginning of the Parliament, and more violently and riotously in some places since the beginning of the war, had been accelerated by recent Parliamentary enactments. Thus, in May 1643, just when Milton was preparing to leave London on his marriage holiday, there had been a tearing down, by authority, with the sound of trumpets and amid the huzzas of the citizens, of Cheapside Cross, Charing Cross, and other such street-monuments of too Popish make. At the same time the anti- Sabbatarian "Book of Sports" had been publicly burnt. Then followed (Aug. 27) an ordinance for removing out of churches all "superstitious images, crucifixes, altars," &c.; the effect of which for the next few months was a more or less rough visitation of pickaxing, chipping, and chiselling in all the parish-churches within the Parliament's bounds that had not already been Puritanized by private effort. Then, again, on the 20th of November, the House of Commons recommended to the consideration of the Assembly a new English Version of the Psalms, which had been recently executed, and put into print, by the much-respected member for Truro, Mr. Francis Rous. Ought not Sternhold and Hopkins's Version to be disused among other lumber; and, if so, might not Rous's Version be adopted instead, for use in churches? It would be a merited compliment and also a source of private profit to the veteran Puritan—whom the Parliament, at any rate,

were about to appoint to the Provostship of Eton College (worth 800_l_ a year and more), instead of the Malignant, Dr. Stewart, then with his Majesty. The Assembly did actually take up Rous's Psalter, his friends pressing it on the old gentleman's account, but others not thinking it good enough; and we find Baillie regretting, Scot-like, when the subject was first brought up, that he had not with him a copy of another version of the Psalms then in MS., by his friend and countryman, Sir William Mure of Rowallan. This version he liked best of any he had seen, and thought decidedly better than Rous's; and; if he had had a copy, he might have been able to do his friend a good turn! [Footnote: Common Journals, Nov. 20, 1643; Baillie, II. 101 (and note), and 120-121. Baillie, at the very time he was privately wishing he had his friend Rowallan's Psalms to pit against Rous's, was becoming acquainted with Rous; to whom in a month or two he dedicated a sermon of his preached before the Commons. He there calls Rous his "much honoured friend." Rowallan's Psalms remain in MS. to this day; but specimens of them have been published. See Baillie's Letters, pp. 535-6 of Appendix, Vol. III.; where there is an interesting and curious history of English Versions of the Psalms, by the editor, Mr. David Laing.] The adoption of Rous's Psalter was not immediately voted by the Assembly, but lay over along with the general business of the new Directory for Worship. In this business too they were making some private progress in Committee, though retarded by the debates on Church-government; and there was every likelihood of substantial agreement here. Independents and Erastians were pretty sure to agree with Presbyterians on the subjects of the Liturgy, Sabbath-observance, abolition of Festival-days, and the recommendation of a plain and Puritan church-service generally. There were significant proofs of this. Actually on Christmas-day 1643 (who would have thought it?) the Lords and Commons met for business as usual, thus showing the example of contempt of the great holiday—all the more to the delight of the Scottish Commissioners, and of the zealous Puritans of the

Assembly and the City, because the Assembly was still weak-hearted enough as a whole to adjourn for that day. It was the Scottish Commissioners, indeed, that had contrived this rebuke to the weaker spirits. And within a week or two thereafter there was this farther Puritan triumph—also the contrivance of the Scottish Commissioners through their friends in Parliament,—that the use of the Liturgy was discontinued in the two Houses, in favour of extempore prayers by Divines appointed for the duty by the Assembly. [Footnote: Baillie, II. 120 and 130.]

Ejection of Scandalous and Malignant Ministers.—A somewhat wholesale process, described in such terms by the winning side, had been going on, everywhere within the sway of Parliament, for several months. It was part, indeed, of a more general process, for the sequestration to the use of Parliament of the estates of notorious Delinquents of all kinds, which had been the subject of various Parliamentary ordinances. [Footnote: Commons Journals from March 1612-3 onwards. For sequence of proceedings and dates, see Index to Journals, Vol III. *sub cocc.* "Delinquents." See also the main sequestrating ordinances (March 31 and Aug. 19, 1643) in Scobell's collection.] By these ordinances a machinery for the work of sequestration had been established, consisting of a central committee in London, and of committees in all the accessible counties. The special application of this machinery to clerical delinquents had come about gradually. From the very beginning of the Parliament (Nov. 1640) there had been a grand Committee of the Commons, of which Mr. White, member for Southwark, was chairman, for inquiring into the scandalous immoralities of the clergy, and an acting Sub-committee, of which Mr. White also was chairman, for considering how scandalous ministers might be removed, and real preaching ministers put in their places. By the action of these committees month after month—receiving and duly investigating complaints brought against clergymen, either of scandalous lives or of notoriously Laudian opinions and practices—a very large number of clergymen had been placed

on the black books, and some actually ejected, before the commencement of the war. But, after the war began, sharper action became necessary. For now the Parliament had to provide for what were called "the plundered ministers" —*i.e.* for those Puritan ministers who, driven from their parsonages in various parts of the country by the King's soldiers, had to flock into London, with their families, for refuge and subsistence. A special Committee of the Commons had been appointed (Dec. 1642) to devise ways and means for the relief of these "godly and well-affected ministers;" and, as was natural, the proceedings of this Committee had become interwound with those of the Committee for the ejection of scandalous ministers—Mr. White at the head of the whole agency. And so, in the Commons, we hear ultimately of such determinations as these respecting "scandalous ministers:"—July 3, 1643: "Ordinance to be prepared to enable the Committees (for sequestration) in the several counties to sequester their livings;"—July 27: "the Committee for plundered Ministers to consider of informations against them and to put them to the proof;"—Sept. 6: "Deputy Lieutenants and Committees in the counties empowered to examine witnesses against them." The result was the beginning of that "great and general purgation of the clergy in the Parliament's quarters" about which there was such an outcry among the Royalists at the time, and which, after having been a rankling memory in the High Church heart for seventy years, became the main text of Walker's famous folio of 1714 on "The Sufferings of the Clergy of the Church of England in the Grand Rebellion." According to that book, and to Royalist tradition, it was a ruthless persecution and spoliation of all the best, the most venerable, and the most learned of the clergy of England. Fuller, however, writing at the time, and corroborated by Baxter, represents the facts more fairly. Not a few of the clergy first ejected, he admits, were really men of scandalous private character, and were turned out expressly on that account; others, who were turned out for what was called their "false doctrine," or obstinate adherence to that Arminian

theology and ceremonial of worship which the nation had condemned, might regard themselves as simply suffering in their turn what Puritan ministers had suffered abundantly enough under the rule of Laud; and, if gradually the sequestration extended itself beyond these two categories of "scandalous ministers" and "ministers of unsound faith," and swept in among "malignants" generally, or those whose only fault was that they were prominent adherents to the King, what was that but one of the harsh natural vengeance of a civil war? At the beginning of the purgation, at all events, Parliament professed carefulness and even leniency in its choice of victims. A fifth of the income of every ejected minister was reserved to his wife and family; and, in order that the public, and even the Royalists, might judge of the equity with which Parliament had proceeded in so odious a business, Mr. White, the chairman of the committees on clerical delinquency, put forth in print (Nov. 19, 1643) his "First Century of Scandalous Malignant Priests," or statement of the cases of one hundred of the sequestered clergy, chiefly in London and the adjacent counties, with the reasons of their ejection. At the time when Mr. White (thenceforward known as "Century White") put forth this pamphlet, the number of the ejected must have already considerably exceeded one hundred, or perhaps even three hundred; and, as the war went on, and sequestration became more and more co-extensive with "malignancy," the number swelled till, as is calculated, some 1,500 or 1,600 clergymen in all, or about a sixth part of the total clergy of England, were thrown out of their livings. [Footnote: Commons Journals of dates July 3, July 27, and Sept. 6, 1643; White's *First Century*, Fuller's Church History (ed. 1842), III. 458, 460; Neal's Puritans, III. 23-34. See also Hallam's Const. Hist. (10th ed.), II. 164-166.]

Filling up of Vacant Livings by the appointment of New Ministers.—For the sequestered livings there were, of course, numerous candidates. Not only were there the "plundered" Puritan ministers, most of them congregated in London, to be provided for; but there were the young

Divinity scholars growing up, for whom, even in a state of war, or at least for such of them as took the side of Parliament, it was necessary to find employment. Obviously, however, some order or method had to be adopted in the exercise of the large patronage of vacant livings which had thus come suddenly into the hands of Parliament. The plundered ministers could not be thrust promiscuously, or by mere lottery, into such livings as were vacant. They had all, certainly, the qualification of being already ordained; but there were different sorts of persons among them, and some with very little to recommend them except their distress. It was essential that there should be some examination or re-examination of all such petitioners for new livings, in order that the unfit should not be appointed, and that the others might be provided for according to their degrees of fitness. Accordingly, at the request of the two Houses, the Westminster Assembly (Oct. 1643) appointed two-and-twenty of its Divines to be a committee for examining and reporting on the qualifications of all such petitioners for livings as might be referred to it by Parliament. About the same time a provisional arrangement was made for the more difficult matter of ordaining new candidates for the Ministry. The whole question of Ordination having yet to be argued and settled in the Assembly (see *antè*, p. 20), it was felt on all hands that some temporary arrangement was imperative. Accordingly, by the advice of the Assembly, the whole business of deciding who were fit to be ordained, and of duly ordaining such, was entrusted by Parliament to certain committees or associations of godly ministers, themselves already ordained, appointed for certain centres and districts. The chief Ordaining Committee was, of course, that for London and the country round. This committee, to which was assigned not only the ordination of new ministers for its important district, but also the ordination of all chaplains for the army and navy, consisted of twenty-three associated Presbyters (ten Divines of the Assembly and thirteen parish-ministers of London not in the Assembly), of whom seven were to be a quorum. Whosoever, not already

ordained, should presume to preach publicly or otherwise exercise the ministerial office without having been ordained by this association, or one of the others, or at least without a certificate of having been approved by the Examining Committee of the Assembly, was to be reported to Parliament for censure and punishment. The London Divines were enjoined to be careful whom they admitted into their pulpits. In short, it was the object of both the Parliament and the Assembly to proclaim their determination that, while the question of Church-government was being considered, some decent rule of practical order should be carefully observed, and England should not be allowed to lapse, as the loyalists were giving out, into a mere anarchy of ranters, preaching cobblers, and every fool his own parson. [Footnote: Neal, III. 88-90, and 138-141.]

Visitation of the University of Cambridge.—While the scandalous and malignant among the parish clergy were being sequestered and ejected, it was not to be expected that Parliament would spare the Universities. Oxford, for the present, was beyond reach; but Cambridge was within reach. Was it to be endured that, while the town of Cambridge was the very centre of the Associated Eastern Counties, the most zealously Parliamentary region in all England, the University should be a fortress of malignancy, with many of its Heads of Houses and Fellows notoriously disaffected to Parliament, and showing their disaffection by sermons, publications from the University press, continuance of the forbidden usages and symbolisms in the College chapels, and such other acts of contumacy? For a long time Parliament had been asking itself this question. As early as June 10, 1643, the subject of "some effectual means of reforming" the University of Cambridge, "purging it from all abuses, innovations, and superstitions," and dealing with conspicuous malignants in it, had been under discussion in the Commons. There had been a reluctance, however, to proceed too rapidly, or so as to incur the Royalist reproaches of "invasion of University rights" and "ruin of a great seat of learning." Hence, whatever

dealings with the University had been necessary had been left very much to the discretion of the ordinary agencies representing Parliament in the Associated Counties, at the head of which, since Aug. 1643, had been the Earl of Manchester. There was even a Parliamentary ordinance (Jan. 6, 1643-4) explaining that, whatever sequestration there might be of the revenues of individual delinquents in the University, every regard was to be paid to the property of the University as such, and not an atom of *it* should be alienated. By this time, however, it was felt that the malignancy of the University must be dealt with more expressly. Accordingly, on the 22nd of January there was passed "an Ordinance for regulating the University of Cambridge and for removing of scandalous Ministers in the several Associate Counties." By this ordinance it was provided that, "whereas many complaints are made by the well-affected inhabitants of the associated counties of Essex, Norfolk, Suffolk, Hertford, Cambridge, Huntingdon, and Lincoln, that the service of the Parliament is retarded, the enemy strengthened, the people's souls starved, and their minds diverted from any care of God's cause, by their idle, ill-affected and scandalous clergy of the University of Cambridge and the Associated Counties" and whereas "many that would give evidence against such scandalous ministers are not able to travel to London," therefore the Earl of Manchester should be commissioned to take the necessary steps in the University and the Counties themselves. He was to appoint Committees who were to have "power to call before them all Provosts, Masters, and Fellows of Colleges, all students and members of the University, and all ministers in any county of the Association, and all schoolmasters;" and, after due inquiry by these Committees, he was to have power "to eject such as he shall judge unfit from their places, and to sequester their estates, means and revenues, and to place other fitting persons in their room, such as shall be approved of by the Assembly of Divines." A very important ordinance, as we shall see in due

time. [Footnote: Commons Journals, June 10, 1643, and Jan. 20, 1643-4; Lords Journals, Jan. 6 and Jan. 22, 1643-4; and Neal, III. 105-107.]

The reader need hardly be reminded by what authority all these acts and changes in the system of England were decreed and carried into effect. Since the beginning of the war the government of England, except where the King's troops were in possession, had been in the two Houses of Parliament sitting at Westminster; but since July 1643 it may be said rather to have been in these two Houses of Parliament *with* the Assembly of Divines. What the reader requires, however, to be reminded of is the smallness numerically of this governing body. The House of Lords, in particular, though still retaining all its nominal dignity and keeping up all its stately forms, was a mere shred of its former self. About 29 or 30 persons, out of the total Peerage of England, as we reckoned (Vol. II. pp. 430-31), had avowed themselves Parliamentarians; so that, had all these been present, the House of Lords would have been but a very small gathering. But, as a certain number even of these were always absent on military duty or on other occasions, it was seldom that more than 14 or 15 Peers were present in the House around Lord Grey of Wark on the woolsack as elected Speaker. Sometimes, when the business was merely formal, the number sank to 4 or 5; and I do not think the Lords Journals register, during the whole time with which we are now concerned, a larger attendance than 22. That was the number present on the 22nd of January, 1643-4, when the ordinance for visiting Cambridge University was passed. [Footnote: As the Lords Journals give the names of the Peers present each day, very accurate information on this subject is obtainable from them.] In the Commons, of course, the attendance was much larger. When a "whip" was necessary, between 200 and 300 could be got together. Thus on the 25th of September, 1643, which was the day of inaugurating the Covenant, 220 were present; and on the above-mentioned 22nd of January, 1643-4—an important day for various reasons—as many as 280 made their appearance, while it was

calculated that 100 were absent in the Parliamentary service. [Footnote: Parl. Hist. III. 199.] Usually, however, the attendance was much less numerous. On a vote taken Nov. 26, 1643, the division showed 59 against 58, or 117 present; and this appears to be rather above the mark of the attendance in general.—On the whole, one may say that the business of the nation in the interest of Parliament was carried on habitually during those important months by some 12 or 15 Parliamentarian Peers, and some 100 Commons, keeping up the forms of the two Houses, and having for their assessors, and in part for their spurs and tutors, the 60 or 80 Puritan Divines who sat close at hand in the Jerusalem Chamber.

Was all this to last? Whether it was to last or not depended not a little on the conduct of the Parliament itself, but greatly more on the conduct of the generals and armies that held up its banners in various parts of England. And how, since our last glimpses of the state of the war in the dark month of Hampden's death and the month following that (June and July 1643), had the war been going on? Much as before. What do we see? A siege here and a siege there, a skirmish here and a skirmish there, ending sometimes for the Parliament, but as often for the King; amid all these sieges and skirmishes no battle of any magnitude, save the first Battle of Newbery (Sept. 20, 1643), where Lord Falkland, weary of his life, was slain, and also the Royalist Earls of Carnarvon and Sunderland, but otherwise the damage to the King was inconsiderable; Essex still heavy and solemn, an excellent man, but a woful commander-in-chief; little Sir William Waller still the favourite and set up against Essex, but confidence in him somewhat shaken by his recent defeats; the Fairfaxes in the north, and others in other parts, doing at best but respectably; Cromwell, it is true, a marked man and always successful wherever he appeared, but appearing yet only as Colonel Cromwell! "For the present the Parliament side is running down the braise," wrote the sagacious Baillie, Sept. 22, 1643; and again, more pithily, Dec. 7, "They may tig- tag on this way this twelvemonth." The only remedy, Baillie

thought—the only thing that would change the sluggish "tig-tagging" of Essex and the English into something like what a war should be—was the expected coming-in of the Scots. For this event the English Parliamentarians also longed vehemently. "All things are expected from God and the Scots" is Baillie's description of the feeling in London in the winter of 1643-4. For, though the bringing in of a Scottish force auxiliary to the English army had been arranged for in the autumn—though it was for that end that the English Parliament had sent Commissioners to Edinburgh, had accepted Henderson's "Solemn League and Covenant," and had admitted Scottish Commissioners into the Westminster Assembly—yet the completing of the negotiations, and the getting together and equipping of the Scottish army for its southward march, had been a work of time. About Christmas 1643 it was understood that the Scots were in readiness to march; but the precise time when they might be expected to cross the border was yet in anxious conjecture. [Footnote: Baillie, II. 83, 99, 104-5, and 114-15.]

It was an unusually severe winter, cold and snowy. The Londoners, in especial, deprived of their coal from Newcastle, felt it severely. Baillie particularly mentions the comfortable hangings of the Jerusalem Chamber, and the good fire kept burning in it, as "some dainties in London" at that date, and duly appreciated by the members of the Assembly. [Footnote: Ibid. II. 106.] Among the printed broad-sheets of the time that were hawked about London, I have seen one entitled "*Artificial Fire; or, Coal for Rich and Poor: this being the offer of an excellent new Invention.*" The invention consists of a proposal to the Londoners of a cheap substitute for coal, devised by a "Mr. Richard Gesling, Engineer, late deceased." Mr. Gesling's idea was that, if you take brickdust, mortar, sawdust, or the like, and make up pasteballs thereof mingled with the dust of sea-coal or Scotch coal, and with stable-litter, you will have a fuel much more economical than coal itself. But, though this is the practical proposal of the fly-sheet, its main interest lies in its lamentation over the lack of the normal fuel. "Some fine-

nosed city dames," it says, "used to tell their husbands, 'O husband! we shall never be well, we nor our children, whilst we live in the smell of this city's sea-coal smoke! Pray, a country-house for our health, that we may get out of this sea-coal smell!' But how many of these fine-nosed dames now cry, 'Would to God we had sea-coal! Oh! the want of fire undoes us! O the sweet sea-coal fires we used to have! how we want them now: no fire to your sea-coal!'... This for the rich: a word for the poor! The great want of fuel for fire makes many a poor creature cast about how to pass over this cold winter to come; but, finding small redress for so cruel an enemy as the cold makes, some turn thieves that never stole before—steal posts, seats, benches from doors, rails, nay, the very stocks that should punish them; and all to keep the cold winter away." [Footnote: Folio sheet dated 1644 (*i.e.* winter of 1643-4), in British Museum Library: Press-mark, 669, f.]—If on no other account than the prospect of a re-opening of the coal-traffic between Newcastle and London, what joy among the Londoners when the news came that, on Friday the 19th of January, 1643-4, the expected Scottish army had entered England by Berwick! They had entered it, toiling through deep snow, 21,500 strong, and were already—God be praised!—spreading themselves over the winter-white fields of the very region where the coal lay black underground. At their head who but old Field-marshal Leslie, now Earl of Leven, Scottish commander-in-chief for the third time, and tolerably well acquainted already with the North of England? Second in command to him, as Lieutenant-general of the Foot, was William Baillie, of Letham, in this post for the second time; and the Major-general, with command of the horse was David Leslie, a third Gustavus-Adolphus man, and, though a namesake of the commander-in-chief, only distantly related to him. The marquis of Argyle accompanied the invaders, nominally as Colonel of a troop of horse; and among the other colonels of foot or horse were the Earls of Cassilis, Lindsay, Loudoun, Buccleugh, Dunfermline, Lothian, Marischal, Eglinton, and Dalhousie. The expenses of the army,

averaging 1,000_l._ per diem (6_d._ a day for each common foot-soldier, 8_d._ for a horse-soldier, and so on upwards) were, by agreement, to be charged to England. [Footnote: Rushw. V. 604-7; Parl. Hist. III. 200, 201; Baillie, II. 100 and 137.]

The condition on which the Scots had consented thus to aid the English Parliament must not be forgotten. It was the agreement of the two nations in one and the same religious Covenant. In all the negotiations that had been going on between London and Edinburgh, the Scots had always assumed the fulfilment of this condition on the part of the English. And, so far, we have seen, it had already been fulfilled. Since September 1643, when Henderson's Covenant had first been proposed to the English Parliament and the Westminster Assembly, and the Commons and the Westminster Divines had set the example by swearing to it collectively in one of the London churches, "the Covenant" had been a phrase familiar to the English mouth. In all the miscellaneous activity of the Parliament for the detection and disabling of "Malignants," there had been no instrument more effective or more commonly used. There were other tests and oaths by which the "malignants" might be distinguished from the "well-affected"; but the taking or not taking of the Solemn League and Covenant was the test paramount. Wherever the Parliament had power it had been in operation. Since December 20, for example, it had been the law that no one could be a Common Councilman of the City of London who had not subscribed to the Covenant. Still, in this matter of subscription to the Covenant, the English, both as the larger nation and as the less accustomed to Covenants, had remained considerably in arrear of the Scots; and, when the Scots actually did make their appearance in England, there was a sudden refreshing of the memory of the English Parliament on the subject, and a sudden exertion to make up the arrears. "The Scots are among us on the supposition that we have all taken the Covenant; and lo! we have not yet all taken it," was virtually the exclamation of the Parliament. Accordingly, that all might be

brought in, that there might be no escape, and that there might remain to all time coming a vast register of the names of the Englishmen then living who had entered into this solemn league with their Scottish neighbours, there was passed, on the 5th of February, 1643-4, a new and conclusive ordinance on the subject. By this ordinance it was enacted that true copies of the Covenant should be sent to the Earl of Essex and other commanders of the army, and to all governors of towns, &c., to the intent that it might be sworn to by every man in the army; also that copies should be sent into all the counties, so that they should punctually reach every parish and every parish-minister—the instructions being that every minister should, the next Lord's day after the certified copy of the Covenant reached him, read it aloud to his congregation, discourse and exhort upon it, and then tender it to all present, who should swear to it with uplifted hands, and afterwards sign it with their names or marks. All men over eighteen years of age, whether householders or lodgers, were to take it in the parishes in which they were resident; and the names of all refusing, whether ministers or laymen, were to be reported. [Footnote: See Ordinance in Lords Journals, Feb. 5, 1643-4.] Nay, by an arrangement about the same time, the action of the Covenant was made to extend to English subjects abroad. Notwithstanding all this stringency, there is reason to believe that not a few soldiers in the army, and not a few ministers and others, contrived, in one way or another, to avoid the Covenant, without being called to account for the neglect. Where a minister otherwise unexceptionable, or an officer or soldier of known zeal and efficiency, had scruples of conscience against signing, the authorities, both civil and military, appear in many places to have exercised a discretion and winked at disobedience or procrastination.—The case of the Earl of Bridgewater may here be of some interest, on its own account, and as illustrating what went on generally. The Earl, known to us so long as "the Earl of Milton's *Comus*" had been living in retirement as an invalid during the war, his wishes on the whole being doubtless with the King, but his

circumstances obliging him to keep on fair terms with the Parliament. The test of the Covenant seems to have sorely perplexed the poor Peer. "He says some things in the Covenant his heart goes along with them, and other things are doubtful to him; and therefore desires some time to consider of it." Such was the report to the Lords, Wednesday Feb. 7, 1643-4, by the Earls of Rutland and Bolingbroke, who had been appointed to deal with him and other absent Peers in the matter. "He shall have time till Friday morning next," was the entry ordered to be made. On the Friday named there is no mention of the subject in the Lords Journals; but on Saturday the 10th Lords Rutland and Bolingbroke were able to report that it was all right. Two days had convinced the Earl that signing would be best for him. [Footnote: Lords Journals of dates cited.]

Besides this universal imposition of the Covenant by Parliamentary ordinance upon all who had hitherto neglected to take it, there was another immediate effect of the presence of the Scots in England. The two nations being now in arms for the same cause, the fortunes of each nation depending largely on the conduct of the other, and the two national armies indeed having to co-operate strategically, there required to be some common directing power, intermediate between the English Parliament in Westminster and the Scottish Estates in Edinburgh, representing both, and acting for both in all matters of military concern. The Scots, on their part, had made provision accordingly. Besides appointing a stationary Committee of the Estates to manage matters from Edinburgh, and another Committee to be with the Scottish army as a kind of Council to the Earl of Leven, they had nominated (Jan. 9, 1643-4) a Special Commission of four persons to go to London with full powers to represent the views and interests of Scotland in the enterprise in which it was now conjoined with England. These were—the EARL OF LOUDOUN, High Chancellor of Scotland; LORD MAITLAND (already in London as Scottish Commissioner to the Westminster Assembly); SIR ARCHIBALD JOHNSTONE OF

WARRISTON (due in London at any rate as a Commissioner to the Assembly); and MR. ROBERT BARCLAY, Provost of Irvine in Ayrshire. These Commissioners having presented their Commission to the English Parliament, Feb. 5, the Parliament were moved to appoint some of its trustiest men from the two Houses to be an English Committee of Consultation with the Scottish Commissioners, and in fact to form, along with them, a joint "Committee of the Two Kingdoms." Such an institution was not at all to the taste of Lord General Essex, inasmuch as it trenched on his powers as commander-in-chief. Some opposition was therefore offered. On the whole, however, the argument that the two kingdoms ought to be "joined in their counsels as well as in their forces" proved overpowering; and on the 16th of February an ordinance was passed appointing the following persons (7 Peers and 14 Commoners) to be a Committee for the purpose named—the EARL OF NORTHUMBERLAND, the EARL OF ESSEX, the EARL OF WARWICK, the EARL OF MANCHESTER, VISCOUNT SAYE AND SELE, LORD WHARTON, LORD EGBERTS, WILLIAM PIERREPOINT, SIR HENRY VANE, Senr., SIR PHILIP STAPLETON, SIR WILLIAM WALLER, SIR GILBERT GERRARD, SIR WILLIAM ARMYN, SIR ARTHUR HASELRIG, SIR HENRY VANE, Junr., JOHN CREWE, ROBERT WALLOP, OLIVER ST. JOHN, SAMUEL BROWNE, JOHN GLYNN, and OLIVER CROMWELL. Six were to be a quorum, always in the proportion of one Lord to two Commoners, and of the Scottish Commissioners meeting with them two were to be a quorum. There can be no doubt that the object was that the management of the war should be less in Essex's hands than it had been. [Footnote: Lords Journals of dates Feb. 5 and 16, 1643-4; and Baillie, II. 141, 142]

The name of JOHN PYM may have been looked for in the Committee. Alas! no longer need his name be looked for among the living in this History. He had died on the 8th of December, 1643, when the Scots were expected in England, but had not yet arrived. He was buried magnificently

in Westminster Abbey, all the Lords and Commons attending, and Stephen Marshall preaching the funeral sermon. England had lost "King Pym," her greatest Parliamentary man. No one precisely like him was left. But, indeed, he had done his work to the full; and, had he lived longer, he might have been loved the less! [Footnote: Rushworth V. 376; Parl. Hist. III. 186-7; and Baillie, II. 118.]

CHAPTER II.

MILTON UNHAPPY IN HIS MARRIAGE: HIS FIRST DIVORCE TRACT: TWO EDITIONS OF IT.

We left Milton in his house in Aldersgate Street in or about 1643, waiting for the promised return of his recently-wedded wife at Michaelmas, and meanwhile comfortable enough, with his books, his pupils, and the quiet companionship of his old father. We are now seven or eight months beyond that point in our general History. What had happened in the Aldersgate household in the interval? A tremendous thing had happened. Milton had come to desire a divorce from his wife, and had written and published a Tract on Divorce, partly in the interest of his own private case, but really also with a view to suggest to the mind of England, then likely to be receptive of new ideas, certain thoughts on the whole subject of the English law of Marriage which had resulted from reflection on his own experience. Here is the story:—

"Michaelmas [Sept. 29, 1643] being come," says Phillips, "and no news of his wife's return, he sent for her by letter, and, receiving no answer, sent several other letters, which were also unanswered; so that at last he despatched down a foot-messenger [to Forest Hill] with a letter, desiring her return. But the messenger came back not only without an answer, at least a satisfactory one, but, to the best of my remembrance, reported that he was dismissed with some sort of contempt. This proceeding, in all probability,

was grounded upon no other cause but this—viz.: that, the family being generally addicted to the Cavalier party, as they called it, and some of them possibly engaged in the King's service, who by this time had his headquarters at Oxford and was in some prospect of success, they began to repent them of having matched the eldest daughter of the family to a person so contrary to them in opinion, and thought it would be a blot on their escutcheon whenever that Court should come to flourish again. However, it so incensed our author that he thought it would be dishonourable ever to receive her again, after such a repulse; so that he forthwith prepared to fortify himself with arguments for such a resolution, and accordingly wrote," &c. Here Phillips goes on to enumerate Milton's various Divorce Tracts, the first of which in order of time was his *Doctrine and Discipline of Divorce*. Aubrey corroborates Phillips, but has little on the subject but what he may have picked up from gossip. "She was a ... Royalist, and went to her mother near Oxford: he sent for her after some time, and I think his servant was evilly entreated,"—such are Aubrey's brief notes of the facts; after which come his own reflections on the rupture: "Two opinions do not well on the same bolster;" and "What man, especially contemplative, would like to have a young wife environed and stormed by the sons of Mars, and those of the enemy party?" Finally Wood, in his *Fasti*, does little more than repeat Aubrey: "Though he sent divers pressing invitations, yet he could not prevail upon her to come back;" whereupon "he, being not able to bear this abuse, did therefore, upon consideration, after he had consulted many eminent authors, write the said book of Divorce, with intentions to be separated from her." [Footnote: Phillips's Memoir; Aubrey's Lives; and Wood's *Fasti* Oxon. I. 482-3.]

On all grounds Phillips's authority is the best. And yet there are difficulties in his account. According to that account, it was the non- return of Milton's wife at or about Michaelmas (Sept. 29) 1643, and not only her non-return then, but her obstinate and repeated refusal to return after that

date, and the insulting conduct of her family to the messenger he finally sent to urge her return, that roused Milton's indignation, put the thought of divorce into his mind, and induced him to write his first Divorce Tract. If so, the tract could hardly have been ready till some weeks after Michaelmas 1643—say, till about Christmas of the same year. There is proof, however (and I do not think it has been observed before), that Milton's first Divorce Tract was already published and in circulation two months *before* the Michaelmas in question. The proof is not, where we might expect it, in the books of the Stationers' Company; for the Tract, like all Milton's previous pamphlets, was published by him, rather defiantly, without the required legal formalities of licence and registration. But there is a precious copy of it in Thomason's great collection of pamphlets, called "the King's Pamphlets," in the British Museum. The title in that copy is as follows: *"The Doctrine and Discipline of Divorce, Restor'd, to the good of both Sexes, from the Bondage of Canon Law and other mistakes, to Christian Freedom, guided by the Rule of Charity; wherein also many places of Scripture have recovered their long-lost meaning: seasonable to be now thought on in the Reformation intended."* Underneath this title there follows on the title-page the quotation "Matth. xiii. 52. Every Scribe instructed to the Kingdome of Heav'n is like the Maister of a house which bringeth out of his treasurie things old and new;" and at the foot of the title-page is the legend *"London, Printed by T. P. and M. S. in Goldsmiths' Alley: 1643."* [Footnote: Copy in British Museum Library Press mark, 12. G.F. 17 119.] This printed legend alone would all but determine the publication to have been prior to Christmas 1643; but the question is set at rest by a manuscript note on the title-page, *"Aug. 1st."* The note was put there by, or by the direction of, the collector, Thomason, to indicate the day on which the copy came into his hands, and is to be relied on implicitly. The Tract, it will be observed, was anonymous; but the words *"Written by J. Milton,"* penned on the title-page by the same hand that penned the date *"Aug. 1st,"* show that

the authorship was no secret from the all-prying Thomason. In short, on evidence absolutely conclusive, Milton's first Divorce Tract was in print and on sale in London on the 1st of August, 1643, or two months before Phillips's fatal Michaelmas. [Footnote: This may be the place for a word or two about the collector of those Pamphlets in the British Museum among which I have had so frequently to range for the purposes of this work, and to which, like other inquiries into English History from 1610 to 1660, I owe more items of information than I can count.—George Thomason was a London bookseller of the Civil War time; his place of business being the "Rose and Crown" in St. Paul's Churchyard. He was of Royalist sympathies; but his hobby was to collect impartially all the pamphlets, broad-sheets, &c., that teemed from the press on both sides, and not only those that teemed from the English press, but also all published abroad that bore on current English questions. He began this labour in 1641, and pursued it indefatigably till after the Restoration; so that, at his death in or about 1666, he left a collection of about 33,000 pamphlets, &c. on English affairs, published between 1638 and 1662. The making of this collection had been the delight of his life; it had been his anxiety that no single tract, or printed scrap of any interest, should escape him. When he began to collect in 1641, he had taken pains to obtain copies of publications of the immediately preceding years; and after that his work had been facilitated by the notoriety of his passion for collecting. Booksellers and authors (Milton for one) seem occasionally to have sent copies of their pamphlets to Thomason. "Exact care hath been taken," he himself tells us in the Introduction to a MS. catalogue of his treasures, "that the very day is written upon most of them that they came out;" and this care of his has fixed the dates of many publications that would else have been unknown or but vaguely known.—For farther particulars of this interesting person, an account of the shifts to which he was put to save his collection from the chances of Parliamentary pillage, and a history of the fortunes of his

collection till it came to be part of the Library of King George III., and so of the British Museum, see Edwards's *Memoirs of Libraries* (1859), Vol. I pp, 456-460.—I may add that I have seen a pencil jotting in Thomason's hand on one of the fly-leaves of his collection as fresh and legible, after 220 years, as if it had been written yesterday.]

One of two suppositions therefore:—(1.) If Phillips is right in his statement that Milton's first Divorce Tract was caused by the obstinate refusal of his wife to return to him, and the insulting conduct of her family in detaining her and laughing at his letters and messages, then Phillips's dates in the whole matter of the marriage must be a little wrong. "About Whitsuntide it was (May 21, 1643) that my uncle left us in Aldersgate Street, on what turned out to be his marriage journey; in about a month's time he returned, bringing his wife, and some of her relations, with him (June 1643); the relations stayed about a week, during which there was much feasting and merriment; for about a month after they were gone the newly-married wife remained with my uncle; but then (late in July or early in August 1643), tired of a philosophical life, and pining for the society of home, she contrived a request from her family to have her with them during the rest of the summer—to which my uncle consented, on the understanding that she was to come hack about Michaelmas (Sept. 29, 1643)." Such, re-expressed in words for the nonce, is Phillips's account as we have already given it. But, as the Divorce Tract was published August 1, 1643, it is clear that, if the cause of that Tract was the persistent, protracted, and contemptuous absence of his wife, then Phillips's memory must have been at fault, and he must have somewhat post-dated the marriage itself. The marriage in that case must have been before Whitsuntide 1643; and the return of the wife to her relations, her refusal to come hack, and Milton's chagrin and anger so occasioned, must have been matters not of after Michaelmas 1643, but of at least a month or two before the August of that year. This is quite a tenable supposition; for there are other inaccuracies in

Phillips, and the register of the place and date of Milton's marriage with Mary Powell has not been found. (2) On the whole, however, Phillips's recollections about the marriage are so circumstantial, and there is such a likelihood of their being true, that, until contradictory records shall be produced, it seems right to accept his dating. But then his explanation of the cause of his uncle's speculations about divorce must be wrong. The cause in that case cannot have been the obstinate refusal of his wife to return; for the Divorce Tract must have been written and ready for the press while she was still with him in the Aldersgate Street house (July 1643), and it was actually out (Aug. 1) before she can have reached her father's house at Forest Hill on her granted two months of leave till Michaelmas. What are we to make of this discrepancy? One is puzzled. That a man should have occupied himself on a Tract on Divorce ere his honeymoon was well over—should have written it perseveringly day after day within sound of his newly-wedded wife's footsteps and the very rustle of her dress on the stairs or in the neighbouring room—is a notion all but dreadful. And yet to some such notion, if Phillips's dating is correct, we seem to be shut up. But, if so, more is involved than Phillips knew. The cause of Milton's thoughts about divorce, in that case, must have been the agony of a deadly discovery of his wife's utter unfitness for him when as yet she had not been two months his wife. It must have been the unutterable pain of the dis-illusioned bridegroom, the gnawing sense of his irretrievable mistake, The vision must then pass before our minds of scenes in the Aldersgate Street house, the reverse of the happily connubial, *before* that sudden departure of the bride back to her father's home, and leading to that incident perhaps rather violently. One seems to hear the sound of differences, of conflicting opinions about this and that, of weeping girlish wilfulness opposed to steady and perhaps too austere prohibitions. "Well, then, I will go back to my mother: I am sure I wish I had never——": "Go": And so the parting may have come about, not wholly by her arrangement, but harshly and with

some quarrel on his part. There are not wanting subsequent facts that might lend a plausibility to this version of the story. [Footnote: Milton's mother-in-law, having occasion, seven years afterwards (1651), to advert to her daughter's return home so soon after her marriage, distinctly attributed it to Milton himself. The words are, "He having turned away his wife heretofore for a long space upon some other occasion." I do not think Mrs. Powell was a very accurate lady, and she had no fondness for Milton; but the words seem to imply more than a mere passive consent of Milton to his wife's proposal to revisit her family.] Yet it is the other that one would wish to be true, and that would fit in most naturally with the facts as a whole. That version is that Milton, good-naturedly and perhaps taken by surprise, allowed his wife to go home for two months at her own request, or the request of her relatives, before he had been three months married, and that it was the insult of her nonreturn that revealed to him his mistake in her, and drove him into his speculations about divorce. Only, then, we repeat, Phillips's dating of the marriage and its incidents requires amendment.

In any case the first edition of Milton's *Doctrine and Discipline of Divorce* was out in London on the 1st of August, 1643. [Footnote: The supposition is always open that, by some oversight, Thomason misdated his copy, putting "Aug." for a much later month. But this is the unlikeliest thing of all.] It was a pamphlet of forty-eight small quarto pages, with an extra page supplying two omitted passages. The text was printed continuously, without division into chapters; at the end.

Both in matter and in manner the Tract was one of the boldest that had ever been submitted to the reading of England. Its thesis is laid down near the beginning in these terms: "*That indisposition, unfitness, or contrariety of mind, arising from a cause in nature unchangeable, hindering and ever likely to hinder the main benefits of conjugal society, which are solace and peace, is a greater reason of divorce than natural frigidity, especially if*

there be no children, and that there be mutual consent." This thesis Milton sets himself to argue in all sorts of ways—from natural reason and expediency; from the Scripture doctrine of marriage as it might be gathered from the Mosaic Law and the right interpretation of texts in the Old and New Testaments, notwithstanding one or two individual texts (like that of Matth. v. 31, 32) that had been hackneyed and misunderstood by mere literalists; and from opinions or indications of opinion on the subject that might be found in the works of some of the Protestant Reformers, and other eminent writers. His conclusion was that the notion of the indissolubility of marriage, or even the modified law of England and of other countries, authorizing divorce only for certain gross reasons, were mere relics of superstitious tradition, the concoction of the Canonists and Sacramentalists in the ages of sacerdotal tyranny, unworthy of more enlarged views of justice and liberty, and a canker and cause of incalculable misery in the heart of modern society. Again and again he indicates his consciousness that in announcing this conclusion, and trying to rouse his fellow-countrymen to the necessity of at once including a revision of the Marriage Law in the general Reformation then in progress, he is performing a great public service. Thus, at the very opening: "By which [the precedent of certain liberal hints on the subject by Hugo Grotius], and mine own apprehension of what public duty each man owes, I conceive myself exhorted among the rest to communicate such thoughts as I have, and offer them now, in this general labour of Reformation, to the candid view both of Church and Magistrate; especially because I see it the hope of good men that those irregular and unspiritual courts have spun their utmost date in this land, and some better course must now be constituted. He, therefore, that by adventuring shall be so happy as with success to ease and set free the minds of ingenuous and apprehensive men from this needless thralldom; he that can prove it lawful and just to claim the performance of a fit and matchable conversation no less essential to the prime scope of marriage than the gift of

bodily conjunction, or else to have an equal plea of divorce as well as for that corporal deficiency; he that can but lend us the clue that winds out this labyrinth of servitude to such a reasonable and expedient liberty as this—deserves to be reckoned among the public benefactors of civil and human life, above the inventors of wine and oil." [Footnote: This passage is from the first edition; it is not nearly so full in the second.] As such a benefactor, such a champion of a neglected truth and a suppressed human liberty, the anonymous writer offers himself. He knows that he stands alone at present, but he trusts to the power of demonstration addressed to the mind of England, then newly awakened and examining all institutions to their roots.

There is not a word of avowed reference to his own case throughout; and yet from first to last we are aware of young Mary Powell in the background. Inability for "fit and matchable conversation": this is that supreme fault in a wife on which the descant is from first to last, and from which, when it is plainly ingrained and unamendable, the right of divorce is maintained to be, by the law of God and all civil reason, the due deliverance. Hopeless intellectual and spiritual incompatibility between husband and wife: it is on this, though not in these exact words, that Milton harps again and again as in his view the clearest invalidation of marriage, the frustration of the noblest and most divine ends of the institution; an essentially worse frustration, he dares to say in one place, than even that conjugal infidelity which "a gross and boorish opinion, how common soever," would alone resent or recognise. It is marvellous with what richness of varying language he paints to the reader the horrible condition of a man tied for life to a woman with whom he can hold no rational or worthy conversation. "A familiar and co- inhabiting mischief"; "spite of antipathy to fudge together and combine as they may, to their unspeakable weariness and despair of all sociable delight"; "a luckless and helpless matrimony"; "the unfitness and effectiveness of an unconjugal mind"; "a worse condition than the loneliest single life"; "unconversing inability of mind"; "a mute and spiritless mate";

"that melancholy despair which we see in many wedded persons"; "a polluting sadness and perpetual distemper"; "ill-twisted wedlock"; "the disturbance of her unhelpful and unfit society"; "one that must be hated with a most operative hatred"; "forsaken and yet continually dwelt with and accompanied"; "a powerful reluctance and recoil of nature on either side, blasting all the content of their mutual society"; "a violence to the reverend secret of nature"; "to force a mixture of minds that cannot unite"; "two incoherent and uncombining dispositions"; "the undoing or the disheartening of his life"; "the superstitious and impossible performance of an ill-driven bargain"; "bound fast to an uncomplying discord of nature, or, as it oft happens, to an image of earth and phlegm"; "shut up together, the one with a mischosen mate, the other in a mistaken calling"; "committing two ensnared souls inevitably to kindle one another, not with the fire of love, but with a hatred irreconcilable, who, were they severed, would be straight friends in any other relation"; "two carcasses chained unnaturally together, or, as it may happen, a living soul bound to a dead corpse"; "enough to abase the mettle of a generous spirit and sink him to a low and vulgar pitch of endeavour in all his actions": such are a few specimens of the phrases with which the tract abounds. [Footnote: Some of the phrases quoted occur in passages added in the second edition; but it is not worth while to distinguish those. Most of the phrases, and those of the same, occur in the third edition.] But one passage may be quoted entire:—

"But some are ready to object that the disposition ought seriously to be considered before. But let them know again that, for all the wariness can be used, it may yet befall a discreet man to be mistaken in his choice, and we have plenty of examples. The soberest and best-governed men are least practised in these affairs; and who knows not that the bashful muteness of a virgin may oft-times hide all the unliveliness and natural sloth which is really unfit for conversation? Nor is there that freedom of access granted or presumed as may suffice to a perfect discerning till too late; and, where any

indisposition is suspected, what more usual than the persuasion of friends that acquaintance, as it increases, will amend all? And, lastly, it is not strange though many who have spent their youth chastely are in some things not so quick-sighted while they haste too eagerly to light the nuptial torch: nor is it therefore that for a modest error a man should forfeit so great a happiness, and no charitable means to release him; since they who have lived most loosely, by reason of their bold accustoming, prove most successful in their matches, because their wild affections, unsettling at will, have been as so many divorces to teach them experience; whenas the sober man, honouring the appearance of modesty, and hoping well of every social virtue under that veil, may easily chance to meet ... often with a mind to all other due conversation inaccessible, and to all the more estimable and superior purposes of matrimony useless and almost lifeless; and what a solace, what a fit help, such a consort would be through the whole life of a man is less pain to conjecture than to have experience."

Oh! and is it come to this? Then, as now, nothing so common as that such mischances of marriage, heard of by the world, and the rather if published by the sufferers or one of them, should be received only as excellent amusement for people round about. It is as if the one thing intrinsically and unceasingly comic in the world, for most people, were the fact that it consists of man and woman, as if the institution on which human society is built and by which the succession of earth's generations is maintained, were the one only subject, with most people, for nothing else than laughter. Even now perhaps our disposition to jocosity on this subject, not sufficiently entertained by incidents of our own day, will range back to that case of Milton and Mary Powell two hundred and twenty-eight years ago, and join in the gossip which it then began to circulate through the town. In the lobby of the House of Commons it must have been heard of: it may have given a relish to the street-talk of reverend Presbyterian gentlemen talking home together from the Assembly "Only a month or two married; his wife gone

home again; and now, instead of proper reticence about what can't he helped, all this hullabaloo of a new doctrine about Divorce! Just like him!" This and such-like is what we seem to overhear; this and such-like is what Milton did overhear; not much more than this and such-like are most of us prepared to say even now when we read the story. And yet the story is surely worth more. One fails to see, after all, that it yields only matter for jest and the repetition of commonplaces. What are the facts? Two human beings, long dead and gone, but then alive and with the, expectation of many years of life before them, had hardly been banded together in church when they found, or thought they found, that their union was for their mutual misery. The one was a poor country-girl in her teens, ruing the fate to which she had committed herself, but with no weapons for her relief but her tears, her terror, and the mitigation of refuge in her father's house. *Her* case is to be pitied; shame if it is *not*! The other was a man extraordinary—so extraordinary that even now we try to follow him in fancy in his walks through the London streets, and any bit of old wall his arm may have touched is a sacred antiquity, and we regard the series of thoughts that was in his mind through any month, or series of months, as something of prime interest in the spirit of the past, a prize that we would give gold to recover. Well, here was one series of thoughts that was in this man's mind for months and months, and that left effects, indeed, to his life's end. He was moody in his house; he walked moodily in the streets; we can hear him muttering to himself, we can see his teeth clenched. Morning and evening, day after day, he is in a great despair. And why? Because he has made the most fatal mistake a man can make, and is gazing on, morning and evening, day after day, into the consequences. Lo! into that life which he had hoped to make worthy of the God who gave it, a pattern life, a great poem within whose azure fitness other poems should arise to spin their gleaming courses—into this life what had he imported? Not the solace and bliss of a kindred soul's society, which had been his intent and dream; but a darkness, a

disturbance, a marring melancholy, a daily and hourly debasement, a coinhabiting mischief! It was enough, he says, to drive a man "at last, through murmuring and despair, to thoughts of Atheism." But was there no remedy? Ah! in the very power of putting this question lay the advantage of the strong man over the weak Oxfordshire girl. He could reason, he could delve into the subject, he could revolve it intellectually. What if the plight in which he found himself were no necessary and irremediable evil? What if the permanence of marriage once contracted between two persons utterly unsuitable for each other were no decree of God, no real requirement of religion or of social well-being, but a mere superstitious and fallacious tradition, a stupid and pernicious convention among men? Once on this track, there was light for Milton. Out of his own private mishap there came the suggestion of a great enterprise. He would thunder, if not the mishap itself, at least its public significance, out upon the world. He would rouse his countrymen on the whole subject of the Law of Marriage. Who knew but his voice might be heard? Who knew but that, were it loud enough, there would be a response of assent from the whole land, and his new idea of Divorce, albeit the proclamation of only one man, might be carried, with other things, in the current Reformation? There ran a touch of this sanguine temper, this faith that any ideal might easily be made actual, through all Milton's life; and it appeared now most conspicuously. His idea, he was aware, was new; but only let his demonstration be sufficiently thorough, only let him succeed in disturbing the existing apathy and setting the thoughts of the nation astir on the subject, "and then," what?—"then I doubt not but with one gentle stroking to wipe away ten thousand tears out of the life of men." [Footnote: This phrase is in one of the inserted passages in the second edition.] Alas! after the hurricane of two hundred years the tear-drops still hang, multitudinous as ever, amid the leaves of that poor forest!

"Just like him" I have imagined to have been a comment on this new appearance of Milton by some gossip of the day who may have known a

little of him personally. Really, though not as intended, the comment would have been just. This whole action of Milton, consequent on his unhappy marriage, was deeply characteristic. And yet there was perhaps no one then living from whom such a course of action could less have been expected. From all that we know of the youth and early manhood of Milton, we should certainly have predicted of him, with whatever heterodoxy in other matters, yet a life-long orthodoxy on the subject of marriage. Think of him as we have seen him heretofore, the glorious youth, cherishing every high ethical idealism, walking as in an ether of moral violet, disdaining customary vice, building up his character consciously on the principle that he who would be strong or great had best be immaculate. Think of him as the author of *Comus*; or think of him as he had described himself some years later in one of his Italian Sonnets:—

"Young, gentle-natured, and a simple wooer,
Since from myself I stand in doubt to fly,
Lady, to thee my heart's poor gift would I
Offer devoutly: and, by tokens sure,
I know it faithful, fearless, constant, pure,
In its conceptions graceful, good, and high.
When the world roars, and flames the startled sky,
In its own adamant it rests secure,
As free from chance and malice ever found,
And fears and hopes that vulgar minds confuse,
As it is loyal to each manly thing
And to the sounding lyre and to the Muse.
Only in that part is it not so sound
Where Love hath set in it his cureless sting."

When he wrote thus, to what did he look forward, and to what might others have looked forward for him? A career, it was probable, of

speculative dissent from his contemporaries in many things, and of undaunted courage in the vindication of such dissent, but hardly of dissent from the established moralities of the marriage-institution. Had he been happily married, had he found himself united at last to one such as his dreams had figured, who so likely to have persevered fondly in the traditional doctrine of marriage, to have maintained the mystic sanctity and the necessary permanence of the marriage-bond, and to have launched denunciations against all who dared to tamper with this article of the established ethics? But, as it had chanced otherwise, it was not the less characteristic that he himself had been the audacious questioner, the champion of a heresy. Driven by his own experience to investigate, his speculative boldness had brought him at once to a conclusion the novelty of which would have made others hesitate, but had no terrors for him. For (and here was his difference from most men, here was what may be called a Miltonic peculiarity) he would take no benefit from such private dispensation as a man might pass for his own relief in such a case, his neighbours winking at it so long as he did not disturb the forum. He *would* disturb the forum! What "Milton" did should be done openly, should be avowed, should be lawful! Others, circumstanced as he now was, might, if they liked—and there were examples all round, and especially in that Bohemian world of wits and men of letters with which he might be classed, though he abjured the brotherhood—others might, if they liked, adopt a policy of silence and acquiescence, hypocritically bowing to their fate, but taking out their protest in secret consolations! No such policy for him! The word "illicit" and his name should never be brought into conjunction! Whatever *he* did should be according to a rule of right, clear to his own conscience, and held aloft in his hand under the whole roof of Heaven! And, if such a rule, ratified between himself and Heaven, should chance to conflict with one of the moralities of the existing code of men, there was but one course for him. He would assail the so-called "morality"; he would

blast it out of the beliefs of men; he would perform for his fellows the service of their liberation, along with himself, from a useless and irrational thralldom! Or, if that work should prove too hard and toilsome, at least he should have published his own rule in opposition to the general superstition, and should walk on, as he had resolved always to walk, unabashed in the daylight.

It was in August 1643, as we have seen, that Milton put forth anonymously his *Doctrine and Discipline of Divorce*. From that time, on through the rest of the autumn of 1643 and the winter of 1643-4, we are to fancy him in his house in Aldersgate Street, with his father and his pupils for his companions, and his thoughts much occupied, like those of other Englishmen, with the course of public events. On the whole, the Parliament had no greater admirer than Milton; and there were particular men in the Parliament that were after his own heart. From the Westminster Assembly, too, he seems to have expected good. So far as he had formed views as to the desirable form of Church-government for England, these views, as we have seen (Vol. II. pp. 376-382), might be described as an expectant Presbyterianism, not positively fixed and determined at all points, but kept conveniently fluid. Accordingly, his sympathies, at first, may well have been with the Presbyterians of the Assembly; among whom he could reckon, at any rate, his old tutor Young, and his other friends and fellow-labourers in the Smectymnuan controversy. Or, if some things among the tenets of the small Independent minority had begun to gain upon him, he seems still, through the winter of 1643-4, to have looked forward to some compromise that should be acceptable to England and yet tend to that conformity between the two kingdoms which the Scots desired, and to the furtherance of which they had pledged England by Henderson's international League and Covenant. At all events, Milton did, some time after September 1643, subscribe to this League and Covenant with the rest of his Parliamentary countrymen. There are words of his own which

vouch the fact. [Footnote: In the dedication to Parliament of his *Tetrachordon*, published March 1644-5, he uses these words, "That which I saw and was partaker of, your vows and solemn covenants."]

A moody time though the autumn of 1643 and the winter of 1643-4 must have been for Milton, there was some relaxation for him in society more general than that of his wife-deserted household. "Our author," says Phillips, "now as it were a single man again, made it his chief diversion now and then in an evening to visit the Lady Margaret Ley, daughter to the —Ley, Earl of Marlborough, Lord High Treasurer of England, and President of the Privy Council to King James the First. This lady, being a woman of great wit and ingenuity, had a particular honour for him, and took much delight in his company; as likewise her husband, Captain Hobson, a very accomplished gentleman." Phillips seems to be sufficiently accurate in this account, but a few details may be added:—

A man still well-remembered in England, though he had been dead fifteen years, was James Ley, first Earl of Marlborough, he had attained to that dignity only in his old age, having advanced to it through a long previous career. Born about 1552, the younger son of a Wiltshire squire, he had passed from Oxford to the study of law at Lincoln's Inn, and had attained to high eminence in his profession before the death of Elizabeth. Emerging from her reign, aged about fifty, he had been appointed by James to an Irish Chief Judgeship (1604); then brought back to England, knighted (1609), baroneted (1620), and made Chief Justice of the Court of King's Bench (1621); and finally raised by the same King to the great office of Lord High Treasurer of England, and to a peerage with the title of Baron Ley of Ley in Devonshire (1624). In recognition of his long services, Charles, in the first year of his reign (Feb. 5, 1626-7), had created for him, when he was almost seventy-four years of age, the Earldom of Marlborough in his native Wiltshire. While thus promoting him, however, Charles

appears not to have found him a minister such as he and Buckingham wanted. He had accordingly removed him from the High Treasurership in 1628, on the ground of his old age, but in reality to make way for the more compliant Lord Weston, and had shelved him into the less important office of Lord President of the Council. He had died at Lincoln's Inn, March 14, 1628-9, exactly four days after that ominous dissolution of Charles's third Parliament which announced his determination to have done with Parliaments and begin the reign of "Thorough." The death of the old peer at such a juncture had apparently the less been forgotten by reason of a tradition that the political anxieties of the juncture had had something to do with it. Now, at all events, in the days of the Long Parliament and the Civil War, there was still some respectful recollection of the old Earl of Marlborough as one of the best-liked ministers of James's reign and of the first years of Charles's. "He was a person of great gravity, ability, and integrity; and, as the Caspian Sea is observed neither to ebb nor flow, so his mind did not rise or fall, but continued the same constancy in all conditions." The words are Fuller's, and they probably express the character of the Earl that had come down among his countrymen. [Footnote: Dugdale's *Baronage* (1676), Vol. II. pp. 451, 452; Wood's *Athenæ*, II. 441, 443; *Clar. Hist.* (one vol. ed. 1843), p. 20; Fuller's *Worthies, Wiltshire* (ed. 1840), III. 328-9.]

The Earl had been three times married; but he had left a family only by his first wife—Mary, daughter of John Petty, of Stoke-Talmage, co. Oxon., Esq. Eleven children had been the issue of this marriage:—to wit (according to Dugdale), "three sons—*Henry, James, and William*; and eight daughters—*Elizabeth*, married to Morice Carant, of Looner, in com. Somers., Esq.; *Anne*, to Sir Walter Long, of Draycot-Cerne, in com. Wilts., Knight; *Mary*, to Richard Erisy, of Erisy, in com. Cornw., Esq.; *Dionysia*, to John Harington, of Kelneyton, in com. Somers., Esq.; *Margaret*, to ... Hobson, of ... in the Isle of Wight, Esq.; *Hesther*, to Arthur Fuller, of

Bradfield, in com. Hertf., Esq.; *Martha*, died unmarried; and *Phoebe*, to ... Biggs, of Hurst, in com. Berks., Esq." [Footnote: Dugdale, *vt. supra.*] All these children, it would appear, had been born, and most of them married and settled in life, before their father's promotion to the peerage, and while he was yet only James Ley, or Sir James Ley, the eminent lawyer. Indeed, his promotion to the Earldom in his old age had been, in part, a compliment to his third wife—Jane, daughter of Lord Butler of Bramfield, whose mother was a sister of the Duke of Buckingham; and it had been specially provided, in the patent of the Earldom, that it should descend, by preference, to his heirs by that lady. That lady having failed, however, to produce heirs, the benefits of the Earldom had reverted to the Earl's family by his first wife, Mary Petty. His eldest son by that wife, Henry Ley, had, accordingly, succeeded him in the title. But this Henry, second Earl of Marlborough, had died in 1638; and the actual Earl at the time with which we are now concerned (1643) was *his* son, James, a youth of only some three-and-twenty years, but already serving as a general officer of artillery in the army of the King. He seems, indeed, to have been one of the finest young fellows on that side; and he had a career before him which was to entitle him, at his death in 1665, to this notice in a summary of his character by Clarendon: "He was a man of wonderful parts in all kinds of learning, which he took more delight in than his title." [Footnote: *Clar. Life*, ed. 184 p. 1141.] For the present, however, it is with the good ladies his aunts, the surviving daughters of the first Earl, that we have to do; or rather only with the fifth of them—the Lady Margaret Ley, the friend of Milton. The husbands of at least two of her sisters (Long of Wilts., and Erisy of Cornwall) being among the Parliamentarians of the Long Parliament, it can hardly be doubted that this lady's husband—Dugdale's "... Hobson of ... in the Isle of Wight, Esq.," and Phillips's "Captain Hobson, a very accomplished gentleman"—was also a Parliamentarian, though of less wealth and note, and not in Parliament. Otherwise, Lady Margaret's house

in London could hardly have been one of Milton's evening resorts. What kind of "Captaincy" her husband held, compatible with his being domiciled in London in 1643-4, it might be difficult now to ascertain. Suffice it that he *was* so domiciled, and that his wife could receive guests not merely as Mrs. Hobson, "a woman of great wit and ingenuity," but as Lady Margaret Ley, the daughter of a well-remembered Earl.

It is not from Phillips alone that we hear of Milton's friendship with the Lady Margaret. Milton has himself commemorated it in one of his Sonnets:

—

"TO THE LADY MARGARET LEY.

Daughter to that good Earl, once President
Of England's Council and her Treasury,
Who lived in both unstained by gold or fee,
And left them both, more in himself content,
Till the sad breaking of that Parliament
Broke him, as that dishonest victory
At Chæroneia, fatal to liberty,
Killed with report that old man eloquent:
Though later born than to have known the days
Wherein your father flourished, yet by you,
Madam, methinks I see him living yet;
So well your words his noble virtues praise
That all both judge you to relate them true
And to possess them, honoured Margaret."

The "old man eloquent" is Isocrates, the Athenian orator, whose patriotism made him refuse to survive the defeat of the Athenians and Thebans by Philip of Macedon at Chæronia. This comparison of the lady's father to the famous Greek is perhaps the most poetical turn in the Sonnet.

For the rest, it tells us something about the lady herself. She must have been somewhat, if not considerably, older than Milton; for, though Milton had been twenty years old at the time of the good Earl's death, and might therefore well remember his Treasurership and Presidency of the Council, he speaks of knowing the days wherein the old peer had flourished chiefly through the Lady Margaret's talk about him and them. Her conversation, it would therefore seem, ran much upon her father and his private and political virtues; and Milton listened respectfully, seeing much in the lady herself of what she praised in her sire. Perhaps Milton would talk to her freely in return of his own concerns. The Lady Margaret Ley, and her husband, Captain Hobson, were probably in his confidence on the subject of his marriage misfortune. The Sonnet was unquestionably written in 1643 or 1644. [Footnote: It was printed in the first or 1645 edition of Milton's Poems, and it is placed last in the series of Sonnets there contained. The draft of it in the Cambridge Book of Milton's MSS. is in Milton's own hand—the title "To the Lady Margaret Ley" being likewise his hand.]

A younger and unmarried lady must then also have been among Milton's acquaintances. How else can we account for this other Sonnet?

"Lady, that in the prime of earliest youth
Wisely hast shunned the broad way and the green,
And with those few art eminently seen
That labour up the hill of heavenly truth,
The better part, with Mary and with Ruth,
Chosen thou hast; and they that overween,
And at thy glowing virtues fret their spleen,
No anger find in thee, but pity and ruth.
Thy care is fixed, and zealously attends
To fill thy odorous lamp with deeds of light,
And hope that reaps not shame. Therefore be sure

Thou, when the Bridegroom with his feastful friends
Passes to bliss at the mid hour of night,
Hast gained thy entrance, Virgin wise and pure."

This Sonnet, to which the heading "*To a Virtuous Young Lady*" is now prefixed in the editions of Milton, had no such heading prefixed in his own copy. [Footnote: In the Cambridge MSS. there is a draft in Milton's own hand immediately before the draft of the Sonnet to Lady Margaret Ley. In the edition of 1645 the Sonnet was printed in the same order and without a heading. In the MS. draft there are several erasures and corrections. Thus Milton had originally written "*blooming virtue*" in as if with reference to the personal appearance of the young lady; but in the margin he substitutes the present reading, "*growing virtues*."] Who the young lady was that so won upon Milton at this critical time, and seemed to him so superior to the more commonplace of her sex, we are left uninformed. There is a conjecture on the subject, which may afterwards appear. It is clear, meanwhile, that the poor absent Mary Powell may have suffered not only from her own defects, but also from the opportunity of some such contrast.

The Divorce subject continued to occupy Milton. His tract had been rapidly bought, and had caused a sensation. Through the cold winter of 1643-4, while the Parliament and the Assembly were busy, and the auxiliary Scottish army was expected, a good many people had leisure to read the strange production, or at least to look into it, and be properly shocked. It seems to have been about this time, for example, that James Howell, the letter-writer, came, upon a copy. Or rather the copy must have come upon him; for the poor man, now past fifty years of age, and ousted from his clerkship to the Privy Council, was in the Fleet Prison for debt, and dependent for his subsistence there on translations, dedications and poems to friends, and all sorts of literary odds and ends. [Footnote: Wood's Ath. III. 745, and Cunningham's London Article *Fleet Prison*.] In one of his

rambling pieces, afterwards published in the form of Letters, mostly without dates, and addressed to friends from feigned places, he thus gives what I take to be his impression of Milton's tract when it first reached him in the Fleet: "But that opinion of a poor shallow-brained puppy, who, upon any cause of dissatisfaction, would have men to have a privilege to change their wives, or to repudiate them, deserves to be hissed at rather than confuted; for nothing can tend more to usher in all confusion and beggary throughout the world: therefore that wiseacre deserves," &c. [Footnote: Howell's Familiar Letters Book IV, Letter 7, addressed "To Sir Edward Spencer, knight," (pp 453-457 of edit. 1754.) The letter is dated "Lond. 24 Jan.," no year given; but the dates are worthless, being afterthoughts, when the Letters were published in successive batches.] As Mr. Howell's own notions about marriage and its moralities were of the lightest and easiest, his severe virtuousness here is peculiarly representative. More interesting on its own account is the opinion of another contemporary—no other than Milton's late antagonist Bishop Hall. In Hall's *Cases of Conscience* (not published till 1649) he thus describes the impression which Milton's Divorce pamphlet had made upon him when he first read it in its anonymous form: "I have heard too much of, and once saw, a licentious pamphlet, thrown abroad in these lawless times in the defence and encouragement of Divorces (not to be sued out; that solemnity needed not; but) to be arbitrarily given by the disliking husband to the displeasing and unquiet wife, upon this ground principally, That marriage was instituted for the help and comfort of man: where, therefore, the match proves such as that the wife doth but pull down aside, and, by her innate peevishness and either sullen or pettish and froward disposition, bring rather discontent to her husband, the end of marriage being hereby frustrate, why should it not, saith he, be in the husband's power, after some unprevailing means of reclamation attempted, to procure his own peace by casting off this clog, and to provide for his own peace and contentment in a fitter match? Woe is

me! to what a pass is the world come that a Christian, pretending to Information, should dare to tender so loose a project to the public! I must seriously profess that, when I first did cast my eyes upon the front of the book, I supposed some great wit meant to try his skill in the maintenance of this so wild and improbable a paradox; but, ere I could run over some of those too well-penned pages, I found the author was in earnest, and meant seriously to contribute this piece of good counsel, in way of reformation, to the wise and seasonable care of superiors. I cannot but blush for our age wherein so bold a motion hath been, amongst others, admitted to the light. What will all the Christian Churches through the world, to whose notice these lines shall come, think of our woeful degeneration, &c."? [Footnote: Hall's Works (edit. 1837), VII. 467.] Hall, it will be seen, had noted the literary ability of the pamphlet, while amazed by its doctrine.

Neither Howell's nor Bishop Hall's opinion can have reached the author of the pamphlet till long after the date now in view. But other opinions to the same effect had been reaching him. Especially, it seems, the pamphlet had caused a fluttering among the London clergy. The consequence had best be told by himself. "God, it seems, intended to prove me, whether I durst alone take up a rightful cause against a world of disesteem, and found I durst. My name I did not publish, as not willing it should sway the reader either for me or against me. But, when I was told that the style (which what it ails to be so soon distinguishable I cannot tell) was known by most men, and that some of the clergy began to inveigh and exclaim on what I was credibly informed they had not read, I look it then for my proper season both to show a name that could easily condemn such an indiscreet kind of censure, and to reinforce the question with a more accurate diligence, that, if any of them would be so good as to leave railing, and to let us hear so much of his learning and Christian wisdom as will be strictly demanded of him in his answering to this problem, care was had he should not spend his preparations against a nameless pamphlet." [Footnote: This passage, fitting

in here with chronological exactness, occurs in Milton's *Judgment of Martin Bucer concerning Divorce*, published in July 1644.] In other words, he resolved to abandon the anonymous. His pamphlet, easily traced to him from the first by its Miltonic style, had been sold out, or nearly so; people generally, but clergymen especially, were saying harsh things about it, and about him as its author; but some of these critics, he authentically knew, had never read the pamphlet, and others were making a point of the fact that it had appeared without its author's name. Well, there should be an end of that! He would put forth a second edition of the pamphlet, and avow the authorship! And this he would do rather because, since the publication of the first edition, he had been looking farther into the literature of the question, and could now fortify his own reasoned opinion with authorities he had been but dimly aware of, or had altogether overlooked.

Accordingly, on the 2nd of February, 1643-4, there did come forth a second edition of Milton's first Divorce Tract, with this new title: "*The Doctrine and Discipline of Divorce. Restor'd to the good of both Sexes, from the bondage of Canon Law, and other mistakes, to the true meaning of Scripture in the Law and Gospel compar'd. Wherein are set down the bad consequences of abolishing or condemning of Sin, that which the Law of God allowes, and Christ abolisht not. Now the second time revis'd and much augmented. In Two Books: to the Parliament of England with the Assembly. The Author J.M.*" Underneath this title, the text Matth xiii. 52 is repeated from the title-page of the first edition; with this new text added, Prov. xviii. 13: "He that answereth a matter before he heareth it, it is folly and shame unto him." Then follows the imprint, "*London, Imprinted in the yeare 1644.*" In the copy in the British Museum which is my authority, the collector Thomason has put his pen through the final figure 4, and has annexed, in ink, the date "Feb. 2, 1643." [Footnote: Brit, Mus. Press-mark, 12. E.e. 5/141.] This fixes the exact date of publication as above, Feb. 2, 1643-4.

This second edition is a great enlargement and improvement of the first. The 48 small quarto pages of the first swell into 88 pages; the text is divided into Two Books, each of which is subdivided into Chapters, with carefully-worded headings; and, on the whole, the treatise is made more inviting in appearance. The bold Introductory Letter, addressed "*To the Parliament of England, with the Assembly,*" consists of six pages, and is signed not with the mere initials "J.M." which appear on the title-page, but fully "John Milton." The additions in the text consist sometimes of a few words inserted, sometimes of expansions of mere passages of the first edition into two or three pages: in the Second Book they attain to still larger dimensions, so that much of that Book is totally new matter. Thus Chapters I., II., and III., of this Book, forming ten pages, come in lieu of a single paragraph of two pages in the first edition; Chapters IV., V., VI., and VII., forming together six pages, are substituted for about a single page of the first edition; and Chapter XXI., consisting of nearly five pages, is an expansion of about a page and a half in the first edition. The additions and expansions appear to have been made on various principles. Sometimes one can see that a passage has been added for the mere poetic enrichment of the text, and to prove that the hand that was writing was not that of a musty polemic, but of an artist, at home in splendours. There is a striking instance in point in Chap. VI. of Book I., where there is interpolated a gratuitously gorgeous myth or fable, which may be entitled *Eros and Anteros*, or *Love and Its Reciprocation*. The passage is characteristic and may be quoted:—

Marriage is a covenant the very being whereof consists, not in a forced cohabitation, and counterfeit performance of duties, but in unfeigned love and peace. And of matrimonial love no doubt but that was chiefly meant which by the ancient sages was thus parabled: That Love, if he be not twin-born, yet hath a brother wondrous like him, called Anteros; whom while he seeks all about, his chance is to meet with many false and feigning desires that wander singly up and down in his likeness. By them in their borrowed

garb Love, though not wholly blind as poets wrong him, yet having but one eye, as being born an archer aiming, and that eye not the quickest in this dark region here below, which is not Love's proper sphere, partly out of the simplicity and credulity which is native to him, often deceived, embraces and consorts him with these obvious and suborned striplings, as if they were his Mother's own sons, for so he thinks them while they subtly keep themselves most on his blind side. But, after a while, as his manner is, when, soaring up into the high tower of his Apogæum, above the shadows of the Earth, he darts out the direct rays of his then most piercing eyesight upon the impostures and trim disguises that were used with him, and discerns that this is not his genuine brother, as he imagined, he has no longer the power to hold fellowship with such a personated mate. For straight his arrows loose their golden heads and shed their purple feathers; his silken braids untwine and slip their knots; and that original and fiery virtue given him by Fate all on a sudden goes out and leaves him undeified and despoiled of all his force; till, finding Anteros at last, he kindles and repairs the almost faded ammunition of his Deity by the reflection of a coequal and homogeneal fire. Thus mine author sung it to me; and, by the leave of those who would be counted the only grave ones, this is no mere amatorious novel (though to be wise and skilful in these matters men heretofore of greatest name in virtue have esteemed it one of the highest arcs that human contemplation circling upwards can make from the glassy sea whereon she stands); but this is a serious and deep verity, showing us that Love in Marriage cannot live nor subsist unless it be mutual.

Unless more is meant than meets the eye by *Anteros* here in Milton's own case, this interpolation [Footnote: The manner of the interpolation is so curious that it deserves a note. Milton, perceiving that such a poetic Fable might be objected to as fitter for a "mere amatorious novel" than for a controversial treatise, insinuates an apology for its introduction. The apology is that some of the wisest and greatest men had allowed the use on

occasion of those "highest arcs that human contemplation, circling upwards, can make from the glassy sea whereon she stands." In this phrase Milton furnished his critics with a weapon which they might have used against himself. Even now the most general objection to his prose writings would be that they contain too many of those gratuitous grandeurs, those upward arcs and circlings from the glassy sea. But, in fact, he had his own theory of prose-writing as of other things, and it was not Addison's, nor any other that has been common since.] was for literary effect only. Very frequently, however, the additions are of new reasonings, or farther interpretations of Scripture. Above all, we have in the second edition the results of Milton's ranging in the literature of the question since he had published the first. In that first edition he had been able to make some reference to Hugo Grotius, having fortunately at the last moment come upon some notes of Grotius on Matth. v. which he thought reasonable. But since then he had lighted on a more thorough-going authority on his side in one of the German theologians of the Reformation period—Paul Fagius (1504- 1550). "I had learnt," he says, "that Paulus Fagius, one of the chief divines in Germany, sent for by Frederic the Palatine to reform his dominion, and after that invited hither in King Edward's days to be Professor of Divinity in Cambridge, was of the same opinion touching Divorce which these men so lavishly traduced in me. What I found I inserted where fittest place was, thinking sure they would respect so grave an author, at least to the moderating of their odious inferences." [Footnote: This explanation, referring to the second edition of the *Doctrine and Discipline of Divorce*, does not occur in that treatise itself, but in the *Judgment of Martin Bucer*, published some months afterwards.] Accordingly, in the second edition, considerable use is made of Fagius, as well as of Grotius, while, as before, other theologians of historical note—Calvin, Beza, Pareus (1548- 1622), Perkins (1558-1602), Rivetus (1572-1651)—are respectfully cited, sometimes as furnishing a favourable hint, but sometimes as requiring reply and correction. Not the least interesting

perhaps of the added passages is this in the last chapter: "That all this is true [*i.e.* that Divorce is not to be restricted by Law] whoso desires to know at large with least pains, and expects not here overlong rehearsals of that which is by others already judiciously gathered, let him hasten to be acquainted with that noble volume written by our learned Selden, '*Of the Law of Nature and of Nations*;' a work more useful and more worthy to be perused, whosoever studies to be a great man in wisdom, equity and justice, than all those Decretals and sumless Sums which the Pontifical clerks have doted on." The particular work of Selden's here referred to is his folio, *De Jure Naturali et Gentium juxta Disciplinam Hebræorum*, published in 1640. His work more expressly on Divorce, entitled *Uxor Hebraica, sive De Nuptiis ac Divortiis*, did not appear till 1646—*i.e.* it followed Milton's publications on the subject, and in the main backed the opinion they had propounded. It seems to me not improbable that in 1643-4, when Milton paid Selden the compliment we have quoted, he had just made Selden's personal acquaintance. Selden was then in his sixtieth year; Milton in his thirty- sixth.

After the description given of the second edition of the *Doctrine and Discipline of Divorce* and its differences from the first, it seems necessary to quote only some passages from Milton's opening address in it to the Parliament and the Westminster Assembly:—

... Error supports Custom, Custom countenances Error; and these two between them would persecute and chase away all truth and solid wisdom out of human life, were it not that God, rather than man, once in many ages, calls together the prudent and religious counsels of men deputed to repress the encroachments, and to work off the inveterate blots and obscurities wrought upon our minds by the subtle insinuating of Error and Custom: who, with the numerous and vulgar train of their followers, make it their chief design to envy and cry down the industry of free reasoning, under the

terms of "humour" and "innovation"; as if the womb of teeming Truth were to be closed up if she presume to bring forth aught that sorts not with their unchewed notions and suppositions. Against which notorious injury and abuse of man's free soul to testify, and oppose the utmost that study and true labour can attain, heretofore the incitement of men reputed grave hath led me among others; and now the duty and the right of an instructed Christian calls me through the chance of good or evil report to be the sole advocate of a discountenanced truth: a high enterprise, Lords and Commons, a high enterprise and a hard, and such as every seventh son of a seventh son does not venture on.... You it concerns chiefly, worthies in Parliament, on whom, as on our deliverers, all our grievances and cares, by the merit of your eminence and fortitude, are devolved: me it concerns next, having with much labour and diligence first found out, or at least with a fearless and communicative candour first published to the manifest good of Christendom, that which, calling to witness everything mortal and immortal, I believe unfeignedly to be true.... Mark then, Judges and Lawgivers, and ye whose office it is to be our teachers, for I will now utter a doctrine, if ever any other, though neglected or not understood, yet of great and powerful importance to the governing of mankind. He who wisely would restrain the reasonable soul of man within due bounds must first himself know perfectly how far the territory and dominion extends of just and honest liberty. As little must he offer to bind that which God hath loosened as to loosen that which He hath bound. The ignorance and mistake of this high point hath heaped up one huge heap of all the misery that hath been since Adam. In the Gospel we shall read a supercilious crew of Masters, whose holiness, or rather whose evil eye, grieving that God should be so facile to man, was to set straiter limits to obedience than God had set, to enslave the dignity of Man, to put a garrison upon his neck of empty and over-dignified precepts: and we shall read our Saviour never more grieved and troubled than to meet with such a peevish madness among men against

their own freedom. How can we expect him to be less offended with us, when much of the same folly shall be found yet remaining where it least ought, to the perishing of thousands? The greatest burden in the world is Superstition, not only of ceremonies in the Church, but of imaginary and scarecrow sins at home. What greater weakening, what more subtle stratagem against our Christian warfare, when, besides the gross body of real transgressions to encounter, we shall be terrified by a vain and shadowy menacing of faults that are not! When things indifferent shall be set to overfront us, under the banners of Sin, what wonder if we be routed, and, by this art of our Adversary, fall into the subjection of worst and deadliest offences! The superstition of the Papist is "Touch not, taste not!" when God bids both; and ours is "Part not, separate not!" when God and Charity both permits and commands. "Let all your things be done with charity," saith St. Paul; and his Master saith "She is the fulfilling of the Law." Yet now a civil, an indifferent, a sometime dissuaded Law of Marriage must be forced upon us to fulfil, not only without Charity, but against her. No place in Heaven or Earth, except Hell, where Charity may not enter; yet Marriage, the ordinance of our solace and contentment, the remedy of our loneliness, will not admit now either of Charity or Mercy to come in and mediate or pacify the fierceness of this gentle ordinance, the unremedied loneliness of this remedy. Advise ye well, Supreme Senate, if charity be thus excluded and expelled, how ye will defend the untainted honour of your own actions and proceedings. He who marries intends as little to conspire his own ruin as he that swears allegiance; and, as a whole people is in proportion to an ill Government, so is one man to an ill marriage.... Whatever else ye can enact will scarce concern a third part of the British name; but the benefit and good of this your magnanimous example [should they restore liberty of Divorce] will easily spread far beyond the banks of Tweed and the Norman Isles. It would not be the first nor the second time, since our ancient Druids, by whom this Island as the cathedral of philosophy to France, left off their

Pagan rites, that England hath had this honour vouchsafed from Heaven—to give out reformation to the world. Who was it but our English Constantine that baptized the Roman Empire? Who but the Northumbrian Willibrod and Winifrid of Devon, with their followers, were the first Apostles of Germany? Who but Alcuin and Wicklif, our countrymen, opened the eyes of Europe, the one in Arts, the other in Religion? Let not England forget her precedence of teaching nations how to live....

Milton's idea of the greatness of his enterprise, it will be seen from these passages, had grown and grown the more he had brooded on it. What if in this Doctrine of Divorce he were to be the discoverer or restorer of a new liberty, not for England alone, but actually for all Christendom? Meanwhile what opposition he would have to face, what storms of scurrilous jest and severer calumny! Might it not have been better to have written his treatise in Latin? This thought had occurred to him. "It might perhaps more fitly have been written in another tongue; and I had done so, but that the esteem I have for my country's judgment, and the love I bear to my native language, to seive it first with what I endeavour, made me speak it thus ere I assay the verdict of outlandish readers." Yet there might have been a propriety, he feels, in addressing such an argument in the first place only to the learned.

And what, after all, and in precise practical form, *was* this tremendous proposition of Milton respecting Divorce? Reduced out of large and cloudy terms, it was simply this,—that marriage, as it respected the continued union of the two married persons, was a thing with which Law had nothing whatever to do; that the two persons who had contracted a marriage were the sole judges of its convenience, and, if they did not suit each other, might part by their own act, and be free again; at all events, that for husbands the Mosaic Law on the subject was still in force: viz. (Deut. xxiv. 1) "When a man hath taken a wife and married her, and it come to pass that she find no

favour in his eyes, because he hath found some uncleanness in her [interpreted as including any moral or intellectual incompatibility, any unfitness whatever], then let him write her a bill of divorcement, and give it in her hand, and send her out of his house." Milton avoids as much as possible such reductions of his proposition to harsh practical form, and would have disowned such brief popular summaries of his doctrine as *Divorce at pleasure*, or *Divorce at the Husband's pleasure*; but, in reality, it came to this. The husband, in modern times, had still, he maintained, the old Mosaic right of giving his wife a "bill of divorcement," if she did not satisfy him, and sending her back to her father's house. The right was a purely personal one. Friends, indeed, might interfere with their good offices; nay it would be fitting, and perhaps necessary, that there should be a solemn formality "in presence of the minister and other grave selected elders," who should admonish the man of the seriousness of the step he was about to take. But, if he persisted in taking it—if "he shall have protested, on the faith of the eternal Gospel and the hope he has of a happy resurrection, that otherwise than thus he cannot do, and thinks himself and this his case not contained in that prohibition of divorce which Christ pronounced (Matth. v. 31-32), the matter not being of malice, but of nature, and so not capable of reconciling"—then the Church had done her part to the full, and the man was to be left to his own liberty. This passage, proposing a kind of public oath on the man's part, as a formality to be required in every case of dissolution of marriage, occurs near the end of the treatise in both editions; and it indicates, I think, Milton's recoil from any rough or free and easy version of his doctrine, and his desire to temper it as much as he could. Essentially, however, the proposal mattered little. The husband was still left sole judge of his wife's fitness or unfitness for him, and whether he should exercise his right of putting her away was a matter finally for his private conscience.

With reference to Milton's own case, it is worth observing that the causes of divorce on which he still rings the changes throughout the second edition of his treatise, as throughout the first, are the unmatchableness of dispositions, the unfitness of the wife for rational conversation, her intellectual and moral insufficiency or perverseness. There is no word of *desertion*. I cannot but think that this confirms the view that it was not the absence of Milton's wife that caused his dissatisfaction with his marriage, but that the dissatisfaction preceded the absence and had helped to occasion it.

Narration, rather than criticism, is my business in this work; and we have not yet done with Milton's Divorce speculation. At this point, however, I may venture on three remarks:—

(1.) What is most noticeable in Milton, underneath his whole conduct here, as in so many other matters, is his intellectual courage. Among men of thought there are, I should say, two grades of honesty. There is passive honesty, or the honesty of never saying, or appearing to say, what one does *not* think; and it is a rare and high merit to have attained to this. But there is the greater honesty of always saying, or indeed asserting and proclaiming, whatever one *does* think. The proportion of those who have disciplined themselves to this positive or aggressive honesty, and are at the same time socially sufferable by reason of the importance of what they have to say, has always been wonderfully small in the world. Now, Milton was one of this band of intellectual Ironsides. Even within the band itself he belonged to the extremest section. For he dared to question not only the speculative dogmas and political traditions of his time, which others round him were questioning, but even some of the established "moralities," which few of them were questioning. It is not at all uncommon for men the most free-thinking in matters of religious belief to be immoveably and even fanatically orthodox in their allegiance to all customary moralities. They

abide by tradition, and think with the multitude, in ethical questions, if in nothing, else. But on Milton, it appears from his Address to the Parliament and the Assembly, there had dawned the idea that, as there had come down in the bosom of society misbeliefs in science, imperfect views of theology, and conventions of political tyranny, so there had come down things even worse, in the form of cobwebbed sacramentalisms and sanctities for private life, factitious restrictions of individual liberty pretending themselves to be Christian rules of holiness. Among the greatest burdens and impediments in man's life, he says, were such pseudo-moralities, such "imaginary and scarecrow sins," vaunting themselves as suckers and corollaries from the Ten Commandments. This was a daring track to be upon, but Milton was upon it. He did not believe that the world had arrived at a final and perfect system of morals, any more than at a perfect system of science. He believed the established ethical customs of men to be subject to revision by enlarged and progressive reason, and modifiable from age to age, equally with their theories of cosmology, their philosophical creeds, or anything else. There was no terror for him in that old and ever-repeated outcry about "sapping the foundations of society." He believed that the foundations of society had taken, and would still take, a great deal of "sapping," without detriment to the superstructure. He believed that, as we may read in Herodotus of ancient communities established on all sorts of principles, or even whim-principles, and yet managing to get on, and as these crude polities had been succeeded by other and better ones, to the latest known in the world, so these last need not look to be permanent. Of a tendency to this state of feeling Milton had given evidences from early youth; but I do not think I am wrong in fixing on the year 1643 as the time when it became chronic, nor in tracing the sudden enlargement of it then beyond its former bounds to the wrench in his life caused by his unhappy marriage. At all events, henceforward throughout his career we shall see the continuous action of this now avowed Miltonism among others. We shall see him henceforward

continually acting on the principle that, in addition to the real sins forbidden to man by an eternal law of right and wrong, revealed in his own conscience and authenticated by the Bible (for Milton did believe in such an eternal law, and, however it is to be reconciled with what we have just been saying, was a transcendental or *a priori* moralist at his heart's core), the field of human endeavour was overstrewn by a multiplicity of mere "scarecrow sins," one's duty in respect of which was simply to march up to them, one after another, and pluck them up, every stick of them individually, with its stuck-on old hat and all its waving tatters.

(2.) One notes in Milton's first Divorce Tract, as in much else of his controversial writing, a preference for the theoretical over what may be called the practical style of argument. The neglect of practical details in his reasoning throughout this particular Tract amounts to what might be called greenness or innocence. What are the questions with which an opponent of the "practical" type would have immediately tried to pose Milton, or which such an one would now object to his doctrine? No one can miss them. In a case where divorce is desired by the man only, what is to become of the divorced wife? Is not the damage of her prospects by the fact that she has once been married, if but for a month, something to be taken into account? It is not in marriage as it may be in other partnerships. The poor girl that has been once married returns to her father or her friends an article of suddenly diminished value in the general estimation. What provision is to be made for this? Then, should there be children, what are to be the arrangements? Or again, suppose the case, under the new Divorce Law, of a man who has a weakness for a succession of wives—a private Henry the Eighth. He marries No. 1, and, after a while, on the plea that he does not find that she suits him, he gives her a bill of divorcement; No. 2 comes and is treated in like manner; and so on, till the brutal rascal, undeniably free from all legal censure, may be living in the centre of a perfect solar system of his discarded wives, moving in nearer or farther orbits round him, according to

the times when they were thrown off, and each with her one or two satellites of little darlings! To be sure, there is the public oath which, it is supposed, might have to be taken in every case of divorce; but what would such a blackguard care for any number of such oaths? Besides, you put it to him by his oath to declare that in his conscience he believes the incompatibility between himself and his wife to be radical and irremediable, and that he does not find that he comes within Christ's meaning in that famous passage of the Sermon on the Mount in which he Christianized the Mosaic Law of Divorce. What does such a fellow know of Christ's meaning? He will swear, and according to your new Law he need only swear, according to his own standard of fitness; which may be that variety is a *sine quâ non* for him, or that No. 2 is intolerable when No. 3 is on the horizon. How, in the terms of the new Law, is such licence to sheer libertinism to be avoided? These and other such questions are suggested here not as necessarily fatal to Milton's doctrine: in fact, in certain countries, since Milton's time, the most thorough practical consideration of them has not impeded modifications of the Marriage Law in the direction heralded by Milton. They are suggested as indicating Milton's rapidity, his impatience, or, if we choose so to call it, his dauntless faith in ideas and first principles. It is remarkable how little, in his first Divorce Tract, he troubles himself with the anticipation of such-like objections of the practical kind. The reason may partly be that, in his own case, some of them, if not all, were irrelevant. There were no children in his case to complicate the affair; Mary Powell was probably as willing to part from him as he to part from Mary Powell; and, if she were to relapse into Mary Powell again and he to be free as before, the social expense of their two or three months' mismatch would hardly be appreciable! Doubtless, however, Milton foresaw many of the practical objections. He foresaw cases, that would be sure to arise under the new law, much more complicated than that of himself and Mary Powell. That he did not discuss such cases may have, therefore, been partly the

policy of a controversialist, resolved to establish his main principle in the first place, and leaving the details of practical adjustment for a future time or for other heads. On the whole, however, the inattention to those practical details which would have formed so much of the matter of most men's reasonings on the same subject was very characteristic.

(3.) My last remark is that Milton, in his tract, writes wholly from the man's point of view, and in the man's interest, with a strange oblivion of the woman's. The Tract is wholly a plea for the right of a man to give his wife a bill of divorcement and send her home to her father. There is no distinct word about any counterpart right for a woman who has married an unsuitable husband to give him a bill of divorcement and send him back to his mother. On the whole subject of the woman's interests in the affair Milton is suspiciously silent. There is, indeed, one passage, in Chap. XV. of the Tract, bearing on the question; and it is very curious. Beza and Paræus, it seems, had argued that the Mosaic right of divorcement given to the man had been intended rather as a merciful release for afflicted wives than as a privilege for the man himself. On this opinion Milton thinks it necessary to comment. He partly maintains that, if true, it would strengthen his argument for the restoration of the right of divorce to husbands; but partly he protests against its truth. "If divorce were granted," he says, "not for men, but to release afflicted wives, certainly it is not only a dispensation, but a most merciful law; and why it should not yet be in force, being wholly as needful, I know not what can be in cause but senseless cruelty. But yet to say divorce was granted for relief of wives, rather than for husbands, is but weakly conjectured, and is manifest the extreme shift of a huddled exposition ... Palpably uxorious! Who can be ignorant that woman was created for man, and not man for woman, and that a husband may be injured as insufferably in marriage as a wife. What an injury is it after wedlock not to be beloved, what to be slighted, what to be contended with in point of house-rule who shall be the head, not for any parity of wisdom

(for that were something reasonable), but out of a female pride! 'I suffer not,' saith Saint Paul, 'the woman to usurp authority over the man.' If the Apostle could not suffer it, into what mould is he mortified that can? Solomon saith that 'a bad wife is to her husband as rottenness to his bones, a continual dropping: better dwell in a corner of the house-top, or in the wilderness, than with such a one: whoso hideth her hideth the wind, and one of the four mischiefs that the earth cannot bear.' If the Spirit of God wrote such aggravations as these, and, as it may be guessed by these similitudes, counsels the man rather to divorce than to live with such a colleague, and yet, on the other side, expresses nothing of the wife's suffering with a bad husband, is it not most likely that God in his Law had more pity towards man thus wedlocked than towards the woman that was created for another?" [Footnote: This passage occurs in the second edition. There is but the germ of it in the first sentence, "If Divorce were granted ... senseless cruelty." The inference is that Milton, when he wrote the first edition, was rather pleased with the idea of Beza and Paræus that divorce had been given for the relief of the wife, and that his dissatisfaction with the idea, as promoting the woman too much at the man's expense, came afterwards.] Here was doctrine with a vengeance. Man being the superior being, and therefore with the greater capacity of being pained or injured, God had pitied him, if unhappily married, more than the woman similarly situated. For him, therefore, and not for the woman, there had been provided the right of divorce! This is not positively asserted, but it seems to be implied. The woman's relief, in the case of a marriage unhappy for her, consisted apparently, according to Milton, not in her power to cut the knot, but in the likelihood that her husband, finding the marriage unhappy also for him, would desire for his own sake to cut the knot, or might be driven by her management to that extremity. In short, we have here, as another consequence of Milton's unfortunate marriage, the beginning of that peculiarly stern form of the notion of woman's natural and essential

inferiority to man which ran with visible effects through his whole subsequent life. If not his ideal of woman, at least his estimate of what was to be expected from actual women, and what was on the average to be accorded to them, had been permanently lowered by a bad first experience.

All this while, what of the poor girl whose hard fate it was to occasion this experience in the life of a man too grandly and sternly her superior? One is bound to think also of her, and to remember, in so thinking, how young she was at the time when her offended husband first theorized his feeling of her defects, and published his theorizings, with her image and memory, though not with her name, involved in them, to the talkative world. She had not been seventeen years and a half old when she had married Milton; she was of exactly that age when she left him, and the first edition of his Divorce Treatise was ready; she was just eighteen when the second and fuller edition appeared. Surely, but for that fatal visit back to Forest Hill, contrived by her or her relatives, matters would have righted themselves. As it was, things could not be worse. Restored to her father's house at Forest Hill, amid her unmarried brothers and sisters, and all the familiar objects from which she had parted so recently on going to London, the young bride had, doubtless, *her* little pamphlets to publish in that narrow but sympathising circle. In particular, her grievances would be poured into the confiding ears of her mother. That lady, as we can see, at once takes the lead in the case. Never with her will shall her daughter go back to that dreadful man in Aldersgate Street! Mr. Powell acquiesces; brothers and sisters acquiesce; Oxford Royalism near at hand acquiesces, so far as it is consulted; the bride herself acquiesces, happy enough again in the routine of home, or perhaps beginning to join bashfully again in such gaieties of officers' balls, and the like, as the proximity of the King's quarters to Forest Hill made inevitable. And is not the King's cause on the whole prospering, and is not that in itself another reason for being at least in no hurry to make it up with Milton? What if it never be made up with him?

It is some time since his letters to Forest Hill by the carrier ceased entirely, and since the foot-messenger he sent down expressly all the way from London with his final letter was met at the gate by Mrs. Powell and told her mind in terms which were doubtless duly reported. And now, they hear, he is going about London as usual, and visiting at Lady Margaret Ley's, and giving his own version of his marriage story, and even printing Tracts in favour of Divorce! People generally, they say, are not agreeing with him on that subject; but there is at least one respectable English family that *is* tempted to agree with him and to wish him all success!

BOOK II.

MARCH 1644-MARCH 1645.

HISTORY:—THE YEAR OF MARSTON MOOR: CIVIL WAR, LONG PARLIAMENT, AND WESTMINSTER ASSEMBLY CONTINUED—STRUGGLE OF INDEPENDENCY WITH PRESBYTERIANISM: TOLERATION CONTROVERSY: ENGLISH SECTS AND SECTARIES— PRESBYTERIAN SETTLEMENT VOTED—NEW MODEL OF THE ARMY.

BIOGRAPHY:—MILTON AMONG THE SECTARIES: HIS SECOND DIVORCE PAMPHLET, TRACT ON EDUCATION, AREOPAGITICA TETRACHORDON, AND COLASTERION.

CHAPTER I.

INACTIVITY OF THE SCOTTISH AUXILIARIES—SPREAD OF INDEPENDENCY AND MULTIPLICATION OF SECTS—VISITATION OF THE UNIVERSITY OF CAMBRIDGE—BATTLE OF MARSTON MOOR—FORTNIGHT'S VACATION OF THE WESTMINSTER ASSEMBLY (JULY 23-AUGUST 7, 1644).—PRINCIPLE OF TOLERATION AND STATE OF THE TOLERATION CONTROVERSY: SYNOPSIS OF ENGLISH SECTS AND SECTARIES IN 1644.- RESUMPTION OF ASSEMBLY'S PROCEEDINGS: DENUNCIATION OF PICKED SECTARIES AND HERETICS—CROMWELL'S INTERFERENCE FOR INDEPENDENCY: ACCOMMODATION ORDER OF PARLIAMENT—PRESBYTERIAN SETTLEMENT VOTED—ESSEX BEATEN AND THE WAR FLAGGING: SELF-DENYING ORDINANCE AND NEW MODEL OF THE ARMY— PARLIAMENTARY VENGEANCES.

The English Parliamentarians hoped great things from the Scottish auxiliary army. The Royalists, on the other hand, were both angry and alarmed. In anticipation, indeed, of the coming-in of the Scots, the King had ventured on a very questionable step. He had summoned what may be called an ANTI-PARLIAMENT to meet him at Oxford on the 22nd of January 1643-4, to consist of all members who had been expelled from the two Houses in Westminster, and all that might be willing, in the new crisis, to withdraw from those rebellious Houses. On the appointed day, accordingly, there had rallied round the King at Oxford 49 Peers and 141 Commoners; which was not a bad show against the 22 Peers and 280 Commoners who met on the same day in the two Houses at Westminster. But little else resulted from the convocation of the ANTI-PARLIAMENT. In fact, many who had gone to it had done so with a view to negotiations for peace. Such negotiations were at least talked of. In addition to vehement denunciations of the doings of the Parliament, there were some abortive

attempts at friendly intercourse. All which having failed, the ANTI-PARLIAMENT was prorogued April 16, 1644, after having sat nearly three months. Parliaments, even when they were loyalist Parliaments, were not the agencies that Charles found pleasantest. He trusted rather to the arbitrament of the field.

INACTIVITY OF THE SCOTTISH AUXILIARY ARMY: SPREAD OF INDEPENDENCY IN ENGLAND: MULTIPLICATION OF SECTS.

No sudden blow was struck by the Scots. They had fastened themselves, in proper military fashion, on the north of England, and their presence there was useful; but that was all. It was a great disappointment to Baillie. He had expected that the appearance of his dear countrymen in England would put an end to the mere military "tig-tagging," as he had called it, of Essex and Waller, and quicken immediately the tramp of affairs. His belief all along had been that what was needed in England was an importation of Scottish impetuosity to animate the heavy English, and teach them the northern trick of carrying all things at the double with a hurrah and a yell. It was a sore affliction, therefore, to the good man that, from January 1643-4, on through February, March, April, May, and even June, the 21,000 Scots under Leslie should be in England, and yet be stirring so little. Instead of fighting their way southwards into the heart of the country, they were still squatting in the Northumbrian coal-region, and sticking there, not without some bad behaviour and disorder. Doubtless, it was all right in strategy, and Leslie knew what he was about; but oh, that it could have been otherwise! For of what use a great Scottish victory would have been at that time to the cause of Presbyterianism? Faster, more massively, more resistlessly than all the argumentations of Henderson, Gillespie, and Rutherford, aided by those of the Smectymnuans, with Vines, Palmer, Burges, and the rest of the English Presbyterians, such a victory would have crushed down the contentiousness of the Five Dissenting Brethren, and swept the propositions

of complete Scottish Presbytery through the Westminster Assembly. Parliament, receiving these propositions, would have passed them with alacrity; and what could the English nation have done but acquiesce? But, alas! as things were! The Five Dissenting Brethren and the other "thraward wits" in the Assembly could still persevere in their struggle with the Presbyterian majority, debating every proposition that implied a surrender of Congregationalism, and conscious that in so impeding a Presbyterian settlement they were pleasing a growing body of their fellow-countrymen. What, though London was staunchly and all but universally Presbyterian? Throughout the country, and, above all, in the Army, the case was different. The inactivity of the Scots was affording time for the spirit of Independency to spread, and was giving rise to awkward questions. It began actually to be said of the Westminster Assembly, that it "did cry down the truth with votes, and was an Anti- Christian meeting which would erect a Presbytery worse than Bishops." In the Army especially such Anti-Presbyterian sentiments, and questionings of the infallibility of the Scots, had become rife. "The Independents have so managed matters," writes Baillie, April 26, "that of the officers and sojers in Manchester's army, certainly also in the General's (Essex's), and, as I hear, in Waller's likewise, more than two parts are for them, and these of the far most resolute and confident men for the Parliament party." As regarded Essex's army and Waller's, Baillie afterwards found reason to think that this was a great exaggeration; but it appears to have been true enough respecting Manchester's. By that time there was no doubt either who was at the head of these Army Independents. It was Cromwell—now no longer mere "Colonel Cromwell," but "Lieutenant-general Cromwell," second in command in the Associated Counties under Manchester. As early as April 2 Baillie speaks of him as "the great Independent." With such a man to look up to, and with patrons also in the two Houses of Parliament, little wonder that the Independents in the Army began to feel themselves strong, and to regard the drift of the Westminster

Assembly and the Londoners towards an absolute Presbyterianism as a movement innocent enough while it consisted in talk only, but to be watched carefully and disowned in due time.

All might be retrieved, however! What hope there might yet be in a great Scottish success! With this idea Baillie still hugged himself. "We are exceeding sad and ashamed," he had written, April 19, "that our army, so much talked of, has done as yet nothing at all." But again, May 9, "We trust God will arise, and do something by our Scots army. We are afflicted that, after so long time, we have gotten no hit of our enemy; we hope God will put away that shame. Waller, Manchester, Fairfax, and all, gets victories; but Leslie, from whom all was expected, as yet has had his hands bound. God, we hope, will loose them, and send us matter of praise also." The victories of Waller, Manchester, and Fairfax, here referred to by Baillie, had been nothing very considerable—mere fights in their several districts, heard of at the time, but counting for little now in the history of the war; but they contrasted favourably with what could be told of the Scots. What was that? It was that they had summoned Newcastle to surrender, but had advanced beyond that town, leaving it untaken. When Baillie wrote the last-quoted passage, however, they were more hopefully astir. Fairfax, with his northern-English force, had joined them at Tadcaster in Yorkshire; the Earl of Manchester had been summoned northwards to add what strength he could bring from the Associated Counties; and the enterprise on which the three conjoined forces were to be engaged—the Scots, Fairfax's men, and Manchester's— was the siege of York. It was a great business on all grounds; and on this amongst others, that the Marquis of Newcastle was shut up in the city. Might not the Scots retrieve their character in this business? It was Baillie's fervent prayer. But a dreadful doubt had occurred to him. What if the Scots, mixed as they now were with the English Parliamentary soldiers before York, and in contact with the Independents among them under Manchester and Cromwell, should themselves catch the

prevailing distemper? Writing, May 19, to his friend Mr. Blair, a chaplain in the Scottish army, Baillie gives him a warning hint on the subject. "We hear," he says, "that their horse and yours are conjoined, and that occasions may fall out wherein more of them may join to you. We all conceive that our silly simple lads are in great danger of being infected by their company; and, if that pest enter in our army, we fear it may spread." [Footnote: Baillie, Vol. II. from p. 128 to p. 197.]

Here there must come in an explanation:—The Army-Independency which was alarming the Presbyterians, and of which they regarded Cromwell as the head, was a thing of much larger dimensions, and much more composite nature, than the mild Independency of Messrs. Goodwin, Burroughs, Nye, Simpson, and Bridge, within the Westminster Assembly. The Independency of these five Divines consisted simply in their courageous assertion of the Congregationalist principle of church-organization in the midst of the overwhelming Presbyterianism around them, and in their claim that, should their reasonings for Congregationalism prove in vain, and should the Presbyterian system be established in England, there should be at all events "an indulgence" under that system, for themselves and their adherents, "in some lesser differences." The "lesser differences" for which they thus prospectively craved an indulgence had not been specifically stated; but it is pretty clear that they were not, to any great extent, differences of theological belief, but were rather those differences which would arise from the conscientious perseverance of a minority in Congregationalist practices after a Presbyterian rule had been established nationally. "You know that we do not differ from you in theological doctrines" is what the Five Dissenting Brethren virtually said to the Presbyterians; "your teaching is our teaching, and what you call errors we call errors: our difference lies wholly, or all but wholly, in the fact that *we* hold every particular congregation of Christians to be a church within itself, whereas *you* maintain the interconnectedness of congregations, and the

right of courts of office-bearers from many congregations to review and control what passes within each: now, as you, being undoubtedly in the majority, are about to establish Presbytery in England, but as we cannot in conscience abandon our Congregationalism, could you not manage at least to allow in the new national system such a toleration of Congregationalist practices as would satisfy us, the minority, and prevent us from going again into exile?" Such was the Independency of the Dissenting Five in the Westminster Assembly. But, as we know, from our previous survey of the history of Independency in England, in Holland, and in America, the word "Independency" had come to have a much larger meaning than that in which it had originated. It had come to mean not merely the principle of Congregationalism, or the Independency of Congregations, but also all that had in fact arisen from the action of that principle, in England, Holland, or America, in the shape of miscellaneous dissent and heterodoxy. It had come to mean the Congregationalist principle *plus* all its known or conceivable consequences. From policy it was in this wide sense that the Presbyterians had begun to use the term Independency. "You are certainly Independents," the Presbyterians of the Assembly virtually said to Messrs Goodwin, Burroughs, and the rest of the Five; "but you are the best specimens of a class of which the varieties are legion: were all Independency such as yours, and were Independency to end with you, we might see our way to such a toleration as you demand—which, on personal grounds, we should like to do: but the principle of Congregationalism has already generated on the earth—in England, in Holland, and in America—opinions beyond yours, and some heresies at which even you stand aghast; and it is of these, as well as of you, that we are bound to think when we are asked to tolerate Independency." Now it was of this larger and more terrible Independency that the Presbyterians had begun to see signs in the Parliamentary Army and through England generally. In other words, sects and sectaries of all sorts and sizes had begun to be heard of—some only transmissions or re-

manifestations of oddities of old English Puritanism, others importations from Holland and New England, and others products of the new ferment of the English mind caused by the Civil War itself. In especial, it was believed, *Anabaptists* and *Antinomians* had begun to abound. Now, though, in politeness, the Presbyterians were willing occasionally to distinguish between the orthodox Independents and the miscellaneous Sectaries, yet, as the Congregationalist principle, which was the essence of Independency, was credited with the mischief of having generated all the sects, and as it was for this Congregationalist principle that toleration was demanded, it was quite as common to huddle all the Sects and the orthodox Congregationalists together under the one name of Independents. Nor could the Congregationalists of the Assembly very well object to this. True, they might disown the errors and extravagancies of the sects, and declare that they themselves were as little in sympathy with them as the Presbyterians. They might also argue, as indeed they anxiously did, that due uniformity in the essentials of Christian belief and practice would be as easily maintained in a community organized ecclesiastically on the Congregationalist principle as in one organized in the Presbyterian manner. Still, in arguing so, they must have had some latitude of view as to the amount of uniformity desirable. If every congregation were to be independent within itself, and if moreover congregations might be formed on the principle of elective affinities, or the concourse of like-minded atoms, it was difficult to see why Congregationalism should not be expected to evolve sects, and why therefore this progressive evolution of sects should not be accepted as a law of religious life. Had not the Five Independents of the Assembly avowed it as one of their principles that they would not be too sure that the opinions they now held would remain always unchanged? Reserving this liberty of going farther for themselves, how could they refuse toleration for those who had already gone farther? Claiming for themselves a toleration in all such differences as did not affect their character as good subjects, they could not

but extend the benefit of the same plea to at least a proportion of the Sectaries. But to what proportion? Where was toleration to stop? At what point, in the course of religious dissent, did a man become a "bad subject?" To these questions no definite answers were given by the Five Dissentients of the Assembly; but they could not but entertain the questions. Hence their Independency, though mild and moderate so far as they were themselves concerned, was really in organic connexion with the larger Independency that had begun to manifest itself in the Army and elsewhere. "The Congregationalist principle and Liberty of Religious Difference to a certain extent," said the Independents of the Assembly. "Yes, Liberty of Religious Difference!" said the Army Independents, simplifying the formula.

Throughout the first half of 1644, therefore, we are to think of the Presbyterian majority in the Westminster Assembly as not only fighting against the Independency or Congregationalism proper which was represented within the walls of the Assembly by men whom they could not but respect, though complaining of their obstinacy, but also bent on saving England from that more lax or general Independency, nameable as Army-Independency, which they saw rife through the land, and which included toleration not merely of Congregationalism, but also of Anabaptism, Antinomianism, and other nondescript heresies. Baillie's groanings in spirit over the multiplication of the sectaries, and the growth of the Toleration notion, are positively affecting. "Sundry officers and soldiers in the army," he writes, April 2, "has fallen from their way [*i.e.* from Independency proper] to Antinomianism and Anabaptism." Again, later in the same month, "The number and evil humour of the Antinomians and Anabaptists doth increase;" and more fully, on the 19th, "They [the Independents] over all the land are making up a faction to their own way, the far most part whereof is fallen off to Anabaptism and Antinomianism: sundry also to worse, if worse needs be—the mortality of the soul, the denial of angels and devils; and cast off all sacraments; and many blasphemous things. All these

are from New England." By May 9 he had begun to despair of the English altogether: "The humour of this people is very various and inclinable to singularities, to differ from all the world, and one from another, and shortly from themselves: no people had so much need of a Presbytery." According to Baillie, it was precisely owing to the absence of a well-organized Presbyterian system in England that all those wild growths of opinion had been possible; and, while they increased the difficulty of establishing Presbyterianism in England, they were the best demonstration of its necessity. Therefore, he would not despair. There was yet a faint hope that the Independent Divines in the Assembly might be made ashamed of the tag-rag of Anabaptists, Antinomians, and what not, that hung to their skirts, and so might be brought to an accommodation with the Presbyterians. But, failing that, the Presbyterians must stand firm, must face Independency and all its belongings both in Parliament and in the Army, and try at length to beat them down.—Of course, Baillie and his Scottish brethren were doing their best to assist the English Presbyterians in this labour. Anti- Toleration pamphlets had appeared, and more were in preparation. But help was particularly desired from the Reformed Churches abroad, and most particularly from Holland. Had not Holland nursed this very Independency which was troubling England, and was not the example of Holland the greatest argument with the Independents and others for a toleration of sects? Representing all this to his correspondent, William Spang, Scottish preacher at Campvere, Baillie urges him again and again to do what he can to get any eminent Dutch divines of his acquaintance to write treatises against Independency, Heresy, and Toleration. He names several such, as likely to do this great service if duly importuned. There could be no more helpful service to England—except one! Oh if there could yet be a great Scottish victory on English soil! *That* would be worth all the pamphlets in the world! [Footnote: Baillie, II. 146, 157, 168, 177, 179, 181, 183-4, 191-2, 197, &c. —Several manifestoes against Independency, such as Baillie wanted, did

come, in due time, from Divines in Holland and elsewhere on the Continent, and were much made of by the Presbyterians of the Assembly, and put in circulation through England.]

VISITATION OF THE UNIVERSITY OF CAMBRIDGE: BATTLE OF MARSTON MOOR.

Notwithstanding all this anarchy of ecclesiastical opinion, the practical or political mastery of affairs remained in the hands of Parliament, and was firmly exercised by Parliament in a direction satisfactory to the Westminster Assembly as a whole. For, whatever might be the ultimate settlement between Independency and Presbyterianism, there was a certain general course of "Reformation" to which meanwhile all were pledged, Independents and Sectaries no less than Presbyterians; and on this course all could advance unanimously, even while battling with each other on the ecclesiastical questions which the Independents desired to keep open. For example, during those very months of 1644 in which Independency had been taking such increased dimensions, there had been fully executed that great Visitation and purgation of the University of Cambridge which had been entrusted to the Earl of Manchester by Parliamentary Ordinance in January.

The Earl, going to Cambridge in person in February 1643-4, with his two chaplains, Messrs. Ashe and Good, had been engaged in the work through the months of March and April, summoning refractory Heads of Colleges and Fellows before him, examining complaints against them, and putting them in most cases to the test of the Covenant. The result, when complete (which it was not till 1645), was the ejection, on one ground or another, of about one half of the *Fellows* of the various Colleges of Cambridge collectively, and of eleven out of the sixteen *Heads of Houses*, and the appointment of persons of Parliamentary principles to the places thus

made vacant.—Of the crowd of those who were turned out of Cambridge *Fellowships*, and the crowd of those who were put in to succeed them, we can take no account in this History. Yet a process which presents us with the vision of about 150 rueful outgoers from comfortable livelihoods in one University, met at the doors by as many radiant comers-in, can have been no unimportant incident, even in a national revolution. What became of all the rueful outgoers is a question that might interest us yet. It interested Fuller ten years after the event. Even then he could give no other answer, he said, than that proverbial one which the survivors of Nicias's unfortunate expedition against the Sicilians used to give at Athens when they were asked about the fate of such or such a comrade who had never returned, [Greek: "E tethnæken hæ didaskei grammata"] "He is either dead or teaching a school somewhere." Schoolmastering, according to Fuller, was the refuge of most of the ejected Cambridge Fellows of 1644-5.—More conspicuous persons, and with resources that probably exempted them from the prospect of so painful a fate, were the ejected *Heads of Houses*. Most of these were ejected at once in March and April 1644; and, apart from our acquired interest in Cambridge University, there are reasons for remembering them individually, and noting those who came in their places:—Of the sixteen Heads of Houses, it is to be premised, one—Dr. Richard Love, of Bennet or Corpus Christi—was a member of the Assembly, and therefore all right; while four others managed, by taking the Covenant, or by other "wary compliance" during the Visitation, to stay in. Among these four, it does not surprise us to learn, was Dr. Thomas Bainbrigge of Christ's, Milton's old *durus magister*, with whom he had had that never-forgotten tiff in his under-graduateship (Vol. I. pp. 135-141); the others were Dr. Eden of Trinity Hall, Dr. Rainbow of Magdalen, and Dr. Batchcroft of Caius. The ejections were as follows:—

TRINITY COLLEGE:—Master ejected, Dr. THOMAS CUMBER (*ob.* 1654);

Master put in, Mr. THOMAS HILL, one of the Assembly Divines.

ST. JOHN'S COLLEGE:—Master ejected, Dr. WILLIAM BEALE (died at Madrid, 1651); Master put in, Mr. JOHN ARROWSMITH, one of the Assembly Divines.

EMANUEL COLLEGE:—Master ejected, Dr. RICHARD HOLDSWORTH (*ob.* 1649); Master put in, Dr. ANTHONY TUCKNEY, one of the Assembly Divines.

QUEEN'S COLLEGE:—There was a complete sweep of this College, not a Fellow or Founder of any kind being left. President ejected, Dr. EDWARD MARTIN (survived the Restoration and was made Dean of Ely); President put in, Mr. HERBERT PALMER, one of the Assembly Divines.

CLARE HALL:—Master ejected, Dr. THOMAS PASKE (survived the Restoration and had his reward); Master put in, RALPH CUDWORTH, B.D., afterwards the celebrated author of the "Intellectual System." He was of Somersetshire birth, and, though now only 27 years of age, had acquired a high Cambridge reputation, as Fellow and Tutor of Emanuel College, where he had been educated.

PETERHOUSE:—Master ejected, Dr. JOHN COSINS (already under the ban of Parliament and a refugee in France: he survived the Restoration and became Bishop of Durham); Master put in, Mr. LAZARUS SEAMAN, one of the Assembly Divines.

PEMBROKE COLLEGE;—Master ejected, Dr. BENJAMIN LANEY (survived the

Restoration and held several Bishoprics in succession); Master put in, Mr. RICHARD VINES, one of the Assembly Divines.

KING'S COLLEGE;—Provost ejected, Dr. SAMUEL COLLINS (see Vol. I. pp. 92, 93); Provost put in, Mr. BENJAMIN WHICHCOT, *ætat.* 34. He had been a Fellow of Emanuel College, and was a friend of Cudworth's. A peculiarity in his case was that he was dispensed from taking the Covenant on his appointment, and succeeded, by his interest with the ruling powers, in obtaining a like dispensation for most of the Fellows of the College. He survived the Restoration, conformed then, and is still remembered as one of the chiefs of the English Latitudinarians.

SIDNEY-SUSSEX COLLEGE:—Master ejected, Dr. SAMUEL WARD (see Vol. I. p. 95); Master put in, Mr. RICHARD MINSHULL, a Fellow of the College, regularly elected to the Mastership by the other Fellows. He survived the Restoration, conformed then, and retained the Mastership till his death.

JESUS COLLEGE:—Master ejected, Dr. RICHARD STERNE (great-grandfather of Laurence Sterne, the novelist). He was a strong Laudian and Royalist, and had already been in prison on that account. He lived in retirement till the Restoration; after which he was made successively Bishop of Chester, and (1664) Archbishop of York. Master put in, Mr. THOMAS YOUNG, one of the Assembly Divines, Milton's old preceptor, and the chief of the "Smectymnuans." It was a special compliment to Young that he, not an English University man at all, but a naturalized Scot, had been chosen for a Cambridge Mastership.

CATHERINE HALL:—Master ejected (not till 1645, however, and then on a fresh occasion), Dr. RALPH BROWNRIGGE, nominal Bishop of Exeter since 1642 (*ob.* 1659); Master put in, Mr. WILLIAM SPURSTOW, one of the Assembly Divines, and one of the "Smectymnuans." [Footnote:

Authorities for this account of Manchester's Visitation of Cambridge and its results are Fuller's *History of the University of Cambridge* (edit 1340), pp. 233- 239, and Neal's *Puritans*, III. 107-119.]

Thus began, in 1644, a new era in the history of Cambridge University, which extended to the Restoration. Episcopalian principles were discharged out of the government of the University; and, under the five retained Masters and the eleven new ones, there was inaugurated a system of rule and teaching in accordance, more or less in the different Colleges, with the ascendant State-policy of the Puritans. With the exception of Cudworth, Whichcot, and Minshull, it will have been noted, all the newly-appointed Masters were members of the Westminster Assembly, and leading men among the Presbyterian majority of that body. They do not appear to have ceased attendance on the Assembly in consequence of their appointments, but only to have divided their time thenceforward as well as they could between the Assembly and Cambridge. It is also to be noted that some of them, including Thomas Young, retained their former livings along with their new Masterships. [Footnote: The following is a note furnished to Mr. David Laing by the Rev. John Struthers of Prestonpans, one of an acting Committee recently appointed by the Church of Scotland for transcribing and editing the original Minutes of the Westminster Assembly, preserved in Dr. William's Library, London:—"1643-4, March 15.—A letter read from the Earl of Manchester, stating that he cast out Drs. Beale, Cosins, Sterne, Martin, Laney, masters, from their Masterships in Cambridge University, and, subject to the Assembly's approval, nominated Mr. Palmer, Mr. Arrowsmith, Mr. Vines, Mr. Seaman, and Mr. Young in their places. The Assembly offered their congratulations, but desired that their brethren should meanwhile not be withdrawn from the Assembly." Mr. Struthers adds that, though Dr. Lightfoot, in his *Notes of the Assembly*, states that Mr. Vines and Mr. Young desired to be excused from the new appointments, there is no notice of any such declinature in the MS. minutes.—See

Biographical Notices of Thomas Young, S.T.D., Vicar of Stowmarket, Suffolk, by Mr. David Laing (Edin. 1870), p. 39.—These accurate and valuable "Notices" of a man who figures so interestingly in Milton's Biography had not appeared till Vol. II. of this work was quite printed, or they might have saved me some research for that volume as well as for its predecessor. Prefixed to them Mr. Laing gives a portrait of Young, after a photograph taken from the original picture long preserved in the Vicarage of Stowmarket, but now in the possession of H. C. Mathew, Esq. of Felixstow, near Ipswich. The portrait represents Young with hair not at all of the short Puritan cut, but long, and flowing fully on both sides to his shoulders; and the face is really fine, with handsome features, and a rich and mild look. Another interesting insertion in Mr. Laing's little volume is a facsimile of Young's handwriting, from a Latin inscription in a presentation copy of his *Dies Dominica*, still extant. The hand is neat and careful; and, what is rather curious, it has a resemblance to Milton's.] There were similar instances of retention of livings among those appointed to Fellowships, and to other offices throughout the country under the patronage of the Parliament. The excuse was the dearth for the time of fully qualified ministers of the right Parliamentary strain; but the fact did not escape comment. Was Plurality one of the very few institutions of Prelacy which Presbyterian godliness was willing to preserve?

Fresh from his energetic Visitation of Cambridge, the Earl of Manchester was away, as we have seen, in May 1644, with his Lieutenant-general, Cromwell, to add the force of the Associated Eastern Counties to the forces of the Scots and Fairfax, then about to besiege the Marquis of Newcastle in York. The joint forces, numbering some 25,000 men in all, were hopefully conducting the siege when the approach of Prince Rupert out of Lancashire, with a Royalist army of over 20,000, compelled them to raise it, in order to oppose him (June 30). He avoided them, relieved York, and then, having added the Marquis's garrison to his own force, risked all for a great victory.

The result was the BATTLE OF MARSTON MOOR, about seven miles to the west of York, fought on the evening of July 2, 1644. It was "the bloodiest battle of the whole war," the number actually slain on the field on both sides in three hours being no fewer than 4,150. But of these by far the most were on the King's side, and the battle was a disastrous rout for that side, and a victory for the Parliamentarians incalculably greater than any they had yet had. Rupert, with a shred of his army, escaped southwards; the Marquis of Newcastle, making his way to the sea-coast, embarked for the Continent, with his two sons, his brother Sir Charles Cavendish, General King, Lord Fauconberg, the Earl of Carnwath, Bishop Bramhall, and about eighty other Royalists of distinction, and was no more seen in England till the Restoration. York surrendered to the victors, July 5; and, save that Newcastle and some other towns remained to be taken, the whole North of England was lost to the King and brought within the sway of Parliament. Seldom had there been such consequences from a battle of three hours. [Footnote: Clar. Hist. 490-492; Parl. Hist. III. 277, 278; Carlyle's Cromwell, I. 151-154; Markham's Fairfax, 151-178, for a detailed modern account.]

When the news of the battle reached London (July 5), there was nothing but joy. Within a few days, however, the joy passed into a question between the Independents and the Presbyterians, or at least the Scots among them. Which part of the conjoint army had behaved best in the battle, and to which general did the chief honours of the day belong? Glad would Baillie have been to welcome Marston Moor as at last that great success of the Scots for which he had been longing and praying. No such pleasure could he have. More and more, as detailed accounts of the battle arrived, it became clear that the Scots could claim only a little of the merit of the victory—that the mass of them had behaved rather ill; that the luck or the generalship of Field-marshal Leven had deserted him, and he had been carried far away in a ruck of fugitives; and that, in fact, with the exception of David Leslie, the Scottish Major-general, who really did good service, no

Scot in command had shown much head, or been of any considerable use, at Marston Moor. But, worse and worse for Baillie's feelings, not only did it appear that the victory had been gained by the English of the joint army rather than by the Scottish contingent, but gradually the rumour was confirmed, which had been first borne to London on the wings of the wind, that the Englishman by whose conduct, if by that of any one man, the fate of the battle had been decided, was Lieutenant-general Cromwell. "The left wing, which I commanded, being our own horse, saving a few Scots in our rear, beat all the Prince's horse. God gave them as stubble to our swords. We charged their regiments of foot with our horse, and routed all we charged." These sentences of Cromwell's own, written on the third day after the battle in a letter to his brother-in-law, Colonel Valentine Walton, are his private statement of the truth which became public. In vain it was represented in London that Cromwell's paramount prowess in the battle was a fiction of himself and the Independents; in vain did the Presbyterians try to distribute the merit among Fairfax, David Leslie, and Major-general Crawford—another Scot, not in the Scottish contingent, but serving in Manchester's army as next in command under Cromwell, and already known as representing Presbyterianism in that army in opposition to Cromwell's Independency; in vain did this Crawford, when he came to London, asseverate that Cromwell, having been slightly wounded in the neck, had retired before the crisis, and that the real work in Cromwell's part of the battle had devolved on David Leslie and himself. It was a comfort to Baillie to believe all this; but London was persuaded otherwise. For London and for all England Cromwell stood forth as the hero of Marston Moor. The victory to which Baillie had looked forward as a triumph for Presbyterianism had been gained mainly by the "great Independent" of the English army, and went to the credit of Independency. [Footnote: Baillie, II. 201, 203-4, 209, and 211; Carlyle's *Cromwell*, I. 152-3 and 146-150; Fuller's *Worthies, Yorkshire*; Holles's *Memoirs* (1699), 15-17.]

Three weeks after the battle of Marston Moor (July 23, 1644) the Westminster Assembly, with permission of Parliament, adjourned for a fortnight's vacation. We will share this vacation, and make it the opportunity for some farther inquiry, on our own account, into the two subjects which were of paramount interest at that moment. They were the subjects, if I may so say, that had for some time past been chalked up on the black board for the consideration of all England, and to the discussion of which the Assembly and the Parliament were to address themselves with fresh fervour when the Assembly came together again after their vacation. These were:—

I. The Principle of Toleration.

II. The English Sects and Sectaries.

THE PRINCIPLE OF TOLERATION: STATE OF THE TOLERATION CONTROVERSY IN 1644.

The history of the modern idea of TOLERATION could be written completely only after a larger amount of minute and special research than I am able here to bestow on the subject. Who shall say in the heads of what stray and solitary men, scattered through Europe in the sixteenth century, *nantes rari in gurgite vasto*, some form of the idea, as a purely speculative conception, may have been lodged? Hallam finds it in the "Utopia" of Sir Thomas More (1480-1535), and in the harangues of the Chancellor l'Hospital of France (1505-1573); [Footnote: Hallam's Const. Hist. (10th edit.), T. 122, Note.] and there may have been others. But the history of the idea, as a practical or political notion, lies within a more precise range. Out of what within Europe in the sixteenth and seventeenth centuries was the practical form of the idea bred? Out of pain, out of suffering, out of persecution: not pain inflicted constantly on one and the same section of

men, or on any two opposed sections alternately; but pain revolving, pain circulated, pain distributed till the whole round of the compass of sects had felt it in turn, and the only principle of its prevention gradually dawned on the common consciousness! In every persecuted cause, honestly conducted, there was a throe towards the birth of this great principle. Every persecuted cause claimed at least a toleration for itself from the established power; and so, by a kind of accumulation, the cause that had been last persecuted had more of a tendency to toleration in it, and became practically more tolerant, than the others. This, I think, might be proved. The Church of England was more tolerant than the Church of Rome, and Scottish Presbyterianism or Scottish Puritanism was more tolerant (though the reverse is usually asserted) than the Church of England prior to 1640. Not to the Church of England, however, nor to Scottish Presbyterianism, nor to English Puritanism at large, does the honour of the first perception of the full principle of Liberty of Conscience, and its first assertion in English speech, belong. That honour has to be assigned, I believe, to the Independents generally, and to the Baptists in particular.

The principle of religious liberty is almost logically bound up with the theory of the Independency of particular churches. Every particular church being a voluntary concourse of like-minded atoms, able to declare themselves converts or true Christians, it follows that the world, or civil society, whether called heathen or professedly Christian, is only the otherwise regulated medium or material in which these voluntary concourses or whirls take place. It follows that there must be large expanses or interspaces of the general material always unabsorbed into the voluntary concourses, and that for the secular power, which governs the general medium, to try to stimulate the concourses, or to bring all into them, or to control any part of the procedure of each or any of them, would be a mingling of elements that are incompatible, of necessary worldly order with the spiritual kingdom of Christ. And so it was maintained, against the

Roman Catholics, and against the Confessions of all the various established Protestant Churches, that there could be, and ought to be, no Imperial or National Church. This being the principle of some of the early Protestant movements that went beyond Luther, Zuinglius, or Calvin, and perplexed these Reformers, little wonder that flashes of the fullest doctrine of Liberty of Conscience should be found among the records of those movements, whether on the Continent or in England.[Footnote: See notices of such flashes, among English Baptists of the reign of Henry VIII., and among the continental Anabaptists, in Mr. Edward Bean Underhill's "Historical Introduction" to the Reprint of Old Tracts on *Liberty of Conscience* by the "Hanserd Knollys Society" (1846). Mr. Underhill writes as a zealous Baptist, but with judgment and research.] Little wonder, either, that the principle of Toleration should be discernible in the writings of Robert Brown, the father of the crude English Independency of Elizabeth's reign. [Footnote: Baillie (*Dissuasive*, Part I. 31) expressly makes it a reproach against Brown that he held the Toleration doctrine.]

But it is one thing to hold a principle vaguely or latently as implicated in a principle already avowed, and another thing to extricate the implied principle and kindle it, as on the top of a lighthouse, on its own account. It is found, accordingly, that the early English Separatists collectively were much slower in this matter than Brown himself had been. They wanted toleration for themselves, and perhaps a general mildness in the administration of religious affairs; but they could not rid themselves of the notion, held alike by all the established churches, whether Prelatic or Presbyterian, that it is the duty of the prince, or the civil power, in every state to promote true religion and suppress false. Passages which we have already had occasion to quote (Vol. II. 569, 570) from the writings of Barrowe, Greenwood, and even of the liberal Robinson, the father of Congregationalism proper, prove beyond all dispute that these chiefs of the Separatists and Semi-Separatists who followed Brown in the latter part of

Elizabeth's reign and in the reign of James had not worked out Toleration into a perfect or definite tenet. They did want something that they called a Toleration; but it was a limited and ill-defined Toleration.—There was, however, *one* body or band of Separatists in James's reign who had pushed farther ahead, and grasped the idea of Liberty of Conscience at its very utmost. Strangely enough, as it may seem at first sight, they were the Separatists of the most intense and schismatic type then known, the least conciliatory in their relations to other churches and communions. They were the poor and despised Anglo-Dutch Anabaptists who called John Smyth (Vol. II. 539,540) their leader. In a Confession, or Declaration of Faith, put forth in 1611 by the English Baptists in Amsterdam, just after the death of Smyth, this article occurs: "The magistrate is not to meddle with religion, or matters of conscience, nor compel men to this or that form of religion; because Christ is the King and Lawgiver of the Church and Conscience." It is believed that this is the first expression of the absolute principle of Liberty of Conscience in the public articles of any body of Christians. Contact with the Dutch Arminians may have helped Smyth's people to a perception of it; and it certainly did not please the English Pædobaptist Independents of Holland when it appeared among them. Robinson, for example, objected to it, as he was bound to do by the views of the civil magistrate's power which he maintained. He attributed the invention of such an article to the common inability of ignorant men to distinguish between the use of an ordinance and its abuse. In other words, he thought the remnant of Smyth's Baptists had been rather silly in leaping to the conclusion that, because there had been much abuse of the interference of the civil power in matters of religion, and it had led to all sorts of horrors, there was nothing left but to set up the principle of absolute non-interference.

The principle of the Anglo-Dutch Baptists, with the same exact difference between the Baptists and the rest of the Independents on the Toleration point, was imported into England. It is supposed that the person who had the chief hand in drawing up the Confession of the English Baptists of Amsterdam, after Smyth's death, was Smyth's successor in the Baptist ministry there, Thomas Helwisse (Vol. II. 540-544). Now, this Helwisse, returning to England shortly after 1611, drew round him, as we saw, the first congregation of General or Arminian Baptists in London; and this obscure Baptist congregation seems to have become the depository for all England of the absolute principle of Liberty of Conscience expressed in the Amsterdam Confession, as distinct from the more stinted principle advocated by the general body of the Independents. Not only did Helwisse's folk differ from the Independents generally on the subject of Infant Baptism and Dipping; they differed also on the power of the magistrate in matters of belief and conscience. It was, in short, from their little dingy meeting-house, somewhere in Old London, that there flashed out, first in England, the absolute doctrine of Religious Liberty. "*Religious Peace: or, A Plea for Liberty of Conscience*" is the title of a little tract first printed in 1614, and presented to King James and the English Parliament, by "Leonard Busher, citizen of London." This Leonard Busher, there is reason to believe, was a member of Helwisse's congregation; and we learn from the tract itself that he was a poor man, labouring for his subsistence, who had had his share of persecution. He had probably been one of Smyth's Amsterdam flock who had returned with Helwisse. The tract is, certainly, the earliest known English publication in which full liberty of conscience is openly advocated. It cannot be read now without a throb. The style is simple and rather helpless; but one comes on some touching passages. Thus:—

"May it please your Majesty and Parliament to understand that by fire and sword to constrain princes and peoples to receive that one true religion

of the Gospel is wholly against the mind and merciful law of Christ." "Persecution is a work well pleasing to all false prophets and bishops, but it is contrary to the mind of Christ, who came not to judge and destroy men's lives, but to save them. And, though some men and women believe not at the first hour, yet may they at the eleventh hour, if they be not persecuted to death before. And no king nor bishop can or is able to command faith. That is the gift of God, who worketh in us both the will and the deed of his own good pleasure. Set him not a day, therefore, in which, if his creature hear not and believe not, you will imprison and burn him.... As kings and bishops cannot command the wind, so they cannot command faith; and, as the wind bloweth where it listeth, so is every man that is born of the Spirit. You may force men to church against their consciences, but they will believe as they did before when they come there."

"Kings and magistrates are to rule temporal affairs by the swords of their temporal kingdoms, and bishops and ministers are to rule spiritual affairs by the word and Spirit of God, the sword of Christ's temporal kingdom, and not to intermeddle one with another's authority, office, and function."

"I read that Jews, Christians, and Turks are tolerated in Constantinople, and yet are peaceable, though so contrary the one to the other. If this be so, how much more ought Christians not to force one another to religion! And how much more ought Christians to tolerate Christians, whenas the Turks do tolerate them! Shall we be less merciful than the Turks? or shall we learn the Turks to persecute Christians? It is not only unmerciful, but unnatural and abominable, yea monstrous, for one Christian to vex and destroy another for difference and questions of religion."

Busher's tract of 1614 was not the only utterance in the same strain that came from Helwisse's conventicle of London Baptists. In 1615 there appeared in print "*Objections answered by way of Dialogue, wherein is*

proved, by the Law of God, by the Law of our Land, and by His Majesty's many testimonies, that no man ought to be persecuted for his Religion, so he testifie his allegiance by the oath appointed by Law." The author, or one of the authors, of this Dialogue, which is even more explicit in some respects than Busher's tract, is pretty clearly ascertained to have been John Murton, Helwisse's assistant (Vol. II. 544,581). Helwisse himself is not heard of after 1614, and appears to have died about that time. But his Baptist congregation maintained itself in London side by side with Jacob's congregation of Independents, established in 1616 (Vol. II. 544). As if to signalize still farther the discrepancy of the two sets of Sectaries on the Toleration point, there was put forth, as we saw, in that very year, by Jacob and the Independents, a Confession of Faith, containing this article: "We believe that we, and all true visible churches, ought to be overseen and kept in good order and peace, and ought to be governed, under Christ, both supremely and also subordinately, by the civil magistrate; yea, in causes of religion, when need is."

The year 1616 was the year of Shakespeare's death. Who that has read his Sonnet LXVI. can doubt that he had carried in his mind while alive some profound and peculiar form of the idea of Toleration? In Bacon's brain, too, one may detect some smothered tenet of the kind; and even in the talk of the shambling King James himself there had been such occasional spurts about Liberty of Conscience that, though he had burnt two of his subjects for Arianism, Helwisse's poor people were fain, as we have just seen, to cite "His Majesty's many testimonies" for the Toleration they craved. And yet not to any such celebrity as the king, the philosopher, or the poet, had the task of vindicating for England the idea of Liberty of Conscience been practically appointed. To all intents and purposes that honour had fallen to two of the most extreme and despised sects of the Puritans. The despised Independents, or semi-Separatists of the school of Robinson and Jacob, and the still more despised Baptists, or thorough Separatists of the school of

Smyth and Helwisse, were groping for the pearl between them; and, what is strangest at first sight, it was the more intensely Separatist of these two sects that was groping with most success. How is this to be explained? Partly it may have been that the Baptists were the sect that had been most persecuted—that they were the ultimate sect, in the English world, in respect of the necessary qualification of pain and suffering accumulated in their own experience, while the Hobinsonian Independents might rank as only the penultimate sect in this respect. But there is a deeper reason. Paradoxical as the statement may seem, there was a logical connexion between the extreme Separatism of the Baptists, the tightness and exclusiveness of their own terms of communion, and their passion for religious freedom. This requires elucidation:—It was on the subject of the Baptism of Infants that the ordinary Congregationalists and the Baptist Congregationalists most evidently stood aloof from each other. There had been vehement controversies between them on the subject. Independent congregations had ejected and excommunicated such of their members as had taken to the doctrine of Antipædobaptism; and Smyth's rigid Baptists, in turn, would not hold communion with Pædobaptist Independents. We are apt now to dwell on the narrow-mindedness, the unseemliness, of those bickerings of the two sects over the one doctrine on which they differed. It is to be observed, however, that even here they illustrated their faith in the principle which was the essence of their common Congregationalism: to wit, that the true security for sound faith and good government in the Church of Christ lay in the power lodged in every particular congregation of judging who were fit to belong to it, and of constant spiritual supervision of each of the members of it by all, so that the erring might be admonished, and the unfit ejected. It was the supreme virtue, the all-sufficient efficacy, of this power of merely spiritual censure, as it might be exercised by congregations or particular churches, each within itself, that both sects were continually trying to demonstrate to Prelatists and Presbyterians. Their very

argument was that truth and piety would prosper best in a system of Church-government which trusted all to the vigilance of the members of every particular congregation over each other, their reasonings among themselves, their practice of mutual admonition, and, in last resort, their power of excommunicating the unworthy. Hence perhaps even the excess of the controversial activity of the two sects against each other, and the frequency of their mutual excommunications, are not without a favourable significance. Here, however, it was the Baptists, rather than the Independents collectively, that had pushed their theory of the all-sufficiency of congregational censure to its finest issue. To both sects the world or civil society presented itself as a medium in which there might be Christian vortices, concourses of true Christian souls, that should constitute, when numbered together and catalogued unerringly in the books of heaven, the Church or Kingdom of Jesus. To both sects it seemed a thing to be striven for that as much of civil society as possible should be brought into these vortices or concourses; nay, the aspiration of both was that the whole world should be Christianized. But, looking about them, they knew, in fact, that the vortices or concourses did and could involve but a small proportion of the society in which they occurred. They knew that there must be large tracts of unbelief, profanity, and false worship in every so-called Christian nation, left utterly unaffected by any of the true associations of Christ's real people; besides the huge wilderness of heathenism and idolatry lying all round in the dark lands of the world. It was on the platform of this contemplation that the Independents generally and the Baptist section of them had parted company. The Independents generally held that it was the duty of the civil power in a State to promote the formation of churches in that State, and to see, in some general way, that the churches formed were not wrong in doctrine or in practice. They held that the civil authority might lawfully compel all its subjects to some sort of hearing of the Gospel with a view to their belonging to churches or congregations, and might even assist

the preacher by some whip of penalties on those who remained obstinate after a due amount of hearing. They held, in fact, that every State is bound to use its power towards Christianizing all its subjects, and may also institute missions for the propagation of true Christianity in idolatrous or heathen lands. To all this the Baptists, or some of their leaders, had learnt to oppose an emphatic "No." They held that the world, or civil society, and the Church of Christ, were distinct and immiscible. They held that the sword of the Temporal Power must never, under any circumstances, aid the sword of the Spirit. They held that the formation of churches in any State must be a process of the purest spontaneity. They held that, while every person in a civilized State is a subject of that State in all matters of civil order, it ought to be at the option of that person, and of those with whom he or she might voluntarily consort, to determine whether he or she should superadd to this general character of subject the farther character of being a Christian and a member of some particular church. The churches formed spontaneously in any State were to be self-subsisting associations of like-minded units, believing and worshipping, and inflicting spiritual censures among themselves, without State-interference; and Christianity was to propagate itself throughout the world by its own spiritual might and the missionary zeal of apostolic individuals. [Footnote: Among my authorities for this sketch of the history of the idea of Toleration as far as 1616, I ought to mention Hanbury's *Historical Memorials relating to the Independents*, Vol. I., and more particularly Chapters XIII,—XV.; Fletcher's *History of Independency in England* (1848), Vol. III., Chapters I. and II.; and the Reprint of Old Tracts on *Liberty of Conscience* by the Hanserd Knollys (Baptist) Society, with the Introductory Notices there prefixed to Busher's tract and Murton's by Mr. Edward Bean Underhill.]

From 1616 onwards this Baptist form of the idea of Liberty of Conscience had been slumbering somewhere in the English heart. Even through the dreadful time of the Laudian terrorism it might be possible for

research to discover half-stifled expressions of it. Other and less extreme forms of the Toleration idea, however, were making themselves heard. Holland had worked out the speculation, or was working it out, through the struggle of her own Arminians for equal rights with the prevailing Calvinists; and it was the singular honour of that country to have, at all events, been the first in Europe to exhibit something like a practical solution of the problem, by the refuge and freedom of worship it afforded to the religious outcasts of other nations. Then among the so-called Latitudinarian Divines of the Church of England—Hales, Chillingworth, and their associates—there is evidence of the growth, even while their friend Laud was in power, of an idea or sentiment of Toleration which might have made that Prelate pause and wonder. Not, of course, the Baptist idea; but one which might have had a greater chance practically in the then existing conditions of English life. Might there not be a Toleration *with* an Established or State Church? While it might be the duty of the civil magistrate, or at least a State- convenience, to set up one Church as the Church of the nation, and so to afford to all the subjects the means of instruction in that theology and of participation in that worship which the State thought the best, might not State-interference with religion stop there, and might not those who refused to conform be permitted to hold their conventicles freely outside the Established Church, and to believe and worship in their own way? Some such idea of Toleration, but still with perplexing limitations as to the *amount* of deviation that should be tolerated, was, I believe, the idea that had dawned on the minds of men like the loveable Hales and the hardy Chillingworth. It is much the sort of Toleration that accredits itself to the average British mind yet. But how greatly the history of the Church of England might have been altered had such a Toleration been then adopted by the Church itself! As it was, it remained the half- uttered *irenicon* of a few speculative spirits. Nowhere on earth prior to 1640, unless it were in Holland, was Toleration in any

effective form whatsoever anything more than the dream of a few poor persecuted sectaries or deep private thinkers. Less even than in the Church of England is there a trace of the idea in the Scottish Presbyterianism that had then re-established itself, or in the English Presbyterianism that longed to establish itself. Scottish Presbyterianism might indeed plead, and it did plead, that it was so satisfactory a system, kept the souls of its subjects in such a strong grip, and yet without needing to resort, except in extreme cases, to any very penal procedure, that wherever *it* existed Toleration would be unnecessary, inasmuch as there would be precious little error to tolerate. Personally, I believe, Henderson was as moderate and tolerant a man as any British ecclesiastic of his time. In no Church where he bore rule could there, by possibility, have been any approach to the tetchy repressiveness, or the callous indifference to suffering for the sake of conscience, that characterized the English Church-rule of Laud. But Henderson, though the best of the Presbyterians, was still, *par excellence*, a Presbyterian; and therefore the Toleration that lay in his disposition had not translated itself into a theoretical principle. As for the English Presbyterians, what *they* wanted was toleration for themselves, or the liberty of being in the English Church, or in England out of the Church, without conforming; or, if some of them went farther, what *they* wanted was the substitution of Presbytery for Prelacy as the system established with the right to be intolerant. Finally, even in the New England colonies, where Congregationalism was the rule, there were not only spiritual censures and excommunications of heretics, but whippings, banishments, and other punishments of them, by the civil power. [Footnote: Hallam's account of the rise and progress of the Toleration idea in England (Hist, of Europe, 6th ed. II. 442, &c.) is very unsatisfactory. He actually makes Jeremy Taylor's "Liberty of Prophesying" (1647), the first substantial assertion of Liberty of Conscience in England—an injustice to a score or two of preceding champions of it, and to one or two entire corporate denominations.]

And so we arrive at 1640. Then, immediately after the meeting of the Long Parliament, Toleration rushed into the air. Everywhere the word "Toleration" was heard, and with all varieties of meanings. A certain boom of the general principle runs through Milton's Anti-Episcopal pamphlets, and through other pamphlets on the same side. But this is not all. The principle was expressly argued in certain pamphlets set forth in the interest of the Independents and the Sectaries generally, and it was argued so well that the Presbyterians caught the alarm, foresaw the coming battle between them and the Independents on this subject of Toleration, and declared themselves Anti-Tolerationists by anticipation. It was in May 1641, for example, that Henry Burton published his anonymous pamphlet called *The Protestation Protested* (Vol. II. 591-2). The main purpose of the pamphlet was to propound Independency in its extreme Brownist form, as refusing any National or State Church whatever; but, on the supposition that this theory was too much in advance of the opinion of the time, and that some National Church must inevitably be set up, a toleration of dissent from that Church was prayed for. "The Parliament now being about a Reformation," wrote Burton, "what government shall be set up in this National Church, the Lord strengthen and direct the Parliament in so great and glorious a work. But let it be what it will, so as still a due respect be paid to those congregations and churches which desire an exemption, and liberty of enjoying Christ's ordinances in such purity as a National Church is not capable of." This is the Toleration principle as it had been transmitted among the Independents generally, or perhaps it is an advance on that. Such as it was, however, Burton's plea for Toleration roused vehement opposition. It was attacked ferociously, as we saw, by an anonymous Episcopal antagonist, believed to be Bishop Hall (Vol. II. p. 593). It was attacked also by Presbyterians, and notably by their champion, Mr. Thomas Edwards, in his maiden pamphlet called "*Reasons against the Independent Government of particular Congregations*" (Vol. II. p. 594). But Edwards did

not go unpunished. His pamphlet drew upon him that thrashing from the lady-Brownist, Katharine Chidley, which the reader may remember (Vol. II. p. 595). This brave old lady's idea of Toleration outwent even Burton's, and corresponded more with that absolute idea of Toleration which had been worked out among the Baptists. For example, Edwards having upbraided the Independents with the fact that their Toleration principle had broken down even in their own Paradise of New England, what is Mrs. Chidley's answer? "If they have banished any out of their Patents that were neither disturbers of the peace of the land, nor the worship practised in the land, I am persuaded it was their weakness, and I hope they will never attempt to do the like." Clearly, from whomsoever in 1641 the Parliament and the people of England heard a stinted doctrine of Toleration, they heard the full doctrine from Mrs. Chidley. The Parliament, however, was very slow to be convinced. Petitions of Independent congregations for toleration to themselves were coolly received and neglected; the Presbyterians more and more saw the importance of making Anti-Toleration their rallying dogma; more and more the call to be wary against this insidious notion of Toleration rang through the pulpits of England and Scotland. [Footnote: Hanbury's *Historical Memorials relating to the Independents*, Vol. II. pp. 68-117; where ample extracts from the pamphlets mentioned in this paragraph are given. Fletcher gives a good selection of them in his *History of Independency*, Vol. III. Chap. VI.]

The debates in 1643 and 1644 between the five Independent or Dissenting Brethren of the Westminster Assembly and the Presbyterian majority of the Assembly brought on a new stage of the Toleration controversy. A notion which might be scorned or ridiculed while it was lurking in Anabaptist conventicles, or ventilated by a she-Brownist like Mrs. Chidley, or by poor old Mr. Burton of Friday Street, could compel a hearing when maintained by men so respectable as Messrs. Goodwin, Burroughs, Bridge, Simpson, and Nye, whom the Parliament itself had sent

into the Assembly. The demand for Toleration which these men addressed to the Parliament in their famous *Apologetical Narration* of January 1643-4 gave sudden dignity and precision to what till then had been vulgar and vague. It put the question in this form, "What amount of Nonconformity is to be allowed in the new Presbyterian Church which is to be the National Church of England?"; and it distinctly intimated that on the answer to this question it would depend whether the Apologists and their adherents could remain in England or should be driven again into exile. Care must be taken, however, not to credit the Apologists at this period with any notion of absolute or universal Toleration. They were far behind Mrs. Chidley or the old Baptists in their views. They were as yet but learners in the school of Toleration. Indulgence for *themselves* "in some lesser differences," and perhaps also for some of the more reputable of the other sects in *their* different "lesser differences," was the sum of their published demand. They too, no less than the Presbyterians, professed disgust at the extravagances of the Sectaries. It was not so much, therefore, the Toleration expressly claimed by the Five Dissenting Brethren for themselves, as the larger Toleration to which it would inevitably lead, that the Presbyterians continued to oppose and denounce. As far as the Five Brethren and other such respectable Dissentients were concerned, the Presbyterians would have stretched a point. They would have made arrangements. They would have patted the Five Dissenting Brethren on the back, and said, "It shall be made easy for *you*; we will yield all the accommodation *you* can possibly need; only don't call it Toleration." The Dissenting Brethren were honest enough and clear-headed enough not to be content with this personal compliment. Nor, in fact, could the policy have been successful. For there were now champions of the larger Toleration with voices that resounded through the land and were heard over those of the Five Apologists. Precisely that middle of the year 1644 at which we have stopped in our narrative was the time when the principle of absolute Liberty of Conscience was proclaimed, for

the benefit of all opinions whatsoever, in tones that could never more be silenced.

About the middle of 1644 there appeared in London at least three pamphlets or books in the same strain. One of these, "*The Compassionate Samaritan unbinding the Conscience*," need be remembered by its name only; but the other two must be associated with their authors. One bore the striking title "*The Bloody Tenent [i. e. Bloody Tenet] of Persecution for cause of Conscience, discussed in a Conference between Truth and Peace*," (pp. 247); the other bore, in its first edition, the simple title, "*M. S. to A.S.*," and, in its second edition, in the same year, this fuller title "*A Reply of Two of the Brethren to A.S., &c.; with a Plea for Liberty of Conscience for the Apologists' Church-way, against the Cavils of the said A. S.*" Though both were anonymous, the authors were known at the time. The author of the first was that Americanized Welshman, ROGER WILLIAMS, whose strange previous career, from his first arrival in New England in 1631, on to his settlement among the Narraganset Bay Indians in 1638, and his subsequent vagaries of opinion and of action, has already been sketched (Vol. II. 560-563, and 600-602). He had been over in England, it will be remembered, since June 1643, in the capacity of envoy or commissioner from the Rhode Island people, to obtain a charter for erecting Rhode Island and the adjacent Providence Plantation into a distinct and independent colony. He had been going about England a good deal, but had been mostly in London, in the society of the younger Vane, and in frequent contact with other leading men in Parliament and in the Westminster Assembly. The *Bloody Tenent* was an expression, in printed form, of opinions he had been ventilating frankly enough in conversation, and was intended as a parting-gift to England before his return to America. The title must have at once attracted attention to it and given it an advantage over the other tract. The author of that other tract was our other well-known friend Mr. JOHN GOODWIN, Vicar of St. Stephen's, Coleman Street, whom the

Presbyterians had put in their black books as an Arminian, Socinian, and what not (Vol. II. 582-584). Goodwill's piece may have been out first, for it is heard of as in circulation in May 1644, while Williams's book is not heard of, I think, till June or July. But, on all grounds, Williams deserves the priority. [Footnote: For statements in this paragraph authorities are—*Apologetic Narration* (1644); Hanbury's Historical Memorials, II. 341 *et seq.*; Reprint of *The Bloody Tenent* by the Hanserd Knollys Society (1848), with Mr. Underhill's "Biographical Introduction," pp. xxiii.-iv.; Jackson's *Life of John Goodwin*, p. 114 *et seq.*; Baillie's Letters, II. 180, 181, and 211, 212, and Commons Journals, Aug. 9, 1644.]

Well may the Americans be proud of Roger Williams. His *Bloody Tenent* is of a piece with all his previous career. It is a rapid, hurried book, written, as it tells us, during the author's stay in England, "in change of rooms and corners, yea sometimes in variety of strange houses, sometimes in the fields in the midst of travel." One particularly notes the frequent "&c." in its sentences, as if much crowded on the writer's mind from moment to moment which he could indicate only by a contraction. But there is dash in the book, the keenest earnestness and evidence of a mind made up, and every now and then a mystic softness and richness of pity, yearning towards a voluptuous imagery like that of the Song of Solomon. The plan is straggling. First there is a list of twelve positions which the book proves, or heads under which its contents may be distributed. Then there is an address or dedication to "the Right Honourable Both Houses of the High Court of Parliament," followed by a separate address "To every Courteous Reader." Then there comes a copy of "Scriptures and Reasons written long since by a Witness of Jesus Christ, close prisoner in Newgate, against Persecution in cause of Conscience"—in fact, an extract from a tract on Liberty of Conscience by Murton, or some other London Baptist, in 1620. A copy of those Scriptures and Reasons against Persecution had, it seems, been submitted in 1635 to Mr. Cotton of Boston for his consideration; and Mr.

Cotton had drawn up a Reply, defending from Scripture, past universal practice, and the authority of Calvin, Beza, and others of the Reformers, the right of the civil magistrate to prosecute and punish religious error. This Reply of Cotton's in favour of persecution is printed at length by Williams; and the first part of the real body of his own book consists of a Dialogue between Truth and Peace over the doctrine which so respectable a New England minister had thus espoused. When this Dialogue is over; there ensues a second Dialogue of Truth and Peace over another New England document in which the same "bloody tenet" of persecution had been defended-to wit a certain "Model of Church and Civil Power" drawn up by some New England ministers in concert, and in which Mr. Cotton had had a hand, though Mr. Richard Mather appears to have been the chief author. [Footnote: Some particulars in this description of the treatise are from Mr. Underhill's Introduction to the Hanserd Knolly's Society's Reprint of it, but the description in the main is from the *Bloody Treatment* itself.]

The texture of Williams's treatise, it will be thus seen, is loose and composite. But a singular unity of purpose and spirit runs through it. Here is the opening of the first Dialogue:—

Truth. In what dark corner of the world, sweet Peace, are we two met? How hath this present evil world banished me from all the coasts and corners of it! And how hath the righteous God in judgment taken thee from the earth: Rev. vi. 4.

Peace. It is lamentably true, blessed Truth: the foundations of the world have long been out of course; the gates of Earth and Hell have conspired together to intercept our joyful meeting and our holy kisses. With what a wearied, tired wing have I flown over nations, kingdoms, cities, towns, to find out precious Truth!

Truth. The like inquiries in my flights and travels have I made for Peace, and still am told she hath left the Earth and fled to Heaven.

Peace. Dear Truth, what is the Earth but a dungeon of darkness, where Truth is not?

Truth. And what is the Peace thereof but a fleeting dream, thine ape and counterfeit?

Peace. Oh! where is the promise of the God of Heaven, that Righteousness and Peace shall kiss each other?

Truth. Patience, sweet Peace! These Heavens and Earth are growing old, and shall be changed like a garment: Psalm cii. They shall melt away, and be burnt up with all the works that are therein; and the Most High Eternal Creator shall gloriously create new Heavens and new Earth, wherein dwells righteousness: 2 Pet. iii. Our kisses then shall have their endless date of pure and sweetest joys. Till then both thou and I must hope, and wait, and bear the fury of the Dragon's wrath, whose monstrous lies and furies shall with himself be cast into the lake of fire, the second death: Rev. xx.

Peace. Most precious Truth, thou knowest we are both pursued and laid for. Mine heart is full of sighs, mine eyes with tears. Where can I better vent my full oppressed bosom than into thine, whose faithful lips may for these few hours revive my drooping, wandering spirits, and here begin to wipe tears from mine eyes, and the eyes of my dearest children.

Truth. Sweet daughter of the God of peace, begin.

And so Truth and Peace hold their long discourse, evolving very much that doctrine of the absolute Liberty of Conscience, as derivable from, or radically identical with, the idea of the utter distinctness of the Church of

Christ from the world or civil society, which had been propounded first by the Brownists and Baptists, and had come down as a tradition from them. But it is evolved by Williams more boldly and passionately than by any before him. There is a fine union throughout of warmth of personal Christian feeling with intellectual resoluteness in accepting every possible consequence of his main principle. Here are a few phrases from the marginal summaries which give the substance of the Dialogue, page after page:—"The Church and civil State confusedly made all one"; "The civil magistrates bound to preserve the bodies of their subjects, and not to destroy them for conscience sake"; "The civil sword may make a nation of hypocrites and anti-Christians, but not one Christian"; "Evil is always evil, yet permission of it may in case be good"; "Christ Jesus the deepest politician that ever was, and yet he commands a toleration of anti-Christians"; "Seducing teachers, either Pagan, Jewish, Turkish, or anti-Christian, may yet be obedient subjects to the civil laws"; "Christ's lilies may flourish in his Church, notwithstanding the abundance of weeds in the world permitted"; "The absolute sufficiency of the sword of the Spirit"; "A National Church not instituted by Christ Jesus"; "The civil commonweal and the spiritual commonweal, the Church, not inconsistent, though independent the one on the other"; "Forcing of men to godliness or God's worship the greatest cause of breach of civil peace"; "Master of a family under the Gospel not charged to force all under him from their consciences to his"; "Few magistrates, few men, spiritually and Christianly good: yet divers sorts of goodness, natural, artificial, civil, &c."; "Persons may with less sin be forced to marry whom they cannot love than to worship where they cannot believe"; "Christ Jesus never appointed a maintenance of ministers from the unconverted and unbelieving: [but] they that compel men to hear compel men also to pay for their hearing and conversion"; "The civil power owes *three* things to the true Church of Christ—(1) Approbation, (2) Submission [i.e. interpreted in the text to be personal submission of the

civil magistrate to church-membership, if he himself believes], (3) Protection"; "The civil magistrate owes *two* things to false worshippers—(1) Permission, (2) Protection."—Whoever has read this string of phrases possesses the marrow of Williams's treatise. At the end of it there is an interesting discussion of the question whether only church-members, or "godly persons in a particular church-estate," ought to be eligible to be magistrates. To Williams, who was a pure democrat in politics, and was founding the new State of Rhode Island on the basis of the equal suffrages of all the colonists, this was an important practical question. He decides it with great good sense, and clearly in the negative. Without denying that the appointment of godly persons to civil offices was a thing to be prayed for, and, wherever possible, peaceably endeavoured, he points out that the principle that only Christian persons should be entrusted with civil rule is practically preposterous. Five-sixths of the world had never heard of Christ, and yet there were lawful enough civil states in those parts of the world. Then, in a Christian monarchy, what a convulsion, what a throwing away of the benefits of hereditary succession, if it had to be inquired, whenever the throne became vacant, whether the next heir was of the right sort religiously. Finally, in any Christian colony or town, would it not be a turning of everything upside down, and a premium upon hypocrisy, to make church-membership a necessary qualification for magistracy, and so, when a magistrate lapsed into what was thought religious error, and had to be excommunicated by his church, to have to turn him out of his civil office also?

Williams, it is to be remembered, had held these views while he was yet only a Congregationalist generally, and before he had become a Baptist. Though he found them among the Baptists, therefore, he may be said to have recovered them for Independency at large, and to have been the first to impregnate modern "Independency" with them through and through. Nay, as he had himself gone out of the camp of the mere Baptist

Congregationalists when he published his treatise,—as he had begun to question whether there was any true Visible Church in the world at all, any perfect pastorate in any nation, anything else under the sun of a Christian kind than a chance-medley of various preaching and effort into which God might sooner or later send new shafts of light and direction from heaven—in the view of all this, Williams has to be regarded as the father of a speculation that cannot be contained within the name of Independency, even at its broadest. If we were forced to adopt a modern designation for him, we should call him the father of all that, since his time, has figured, anywhere in Great Britain, or in the United States, or in the British Colonies, under the name of *Voluntaryism*. This involves a restriction on the one hand. Since his time, there has been an abundance of speculation in the world as to the true duties and limits of the power of a State even in civil matters; and the prevailing effect of these speculations has been to hand over more and more of the care of human well-being and human destinies, in everything whatsoever, to the liberty of individuals, the pressure of their competing desires, and their powers of voluntary association, and so to reduce the function of the magistrate or any power of corporate rule to a thing becoming small by degrees and beautifully less. Of late, this tendency, victorious already in many matters, has tried to assert itself in the question of Education. It has been maintained that there should be no attention on the part of the State to the education of the citizens, but that, in the matter of learning to read and write and of all farther learning or mental training, the individuals born into a community should be left to their hereditary chances, the discretion or kindness of those about them, and their own power of gradually finding out what they need, and buying it or begging it. Now with this direction of modern speculation the intentions of Roger Williams had nothing to do. He was a democrat in politics, and, as such, he might have gone on to new definitions of what, in secular matters, should be left to the individual, and what should be still regulated by the majority;

but what these definitions would have been must be left to inference from the records of his farther political life in Rhode Island. Respecting Schools and Universities he did, indeed, hold that they were not to be regarded as the nurseries of a clergy, the appendages of a Church, or the depositaries and supports of any religious creed. "For any depending of the Church of Christ on such schools," he wrote, "I find not a tittle in the Testament of Christ Jesus." He would certainly, therefore, have been for no expenditure of public money on the *religious* education of the young, and he would have been for the extraction of all theological teaching out of existing schools and universities. But he "honoured schools," he says, "for tongues and arts," and I have found no trace in him of a notion that State support of schools and universities for such secular learning is illegitimate. His *Voluntaryism*, so far as it was declared, or, I believe, intended, was wholly Voluntaryism in the matter of Church and Religion. In that sphere, however, his Voluntaryism was absolute, and went as far as anything calling itself Voluntaryism that has since been heard of in the English-speaking world.

Williams's *Bloody Tenent*, as I have said, was his parting gift to the English nation before his return to America. It was out in June or July 1644; and in September of the same year Williams, after a stay of about fifteen months in and near London, was on his way back to New England. He had succeeded in the immediate object of his mission. For, during his stay in England, the management of the Colonies, till then in the hands of Commissioners under the Crown, was transferred (Nov. 2, 1643) to a Parliamentary Commission of Lords and Commoners, at the head of which was the Earl of Warwick as Lord High Admiral, and among the members of which were Lord Saye and Sele, Pym, the younger Vane, Sir Arthur Haselrig, and Oliver Cromwell. Before such Commissioners, with Vane as his personal friend. Williams had had little difficulty in making out his case; and he had obtained from them a Patent, dated March 14, 1643-4, associating "the towns of Providence, Portsmouth, and Newport," into one

body-politic by the name of "the Incorporation of Providence Plantations in Narraganset Bay in New England." This Patent gave a *carte blanche* to the colonists to settle their own form of government by voluntary consent, or vote, among themselves; and, having it in his pocket, Williams might hope, on his return to America, to set up, in the polity of Rhode Island and its adjacencies, such an example of complete civil democracy combined with absolute religious individualism as the world had never yet seen. The *Bloody Tenent* might be left in England as an exposition of his theory in the sphere of Religion until this practical Transatlantic example of it should be ready! He had shrewdly taken care, however, to have the Patent in his pocket before issuing the *Bloody Tenent*. Had that book been out first, he might have had some difficulty in obtaining the Patent even from such Commissioners for the Colonies as he had to deal with. Possibly, however, they granted it with full knowledge of Williams, and were willing, through him, to try a bolder experiment in the American wilds than it was possible to promote or to announce in England. [Footnote: Palfrey's New England, I. 633-4, and II. 215; and Gammell's Life of Williams, 119, 120.]

While we have been so long with Roger Williams, his colleague in the Toleration heresy, John Goodwill, has been waiting. He was fifty-one years of age, or six or seven years older than Williams. Rather late in life, he had begun to find himself a much-abused man in London. For, though he had sided with the Parliamentarians zealously from the first, and had even, it appears, taken the Covenant, [Footnote: That Goodwin had taken the Covenant appears from words of his own in a tract of 1646 quoted in Fletcher's Hist, of Independency, IV. 47.] his theology was thought to be lax, [Footnote: The suspicion of Goodwin's Socinianism was as early as November 1613, when he got into trouble with the Assembly on that and other grounds (see Baillie's Letters, II. III, and Lightfoot's Notes, Nov. 8 and 9, 1643).] and the interpretation he was putting on the Covenant was not the common one. He thought that the oath to seek "reformation of

religion" and to "endeavour to bring the Church of God in the three kingdoms to the nearest conjunction and uniformity," did not necessarily imply acceptance of the Presbyterian system which the Assembly were bent upon bringing in. Therefore, when the Five Dissenting Brethren of the Assembly appealed to Parliament in their *Apologetical Narration*, they found a champion outside in Goodwin. His championship took the form of that answer to "A. S." (i.e. the Scotsman, Adam Steuart, author of the first printed attack on the *Apologetic Narration*) which we have mentioned as appearing with the brief title *M. S. to A. S.*, and again, in a second edition, with the fuller title *A Reply of Two of the Brethren to A. S., &c.; with A Plea for Liberty of Conscience, &c.* As the second title implies, Goodwin had associates in the work; but it was principally his, and the part on Toleration wholly his. So far as the tract concerns itself with the question between Presbytery and Congregationalism, Goodwin avows himself a Congregationalist. And yet he was not at one in all points with the five Assembly-men. "I know I am looked upon," he afterwards wrote, "by reason partly of my writings, partly of my practice, as a man very deeply engaged for the Independents' cause against Presbytery. But the truth is, I am neither so whole for the former, nor yet against the latter, as I am, I believe, generally voted in the thoughts of men to be." [Footnote: Quoted, from the Preface to Goodwin's *Anapologesiastes Anapologias*, by Fletcher, IV. 46.] This was written in 1616; but even in 1644 he fought so much for his own hand that the Independents of the Assembly may have but half liked his partnership. His Toleration doctrine, at all events, though uttered in their behalf, was too strong doctrine even for them. Hear what Baillie writes to his friend Spang, at Campvere, in Holland, just after the appearance of Goodwin's tract for the Independents: "*M.S. against A.S.*, is John Goodwin of Coleman Street: he names you expressly, and professes to censure the letter of Zeeland. He is a bitter enemy to Presbytery, and is openly for a full liberty of conscience of all sects, even Turks, Jews, Papists, and all to be

more openly tolerate than with you [*i.e.* than even in Holland]." [Footnote: Baillie, II. 180, 181. Goodwin's mention of Spang, referred to by Baillie, is as follows:— "There is a Scottish Church, of which one Spang is a very busy agent, at Trevere [Campvere]... whence the Letter [*i.e.* the Zeeland Letter in favour of Presbytery] came."] Baillie's representation of Goodwin's Toleration doctrine is fair enough. It is not so deep, so exceptionless, and so transcendently reasoned as Roger Williams's; and indeed there was none of the sap and mystic richness of nature in Goodwin that we find in Williams, but chiefly clear courage, and strong cool sense. For most practical purposes, however, Goodwin's Toleration was thorough. He was for tolerating not merely the orthodox Congregationalists and such more heterodox sects as might be thought respectable, but all religions, sects, and schisms whatsoever, if only the professors of them were otherwise peaceable in the State. Not, of course, that they were not to be reasoned with and proved false publicly; or that heretics in congregations were not to be admonished, and, if obdurate, excommunicated; or that a whole church tainted with a great heresy ought not to be put under a ban by all other churches, and communion with it renounced. All this was assumed in the theory of Church-Independency which was common to Goodwin and Williams. True, Williams, now that he had passed beyond the Baptists and saw no true Church anywhere on earth, must have begun to doubt also the efficacy and validity of even spiritual censures, as exercised by the so-called churches, to regard as a mere agency of troublesome moonshine that incessant watchfulness of each other's errors on which Independency relied, and so to luxuriate in a mood of large charity, sighing over all, and hoping more from prayer and longing and pious well-doing all round than from censures and disputations. To Goodwin, on the other hand, troubled with no such visionary ideas, and fully convinced that a very good model of a Church had been set up in Coleman Street, the right and efficacy of disputation against error, and of ministerial vigilance against error in

particular churches, seemed more important, or at least more worth insisting on in a public plea for Toleration. Williams and Goodwill did not differ theoretically, but only practically, over this item in the exposition of their doctrine. The sole difference, of theoretical import, was that Goodwin, in dwelling on the duty of disputation by Christian ministers against false religions and dangerous opinions in society round about them, and of vigilance against minor heresies in their own congregations, talked vaguely of a right on the part of the civil magistrate to admonish ministers in this respect should they be negligent or forgetful of their duty. This, as we know, would have grated on Williams. Perhaps, however, Goodwin, even here, was only throwing a sop to Cerberus. At all events, he comes out finally a thorough Tolerationist. Whatever minister or magistrate may do towards confuting and diminishing error, there is a point at which they must both stop. There is not to be a suppression of false religions, sects and schisms, by fining, imprisoning, disfranchising, banishment, death, or any civil punishment whatsoever; and, when it comes to that, they are all to be tolerated. [Footnote: Jackson's Life of Goodwin. pp. 110, 117; Hanbury's Memorials, II. 341- 365.]

We are now prepared to classify the various forms in which the Toleration Doctrine was urged on the English mind in the year 1644. There were three grades of the doctrine:—

I. *Absolute Liberty of Conscience, and No National Church, or State-interference with Religion, of any kind whatsoever.* This was, in fact, more than Toleration, and Toleration is hardly the fit name for it. The advocates of this idea were Roger Williams, perhaps the Baptists generally, also Burton in a certain way; but, above all, Roger Williams. He did not think there could be Liberty of Conscience, in the perfect and absolute sense, where there was a National Church, even if free dissent were allowed from that Church. For, by the establishment of a Church, he held, a substantial

worldly premium was put on certain religious beliefs, and an advantage conferred on a portion of the community at the expense of all; and to be compelled to pay for, or even to acknowledge politically, a Church which one did not approve, was in itself inconsistent with true Liberty of Conscience, whatever freedom of nonconformity might be left to individuals. Accordingly, if Roger Williams, at that crisis, had been a statesman of England, instead of a mere commissioner from an infant colony in America, his advice would have been in this strain:—"It is agreed that the Episcopal or Prelatic Church, called hitherto the Reformed Church of England, is no longer to exist. That is settled; and the question is, What Church Reformation shall there now be? My answer is sweeping and simple. Let there be no National Church, no Church of England, at all, of any kind or form whatsoever. Let England henceforth be a civil State only, in which Christianity shall take care of itself, and all forms of Christianity and all other religions shall have equal rights to protection by the police. Confiscate for the use of the State all the existing revenues of the defunct Church and its belongings, giving such compensation for life-interests therein as may seem reasonable; but create no new Church, nor stump of a Church, round which new interests may gather. Do not even implicate the State so far in the future of Religion as to indicate to the subjects any form of Church as esteemed the best, or any range of option among Churches as presumably the safest. Leave the formation and the sustentation of Christ's Church in the English realm, and everywhere else, entirely to the unseen power of the Spirit, and the free action of those whom the Spirit may make its instruments."—For nothing like this was the Long Parliament, or any other legislature in the world, then prepared; and Williams knew it. But he had faith in the future of his speculation. In America, whither he was to carry it back, he hoped to be able to exhibit it in practice on a small scale in the new colony he was founding; and there could be no harm, he thought, in leaving the leaven to ferment in the denser society of England.

II. *Unlimited Toleration round an Established National Church.* So we may express a form of Tolerationism in which there was a concurrence of persons, and perhaps of bodies of persons, who yet differed from each other in the motives for their concurrence. Williams, of course, accepted this form of Tolerationism, as next best to his own absolute Voluntaryism, Individualism, and universal Liberty of Conscience. "If there is to be in England a National or State Church of some kind (which I think wrong, and so wrong that I will take no part in the debate what kind of National Church would be best, whether a Prelatic, Presbyterian, or any other), at least, when you have set up such a Church, let there be a perfect toleration for all subjects of the realm round about that Church, no compulsion on any of them to belong to that Church, no pains and penalties for any profession of belief or disbelief, or any form of worship or no-worship, out of that Church." These are not Williams's own words, but they exactly express his meaning; and, in fact, he intended his *Bloody Tenent* to be a plea for toleration in this practical sense, if it should fail in winning people to his higher and more peculiar idea of real Liberty of Conscience. And a most eloquent plea it was. He insists again and again on the necessity that there should be no limits to the toleration of Religious Difference in a state. He argues expressly that not only orthodox or slightly heterodox dissenters should have the benefit of such toleration, but all kinds of dissentients without exception, Papists, Jews, Mohammedans, Pagans, or Infidels. He knew what a hard battle he was fighting. "I confess I have little hope," he said, "till those flames are over, that this discourse against the doctrine of persecution for cause of conscience should pass current, I say not amongst the wolves and lions, but even amongst the sheep of Christ themselves. Yet, *liberavi animam meam*: I have not hid within my breast my soul's belief." He trusted, doubtless, that his treatise might have some effect, if not for its highest purpose, at least as a practical plea for unlimited toleration round the new National Church of England that was to be. And here most of the

Baptists were in the same predicament with Williams. They would have preferred no National Church at all; but, as there was to be a National Church, they wanted the amplest toleration round it. Burton also was pretty nearly in the same category. He too doubted the lawfulness of a State Church of any kind, but was earnest that, if such must be established, it should not be coercive. He did not formally demand unlimited toleration, and indeed conceded something in words to the effect that in cases of "known heresy, or blasphemy, or idolatry," offenders would have to be "obnoxious to the Civil Power;" but I rather think that the concession was prudential, and that his heart did not go with it. I will retain him therefore among the Unlimited Tolerationists. Far outshining him in this class, however, was John Goodwin.—Well, but were the advocates of unlimited toleration in connexion with an Established Church exclusively persons who would have prevented the formation of such a Church if they could, or doubted its righteousness and propriety, and who only insisted on Toleration *with* such a Church as a practical necessity to which they were driven? Were there no theorists in that time who positively desired an Established Church on its own account, and for the general good of the community, but who had worked out the conclusion that such a Church might consist, and ought to consist, with universal Religious Toleration, or the freest liberty of Nonconformity and Dissent? In view of the fact that this is the theory of Establishments evolved by some of the best ecclesiastical spirits in our own later times, the question is interesting. My researches do not enable me to give a very precise answer to it applicable to the exact year 1644. If there were such theorists, however, they were, I should say, among those wiser and younger sons of the Episcopal Church of England who would fain have preserved that Episcopal Church, but had privately made up their minds that Laud's basis for that Church was untenable, and that a very different basis must be substituted. One thinks of Chillingworth, Hales, and the rest of that "Latitudinarian" brotherhood; one thinks of Jeremy Taylor; one thinks of

the candid Fuller; one thinks even of the Calvinistic Usher. Chillingworth had died at Chichester, Jan. 30, 1643-4, at the age of forty-one, an avowed Royalist, and indeed a Royalist prisoner-at-war, tended on his death-bed by Presbyterians. [Footnote: Wood's Ath. III. 93, 94; and Life of Chillingworth prefixed to the Oxford edition of his Works.] Whatever hardy cogitations had been in his mind, pointing to a revived Episcopal Church of England with an ample toleration within it and round about it, had gone prematurely to the grave. The others were still alive, also pronounced Royalists, and acting or suffering more or less on that side; and whatever thoughts they had in the direction under notice were irrelevant to their immediate duty and opportunities, and had to wait for utterance at a more convenient season. [Footnote: Yet there *had* been one recent utterance of Hales relating to the idea of Toleration. It was in the form of *A Tract concerning Schism and Schismatics*, which he had prepared in 1636, partly for the use of his friend Chillingworth then engaged on his "Religion of Protestants," but which, in deference to Laud's private objections and remonstrances, he had kept unpublished. In 1642, when Laud was in prison and the state of things wholly changed, the Tract was brought out at the Oxford University Press. It is vague in its conception and expression; but that it is decidedly in favour of toleration and free inquiry will appear from the opening sentences: "Heresy and Schism, as they are in common use, are two theological [Greek: Mosmos], or scarecrows, which they who uphold a party in religion use to fright away such as, making inquiry into it, are ready to relinquish and oppose it if it appear either erroneous or suspicious. For, as Plutarch reports of a painter who, having unskilfully painted a cock, chased away all cocks and hens, that so the imperfection of his art might not appear by comparison with nature, so men, willing for ends to admit of no fancy but their own, endeavour to hinder an inquiry into it, by way of comparison of somewhat with it, peradventure truer, that so the deformity of their own might not appear." Wood's Ath. III. 413, 414, and Tract itself

with letter to Laud, Vol. I. pp. 114-144 of "The Works of the ever memorable Mr. John Hales," Glasgow, 1765.] On the whole, however, I judge that any such thoughts in their minds (even in Jeremy Taylor's as yet) fell considerably short of the Unlimited Toleration advocated by Williams and John Goodwin, and, if they could have been ascertained and measured, would have referred their owners rather to the next category than to the present.

III. *A Limited Toleration round an Established National Church.* This would probably have sufficed the thoughtful Anglicans of whom we have just been speaking. Their ideal probably was a revived Episcopal Church of England, liberally constituted within itself, and with a toleration of all respectable forms of Dissent round about itself, but still with a right reserved for the Civil Power of preventing and punishing gross errors and schisms. We are more concerned, however, with another set of Limited Tolerationists, then much more conspicuous in England. They were those who had given up all thoughts of the retention of a Prelatic Establishment, and who indeed regarded the deliverance of England from such an Establishment as the noblest accomplished fact of the time. What they were anxious about was the nature of the new National Church, if any, that was to be substituted, and especially the degree of conformity to that Church that was to be required. The chief representatives of this state of feeling in its more moderate form were the Five Independent Divines of the Assembly, Messrs. Thomas Goodwin, Bridge, Nye, Simpson, and Burroughs. They were not, I think, distinctly adverse to a National Church on theoretical grounds, as Williams and Burton were; and probably what they would have liked best would have been a National Church on the Congregationalist principle, like that of New England. For, though Congregationalism and a National Establishment of Religion may seem radically a contradiction in terms, yet in fact the case had not been quite so in America. There may be a State Church without public endowments, or

rather there may be endowments and privileges that are not pecuniary. The New England Church, though consisting of a few scores of congregations, mutually independent, self-supporting, and scattered stragglingly over an extensive territory, was really a kind of State Church collectively, inasmuch as the State required, by rule or by custom, membership of some congregation as a qualification for suffrage and office, and also kept some watch and control over the congregations, so as to be sure that none were formed of a very heretical kind, and that none already formed lapsed into decided heresy. How had Mr. Cotton of Boston, the great light of the New England Church, expounded its principle in respect of the power of the civil magistrate in matters of Religion? "We readily grant you," he had written, "liberty of conscience is to be granted to men that fear God indeed, as knowing they will not persist in heresy or turbulent schism when they are convinced in conscience of the sinfulness thereof. But the question is whether an heretic, after once or twice admonition, and so after conviction, or any other scandalous and heinous offender, may be tolerated, either in the Church without excommunication, or in the Commonwealth without such punishment as may preserve others from dangerous and damnable infection." [Footnote: From Cotton's Answer to the old Tract of "Scriptures and Reasons against Persecution" (see *antè*, p. 114). The Answer is printed by Williams in his *Bloody Tenent*: See Hanserd Knollys Society edition (1848), p. 30.]

Clearly, with such a principle, and with all the particulars of practice which it implied, the Congregationalist Church of New England was, after all, a State Church, and a pretty strict State Church too. Now, it was probably such a National Congregationalist Church, but with an allowance of toleration somewhat larger than Cotton's, that the Five Independents of the Assembly would have liked to see set up in England. That, however, being plainly out of the question, and the whole current of dominant opinion in Parliament and the Assembly being towards a Presbyterian

settlement, what remained for the Five? In the first place, to delay the Presbyterian settlement as long as they could, and to criticise its programme at every stage so as to liberalize its provisions as much as possible; in the second place, to put in a plea for Toleration for Dissent under the settlement when it should be enacted. They had performed, and were performing, both duties. They were fighting the propositions of strict Presbytery inch by inch in the Assembly, if not with success, at least so as to impede progress; and in their *Apologetical Narration* (Jan. 1643-4) they had lodged with Parliament and the country a demand for Toleration under the coming Presbytery. What they had thus expressed in print they had continued to express in speech and in every other possible way. They were, in a certain sense, the most marked Tolerationists of the time; Toleration was identified with them. And yet it was but a limited Toleration, a very limited Toleration, that they demanded. Indulgence for themselves in Congregationalist practices after Presbytery should be established, and indulgence for other respectable sects and persons in "lesser differences:" that was all. Nothing like Williams's or John Goodwill's toleration: no liberty, or at least none avowedly, for such glaring heresies as Antinomianism, Socinianism, and Arianism, not to mention open Infidelity. Here, I believe, they represented the mass of the ordinary Independents. Whatever more a few strong spirits among the Independents, and especially among the lay Independents, desired, the mass of them were content for the present to be Limited Tolerationists.

Such were the three forms of the Toleration Doctrine in England in 1644. They were of unequal strengths and confusedly mixed, but constituted together a powerful and growing force of opinion. And what was the opposition? ANTI-TOLERATION, OR ABSOLUTE AND ENTIRE CONFORMITY OF THE WHOLE NATION TO THE ONE ESTABLISHED CHURCH: this was the category of the opposition.

In this category, now that Prelacy was done with, and it was certain that the new National Church was to be on the Presbyterian model, the Presbyterians had succeeded the Laudians. As a body, the Presbyterians of 1644 and subsequent years were absolute Anti-Tolerationists. The proofs are so abundant, collectively they make such an ocean, that it passes comprehension how the contrary could ever have been asserted. From the first appearance of the Presbyterians in force after the opening of the Long Parliament, it was their anxiety to beat down the rising idea of Toleration; and, after the meeting of the Westminster Assembly, and the publication of the *Apologetical Narration* of the Independents, the one aim of the Presbyterians was to tie Toleration round the neck of Independency, stuff the two struggling monsters into one sack, and sink them to the bottom of the sea. In all the Presbyterian literature of the time,—Baillie's Letters, Rutherford's and Gillespie's Tracts, the pamphlets of English Presbyterian Divines in the Assembly, the pamphlets of Prynne, Bastwick, and other miscellaneous Presbyterian controversialists out of the Assembly,—this antipathy to Toleration, limited or unlimited, this desire to pinion Independency and Toleration together in one common death, appears overwhelmingly. Out of scores of such Presbyterian manifestoes, let us select one, interesting to us for certain reasons apart.

Of all the Divines in London, not members of the Assembly, none had come to be better known for his Presbyterian acrimony than the veteran Mr. Thomas Edwards, of whose maiden pamphlet of 1641, called *Reasons against the Independent Government*, with Mrs. Chidley's Reply to the same, we have had occasion to take notice (*antè*, p. 110). The spirited verbosity, as we called it, of that pamphlet of Edwards had procured him a reputation among the Presbyterians, which he felt himself bound to justify by farther efforts. The appearance of the *Apologetical Narration* of the Five Independents in Jan. 1643-4 gave him a famous opportunity. Various answers were at once or quickly published to that Independent manifesto—

not only that by A. S. or Adam Steuart (*antè*, p. 25), but various others. When it became known, however, that Mr. Edwards also was preparing an Answer, it was expected to beat them all. There was a flutter of anticipation of it among the Presbyterians; but it was rather slow in coming. "There is a piece of 26 sheets, of Mr. Edwards, against the Apologetick Narration, near printed, which will paint that faction [the Independents] in clearer colours than yet they have appeared," writes Baillie, June 7, 1644; in a later letter, July 5, he says it is expected "within two or three days," but "excrested to near 40 sheets;" and it is not till Aug. 7 that he speaks of it as fairly out: "Mr. Edwards has written a splendid confutation of all the Independents' Apology." [Footnote: Baillie, II. 190, 201-2, and 215.] In fact, it appeared in the end of July, just at the time when the Assembly adjourned for their fortnight's vacation, and almost contemporaneously with John Goodwin's *M. S. to A. S.* and Williams's *Bloody Tenent*. Baillie's measure of "sheets" must have been different from ours, or he had been under some mistake; for the treatise, though long enough, consisted but of 367 small quarto pages, with this title: "*Antapologia: or, A Full Answer to the Apologetical Narration of Mr. Goodwin, Mr. Nye, Mr. Simpson, Mr. Burroughs, Mr. Bridge, members of the Assembly of Divines. Wherein many of the controversies of these times are handled: viz. [&c.]. Humbly also submitted to the Honourable Houses of Parliament. By Thomas Edwards, Minister of the Gospel.*" [Footnote: Hanbury's Memorials, II. 366. Mr. Hanbury gives a summary of the *Antapologia* with extracts (366- 385); but I have before me the book itself in a reprint, of 1646, "by T.R. and E.M. for Ralph Smith, at the signe of the Bible in Cornhill neer the Royall Exchange." It consists of 259 pages of text, besides introductory epistle, and table of contents at the end.]

It was a most remarkable treatise, and ran through London at once. For the style, though slovenly, was fluent and popular, and Edwards, having plenty of time on his hands, and having a taste for personalities, had made

minute inquiries into the antecedents of the Five Independents in Holland and in England, and had interwoven the results of these inquiries with his arguments against Independency itself. The Five, he tells us in a preliminary epistle, were among his personal acquaintances. "I can truly speak it," he says, "that this present *Antapologia* is so far from being written out of any malice or ill-will to the Apologists that I love their persons and value them as brethren, yea some of them above brethren; and, besides that love I bear to them as saints, I have a personal love, and a particular love of friendship for some of them; and I can truly speak it, that I writ not this book, nor any part of it, out of any personal quarrel, old grudge, or former difference (for to this day there never was any such difference or unkindness passed between us); but I have writ it with much sorrow, unwillingness, and some kind of conflict." This explanation was certainly necessary; for Mr. Edwards does not spare his friends. He tells all he has found out about them; he quotes their conversations with himself; he gives them the lie direct, and appeals to their consciences whether he is not right in doing so. *They* martyrs! *they* poor exiles in Holland, and now whining to Parliament that they would have to go into exile again if Presbyterianism were established without a Toleration! Why, they had been in clover in Holland; they had been living there "in safety, plenty, pomp, and ease," leaving the genuine Puritans at home to fight it out with Prelacy; and, after the battle was won, they had slunk back to claim the rewards they had not earned, to become pets and "grandees" in English society, to secure good appointments and assume leading parts, and to be elected members of the venerable Westminster Assembly! They had not even had the courage to go to New England, though some of them had talked of doing so! And then their prate of this emigration to New England, which they had themselves declined, as the greatest undertaking for the sake of pure Religion, next to Abraham's migration out of his own country, that the world had ever seen! Why, the emigration to New England was no such great affair after all!

There had been mixed motives in it; all New England would not make a twentieth part of London; it had but two or three Divines in it worth naming in the same breath with the worthies of Old England, and was on the whole but a kind of outlandish mess; the "Reformation in Church-government and worship" then going on in Old England would be a wonder "to all generations to come far beyond that of New England!" But in Holland, where the cowardly Apologists had preferred to stay, what had they been doing? Quarrelling among themselves, going into all kinds of conceits, anointing people with oil, and the like; respecting all which Edwards had obtained from Rotterdam and Arnheim a budget of information! Then that lie of the Apologists, that they had, since their return to England, been careful not to press their peculiar Congregationalist opinions, or endeavour to make a party, but had waited in patience to see what course affairs would take! Not press their peculiar opinions—not endeavour to make a party! Why, Mr. Edwards could aver (and cite dates, places, and witnesses to prove it) that they had been doing nothing else, since they came to England, than press their peculiar opinions and endeavour to make a party! "Suffer me to deal plainly with you: I am persuaded that, setting aside the Jesuits' acting for themselves and way, you Five have acted for yourselves and way, both by yourselves and by your instruments, both upon the stage and behind the curtain, considering circumstances and laying all things together, more than any five men have done in so short a time this sixty years. And, if it be not so, whence have come all these swarms and troops of Independents in Ministry, Armies, City, Country, Gentry, and amongst the Common People of all sorts, men, women, servants, children?"

So, on and on, Edwards goes, decidedly more readable than most pamphleteers of the time, because he writes with some spirit, and mixes a continual pepper of personalities with his arguments against the tenets of the Independents. With these arguments we shall not meddle. Their purpose was to hold up "a true glass to behold the faces of Presbytery and

Independency in, with the beauty, order, strength, of the one, and the deformity, disorder, and weakness of the other." In other words, the pamphlet is a digest of everything that could be said against Independency and in favour of Presbyterianism. But the grand tenet of Presbyterianism in which Mr. Edwards revels with most delight, and which he exhibits as the distinguishing honour of that system, and its fitness beyond any other for grappling with the impiety of men in general and the disorderliness of that age in particular, is its uncompromising Anti- Toleration. Throughout the whole pamphlet there runs a vein of declamation to this effect; and at the close some twenty pages are expressly devoted to the subject, in connexion with that claim for a Limited Toleration which the Apologists had advanced. Eight Reasons are stated and expounded why there should not be even this Limited Toleration, why even Congregationalist opinions and practice should not be tolerated in England. It would be against the rule of Scripture as to the duty of the civil magistrate; it would be against the Solemn League and Covenant; it would be against the very nature of a national Reformation, for "a Reformation, and a Toleration are diametrically opposite;" it would be "against the judgment of the greatest lights in the Church, both ancient and modern;" it would be an invitation and temptation to error and "an occasion of many falling who otherwise never would;" &c. &c. Wherever Presbytery and strict Anti-Toleration had prevailed since the Reformation had there not been a marvellous orderliness and freedom from error and heresy? All over the map of Europe would it not be found that error and heresy had been rank precisely in proportion to the deviation of a country from Presbytery or to the relaxation of its grasp where it was nominally professed? What, in particular, had made Scotland the country it was, pure in faith, united in action, and with a Church "terrible as an army with banners"? What but Presbytery and Anti-Toleration? O then let Presbytery and Anti-Toleration reign in England as well! And, while they were proceeding to the great work of establishing Presbytery, let them

beware of such an inconsistency as granting the least promise beforehand of a Toleration! On this point Mr. Edwards addresses the Parliament in his own name, telling them that Toleration is the device of the Devil. "I humbly beseech the Parliament," he says, "seriously to consider the depths of Satan in this design of a Toleration; how this is now his last plot and design, and by it would undermine and frustrate the whole work of Reformation intended. 'Tis his masterpiece for England; and, for effecting it, he comes and moves, not in Prelates and Bishops, not in furious Anabaptists, &c., but in holy men, excellent preachers; moderate and fair men, not for a toleration of heresies and gross opinions, but an 'allowance of a latitude to some lesser differences with peaceableness.' This is *Candidus ille Diabolus* [that White Devil], as Luther speaks, and *meridianus Diabolus* [mid-day Devil], as Johannes Gersonius and Beza express it, coming under the merits of much suffering and well-deserving, clad in the white garments of innocence and holiness. In a word, could the Devil effect a Toleration, he would think he had gained well by the Reformation and made a good exchange of the Hierarchy to have a Toleration for it. I am confident of it, upon serious thoughts, and long searching into this point of the evils and mischief of a Toleration, that, if the Devil had his choice whether the Hierarchy, Ceremonies, and Liturgy should be established in this kingdom, or a Toleration granted, he would choose and prefer a Toleration before them."

Did Mr. Thomas Edwards in all this represent the whole body of the Presbyterians of his time? I am afraid he did. In *his* very sense, with the same vehemency, and to the same extent, they were all Anti-Tolerationists.

Was there no exception? Had no one Presbyterian of that day worked out, in the interest of Presbytery, a conclusion corresponding to that which we have seen reason to think some of the wiser Anglicans then within the Royalist lines were quietly working out in the interest of Episcopacy, in

case Episcopacy should ever again have a chance? Was no one Presbyterian prepared to come forth with the proposal of a Toleration in England, either limited or unlimited, round an Established National Church on the Presbyterian model? That there may not have been some such person among those Erastian laymen who favoured Presbytery on the whole for general and political reasons, one would not assert positively. None such, however, is distinctly in historical view; and it is certain that among the real or dominant Presbyterians, the *jure divino* Presbyterians, English or Scottish, there was no one upon whom the idea in question had clearly dawned or who dared to divulge it. Perhaps it was the belief in the absolute *jus divinum* of Presbytery that made the idea impossible to them. Yet why should it have been impossible in consistency even with that belief? It may be *jure divino* that the square on the hypotenuse of a right-angled triangle is equal to the sum of the squares on the sides, that he is a blockhead who believes otherwise, and that a permanent apparatus should be set up in every land for teaching this mathematical faith; and yet it may be equally *jure divino* that no one shall be compelled to avail himself of that apparatus, or be punished for doubting or denying the proposition. But the Presbyterians of 1644 did not so refine or argue. They stood stoutly to the necessary identity of Presbyterianism and absolute Anti-Toleration. And so Presbyterianism missed the most magnificent opportunity she has had in her history. Had her offer to England been "Presbytery with a Toleration," who knows what a different shaping subsequent events might have assumed? What if Henderson, in whose natural disposition one sees more of room and aptitude for the idea than in that of any other Presbyterian leader, had actually become possessed with the idea and had proclaimed it? Would he have carried the mass of the Presbyterians with him? or would they have deposed him from the leadership? It is useless to inquire. The idea never occurred even to Henderson; and that it did not occur to him constituted his

unfitness for leadership, out of Scotland, in the complex crisis which had at last arrived, and was the one weakness of his career near its close.

MULTIPLICATION OF HERESIES: SYNOPSIS OF ENGLISH SECTS AND SECTARIES IN 1644.

It was all very well, the Presbyterians argued, to propound the principle of Toleration in the abstract. Would its advocates be so good as to think of its operation in the concrete? The society of England was no longer composed merely of the traditional PAPISTS, PRELATISTS, PRESBYTERIANS, and CONGREGATIONALISTS or ORTHODOX INDEPENDENTS. Beyond these last, though sheltering themselves under the unfortunate principle of Church- Independency, there was now a vast chaos of SECTS and SECTARIES, some of them maintaining the most dangerous and damnable heresies and blasphemies! Would the Tolerationists, and especially the Limited Tolerationists, take a survey of this chaos, and consider how their principle of Toleration would work when applied to *its* ghastly bulk and variety?

This matter, of the extraordinary multiplication of Sects and Heresies in England, had been in constant public discussion since the opening of the Long Parliament. It had figured constantly in messages and declarations of the King; who had first charged the fact of the sudden appearance and boldness of the Sects and Sectaries to the abrogation of his Kingly prerogative and Episcopal government by the Parliament, and had then attributed the origin of the Civil War to the lawless machinations of these same Sects and Sectaries. It had figured no less, though with very different interpretations and comments, in the proceedings and appeals of the Parliament. Now, however, the SECTS and SECTARIES had become the objects of a more purely scientific curiosity. Without a survey and study of *them* as well as of the PAPISTS, the PRELATISTS, the

PRESBYTERIANS, and the ORTHODOX INDEPENDENTS, there could, it was argued, be no complete Natural History of Religious Opinion in England in the year 1644. The Presbyterians, for reasons of their own, were earnest for such a survey and study; and they recommended it ironically to the Orthodox Independents in their character of Tolerationists. Not the less did the Presbyterians, with some Prelatists among them, undertake it themselves.- -Coming after these authorities, and availing myself of their inquiries, but with other authorities to aid me, and as much of fresh investigation, and of criticism of my authorities, as I can add, I shall attempt what, even for our own forgetful and self-engrossed time, ought to be a not uninteresting portion of the history of bygone English opinion.

This is a case in which the authorities should be mentioned formally at the outset. They are numerous. They include the Lords and Commons Journals, Lightfoot's Notes of the Assembly, Baillie's Letters, Pamphlets of the time *passim*, and even the Registers of the Stationers' Company. Certain particular publications, however (all of the year 1645 or the years immediately following), are of pre-eminent interest, as being attempts at a more or less complete survey of the huge medley or tumult of opinions on religious subjects that had by that time arisen in English society, with some classification of its elements.

The reader will remember Dr. DANIEL FEATLEY, Rector of Lambeth and Acton, the veteran Calvinist who had persisted in attending the Assembly in spite of his disapproval of the Covenant and his adhesion to the theory of a modified Episcopacy, but who had at length (Sept. 30, 1643) been ejected for misdemeanour. His misdemeanour had consisted in maintaining a correspondence with Usher, reflecting on the Assembly and the Parliament, and divulging secrets in the King's interest. For this he had not only been ejected from the Assembly by the Commons, and sequestered from his two livings, but also committed to custody in "the Lord Petre's

house in Aldersgate Street," then used by Parliament as a prison for such culprits. To beguile his leisure here, he had occupied himself in revising his notes of a dispute he had held, in Oct. 1642, with a Conventicle of Anabaptists in Southwark, where he had knocked over a certain "Scotchman" and one or two other speakers for the Conventicle. But this revision of his notes of that debate had suggested various extensions and additions; so that, in fact, he had written in prison a complete exposure of Anabaptism. It was ready in January 1644-5, and was published with this title: "*The Dippers Dipt; or, The Anabaptists Duck'd and Plung'd over Head and Ears,*" &c. It is a virulent tractate of about 186 pages, reciting the extravagances and enormities attributed to the German Anabaptists, and trying to involve the English Baptists in the odium of such an original, but containing also notices of the English Baptists themselves, and their varieties and ramifications. It became at once popular, and passed through several editions. [Footnote: Commons Journals, Sept. 30 and Oct 3, 1613; Wood's Athenæ, III. 156 *et seq.*; and Featley's Epistle Dedicatory to his treatise. The copy of the treatise before me at present is one of the sixth edition, published in 1651, six years after the authors death. It contains a portrait of Featley by W. Marshall, and, among other illustrations, a coarse *ad captandum* print by the same engraver, exhibiting the "dipping" of men and women naked together in a river.]

A well-known personage in London, of humbler pretensions than Featley, was a certain EPHRAIM PAGET (or PAGIT), commonly called "Old Father Ephraim," who had been parson of the church of St. Edmund in Lombard Street since 1601, and might therefore have seen, and been seen by, Shakespeare. Besides other trifles, he had published, in 1635, a book called "*Christianographia*" or a descriptive enumeration of the various sorts of Christians in the world out of the pale of the Roman Catholic Church. Perhaps because he had thus acquired a fondness for the statistics of religious denominations, it occurred to him to write, by way of sequel, a

"Heresiography; or, A Description of the Hereticks and Sectaries of these latter times." It was published in 1645, soon after Featley's book, from which it borrows hints and phrases. There is an Epistle Dedicatory to the Lord Mayor and Aldermen of the City of London, very senile in its syntax and punctuation, and containing this touching appeal: "I have lived among you almost a jubilee, and seen your great care and provision to keep the city free from infection, in the shutting up the sick and in carrying them to your pest-houses, in setting warders to keep the whole from the sick, in making of fires and perfuming the streets, in resorting to your churches, in pouring out your prayers to Almighty God, with fasting and alms, to be propitious to you. The plague of Heresy is greater, and you are now in more danger than when you buried five thousand a week." Then, after an Epistle to the Reader, signed "Old Ephraim Pagit," there follows the body of the treatise in about 160 pages. The Anabaptists are taken first, and occupy 55 pages; but a great many other sects are subsequently described, some in a few pages, some in a single paragraph. There is an engraved title-page to the volume, containing small caricatures of six of the chief sorts of Sectaries—Anabaptism being represented by one plump naked fellow dipping another, much plumper, who is reluctantly stooping down on all fours. The book, like Featley's, seems to have sold rapidly. In the third edition of it, however, published in 1646, there is a postscript in which the poor old man tells us that it had cost him much trouble. The sectaries among his own parishioners had quarrelled with him on account of it, and refused to pay him his tithes; nay, as he walked in the streets, he was hooted at and reviled, and somebody had actually affirmed "Doctor Featley's devil to be transmigrated into Old Ephraim Paget." This seems to have cut him to the quick, though he avows his sense of inferiority in learning to the great Doctor. In short, we can see Father Ephraim as a good old silly body, of whom people made fun. [Footnote: Wood's *Athenæ*, III. 210 *et seq.*; and Paget's own treatise.]

Another writer against the Sectaries was the inexhaustible WILLIAM PRYNNE,

That grand scripturient paper-spiller,
That endless, needless, margin-filler,
So strangely tossed from post to pillar.

There was, indeed, something preternatural in the persistent vitality and industry of this man. Only forty years of age when the Long Parliament released him from his second imprisonment and restored him to society, a ghoul-like creature with a scarred and mutilated face, hiding the loss of his twice-cropped ears under a woollen cowl or nightcap, and mostly sitting alone among his books and papers in his chamber in Lincoln's Inn, taking no regular meals, but occasionally munching bread and refreshing himself with ale, he had at once resumed his polemical habits and mixed himself up as a pamphleteer with all that was going on. As many as thirty fresh publications, to be added to the two-and-twenty or thereabouts already out in his name, had come from his pen between 1640 and 1645, bringing him through about one-fourth part of the series of some 200 books and pamphlets that were to form the long ink-track of his total life. In these recent pamphlets of his he had appeared as a strenuous Parliamentary Presbyterian, an advocate of the Scottish Presbyterianism which was being urged in the Assembly, but with more of Erastianism in his views than might have pleased most of his fellow-Presbyterians. No man more violent against Independency of all sorts, and the idea of Toleration. And so, after various other pamphlets against Independency in general, and this or that Independent in particular, there came from him, in July 1645, [Footnote: Date from my notes from Stationer's Registers.] a quarto of about 50 pages, with this title: "*A Fresh Discovery of some Prodigious new Wandering-Blazing-Stars and Firebrands, styling themselves New Lights, firing our Church and State into new Combustions.*" The pamphlet was dedicated to

Parliament; and its purpose was to exhibit all the monstrous things that lay in the bosom of what called itself Independency. Hence "Independency" is used by Prynne as a common name for all the varieties of Sectarians as well as for the Congregationalists proper; and his plan is to shock the public and rouse Parliament to action, by giving a collection of specimens, culled from pamphlets of the day, of the "scurrilous, scandalous, and seditious" views put forth, with impunity hitherto, by some of the "Anabaptistical Independent Sectaries and new-lighted Firebrands," Accordingly his tract contains a jumble of the most wild and extravagant sayings against the Assembly, the Scots, and the Parliament itself, that Prynne could pick out from the contemporary pamphlets of the Anabaptists and other Sectaries. [Footnote: Wood's *Athenæ*, III. 844 *et seq.*; Aubrey's *Lives* (for a notice of Prynne's habits); and the *Fresh Discovery* itself. The edition before me is the second, dated 1646, and swollen by added matter at the end to over 80 pages.]

Much cleverer and more spirited than Featley, old Ephraim Paget, or Prynne, as a describer and opponent of the Sectaries, was our friend, Mr. Thomas Edwards, of the *Antapologia* (*antè*, pp. 130-135). That "splendid confutation" of Independency and Tolerationism had so increased Mr. Edwards's fame that the Presbyterians of London had erected a weekly lectureship for him at Christ Church in the heart of the City, that he might "handle these questions and nothing else before all that would come to hear." Thus encouraged, he ranged beyond Independency proper, and employed himself in collecting information respecting the English Sectaries generally; and in about eighteen months, or before the end of 1645, he had ready a treatise (his third in order) entitled "*Gangræna: or, a Catalogue and Discovery of many of the Errors, Heresies, Blasphemies, and Pernicious Practices of the Sectaries of this time.*" This treatise, consisting of more than 60 pages, he dedicated to Parliament, in an Epistle of twelve pages, hinting at the remissness of Parliament in its dealings with the Sectaries up

to that time, and reminding it of its duty. There is all Edwards's fluency of language in the pamphlet, and some real literary talent; so that not only was Edwards's *Gangræna* a popular Presbyterian book at the time, but it is still valued by bibliographers and antiquarians. As it has come down to us, however, it is not a pamphlet merely, but a concretion of pamphlets. For it was enlarged by the author, in the course of 1646, to eight or nine times its original bulk, by the addition of a Second Part and then a Third Part, containing "New and Farther Discoveries" of the Sectaries, and their opinions and practices. This was because Mr. Edwards had solicited fresh information from all quarters, and it was poured in upon him superabundantly by Presbyterian correspondents. The First Part, as the skimming of the cream by Mr. Edwards himself, is perhaps the richest essentially. The others consist mainly of verifications and additional details, rumours, and anecdotes. Altogether, the Three Parts of Edwards's *Gangræna* are a curious Presbyterian repertory of facts and scandals respecting the English Independents and Sectaries in and shortly after the year of Marston Moor. The impression which they leave of Mr. Edwards personally is that he was a fluent, rancorous, indefatigable, inquisitorial, and, on the whole, nasty, kind of Christian. [Footnote: Wood's *Fasti*, I. 413; Baillie's *Letters*, II. 180, 193, 201, 215, 251: and *Gangræna* itself—the copy of which before me consists of the third edition of Parts I. and II. (1646) and the first edition of Part III, (1646) bound in two volumes.]

With Featley, Paget, Prynne, and Edwards, as authorities full of detail, though also full of prejudice on the subject of the English Sects and Sectaries of 1644, we may finally name Baillie. We name him now, however, not on account of his "Letters," but on account of two publications of his dealing expressly with this subject. One of these, published in November 1645, in a quarto of 252 pages, was his "*Dissuasive from the Errours of the Time: wherein the Tenets of the Principall Sects, especially of the Independents, are drawn together in one Map, for the most part in the*

words of their own Authors;" the other, published in December 1646, in about 180 pages quarto, and intended as a Second Part of the "Dissuasive," was entitled "*Anabaptism, the True Fountain of Independency, Brownisme, Antinomy, &c.*" In both publications, but especially in the former, we see Baillie's characteristic merits. He writes, of course, polemically and with strong Presbyterian prejudice; but in clearness of arrangement and statement he is greatly superior to either the senile Paget, or the fluent and credulous Edwards. His *Dissuasive*, indeed, is, in its way, a really instructive book.[Footnote: Both the *Dissuasive* and its continuation were published in London (by "Samuel Gellebrand at the Brazen Serpent in Paul's Churchyard"), and dedicated to "The Right Honourable the Earle of Lauderdale, Lord Metellane"—i.e. to Baillie's Scottish colleague in the Assembly, Lord Maitland, then become Earl of Lauderdale.]

The information from these and other sources may be summed up, from the

Presbyterian point of view, under two headings, as follows:—

I. MISCELLANEOUS BLASPHEMIES AND ENTHUSIASMS.—The very air of England, it seemed, was full of such. There had broken loose a spirit of inquiry, a spirit of profanity and scoffing, and a spirit of religious ecstasy and dreaming; and the three spirits together were producing a perfect Babel of strange sayings, fancies, and speculations. From a catalogue of no fewer than 176 miscellaneous "errors, heresies, and blasphemies" collected by Edwards, and which he professes to give as nearly as possible in the very words in which they had been broached by their authors in print, or in public or private discourse, take the following samples:—

"That the Scriptures are a dead letter, and no more to be credited than the writings of men."

"That the holy writings and sayings of Moses and the Prophets, of Christ and his Apostles, and the proper names, persons, and things contained therein, are allegories."

"That the Scriptures of the Old Testament do not concern nor bind Christians" (in which belief, says Edwards, some Sectaries had ceased to read the Old Testament, or to bind it with the New).

"That right Reason is the rule of Faith."

"That God is the author not of those actions alone in and with which sin is, but of the very pravity, ataxy, atomy, irregularity, and sinfulness itself, which is in them."

"That the magistrate may not punish for blasphemies, nor for denying the Scriptures, nor For denying that there is a God."

"That the soul dies with the body, and all things shall have an end, but God only."

"That there is but one Person in the Divine Nature."

"That Jesus Christ is not very God: no otherwise may he be called the Son of God but as he was man."

"That we did look for great matters from one crucified at Jerusalem 1600 years ago, but that does us no good; it must be a Christ formed in us: Christ came into the world to live 32 years, and do nothing else that he [Thomas Webb, of London, ætat. 20] knew."

"That the Heathen who never heard of Christ by the Word have the Gospel, for every creature, as the sun, moon, and stars, preach the Gospel to men."

"That Christ shall come and live again upon the earth, and for a thousand years reign visibly as an earthly monarch over all the world."

"That the least truth is of more worth than Jesus Christ himself."

"That the Spirit of God dwells not nor works in any; it is but our conceits and mistakes to think so; 'tis no spirit that works but our own."

"That a man baptized with the Holy Ghost knows all things even as God knows all things; which point is a deep mystery and great ocean, where there is no casting anchor, nor sounding the bottom."

"That, if a man by the Spirit knew himself to be in the state of grace, though he did commit murder or drunkenness, God did see no sin in him."

"That the guilt of Adam's sin is imputed to no man."

"That the moral law is of no use at all to believers."

"That there ought to be no fasting days under the Gospel."

"That the soul of man is mortal as the soul of a beast, and dies with the body."

"That Heaven is empty of the Saints till the resurrection of the dead."

"That there is no resurrection at all of the bodies of men after this life, nor no Heaven nor Hell after this life, nor no Devils."

"That there shall be in the last day a resurrection from the dead of all the brute creatures, all beasts and birds that ever lived upon the earth."

"That many Christians in those days have more knowledge than the Apostles."

"That there ought to be in these times no making or building of churches, nor use of church-ordinances; but waiting for a church, being in a readiness upon all occasions to take knowledge of any passenger, of any opinion or tenet whatsoever: the Saints, as pilgrims, do wander as in a temple of smoke, not able to find Religion, and therefore should not plant it by gathering or building a pretended supposed House."

"That, in points of Religion, even in the Articles of Faith and principles of Religion, there's nothing certainly to be believed and built on; only that all men ought to have liberty of conscience and liberty of prophesying."

"That 'tis as lawful to baptize a cat, or a dog, or a chicken, as to baptize the infants of believers."

"That the calling and making of ministers are not *jure divino*, but a minister comes to be so as a merchant, bookseller, carter, and such like."

"That all settled certain maintenance for ministers of the Gospel is unlawful."

"That all days are alike to Christians, and they are bound no more to the observation of the Lord's day, or first day of the week, than of any other."

"That 'tis lawful for women to preach; and why should they not, having gifts as well as men?" ("And some of them," adds Edwards, "do actually preach, having great resort to them.")

"That there is no need of humane learning, nor of reading authors, for preachers; but all books and learning must go down: it comes from the want of the Spirit that men writ such great volumes."

"That 'tis unlawful to preach at all, sent or not sent, but only thus: a man may preach as a waiting disciple, *i.e.* Christians may not preach in a way of

positive asserting and declaring things, but all they may do is to confer, reason together, and dispute out things."

"That all singing of Psalms is unlawful."

"That the gift of miracles is not ceased in these times."

"That all the earth is the Saints', and there ought to be a community of goods."

"That 'tis unlawful to fight at all, or to kill any man, yea to kill any of the creatures for our use, as a chicken, or on any other occasion." [Footnote: *Gangræna*, Part I. pp. 15-31.]

From this little enumeration it will be seen that we have not, even in the nineteenth century, advanced so far as perhaps we had thought beyond English notions of the seventeenth. But there must be added a recollection of the scurrilities against the Covenant, the Assembly as a body, its chief Presbyterian members, and the whole Scottish nation and its agents. These had not reached their height at the time with which we are at present concerned (Aug. 1644); so that the richest specimens of them have to be postponed. But already there were popular jokes about "Jack Presbyter" the "black coats" of the Assembly, and their four shillings a day each for doing what nobody wanted; and already a very rude phrase was in circulation, expressing the growing feeling among the English Independents and Sectaries that England might have managed her Reformation better without the aid of the Scots and their Covenant. Had England come to such a pass, it was asked, that it was necessary to set up a Synod in her, to be "guided by the Holy Ghost sent in a cloak-bag from Scotland"? The author of this profanity, according to Prynne, was a pamphleteer named Henry Robinson. It was, in fact, an old joke, originally applied to one of the Councils of the

Catholic Church; and Robinson had stolen it. [Footnote: Prynne's *Fresh Discovery*, p.27 and p.9; and *Gangræna*, Part I. p.32]

II. RECOGNISED SECTS AND THEIR LEADERS.—In the general welter or anarchy of opinion there were, of course, vortices round particular centres, forming sects that either had, or might receive, definite names. Edwards, when systematizing his chaos of miscellaneous errors and blasphemies, apportions them among sixteen recognisable sorts of Sectaries; but old Ephraim Paget, who had preceded Edwards had been much more hazy. By jumbling the English Sectaries with all he could recollect of the German Sectaries of the Reformation and all he could hear of the Sects of New England, he had made his list of Sects and subdivisions of Sects mount up to two or three scores. Using Edwards and old Ephraim, with hints from Featley, Prynne, and Baillie, but trying to ascertain the facts for ourselves, we venture on the following synoptical view of English Sects and Sectaries in 1644-5:—

BAPTISTS, OR ANABAPTISTS:—These were by far the most numerous of the Sectaries. Their enemies (Featley, Paget, Edwards, Baillie, &c.) were fond of tracing them to the anarchical German Anabaptists of the Reformation; but they themselves claimed a higher origin. They maintained, as Baptists do still, that in the primitive or Apostolic Church the only baptism practised or heard of was that of adult believers, and that the form of the rite for such was immersion in water; and they maintained farther that the Baptism of Infants was one of those corruptions of Christianity against which there had been a continued protest by pure and forward spirits in different countries, in ages prior to Luther's Reformation, including some of the English Wycliffites, although the protest may have been repeated in a louder manner, and with wild admixtures, by the German Anabaptists who gave Luther so much trouble. Without going back, however, upon the Wycliffites, or even on the Anabaptists that were

scattered through England in the reigns of Henry VIII., Edward VI., Mary, and Elizabeth, one may date the Baptists as we have now to do with them from the reign of James.—The first London congregation of *General Baptists*, or Baptists who favoured an Arminian theology, had been formed, as we have seen (Vol. II. p. 544), in 1611 out of the wrecks of John Smyth's English congregation of Amsterdam or Leyden, brought back into their native land by Smyth's successor Thomas Helwisse, assisted by John Murton. Although there are traces of this congregation for several years after that date, it seems to have melted away, or to have been crushed into extinction by the persecution of its members individually; so that the Baptists of whom we hear as existing in London, or dispersed through England, after the opening of the Long Parliament, appear to have been rather of the kind known as *Particular Baptists*, holding a Calvinistic theology, and generated out of the Independent congregations that had been established in London and elsewhere after Helwisse's and on different principles (Vol. II. pp. 544 and 585). In some of these congregations, including that taught by a certain very popular Samuel Howe, called "Cobbler Howe" from his trade, who died in prison and excommunicated some time before 1640, Pædobaptism appears to have become an open question, on which the members agreed to differ among themselves. On the whole, however, the tendency was to the secession of Antipædobaptists from congregations of ordinary Independents, and to the formation of the seceders into distinct societies. Thus we hear of a Baptist congregation in Wapping formed in 1633 by a John Spilsbury, with whom were afterwards associated William Kiffin and Thomas Wilson; of another formed in Crutched Friars in 1639 by Mr. Green, Paul Hobson, and Captain Spencer; and of a third, formed in Fleet Street, in 1640, by the afterwards famous Praise-God Barebone: these three congregations being all detachments from Henry Jacob's original Independent congregation of 1616 during the ministries of his successors, Lathorp and Henry Jessey. In spite of much

persecution, continued even after the Long Parliament met, the Baptists of these congregations propagated their opinions with such zeal that by 1644 the sect had attained considerably larger dimensions. In that year they counted seven leading congregations in London, and forty-seven in the rest of England; besides which they had many adherents in the Army. Although all sorts of impieties were attributed to them on hearsay, they differed in reality from the Independents mainly on the one subject of Baptism. They objected to the baptism of infants, and they thought immersion, or dipping under water, the proper mode of baptism: except in these points, and what they might involve, they were substantially at one with the Congregationalists. This they made clear by the publication, in 1644, of a Confession of their Faith in 52 Articles—a document which, by its orthodoxy in all essential matters, seems to have shamed the more candid of their opponents. Even Featley was struck by it, and called it "a little ratsbane in a great quantity of sugar," and became somewhat more civil in consequence. It was signed for the seven Baptist congregations of London by these seven couples of persons—Thomas Gunn and John Mabbitt; John Spilsbury and Samuel Richardson; Paul Hobson and Thomas Goare; Benjamin Cox and Thomas Kilcop; Thomas Munden and George Tipping; William Kiffin and Thomas Patience; Hanserd Knollys (Vol. II. 557 and 586) and Thomas Holmes. These fourteen, accordingly, with Praise-God Barebone, were in 1644 the Baptist leaders or chief Baptist preachers in London. We hear, however, of other Baptist preachers and pamphleteers — John Tombes, B.D. (accounted the most learned champion of the sect, and its intellectual head), Francis Cornwall, M.A., Henry Jessey, M.A. (a convert to baptism at last), William Dell, M.A., Henry Denne, Edward Barber, Vavasour Powell, John Sims, Andrew Wyke, Christopher Blackwood, Samuel Oates, &c. Several of these leading Baptists—such as Tombes, Cornwall, Jessey, Cox, and Denne—were University men, who had taken orders regularly; one or two, such as Patience and Knollys, had

been preachers in New England; but some were laymen who had recently assumed the preaching office, or been called to it by congregations, on account of their natural gifts. The Presbyterians laid great stress on the illiteracy of some of the Baptist preachers and their mean origin. Barebone was a leather-seller in Fleet Street; and, according to Edwards or his informants, Paul Hobson was a tailor from Buckinghamshire, who had become a captain in the Parliamentary Army; Kiffin had been servant to a brewer; Oates was a young weaver; and so on. The information may be correct in some cases, but is to be received with general caution; as also Edwards's stories of the extravagant practices of the Baptists in their conventicles and at their river-dippings. Any story of the kind was welcome to Edwards, especially if it made a scandal out of some dipping of women-converts by a Baptist preacher. Baillie, who took more trouble in sifting his information, and who distinctly allows that the Anabaptists, like other people, ought to have the benefit of the principle "Let no error be charged upon any man which he truly disclaims," and that the errors of some of the sect ought not to be charged upon all, yet maintains that the Confession of the seven Baptist Churches of London was but an imperfect and ambiguous declaration of the opinions of the English Baptists. He attributes to them collectively the following tenets, in addition to those of mere Antipædobaptism and rigid Separatism:—"They put all church-power in the hand of the people;" "They give the power of preaching and celebrating the sacraments to any of their gifted members, out of all office;" "All churches must be demolished: they are glad of so large and public a preaching place as they can purchase, but of a steeple-house they must not hear;" "All tithes and all set stipends are unlawful; their preachers must work with their own hands, and may not go in black clothes." According to Baillie, also, the Baptists outwent even the Brownists in the power in church matters they gave to women. There were many women-preachers among them; of whom a Mrs. Attaway, "the mistress of all the she-preachers in Coleman Street,"

was the chief. [Footnote: Crosby's *History of the English Baptists* (1738), Vol. I. pp. 215-382; Ivimey's *Baptists*, I. 113 *et seq.*; Featley's *Dippers Dipt*, and *Animadversions on the Anabaptists' Confession*; *Gangræna passim*; Baillie's *Dissuasive*, Part II. p. 47 *et seq.*; Neal's *Puritans*, III. 147-152, with Toulmin's Supplement to that Vol., 517-530. The Confession of the Baptists is given in Neal; Appendix to the whole work; also in Crosby, Appendix to Vol. I]

OLD BROWNISTS:—By this name may be called certain adherents of that vehement Independency, more extreme than mere Congregationalism, which had been propagated in Elizabeth's reign by Robert Brown himself. Brown's writings, we learn from Baillie, had totally disappeared in England; so that the so-called *Brownists* can hardly have been his direct disciples, but must have been persons who had arrived at some of his opinions over again for themselves. Briefly, without being Baptists, they were more violent Separatists, more fierce in their rejection of the discipline, worship, and ordination of the Church of England than the Independents proper. Henry Burton, minister of Friday Street church, now between fifty and sixty years of age, was one of the chief of them, and his *Protestation Protested* (Vol. II. 591-2) may be regarded as a manifesto of their views. Even the Independents of the Assembly disowned these views. Mr. Nye had said of the book that "there was in that book gross Brownism which he nor his brethren no way agreed with him in;" and Edwards had heard stories of queer goings-on in Mr. Burton's church, and his quarrel with "a butcher and some others of his church" about prophesying. Among the Brownists, besides Burton, Edwards names prominently "Katherine Chidley, an old Brownist, and her son, a young Brownist, a pragmatistical fellow," who preached in London, and occasionally went on circuit into the country. Edwards characterizes Mrs. Chidley as "a brazen-faced audacious old woman;" but we know the motive. He had not forgotten the thrashing in print he had received from Mrs. Chidley in 1641 (Vol. II. 595). [Footnote:

Paget's *Heresiography*, pp. 55-82 (a great deal about the Brownists; but with next to no real information); Edwards's *Gangræna*, Part I. pp. 62-64 and Part III. 242-248 (gossip about Burton); and Part III. 170, 171 (about Chidley); Baillie's Letters, II. 184 and 192; Hanbury's Historical Memorials, II. 108 *et seq.*]

ANTINOMIANS:—The origin of this heresy is attributed to Luther contemporary and fellow townsman, John Agricola, of Eisleben in Saxony (1492-1566); but the Antinomians of New England, and their chief Mrs. Hutchinson, had recently been more heard of. The story of poor Mrs. Hutchinson, the chief of these New England Antinomians, has already been told by us (Vol. II.371-7), as far as to the beginning of 1643, when we left her, a widow with a family of children, including a married daughter and that daughter's husband, beyond the bounds of New England altogether, and seeking rest for her wearied mind, and a home for her little ones, in the Dutch plantations somewhere near what is now New York. The sad end has now to be told. The Indians and the Dutch of those parts were then at feud; and in September 1643, in an inroad of the Indians into the plantation where Mrs. Hutchinson was, she and all her family were murdered, with the exception of a little daughter eight years of age, who was carried into captivity among the Indians, and not recovered till four years afterwards. The news of this tragic end of Mrs. Hutchinson had been brought across the Atlantic, and had added to the interest of pious horror with which her previous career of heresy in Massachusetts had been heard of by the orthodox in England. Mrs. Hutchinson and her Antinomianism, in fact, were already the subjects of a dreadful popular myth. Here, for example, is old Father Ephraim's account of the New England Antinomians, as he had compiled it from information received direct from America:—"Some persons among those that went hence to New England being freighted with many loose and unsound opinions, which they durst not here, they there began to vent them ... working first upon women, traducing godly ministers

to be and preach under Covenant of Works, dropping their baits by little and little and angling yet further when they saw them take, and fathering their opinions on those of the best quality in the country; and, by means of Mrs. Hutchinson's double weekly lecture at Boston, under pretence of repeating Mr. Cotton's sermons, these opinions were quickly dispersed before authority was aware." But at length, when the infant church in America had been thus "almost ruined," the judgments of God overtook the prime fomenters of the heresy in a notorious manner. "As, first, Mistress Hutchinson, the Generalissimo, the high-priestess of the new religion, was delivered at one time of 30 monstrous births, or thereabouts, much about the number of her monstrous opinions; some were bigger, some less, none of them having human shape, but shaped like her opinions: Mistress Dyer also, another of the same crew, was delivered of a large—" [here follows a minute description of a feminine monster that would have made the fortune of any travelling showman, so complexly-horrible was its physiology]. Thus God punished those monstrous "wretches," But the civil authorities of New England, as we know, had punished them too. "God put it into the hearts of the civil magistrates to convent the chief leaders of them; and, after fruitless admonitions given, they proceeded to sentence: some they disfranchised, others they excommunicated, and some they banished. A seditious minister, one Mr. Wheelwright, was one, and Mrs. Hutchinson another; who, going to plant herself on an island, called Rhode Island, under the Dutch, where they could not agree, but were miserably divided into sundry sects, removed from thence to an island called *Hell-gate* [*Hebgate*, according to Cotton Mather], where the Indians set upon her, and slew her and her daughter, and her daughter's husband, children, and family."—Notwithstanding this dreadful fate of the Antinomians in America, the heresy had broken out in England. Nothing was publicly said of the younger Sir Henry Vane in connexion with it; though, on his return from his Massachusetts governorship, he may have brought back in his

speculative head some of the Hutchinsonian ideas. According to Paget, the first Antinomian in London had been "one Master John Eaton," who had been a scholar of his own (*i.e.* at Trinity College, Oxford), and was afterwards curate of a parish near Aldgate. In fact, as we learn from Wood, he became a minister in Suffolk, was "accounted by all the neighbouring ministers a grand Antinomian," and suffered trouble accordingly. But this Eaton had died in 1641, aged about 66, and leaving but an Antinomian book or two, including "*The Honeycomb of Free Justification*;" and the leading Antinomians were new men. One of them was Mr. John Saltmarsh, a Cambridge graduate, and minister in Kent, afterwards well-known as an, army-preacher and pamphleteer; another was "one Randall who preaches about Spittal Yard."—The nature of the Antinomian doctrines, "opening such a fair and easy way to heaven," made them very popular, it appears, in London and elsewhere. Many ran after their preachers, "crowding the churches and filling the doors and windows," for "Oh, it pleaseth people well," adds old Father Ephraim, "to have heaven and their lusts too." Notwithstanding this imputation, and illustrative scandals in Edwards, it really appears that Antinomianism took itself out in high mystic preaching of justification by faith, the doctrine of assurance, and the privileges of saintship. The wild phrases that came in such preaching were the chief offence. [Footnote: Cotton Mather's *Magnalia*, Book VII. p. 19; Palfrey's Hist. of New England, I. 609, Note; Paget, 105-118; Wood's *Athenæ*, III. 21 (for more about Eaton); *Gangræna* in several places, for references to Saltmarsh and Randall. Baillie in his *Dissuasive* (pp. 57-64) has much the same story as Paget about Mrs. Hutchinson and the New England Antinomians, and attributes the rise of that heresy to the evil influence of Independency.—The idiotic and disgusting myth of the monstrous *accouchements* of the two Antinomian women seems to have found great favour with the orthodox: and it figures in many pious books of the time and afterwards. It seems actually to have originated in America, and to have

been widely believed there, while Mrs. Hutchinson was alive; for Cotton Mather, repeating it, with the most abject good faith, and in great detail, as late as 1702 (*Magnalia*, VII. 20), quotes a letter of Mr. Thomas Hooker, to the effect that at the very time of one of the diabolic *accouchements*, Mrs. Dyer's (Oct. 17, 1637), the house in which her and his wife were sitting was violently shaken, as if by an earthquake, for the space of seven or eight minutes. Mather also avers that there was an investigation of the affair by the magistrates at the time.]

FAMILISTS:—Probably because there had been a continental sect of this name in the sixteenth century, founded by a David George of Delft, Edwards includes *Familists* among his leading English sorts of Sectaries, and Paget devotes ten pages to them. Paget, however, admits that they were "so close and cunning that ye shall hardly ever find them out." If there really was such an English sect, their main principle probably was that every society of Christians should be a kind of family- party, jolly within itself in confidential love-feasts and exchanges of sentiment, and letting the general world and its creeds roar around unquestioned and unheeded. Baillie, however, in an incidental notice of Familism in the Second Part of his *Dissuasive*, gives a somewhat different account. It was, according to him, a wild development of Anabaptism, of which not a few once "counted zealous and gracious" were suspected—including "a great man, a peer of the land." It had a public representative in Mr. Randall, who had "for some years preached peaceably in the Spital" (already mentioned among the Antinomians), and of whom Baillie had heard that he entertained such ideas as these, though reserving them probably as esoteric mysteries for the highest class of the Family of Love—"that all the resurrection and glory which Scripture promises is past already, and no other coming of Christ to judgment, or life eternal, is to be expected than what presently in this earth the saints do enjoy; that the most clear historic passages of Scripture are mere allegories; that in all things, Angels, Devils, Men, Women, there is but

one spirit and life, which absolutely and essentially is God; that nothing is everlasting but the life and essence of God which now is in all creatures;" &c. We should now call this a kind of Pantheism; but probably it was coupled with that disposition to privacy, and indifference to creeds and controversies, which has been mentioned as the peculiarity of Familism. Even the *Familists*, however, it seems, had their subdivisions. One John Hetherington, a box-maker, had been a kind of Familist, but had recanted. [Footnote: Paget, 92 102, and 137,138; *Gangræna*, Part I. 13; Baillie's *Dissuasive* Part II. pp. 99-104]

MILLENARIES OR CHILIASTS:—"An Heresy," says old Father Ephraim, "frequent at this time. This sect look for a temporary [temporal] kingdom of Christ, that must begin presently and last 1,000 years. Of this opinion are many of our Apocalyptical men, that study more future events than their present only." This is substantially all we have from Paget. In fact, however, the Chiliasts or Millenarians were hardly a mere sect. The expectation of a Millennium near at hand was very prevalent, or was becoming very prevalent, among the English Divines of the Assembly itself. "Many of the Divines here," wrote Baillie, September 5, 1645, "not only Independents, but others, such as Twisse, Marshall, Palmer, and many more, are express Chiliasts." In his *Dissuasive*, however, where he devotes an entire chapter to this heresy of Chiliasm, he attributes the grosser form of the heresy chiefly to the Independents. A kind of Chiliasm or Millenarianism, he says, had been held by some former English Divines, including Joseph Meade; but it had been reserved for two Independents—"Mr. Archer and his colleague at Arnheim, T. G." (*i.e.* Thomas Goodwin)—to invent new dreams on the subject; and these had recently been adopted by Mr. Burroughs. The purport of their doctrine was that in the year 1650, or, at the furthest, 1695, Christ was to reappear in human form at Jerusalem, destroy the existing fabric of things in a conflagration, collect the scattered Jews, raise martyrs and saints from their graves, and begin his glorious

reign of a thousand years. [Footnote: Paget, 136, 137; Baillie's Letters, II. 313, and *Dissuasive*, 224-252.]

SEEKERS:—"Many have wrangled so long about the Church that at last they have quite lost it, and go under the name of *Expecters* and *Seekers*, and do deny that there is any Church, or any true minister, or any ordinances; some of them affirm the Church to be in the wilderness, and they are seeking for it there; others say that it is in the smoke of the Temple, and that they are groping for it there—where I leave them praying to God."—So far Old Ephraim; and what he says, combined with one of Edwards's miscellaneous blasphemies already quoted, enables us to fancy the *Seekers*. They were people, it seems, who had arrived at the conclusion that the Supernatural had never yet been featured forth to man in any propositions or symbols that could be accepted as adequate, and who were waiting, therefore, for a possible "Church of the Future;" content, meanwhile, to dwell in a Temple of smoke, or (for there is the alternative figure) to see visions of the Future Church in the smoke of the present Temple.—"Mr. Erbury, that lived in Wales," (but had come to London, and then settled in Ely, whence he made excursions,) and "one Walwyn, a dangerous man, a strong head," who laboured somewhere else, are mentioned by Edwards as men avowing themselves in this predicament. Baillie mentions also one Laurence Clarkson, who had passed from Anabaptism to Seekerism, and he speaks of Mrs. Attaway, the Baptist woman-preacher, and Mr. Saltmarsh, the Antinomian, as tending the same way.—But the chief of the *Seekers*, perhaps the original founder of the Sect, and certainly the bravest exponent of their principles, was a person with whom we are already acquainted. "One Mr. Williams," writes Baillie, June 7, 1644, "has drawn a great number after him to a singular Independency, denying any true Church in the world, and will have every man to serve God by himself alone, without any church at all. This man has made a great and bitter schism lately among the Independents." Again, on the 23rd of July, Baillie refers to the same

person as "my good acquaintance Mr. Roger Williams, who says there is no church, no sacraments, no pastors, no church-officers or ordinance, in the world, nor has been since a few years after the Apostles." In short, the arch-representative of this new religion of Seekerism on both sides of the Atlantic was no other than our friend Roger Williams, the Tolerationist (Vol. II. 560-3, and *antè*, pp. 113-120). Through the variations of this man's external adventures we have seen the equally singular series of variations of his mental condition. First an intense Separatist, or Independent of the most resolute type, but conjoining with this Separatism a passion for the most absolute liberty of conscience and the entire dissociation of civil power from matters of religion, then a Baptist and excommunicated on that account by his former friends in America, he had latterly, in his solitude at Providence, outgone Baptism or any known form of Independency, and, still retaining his doctrine of the most absolute liberty of conscience, had worked himself into that state of dissatisfaction with all visible church-forms, and of yearning quest after unattainable truth, for which the name *Seekerism* was invented by himself or others. Though he did not propose that preaching should be abandoned, he had gradually settled in a notion which he thus expresses: "In the poor small span of my life, I desired to have been a diligent and constant observer, and have been myself many ways engaged, in city, in country, in court, in schools, in universities, in churches, in Old and New England, and yet cannot, in the holy presence of God, bring in the result of a satisfying discovery that either the begetting ministry of the apostles or messengers to the nations, or the feeding and nourishing ministry of pastors and teachers, according to the first institution of the Lord Jesus, are yet restored or extant." It was while he was in this stage of his mental history that Williams came over on his flying visit to England in the matter of the new charter for the Rhode Island plantations. Some whiff of his strange opinions may have preceded him; but it must have been mainly by his intercourse with leading Londoners during his stay

in England, which extended over more than a year (June 1643—Sept. 1644), that he diffused the interest in himself and his Seekerism which we certainly find existing in 1644. He can have been no stranger to the chief Divines of the Westminster Assembly. Baillie, we see, was on speaking terms with him; and it is curious to note in Baillie's and other references to him the same vein of personal liking for the man, running through amazement at his heresy, which characterized the criticisms of him by his New England opponents and excommunicants. Incidents of his visit, not less interesting now, were two publications of his in London, his "*Key into the Language of America*," published in 1643, and his *Bloody Tenent of Persecution*, published in 1644.—At least the name of the sect of "The Seekers," I may add, had struck Cromwell himself, and had some fascination for him, whether on its own account, or from his acquaintance with Williams. "Your sister Claypole," he wrote to his daughter Mrs. Ireton, some two years after our present date (Oct. 25, 1646), "is, I trust in mercy, exercised with some perplexed thoughts. She sees her own vanity and carnal mind, bewailing it: she seeks after (as I hope also) what will satisfy. And thus to be a Seeker is to be of the best sect next after a Finder; and such an one shall every faithful humble Seeker be in the end. Happy Seeker, happy Finder!" [Footnote: Paget, 150; *Gangræna*, Part I. p. 24, and p. 38; *Dissuasive*, Part II. pp. 96, 97 and Notes; Baillie's Letters, II. 191-2 and 212; Gammell's *Life of Roger Williams* (Boston, 1846), and Memoir of Williams, by Edward B. Underhill, prefixed to the republication of William's *Bloody Tenent of Persecution*, by the "Hanserd Knollys Society" (1848); Carlyle's Cromwell, I. 212.]

DIVORCERS:—"These I term *Divorcers*" says Old Ephraim, "that would be quit of their wives for slight occasions;" and he goes on to speak of MILTON as the representative of the sect. Featley had previously mentioned Milton's Divorce Tract as one of the proofs of the tendency of the age to Antinomianism, Familism, and general anarchy; and Edwards

and Baillie followed in the same strain. Milton's Doctrine of Divorce, it thus appears, had attracted attention, and had perhaps gained some following. Among the six caricatures of notable sects on the title-page of Paget's *Heresiography* is one of "THE DIVORCER"—*i.e.* a man, in an admonishing attitude, and without his hat, dismissing or pushing away his wife, who has her hat on, as if ready for a journey, and is putting her handkerchief to her eyes. We shall have more to say of Milton in this connexion. [Footnote: Paget, pp. 150, 151, p. 87, and Epistle Dedicatory, p. 4; Fentley's *Dippers Dipt*, Epistle Dedicatory, p. 3; Edward's *Gangræna*, Part I. p. 29.]

ANTI-SABBATARIANS, AND TRASKITES:—These sects, though distinct, may be named together. The *Anti-Sabbatarians* were those who denied the obligation of any Lord's Day or Sabbath: they were pretty numerous, but were distributed through the other sects. The *Traskites*, on the other hand, denied the obligation of the Christian Sunday or Lord's Day, but maintained the perpetual obligation of the Jewish Sabbath on the seventh day of the week. They were the followers of one John Traske, a poor eccentric who had been well known to Paget, but was now dead, and remembered only for his heresy, for which he had been whipt, pilloried, and imprisoned, about 1618. His opinions had been revived more ably in certain treatises and discourses, published in 1628 and 1632, by Theophilus Brabourne, a Puritan minister in Norfolk. Both Brabourne and Traske had been obliged to recant their opinions and return to orthodoxy; and indeed Traske had done so in a Tract written against himself, though he again relapsed. Nevertheless the heresy had taken root, and one heard in 1644 of Traskites or Sabbatarians dispersed through England. The sect is continued still in the so-called "Seventh Day Baptists." [Footnote: Paget, pp. 138-141; with more accurate particulars in Cox's *Literature of the Sabbath Question*, I. 153-5, 157-8, and 162.]

SOUL-SLEEPERS OR MORTALISTS:—Such was the odd name given to a sect, or supposed sect, represented by the anonymous author of a Tract called *Man's Mortality*. The Tract is now very scarce, if not utterly forgotten; but, as it made a great stir at the time, and as we shall hear of it and its author rather particularly again in connexion with Milton's life, I may here give some account of it from a copy which I have managed to see. The title in full is as follows: "Man's Mortallitie: or a Treatise wherein 'tis proved, both Theologically and Phylosophically, that whole Man (as a rationall creature) is a compound wholly mortall, contrary to that common distinction of Soule and Body; and that the present going of the Soule into Heaven or Hell is a meer fiction; and that at the Resurrection is the beginning of our immortality, and then actual Condemnation and Salvation, and not before: With all doubtes and objections answered and resolved both by Scripture and Reason; discovering the multitude of Blasphemies and Absurdities that arise from the fancie of the Soule: Also divers other mysteries, as of Heaven, Hell, Christ's humane residence, the Extent of the Resurrection, the New Creation, &c.: opened and presented to the tryall of better judgments, By R. O. Amsterdam: Printed by John Canne, Anno Dom. 1643." In the British Museum copy, which is the one I have seen, the word "Amsterdam" is erased by the collector's pen, and "London" substituted, with the date "Jan. 19" added; whence I infer that, whatever Canne at Amsterdam had to do with the printing of the tract, it was virtually a London publication, and out in January, 1643-4. On the title-page is quoted the text Ecclesiastes iii. 19, thus—"That which befalleth the sonnes of men befalleth Beasts; even one thing befalleth them all: as the one dyeth so dyeth the other; yea they have all one breath, so that man hath no preheminance above a Beast; for all is vanity." This gives so far the key-note to the 57 pages of matter of the Tract itself. It is a queer mixture of a sort of physiological reasoning, such as we should now call Materialism, with a mystical metaphysics, and with odd whimsies of the author's own—

such as that Christ had ascended into the Sun. The leading tenet, however, is that the notion of a soul, or supernatural and immortal essence, in man, distinct from his bodily organism, is a sheer delusion, contradicted both by Scripture and correct physiological thinking, and that from this notion have arisen all kinds of superstitions and practical mischiefs. "The most grand and blasphemous heresies that are in the world, the mystery of iniquity and the kingdom of Antichrist, depend upon it." So says the Tract itself; and in the first of two pieces of verse prefixed to it by an admirer, and entitled "To His worthy Friend the Author, upon his Booke," there occur these lines:—

"The hell-hatched doctrine of th' immortal soul
Discovered makes the hungry Furies howl,
And teare their snakey haire, with grief appaled
To see their error-leading doctrine quailed,
Hell undermined and Purgatory blown
Up in the air."

There are Latin quotations in the Tract; and some of the physiological arguments by which the author seeks to refute the opinion of "the Soulites," as he calls them, are rather nauseous. On the whole, were it not for the appended concession of a Resurrection, or New Creation, and an Immortality somehow to ensue thence, the doctrine of the Tract might be described as out-and-out Materialism. Possibly, in spite of the concession, this is what the author meant to drive at. Among some of his followers, however, a milder version of his doctrine seems to have been in favour, not quite denying the existence of a soul, but asserting that the soul goes into sleep or temporary extinction at death, to be re-awakened at the Resurrection. [Footnote: Paget, pp. 148, 149; *Gangræna*, Part I. pp. 22, 23; Baillie's *Dissuasive*, Part II. 99 and 121; but mainly the Tract cited.]

ARIANS, SOCINIANS, AND OTHER ANTI-TRINITARIANS:—Since 1614, when Legate and Wightman had been burnt for Arianism (Vol. I. p. 46), this and other forms of the Anti-Trinitarian heresy had been little heard of in England. But in the ferment of the Civil War they were reappearing. A Thomas Webb, a young fellow of twenty years of age, had been shocking people in London and in country-places by awful expressions against the Trinity; one Clarke had been, doing the same; one Paul Best had been circulating manuscripts in which there were "most horrid blasphemies of the Trinity, of Christ, and of the Holy Ghost;" and John Biddle, of Gloucester, master of the school there, and of whom, from his career at Oxford, high hopes had been formed, had begun to be "free of his discourses in a Socinian direction." Baillie adds Mr. Samuel Richardson, one of the Baptist ministers of London, to the number of those whose Trinitarianism was questionable, and charges the Baptists generally with laxity on that point. In short, there was an alarm of Arianism, and other forms of Anti-Trinitarianism, as again abroad in England. Mr. Nye, the Independent, had been heard to say that "to his knowledge the denying of the Divinity of Christ was a growing opinion, and that there was a company of them met about Coleman Street, a Welshman being their chief, who held this opinion." Coleman Street appears, indeed, to have been a very hotbed of heresy. For here it was that JOHN GOODWIN (Vol. II. 582-4, and *antè*, pp. 120-122) had his congregation. He had not revealed himself fully; but the public had had a taste of him in recent pamphlets. Baillie, on rumour, reports him as a Socinian; and Edwards, who came into conflict with him in due time, and devotes many consecutive pages of Billingsgate to him in the Second Part of his *Gangræna*, tells us that he held "many wicked opinions," being "an Hermaphrodite and a compound of an Arminian, Socinian, Libertine, Anabaptist, & c." From the same authority we learn that the Presbyterians had nicknamed him "the great Red Dragon of Coleman Street." What he really was we have already seen in part for ourselves, and

shall yet see more fully.[Footnote: Paget, 132—136; *Gangræna*, Part I. pp. 21, 22, 26, 33, Part II 19- 39, and Part III. 111 and 87; Baillie's *Dissuasive*, Part II. p. 98; also Wood's *Athenæ*, III. 593 (for Biddle); Baillie's *Letters*, II. 192, and Jackson's *Life of John Goodwin* (1822), pp. 3 and 14.]

ANTI-SCRIPTURISTS:—"One wicked sect," says Old Ephraim, "denieth the Scriptures both of the Old and New Testament, and account them as things of nought; yea, as I am credibly informed, in public congregations they vent these their damnable opinions." He gives no names; but Edwards mentions "one Marshal, a bricklayer, a young man, living at Hackney," who made a mock of the Scriptures in his harangues, and asserted that he himself "knew the mystery of God in Christ better than St. Paul." A companion of this Marshal's told the people that "the Scripture was their golden calf and they danced round it." A Priscilla Miles had been speaking very shockingly of the Scriptures at Norwich. But the most noted Anti-Scripturist seems to have been a Clement Wrighter, a Worcester man, living in London, of whom Edwards gives this terrible character—"Sometimes a professor of religion and judged to have been godly, who is now an arch-heretic and fearful apostate, an old wolf, and a subtle man, who goes about corrupting, and venting his errors; he is often in Westminster Hall and on the Exchange; he comes into public meetings of the Sectaries upon occasions of meeting to draw up petitions for the Parliament or other businesses. This man about seven or eight years ago (*i.e.* about 1638) fell off from the communion of our churches to Independency and Brownism; from that he fell to Anabaptism and Arminianism, and to Mortalism, holding the soul mortal (he is judged to be the author, or at least to have had a great hand in the *Book of the Mortality of the Soul*). After that he fell to be Seeker, and is now an Anti-Scripturist, a Questionist and Sceptick, and I fear an Atheist." Specimens of his sayings about the Bible are given; and altogether one has to fancy Wrighter as an oldish man, sneaking about in public places in London on soft-soled shoes,

and with bundles of papers under his arm. I have seen a little thing printed by him in Feb. 1615-6, under the title of "*The Sad Case of Clement Writer*," in which he complains of injustice, to the extent of 1,500_l., done him by the late Lord Keeper Coventry and other judges in some suit that had lasted for twelve years. [Footnote: Paget, 149; *Gangræna*, Part I. pp. 26- -28; Baillie's *Dissuasive*, Part II. 121.]

SCEPTICS, OR QUESTIONISTS:—They were those who, according to Edwards, "questioned everything in matters of religion, holding nothing positively nor certainly, saving the doctrine of pretended liberty of conscience for all, and liberty of prophesying." Many besides Wrighter had reached this stage through their anti-Scripturism, and were free-thinkers of the cold or merely rational order, distinct from the devout and enthusiastic Seekers. [Footnote: *Gangræna*, Part I. p. 13.]

ATHEISTS:—Although Edwards charitably hints his fear that Mr. Wrighter had at last sunk into this extreme category, it is remarkable that neither he nor Paget ventures to reckon *Atheists* among the existing Sects. Probably, therefore, there was no body of persons to whom, with any pretext of plausibility, the name could be applied. But we are advised of individuals here and there whom their neighbours suspected of Atheism; and, if Edwards is to be believed, there was alive a certain John Boggis, an apprentice to an apothecary in London, who, though at present only a young Anabaptist preacher, and disciple of Captain Hobson, was to go within a year or two to such unheard-of lengths about Great Yarmouth that even Wrighter must have disowned him. [Footnote: Ibid. Part II. 133, 134; and Baillie's *Dissuasive*, Part II. 99.]

Such were the English Sects and Sectaries that had begun to be talked of in 1644. Not that they were bounded off strictly from each other in divisions according with their names. On the contrary, they shaded off into each

other; and there were mixtures and combinations of some of them. Moreover, as the chief of them held by the Congregationalist principle in some form, and hoped to flourish by taking advantage of that principle, it was not unusual for Presbyterian writers to include these along with the Congregationalists proper in the one lax designation of Independents. At all events, the Sects hung on to the Independents through that principle of Toleration or Liberty of Conscience which the Independents had propounded, at first mildly, but with a tendency to less and less of limitation. All the Sects, less or more, were TOLERATIONISTS; the heresy of heresies in which they all agreed with each other, and with the Independents, was LIBERTY OF CONSCIENCE.

RESUMPTION OF PROCEEDINGS BY THE WESTMINSTER ASSEMBLY: DENUNCIATION OF PICKED SECTARIES AND HERETICS.

The foregoing survey of English Sects and Sectaries and of the state of the Toleration Controversy in 1644 has been our employment, the reader must be reminded, during the fortnight's vacation of the Westminster Assembly from July 23 to August 7 in that year. Something of the same kind was the vacation-employment of the members of that Assembly too, and especially of the Presbyterian majority. For they had been driven out of their previous calculations by the battle of Marston Moor (July 2). That battle had been won mainly by Cromwell, the head of the Army- Independents, and it went to the credit of Independency. All the more necessary was it for the Presbyterians of the Assembly to bethink themselves of indirect means of argument against the Independents. The means were not far to seek. Let this horrible Hydra of Sects, all bred out of Independency, be dragged into light; and would not respectable Independency itself stand aghast at her offspring? The word *Toleration* had been mumbled cautiously within the Assembly, and had made itself heard with some larger liking in Parliament,

and still greater applause among the hasty thousands of the Parliamentary soldiers and the populace! Let it be shown what this monstrous notion really meant, what herds of strange creatures and shoals even of vermin it would permit in England; and would England ratify the monstrosity, or the Independency consociated with it, even for twenty Cromwells, or ten Marston Moors? So, in the fort-night's vacation, reasoned Messrs. Marshall, Lightfoot, Calamy, Palmer, Vines, Spurstow, Newcomen, Herle, Burges, and other English Presbyterians, incited rather than repressed by the Scottish anxiety of Rutherford, Gillespie, Baillie, and (I am afraid) Henderson.

Accordingly, when the Assembly resumed its sittings (Wednesday, Aug. 7, 1644), its first work was to fall passionately on the Sects and the arch-heresy of Toleration. "The first day of our sitting, after our vacance," says Baillie, "a number of complaints were given in against the Anabaptists' and Antinomians' huge increase and insolencies intolerable. Notwithstanding Mr. Nye's and others' opposition, it was carried that the Assembly should remonstrate it to the Parliament." [Footnote: Baillie's Letters, II. 218; corroborated by Lightfoot's Notes on the very day (p. 299).] And they did remonstrate it, without a day's delay. Friday, May 9, as we learn from the Lords Journals, it was represented to the House of Lords, through Mr. Marshall, by order of the Assembly, "That they have been informed of the great growth and increase of Anabaptists and Antinomians and other Sects; and that some Anabaptists have delivered in private houses some blasphemous passages and dangerous opinions: They have acquainted the House of Commons therewith; and, &c." [Footnote: Lords Journals, Aug. 9, 1644.] Turning to the Commons Journals of the same day we find, accordingly, a column and a half on the same subject, with many details. Dr. Burges and Mr. Marshall had appeared before the Commons on the same errand from the Assembly: had told the Honourable House that many ministers and gentry all through England had long desired to petition it "to

prevent the spreading opinions of Anabaptism and Antinomianism;" that they had been persuaded to forbear; but that now "these men have cast off all affection and are so imbibitterated" that farther forbearance would be wrong, and the Assembly cannot but represent to the House that "it is high time to suppress them." That the Commons might not be left in the vague, a Mr. Picot in Guernsey, and a Mr. Knolles, recently in Cornwall (Hanserd Knollys?), of the Anabaptist sort, with a Mr. Randall, a Mr. Penrose, and a Mr. Simson, as of a worse sort still (see Randall among the Antinomians and Familists in our synopsis), were denounced by name as proper culprits to begin with. What could the poor House of Commons do? Agreeing with the Lords, they promised to do what they could. They would take the whole subject into their grave consideration; they empowered the Committee for Plundered Ministers, with a certain addition to their number, to arrest and examine the particular culprits named; and, to prove their heartiness meanwhile, they resolved, on that very day, "That Mr. White do give order for the public burning of one Mr. Williams his book, intituled, &c., concerning the Tolerating of all sorts of Religion." [Footnote: Commons Journals, Aug. 9, 1644.] This "one Mr. Williams," as the reader will be aware, was Roger Williams, then on his way back to America; and "his book" was *The Bloody Tenent*. There must have been much hypocrisy, and much cowardice, in the English House of Commons on that day. Where was the younger Sir Harry Vane? Probably he was in the House while they passed the order, and wondering how far Roger Williams had got on his voyage, and meditatively twirling his thumbs.

A good stroke of business by the Westminster Assembly in two days after their vacation! But they followed it up. There were frequent Solemn Fasts, by Parliamentary order, in those days, when all London was expected to go to church and listen to sermons by divines from the Westminster Assembly. Tuesday, the 13th of August, 1644, was one of those Solemn Fast-days—an "Extraordinary Day of Humiliation;" and the ministers appointed by the

Assembly to preach in chief—*i.e.* to preach before the two Houses of Parliament, and the Assembly itself, in St. Margaret's, Westminster—were Mr. Thomas Hill and Mr. Herbert Palmer. These two gentlemen, it seems, did their duty: They satisfied even Baillie. "Mr. Palmer and Mr. Hill," he says, "did preach that day to the Assembly two of the most Scottish and free sermons that ever I heard anywhere. The way here of all preachers, even the best, has been to speak before the Parliament with so profound a reverence as truly took all edge from their exhortations, and made all applications of them toothless and adulatorious. That style is much changed, however: these two good men laid well about them, and charged public and Parliamentary sins strictly on the backs of the guilty." [Footnote: Baillie's Letters, II. 220, 221.] As the sermons themselves remain in print, we have the means of verifying Baillie's description. It is quite correct. Not only in the "Epistle Dedicatory" to his sermon when it was printed did Mr. Hill denounce the Toleration doctrine, and make a marginal reference to Roger Williams's "*Bloody Tenent*" as a book not too soon burnt; but in the sermon itself, the subject of which was the duty of "advancing Temple-work" (Haggai i. 7, 8), he openly attacked two classes of persons as the chief "underminers of Temple-work." First, he said, there were those who would allow nothing to be *jure divino* in the Church, but held that all matters of Church-constitution were to be settled by mere prudence and State-convenience—in other words, the Erastians, *They* are lectured, but are let off more easily than the second sort of underminers: viz. "such who would have a toleration of all ways of Religion in this Church." Parliament is reminded that all tendency to this way of thinking is unfaithfulness to the Covenant, and is told that "to set the door so wide open as to tolerate all religions" would be to "make London an Amsterdam," and would lead to—in fact, would certainly lead to—Amsterdarnation! So far Mr. Hill; but Mr. Palmer was even more bold. Preaching on Psalm xcix. 8, this delicate little creature laid about him most manfully. Parliament are rebuked for eluding

the Covenant, for too great tenderness in their dealings with delinquents, and for remissness in the prevention and punishment of false doctrine. They are exhorted to extirpate heresy and schism, especially Antinomianism and Anabaptism, and, are warned at some length against the snare of Toleration. "Hearken not—I earnestly exhort every one that intends to have any regard at all to his solemn Covenant and oath in this second article—to those that offer to plead for Tolerations; which I wonder how any one dare write or speak for as they do that have themselves taken the Covenant, or know that *you* have. The arguments that are used in some books, well worthy to be burnt, plead for Popery, Judaism, Turcism, Paganism, and all manner of false religions, under pretence of Liberty of Conscience." This is clearly an allusion to John Goodwin; and in the sequel Mr. Palmer makes another personal allusion of still greater interest. In order to show what a social chaos would result from toleration of error on the plea of Liberty of Conscience, he gives instances of some of the horrible opinions that would claim the benefit of the plea, and among these he names Milton's Divorce doctrine, then circulating in a book which the author had been shameless enough to dedicate openly to Parliament itself. The particulars will be given, and the passage quoted, in due time; the fact is enough at present. [Footnote: The title of Hill's sermon is "*The Season for England's Self-Reflection and Advancing Temple-work; discovered in a Sermon preached to the two Houses of Parliament at Margaret's, Westminster, Aug. 13, 1614; being an extraordinary day of Humiliation. By, &c., London: Printed by Richard Cotes, for John Bellamy and Philerion Stephens 1644.*"—The title of Palmer's is "*The Glasse of God's Providence towards his Faithful Ones; Held forth in a Sermon, &c. [occasion and date as in Hill's]; wherein is discovered the great failings that the best are liable unto, upon which God is provoked sometimes to take vengeance. The whole is applyed specially to a more carefull observance of our late Convenant, and particularly against the ungodly Toleration pleaded for under pretence of Liberty of Conscience.*"

By, &c., London: Printed by G.M. for Th. Underhill at the Bible in Wood Street, 1644." Neither sermon impresses one now very favourably in respect of either spirit or ability. I expected Palmer's to be better.]

Not content with direct remonstrance to Parliament on the subject of the increase of sects and heresies, nor with the power of exhorting it on the subject through the pulpit, the Presbyterians of the Assembly, I find, resorted to other agencies. They had great influence in the City, and it occurred to them, or to some of them, to stir up the Stationers' Company to activity in the matter. The Stationers, indeed, had a commercial interest, as well as a religious interest, in the suppression of the obnoxious books and pamphlets, most of which were published without the legal formalities of licence and registration. It is without surprise therefore that we find this entry in the Commons Journals for Saturday, Aug. 24, 1644: "*Ordered* that the Petition from the Company of Stationers be read on Monday morning next," followed by this other as the minute of the first business (after prayers) at the next sitting, (Monday, Aug. 26): "The humble Petition of the Company of Stationers, consisting of Booksellers, Printers, and Bookbinders, was this day read, and ordered to be referred to the consideration of the Committee for Printing, to hear all parties and to state the business, and to prepare an Ordinance upon the whole matter and to bring it in with all convenient speed; and they are, to this purpose, to peruse the Bill formerly brought in concerning this matter. They are diligently to inquire out the authors, printers, and publishers of the Pamphlets against the Immortality of the Soul and *Concerning Divorce*." It had been determined, it seems, that Palmer's denunciation of Milton in his sermon a fortnight before should not be a *brutum fulmen*. To the incident, as it affected Milton himself, we shall have to refer again. Meanwhile it belongs to that stage of the action of the Westminster Assembly on English politics which we are now trying to illustrate.

The Assembly, we have shown, besides still carrying on within itself the main question between Presbyterianism and Congregationalism, had begun a wider war against Schism, Sectarianism, the whole miscellany of English heresies, and especially the all-including heresy of Toleration. They opened the campaign, by private agreement among themselves, in August 1644; and by the end of that month they had succeeded in rousing Parliament to some action on the subject, and had directed attention to at least nine special offenders, deserving to be punished first of all. These were—the Anabaptists, Picot and Hanserd Knollys; the Antinomians, Penrose and Simson; the Antinomian and Familist, Randall; the Seeker and Tolerationist, Roger Williams; the Independent, semi-Socinian, and Tolerationist, John Goodwin; the Anti-Scripturist and Mortalist, Clement Wrighter; and Mr. John Milton of Aldersgate Street, author of a Treatise on Divorce. For, though the Committee of Parliament had been instructed to inquire out the author of the Divorce Treatise, this was but a form. The second edition, dedicated to the Parliament and the Assembly, and with Milton's name to it in full, had been out more than six months. Of the nine persons mentioned, only Clement Wrighter, the Mortalist (if indeed the tract on *Man's Mortality* was from his pen), had to be found out.

Was there to be no check to this Presbyterian inquisitorship? Whence could a check come? The few Independents in the Assembly, just because they were fighting their own particular battle, had to be cautious against too great an extension of their lines. Not from *them*, therefore, but from the freer Independency of the Army, which was in fact by this time a composition of all or many of the sects, could the check be expected. Thence, in fact, it did come. In short, while the Presbyterians in London were in the flush of their first success against the Sectaries and the Tolerationists, in walked Oliver Cromwell.

CROMWELL'S INTERFERENCE FOR TOLERATION: ACCOMMODATION ORDER OF PARLIAMENT.

Events had been qualifying Cromwell more and more for the task. His Independency, or let us call it Tolerationism, had been long known. As early as March 1643-4, when he had just become Lieutenant-general in the Earl of Manchester's army, he had been resolute in seeing that the officers and soldiers in that army should not be troubled or kept down for Anabaptism or the like. This had been the more necessary because the next in command under him, the Scottish Major-general Crawford, was an ardent and pragmatic Presbyterian. "Sir," Cromwell had written to Crawford on one occasion, when an Anabaptist colonel had been put under disgrace, "the State, in choosing men to serve it, takes no notice of their opinions; if they be willing faithfully to serve it, that satisfies. I advised you formerly to bear with men of different minds from yourself: if you had done it when I advised you to it, I think you would not have had so many stumbling-blocks in your way. It may be you judge otherwise; but I tell you *my* mind." [Footnote: Carlyle, Cromwell (ed. 1857), I. p. 148.] Ever since that time there had been a vital difference between the Presbyterian Major-general Crawford and his superior, the Lieutenant-general. Gradually, according to Baillie, Manchester, who was "a sweet, meek man," and greatly led by Cromwell, had been brought over more to the Presbyterian way by Crawford's reasonings. It had come to be a question, in fact, whether Cromwell and comfort or Crawford and precision should prevail in Manchester's army. Marston Moor (July 2) had settled that. Cromwell, as the hero of Marston Moor, was not a man to be farther opposed or thwarted; the Independents, who had mainly won Marston Moor, were not men to submit longer to Presbyterian ascendancy in the regulation of the army, or to see their large-faced English chief pestered and counterworked by a peevish Scot. Yes, but was Cromwell the hero of Marston Moor, or *had* Marston Moor been won mainly by the Independents? These were the

questions which Crawford, ever since the battle, had been trying to keep open. He had been trying, as we have seen, to keep them open in London, though with but small success; and in the Army his tongue had, doubtless, been louder and more troublesome. At last Cromwell made up his mind. Either Crawford must cease to be Major-general of Manchester's army, or *he* must cease to be Lieutenant-general. It was on this business that, in September 1644, he came up to London. There had been letters on the subject before from both parties in the Army, the Independents pressing for Crawford's dismissal, and the Presbyterians for retaining him. But now Manchester, Cromwell, and Crawford had, all three, come up personally to argue the matter out. Cromwell, it appears, was in one of those moods of ungovernable obstinacy which always came upon him at the right time. "Our labour to reconcile them," writes Baillie, "was vain: Cromwell was peremptor; notwithstanding the kingdom's evident hazard, and the evident displeasure of our [the Scottish] nation, yet, if Crawford were not cashiered, his [Cromwell's] colonels would lay down their commissions." There was a plot in all this, Baillie thought. The real purpose of the Independents was to bring Manchester out of the clutches of Presbyterianism, or, if that could not be done, to get him to resign, so that Cromwell might succeed to the chief command; in which case the Independents would be able to "counterbalance" the Presbyterians, and "overawe the Assembly and Parliament both to their ends."—It was a very proper plot, too, as every day was proving. What was the last news that had reached London? It was that Essex, the General-in-chief, had been totally beaten by the King in Cornwall (Sept. 1)—Essex himself obliged to escape by ship, leaving his army to its fate; the horse, under Sir William Balfour, to fight their way out by desperate exertion; and the foot, under Skippon, to think of doing the same, but at last to surrender miserably. Waller's army, also, was by this time nowhere. It had perished by gradual desertion. Evidently, it had become a question of some moment for the Parliamentarians *who* had won

Marston Moor, and *who* should be chief in Manchester's army. [Footnote: Baillie's Letters, II. 229, 230; Rushworth V. 699 *et seq.*; Whitlocke (ed. 1853), I. 302, 303; Carlyle's Cromwell, (ed., 1857), I. 158.]

The special business which had brought Cromwell to London was, in fact, but a metaphor of the general business then occupying the English nation. Whether a pragmatistical Presbyterian Scot should regulate the discipline of an English Parliamentary army, and whether the Westminster Assembly should establish a Presbyterian Inquisitorship over the whole mind of England, were but forms of the same question. Little wonder, then, that Cromwell, finding himself in London on the smaller form of the business, resolved to move also in the larger. And he did. "This day," writes Baillie on Friday the 13th of September 1644, "Cromwell has obtained an Order of the House of Commons to refer to the Committee of both Kingdoms the accommodation or toleration of the Independents—a high and unexpected Order!" Three days afterwards Baillie is still full of the subject. "While Cromwell is here," he says, "the House of Commons, without the least advertisement to any of us [Scottish Commissioners], or of the Assembly, passes an Order that the Grand Committee of both Houses, Assembly, and us, shall consider of the means to unite us and the Independents, or, if that be found impossible, to see how they may be tolerate. This has much affected us." On turning to the Commons Journals we find the actual words of the Order: "*Ordered*, That the Committee of Lords and Commons appointed to treat with the Commissioners of Scotland and the Committee of the Assembly do take into consideration the differences in opinion of the members of the Assembly in point of Church-government, and do endeavour a union if it be possible; and, in case that cannot be done, do endeavour the finding out some ways how far tender consciences, who cannot in all things submit to the common Rule which shall be established, may be borne with, according to the Word, and as may stand with the public peace, that so the proceedings of the Assembly may

not be so much retarded." Mr. Solicitor St. John appears as the reporter of the Order. Cromwell, in fact, had quietly formed a little phalanx of the right men to carry the thing through. The younger Vane was one of them. Even Stephen Marshall, the Presbyterian and Smectymnuan, had to some extent aided in the contrivance, without consulting any of his brethren of the Assembly.

The Order came upon the Presbyterians like a thunder-clap. For, as they rightly interpreted, it was nothing less than a design to carry in Parliament a Toleration-clause to be inserted in the Bill for establishing Presbytery before that Bill was ready to be drafted. Of this Baillie and his friends complained bitterly. Was it not unfair to Presbyterianism thus to anticipate so ostentatiously that there would be many whom it would not satisfy? Was not this framing of a Toleration-clause, to be inserted into a Bill before the Bill itself was in being, like a solicitation to the English people to prefer the clause to the body of the Bill, and so to continue dubious about Presbytery, instead of cultivating faith in its merits? So argued Baillie and the Presbyterians. But, indeed, they saw more behind the Accommodation Order. The Toleration it sought to provide might seem, from the wording, only a moderate Toleration in the interest of the Independents of the Assembly and their immediate adherents. From what Baillie says, one infers that Mr. Solicitor St. John and Mr. Marshall had been drawing up the Order in this moderate form, and that Cromwell and Vane would fain have had more. "The great shot of Cromwell and Vane," says Baillie, "is to have a liberty for all religions, without any exceptions." And of Vane he distinctly says that he was "offended with the Solicitor" for putting only differences about Church-government into the Toleration Ordinance, and not also differences "about free grace, including liberty to the Antinomians and to all Sects." At all events, he had recently, in the presence of the Scottish Commissioners themselves, been reasoning "prolixly, earnestly, and passionately" for universal Toleration. Probably Cromwell and Vane

were content in the meantime with what the long-headed Solicitor saw he could pass. It could be stretched when necessary. The form was St. John's, but the deed was Cromwell's. [Footnote: The authorities for the interesting facts related in this paragraph which seem to have slipped out of view of most modern writers on the history of the period are Baillie, II 226, 229, 231, and 236, 237, and Commons Journal, Sept 13, 1644.]

After the check of this Accommodation Order of Sept. 13, 1644, the Presbyterians of the Assembly seem to have proceeded somewhat more temperately. Not that they gave up the fight. Their preachers before Parliament still followed in the strain of Hill and Palmer. In a Fast-day Sermon before the two Houses on Sept. 12, the day before the Order, the Smectymnuan, Matthew Newcomen, had again had a slap at Toleration; on Sept. 25 Lazarus Seaman was again at it, and actually named in his sermon four dangerous books for Liberty of Conscience, including Goodwin's and Williams's—the burning of which lest did not seem enough to the Rabbi, for "the shell is sometimes thrown into the fire when the kernel is eaten;" the respected Calamy, also a Smectymnuan, is at it again, Oct. 22, telling the Parliament that, if they do not put down Anabaptism, Antinomianism, and Tolerationism of all religions, then *they* are the Anabaptists, the Antinomians, the Tolerationists; Spurstow, a third of the Smectymnuans, is not done with it on Nov. 5. [Footnote: My notes from a volume of the Parliamentary Sermons of 1644, kindly lent me by Mr. David Laing] In the Assembly itself also the question of heresy, blasphemy, and their suppression, occasionally turned up. Oct. 17, for example, there was officially before the Assembly the case of a John Hart, who had been making a reputation for himself in Surrey by this hideous joke:—"Who made you? My Lord of Essex.—Who redeemed you? Sir W. Waller.—Who sanctified and preserved you? My Lord of Warwick." This led to a conversation in the Assembly on the increase of blasphemy, and to a new remonstrance to Parliament on the subject.[Footnote: Lightfoot's Notes at

date named] Again, on the 22nd of November, there was a report to the Assembly of some fresh "damnable blasphemies," more of the doctrinal kind, and savouring of Mortalism and Clement Wrighter. [Footnote: Lightfoot's Notes at date named.] Nor had the Assembly agreed to let even ordinary Anabaptism and Antinomianism alone; for they had again memorialized Parliament on the subject, and had had a rather satisfactory response from the Commons, Nov. 15, in the form of a promise to consider the whole matter, and an order meanwhile that no person should be permitted to preach unless he were an ordained minister in the English or some other Reformed Church, or a probationer intending the ministry and duly licensed by those authorized by Parliament to give such licence. [Footnote: Commons Journals, Nov. 15, 1644.] On the whole, however, from September 1644 onwards through October and November, to the end of the year, there was rather an abatement of the inquisitorial zeal of the Assembly.

PROGRESS OF THE ASSEMBLY'S MAIN WORK: PRESBYTERIAN SETTLEMENT VOTED BY PARLIAMENT.

In those months, indeed, the Assembly was unusually active over its main work. For, though we have seen chiefly the spray of its miscellaneous interferences with affairs, it must be remembered that it had been called together for a vast mass of substantial work, and that it had been steadily prosecuting that work, in Committees, Sub-committees, and the daily meetings of the whole body. The work expected by Parliament from the Assembly consisted of (1) the compilation of a *Confession of Faith*, or *Articles of Religion*, which should supersede the Thirty-nine Articles, and be the Creed of the new National Church of England about to be established; (2) the composition of a *Catechism* or *Catechisms*, which should be a manual or manuals for the instruction of the people, and

especially the young, in the theology of the Articles; (3) the devising of a *Frame of Discipline or Church-government*, to come in lieu of Episcopacy, and form the constitution of the new National Church; and (4) the preparation of a *Directory of Worship*, which should supplant the Liturgy, &c., and settle the methods and forms to be adopted in worship, and on such occasions as baptisms, marriages, and funerals. Here was a mass of work which, at the ordinary rate of business in ecclesiastical councils, might well keep the Assembly together for two or three years. What amount of progress had they made at the date at which we have now arrived?

Naturally, on first meeting, they had begun with the business of the new Articles, or Confession of Faith. The particular form in which, by the order of Parliament, they had addressed themselves to this business, was that of a careful revision of the Thirty-nine Articles. With tolerable unanimity (*antè*, pp. 5, 6 and 18,19), they had gone on in this labour for three months, or till Oct. 12, 1643; by which time they had Calvinized fifteen of the Articles. [Footnote: Whoever wants to compare the Westminster Assembly's Calvinized Version of the first fifteen Articles with the original Articles will find the two sets printed conveniently in parallel columns in *History of the Westminster Assembly of Divines* (1842), published at Philadelphia, U.S., by the "Presbyterian Board of Publication."] Then, however, they had been interrupted in this labour. The Scottish League and Covenant having come into action, and the Scottish Commissioners having become an influence at the back of the English Parliament, the Assembly had been ordered to proceed to what seemed the more immediately pressing businesses of the new Model of Church-government and the new Directory of Worship. The business of a Confession of Faith thus lying over till it could be resumed at leisure, the Assembly had, for more than a year, been occupied with the Church-government question and the Directory. What tough and tedious work they had had with the Church-government question we have seen. Still, even in this question they had made progress. Beating the

Congregationalists by vote on proposition after proposition, the Presbyterian majority had, by the end of October 1644, carried all the essentials of Presbytery through the Assembly, and referred them confidently to Parliament. [Footnote: Baillie, II. 232.] Add to this that a new Directory of Worship had been drawn up. The Congregationalist Brethren had been far more acquiescent in this business; and, though many points in it had occasioned minute discussion, the Assembly were able, on the 21st of November, to transmit to Parliament, unanimously, a Directory, in which everything in the shape of Liturgy or Prelatic ceremonial was disallowed, and certain plain forms, like those of the Scottish Presbyterian worship, prescribed instead. [Footnote: Baillie, II. 240 and 242-3] By the end of 1644, therefore, the Westminster Assembly had substantially acquitted itself of two out of four of the pieces of work expected from it by Parliament—the *New Directory of Worship* and the *New Frame of Church-government*; and it only remained for Parliament to sanction or reject what the Assembly had concluded under these two heads. During November and December 1644, and January 1644-5, accordingly, there was much discussion in both Houses of all the points of Religion and Church-government which the new Directory and the new Frame were to settle. The debates of the Houses during these months, indeed, were very much those of the Assembly over again—the Lords and Commons, though laymen, examining each proposition and each clause for themselves, and insisting on proofs from Scripture and the like. January 1644-5 was the great month. On the 4th of that month an Ordinance from the Commons passed the Lords, abolishing the use of the Prayer-book, adopting and confirming the new Westminster Directory, and ordering it to be printed. On the 23rd of the same month, the following Resolutions were adopted by the Commons:—

"*Resolved*: That there shall be fixed Congregations—that is, a certain company of Christians to meet in one Assembly ordinarily for public worship: when believers multiply to such a number that they cannot

conveniently meet in one place, they shall be divided into distinct and fixed Congregations, for the better administration of such ordinances as belong to them, and the discharge of mutual duties.

"Resolved: That the ordinary way of dividing Christians into distinct Congregations, and most expedient for edification, is by the respective bounds of their dwellings.

"Resolved: That the minister and other Church-officers in each particular Congregation shall join in the government of the Church in such manner as shall be established by Parliament.

"Resolved: That these officers shall meet together at convenient and set times for the well-ordering of the affairs of that Congregation, each according to his office.

"Resolved: That the ordinances in a particular Congregation are Prayer, Thanksgiving, and Singing of Psalms; the Word read, though there follow no immediate explication of what is read; the Word expounded and applied; Catechising; the Sacraments administered; Collection made for the Poor; Dismissing of the people with a Blessing.

"Resolved: That many particular Congregations shall be under one Presbyterial government.

"Resolved: That the Church be governed by Congregational, Classical, and Synodical Assemblies, in such manner as shall be established by Parliament.

"Resolved: That Synodical Assemblies shall consist both of Provincial and National Assemblies."

Dry and simple as these Resolutions look, they were the outcome of fifteen months of deliberation, and they were of immense significance. They declared it to be the will of Parliament that England thenceforth should be a Presbyterian country, like Scotland. Just as Scotland was a little country, with her 1,000 parishes or so, the inhabitants of each of which were understood to form a particular congregation, meeting statedly for worship, and taught and spiritually disciplined by one Minister and certain other church-officers called Lay Elders, so England was to be a large country of some 10,000 or 12,000 parishes and parochial congregations, each after the same fashion. As in Scotland the parishes or congregations, though mainly managing each its own affairs, were not independent, but were bound together in groups by the device of Presbyteries, or periodical courts consisting of the ministers and ruling elders of a certain number of contiguous parishes meeting to hear appeals from congregations, and otherwise exercise government, so the ten times more numerous parishes of England were similarly to be grouped into Presbyteries or Classes (Classes was the more favourite English term), each Classis containing some ten or twelve congregations. Thus in London alone, where there were about 120 parishes, there ought to be about twelve Classes or Presbyteries. Finally, the Presbyteries were to be interconnected, and their proceedings supervised, as in, Scotland, by periodical Synods of the ministers and ruling elders of many Presbyteries—say of all the Presbyteries of one large shire, or of several small shires taken as a convenient ecclesiastical district. In Scotland the practice was for all the ministers and ruling elders within the bounds of a Provincial Synod to attend the Synod personally; but in England, on account of her size, the plan of Synods of elected representatives might be advisable—which, however, would not affect the principle. In any case, the annual National Assembly of the whole Church, which, under the new Presbyterian system, would be to England the same Ecclesiastical Parliament that the General Assembly in Edinburgh was to Scotland, must

necessarily, like that Assembly, be constituted representatively. Nothing less than all this was implied in the eight Resolutions of the Commons on Friday, Jan. 23, 1644-5. By an order of Monday the 27th, however, Mr. Rous, who had been commissioned to report the Resolutions to the Lords, was instructed to report only four of them,—the 3rd, the 6th, the 7th, and the 8th. The answer of the Lords on the following day was "That this House agrees with the House of Commons in all the Votes now brought up concerning Church-government." In refraining from sending up all the eight Votes, the Commons appear to have thought it best not yet positively to determine against the Congregationalists on one or two points, including that of strict parochialism. But in the four Votes sent up to the Lords and agreed to by them, all the essentials of Presbytery were involved; so that from the 28th of January 1644-5 it stood registered in the Acts of Parliament that England should, be Presbyterianized. [Footnote: Commons and Lords Journals of dates given.]

At this stage of the proceedings we may leave the Westminster Assembly for a while. On the 26th of December, Johnstone of Warriston and Mr. Barclay had left it, in order to be present at the Scottish Convention of Estates, which was to meet at Edinburgh on the 7th of January; [Footnote: Baillie, II. 251.] and on the 6th of January Baillie and Gillespie left it, on a weary horse-journey, in order to be present at the General Assembly of the Scottish Kirk, which was to meet at the same place on the 22nd. [Footnote: Baillie, II. 250.] Henderson and Rutherford remained in London. What tidings were carried by the Scottish Commissioners to Edinburgh of the great things which the Lord had up to that time done for the cause of Presbytery and true Religion in England may be read to this day in the records of the Scottish Parliament and the Scottish General Assembly of 1645. Baillie's exulting speech in the Assembly is really worth reading. [Footnote: It is given in Baillie's Letters, II. 255-257. But see also Letter of Scottish Commissioners and Letter of Westminster Assembly to the Scottish

General Assembly, both of date Jan. 6, 1645, in Acts of General Assembly of the Kirk.] Suffice it to say here that there was great rejoicing in Edinburgh and in all Scotland; that the General Assembly unanimously ratified the Westminster Directory of Worship (Feb. 3) and the Westminster Frame of Presbyterianial government (Feb. 10); and that the Scottish Parliament (Feb. 6) approved and established, for Scotland, the Directory already established for England. Let us add that Baillie had a pleasant holiday, revisited his wife and family in Glasgow, and would fain have been allowed to remain in his own country thenceforth. But this could not be. Both he and Gillespie had to obey orders, and prepare, with sighs, for a return to London in March.

STATE OF THE WAR: SELF-DENYING ORDINANCE AND NEW MODEL.

During the six months the transactions of which, as far as the Westminster Assembly was concerned, we have thus presented in summary (Sept. 1644-March 1645), the hurry of more general events in England had been very marked. Of what use was the preparation of a Presbyterian Form of Church-government, and a Presbyterian Directory of Worship, for England, so long as it remained uncertain whether England might not be once again the King's, and the Parliament under his feet? And, really, there was this danger. Marston Moor had been a great blow to the King: it had spoilt his cause in the whole of the North. But Essex's defeat in Cornwall (Sept. 1) had come as a terrible set-off, In the confidence of that victory, the King was on the move out of the West back to Oxford (Sept. 30), sending proclamations before him, and threatening a march upon London itself. The taking of Newcastle by the Scots under Leven (Oct. 19) was a return of good fortune for the Parliament at the right moment; at least it provided the Londoners again with their long-missed coals. But it had come now to be a contest

between the King's main force and the combined forces of Parliament in the South-English midlands. In the second Battle of Newbury (Sunday, Oct. 27) the issue was tried—the Earl of Manchester's army, with Cromwell second in it, having been joined to the recruited armies of Essex and Waller in order to resist the King. Manchester and Waller were the real Parliamentary commanders, Essex being ill. It was a severe battle. The King had, on the whole, the worst; but he got off, as Cromwell and others thought, less thoroughly beaten than he ought to have been. [Footnote: Rushworth, V. 721-730; Carlyle's Cromwell (ed. 1857), I. 159.] From the date of this second Battle of Newbury, accordingly, Cromwell became the spokesman of a dissatisfaction with the military and political conduct of the cause of Parliament as deep and as wide-spread throughout England as that dissatisfaction with the conduct of the religious question of which he had made himself the spokesman six weeks before.

What Cromwell had thought when he moved the Accommodation Order of Sept. 13 had been virtually this: "Here are you discoursing about strict Presbytery and what differences from it may be tolerated, when the real question is whether we shall have a free England for Presbytery or anything else to exist in, and how we can carry with us all honest men who will fight to make such a free England." And now, when, after the second Battle of Newbury, he again reappeared in Parliament, it was in this prolongation, or profounder state, of the same mood:—"The time has come when I must speak out. We, of this nation, must turn over a new leaf. We have been fighting the King now for more than two years, and we are very much as we were when we began. And why? Because the men who command our armies against the King do not want really to beat him; because they want only to *seem* to be beating him; because the picture they love to look on, as their heaven on earth to come, is a picture of their gracious sovereign, after he has been beaten no more than could be helped, surrounded by themselves as his reconciled and pardoned ministers and chatting pleasantly

with them over the deeds of the campaigns. I say nothing personally of my Lord of Essex, or of Sir William Waller: they are most honourable men. But I speak generally as I feel. If the King is to be beaten, it can only be by generals who want to beat him, who will beat him to bits, who will use all means to beat him, who will gladly see in their armies the men who have the right *spirit* in them for beating him. Are these the Presbyterians only? I trow not. I know my men; and I tell you that many of those that you call Independents, that you call Anabaptists, Sectaries, and what not, are among the stoutest and godliest in England, and will go as far as any. Some weeks ago I complained to you of Major-general Crawford, because he would trouble these men, and would have no soldiers of Parliament in my Lord Manchester's army that did not agree with his own notions of Religion and Church-government. Now I complain of my Lord Manchester himself. In this last Battle of Newbury, I tell you, the King was beaten less than he might have been. He was allowed to get off. I advised pursuing him, and my Lord Manchester would not. It was that over again which has been from the first. And now I speak out what has long been in my mind, and what brave men in thousands are thinking. Before the Lord, we must turn over a new leaf in this War. We must have an Army of the right sort of men, and men of the right sort to command that Army."

This is a purely imaginary speech of Cromwell's; but it is an accurate expression of several months of English history. The shrewdest of men at all times, and also the most sincere, he was yet always the most tempestuous when the fit time came, and it was the characteristic of his life that he carried everything before him at such times by his bursts and tempests. There can be no doubt that, after the second Battle of Newbury, Cromwell was in one of his paroxysms. Of his vehemence against Manchester at that time, and of Manchester's recriminations on him, one may read at large in Rushworth and elsewhere. [Footnote: Rushworth, V. 732-736; Carlyle's Cromwell (ed. 1857), I. 159, 160.] The brief account of

Baillie, who had not yet left London, and was in the centre of the whole affair, will be sufficient here. "Lieutenant-general Cromwell," writes Baillie, Dec. 1, "has publicly, in the House of Commons, accused my Lord of Manchester of the neglect of fighting at Newbury. That neglect indeed was great; for, as we now are made sure, the King's army was in that posture that they took themselves for lost all-utterly. Yet the fault is most in justly charged on Manchester: it was common to all the general officers then present, and to Cromwell himself as much as to any other. Always my Lord Manchester has cleared himself abundantly in the House of Lords, and there has recriminate Cromwell as one who has avowed his desire to abolish the nobility of England; who has spoken contumeliously of the Scots' intention in coming to England to establish their Church-government, in which Cromwell said he would draw his sword against them; also against the Assembly of Divines; and has threatened to make a party of Sectaries, to extort by force, both from King and Parliament, what conditions they thought meet. This fire was long under the embers; now it's broken out, we trust, in a good time. It's like, for the interest of our nation, we must crave reason of that darling of the Sectaries [*i.e.* bring Cromwell to a reckoning], and, in obtaining his removal from the army—which himself by his over-rashness has procured—to break the power of that potent faction. This is our present difficile enterprise: we had need of your prayers." [Footnote: Baillie, II. 243-245.] In this account Baillie mixes up the proceedings in the Commons on the 25th of November when Cromwell exhibited his charge against Manchester, and in the Lords a few days after when Manchester gave in his defence and countercharge, with current gossip, apparently true enough, of Cromwell and his awful sayings in private. Evidently Baillie thought Cromwell had ruined himself. Even the hero of Marston Moor could not beard all respectable England in this way, and it should not be the fault of the Scottish Commissioners if he did not find himself shelved!

Little did Baillie know with what great things, beyond all Scottish power of resistance or machination, Cromwell's fury was pregnant.

While Baillie was writing the passage above quoted, the Scottish Commissioners, along with the Lord-general Essex, and some of Essex's chief adherents, including Denzil Holles and Sir Philip Stapleton, were consulting how they might trip Cromwell up. At a conference late one night at Essex-house, to which Whitlocke and Maynard were invited, the Scottish Chancellor Loudoun moved the business warily in a speech which Whitlocke mischievously tries to report in its native Scotch—"You ken vary weelee that Lieutenant-general Cromwell is no friend of ours," &c. "You ken vary weelee the accord 'twixt the twa kingdoms" &c. Loudoun wanted to know, especially from the two lawyers, whether the Scottish plan of procedure in such cases would have any chance in England, in other words whether Cromwell could be prosecuted as an *incendiary*; for "you may ken that by our law in Scotland we clepe him an *incendiary* whay kindleth coals of contention and raiseth differences in the State to the public damage." Whitlocke and Maynard satisfied his lordship that the thing was possible in law, but suggested the extreme difficulty there would be in proof, represented Cromwell's great influence in the Parliament and the country, and in fact discouraged the notion altogether. Holles, Stapleton, and others were still eager for proceeding, but the Scots were impressed and thought delay would be prudent. And so, Whitlocke tells us, the Presbyterian intriguers parted at two in the morning, and he had reason to believe that Cromwell knew all that had passed before many hours were over, and that this precipitated what followed. [Footnote: Whitlocke's Memorials (edit. Oxford, 1853), I. 313 *et seq.*]

On Wednesday the 9th of December, at all events, the Commons having met in grand committee on the condition of the kingdom through the continuance of the war, there was for a time a dead silence, as if something

extraordinary was expected, and then Cromwell rose and made a short speech. It was very solemn, and even calm, but so hazy and general that the practical drift of it could not possibly have been guessed but for the sequel. Almost the last words of the speech were, "I hope we have such true English hearts, and zealous affections towards the general weal of our mother-country, as no members of either House will scruple to *deny themselves*, and their own private interests, for the public good." The words, vague enough in themselves, are memorable as having christened by anticipation the measure for which Cromwell, as he uttered them, was boring the way. For, after one or two more had spoken in the same general strain, Mr. Zouch Tate, member for Northampton, did the duty assigned him, and opened the bag which contained the cat. He made a distinct motion, which, when it had been seconded by young Vane, and debated by others (Cromwell again saying a few words, and luminous enough this time), issued in this resolution, "That no member of either House of Parliament shall during the war enjoy or execute any office or command, military or civil; and that an ordinance be brought in to that effect." This was on the 9th of December; and on the 19th of that month the ordinance itself, having gone through all its stages, passed the Commons. All London was astounded. "The House of Commons," writes Baillie, Dec. 26, "in one hour has ended all the quarrels which was betwixt Manchester and Cromwell, all the obloquies against the General, the grumblings against the proceedings of many members of their House. They have taken all office from all members of both Houses. This, done on a sudden, in one session, with great unanimity, is still more and more admired by some, as a most wise, necessary, and heroic action; by others as the most rash, hazardous, and unjust action that ever Parliament did. Much may be said on both hands, but as yet it seems a dream, and the bottom of it is not understood." To the House of Lords the *Self-denying Ordinance* was by no means palatable. They demurred, conferred with the Commons about it, and at last

(Jan. 15) rejected it. Their chief ground of rejection being that they did not know what was to be the shape of the Army to be officered on the new principle, the Commons immediately produced their scheme in that matter. The existing armies were to be weeded, consolidated, and recruited into one really effective army of 21,000 men (of which 6,000 should be horse in ten regiments, 1,000 should be dragoons in ten single companies, and 14,000 should be foot in regiments of not less than 1,200 each), the whole to cost 44,955_l_. per month, to be raised by assessment throughout the kingdom. This army, it was farther resolved by the Commons (Jan. 21), should be commanded in chief by the trusty and popular Sir Thomas Fairfax, who had done so well in the North, and, under him, by the trusty and popular Major-general Skippon, whose character for bull-headed bravery even the disaster in Cornwall had only more fully brought out. [Footnote: I find, from the Commons Journals, that there was a division on the question whether Fairfax should be appointed commander-in-chief of the New Model—the state of the vote being *Yeas* 101 against *Noes* 69, or a majority of 32 *for* the appointment. The Tellers for the majority were the younger Vane and Cromwell; for the minority, Denzil Holles and Sir Philip Stapleton. There was a subsequent division, Feb. 7, on the question whether Fairfax's choice of officers under him should be subject to Parliamentary revision. Cromwell was one of the Tellers for the *Noes*—*i.e.* he wanted Fairfax to have full powers. The other side, however, beat this time by a majority of 82 against 63. After all it was arranged satisfactorily between Fairfax and Parliament.] On the 28th of January the *New Model* complete passed the Commons. The Lords hesitated about some parts of it, and were especially anxious for a provision in it incapacitating all from being officers or soldiers in the new army who should not have taken the Covenant: there were conferences on this point, and a kind of compromise on it by the Commons; and on the 15th of February the *Ordinance for New Modelling of the Army* was finally passed. The *Self-denying Ordinance* was then re-introduced in a changed

form, and it passed the Lords, April 3, 1645. It ordained that all members of either House who had since November 20, 1640, been appointed to any offices, military or civil, should, at the end of forty days from the passing of the Ordinance, vacate these offices, but that all other officers in commission on the 20th of March, 1644-5, should continue in the posts they then held.

Thus the year 1645 (beginning, in English reckoning, March 25) opened with new prospects. Essex, Manchester, Waller, and all the officers under them, retired into ordinary life, with thanks and honours—Essex, indeed, with a great pension; and the fighting for Parliament was thenceforward to be done mainly by a re-modelled Army, commanded by Fairfax, Skippon, and officers under them, whose faces were unknown in Parliament, and whose business was to be to fight only and teach the art of fighting.

It was high time! For another long bout of negotiations with the King, begun as early as Nov. 20, 1644, and issuing in a formal Treaty of great ceremony, called "The Treaty of Uxbridge," had ended, as usual, in no result. Feb. 22, it had been broken off after such a waste of speeches and arguments on paper that the account of the Treaty occupies ten pages in Clarendon and fifty-six folio pages in Rushworth. It was clear that the year 1645 was to be a year of continued war. [Footnote: For this story of the Self-denying Ordinance and the New Modelling of the Army authorities are—Rushworth, VI. 1-16; Baillie, II. 247; Carlyle's *Cromwell* (ed. 1857), I. 160-163. The Uxbridge Treaty is narrated in Clarendon's *Hist.* (one-volume ed. 1843), pp. 520-530, and in Rushworth, V. 787-842.]

PARLIAMENTARY VENGEANCES: DEATH OF LAUD.

Ere we pass out of the rich general history of this year 1644, the year of Marston Moor, we must take note of a few vengeances and deaths with which it was wound up. The long-deferred trial of poor Laud, begun March

12, 1643-4, after he had been more than three years a prisoner in the Tower, and they might have left him there in quiet, had straggled on through the whole of 1644. The interest in it had run, like a red thread, through the miscellany of other events. The temper of the people had been made fiercer by the length of the war, and there was a desire for the old man's blood. The Presbyterian ministers of the Assembly, I find, fostered this desire. In that very sermon of Herbert Palmer's before Parliament (Aug. 13) in which he had called for the extirpation of heresy and schism, and denounced Milton, there was an express passage on the duty of "doing justice upon Delinquents impartially and without respect of persons." [Footnote: Palmer's Sermon, p. 48.] Calamy in his sermon, Oct. 22, followed, and told the Parliament, "All the guilty blood that God requires you in justice to shed, and you spare, God will require the blood at your hands." [Footnote: Calamy's Sermon, p. 27.] Mr. Francis Woodcock, preaching Oct. 30, was even more decided. His sermon, which was on Rev. xvi. 15, is a very untastefully-worded discourse on the propriety of always being on the watch so as not to be taken by surprise without one's garments; and, among the rather ludicrous images which his literal treatment of the subject suggests, we come upon a passage describing one of four pieces of raiment which the State ought never to be caught without. He calls it the "Robe of Justice," and adds, "Would God this robe were often worn, and dyed of a deeper colour in the blood of Delinquents. It is that which God and man calls for. God repeats it, *Justice, Justice*; we, echoing God, cry *Justice, Justice*; and let me say, perhaps we should not see other garments so much rolled in blood, did we not see these so little." [Footnote: Woodcock's Sermon, pp 30, 31.] Baillie, I am glad to think, was more tender-hearted. There was, indeed, one Delinquent for whom Baillie would have had no mercy—Dr. Maxwell, the Scottish ex-Bishop of Ross, who had published at Oxford, in the King's interest, "a desperately malicious invective" against Scottish Presbytery and its leaders. "However I could hardly consent to the

hanging of Canterbury himself, or of any Jesuit," Baillie had written, July 16, 1644, after his first indignant sight of this book, "yet I could give my sentence freely against that unhappy liar's [Maxwell's] life." But, indeed, the Scottish Commissioners and the Scottish nation were conjoined as parties with the English Presbyterians and the English Parliamentarians generally (Prynne ruthlessly busy in getting up the evidence) in the long prosecution of Laud. It was all over on the 10th of January, 1644-5. On that day Laud, aged 72, laid his head upon the block on a scaffold in Tower Hill. Hanging had been commuted, with some difficulty, to beheading. He died brave, raspy, and High-Church to the last. [Footnote: Rushworth's main account of the trial and last days of Laud is in Vol. V. pp, 763-786. The "History of the Troubles and Tryal of William Laud," edited by Wharton, in two vols. folio, appeared in 1695- 1700.]—Minor executions about the same time were those of Hugh Macmahon and Lord Maguire for their concern in the Irish rebellion and massacre, Sir Alexander Carew for treachery at Plymouth, and the Hothams, father and son, for treachery at Hull. One Roger L'Estrange, a younger son of a Norfolk family, had been condemned to be hanged in Smithfield for an underhand attempt to win the town of Lynn for the King; but he was reprieved, lay in Newgate for some years, and lived for sixty years longer, to be known, even in Queen Anne's time, as Sir Roger L'Estrange, the journalist.

CHAPTER II.

MILTON AMONG THE SECTARIES, AND IN A "WORLD OF DISESTEEM": STORY OF MRS. ATTAWAY—SAMUEL HARTLIB, JOHN DURIE, AND JOHN AMOS COMENIUS: SCHEMES OF A REFORMED EDUCATION, AND PROJECT OF A LONDON UNIVERSITY—MILTON'S *TRACT ON EDUCATION*, AND METHOD WITH HIS PUPILS—HIS SECOND DIVORCE TRACT, OR COMPILATION FROM BUCER—MR. HERBERT PALMER'S ATTACK ON MILTON FROM THE PULPIT—MILTON AND THE STATIONERS' COMPANY: THEIR ACCUSATION OF HIM IN A PETITION TO THE COMMONS—HIS *AREOPAGITICA*, OR SPEECH FOR THE LIBERTY OF UNLICENSED PRINTING—ANGER OF THE STATIONERS, AND THEIR COMPLAINT AGAINST MILTON TO THE LORDS: CONSEQUENCE OF THE COMPLAINT—THE DIVORCE QUESTION CONTINUED: PUBLICATION OF MR. HERBERT PALMER'S SERMON, AND FARTHER ATTACKS ON MILTON BY PRYNNE, DR. FEATLEY, AND AN ANONYMOUS PAMPHLETEER—*TETRACHORDON AND COLASTERION*: THEIR REPLIES TO THE ASSAILANTS.

Ever since August 1643, when Milton had published his extraordinary *Doctrine and Discipline of Divorce*, but more especially since Feb. 1643-4, when he had published the second and enlarged edition of it, with his name in full, and the dedication to Parliament and the Westminster Assembly, his reputation with orthodox English society had been definite enough. He was one of those dreadful Sectaries! Nay he was a Sectary more odious than most; for his was a *moral* heresy. What was Independency, what was Anabaptism, what was vague Antinomianism, compared with this heresy of the household, this loosening of the holy relation on which all civil society depended? How detestable the doctrine that, when two married people found they had made a mistake in coming together, or at least when the husband could declare before God and human witnesses his irreconcilable

dissatisfaction with his wife, then it was right that the two should be separated, with liberty to each to find a new mate! True, it was an able man who had divulged this heresy, one who had brought applauses from Cambridge, who was said to have written beautiful English poems, who had served the cause of Parliament by some splendid pamphlets for Church-reformation and against Episcopacy, and who had in these pamphlets encountered even the great Bishop Hall. All this only made the doctrine more dangerous, the aberration more lamentable. This Mr. Milton must be avoided, and denounced as a Sectary of the worst kind! Some said it was all owing to the conduct of his wife, a rank Royalist, who had deserted him and gone back to her friends! If that were the case, he was to be pitied; but perhaps there were two sides to that story too!

There must have been much gossip of this kind, about Milton and his Divorce Treatise, in the booksellers' shops near St. Paul's, and even round the Parliament in Westminster, in the early months of 1644. The gossip may have affected Milton's relations with some of his former friends and acquaintances. If Bishop Hall, when he first saw the treatise, and perceived its literary ability, "blushed for his age" that so "scandalous" a thing should have appeared, and if even Howell the letter-writer, in his prison, thought it the impudent production of "a poor shallow-brained puppy," what could Milton's orthodox and reverend Smectymnuan friends—Marshall, Calamy, Young, Newcomen, and Spurstow—think or say about it? Shocked they must have been; and, knowing Milton's temper, and with what demeanour he would front any remonstrances of theirs, they probably left him alone, and became scarcer in their visits to Aldersgate Street. It would not do to keep up the Smectymnuan connexion too visibly after what had happened. Or, if Young could not break off so easily, but would still call to see his old pupil, and to talk with old Mr. Milton about the Bread Street days, how the good man must have yearned to speak sometimes when the old gentleman was out of the way, and he and Milton were alone. "O my dear Mr. Milton,

how much we are all concerned about that pamphlet! I am not going to argue it with you; I know you too well, and how little influence my reasonings could have with you now in any such matter; and it is my comfort at least to be able to tell some of my Assembly friends that, if they knew you as well as I do, they would be sure that nothing you do but is done in a great spirit and with a high intention. But, dear me! it is a terrible opinion you have broached!" To something like this Milton may have listened, more or less patiently; or he may have imagined it in Young's mind, if it was not uttered. The mutual regard between Young and his old pupil did not suffer so much from the trial but that we find Milton still willing to acknowledge publicly the connexion that had subsisted between them.

On the whole, it is certain that one consequence of the outcry about Milton's treatise among the London Presbyterians, and especially among the city clergy and the Divines of the Assembly, was to drive Milton more and more into the society of those who had begun to dislike and to dread the ascendancy of the Presbyterians. Finding himself, almost from the first publication of the treatise, as he tells us, in "a world of disesteem" on account of it, he naturally held intercourse more and more with those who, though they may not have approved of *his* particular heresy, yet, as being themselves voted heretics on other accounts, were more easy in their judgments of all extreme opinions. I believe, in fact, that, could Milton's acquaintanceships in London from the winter of 1643-4 onwards be traced and recovered, they would be found to have been chiefly among the Independents, Anabaptists, Antinomians, Seekers, and other Tolerationists. What were the religious opinions of the Lady Margaret Ley, that "woman of great wit and ingenuity," and her husband Captain Hobson, "a very accomplished gentleman," with both of whom he was so intimate about this time, and who, as Phillips tells us, "had a particular honour for him and took much delight in his company," must be left to conjecture. [Footnote: It

has been in my mind whether the Captain Hobson who was the Lady Ley's husband, and whom Dagdale describes as "... Hobson of... in the Isle of Wight, Esq.," can by possibility have been the same person as the Baptist preacher, Paul Hobson, who was also a Captain in the Parliamentary Army, and who figures much in Edwards's *Gangræna* and in other books of the time, under the express name of "Captain Hobson," as a leading Sectary, though Edwards will have it that he was originally "a tailor from Buckinghamshire" (*antè*, p. 148). The supposition seems so absurd that I hardly like to mention that I spent hours in turning over Paul Hobson's published sermons and Baptist treatises in case I might come on any confirmation of it—which I did *not*.]

From Milton's Sonnet to the Lady Margaret one may safely infer at least that she was a woman of liberal principles as well as wit. Probably her house was the resort of a good many of what would now be called the "advanced" or "strong-minded" Christians of both sexes then in London; and Milton may there have extended his acquaintance with such, and have even been an object of peculiar interest to some of one sex, as "that handsome, fair gentleman, now talking to Lady Margaret, who is a great scholar and a poet, and whose wife has left him shamefully, so that he wants to be divorced from her, and has written a book which quite proves it." Milton's acquaintance with Roger Williams, at all events, is almost certainly to be dated from Williams's visit to England in 1643-4, when he was writing his *Bloody Tenent*; and if Milton, at the same time, did not become acquainted with John Goodwin of Coleman Street, it would be a wonder.

STORY OF MRS. ATTAWAY.

We must, I am sorry to say, descend lower in the society of London, in and about 1644, than the Lady Margaret Ley's drawing-room, or the level of marked men like Williams and Goodwin, if we would understand how Milton's Divorce opinion had begun to operate, and with what consequences of its operation his name was associated. The reader may remember a Mrs. Attaway, mentioned by us among both the Baptists and the Seekers, and as perhaps the most noted of all the women-preachers in London (*antè*, pp. 149, 153). She was, it seems, a "lace-woman, dwelling in Bell Alley in Coleman Street," and preaching on week-day afternoons in that neighbourhood, with occasional excursions to other parts of the city where rooms could be had. Sometimes other "preaching-women" were with her, and the gatherings, though at first of her own sex only, soon attracted curious persons of the other. From the descriptions of what passed in some of them, it would appear that, though the meetings were for worship, and there were regular discourses by Mrs. Attaway and others, free talk and criticism was permitted to all present, so that the conventicle took on sometimes the aspect of a religious debating society. Well, Mrs. Attaway, among others, had got hold of Milton's Divorce Treatise, and had been reading it. "Two gentlemen of the Inns of Court, civil and well-disposed men," who had gone "out of novelty" to hear her, afterwards told *Gangræna* Edwards of some "discourse they had had with her." Among other passages she "spoke to them of Master Milton's *Doctrine of Divorce*, and asked them what they thought of it; saying "it was a point to be considered of, and that she, for her part, would look more into it, for she had an unsanctified husband, that did not walk in the way of Sion, nor speak the language of Canaan." Edwards does not give the date of this conversation with Mrs. Attaway; and, though presumably in 1644, it may have been later. He evidently introduces it, however, in order to implicate Milton in the subsequent break-down, which he also reports, of the poor woman morally. For, if Mr. Edwards is to be believed, Mrs. Attaway did "look more into"

Milton's doctrine, and at length acted upon it. Some time in 1645 she abjured her "unsanctified husband" Mr. Attaway, who, besides being unsanctified, was then absent in the army, leaving her alone in her lace-shop, and transferred herself to a man named William Jenney, an occasional preacher, who was much more sanctified, and was also on the spot. Mr. Jenney had, unfortunately, a wife already, some children by her, and one expected; but he too had been meditating on the Divorce Doctrine, and had used his Christian liberty. Mr. Edwards had been most particular in his investigations. He had actually procured from a sure hand the copies of two letters—taken from the original letters, and compared by a minister with the originals—one of William Jenney to his wife since he went away with Mistress Attaway, the other of Mistress Attaway to William Jenney before his going away." He refrains from printing the letters *verbatim*, as they were too long; but he gives extracts. "I thought good to write to you these few lines," writes Jenney to the deserted Mrs. Jenney, Feb. 15, 1645, "to tell you that, because you have been to me rather a disturber of my body and soul than to be a meet help for me—— but I silence! And, for looking for me to come to you again, I shall never come to you again any more. I shall send unto you never no more concerning anything." If this actually was Jenney's letter, Mrs. Attaway was worth ten of him, and deserved a better second. "Dearest friend and well-beloved in the Lord," so she had begun the letter sent to him while he was still Mrs. Jenney's, and which had got into Mrs. Jenney's hands, "I am unspeakably sorry in respect of thy sufferings, I being the object that occasioned it." The sufferings were Mrs. Jenney's bastings of him because he was always with Mrs. Attaway. In good time, Mrs. Attaway goes on to say, he would be delivered from these. "When Jehoshaphat knew not what to do, he looked to the Lord. Let *us* look to Him, believing confidently in Him with the faith of Jesus; and no question but we shall be delivered. In the mean season I shall give up my heart and affections to thee in the Lord; and, whatsoever I have or am in Him which is our Head, thou

shalt command it." The event, according to Edwards, was that Mr. Jenney and Mrs. Attaway eloped together, Mrs. Attaway having persuaded Jenney that she should never die, but that, in obedience to a heavenly message, they must go to Jerusalem, and repair that city in anticipation of the bringing of all the Saints to it in ships to be sent from Tarshish. I suspect they went only to Jericho. [Footnote: This story of Mrs. Attaway is from Edwards's *Gangræna*, Part II. pp. 31, 32, 113- 115; *Fresh Discovery*, appended to Second Part of *Gangræna*, p. 9; and Third Part of *Gangræna*, pp. 25-27 and 188. See also Baillie's *Dissuasive*, Part II. pp. 100 and 123-4.]

All this on the faith of Mr. Edwards's statements in the *Gangræna*. But really one should not judge of even a poor enthusiastic woman, dead two hundred years ago, on that sole authority. Never was there a more nauseous creature of the pious kind than this Presbyterian Paul Pry of 1644-46. He revelled in scandals, and kept a private office for the receipt of all sorts of secret information, by word of mouth or letter, that could be used against the Independents and the Sectaries. [Footnote: Richard Baxter, as he himself tells us, sent communications from the country to Edwards. His correspondents were legion, but he concealed their names.] Yet there was a kind of coarse business-like conscientiousness in the toad; and, though he was credulous and unscrupulous in his collections of scandal, I do not believe he invented documents or lied deliberately. I do not doubt, therefore, that Mrs. Attaway, whether she went ultimately to Jericho or to Jerusalem, did know of Milton's Divorce Doctrine, and had extracted suggestions from it suitable to her circumstances. For, indeed, the Doctrine was likely to find not a few whose circumstances it suited. Mr. Edwards's book is strewn with instances of persons who had even found out a tantamount doctrine for themselves—men who had left their wives, or wanted to do so, and wives who had left their husbands, and who, without having seen Milton's treatise, defended their act or their wish on grounds of religion and natural law. Nay, in the frenzy of inquiry which had taken

possession of the English mind, everything appertaining to Marriage and the Marriage-institution was being plucked up for fundamental re-investigation. There were actually persons who were occupying themselves intently with questioning the forbidden degrees of Consanguinity and Affinity in marriage, and who had not only come to the easy conclusion that marriage with a deceased wife's sister is perfectly legitimate, but had worked out a general theologico-physiological speculation to the effect that the marriage of near relatives is in all cases peculiarly proper, and perhaps the more proper in proportion to the nearness of the relationship. This, I imagine, was a very small sect. [Footnote: But, unless Edwards and Baillie were both wrong, there *was* some such sect. See *Gangræna*, Part III. p. 187, and, more particularly, Baillie's *Dissuasive*, Part II. pp. 100 and 122-3.]

Let us re-ascend into more pleasant air. There was one rather notable person in London, of the highly respectable sort, though, decidedly among the free opinionists, whose acquaintance Milton did make about this time, if he had not made it before, and who must be specially introduced to the reader. This was SAMUEL HARTLIB.

**SAMUEL HARTLIB: JOHN DURIE: JOHN AMOS COMENIUS,
AND HIS SPECULATIONS ABOUT A REFORMED EDUCATION—
PROJECT OF A LONDON UNIVERSITY.**

Everybody knew Hartlib. He was a foreigner by birth, being the son of a Polish merchant, of German extraction, who had left Poland when that country fell under Jesuit rule, and had settled in Elbing in Prussia in very good circumstances. Twice married before to Polish ladies, this merchant had married, in Prussia, for his third wife, the daughter of a wealthy English merchant of Dantzic; and thus our Hartlib, their son, though Prussian-born and with Polish connexions, could reckon himself half-English. The date of his birth was probably about the beginning of the century, *i.e.* he may have

been eight or ten years older than Milton. He appears to have first visited England in or about 1628, and from that time, though he made frequent journeys to the Continent, London had been his head-quarters. Here, with a residence in the City, he had carried on business as a "merchant," with extensive foreign correspondences, and very respectable family connexions. One of his aunts (sisters of his mother) had married a Mr. Clark, the son of a former Lord Mayor of London, and afterwards a Sir Richard Smith, Knight and Privy Councillor, and again a Sir Edward Savage. The other aunt had married a country gentleman, named Peak. A cousin of Hartlib's, the daughter of the first and wealthier aunt, Lady Smith, became the wife of Sir Anthony Irby, M.P. for Boston in the Long Parliament. But it did not require such family connexions to make Hartlib at home in English society. The character of the man would have made him at home anywhere. He was one of those persons, now styled "philanthropists" or "friends of progress," who take an interest in every question or project of their time promising social improvement, have always some iron in the fire, are constantly forming committees or writing letters to persons of influence, and altogether live for the public. By the common consent of all who have explored the intellectual and social history of England in the seventeenth century, he is one of the most interesting and memorable figures of that whole period. He is interesting both for what he did himself and also on account of the number and intimacy of his contacts with other interesting people. [Footnote: Memoir of Hartlib by H. Dircks, pp 2-6, where there are extracts from an autobiographical letter of Hartlib to Worthington, written in 1660. "The Diary and Correspondence of Dr. John Worthington," edited by James Crossley, Esq., F.S.A. (Chetham Society), contains many letters from Hartlib to Worthington, between 1655 and 1662, but not this one. Mr. Crossley's Diary and Correspondence of Worthington, so far as it has gone, is one of the best edited books known to me, the footnotes being very nuggets of biographical lore; and it is to be regretted that the connected

notices of Worthington, Hartlib, and Durie, postponed by Mr. Crossley until the work should be completed, have not yet appeared.]

An early friend of Hartlib, associated with him long before the date at which we are now arrived, was that John Durie of whom, and his famous scheme for a union of all the Protestant Churches of Europe, we have already had to take some account (Vol. II. pp. 367-8 and 517-8). Their intimacy must have begun in Hartlib's native town of Elbing in Prussia, where, I now find, Durie was residing in 1628, as minister to the English company of merchants in the town, and where, in that very year, I also now find, Durie had the great idea of his life first suggested to him by the Swedish Dr. Godeman. [Footnote: The proof is in statements of Hartlib's own in a Tract of his published in 1641 under the title of "A Briefe Relation of that which hath been lately attempted to procure Ecclesiasticall Peace amongst Protestants."] Among Durie's first disciples in the idea must certainly have been Hartlib; and it does not seem improbable that, when Hartlib left Prussia, in or about 1628, to settle in England, it was with an understanding that he was to be an agent or missionary for Durie's idea among the English. That he did so act, and that he was little less of an enthusiast for Durie's idea than Durie himself, there is the most positive evidence. Thus, in a series of letters, preserved in the State Paper Office, from Durie abroad to the diplomatist Sir Thomas Roe, of various dates between April 1633 and Feb. 1637-8, there is incessant mention of Hartlib. In the first of these letters, dated from Heilbron April 2/12, 1633, Durie, among other things, begs Roe "to help Mr. Hartlib with a Petition of Divines of those quarters concerning an Edition of a Body of Divinity gathered out of English authors, a work which will be exceeding profitable, but will require divers agents and an exact ordering of the work." In a subsequent letter Durie speaks of having sent Roe, "by Mr. Hartlib, whose industry is specially recommended," an important proposition made by the Swedish Chancellor Oxenstiern; and in still later letters Roe is requested by

Durie to show Hartlib not only Durie's letters to himself, but also letters about the progress of his scheme which he has enclosed to Roe for the Archbishop of Canterbury (Abbot) and the Bishop of London (Laud). At this point, accordingly, July 20, 1633, there is a letter of Roe's to the Archbishop, from which it appears that Hartlib was made the bearer of Durie's letter to his Grace. Roe recommends the blessed work in which Durie is engaged, says that it seems to him and Durie that "there is nothing wanting but the public declaration of his Majesty and the Church of England" in its favour, and beseeches the Archbishop "to give his countenance to the bearer," described in the margin as "Mr. Hartlib, a Prussian." As Abbot was then within fifteen days of his death, nothing can have come of the application to him; and, as we already know, his successor Laud was a far less hopeful subject for Durie's idea, even though recommended by Roe and explained by Hartlib. In fact, he thought it mischievous moonshine; and, instead of giving Durie the encouragement which he wanted, he wrote to the English agent at Frankfort, instructing him to show Durie no countenance whatever. Durie felt the rebuff sorely. In England, he writes, he must depend now chiefly on Roe, who could still do much privately, apart from Laud's approbation. "Mr. Hartlib will send anything to Durie which Roe would have communicated to him in a secret way." So in June 1634; and fourteen months later (Aug. 1635) Durie, who had meanwhile removed to the Hague, again writes to Roe and again relies on Hartlib. The Dutch, he says, are slow to take up his scheme; and he can think of nothing better in the circumstances than that Roe in England should collect "all the advices and comments of the best divines of the age" on the subject, and have them printed. His very best agent in such a business would be Hartlib, "a man well known, beloved and trusted by all sides, a man exceeding painful, diligent and cordially affected to these endeavours, and one that for such works had lost himself by too much charity." On independent grounds it would be well to find him "some place suitable for

his abilities, which might rid him of the undeserved necessities whereunto his public-heartedness had brought him;" but in this special employment he would be invaluable, being "furnished with the Polish, Dutch, English, and Latin languages, perfectly honest and trusty, discreet, and well versed in affairs." In the same strain in subsequent letters. Thus, from Amsterdam Dec. 7/17, Roe is thanked for having bestowed some gratuity on Hartlib, and Hartlib is described as, next to Roe, "the man in the world whom Durie loves and honours most for his virtues and good offices in Durie's cause." At the same time Durie "prays God to free Hartlib from his straits and set him a little on horseback," and adds, "His spirit is so large that it has lost itself in zeal to good things." Again, from Amsterdam Jan 25/Feb 4, 1635-6, Durie writes to Roe and encloses a letter to be sent to his (Durie's) diocesan in Hartlib's behalf. "Mr. Hartlib," Durie says to Roe, "has furnished his lordship (the diocesan) with intelligence from foreign parts for two or three years, and has not yet got any consideration. Perhaps his lordship knows not how Hartlib has fallen into decay for being too charitable to poor scholars, and for undertaking too freely the work of schooling and education of children. If Hartlib and Roe were not in England, Durie would despair of doing any good." The diocesan referred to is probably Juxon, Bishop of London; but, two years later, we find Roe recommending Durie's business and Hartlib personally to another prelate, Bishop Morton of Durham. Writing from St. Martin's Lane, Feb. 17, 1637-8, Sir Thomas "presents the Bishop with a letter from Mr. Durie, and one from Durie to the writer, from which the Bishop may collect his state, and his constant resolution to pursue his business as long as God gives him bread to eat. Such a spirit the writer has never met, daunted with nothing, and only relying upon Providence. ... Sir Thomas in Michaelmas term sent the Bishop a great packet from Samuel Hartlib, correspondent of Durie, an excellent man, and of the same spirit. If the Bishop like his way, Hartlib will constantly write to him, and send all the passages both of learning and public affairs, no man having better

information, especially *in re literariâ*." [Footnote: The quotations in this paragraph are from the late Mr. Brace's accurate abstracts of Durie's and Roe's letters (sixteen in all) given in the six volumes of Calendars of the Domestic State Papers from 1633 to 1638.]

These letters enable us to see Hartlib as he was in 1637, a Prussian naturalized in London, between thirty and forty years of age, nominally a merchant of some kind, but in reality a man of various hobbies, and conducting a general news-agency, partly as a means of income and partly from sheer zeal in certain public causes interesting to himself. His zeal in this way, and in private benevolences to needy scholars and inventors, had even outrun prudence; so that, though he could reckon his means at between 300_l_. and 400_l_. a year, [Footnote: This appears from the letter of his to Worthington, of date Aug. 3, 1660, quoted in Dircks's Memoir (p. 4), where he says, "Let it not seem a paradox to you, if I tell you, as long as I have lived in England, by wonderful providences, I have spent yearly out of my own betwixt 300_l_. and 400_l_. sterling a year."] that had not sufficed for his openhandedness. Durie's great project for a reconciliation of the Calvinists and Lutherans, and a union of all the Protestant Churches of Europe on some broad basis of mutual tolerance or concession, had hitherto been his hobby in chief. He had other hobbies, however, of a more literary nature, and of late he had been undertaking too freely some work appertaining to "the schooling and education of children."

This last fact, which we learn hazily from Durie's letters and Roe's, we should have known, abundantly and distinctly, otherwise. There are two publications of Hartlib's, of the years 1637 and 1638 respectively, the first of a long and varied series that were to come from his pen. Now, both of these are on the subject of Education. "*Conatuum Comenianorum Præludia, ex Bibliothecâ S. H.: Oxoniæ, Excudebat Gulielmus Turnerus, Academia Typographus, 1637*" ("Preludes of the Endeavours of Comenius, from the

Library of S. H.: Oxford, Printed by William Turner, University Printer, 1637")—such is the general title of the first of these publications. It is a small quarto, and consists first of a Preface "*Ad Lectorem*" (to the Reader), signed "Samuel Hartlibius," and then of a foreign treatise which it is the object of the publication to introduce to the attention of Oxford and of the English nation; which treatise has this separate title:—" *Porta Sapientiæ Reserata; sive Pansophiæ Christianæ Seminarium: hoc est, Nova, Compendiosa et Solida omnes Scientias et Artes, et quicquid manifesti vel occulti est quod ingenio humano penetrare, solertiæ imitari, linguae eloqui, datur, brevius, verius, melius, quam hactenus, Addiscendi Methodus: Auctore Reverendo Clarissimoque viro Domino Johanne Amoso Comenio*" ("The Gate of Wisdom Opened; or the Seminary of all Christian Knowledge: being a New, Compendious, and Solid Method of Learning, more briefly, more truly, and better than hitherto, all Sciences and Arts, and whatever there is, manifest or occult, that it is given to the genius of man to penetrate, his craft to imitate, or his tongue to speak: The author that Reverend and most distinguished man, Mr. John Amos Comenius"). So far as I have been able to trace, this is the first publication bearing the name of Hartlib. Copies of it must be scarce, but there is at least one in the British Museum. There also is a copy of what, on the faith of an entry in the Registers of the Stationers' Company, I have to record as his second publication. "Oct. 17, 1638: Samuel Gillebrand entered for his copy, under the hands of Mr. Baker and Mr. Rothwell, warden, a Book called *Comenii Pansophiæ Prodromus et Didactica Dissertatio* (Comenius's Harbinger of Universal Knowledge and Treatise on Education), published by Sam. Hartlib." [Footnote: My notes from Stationers' Registers.] When the thing actually appeared, in small duodecimo, it had the date "1639" on the title-page.

The canvas becomes rather crowded; but I am bound to introduce here to the reader "that reverend and most distinguished man, Mr. John Amos

Comenius," who had been winning on Hartlib's heart by his theories of Education and Pansophia, prepossessed though that heart was by Durie and his scheme of Pan-Protestantism.

He was an Austro-Slav, born in 1592, at Comnia in Moravia, whence his name Jan Amos Komensky, Latinized into Joannes Amosius Comenius. His parents were Protestants of the sect known as the Bohemian or Moravian Brethren, who traced their origin to the followers of Huss. Left an orphan in early life, he was poorly looked after, and was in his sixteenth year before he began to learn Latin. Afterwards he studied in various places, and particularly at Herborn in the Duchy of Nassau; whence he returned to his native Moravia in 1614, to become Rector of a school at Prerau. Here it was that he first began to study and practise new methods of teaching, and especially of grammatical teaching, induced, as he himself tells us, by the fame of certain speculations on that subject which had recently been put forth by Wolfgang Ratich, an Educational Reformer then very active in Germany. From Prerau Comenius removed in 1618 to Fulneck, to be pastor to a congregation of Moravian Brethren there; but, as he conjoined the charge of a new school with his pastorate, he continued his interest in new methods of education. Manuscripts of schoolbooks which he was preparing on his new methods perished, with his library, in a sack of Fulneck in 1621 by the Spaniards; and in 1624, on an edict proscribing all the Protestant ministers of the Austrian States, Comenius lost his living, and took refuge in the Bohemian mountains with a certain Baron Sadowski of Slaupna. In this retreat he wrote, in 1627, a short educational Directory for the use of the tutor of the baron's sons. But, the persecution waxing furious, and 30,000 families being driven out of Bohemia for their Protestantism, Comenius had to migrate to Poland. It was with a heavy heart that he did so: and, as he and his fellow-exiles crossed the mountain-boundary on their way, they looked back on Moravia and Bohemia, and, falling on their knees, prayed God not to let His truth fail utterly out of those hinds, but to

preserve a remnant in them for himself. Leszno in Poland was Comenius's new refuge. Here again he employed himself in teaching; and here, in a more systematic manner than before, he pursued his speculations on the science of teaching and on improved methods for the acquisition of universal knowledge. He read, he tells us, all the works he could find on the subject of Didactics by predecessors or contemporaries, such as Ratich, Ritter, Glaumius, Wolfstirn, Cæcilius, and Joannes Valentinus Andreae, and also the philosophical works of Campanella and Lord Bacon; but he combined the information so obtained with his own ideas and experience. The results he seems mainly to have jotted down, for future use, in various manuscript papers in his Slavic vernacular, or in German, or in Latin; but in 1631 he was induced by the curators of the school at Leszno to send to the press in Latin one book of a practical and particular nature. This was a so-called "*Janua Linguarum Reserata*," or "Gate of Languages Opened," propounding a method which he had devised, and had employed at Leszno, for rapidly teaching Latin, or any other tongue, and at the same time communicating the rudiments of useful knowledge. The little book, though he thought it a trifle, made him famous. "It happened, as I could not have imagined possible," he himself writes, "that that puerile little work was received with a sort of universal applause by the learned world. This was testified by very many persons of different countries, both by letters to myself congratulating me earnestly on the new invention, and also by translations into the various popular tongues, undertaken as if in rivalry with each other. Not only did editions which we have ourselves seen appear in all the European tongues, twelve in number—viz. Latin, Greek, Bohemian, Polish, German. Swedish, Dutch, English, French, Spanish, Italian, and Hungarian; but it was translated, as we have learnt, into such Asiatic tongues as the Arabic, the Turkish, the Persian, and even the Mongolian."

The process which Comenius thus describes must have extended over several years. There are traces of knowledge of him, and of his *Janua Linguarum Reserata*, in England as early as 1633. In that year a Thomas Home, M.A., then a schoolmaster in London, but afterwards Master of Eton, put forth a "*Janua Linguarum*" which is said by Anthony Wood to have been taken, "all or most," from Comenius. An actual English translation or expansion of Comenius's book, by a John Anchoran, licentiate in Divinity, under the title of "The Gate of Tongues Unlocked and Opened: or else A Summary or Seed-Plot of all Tongues and Sciences," reached its "fourth edition much enlarged" in 1639, and may be presumed to have been in circulation, in other forms, some years before. But the great herald of Comenius and his ideas among the English was Samuel Hartlib. Not only may he have had to do with the importation of Comenius's *Janua Linguarum* and the recommendation of that book to such pedagogues as Home and Anchoran; but he was instrumental in extracting from Comenius, while that book and certain appendices to it were in the flush of their first European popularity, a summary of his reserved and more general theories and intentions in the field of Didactics. The story is told very minutely by Comenius himself.

The *Janua Linguarum Reserata* was only a proposed improvement in the art of teaching Language or Words; and ought not a true system of education to range beyond that, and provide for a knowledge of Things? This was what Comenius was thinking: he was meditating a sequel to his popular little book, to be called "*Janua Rerum Reserata*" or "Gate of Things Opened," and to contain an epitome or encyclopædia of all essential knowledge, under the three heads of Nature, Scripture, and the Mind of Man. Nay, borrowing a word which had appeared as the title of a somewhat meagre Encyclopædia of the Arts by a Peter Laurenbergius, Comenius had resolved on *Pansophia*, or *Pansophia Christiana* ("Universal Wisdom," or "Universal Christian Wisdom"), as a fit alternative name for this intended

Janua Rerum. But he was keeping the work back, as one requiring leisure, and could only be persuaded to let the announcement of its title appear in the Leipsic catalogue of forthcoming books. By that time, however, Hartlib of London had become so dear a friend to Comenius that he could refuse *him* nothing. Whether there had been any prior personal acquaintance between Hartlib and Comenius, by reason of their German and Slavic connexions, I cannot say. But, since the publication of the *Janua Linguarum*, Hartlib had been in correspondence with Comenius in his Polish home; and, by 1636, his interest in the designs of Comenius, and willingness to forward them, had become so well known in the circle of the admirers of Comenius that he had been named as one of the five chief Comenians in Europe, the other four being Zacharias Schneider of Leipsic, Sigismund Evenius of Weimar, John Mochinger of Dantzic, and John Docemius of Hamburg. Now, Hartlib, having heard of the intended *Janua Rerum* or *Pansophia* of Comenius, not only in the Leipsic catalogue of forthcoming works, but also, more particularly, from some Moravian students passing through London, had written to Comenius, requesting some sketch of it. "Being thus asked," says Comenius, "by the most intimate of my friends, a man piously eager for the public good, to communicate some idea of my future work, I did communicate to him in writing, in a chance way, what I had a thought of prefixing some time or other to the work in the form of a Preface; and this, beyond my hope, and without my knowledge, was printed at Oxford, under the title of *Conatuum Comenianorum Præludia*." Here we have the whole secret of that publication from the Oxford University press, in 1637, which was edited by Hartlib and announced as being from his Library. It was not a reprint of anything that had already appeared abroad, but was in fact a new treatise by the great Comenius which Hartlib had persuaded the author to send him from Poland and had published on his own responsibility. He had apologized to Comenius for so doing, on the ground that the publication

would "serve a good purpose by feeling the way and ascertaining the opinions of learned and wise men in a matter of such unusual consequence." Comenius was a little nettled, he says, especially as criticisms of the Pansophic sketch began to come in, which would have been obviated, he thought, if he had been allowed quietly to develop the thing farther before publication. Nevertheless, there the book was, and the world now knew of Comenius not only as the author of the little *Janua Linguarum*, but also as contemplating a vast *Janua Rerum*, or organization of universal knowledge on a new basis.—In fact, the fame of Comenius was increased by Hartlib's little indiscretion. In Sweden especially there was an anxiety to have the benefit of the counsels of so eminent a theorist in the business of education. In 1638 the Swedish Government, at the head of which, during the minority of Queen Christina, was the Chancellor Oxenstiern, invited Comenius to Sweden, that he might preside over a Commission for the revision and reform of the schools there. Comenius, however, declined the invitation, recommending that the work should be entrusted to some native Swede, but promising to give his advice; and, at the same time (1638), he began to translate into Latin, for the behoof of Sweden and of other countries, a certain *Didactica Magna*, or treatise on Didactics at large, which he had written in his Bohemian Slavic vernacular nine years before. Hartlib had an early abstract of this book, and this abstract is part of the *Comenii Pansophiæ Prodromus et Didactica Dissertatio* which he edited in London in the same year, and published in duodecimo in 1639. [Footnote: Bayle's Dictionary: Art. *Coménius* (*Jean-Amos*); "Geschichte der Pädagogik," by Karl von Raumer (Stuttgart, 1843), Zweither Theil, pp. 46-49; "Essays on Educational Reformers," by Robert Hebert Quick (1868), pp. 43-47; Wood's Ath. III. 366, and II. 677. The general sketch of Comenius in Bayle, and those by Raumer and Mr. Quick, are very good; but details in the text, and especially the particulars of Hartlib's early connexion with Comenius, have had to be culled by me from

the curious autobiographical passages prefixed to or inserted in Comenius's various writings as far as 1642. These form Part I. of his large Folio, *Opera Didactica Omnia*, published by him at Amsterdam in 1657; and the passages in that Part which have supplied particulars for the text will be found at columns 3-4, 318, 326, 403, 442—444, 454-459. Comenius, like most such theoretic reformers, had a vein of egotism, and a strong memory for details respecting the history of his own ideas and their reception.]

What, after all, were the new notions propounded from Poland, with such universal European effort, by this Protestant Austro-Slav, Comenius, and sponsored in England by the Prussian Hartlib? We shall try to give them in epitome. Be it understood, however, that the epitome takes account only of those works of Comenius which were written before 1639, without including the mass of his later writings, some of which were to be even more celebrated.

The *Didactica Magna* is perhaps the most pregnant of the early books of Comenius. The full title of this treatise is, in translation, as follows: "Didactics at Large: propounding a universal Scheme for teaching all Things to all persons; or a Certain and Perfect Mode of erecting such Schools through all the communities, towns, and villages of any Christian Kingdom, as that all the youth of both sexes, without the neglect of a single one, may be compendiously, pleasantly, and solidly educated in Learning, grounded in Morals, imbued with Piety, and so, before the years of puberty, instructed in all things belonging to the present and the future life." In the treatise itself there are first some chapters of preliminary generalities. Man, says Comenius, is the last and most perfect of creatures; his destiny is to a life beyond this; and the present life is but a preparation for that eternal one. This preparation involves three things—Knowledge by Man of himself and of all things about him (Learning), Rule of himself (Morals), and Direction of himself to God (Religion). The seeds of these three varieties of preparation are in us by Nature; nevertheless, if Man would come out complete Man, he must be formed or educated. Always the education must be threefold—in Knowledge, in Morals, and in Religion; and this combination must never be lost sight of. Such education, however, comes most fitly in early life. Parents may do much, but they cannot do all; there is need, therefore, in every country, of public schools for youth. Such schools should be for the children of all alike, the poor as well as the rich, the stupid

and malicious as well as the clever and docile, and equally for girls as for boys; and the training in them ought to be absolutely universal or encyclopædic, in Letters, Arts, and Science, in Morals, and in Piety. [Footnote: For Miltonic reasons, as well as for others, I cannot resist the temptation to translate here, in a Note, the substance of Comenius's views on the Education of Women; as given in Chap. IX. (cols. 42-44) of his *Didactica Magna*:—"Nor, to say something particularly on this subject, can any sufficient reason be given why the weaker sex" [*sequior sexus*, literally "the later or following sex," is his phrase, borrowed from Apuleius, and, though the phrase is usually translated "the inferior sex," it seems to have been chosen by Comenius to avoid that implication], "should be wholly shut out from liberal studies, whether in the native tongue or in Latin. For equally are they God's image; equally are they partakers of grace and of the kingdom to come; equally are they furnished with minds agile and capable of wisdom, yea often beyond our sex; equally to them is there a possibility of attaining high distinction, inasmuch as they have often been employed by God himself for the government of peoples, the bestowing of the most wholesome counsels on kings and princes, the science of medicine and other things useful to the human race, nay even the prophetic office, and the rattling reprimand of Priests and Bishops" [*etiam ad Propheticum munus, et incrependos Sacerdotes Episcoposque*, are the words; and, as the treatise was prepared for the press in 1638, one detects a reference, by the Moravian Brother in Poland, to the recent fame of Jenny Geddes of Scotland]. "Why then should we admit them to the Alphabet, but afterwards debar them from Books? Do we fear their rashness? The more we occupy their thoughts, the less room will there be in them for rashness, which springs generally from vacuity of mind." Some slight limitations as to the reading proper for young women are appended, but with a hint that the same limitations would be good for youth of the other sex; and there is a bold quotation of the Scriptural text (1 Tim. ii. 12), "*I suffer not a woman to*

teach," and of two well-known passages of Euripides and Juvenal against learned women or bluestockings, to show that he was quite aware of these passages, but saw nothing in them against his real meaning.] Here, at length, in the eleventh chapter, we arrive at the great question, Has such a system of schools been anywhere established? *No*, answers Comenius, and abundantly proves his negative. Schools of a kind there had been in the world from the days of the Pharaohs and Nebuchadnezzar, if not from those of Shem, but not yet were there schools everywhere; not yet, where schools did exist, were they for all classes; and, at best, where they did exist, of what sort were they? Places, for the most part, of nausea and torment for the poor creatures collected in them; narrow and imperfect in their aims, which were verbal rather than real; and not even succeeding in these aims! Latin, nothing but Latin! And how had they taught this precious and eternal Latin of theirs? "Good God! how intricate, laborious, and prolix this study of Latin has been! Do not scullions, shoeblacks, cobblers, among pots and pans, or in camp, or in any other sordid employment, learn a language different from their own, or even two or three such, more readily than school students, with every leisure and appliance and all imaginable effort, learn their solitary Latin? And what a difference in the proficiency attained! The former, after a few months, are found gabbling away with ease; the latter, after fifteen or twenty years, can hardly, for the most part, unless when strapped up tight in their grammars and dictionaries, bring out a bit of Latin, and that not without hesitation and stammering." But all this might be remedied. There might be such a Reformation of Schools that not only Latin, but all other languages, and all the real Sciences and Arts of life to boot, might be taught in them expeditiously, pleasantly, and thoroughly. What was wanted was right methods and the consistent practical application of these. Nature must supply the principles of the Method of Education: as all Nature's processes go softly and spontaneously, so will all artificial processes that are in conformity with Nature's principles. And what are

Nature's principles, as transferable into the Art of Education? Comenius enumerates a good many, laying stress on such as these: nothing out of season; matter before form; the general before the special, or the simple before the complex; all continuously, and nothing *per saltum*. He philosophizes a good deal, sometimes a little quaintly and mystically, on these principles of Nature, and on the hints she gives for facility, solidity, and celerity of learning, and then sums up his deductions as to the proper Method in each of the three departments of education, the Intellectual, the Moral, and the Religious. Things before words, or always along with words, to explain them; the concrete and sensible to prepare for the abstract; example and illustration rather than verbal definition, or to accompany verbal definition: such is his main maxim in the first department. Object-lessons, wherever possible: i.e. if boys are taught about the stars, let it be with the stars over their heads to look at; if about the structure of the human body, let it be with a skeleton before them; if about the action of a pump, or other machine, let it be with the machine actually at hand. "Always let the things which the words are to designate be shown; and again, whatever the pupils see, hear, touch, taste, let them be taught to express the same; so that tongue and intellect may go on together." Where the actual objects cannot be exhibited, there may be models, pictures, and the like; and every school ought to have a large apparatus of such, and a museum. Writing and drawing ought to be taught simultaneously with reading. All should be made pleasant to the pupils; they ought to relish their lessons, to be kept brisk, excited, wide-awake; and to this end there should be emulation, praise of the deserving, always something nice and rousing on the board, a mixture of the funny with the serious, and occasional puzzles, anecdotes, and conundrums. The school-houses ought to be airy and agreeable, and the school-hours not too long. In order that there may be time to teach all that really ought to be taught, there must be a wise neglect of heaps of things not essential: a great deal must be flung overboard, as far as School is

concerned, and left to the chance inquisitiveness of individuals afterwards. And what sort of things may be thus wisely neglected? Why, in the first place, the *non necessaria* (things generally unprofitable), or things that contribute neither to piety nor to good morals, and without which there may be very sufficient erudition—as, for example, "the names of the Gentile gods, their love- histories, and their religious rites," all which may be got up in books at any time by any one that wants them; and, again, the *aliena* (things that do not fit the particular pupil)—mathematics, for example, for some, and music for those who have no ear; and, again, the *particularissima*, or those excessive minutenesses and distinctions into which one may go without end in any subject whatsoever. So, at large, with very competent learning, no small philosophical acumen, much logical formality and numeration of propositions and paragraphs, but a frequent liveliness of style, and every now and then a crashing shot of practical good sense, Comenius reasons and argues for a new System of Education, inspired by what would now be called Realism or enlightened Utilitarianism. Objections, as they might occur, are duly met and answered; and one notes throughout the practical schoolmaster, knowing what he is talking about, and having before his fancy all the while the spectacle of a hundred or two of lads ranged on benches, and to be managed gloriously from the desk, as a skilled metallurgist manages a mass of molten iron. He is a decided advocate for large classes, each of "some hundreds," under one head-master, because of the fervour which such classes generate in themselves and in the master; and he shows how they may be managed. Emulation, kindliness, and occasional rebuke, are chiefly to be trusted to for maintaining discipline; and punishments are to be for moral offences only. How Comenius would blend moral teaching and religious teaching with the acquisition of knowledge in schools is explained in two chapters, entitled "Method of Morals" and "Method of instilling Piety;" and this last leads him to a separate chapter, in which he maintains that, "if we would have

schools thoroughly reformed according to the true rules of Christianity, the books of Heathen authors must be removed from them, or at least employed more cautiously than hitherto." He argues this at length, insisting on the necessity of the preparation of a graduated series of school-books that should supersede the ordinary classics, conserving perhaps the best bits of some of them. If any of the classics were to be kept bodily for school-use, they should be Seneca, Epictetus, Plato, and the like. And so at last he comes to describe the System of Schools he would have set up in every country, viz.: I. THE INFANT SCHOOL, or MOTHER'S OWN SCHOOL, for children under six; II. THE LUDUS LITERARIUS, Or VERNACULAR PUBLIC SCHOOL, for boys and girls up to the age of twelve; III. THE LATIN SCHOOL or GYMNASIUM, for higher teaching up to eighteen or so; and IV. THE UNIVERSITY (with TRAVEL), for the highest possible teaching on to the age of about five- and-twenty. From the little babble of the Infant School about Water, Air, Fire, Iron, Bird, Fish, Hill, Sun, Moon, &c., all on the plan of exercising the senses and making Things and Words go together, up to the most exquisite training of the University, he shows how there might be a progress and yet a continuity of encyclopædic aim. Most boys and girls in every community, he thinks, might stop at the Vernacular School, without going on to the Latin; and he has great faith in the capabilities of any vernacular and the culture that may be obtained within it. Still he would like to see as many as possible going on to the Latin School and the University, that there might never be wanting in a community spirits consummately educated, veritable [Greek: polumatheis] and [Greek: pansophoi]. In the Universities apparently he would allow the largest ranging among the classics of all sorts, though still on some principle for organizing that kind of reading. There is, in fact, a mass of details and suggestions about each of the four kinds of schools, all vital to Comenius, and all pervaded by his sanguine spirit, but which one can hardly now read through. [Footnote: A separate little treatise on the

management of "The Infant School," containing advices to parents for home use, was written by Comenius in Bohemian Slavic, and translated thence into German in 1633. It appears in Latin among his *Opera Didactica* collected. He wrote also, he tells us, six little books for "The Vernacular School," under fancy-titles. These do not seem ever to have been published. His *Janua Linguarum* (1631), and one or two appendages to it, were contributions to the theory and practice of "The Latin School."] The final chapter is one of the most eloquent and interesting. It is entitled, "Of the Requisites necessary for beginning the practice of this Universal Method." Here he comes back upon his notion of a graduated series of school-books, or rather of an organization of books generally for the purposes of education. "One great requisite," he says, "the absence of which would make the whole machine useless, while its presence would put all in motion, is A SUFFICIENT APPARATUS OF PAMMETHODIC BOOKS." All, he repeats, hinges on the possibility of creating such an apparatus. "This is a work," he adds, "not for one man, especially if he is otherwise occupied, and not instructed in everything that ought to be reduced into the Universal Method; nor is it perhaps a work for one age, if we would have all brought to absolute perfection. There is need, therefore, of a COLLEGIAL SOCIETY (*ergo Societate Collegiali est opus*). For the convocation of such a Society there is need of the authority and liberality of some King, or Prince, or Republic, and also of some quiet place, away from crowds, with a Library and other appurtenances." There follows an earnest appeal to persons of all classes to forward such an association, and the good Moravian winds up with a prayer to God. [Footnote: There is a summary of Comenius's *Didactica Magna* in Von Reumer's "Geschichte der Pädagogis" (pp. 53-59). It is accurate so far as it goes; but I have gone to the book itself.]

A special part of Comenius's system, better known perhaps at the time of which we write than his system as a whole, was his Method for Teaching

Languages. This is explained in Chapter XXII. of his *Didactica Magna*, and more in detail in his *Linguarum Janua Rescrata*, and one or two writings added to that book:—Comenius, as we already know, did not overrate linguistic training in education. "Languages are acquired," he says, "not as a part of learning or wisdom, but as instrumental to the reception and communication of learning. Accordingly, it is not *all* languages that are to be learnt, for that is impossible, nor yet *many*, for that would be useless, as drawing away the time due to the study of Things; but only those that are *necessary*. The necessary tongues, however, are: first, the Vernacular, for home use; next, Neighbouring Tongues, for conversation with neighbours,—as, for example, the German for Poles of one frontier, and the Hungarian, the Wallachian, and the Turkish, for Poles of other parts; next, Latin, as the common language of the learned, admitting one to the wise use of books; and, finally, the Greek and Arabic for philosophers and medical men, and Greek and Hebrew for theologians." Not all the tongues that are learnt, either, are to be learnt to the same nicety of perfection, but only to the extent really needed. Each language should be learnt separately—first, the Vernacular, which ought to be perfectly learnt, and to which children ought to be kept for eight or ten years; then whatever neighbouring tongue might be desirable, for which a year would be long enough; next, Latin, which ought to be learnt well, and might be learnt in two years; and so to Greek, to which he would give one year, and Hebrew, which he would settle in six months. If people should be amazed at the shortness of the time in which he ventured to assert a language like the Latin might be learnt and learnt well, let them consider the principles of his method. Always Things along with Words, and Words associated with new groups of Things, from the most familiar objects to those rarer and farther off, so that the *vocabulary* might get bigger and bigger; and, all the while, the constant use of the vocabulary, such as it was, in actual talk, as well as in reading and writing. First, let the pupil stutter on anyhow, only using his stock of words; correctness would

come afterwards, and in the end elegance and force. Always practice rather than rule, and leading to rule; also connexion of the tongue being learnt with that learnt last. A kind of common grammar may be supposed lying in the pupil's head, which he transfers instinctively to each new tongue, so that he has to be troubled only with variations and peculiarities. The reading-books necessary for thoroughly teaching a language by this method might be (besides Lexicons graduated to match) four in number—I. *Vestibulum* (The Porch), containing a vocabulary of some hundreds of simple words, fit for babbling with, grouped in little sentences, with annexed tables of declensions and conjugations; II. *Janua* (The Gate), containing all the common words in the language, say about 8,000, also compacted into interesting sentences, with farther grammatical aids; III. *Palatium* (The Palace), containing tit-bits of higher discourse about things, and elegant extracts from authors, with notes and grammatical comments; IV. *Thesaurus* (The Treasury), consisting of select authors themselves, duly illustrated, with a catalogue of other authors, so that the pupils might have some idea of the extent of the Literature of the language, and might know what authors to read on occasion afterwards.—Comenius himself actually wrote a *Vestibulum* for Latin, consisting of 427 short sentences, and directions for their use; and, as we know, his *Janua Linguarum Reserata*, which appeared in 1631, was the publication which made him famous. It is an application of his system to Latin. On the principle that Latin can never be acquired with ease while its vocabulary is allowed to lie alphabetically in dead Dictionaries, or in multitudinous variety of combination in Latin authors, about 8,000 Latin words of constant use are collected into a kind of Noah's Ark, representative of all Latinity. This is done in 1,000 short Latin sentences, arranged in 100 paragraphs of useful information about all things and sundry, under such headings as *De Ortu Mundi* (Of the Beginning of the World), *De Elementis* (Of the Elements), *De Firmamento* (Of the Firmament), *De Igne* (Of Fire), and so on through other physical and moral

topics. Among these are *De Metallis* (Of Metals), *De Herbis* (Of Plants), *De Insectis* (Of Insects), *De Ulceribus et Vulneribus* (Of Sores and Wounds), *De Agricultura* (Of Agriculture), *De Vestituum Generibus* (Of Articles of Dress), *De Puerperio* (Of Childbirth), *De Pace et Bella* (Of Peace and War), *De Modestia* (Of Modesty), *De Morte et Sepultura* (Of Death and Burial), *De Providentia Dei* (Of the Providence of God), *De Angelis* (Of Angels). Comenius was sure that due drill in this book would put a boy in effective possession of Latin for all purposes of reading, speaking, and writing. And, of course, by translation, the same manual would serve for any other language. For, the Noah's Ark of *things* being much the same for all peoples, in learning a new language you have but to fit on to the contents of that permanent Ark of realities a new set of vocables. [Footnote: *Dialectica Magna* Chap. XXII. first edition of *Janua*, as reprinted in *Comenii Opera Didactica*, 1657 (Part I, cols. 255-302).]

Comenius rather smiled at the rush of all Europe upon his *Janua Linguarum*, or Method for Teaching Languages. That was a trifle in his estimation, compared with the bigger speculations of his *Didactica Magna*, and still more with his *Pansophiæ Prodromus* or *Porta Sapientiæ Reserata*. A word or two on this last little book:—Comenius appears in it as a would-be Lord Bacon, an Austro-Slavic Lord Bacon, a very Austro-Slavic Lord Bacon. He mentions Bacon several times, and always with profound respect ("illustrissimus Verulamius" and so on); but it appeared to him that more was wanted than Bacon's *Novum Organum*, or *Instauratio Magna*, with all its merits. A PANSOPHIA was wanted, nay, a PANSOPHIA CHRISTIANA, or consolidation of all human knowledge into true central Wisdom, one body of Real Truth. O Wisdom, Wisdom! O the knowledge of things in themselves, and in their universal harmony! What was mere knowledge of words, or all the fuss of pedagogy and literature, in view of that! Once attained, and made communicable, it would make the future of the world one Golden Age! Why had it not been attained? What had been

the hindrances to its attainment? What were the remedies? In a kind of phrenzy, which does not prevent most logical precision of paragraphing and of numbering of propositions, Comenius discusses all this, becoming more and more like a Bacon bemuddled, as he eyes his PANSOPHIA through the mist. What it is he cannot make plain to us; but we see he has some notion of it himself, and we honour him accordingly. For there are gleams, and even flashes, through the mist. For example, there is a paragraph entitled *Scientiarum Laceratio*, lamenting the state of division, disconnectedness, and piece-meal distribution among many hands, into which the Sciences had fallen. Though there were books entitled Pansophias, Encyclopædias, and the like, he had seen none sufficiently justifying the name, or exhausting the universality of things. Much less had he seen the whole apparatus of human intelligence so constructed from its own certain and eternal principles that all things should appear mutually concatenated among themselves from first to last without any hiatus! "Metaphysicians hum to themselves only, Natural Philosophers chaunt their own praises, Astronomers lead on their dances for themselves, Ethical Thinkers set up laws for themselves, Politicians lay foundations for themselves, Mathematicians triumph for themselves, and for themselves Theologians reign." What is the consequence? Why, that, while each one attends only to himself and his own phantasy, there is no general accord, but only dissonance. "We see that the branches of a tree cannot live unless they all alike suck their juices from a common trunk with common roots. And can we hope that the branches of Wisdom can be torn asunder with safety to their life, that is to truth? Can one be a Natural Philosopher who is not also a Metaphysician? or an Ethical Thinker who does not know something of Physical Science? or a Logician who has no knowledge of real matters? or a Theologian, a Jurisconsult, or a Physician, who is not first a Philosopher? or an Orator or Poet who is not all things at once? He deprives himself of light, of hand, and of regulation, who pushes away from him any shred of

the knowable." From such passages one has a glimmer of what Comenius did mean by his Pansophia. He hoped to do something himself towards furnishing the world with this grand desideratum. He had in contemplation a book which should at least show what a proper Encyclopædia or Consolidation of Universal Truth ought to be. But here again he invites co-operation. Many hands in many lands would have to labour at the building of the great Temple of Wisdom. He appeals to all, "of every rank, age, sex, and tongue," to do what they can. Especially let there be an end to the monopoly of Latin. "We desire and protest that studies of wisdom be no longer committed to Latin alone, and kept shut up in the schools, as has hitherto been done, to the greatest contempt and injury of the people at large and the popular tongues. Let all things be delivered to each nation in its own speech, so that occasion may be afforded to all who are men to occupy themselves with these liberal matters rather than fatigue themselves, as is constantly the case, with the cares of this life, or ambitions, or drinking-bouts, or other vanities, to the destruction of life and soul both. Languages themselves too would so be polished to perfection with the advancement of the Sciences and Arts. Wherefore we, for our part, have resolved, if God pleases, to divulge these things of ours both in the Latin and in the vernacular. For no one lights a candle and hides it under a bushel, but places it on a candlestick, that it may give light to all." [Footnote: *Pansophici Libri Delineatio* (i.e. the same treatise which Hartlib had printed at Oxford in 1637) in *Comenii Opera Didactica*, Part I. cols. 403-454.] Such were the varied Comenian views which the good Hartlib strove to bring into notice in England in 1637-9. Durie and Reconciliation of the Churches was still one of his enthusiasms, but Comenius and Reformed Education was another. But, indeed, nothing of a hopeful kind, with novelty in it, came amiss to Hartlib. He, as well as Comenius, had read Lord Bacon. He was a devoted admirer of the Baconian philosophy, and had imbibed, I think, more deeply than most of Bacon's own countrymen, the very spirit and

mood of that philosophy. That' the world had got on so slowly hitherto because it had pursued wrong methods; that, if once right methods were adopted, the world would spin forward at a much faster rate in all things; that no one could tell what fine discoveries of new knowledge, what splendid inventions in art, what devices for saving labour, increasing wealth, preserving health, and promoting happiness, awaited the human race in the future: all this, which Bacon had taught, Hartlib had taken into his soul. His sympathy with Durie and Religious Compromise and his sympathy with Comenius and School Reform were but special exhibitions of his general passion for new lights. The cry of his soul, morning and night, in all things, was

Phosphore, redde diem! Quid gaudia nostra moraris?

Phosphore, redde diem!

[Footnote: This is no fancy-quotation. Hartlib himself, in 1659, uses it in a letter to the famous Boyle, as the passionate motto of his life (see Diary of Worthington, edited by Crossley, I, 168, and Boyle's Works, ed. 1744, V. 293).]

Naturally this passion had a political side. Through the reign of Thorough, it is true, Hartlib had been as quiet as it became a foreigner in London to be at such a time, and had even been in humble correspondence in Durie's behalf with Bishops, Privy Councillors, and other chiefs of the existing power. But, when the Scottish troubles brought signs of coming change for England, and there began to be stir among the Puritans and the miscellaneous *quidnuncs* of London in anxiety for that change, Hartlib found himself in friendly contact and acquaintanceship with some of these forward spirits. One is not surprised, therefore, at the fact, previously mentioned in our History (Vol. II. p. 45), that, when Charles was mustering his forces for the First Bishops' War against the Scots, and Secretary

Windebank was busy with arrests of persons in London suspected of complicity with the Scots, Hartlib was one of those pounced upon. Here is the exact official warrant:—"These are to will, require, and authorize you to make your repair to the house of Samuel Hartlib, merchant, and to examine him upon such interrogatories as you shall find pertinent to the business you are now employed in; and you are also to take with you one of the messengers of his Majesty's Chamber, who is to receive and follow such order and directions as you shall think fit to give him; and this shall be your sufficient warrant in this behalf.—Dated at my house in Drury Lane, 1 May 1639.—Fran. Windebank. To Robert Reade, my Secretary." [Footnote: Copied by me from the original in the S.P.O.]—The reader may, at this point, like to know where Hartlib's house was. It was in Duke's Place, Aldgate. He had been there for more than a year, if not from his first settling in London; and it was to be his residence for many years to come.[Footnote: Among the Ayscough MSS. in the British Museum there is one (No. 4276) containing a short letter from Joseph Meade to Hartlib, dated from Christ's College, Cambridge, June 18, 1638, and addressed "To his worthie friend Mr. Samuel Hartlib at his house in Duke's Place, London." There is nothing of importance in the letter; which is mainly about books Meade would like Hartlib to send to certain persons named— one of them Dr. Twisse, afterwards Prolocutor of the Westminster Assembly. Meade died less than four months after the date of this letter.] He was married, and had at least one child.—Reade and the King's officer appear to have discovered nothing specially implicating Hartlib; for he is found living on much as before through the remainder of the Scottish Presbyterian Revolt, on very good terms with his former Episcopal correspondents and others who regarded that Revolt with dread and detestation. The following is a letter of his, of date Aug. 10, 1640, which I found in his own hand in the State Paper Office. It has not, I believe, been published before, and letters of Hartlib's of so early a date are scarce: besides, it is too characteristic to be omitted:—

"Right Hon. [no farther indication of the person addressed: was it Sir Thomas Roe?]

"These are to improve the leisure which perhaps you may enjoy in your retiredness from this place. The author of the Schedule of Divers New Inventions [apparently enclosed in the letter] is the same Plattes who about a year ago published two profitable treatises concerning Husbandry and Mines. He is now busy in contriving of some other Tracts, which will more particularly inform all sorts of people how to procure their own and the public good of these countries. [Footnote: Gabriel Plattes, author of "A Discovery of Subterraneall Treasure: viz. of all manner of Mines and Minerals from the Gold to the Coale: London 1639, 4to." This is from Lowndes's *Bibliographer's Manual* by Bohn; where it is added that "Plattes published several other works chiefly relating to Husbandry, and is said to have dropped down dead in the London streets for want of food." Among other things, he was an Alchemist; and in Wood's *Athenæ* by Bliss (I. 640-1) there is a curious extract from his Mineralogical book, giving an account of a process of his for making pure gold artificially, though, as he says, not with profit. One thinks kindly of this poor inventive spirit hanging on upon Hartlib with his "Schedule of New Inventions," and of Hartlib's interest in him.] Some of my learned friends in France do highly commend one Palissy to be a man of the like disposition and industry. The books which he hath written and printed (some of them in French) are said to contain a world of excellent matter. [Footnote: This, I think, must be the famous Bernard Palissy, "the Potter," who died in 1590, leaving writings such as Hartlib describes. If so, Hartlib was a little behind time in his knowledge, for one might fancy him speaking of a contemporary.] I wish such like observations, experiments, and true philosophies, were more known to other nations. By this means not only the Heavens, but also the Earth, would declare the glory of God more evidently than it hath done.—As for Mr. Durie, by these enclosed [a number of extracts from letters about

Durie's business which Hartlib had received from Bishops and others] your Honour will be able to see how far I am advanced in transactions of his affairs. My Lord Bishop of Exeter [Hall], in one of his late letters unto himself [Durie], uses these following words: '*Perlegi quæ*,' &c. [A long Latin passage, which may be given in English: 'I have read through what you have heretofore written to the most illustrious Sir Thomas Roe respecting the procuring of an ecclesiastical agreement. I like your prudence and most sagacious theological ingenuity in the same: should Princes follow the thread of the advice, we shall easily extricate ourselves from this labyrinth of controversies. The Reverend Bishop of Salisbury has a work on the Fundamentals of Faith, which is now at press, designed for the composing of these disputes of the Christian world; doubtless to the great good of the Church. Proceed busily in the sacred work you have undertaken: we will not cease to aid you all we can with our prayers and counsels, and, if possible, with other helps']: I hear the worthies of Cambridge are at work to satisfy in like manner the Doctors of Bremen: only my Lord Bishop of Durham [Morton] is altogether silent. It may be the northern distractions hinder him from such and the like pacifical overtures. I am much grieved for his book *De [Greek: polutopia] corporis Christi* [on the Ubiquity of Christ's Body], which is now in the press at Cambridge; for both the Bishop of Lincoln [Williams] and Dr. Hacket told me, from the mouth of him that corrects it (an accurate and judicious scholar), that it was a very invective and bitter railing against the Lutheran tenets on that point, insomuch that Dr. Brownrigg had written unto his lordship about it, to put all into a milder strain. I confess others do blame somewhat Mr. D[urie] for certain phrases which he seems to yield unto in his printed treatise with the Danes, '*De Omnipræsentiâ et orali manducatione*' [Of the Omnipresence and Eating with the Mouth]; yet let me say this much—that Reverend Bucer, that prudent learned man, who was the first man of note that ever laboured in this most excellent work of reconciling the Protestants, even in

the very first beginning of the breach, and who laboured more abundantly than they all in it (I mean than all the rest of the Reformers in his time): Bucer, I say, yielded so far for peace' sake to Luther and his followers in some harsh-sounding terms and words that the Helvetians began to be suspicious of him, lest he should be won to the contrary side, although the good man did fully afterwards declare his mind when he saw his yielding would do no good. It is not then Mr. D.'s case alone, when so brave a worthy as Bucer goes along with him, a man of whom great Calvin uttered these words when news was brought him of his death, '*Quam multiplicem in Bucero jacturam fecerit Dei Ecclesia quoties in mentem venit, cor meum prope laccrari sentio*' ['As often as it comes to my mind what a manifold loss the Church of God has had in Bucer, I feel my heart almost lacerated']. So he wrote in an epistle to Viret. But enough of this subject.—I have had these 14 days no letters from Mr. D.; nor do I long much for them, except I could get in the rents from his tenant to pay the 70 rixdollars to Mr. Avery's brother in London. The Bishop of Exeter seems to be a man of excellent bowels; and, if your Honour would be pleased to second his requests towards my Lord's Grace of Canterbury, or to favour Bishop Davenant's advice in your own way, perhaps some comfortable effects would soon follow. My Lady Anna Waller doth highly affect Mr. D. and his endeavours; and, if any donatives or other preferments should be recommended to be disposed this way by my Lord Keeper (who is a near kinsman of her Ladyship), I am confident she would prove a successful mediatrix in his behalf. If your Honour thinks it fit, I can write also to my Lord Primate [Usher] to intercede with my Lord's Grace [Laud] for Mr. D. He is about to bring forth a great universal work, or Ecclesiastical History. The other treatise, put upon him by his Majesty's special command, '*De Autoritate Regum et Officio Subditorum*,' ['On the Authority of Kings and the Duty of Subjects'] will shortly come to light.—Thus, craving pardon for this prolixity of scribbling, I take humbly my leave; remaining always

"Your Honour's most obliged and most assured Servant,

SAM. HARTLIB. [Footnote: Copied by me from the original in the S.P.O.]

London: the 10 of Aug. 1640."

Three months after the date of this letter the Long Parliament had met, and there was a changed world, with changed opportunities, for Hartlib, as well as for other people. The following digest of particulars in his life for the years 1641 and 1642 will show what he was about:—

"A Briefe Relation of that which hath been lately attempted to procure Ecclesiasticall Peace amongst Protestants. Published by Samuel Hartlib. London, Printed by J. R. for Andrew Crooke, and are to be sold at his shop in Paul's Churchyard at the sign of the Green Dragon. 1641."—This little tract is an exposition of Durie's idea, and a narrative sketch of his exertions in its behalf from 1628 onwards.

"A Description of the famous Kingdom of MACARIA, shewing its excellent Government, wherein the Inhabitants live in great prosperity, health, and happiness; the King obeyed, the Nobles honoured, and all good men respected; Vice punished, and Virtue rewarded: An example to other nations. In a Dialogue between a Scholar and a Traveller. London 1641" (4to. pp. 15).—There is a Dedication to Parliament, dated "25th October 1641," in which it is said that "Honourable Court will lay the cornerstone of the world's happiness." The tract is an attempt at a fiction, after the manner of "More's Utopia" and Bacon's "New Atlantis," shadowing forth the essentials of good government in the constitution of the imaginary Kingdom of MACARIA (Happy-land, from the Greek makarios, happy). The gist of the thing lies in the rather prosaic statement that MACARIA has Five Councils or Departments of State: to wit, *Husbandry, Fishery, Land-*

trade, Sea-trade, and New Plantations.—Although there is no author's name to the scrap, it is known to be Hartlib's; who, indeed, continued to use the word MACARIA, half-seriously, half- playfully, till the Restoration and beyond, as a pet name for his Ideal Commonwealth of perfect institutions. [Footnote: See Worthington's Diary edited by Crossley (L 163). Hartlib's original *Macaria* is reprinted in the Harleian Miscellany, Vol. I.]

In 1641 Hartlib was in correspondence with Alexander Henderson. The reader already knows how "the Scottish business," or the King's difficulty with the Scots, led to the calling of the Long Parliament, and how for six or seven months (Nov. 1640-June 1641) that business intertwined itself with the other proceedings of the Parliament, and Henderson and the other Scottish Commissioners, lay and clerical, were in London all that time, nominally looking after that business, but really co-operating with Pym and the other Parliamentary leaders for the Reform of both kingdoms, and much lionized by the Londoners accordingly (Vol. II. pp. 189-192). Well, Hartlib, who found his way to everybody, found his way to Henderson. He probably saw a good deal of him, if not of the other Scottish Commissioners; for, after Henderson had returned to Scotland, at least three letters from Hartlib followed him thither. Here is the beginning of the third: "Reverend and Loving Brother in Christ: I hope my two former letters were safely delivered, wherein I gave you notice of a purpose taken in hand here to make Notes upon the Bible. What concurrence you think fit to give in such a work I leave to your own piety to determine. Now I have some other thoughts to impart to you, which lie as a burthen on my heart." The thoughts communicated to Henderson are about the wretched state of the Palatinate, with its Protestantism and its University of Heidelberg ruined by the Thirty Years' War, and the "sweet-natured Prince Elector" in exile; but Hartlib slips into Durie's idea, and urges theological correspondence of all Protestant divines, in order to put an end to divisions. The letter, which is signed "Your faithful friend and servant in Christ," is dated "London,

Octob. 1641." All this we know because Hartlib kept a copy of the letter and printed it in 1643. "The copy of a Letter written to Mr. Alexander Henderson: London, Printed in the yeare 1643," is the title of the scrap, as I have seen it in the British Museum. Even so we should not have known it to be Hartlib's, had not the invaluable Thomason written "*By Mr. Hartlib*" on the title-page, appending "*Feb. 6, 1642*" (*i.e.* 1642-3) as the date of the publication.

"A Reformation of Schooles, designed in two excellent Treatises: the first whereof summarily sheweth the great necessity of a generall Reformation of Common Learning, what grounds of hope there are for such a Reformation, how it may be brought to passe. The second answers certaine objections ordinarily made against such undertakings, arid describes the severall parts and titles of workes which are shortly to follow. Written many yeares agoe in Latine by that reverend, godly, learned, and famous Divine, Mr. John Amos Comenius, one of the Seniours of the exiled Church of Moravia; and now, upon the request of many, translated into English and published by Samuel Hartlib for the general good of the Nation. London: Printed for Michael Sparke, Senior, at the Blue Bible in Greene Arbour: 1642" (small ito. pp. 94).—This is, in fact, a reproduction in English of the views of Comenius in his *Didactica Magna*, &c. As I find it registered in the books of the Stationers' Company "Jan. 12, 1641" (*i.e.* 1641-2), it must have been out early in 1642.

These traces of Hartlib in the years 1641 and 1642 are significant, and admit of some comment:—In the *Description of the Kingdom of Macaria*, I should say, Hartlib broke out for himself. He had all sorts of ideas as to social and economic improvements, and he would communicate a little specimen of these, respecting Husbandry, Fishery, and Commerce, to the reforming Parliament. But he was still faithful to Durie and Comenius, and three of his recovered utterances of 1641-2 are in behalf of them. His *Brief*

Relation and his *Letter to Henderson* refer to Durie and his scheme of Protestant union. It is not impossible that Hartlib was moved to these new utterances in the old subject by Durie's own presence in London; for, as we have mentioned (Vol. II. p. 367), there is some evidence that Durie, who had not been in London since 1633, came over on a flying visit after the opening of the Long Parliament. It is a coincidence, at least, that the publisher of Hartlib's *Brief Relation* about Durie brought out, at the very same time, a book of Durie's own tending in the same direction. [Footnote: "Mr. Dureus his Eleven Treatises touching Ecclesiastical Peace amongst Protestants" is the title of an entry by Mr. Crooke in the Stationers' Registers, of date Feb. 15, 1640.] Quite possibly, however, Durie may have still been abroad, and Hartlib may have acted for him. In the other case there is no such doubt. When, in Jan. 1641-2, Hartlib sent to the press his new compilation of the views of Comenius under the title of *A Reformation of Schools*, there was good reason for it. Comenius himself was at his elbow. The great man had come to London.

Education, and especially University Education, was one of the subjects that Parliament was anxious to take up. In the intellectual world of England, quite apart from politics, there had for some time been a tradition of dissatisfaction with the existing state of the Universities and the great Public Schools. In especial, Bacon's complaints and suggestions on this subject in the Second Book of his *De Augmentis* had sunk into thoughtful minds. That the Universities, by persistence in old and outworn methods, were not in full accord with the demands and needs of the age; that their aims were too professional and particular, and not sufficiently scientific and general; that the order of studies in them was bad, and some of the studies barren; that there ought to be a bold direction of their endowments and apparatus in the line of experimental knowledge, so as to extract from Nature new secrets, and sciences for which Humanity was panting; that, moreover, there ought to be more of fraternity and correspondence among

the Universities of Europe, and some organization of their labours with a view to mutual illumination and collective advance: [Footnote: "De Augmentis:" Bacon's Works, I. 487 *et seq.*, and Translation of same, III. 323 *et seq.* (Spedding's edition).] all these Verulamian speculations, first submitted to King James, were lying hid here and there in English intellects, in watch for an opportunity. Then, in a different way, the political crisis had brought Oxford and Cambridge, but especially Oxford, under severe revision. Had they not been the nurseries of Episcopacy, and of other things and principles of which England was now declaring herself impatient? All this, which was to be more felt after the Civil War had begun and Oxford became the King's headquarters, was felt already in very considerable degree during the two-and-twenty months of preliminary struggle between the King and the Parliament (Nov. 1640-Aug. 1642). Why not have a University in London? There was Gresham College in the city, in existence since 1597, and doing not ill on its limited basis; there was Chelsea College, founded by Dean Sutcliffe of Exeter in 1610, "to the intent that learned men might there have maintenance to answer all the adversaries of religion" but which, after a rickety infancy, and laughed at by Laud as "Controversy College," had been lost in lawsuits: why not, with inclusion or exclusion of these and other foundations, set up in London a great University on the best modern principles, abolishing the monopoly of Oxford and Cambridge?

Of these rumours, plans, or possibilities, due notice had been sent by the zealous Hartlib to Comenius at Leszno. Ought not Comenius to be on the spot? What had he been hoping for and praying for but a "Collegial Society" somewhere in some European state to prepare the necessary "Apparatus of Pammethodic Books" and so initiate his new system of Universal Didactics, or again (to take the other and larger form of his aspiration), a visible co-operation of kindred spirits throughout Europe towards founding and building the great "Temple of Pansophia" or

"Universal Real Knowledge"? What if these Austro-Slavic dreams of his should be realized on the banks of the Thames? People were very willing thereabouts; circumstances were favourable; what was mainly wanted was direction and the grasp of a master-spirit! Decidedly, Comenius ought to come over.—All this we learn from Comenius himself, whose account of the matter and of what followed had better now be quoted. "The *Pansophiæ Prodromus*," he says, "having been published, and copies dispersed through the various kingdoms of Europe, but many learned men who approved of the sketch despairing of the full accomplishment of the work by one man, and therefore advising the erection of a College of learned men for this express business, in these circumstances the very person who had been the means of giving the *Prodromus* to the world, a man strenuous in practically prosecuting things as far as he can, Mr. S. H. [*strenuus rerum quâ datur* [Greek: *ergodioktæs*], D. S. H.], devoted himself laboriously to that scheme, so as to bring as many of the more forward spirits into it as possible. And so it happened at length that, having won over one and another, he, in the year 1641, prevailed on me also by great entreaties to go to him. My people having consented to the journey, I came to London on the very day of the autumnal equinox [Sept. 22, 1641], and there at last learnt that I had been invited by the order of the Parliament. But, as the Parliament, the King having then gone to Scotland [Aug. 10], was dismissed for a three months' recess [not quite three months, but from Sept. 9 to Oct. 20], I was detained there through the winter, my friends mustering what Pansophic apparatus they could, though it was but slender. On which occasion there grew on my hands a tractate with this title, *Via Lucis: Hoc Est, &c.* [The Way of Light]: That is, A Reasonable Disquisition how the Intellectual Light of Souls, namely Wisdom, may now at length, in this Evening of the World, be happily diffused through all Minds and Peoples. This for the better understanding of these words of the oracle in *Zachariah XIV. 7*, *It shall come to pass that at evening time it shall be light*. The

Parliament meanwhile having reassembled, and our presence being known, I had orders to wait until they should have sufficient leisure from other business to appoint a commission of learned and wise men from their body for hearing us and considering the grounds of our design. They communicate also beforehand their thoughts of assigning to us some College with its revenues, whereby a certain number of learned and illustrious men, called from all nations, might be honourably maintained, either for a term of years or in perpetuity. There was even named for the purpose *the Savoy* in London; *Winchester College* out of London was named; and again, nearer the city, *Chelsea College*, inventories of which and of its revenues were communicated to us; so that nothing seemed more certain than that the design of the great Verulam, concerning the opening somewhere of a Universal College, devoted to the advancement of the Sciences, could be carried out. But the rumour of the Insurrection in Ireland, and of the massacre in one night of more than 200,000 English [Oct.-Nov.], and the sudden departure of the King from London [Jan. 10, 1641-2], and the plentiful signs of the bloody war about to break out, disturbed these plans, and obliged me to hasten my return to my own people. It happened, however, that letters came to me from Sweden, which had been sent to Poland and thence forwarded to England, in which that magnanimous and energetic man, Ludovicus de Geer, invited me to come to him in Sweden, and offered immediate means of furthering my studies and those of any two or three learned men I chose to associate with me. Communicating this offer to my friends in London, I took my departure, but not without protestations from them that I ought to let my services be employed in nothing short of the Pansophic Design." [Footnote: Autobiographic Introduction to the "Second Part" of the *Opera Didactica* of Comenius (1657), containing his Didactic writings from 1642 to 1650.] This is very interesting, and, I have no doubt, quite accurate. [Footnote: I have not been able to find in the Lords or Commons Journals for 1641 and

1642 any traces of those communications between Comenius and the Parliament of which he speaks. There may be such, for the Indexes are not perfect; and there is not the least reason to doubt the word of Comenius.] And so, through the winter of 1641-2 and the spring of 1642, we are to imagine Hartlib and Comenius going about London together, Hartlib about forty years of age and Comenius about fifty, the younger man delighted with his famous friend, introducing him to various people, and showing him the chief sights (the law-chambers and house of the great Verulam not omitted, surely), and all the while busy with Pansophic talk and the details of the Pansophic College. We see now the reason of Hartlib's publication in Jan. 1641-2 of Comenius's two treatises jointly in a book called *A Reformation of Schools*. It was to help in the business which had brought Comenius to London.

It was a great chagrin to Hartlib when the London plan came to an abrupt end, and Comenius transferred himself to Sweden. Thither we must follow him, for yet one other passage of his history before we leave him:—"Conveyed to Sweden in August of the year 1642," proceeds Comenius, "I found my new Mæcenas at his house at Nortcoping; and, having been kindly received by him, I was, after some days of deliberation, sent to Stockholm, to the most illustrious Oxenstiern, Chancellor of the Kingdom, and Dr. Johannes Skyte, Chancellor of the University of Upsal. These two exercised me in colloquy for four days; and chiefly the former, that Eagle of the North (*Aquila Aquilonius*). He inquired into the foundations of both my schemes, the Didactic and the Pansophic, so searchingly that it was unlike anything that had been done before by any of my learned critics. In the first two days he examined the Didactics, with at length this conclusion: 'From an early age,' said he, 'I perceived that our Method of Studies generally in use is a harsh and crude one [*violentum quiddam*]; but where the thing stuck I could not find out. At length, having been sent, by my King of glorious memory [Gustavus Adolphus], as ambassador into Germany, I conversed on

the subject with various learned men. And, when I had heard that Wolfgang Ratich was toiling at an amended Method, I had no rest of mind till I had got that gentleman into my presence; who, however, instead of a talk on the subject, offered me a big volume in quarto to read. I swallowed that trouble; and, having turned over the whole book, I saw that he detected not badly the maladies of our schools, but the remedies he proposed did not seem sufficient. Yours, Mr. Comenius, rest on firmer foundations. Go on with the work.' I answered that I had done all I could in those matters, and must now go on to others. 'I know said he, 'that you are toiling at greater affairs, for I have read your *Prodromus Pansophiæ*. We will speak of that to-morrow: I must to public business now.' Next day, beginning to examine, but with greater severity, my Pansophic Attempts, he opened with this question, 'Are you a man, Mr. Comenius, that can bear contradiction? [*Potesne contradicentem ferre?*]' 'I can,' replied I, 'and therefore that *Prodromus* or Preliminary Sketch was (not by me either, but by friends) sent out first, that it might meet with judgment and criticism. Which if we admit from all and sundry, why not from men of mature wisdom and heroic reason?' He began, accordingly, to discourse against the hope of a better state of things conceived as lying in a rightly instituted study of Pansophia, first objecting political reasons of deep import, and then the testimonies of the divine Scriptures, which seem to foretell for the latter days of the world rather darkness and a certain deterioration of things than light and amended institutions. To all which he had such answers from me that he closed with these words, 'Into no one's mind do I think such things have come before. Stand upon these grounds of yours: either so shall we come some time to agreement, or there will be no way at all left. My advice, however, is (added he) that you proceed first to do a good stroke in the School business, and to bring the study of the Latin tongue to a greater facility, and so prepare a broader and clearer way for those bigger matter.' The Chancellor of the University did not cease to urge the same; and he suggested this as well:

that, if I were unwilling to remove with my family into Sweden, at all events I should come nearer to Sweden by taking up my abode in Prussia, say in Elbing. As my Mæcenas, to whom I returned at Nortcoping [Ludovicus de Geer], thought that both advices ought to be acquiesced in, and earnestly begged me that nothing should be done otherwise than had been advised, whether in respect of the place of my abode, or of priority to be given to any other task, I agreed at length, always with the hope that within a year or two there would be an end of the hack-work."—In fact, Comenius went to Elbing in Prussia (Hartlib's native place, as the reader may remember), to be supported there by the generosity of Ludovicus de Geer, with subsidies perhaps from Oxenstiern, and to labour on at a completion of his system of School Education, with a view to its application to Sweden.—"But this good- nature of mine in yielding to the Swedes vehemently displeased my English friends; and they sought to draw me back from any bargain by a long epistle, most full of reasons. 'A sufficient specimen,' they argued, 'had been given in Didactics; the path of farther rectification in that department was open enough: not yet so in Real Science. Others could act in the former department, and everywhere there were rising up Schoolmasters provoking each other to industry by mutual emulation; whereas the foundations of Pansophia were not yet sufficiently laid bare. Infinitely more profit would redound to the public from an explanation of the ways of true Wisdom than from little trifles about Latin.' Much more in the same strain; and S. H. [Samuel Hartlib] added, '*Quo, moriture, ruis? minoraque viribus audes?*' in this poetical *solecism* [Comenius calls the hexameter a solecism, I suppose, on account of the false quantity it contains in the word *minora*], reproaching my inconsiderateness. Rejoiced by this recall into the road-royal, I sent on this letter to Sweden; and, nothing doubting that they would come round to the arguments there expressed, I gave myself up wholly to my Pansophics, whether to continue in them, or that, at all events (if the Swedish folk did

wish me to dwell on in my Scholastics and it were my hap to die in that drudgery), the foundations of Pansophia, of the insufficient exposition of which I heard complaints, might be better dug down into, so that they might no longer be ignored. But from Sweden the answer that came was one ordering me to persevere in the proposal of first finishing the Didactics; backed by saws to this effect: 'One would rather the *better*, but the *earlier* must be done first,' 'One doesn't go from the bigger to the smaller, but *wicely warsey*,' and all the rest of it. Nothing was left me but to obey, and plod on against my will in the clay of logomachies for eight whole years. Fortunately this was not till I had printed at Dantzic, in the year 1643, my already-made efforts at a better detection of the foundations of Pansophia, under the title of '*Pansophiæ Diatyposis Ichnographica et Orthographica*,' reprinted immediately at Amsterdam and Paris." [Footnote: Introd. to Part II. of *Opera Didactica*.]

Poor Comenius! He had a long life before him yet; but at this point we must throw him off, shunted into his siding at Elbing, to plod there for four years (1642-1646) at his Didactics, while he would fain have been soaring among his Pansophics. [Footnote: Though, as he has told us, his drudgery at the Didactics continued for *eight* years in all, there was a break of these eight years in 1646 when he returned to Sweden to report proceedings to his employers.] Letters from his London friend, Hartlib, would reach him frequently in Elbing, and would doubtless encourage him in the humbler labour since he could not be at the higher. For Hartlib himself, we find, also laid aside the Pansophics for a time, seeing no hope for them in London without the presidency of Comenius, but continued to interest himself in the Didactics. In fact, however, he was never without interests of some kind or another. Thus, in Feb. 1642-3, or when Comenius may have been about a year at Elbing, Hartlib was again at the Durie business. "A Faithfull and Seasonable Advice, or the Necessity of a Correspondence for the Advancement of the Protestant Cause: humbly suggested to the Great

Councill of England assembled in Parliament: Printed by John Hammond, 1643," is the title of a new tract, of a few pages, which we know to be Hartlib's. [Footnote: In the copy in the King's Library, British Museum, there is the MS. note "Ex dono Authoris, S. Hartlib" with the date "Feb. 6, 1642," (i.e. 1642-3).] Then, in July 1643, the Westminster Assembly met; and what an accession of topics of interest that brought to Hartlib may be easily imagined. There was the excitement of *The Solemn League and Covenant* (Aug.-Sept.), with the arrival in London of the Scottish Commissioners, including Hartlib's friend Henderson, to take part in the Assembly; there was the beginning of the great debate between Independency and Presbyterianism; nay, in Nov. 1643, Durie was himself appointed a member of the Assembly by the Parliament (Vol. II. p. 517), and so drawn over from the Continent for a long period of service and residence in England.

That Hartlib was interested in all this, and led into new positions and relationships by it, there is very varied proof.—For example, he was one of the witnesses in Laud's trial, which began Nov. 13, 1643, and straggled on through the rest of that year and the next. His evidence was wanted by the prosecution in support of that one of the charges against Laud which alleged that he had "endeavoured to cause division and discord between the Church of England and other Reformed Churches." In proof of this it was proposed to show that he had discouraged and impeded Durie in his Conciliation scheme, on the ground that the Calvinistic Churches were alien from the true faith, and that, in particular, he had "caused letters-patent granted by the King for a collection for the Palatinate ministers to be revoked after they had passed the great seal"; and it was to the truth of both these statements that Hartlib, with others, was required to testify. He was, as we know, a most competent witness in that matter; and he gave his evidence duly, though, as I should fancy, with no real ill-will to Laud. [Footnote: See particulars in Prynne's *Canterburie's Doome* (1646), pp. 539-542. Laud, in

this part of his defence, names both Durie and Hartlib. He says he did not discourage Durie, but rather encouraged him, as he could prove by letters of Durie's which he had; to which the prosecution replied that the contrary was notorious, and that Durie had "oft complained to his friends" of Land's coldness.]—Now that Episcopacy was done with, and it was to a Parliament and an Assembly mainly Presbyterian that England was looking for a new system of Church-government, Hartlib's anxiety was, as Durie's also was, to make the best of the new conditions, and to instil into them as much of the Durie idea as possible. Might it not even be that a Reformed Presbyterian Church of England would be a more effective leader in a movement for the union of the Protestant Churches of Europe than the Episcopal Church had been? This explains another short tract of Hartlib's, put forth Nov. 9, 1644, and entitled, "The Necessity of some nearer Conjunction and Correspondency amongst Evangelical Protestants, for the Advancement of the National Cause, and bringing to passe the effect of the Covenant." [Footnote: Though the tract, which consists of but eight small quarto pages, is anonymous, it is verified as Hartlib's by the inscription on the British Museum copy, "By Mr. Hartlib, Novemb. 9th." The tract itself bears only "London Printed 1644."]—Well, but how did Hartlib stand in the great controversy between the Independents and the Presbyterians? This too can be answered. As might be expected, he was in sympathy with the Independents, in as far as their claim for a Toleration was concerned. The reader will remember Edwards's famous *Antapologia*, published in July 1644, in answer to the *Apologetical Narration* of the Five Independent Divines of the Assembly, and which all the Presbyterian world welcomed as an absolutely crushing blow to Independency and the Toleration principle. Here, then, is the title of a smaller publication which that big one provoked: "A Short Letter modestly entreating a Friend's judgment upon Mr. Edwards his Booke he calleth an Anti-Apologia: with a large but modest Answer thereunto: London, Printed according to order, 1644." Actually it was out on

Sept. 14th, or about two months after Edwards's book. The title exactly indicates the structure of the publication. It consists of a short Letter and a longish Reply to that Letter. The Letter begins, "Worthy Sir, I have heard of Mr. Edwards's Anti-Apologeticall Book, as I needs must doe, for all the City and Parliament rings with it," and it goes on to request from the person addressed *his* opinion of the book. At the end of the letter we find the writer's name "Sam Hartlib": and the dating "from my house in Duke's Place in great haste, Aug. 5." And who was the friend addressed? He was a Hezekiah Woodward, B.A. (Oxon.), preacher in or near Aldermanbury, about fifty years of age, long a zealous Puritan, latterly a decided Parliamentarian and champion of the Solemn League and Covenant, and already known as an author by some Puritanic books, and one or two of a pedagogic kind, referable to an earlier period of his life when he had been a London schoolmaster. Hartlib had known him, he says in his letter, for sixteen years, that is to say from his first coming to London in 1628 or 1629. It is this long friendship that justifies him in asking Woodward's opinion of Edwards's book. The opinion is given in a reply to Hartlib, signed "Hezekiah Woodward," and dated "from my house in Aldermanbury, 13 Aug. 1644"; and it is, as far as I remember, quite against Edwards, and a real, though hazy and perplexed, reasoning for Toleration.[Footnote: The publication was duly registered, and has a long appended *Imprimatur* by Joseph Caryl; and the exact date of the publication (Sept 14) is from a MS. note in the British Museum copy, For a sketch of Woodward and a list of his writings see Wood, Ath. III, 1034- 7.]

MILTON'S TRACT ON EDUCATION: HIS METHOD WITH HIS PUPILS.

It had been Hartlib's chance, he himself tells us, to be "familiarily acquainted with the best of Archbishops, Bishops, Earls, Viscounts, Barons, Knights,

Esquires, Gentlemen, ministers, Professors of both Universities, Merchants, and all sorts of learned or in any kind useful men." This he wrote at a considerably later date in his life; [Footnote: In Aug. 1660, See Letter in Dircks's Memoir, p. 4.] but, from what we have already seen, we may vote it substantially true even in 1644. In that year, we know for certain, the circle of Hartlib's friends included Milton.

The acquaintanceship may have begun some years before that. It may have begun in 1639 when Milton, on his return from abroad, took lodgings in St. Bride's Churchyard, or in 1640, when he first set up house in Aldersgate Street. At all events, when Milton's Anti-Episcopal pamphlets of the next two years made him a public man, he is not likely to have escaped the cognisance of Hartlib. I should not wonder if Milton were one of those "more forward spirits" whom Hartlib wanted to enlist in the great scheme of a Pansophic University of London to be organized by Comenius, and whom he tried to bring round Comenius personally during the stay of that theorist in London in 1641-2, when the experiment of some such University was really in contemplation by friends in Parliament, and Chelsea had been almost fixed on as the site. But, if so, I rather guess, for reasons which will appear, that Milton gave the whole scheme the cold shoulder, and did not take to the great Comenius. Quite possibly, however, it was not till Comenius was gone, and was fixed down at Elbing in Prussia, that there was any intimacy between Milton and Hartlib. It may have come about after Milton had been deserted by his wife in July 1643, and when a few pupils, besides the two nephews he had till then had charge of, were received into his wifeless household. Would not this in itself be an attraction to Hartlib? Was not Milton pursuing a new method with his pupils, between which and the method of Comenius there were points in common? Might not Comenius himself, in his retirement at Elbing, be interested in hearing of an eminent English scholar and poet who had views about a Reform of Education akin to his own?

This is very much fancy, but it is the exact kind of fancy that fits the certainty. That certainty is that, before the middle of 1644, Milton and Hartlib were well acquainted with each other, had met pretty frequently at Milton's house in Aldersgate Street, or at Hartlib's in Duke's Place, and had conversed freely on many subjects, and especially on that of Education. Nay more, Hartlib, trying to indoctrinate Milton with the Comenian views on this subject, had found that Milton had already certain most positive views of his own upon it, in some things agreeing with the Comenian, but in others vigorously differing. Hence, after various colloquies, he had made a request to Milton. Would he put a sketch of his views upon paper—no elaborate treatise, but merely a sketch, such as one could read in half-an-hour or so, and, if permitted, show to a friend, or print for more general use? Urged more and more pressingly, Milton complied; and the result was the appearance, on June 5, 1644, on some booksellers' counters, of a thin little quarto tract, of eight pages in rather small type, with no author's name, and no title-page at all, but simply this heading atop of the text on the first page, "OF EDUCATION: TO MASTER SAMUEL HARTLIB." The publication had been duly registered, and the publisher was the same Thomas Underhill, of Wood Street, who had published Milton's first three Anti-Episcopal pamphlets. The inference is that the thing was printed by Milton himself, and not by Hartlib. It would be handier for Hartlib to have it in print than in manuscript. [Footnote: "June 4, 1644: Tho. Underhill entered for his copy under the hands of Mr. Cranford [the licenser] and Mr. Man, warden, a little tract touching Education of Youth," is the entry in the Stationers' books; without which we should not have known the publisher's name. The date of the publication is fixed, and the fact that the authorship was known at the time is proved, by this MS. note of Thomason on the copy among the King's Pamphlets in the British Museum (Press mark 12. F. e. 12./160) "By Mr. John Milton: 5 June, 1644."—Milton reprinted the tract in

1673, at the end of the second edition of his *Minor Poems*, with the words "Written above twenty years since" added to the original title.]

Hartlib must have been pleased, and yet not altogether pleased, with the opening of the Tract. Here it is:—

"MR. HARTLIB,

"I am long since persuaded that to say or do aught worth memory and imitation no purpose or respect should sooner move us than simply the love of God and of Mankind. Nevertheless, to write now the Reforming of Education, though it be one of the greatest and noblest designs that can be thought on, and for the want whereof this Nation perishes, I had not yet at this time been induced, but by your earnest entreaties and serious conjurements; as having my mind for the present half diverted in the pursuance of some other assertions, the knowledge and the use of which cannot but be a great furtherance both to the enlargement of Truth and honest living with much more peace. [Footnote: This passage, the wording of which clearly implies that Milton was prosecuting his Divorce speculation, with whatever else in addition, sets aside a hypothesis (which may have occurred to the reader as well as to myself) that the Tract on Education, though not published till June 1644, may have been written, and in Hartlib's hands, as early as 1641-2, when Comenius was in London. The hypothesis, which might have been otherwise plausible, will not accord with the particular words of the tract now presented; and the conclusion is that, whether Milton knew Hartlib or not as early as 1641- 2, when Comenius was with him, the tract was not written till shortly before its publication in June 1644, when Comenius had been two years in Elbing.] Nor should the laws of any private friendship have prevailed with me to divide thus, or to transpose, my former thoughts, but that I see those aims, those actions, which have won you with me the esteem of a person sent

hither by some good providence from a far country to be the occasion and the incitement of great good to this Island. And, as I hear, you have obtained the same repute with men of most approved wisdom, and some of highest authority among us; not to mention the learned correspondence which you hold in foreign parts, and the extraordinary pains and diligence which you have used in this matter both here and beyond the seas, either by the definite will of God so ruling, or the peculiar sway of nature, which also is God's working, Neither can I think that, so reputed and so valued as you are, you would, to the forfeit of your own discerning ability, impose upon me an unfit and over-ponderous argument, but that the satisfaction which you profess to have received from those incidental discourses which we have wandered into hath pressed, and almost constrained, you into a persuasion that what you require from me in this point I neither ought nor can in conscience defer beyond this time, both of so much need at once and of so much opportunity to try what God hath determined. I will not resist, therefore, whatever it is either of divine or human obligation that you lay upon me; but will forthwith set down in writing, as you request me, that voluntary Idea which hath long in silence presented itself to me of a better Education, in extent and comprehension far more large, and yet of time far shorter and of attainment far more certain, than hath been yet in practice. Brief I shall endeavour to be; for that which I have to say assuredly this Nation hath extreme need should be *done* sooner than *spoken*. To tell you, therefore, what I have benefited herein among old renowned authors, I shall spare; and to search what many modern JANUAS and DIDACTICS, more than ever I shall read, have projected, my inclination leads me not. But, if you can accept of these few observations, which have flowered off, and are as it were the burnishing of, many studious and contemplative years altogether spent in the search of religious and civil knowledge, and such as pleased you so well in the relating, I here give you them to dispose of."

What must have pleased Hartlib in this was the tone of respectful compliment to himself; what may have pleased him less was the slighting way in which Comenius is passed over. "To search what many modern JANUAS and DIDACTICS, more than ever I shall read, have projected, my inclination leads me not," says Milton, quoting in brief the titles of the two best-known works of Comenius. It is as if he had said, "I know your enthusiasm for your Pansophic friend; but I have not read his books on Education, and do not mean to do so." This was barely polite; [Footnote: The manner of the allusion to Comenius rather forbids the idea that Milton had met him during his London visit. Like most high-natured men, Milton had a kindly side to the merits of those whom he personally knew.] but Hartlib was a man of sense: and he would be glad, in reading on, to find that, with whatever independence Milton had formed his views, not even Comenius had outgone him in denunciations of the existing system of Education. Thus:—

"Seeing every nation affords not experience and tradition enough for all kind of learning, therefore we are taught chiefly the languages of those people who have at any time been most industrious after wisdom; so that Language is but the instrument conveying to us Things worthy to be known. And, though a linguist should pride himself to have all the tongues that Babel cleft the world into, yet, if he have not studied the solid things in them as well as the words and Lexicons, he were nothing so much to be esteemed a learned man as any yeoman or tradesman competently wise in his mother-dialect only. Hence appear the many mistakes which have made Learning generally so unpleasing and so unsuccessful. First, we do amiss to spend seven or eight years merely in scraping together so much miserable Latin and Greek as might be learnt otherwise easily and delightfully in one year. And that which casts our proficiency therein so much behind is our time lost, partly in too oft idle vacancies given both to Schools and Universities, partly in a preposterous exaction, forcing the empty wits of

children to compose themes, verses, and orations, which are the acts of ripest judgment, and the final work of a head filled, by long reading and observing, with elegant maxims and copious invention. These are not matters to be wrung from poor striplings, like blood out of the nose, or the plucking of untimely fruit: besides the ill habit which they get of wretched barbarizing against the Latin and Greek idiom with their untutored Anglicisms, odious to read, yet not to be avoided without a well-continued and judicious conversing among pure authors digested, which they scarce taste; whereas, if, after some preparatory grounds of speech by their certain forms got into memory, they were led to the praxis thereof in some chosen short book lessoned thoroughly to them, they might then forthwith proceed to learn the substance of good Things and Arts in due order, which would bring the whole language quickly into their power. This I take to be the most rational and most profitable way of learning *Languages*, and whereby we may best hope to give account to God of our youth spent herein. And, for the usual method of teaching *Arts*, I deem it to be an old error of Universities, not yet well recovered from the scholastic grossness of barbarous ages, that, instead of beginning with Arts most easy (and these be such as are most obvious to the sense), they present their young unmatriculated novices at first coming with the most intellectual abstractions of Logic and Metaphysics; so that they, having but newly left those grammatic flats and shallows where they stuck unreasonably to learn a few words with lamentable construction, and now on the sudden transported under another climate to be tossed and turmoiled with their unballasted wits in fathomless and unquiet deeps of controversy, do for the most part grow into hatred and contempt of Learning, mocked and deluded all the while with ragged notions and babblements, while they expected worthy and delightful knowledge; till poverty or youthful years call them importunately their several ways, and hasten them, with the sway of friends, either to an ambitious and mercenary or ignorantly zealous Divinity: some

allured to the trade of Law, grounding their purposes not on the prudent and heavenly contemplation of justice and equity, which was never taught them, but on promising and pleasing thoughts of litigious terms, fat contentions and flowing fees. Others betake themselves to State affairs, with souls so unprincipled in virtue and true generous breeding that flattery and court-shifts and tyrannous aphorisms appear to them the highest points of wisdom; instilling their barren hearts with a conscientious slavery, if (as I rather think) it be not feigned. Others, lastly, of a more delicious and airy spirit, retire themselves, knowing no better, to the enjoyments of ease and luxury, living out their days in feasts and jollity; which indeed is the wisest and the safest course of all these, unless they were with more integrity undertaken. And these are the errors, and these are the fruits of mispending our prime youth at the Schools and Universities as we do, either in learning mere Words, or such Things chiefly as were better unlearned."

Having thus denounced the existing system of Schools and Universities, Milton goes on to explain what he would substitute. As he poetically expresses it, he will detain his readers no longer in the wretched survey of things as they are, but will conduct them to a hill-side where he will point out to them "the right path of a virtuous and noble education, laborious indeed at the first ascent, but else so smooth, so green, so full of goodly prospect and melodious sounds on every side, that the Harp of Orpheus was not more charming." The rest of the tract is a redemption of this promise. To represent it by mere continued quotation would be of small use, and is perhaps unnecessary. We will, therefore, try a stricter method.

Milton does not formally concern himself in this tract with the complete problem of National Education. In this respect the passion and the projects of Comenius were a world wider than Milton's. Comenius aimed at, and passionately dreamt of, a system of Education that should, in every country where it was established, comprehend all born in that country, of both

sexes, and of every rank or class, and take charge of them from their merest infancy on as far as they could go, from the first or Mother's School through the subsequent routine of the Public Vernacular School, the Latin School or *Ludus Literarius*, and the University. This last stage of the complete routine might extend to the twenty-fourth or twenty-fifth year of life; and, though few could proceed to that stage, and the majority must, from sheer social necessity, drop off in the earlier stages, yet all were to be carried through the stage of the Vernacular Public School, and progress beyond that, where possible, was not to be denied to girls any more than to boys. Compared with this, what Milton contemplates, or at least discusses, is but an important fragment struck off from the total mass. True, he gives a tolerably broad definition of Education at the outset. "I call therefore a complete and generous Education," he says, "that which fits a man to perform, justly, skilfully, and magnanimously, all the offices, both private and public, of Peace and War." This definition, if meant as verbally perfect, would not have been satisfactory to Comenius, whose express notion of Education, as we know, was that it included preparation for the life to come as well as for that which now is. But, if he had known Milton, he might have let the omission pass as certainly and most solemnly implied, and might even have liked, for the sake of effect, the practical and straightforward utilitarianism of the definition. But then, when Milton's precise phrasing of the definition was examined, one could not but guess limits in his mind. "That which fits a *man* to perform" are the words of the definition; and to perform what? "All the offices, both private and public, of *Peace and War*," are the words that follow. And, as one reads on, the conjecture suggested by this phrasing is confirmed. By *man* Milton did not mean *Homo*, but *Vir*. When he framed his definition of Education, only one of the sexes was present to his mind; and throughout the whole tract, from first to last, there is not a single recognition of girl, woman, or anything in female shape, as coming within the scheme proposed. But more than that. Not only is it the education of one

sex only that is discussed in the tract, but it is the education only of a portion of that sex, and of that portion only at a particular period of life. There is nothing about the Infant Education, or what we should now call the Primary Education, of male children; and there is nothing about ways and means for the secondary or higher education of any others than those whose parents could pay for such education out of their own resources. In short, the tract is a proposal of a new method for the education of English gentlemen's sons between the ages of twelve and twenty-one. It is this, and nothing more, except in so far as hints in the general philosophy of education may be implied in the particular exposition. Milton himself was careful, ere the close of the tract, to avow that he had so restricted himself. It was a "general view," he said, such as Mr. Hartlib had desired, and meant also "for light and direction" to "such as have the worth in them to make trial," but "not beginning as some have done [*e.g.* Comenius] at the cradle, which might yet be worth many considerations," and omitting also "many other circumstances" that might have been mentioned had not brevity been the scope. All this it is necessary to remember in justice to the tract. It is a tract on the education of gentlemen's sons, or of such boys and youths as had hitherto been accustomed to go to the English Public Schools and Universities.

Within his avowed limits, Milton is very like himself, *i.e.* very grand and very bold. At the first start, for example, he tells us that he would abolish Universities altogether, or roll Public Schools and Universities into one. Here is his recipe: "First to find out a spacious house and ground about it fit for an ACADEMY, and big enough to lodge 150 persons (whereof 20 or thereabout maybe attendants), all under the government of one who shall be thought of desert sufficient, and ability either to do all or wisely to direct and oversee it done. This place should be at once both School and University, not needing a remove to any other house of Scholarship, except it be some peculiar College of Law or Physic, where they mean to be

practitioners; but, as for those general studies which take up all our time from Lilly to the commencing (as they term it) Master of Art, it should be absolute. After this pattern, as many edifices may be converted to this use as shall be needful in every city throughout this land; which would tend much to the increase of learning and civility everywhere." Milton clearly did not like the deputation of all the higher education of England to two seats of learning, like Oxford and Cambridge, but wanted his Academies to be distributed all over England, in numbers proportionate to the population, and chiefly in cities.

He takes one of these imagined Academies as a model, and shows how it might be conducted. He divides the subject into the three heads of STUDIES, EXERCISES AND AMUSEMENTS, and DIET. On this last, however, he is extremely brief. "For their Diet there cannot be much to say, save only that it would be best in the same house; for much time else would be lost abroad, and many ill habits got; and that it should be plain, healthful, and moderate, I suppose is out of controversy:" *i.e.* Milton would prefer that all the pupils should be boarded in the Academy, and have their meals there at a common table. It is to the Studies and the Exercises and Amusements that most space is devoted.

I. THE STUDIES:—Here Milton appears decidedly as an innovator, but yet with a curious mixture of what would now be called rank Conservatism. The innovation consists in a total departure from the use and wont of his time, in respect of the nature of the studies to be pursued and the order in which they should be taken. There was to be an end of that wretched torture of Latin and Greek theme-making and versifying, and that dreary toiling amid obsolete subtleties of scholastic Logic and Metaphysics, which he had denounced in a previous passage, and which had made University Education, he says, nothing better than "an asinine feast of sow-thistles and brambles." Instead of these he would have studies useful in themselves and

delightful to ingenuous young minds. Things rather than Words; the Facts of Nature and of Life; Real Science of every possible kind: this, together with a persistent training in virtuous and noble sentiment, and a final finish of the highest literary culture, was to compose the new Education. Here Milton and Comenius are very much at one; here Milton and the modern advocates of the Real or Physical Sciences in Education are very much at one. Given a lofty and varied idea of utility, no man has ever been more strenuously utilitarian than Milton was in this tract. The very novelty of the scheme it proposed consisted in the proclamation of utility as the test of the studies to be pursued and as ruling the order in which they should come.—What, then, was that "rank conservatism," as some might call it now, which accompanied the novelty? It was that the medium of liberal education should still be mainly Latin and Greek. A sentence in one of the passages of the tract already quoted has prepared us for this. Language, Milton had there admitted, is valuable in education only as an instrument of real knowledge, a vehicle of "things worthy to be known." But then all languages were not equally fitted for this function, inasmuch as every people could put into its language only what it had in its head or heart, and so different languages had come down freighted with very different weights and worths of matter. Now, what were the languages pointed out by this principle as apt for the purposes of education? They were Greek, Latin, and Italian, with (on religious grounds) Hebrew and one or two of its cognates. These were the tongues to be taught, and to be taught in, and mainly, of these, Latin and Greek. Of English there is not one word. This may partly be accounted for. The acquisition of useful information in all kinds of subjects was to be a great part of the education in each of the proposed Miltonic Academies; and at that time information on all kinds of subjects was locked up chiefly in Latin and Greek books. All modern or mediaeval books of information, all the standard text-books in the Sciences and Arts, that had been written by Englishmen themselves or by Continentals, were in

the common Latin; the library of such books, original or translated, in the vernacular was yet but scanty. One could not be *learned* by means of English alone. Well, but Milton recognised a culture of the feelings, the imagination, the sense of art and nobleness, as also something needed in education, and to be helped by books; and in this respect, if not in the other, were there not available materials and means in the native English Literature? That Literature contained, at all events, the poetry of Chaucer, Spenser, Shakespeare, and not a few others, rated more or less highly by Milton himself. That Milton did not, on this account, include some teaching and reading of the vernacular in the curriculum of his Academy, may have arisen from the fact that the best in English Literature was then all recent, and of such small bulk collectively that acquaintance with it might be expected as a matter of mere chance and delicious odd hours in window-corners. Here he but followed the custom. All Public or Grammar Schools were Latin and Greek Schools: English at that stage was, by common consent, to shift for itself. And yet there were dissentients from the custom, and advocates of the claims of the vernacular. Comenius, as we have seen, had blown a blast on the subject for all lands; and in Milton's own school of St. Paul's there had been a rather remarkable tradition of English. Not only had the elder Gill, the Head-master of the school in Milton's time, been a purist in English, and an inventor of new methods for teaching in and through English (see Vol. I. pp. 60-64), but Gill's predecessor in the school, Mulcaster, had pleaded for English. "Is it not a marvellous bondage," he had written as early as 1582, "to become servants to one tongue, for learning's sake, the most part of our time, whereas we may have the very same treasure in our own tongue with the gain of most time: our own bearing the joyful title of our liberty and freedom; the Latin tongue remembering us of our thralldom and bondage? I love Rome, but London better; I favour Italy, but England more; I honour the Latin, but I worship the English." [Footnote: Richard Mulcaster's "First Part of the Elementarie; which

entreateth chiefelie of the Right Writing of our English Ton.," (1582). My quotation, however, is not directly from the book itself, but from an extract in the Appendix to Mr. Quick's "Essays on Educational Reformers" (1868), pp. 301-2.] After this and the tradition of English in St. Paul's, Milton's total omission of English from the curriculum of his Academy is rather remarkable. There are proofs that, when he wrote his Tract on Education, he had settled in a lower estimate of the worth of all the previous English Literature than is common now, and that he thought the greatness of English still to come. This may have had something to do with the omission. Possibly, however, he reserved a large daily use of English in his Academy which does not appear in the programme.

What does appear in the programme is that the curriculum of eight years or so was to be arranged, not rigidly but in a general way, in four classes or stages, thus:—

(1) *First Class or Stage* (ætat. 12-13?):—The business here was to be Latin, Arithmetic, and Elementary Geometry. The Latin rudiments and rules were to be learnt from "some good Grammar, either that now used [Lilly's], or any better," and the Italian or Continental mode of pronouncing Latin, instead of the customary English, was to be carefully taught from the first; but as to the first reading-books to be used along with the Grammar, or any method for simplifying and accelerating entrance into Latin, whether that of Comenius or any other, there is no hint as yet. Neither is there any hint as to the manner of learning Arithmetic and the Elements of Geometry, save that the latter might be picked up "even playing, as the old manner was." On another part of the training of this First Class, however, Milton is more specific. Most especially at this stage, the boys were to be inured to noble and hardy sentiments and a sense of the importance of the education they were beginning; they were to be "inflamed with the study of Learning and the admiration of Virtue"; nay, they were to be "stirred up with high hopes

of living to be brave men and worthy patriots, dear to God, and famous to all ages." This might be done by reading to them aloud, from Greek or Latin, "some easy and delightful Book of Education" not yet accessible to themselves. "CEBES, [Footnote: The Pinax (Table) of CEBES of Thebes, a disciple of Socrates. "This Pinax is a philosophical explanation of a table on which the whole of human life, with its dangers and temptations, was symbolically represented, and which is said to have been dedicated by some one to the temple of Cronos at Athens or Thebes. The author introduces some youths contemplating the table, and an old man who steps among them undertakes to explain its meaning. The whole drift of the book is to show that only the proper development of the mind and possession of real virtues can make us truly happy" (Dr. L. Schmitz in Smith's Dict. of Greek and Roman Biog.: Art. *Cebes*.) There were in Milton's time Latin translations of Cebes, and at least one in English.] PLUTARCH, [Footnote: This must be some such portion of PLUTARCH'S "Moral Works" as that relating to Pedagogy. An English translation of the "Morals," by Philemon Holland, had been published in 1603.] and other Socratic Discourses," are mentioned as fit for the purpose in Greek; and, in Latin, "the two or three first Books of QUINTILIAN." [Footnote: I do not find in Lowndes any early English translation of QUINTILIAN'S "Institutes." The first two or three Books of this work are an excellent dissertation on the importance of Education and survey of what it ought to include; and it gives us an idea of Milton's purpose that he wanted them to be read to pupils at the outset. He wanted to fire them with high notions of that business of education on which they were entering.] Most, however, would depend on the explanations and precepts of the master himself at every opportunity, and on the influence of his own example, "infusing into their young breasts such an ingenuous and noble ardour as would not fail to make many of them renowned and matchless men." Always, too, at evening, there was to be Religious teaching and reading of the Bible.

(2) *Second Class or Stage* (ætat. 13-16?):—This stage, it must be presumed, was to be considerably longer than the first; for its business was to consist in Latin continued, with Greek added, and in the acquisition through these tongues, and otherwise, of a knowledge of all the useful Sciences and Arts. Here, indeed, Milton's utilitarian bent, his determination to substitute a pabulum of real knowledge for the studies then customary in schools, asserts itself most conspicuously. Here it is that he approaches most to Comenius in the substance, though with a difference in the manner. For what were the books he would exercise his pupils on at this stage, *i.e.* as soon as they had got through the Latin Grammar, and could make out a bit of Latin? First, CATO, VARRO, and COLUMELLA, the three Latin writers on Agriculture. [Footnote: CATO is the famous "Cato the Censor" of Roman history, or M. Porcius Cato (B.C. 231-141), among whose preserved writing, is an agricultural treatise, *De Re Rustica*; VARRO is M. Terentius Varro (B.C. 116-28), reputed the most learned of all the Romans, and among whose various works is also one *De Re Rustica*; COLUMELLA, the author of a systematic work on Agriculture, in twelve Books, lived in the first century of the Christian era. I do not know that there were any English translations of these Latin works on Agriculture in Milton's time.] If the language of these unusual authors was difficult for the pupils, "so much the better; it is not a difficulty beyond their years." They would, at all events, find the matter useful and interesting, and might, by these readings, and due modern comments, be "incited and enabled" for the great work of "improving the tillage of their country" when they should grow to be men. Hartlib, we may be sure, would like this on its own account; but Milton had an additional reason for it. The pupils, after having read these writers, would have a good grasp of the Latin vocabulary, and would be masters of any ordinary Latin prose. They might then, therefore, learn Geography, with "the use of the Globes and all the Maps," through any good modern (Latin) treatise on that subject, and also the elements of "Natural Philosophy" in the

same way. Milton does not specify any manual on either subject. But, about this time, he says, the pupils would be learning Greek. This they would do "after the same manner as was before prescribed in the Latin; whereby, the difficulties of Grammar being soon overcome, all the historical Physiology of ARISTOTLE and THEOPHRASTUS are open before them, and, as I may say, under contribution." In other words, the first Greek readings of the pupils would be in such works of Aristotle as his "History of Animals," his "Meteorology," and parts of his general "Physics," and in the "History of Plants" of Aristotle's disciple, Theophrastus; [Footnote: Lowndes mentions no English translations of ARISTOTLE or THEOPHRASTUS as early as Milton's time.] and the purpose of such readings would be to enlarge their knowledge of the Physical Sciences at the same time that they were breaking themselves into Greek. But now, Latin being thoroughly in their possession, they might be ranging at large, in quest of the same and analogous kinds of information, in VITRUVIUS (Architecture), SENECA's "Natural Questions," MELA (Geography), CELSUS (Medicine), PLINY (Natural History), and SOLINUS (Natural History and Geography). [Footnote: VITRUVIUS and CELSUS do not seem to have been translated into English so early as Milton's time; but there were translations of all the others. The works of SENECA, both Moral and Natural, had been "done into English" by Thomas Lodge (1614); PLINY'S "Natural Historie of the World," translated by Philemon Holland, Doctor of Physic (1601), was a well-known book; and MELA and SOLINUS had been made accessible together in "The rare and singular work of Pomponius Mela, that excellent and worthy Cosmographer of the Situation of the World, most orderly prepared, and divided every parte by it selfe; with the Longitude and Latitude of everie kingdome, &c.; whereunto is added that learned worke of Julius Solinus *Polyhistor*, with a necessarie table for this Booke, right pleasant and profitable for Gentlemen, Merchants, Mariners, and Travellers, Translated into Englyshe by Arthur Golding, gent." (1585-7.)] What next?

Why, "having thus passed the principles of Arithmetic, Geometry, Astronomy, and Geography, with a general compact of Physics, they may descend, in Mathematics, to the instrumental science of Trigonometry, and from thence to Fortification, Architecture, Enginry, or Navigation; and, in Natural Philosophy, they may proceed leisurely from the History of Meteors, Minerals, Plants, and Living Creatures, as far as Anatomy. Then also in course might be read to them out of some not tedious writer the Institution of Physic; that they may know the tempers, the humours, the seasons, and how to manage a crudity." Text-books are not mentioned here; and, though some must have been in view for such subjects as Trigonometry, Fortification, Engineering, and Navigation, yet it is clear, from Milton's language, that he meant a good deal of the miscellaneous instruction to be by lectures and digests of books by the teacher. Nay, there were to be more than lectures. "To set forward all these proceedings in Nature and Mathematics, what hinders but that they may procure, as oft as shall be needful, the helpful experiences of Hunters, Fowlers, Fishermen, Shepherds, Gardeners, Apothecaries, and, in the other sciences, Architects, Engineers, Mariners, Anatomists; who, doubtless, would be ready, some for reward, and some to favour such a hopeful Seminary." Hartlib must here have rejoiced again. But there comes in a Miltonic touch at the end. Hitherto he has debarred the pupils of his Academy, it will have been noticed, from all the ordinary classics read in schools. But, just about the end of this, the second stage of their studies, devoted to the Real or Physical Sciences and their applications, he would admit them to such classic readings as would impart a poetic colouring to the knowledge so acquired. In Greek, they might take now to ORPHEUS, HESIOD, THEOCRITUS, ARATUS, NICANDER, OPPIAN, and DIONYSIUS, and in Latin to LUCRETIUS, MANILIUS, and the Georgics of VIRGIL. [Footnote: Of the ORPHIC POEMS Milton must here have intended those relating to Nature and her phenomena. Of the "Works and Days" or "Georgics" of HESIOD,

there had been an English translation by George Chapman (1618); and at least some of the Idylls of THEOCRITUS had been in English since 1588. The *Phnomena* and *Diosemeia* of Aratus (circ. B.C. 270) were, as we know, a favourite book with Milton, and he had had a copy of the Paris edition of 1559 in his possession since 1631 (see Vol. I. p. 234, Note), with MS. notes of his own in the margin. In looking at the specimens of these MS. notes facsimiled by the late Mr. Leigh Sotheby in his *Milton Ramblings* from the original book, now in the British Museum, I can see, by my test of the shaping of the letter e (Vol. II. p. 121, Note), that, while some of the notes were written before the journey to Italy, or between 1631 and 1638, others were written after the return from Italy, *i. e.* after 1639. This proves that Milton kept using the book in his manhood. There was, I think, then no English translation of it. Neither was there a translation of the *Theriaca* and *Alexipharmaka* (Poems on Venomous Animals and Poisons) of the Greek NICANDER (circ. B.C. 150); nor of the *Halieutics* and *Kynegetics* (Poems on Fishing and Hunting) of OPPIAN (circ. A.D. 210). There was, however, as early as 1572, an English translation "by Thomas Irvine, gentl." of the *Periegetes* or Geographical Poem of DIONYSIUS AFER (third century after Christ). Of the Latin Poems mentioned— LUCRETIUS *De Rerum Natura*, the *Astronomica* of MANILIUS, and the Georgics of VIRGIL— only the last had been Englished as yet. They had been Englished in 1589 by an Abraham Fleming, and in 1628 by Thomas May.]

Some of these books which were "counted most hard" would be, in the circumstances, facile and pleasant.

(3) *Third Class or Stage* (ætat. 16-19?):—The work of this stage was also to be very composite. It was to embrace Ethics, Economics, Politics, Jurisprudence, Theology, Church History and General History, together with Italian, Hebrew, and possibly Chaldee and Syriac, varied throughout by such carefully-arranged readings in Latin and Greek classics as would

harmonize with those studies while they relieved them. For by this stage the reason of the pupils would have been so far matured that they might pass from the Physical to the Moral Sciences. For Ethics, they might be led "through all the Moral Works of PLATO, XENOPHON, CICERO, PLUTARCH, LAERTIUS, and those LOCRIAN REMNANTS; [Footnote: There was then no complete English translation of PLATO, but individual Dialogues had been translated, and he had been accessible complete in Latin since 1484. The *Cyropædia* of XENOPHON had been twice translated into English, the second translation (1632) being by Philemon Holland; but Lowndes mentions no translation yet of the *Memorabilia*. The *De Officiis* of CICERO had been translated again and again, and others of his writings. The Morals of PLUTARCH, as we have already seen, were accessible in English. The book on the History of Philosophy by the Greek DIOGENES LAERTIUS was not yet in English, but a Latin translation was extant. By the LOCRIAN REMNANTS seem to be meant reputed remains of those LOCRIAN philosophers from whom PLATO had derived instruction.] but still to be reduced, in their nightward studies wherewith they close the day's work, under the determinate sentence of DAVID or SOLOMON, or the EVANGELS and APOSTOLIC SCRIPTURES." For Economics and Politics, to follow the Ethics, no books are named; but the Greek and Latin books in view may be guessed. In Jurisprudence, which was to come next, they would find the substance "delivered first, and with best warrant, by MOSES"; and then, "as far as human prudence can be trusted, in those extolled remains of Grecian Lawgivers, LYCURGUS, SOLON, ZALEUCUS, CHARONDAS, and thence to all the Roman Edicts and Tables, with their JUSTINIAN, and so down to the SAXON AND COMMON LAWS OF ENGLAND and the STATUTES." [Footnote: To put this in other words, Milton, to ground his English students in the Science of Law, would have begun first with the MOSAIC LAWS in the Pentateuch, and would then have led them through a course of: I. *The Greek*

Legislation, so far as it could be recovered, of LYCURGUS the Spartan (B.C. 884, according to Aristotle), SOLON the Athenian (*circ.* B.C. 600), ZALEUCUS, the Lawgiver of the Locrians (*circ.* B.C. 660), and CHARONDAS, the Lawgiver of Catana and other Greek cities in Sicily and Italy (*circ.* B.C. 500); II. *The Roman Law*, in all its ancient fragments, and especially in its great compilation and completion by the Emperor JUSTINIAN (A.D. 527-534); III. *Native English Law*, as represented in the preserved codes of the old Anglo-Saxon kingdoms of Kent, Wessex, &c., and in the traditional and written Laws of England since the Conquest.] For History, General or Ecclesiastical, no manuals are spoken of; and, as respects Theology, it is only indicated that this might be the employment of Sundays, though not exclusively so.—The Italian language was to be acquired "at any odd hour" in an early part of this stage, and the Hebrew, with Chaldee and Syriac, farther on; but there is no specification of means, or of the Grammars to be used.—The poetical and oratorical readings interspersed with these various and progressive studies were to be, in the earlier part of the stage, "some choice Comedies, Greek, Latin, and Italian," selected "with wariness and good antidote," and a Tragedy or two of the domestic kind, such as the *Trachiniæ* of SOPHOCLES, and the *Alcestis* of EURIPIDES; and so gradually to the chief Historians (HERODOTUS, THUCYDIDES, &c.), the Heroic Poets (HOMER, VIRGIL, &c.), the "Attic Tragedies of stateliest and most regal ornament" (more of SOPHOCLES and EURIPIDES), and "the most famous Political Orations" (DEMOSTHENES and CICERO). [Footnote: Chapman's translation of HOMER into English had been complete in 1616. Nothing of ÆSCHYLUS, SOPHOCLES, or EURIPIDES, appears to have been translated into English. Two Books of HERODOTUS had been translated into English as early as 1584; and Hobbes' translation of THUCYDIDES had appeared in 1628. There were English translations of some Orations of DEMOSTHENES and CICERO; and of the Æneid of VIRGIL, or separate

portions of it, there had been many translations, including Caxton's (1480), Gawin Douglas's in Scotch (1553), the Earl of Surrey's (1557), Phæar and Irvine's (1573), and Sandys's (1627).] Milton recommends that passages of the Orators and Tragedians should be got by heart and solemnly recited aloud. He does not name Æschylus among his Tragedians. Euripides, we know, was his favourite.

(4) *Fourth Class or Stage* (ætat. 19-21?):—This was to be the finishing stage, and was to be devoted to Logic, Rhetoric, and Poetics, with practice in Composition. Such training in form and literary theory, Milton argued, would come best after the pupils had acquired a sufficiency of *matter*, or somewhat of "an universal insight into *things*." As to the masters for Logic he says nothing in the tract; but we know otherwise that he had a fancy for Ramus, as qualifying Aristotle. For Rhetoric the masters were to be "PLATO, ARISTOTLE, PHALEREUS, CICERO, HERMOGENES, LONGINUS." [Footnote: PLATO comes in here, I suppose, for his style generally, and for disquisitions on Rhetoric in one or two of his Dialogues; ARISTOTLE, of course, for his *Rhetoric* (not then translated, I think). PHALEREUS is Demetrius Phalereus, the Athenian orator (B.C. 345—283), and reputed author of a work "On Elocution" (not translated in Milton's time, I think); CICERO is brought in, of course, for his *De Oratore*, &c. (translated into English, I should think, before Milton's time, but I am not sure); HERMOGENES (second century after Christ) is the Greek author of a system of Rhetoric in several Books, all written in his youth (not in English in Milton's time, if yet); and LONGINUS was Longinus' "On the Sublime" (waiting to be put into English).] By Poetics Milton did not mean mere Prosody, which he assumed the pupils to have learnt long ago under the head of Grammar, but "that sublime Art which, in ARISTOTLE'S *Poetics*, in HORACE, and the Italian Commentaries of CASTELVETRO, TASSO, MAZZONI, and others, teaches what the laws are of a true Epic Poem, what of a Dramatic, what of a Lyric, what decorum

is, which is the great masterpiece to observe. [Footnote: Lowndes does not mention any very early translation of the *Poetics* of ARISTOTLE. Of the *De Arte Poetica* of HORACE there had been at least two translations—one by "Tho. Drant" in 1567, and one by Ben Jonson (published 1640). One work of TASSO referred to in the text is, I suppose, his *La Cavaletta; overo della Poesia Toscana*; CASTELVETRO (1505—1571) and MAZZONI (*circa* 1590) were two Italian scholars who had written on Poetry. The omission by Milton here of such English books as Sir Philip Sidney's *Apologie for Poetrie* (1595) and Puttenham's *Arte of English Poesie* (1589) is a striking instance of his resolute non-regard of everything English.] This would make them soon perceive what despicable creatures our common Rhymers and Play-writers be, and show them what religious, what glorious and magnificent use, might be made of Poetry both in divine and human things." Observe the contempt which Milton here expresses of the English Literature of his age. It had by this time become one of his habitual feelings. He goes on, however, to express the same contempt of the contemporary English Pulpit. By that practice in speaking and writing which he proposed as the final and crowning discipline in his Academy, he hoped to turn out young men fitted to teach the English Pulpit a new style of preaching, as well as to excel in public and Parliamentary life.

II. EXERCISES AND AMUSEMENTS:—These were to be of three kinds: (1) *Gymnastics and Regular Military Drill*. Milton is most emphatic on this subject. He would have the course of Education in his Academy to be as good for war as for peace; and therefore he would blend the Spartan discipline with the Athenian culture. The pupils were to be taught Fencing, so that they might be excellent swordsmen, with "exact use of their weapon, to guard, and to strike safely with edge or point." They were also to be "practised in all the locks and gripes of Wrestling, wherein Englishmen were wont to excel, as need may often be in fight to tug or grapple, and to close." So much for their gymnastics individually. But the main thing was

to be their military drill collectively. There was to be no mistake about this; it was to be no mere school-play. The 120 or 130 youths in each Academy, under its head-master, with his twenty attendants, were to be treated sometimes as a single company of Foot, and at other times as two troops of Horse; and they were to be regularly and continually drilled in all the art both of Infantry and Cavalry. As we have already quoted the substance of the passage where this is insisted on (Vol. II. p. 480), we need here note only that portion of the passage in which Milton points out how, by such a system of training, the pupils of his Academy might be expected, "as it were out of a long war," to "come forth renowned and perfect commanders in the service of their country." "Commanders" observe; *i.e.*, as we said before, the contemplated Academy was one for gentlemen's sons only. (2) *Music*. There was to be abundance of this in the Academy, both for recreation and for the noble effects of music on the mind. The music was to be both vocal and instrumental; and of the various instruments the organ is named in chief. (3) *Excursions*. "In those vernal seasons of the year when the air is calm and pleasant, it were an injury and sullenness against Nature not to go out and see her riches, and partake in her rejoicing with Heaven and Earth. I should not therefore be a persuader to them of studying much then, after two or three years that they have well laid their grounds, but to ride out in companies, with prudent and staid guides to all the quarters of the land, learning and observing all places of strength, all commodities of building, and of soil for towns and tillage, harbours and ports for trade; sometimes taking sea as far as to our navy, to learn there also what they can in the practical knowledge of sailing and of sea-fight."

Dr. Johnson's criticism of Milton's new Method of Education is well known, and is perhaps the criticism most operative to the present day. The scheme is a mere air-hung fancy, the *utinam* of a sanguine spirit, put forth as a possible institution! But the real question in every such case is, Does the proposal contain some important improvement which is practicable?

Does it move in the right direction? This is the question to be asked respecting Milton's plan for a Reformed Education, How does Dr. Johnson answer it? "The truth is that the knowledge of external nature, and the sciences which that knowledge requires or includes, are not the great or the frequent business of the human mind. Whether we provide for action or conversation, whether we wish to be useful or pleasing, the first object is the religious and moral knowledge of right and wrong; the next is an acquaintance with the history of mankind, and with those examples which may be said to embody truth, and prove by events the reasonableness of opinions. Prudence and justice are virtues and excellences of all times and all places; we are perpetually moralists, but are geometricians only by chance. Our intercourse with Intellectual Nature is necessary; our speculations upon Matter are voluntary, and at leisure. Physiological learning is of such rare emergence that one man may know another half his life without being able to estimate his skill in hydrostatics or astronomy; but his moral and prudential character immediately appears. Those authors, therefore, are to be read at schools that supply most axioms of prudence, most principles of moral truth, and most materials for conversation; and these purposes are best served by poets, orators, and historians." [Footnote: Johnson's Life of Milton, in his *Lives of the Poets* (Cunningham's edit. I.91-93)] What an egregious misrepresentation this is of Milton's project the reader, who already knows the project itself in its completeness, will see at once. Milton included all that Johnson wanted to have included, and more largely and systematically than Johnson would have dared to dream of, and for the same reasons. The introduction of Natural and Physical Science into schools was but a portion, though an emphatic portion, of Milton's project. And, with respect to this portion of his project—a novelty at the time, though Milton had Comenius and Hartlib and all the Verulamians with him—subsequent opinion has more and more pronounced, and is more and more and more pronouncing, for Milton and against Johnson. The fairer

criticism now would be as to the *mode* in which Milton proposed to teach Natural and Physical Science, and knowledge generally. Milton, who himself possessed in really encyclopædic extent all the scientific knowledge of his time, must have been right in supposing that the knowledge *could* then be taught through Latin and Greek books. Even then, however, he perhaps overrated the necessity of Latin and Greek for this particular business of education, and underrated what could be done in sheer English. And, now that Science has burst all bounds of Latin and Greek, and it would be ludicrous to go merely to the Greek and Latin authors named by Milton for our Geography, or Astronomy, or Natural History, or Physics, or Chemistry, or Anatomy and Physiology, it is clear that the claims of Latin and Greek in education must not rest on their instrumental value in giving access to the stores of science, but on quite another basis. In short, that in Milton's scheme which is now obsolete is its determinate intertwining of the whole business of the acquisition of knowledge with the process of reading in other languages than the vernacular. This taken out of the Scheme, all the rest lasts, and is as good now, and perhaps as needful, as it was in Milton's time. Above all, the noble moral glow that pervades the *Tract on Education*, the mood of magnanimity in which it is conceived and written, and the faith it inculcates in the powers of the young human spirit, if rightly nurtured and directed, are merits everlasting.

The plan of the tract was not speculative only. Since 1639, when he lived in the St. Bride's Churchyard lodging, Milton had been teaching his two nephews, and had had the younger nephew, Johnny Phillips, boarding with him entirely; when he removed in 1640 to the house in Aldersgate Street, the elder nephew, Edward Phillips, also came under his roof; and in 1643, after his wife had deserted him, and his father had come to live with him, he had received into his house, as boarders or day-boarders, a few additional pupils. How many there were we do not know: probably, with the two nephews, not more than eight or a dozen at most. Part of his daily work,

therefore, at the very time when he wrote the tract to Hartlib, was the teaching of these few boys. Accordingly, it is at this point that we may best quote Edward Phillips's account of his uncle's method with his pupils. He had himself had four or five years' experience of the method, and was now (1644) fourteen years of age. In his account, however, though he inserts it as early as the year 1639 in his Memoir, he inweaves recollections that must span from 1639 to 1646, so as to describe in one passage his uncle's training of boys from the age of ten to that of fifteen or sixteen:—

"And here, by the way, I judge it not impertinent to mention the many authors both of the Latin and Greek which, through his excellent judgment and way of teaching, far above the pedantry of common Public Schools (where such authors are scarce ever heard of), were run over within no greater compass of time than from ten to fifteen or sixteen years of age:— Of the Latin, the four grand authors *De Re Rusticâ*, CATO, VARRO, COLUMELLA, and PALLADIUS; a great part of PLINY'S 'Natural History'; VITRUVIUS his 'Architecture'; FRONTINUS his 'Stratagems'; with the two egregious Poets, LUCRETIUS and MANILIUS: Of the Greek, HESIOD, a poet equal to Homer; ARATUS his *Phænomena* and *Diosemeia*; DIONYSIUS AFER 'De Situ Orbis'; OPPIAN'S 'Cynegetics' and 'Halieutics'; QUINTUS CALABER his Poem of the Trojan War continued from Homer; APOLLONIUS RHODIUS his 'Argonautics'; and, in prose, PLUTARCH'S '*Placita Philosophorum*' and [Greek: Peri Paidon Agogias]; GEMINUS'S Astronomy, XENOPHON'S *Cyri Institutio* and *Anabasis*, ÆLIAN'S 'Tactics,' and POLYÆNUS his 'Warlike Stratagems.' Thus, by teaching, he in some measure increased his own knowledge, having the reading of all these authors as it were by proxy.... Nor did the time thus studiously employed in conquering the Greek and Latin tongues hinder the attaining to the chief Oriental languages, viz. the Hebrew, Chaldee, and Syriac, so far as to go through the Pentateuch, or Five Books of Moses, in Hebrew, to make a good entrance into the Targum, or Chaldee Paraphrase,

and to understand several chapters of St. Matthew in the Syriac Testament: besides an introduction into several Arts and Sciences, by reading URSTISIUS his Arithmetic, RIFF'S Geometry, PITISCUS his Trigonometry, JOANNES DE SACRO BOSCO *De Sphæra*; and into the Italian and French tongues, by reading, in Italian, GIOVAN VILLANI'S History of the Transactions between several petty States of Italy, and, in French, a great part of PIEREE DAVITY, the famous geographer of France in his time.—The Sunday's work was for the most part the reading each day a chapter of the Greek Testament and hearing his learned exposition upon the same (and how far this savoured of Atheism in him I leave to the courteous backbiter to judge); the next work after this was the writing from his own dictation some part, from time to time, of a Tractate which he thought fit to collect from the ablest of Divines who had written of that subject (AMESIUS, WOLLEBIUS, &c.)—viz. A Perfect System of Divinity; of which more hereafter." [Footnote: The books named in this extract from Phillips, but not in Milton's tract, may be noted:—The PALLADIUS, who is here added to the three Latin writers on Agriculture mentioned in the tract, lived probably in the fourth century, and left a treatise *De Re Rustica*, very popular through the Middle Ages. It had not been translated into English. FRONTINUS (who had preceded Agricola as Roman Governor of Britain, and died *circ.* A.D. 106) was the author of *Stratagematicon Libri IV.*, a kind of anecdotic treatise on the Art of War; ÆLIANUS (time of the Emperor Hadrian) and POLYÆNUS the Macedonian (second century) were Greek writers on the Military Art. Though Milton does not name them in his tract, he doubtless had them in view among Military Books to be read. Two of them had been translated into English—Frontinus, by "Richarde Morysine" (1539), and Ælianus by "John Bingham" (1616-31). QUINTUS CALABER, the nature of whose Poem in 14 Books is sufficiently described in the text (really a native of Smyrna, but called "Calaber" because the best known copy of his Poem was

found in Calabria), lived late in the fourth century; APOLLONIUS RHODIUS, so called because he lived long in Rhodes, though born in Alexandria, is a much earlier and much better known Greek poet (*circ.* B. C. 200). Neither of these Greek poets seems to have been translated in Milton's time. GEMINUS was a Greek mathematician of the first century, who seems to have lived in Rome, and who left an [Greek: *Pisagogæ kis ta phainomena*], or treatise on the Sphere. Lowndes mentions no English version of it. URSTISIUS, who is mentioned for his Arithmetic, is CHRISTIAN WURZTICIUS, an Italian mathematician (1544-1588); RIFF I have not farther identified; PITISCUS is Bartholomew Pitiscus (1561-1613); and JOANNES DE SACRO BOSCO is the famous Englishman John Holywood (died 1256), whose treatise *De Sphæra*, often re-edited and re-published, was the most popular manual of Astronomy in the Middle Ages. VILLANI, the Florentine historian, died 1348; DAVITY, the French geographer, is unknown to me; AMESIUS, author of the *Medella Theologia* and other theological works, is the William Ames (1576-1633), already known to us (Vol. II. p 579); and WOLLIBIUS (1536- 1626) was a Divine of Basle and author of *Compendium Theologiæ*.]

What a busy domicile the wifeless house in Aldersgate Street must have been through the year 1644! Pupils and their lessons through the solid part of the day; only a margin, morning and evening, for Milton's own readings and meditations; the father sometimes with him for an hour or so of music, but oftener in his own room, "retired to his rest and devotion, without the least trouble imaginable;" every hour of the day crammed with work; even on the Sundays those expositions of the Greek Testament to his pupils, and those dictations to them in Latin of portions of a System of Divinity which he had resolved to compile from the Scriptures and the works of the best Protestant theologians! And yet it was out of this quiet and industrious household that there had burst upon the English public that thunderbolt of the Divorce heresy!

A SECOND DIVORCE TRACT: COMPILATION FROM BUCER.

The Divorce idea still occupied Milton. On the 15th of July, 1644 (five weeks after the publication of the *Tract on Education* addressed to Hartlib, and five months and a half after the publication of the Second Edition of the *Doctrine and Discipline of Divorce*), there was entered at Stationers' Hall another tract, which appeared on that day, or immediately afterwards, with this title: "*The Judgement of Martin Bucer concerning Divorce. Writt'n to Edward the Sixt, in his Second Book of the Kingdom of Christ. And now Englisht. Wherein a late Book restoring the Doctrine and Discipline of Divorce, is heer confirm'd and justify'd by the authoritie of Martin Bucer. To the Parlament of England. John 3, 10: Art thou a teacher in Israel, and know'st not these things? Publisht by Authoritie. London, Printed by Matthew Simmons, 1644.*" Martin Bucer [Footnote: The entry in the Stationers' Hall Registeris as follows:—"July 15, 1614: Matt. Symmons cut. for his copie, under which, of Mr. Downham, and Mr. Parker, warden, the Judgment of Martin Bucer concerning Divorce, written to King Edw. ye 6th in the 2nd Book of the Kingdom of Xt.: Englished by Mr. Milton."] The tract consists of 40 small quarto pages in all; of which, however, only 24 are numbered. These numbered pages, forming the body of the tract, are abridged translations by Milton of the passages from Martin Bucer which he wished to introduce to the English public. They are preceded by six pages of "Testimonies of the high approbation which learned men have given of Martin Bucer" (viz. quotations by Milton from Calvin, Beza, Sturmius, and others, to show what a man Bucer was), and then by eight pages of closer type, addressed by Milton to the Parliament and signed with his name in full. At the end, after the numbered pages, there is a postscript of two pages, in which Milton again speaks directly, and winds up the tract.

The title-page of the tract indicates Milton's purpose in it, His original Divorce treatise had been put forth as the result of his own reasonings and

meditations, without the knowledge that any had preceded him in the same track to anything like the same extent. While preparing the second edition he had become aware that strong support from learned authorities might be adduced for his doctrine; in especial, he had become aware that he had had a forerunner in the famous Reformer Paul Fagius. Much of the added matter in the second edition consisted, accordingly, in the citation of Fagius and other witnesses to strengthen his argument. Strangely enough, however, he was still unaware that he might have the benefit of a witness more renowned even than Paul Fagius. Not till May 1644 did he chance to learn this fact. "When the book," he says, "had been now the second time set forth well-nigh three months, as I best remember, I then first came to hear that Martin Bucer had written much concerning Divorce: whom earnestly turning over, I soon perceived, but not without amazement, in the same opinion, confirmed with the same reasons, which in that published book, without the help or imitation of any precedent writer, I had laboured out and laid together." The particular writing of Bucer's in which Milton found this extraordinary coincidence with his own views was the *De Regno Christi ad Edw. VI.*, written by Bucer about 1550, but first published at Basle in 1557. There was reason, Milton is careful to impress on his readers, why Bucer, and Fagius along with Bucer, should be remembered with unusual reverence by the Protestants of England. Coming over to England in 1549, each with his great continental fame already won, they had been placed in Cambridge by the young Edward VI., then desirous of completing and perfecting the Reformation of his kingdom—Bucer as Professor of Divinity, and Fagius of Hebrew. Fagius had died in Cambridge in the same year, when he had barely begun to teach; Bucer, after he had taught for about eighteen months, died in the same place, Feb. 28, 1550-51. Both had thus breathed the last strength of their spirits into the Protestantism of England. Nay, they might be reckoned among the martyrs of English Protestantism; for, when Mary had succeeded Edward, had not their bodies been dug up, as

the bodies of heretics, and publicly burnt to ashes in the Cambridge market-place? Let all this be remembered, and especially let it be remembered that Bucer had addressed his *De Regno Christi* to Edward VI., and intended its admonitions and instructions for the use of that monarch and his people. In that writing Bucer, though he had been dead a hundred years, was still speaking to the people of England, and telling them what remained to be done before their national reformation could be called thorough. Well, in that treatise there was a great deal about Divorce. Bucer had evidently made a study of the topic, and attached great importance to it. A large portion of the Second Book of the treatise consisted of nothing else; and it was this portion of the treatise only that Milton, partly in delight and partly in amazement at its accordance with his own doctrine, proposed to recover out of the neglected Latin, and present in plain English. Not that such drudgery of translation was to his taste. "Whether it be natural disposition or education in me, or that my mother bore me a speaker of what God made mine own, and not a translator," is his proud phrase of explanation why he could "never delight in long citations, much less in whole traductions." Even in this case he would only digest and epitomize. Beginning at Chap. XV. of the Second Book of Bucer's treatise, he would go on to Chap. XLVII. inclusively, indicating the contents of the successive chapters by headings, omitting what was irrelevant to his own purpose, and translating the passages that were most relevant. This is what is done in the 24 numbered pages which form the body of Milton's tract. They are a concatenation of dryish morsels from Bucer, duly labelled and introduced; but they make it clear that Bucer's notion of marriage was substantially the same as Milton's.

As respects Milton himself, the portion of his new Tract which is of greatest interest is the prefixed Address to the Parliament. It is noteworthy that, whereas the Second Edition of his original Divorce treatise is dedicated to "the Parliament of England *with* the Assembly," the new tract

is dedicated to the Parliament only. The Address makes the reason of this plain. It is here, in fact, that we first hear from Milton himself of the obloquy to which his Divorce Doctrine had subjected him. It had begun, he now tells us (and we have already used the information), almost immediately after the publication of the first, and anonymous, edition of his original treatise—his style then betraying him to be the author, and some of the clergy opening loud cry against him in consequence. This had induced him to bring out the second edition, not anonymous, but openly acknowledged. Though aware of the declared hostility among the clergy, he had not then deemed it proper to descant on that subject, but had, in courtesy, dedicated the Second Edition to the Assembly in conjunction with the Parliament. Even then he had no doubt from which of the two bodies he would receive the fairer treatment. "I was confident," he says in his present address of the Bucer tract to the Parliament, "if anything generous, anything noble and above the multitude, were yet left in the spirit of England, it could be nowhere sooner found, and nowhere sooner understood, than in that House of Justice and true Liberty where ye sit in Council." Here the Assembly is ignored, and the insinuation is that, though he had included *them* in the dedication, it was rather by way of form than in real trust. This had been in Feb. 1643-4, and now, in July 1644, he knew his position so precisely that there was no need for farther reticence. He had not been disappointed in the Parliament. He had had hope in them; "nor doth the event hitherto, *for some reasons which I shall not here deliver*, fail me of what I conceived so highly." The words I have put in italics can bear no other construction than that Milton had reason to know, from private assurances, which he regarded as confidential, that some leading men in Parliament thought him perfectly entitled to broach his doctrine, and would take care that he should not be troubled for it. He was not uninformed either, he adds, that "divers learned and judicious men," both in and out of Parliament, had "testified their daily approbation" of his treatise. With the

Assembly, however, he knew it to be all over. Though from them above all, by reason of "their profession and supposed knowledge," his treatise had deserved a fair hearing, all that he had received was to be "esteemed the deviser of a new and pernicious paradox." He does not, indeed, name the Assembly while intimating this, but only refers to the clergy generally and dispersedly. That he had the Assembly distinctly in view, however, appears not only from the tenor of the whole, but also from a passage in the Postscript, where he hints that such action was at work against him that he might be stopped any day by the official censorship and prevented from printing. If, therefore, this new tract should be permitted to appear, only to the Parliament would he dedicate it. But, while dedicated to the Parliament, it was intended for the Assembly. It was a challenge to *them*. The Reverend gentlemen had refused to consider the Doctrine of Divorce when propounded by their contemporary, a private layman and reasoner. They had thought it worthy only of denunciation as an impious paradox, destructive of morality and social order. What would they now say to the same Doctrine exhibited to them, chapter and verse, as the doctrine of one of the great European Reformers and Divines, whose name was often in their mouths, though they knew so little about him?

While the Address to Parliament thus makes clear Milton's consciousness that the Assembly were watching him and might at any time denounce him, there is yet another curious strain in it, interesting as an illustration of the writer's character. Milton was evidently divided between delight in having found Bucer his predecessor in the doctrine and a proud feeling of his own self-earned property in the same. Not even to Bucer would he yield the palm of this discovery; nay, generally, he did not care though it should be known that, while he revered Bucer and such men of the past, he did not think that God's power to create and endow exceptional human spirits had so exhausted itself in that time and that group of men but that work higher than aught of mere discipleship to any of them might be reserved for

himself. Here Milton is in one of his constitutional moods; and it is interesting to observe with what constancy to it he treats the small fact of a discovered coincidence in opinion between himself and Bucer. The following passage will suffice in this respect, and also as a specimen of the whole tract:—

"I may justly gratulate mine own mind with due acknowledgment of assistance from above, which led me, not as a learner, but as a collateral teacher, to a sympathy of judgment with no less a man than Martin Bucer. And he, if our things here below arrive him where he is, does not repent him to see that point of knowledge which he first, and with an unchecked freedom, preached to those more knowing times of England, now found so necessary, though what he admonished were lost out of our memory, yet that God doth now again create the same doctrine in another unwritten table [the *tabula rasa* of Milton's mind], and raises it up immediately out of his pure oracle to the convincement of a perverse age, eager in the reformation of names and ceremonies, but in realities as traditional and as ignorant as their forefathers. I would ask now the foremost of my profound accusers whether they dare affirm that to be licentious, new and dangerous, which Martin Bucer so often and so urgently avouched to be moot lawful, most necessary, and most Christian, without the least blemish. to his good name among all the worthy men of that age and since who testify so highly of him. If they dare, they must then set up an arrogance of their own against all those churches and saints who honoured him without this exception. If they dare not, how can they now make *that* licentious doctrine in another which was never blamed or confuted in Bucer or in Fagius? The truth is, there will be due to them, for this their unadvised rashness, the best donative that can be given them—I mean a round reproof [*a hint to Parliament about the Assembly?*]; now that, where they thought to be most magisterial, they have displayed their own want both of reading and of judgment: first, to be so unacquainted in the writings of Bucer, which are so obvious and so useful

in their own faculty; next, to be so caught in a prejudicating weakness as to condemn that for lewd which, whether they knew or not, these elect servants of Christ commended for lawful, and for new that which was taught by these, almost the first and greatest authors of Reformation, who were never taxed for so teaching, and dedicated without scruple to a royal pair of the first Reforming kings in Christendom [Edward VI., for whom Bucer's *De Regno Christi* was written, and Christian III. of Denmark, to whom it was dedicated when published at Basle in 1557], and confessed in the public Confession of a most orthodoxal Church and State in Germany [the church and community of Strasburg, in whose Confession, according to Milton, Bucer's Divorce Doctrine had been adopted]. This is also another fault which I must tell them—that they have stood now almost this whole year clamouring afar off, while the Book [Milton's *Doctrine and Discipline of Divorce*] hath been twice printed, twice bought up, and never once vouchsafed a friendly conference with the author, who would be glad and thankful to be shown an error, either by private dispute or public answer, and could retract as well as wise men before him: might also be worth the gaining, as one who heretofore hath done good service to the Church, by their own confession. ... However, if we know at all when to ascribe the occurrences of this life to the work of a special Providence, as nothing is more usual in the talk of good men, what can be more like to a special providence of God than in the first Reformation of England that this question of Divorce, as a main thing to be restored to just freedom, was written, and seriously commended to Edward the Sixth, by a man called from another country to be an instructor of our nation, and now, in this present renewing of the Church and Commonwealth, which we pray may be more lasting, that same question should be again treated and presented to this Parliament by one enabled to use the same reasons without the least sight or knowledge of what was done before. It were no trespass, Lords and Commons, though something of less note were attributed to the ordering of

a Heavenly Power. This question, therefore, of such prime concernment to Christian and Civil welfare, in such an extraordinary manner not recovered, but plainly twice-born to these latter ages, as from a divine hand, I tender to your acceptance and most considerate thoughts."

MR. HERBERT PALMER'S ATTACK ON MILTON FROM THE PULPIT.

Whether up to this time (July 1644) there had been any open mention of Milton and his Doctrine in the Westminster Assembly, anything more than muttered thunder among the Divines in their private colloquies, can be but guessed. It is quite possible that he was publicly named, and not by mere implication, among the Sects and Sectaries generally. There may even be record of the fact somewhere, though I have found none in Lightfoot's Notes of the Assembly, nor in Gillespie's, nor in Baillie's Letters. But the peal was coming, and this daring challenge to the Assembly in his Bucer tract may have helped to provoke it.

When the tract was published, the Assembly was about to break up for that fortnight's vacation (July 23-Aug. 7) which we have represented as so important a notch in its proceedings. Or, indeed, the Assembly may have been *in* its vacation when the tract appeared; for, though registered at the Stationers' Hall July 15, it may not have been in circulation till a week later. At all events, when the Assembly met again, and when, as we have seen, it fell, as if by concert, on the subject of the multiplication of the Sectaries and their insolences, then Milton was among the first attacked. He was one of a batch of eleven persons, including also Roger Williams, John Goodwin, Clement Wrighter, and some Anabaptists and Antinomians, whom the Assembly denounced to Parliament as prime offenders. This fact, already noticed in its place in our general history, has now again to be presented more in detail.

The first publicly to blow the trumpet against Milton, the reader already knows, was Mr. Herbert Palmer. He did so in his Sermon before the two Houses of Parliament in St. Margaret's, Westminster, on the Extraordinary Day of Humiliation, Tuesday, Aug. 13, six days after the Assembly had resumed its sittings. Here is the particular passage in the Sermon:—

"But against a Toleration in general even the COVENANT itself, in that very Article [Article II.], hath a reason suitable to the Text [Psalm xcix, 8]. 'Lest we partake of other men's sins, and be in danger to receive of their plagues.' saith the Covenant; which in the language of the Text is 'Lest God take vengeance on their inventions' and ours together. It is true that the name of Conscience hath an awful sound unto a conscientious ear. But, I pray, judge but in a few instances whether all pretence of Conscience ought to be a sufficient plea for Toleration and Liberty:—1. There be those that say their conscience is against all taking of an oath before a magistrate. Will you allow an universal liberty of this? What then will become of all our legal and judicial proceedings? which are confined to this way of proof: and so it was by God appointed, and hath been by all nations practised. 2. There be some that pretend Liberty of Conscience to equivocate in an oath even before a magistrate, and to elude all examinations by mental reservations. Will you grant them this liberty; or can you, without destroying all bonds of civil converse, and wholly overthrowing of all human judicature? 3. If any plead Conscience for the lawfulness of Polygamy; or for Divorce for other causes than Christ and His Apostles mention (*of which a wicked look is abroad and uncensured, though deserving to be burnt, whose Author hath been so impudent as to set his name to it and dedicate it to yourselves*); or for liberty to many incestuously—will you grant a toleration for all this?"

Palmer goes on to instance four other opinions which might ask for toleration, but which are in their nature so subversive of all authority and all civil order that the bare imagination of their being tolerated is, he thinks, a

reductio ad absurdum of the idea of a Universal Toleration. What has been quoted, however, will show whereabouts among the Sectaries he placed Milton. He cited him as the advocate of an opinion so monstrous that no sane person could think of tolerating *it*. And it is to be noted that, though he gives other instances of such monstrous opinions tending to practical anarchy, Milton is the only person openly referred to in this extreme category, and his book the only book. On the same day, Mr. Hill, Palmer's fellow-preacher before Parliament, referred by implication to Roger Williams's *Bloody Tenent*, which had been burnt by the hangman a day or two before; and here was Palmer mentioning with less reserve, Milton's *Doctrine and Discipline of Divorce* as richly deserving the same fate. Williams, we know, was happily on his way back to America at the time; but Milton was at hand, in his house in Aldersgate Street, whenever he should be wanted.

To be preached at before the two Houses of Parliament, on a solemn Fast Day, by an eminent Divine of the Westminster Assembly, was, I should say, a ten times greater trial of a man's equanimity in those days than it would be in these to waken one morning and find oneself the subject of a scathing onslaught in the columns of the leading newspaper. It was positively the worst blast from the black trumpet of the wind-god Æolus then possible for any inhabitant of England; and not even that poor company of suitors to whom, in Chaucer's poem, fickle Queen Fame awarded this black blast from the wind-god, instead of the blast of praise from his golden trumpet which they were expecting, can have been more discomfited than most persons would have been had they been in Milton's place a day or two after Palmer's sermon. [Footnote: Cromwell was away with the Arms, but Vane may have heard Palmer's sermon. Baillie was certainly present, with the other Scottish Commissioners; and he was delighted with Palmer's outspokenness. See *antè*, p 162]

What did this Æolus, but he
Took out his black trumpe of brass,
That fouler than the Devil was,
And gan this trumpe for to blow
As all the world should overthrow.
Throughout every regioun
Went this foule trumpe's soun,
As swift as pellet out of gun
When tire is in the powder run;
And such a smoke gan outwend
Out of the foule trumpe's end,
Black, blue, greenish, swartish, red,
As dote where that men melt lead,
Lo! all on high from the tewelle.
And thereto one thing saw I well—
That, the farther that it ran,
The greater waxen it began,
As doth the river from a well;
And it stank as the pit of Hell.

[Footnote: Chaucer's "House of Fame" III. 516-564. *Teaelle* is the trumpet's mouth (French *tuyau*, pipe or nozzle).]

**THE STATIONERS' COMPANY AND ENGLISH BOOK-
CENSORSHIP: THE PRINTING ORDINANCE OF JUNE 1643:
MILTON COMPLAINED OF TO THE HOUSE OF COMMONS FOR
BREACH OF THE SAME.**

Among the haunts and corners of London into which the smoke of Mr. Palmer's pulpit-blast against Milton had penetrated, and where it had whirled and eddied most persistently, was the Hall of the Stationers' Company, the centre of the London book-trade. Actually, as the reader has

been informed Palmer's sermon, and the general frenzy of the Assembly on the subject of the increase of heresy and schism, had so perturbed the whole society of booksellers that, on Saturday the 24th of August, the eleventh day after the sermon, they presented a petition to the Commons, exonerating themselves from all responsibility in the growing evil, and pointing out that the blasphemous and pernicious opinions complained of were ventilated in unlicensed and unregistered pamphlets, grievous to the soul of the regular book-trade, injurious to its pockets, and contrary to the express ordinance of Parliament. That such was the tenor of the Petition of the Stationers, and that they gave instances of illegal pamphlets of the kind described, and laid stress on Milton's *Doctrine and Discipline of Divorce* as one most flagrant instance, appears from the action of the House of Commons in consequence. Without a day's delay (Aug. 26), the Commons referred the Petition to "the Committee for Printing," with instructions to hear parties, consider the whole business, consult the existing Parliamentary Ordinance for the regulation of Printing, and bring in a new or supplementary Ordinance with all convenient speed. They were likewise "diligently to inquire out" the authors, printers, and publishers of the Divorce Pamphlet, and of another, then in circulation, against the Immortality of the Soul. That the Committee might have fresh energy in it for the purpose, four new members were added, viz. Sir Philip Stapleton, Sir Thomas Widdrington, Mr. Stephens, and Mr. Baynton. [Footnote: See the text of the order, *antè*, pp. 1645, I now add the names of the new members of Committee from the Commons Journal, Aug. 26, 1641.]

Here then, in the end of August 1644, Milton was not only within the smoke of infamy blown upon him by Palmer's sermon, but also within the clutches of a Parliamentary Committee. They might call him to account not only for publishing dangerous and unusual opinions, but also for having broken the Parliamentary Ordinance for the regulation of Printing. We must now explain distinctly what that Ordinance was.

From the beginning of the Long Parliament, as we know sufficiently by this time, there had been a relaxation, or rather a total breakdown, of the former laws for the regulation of the Press. In the newly-found liberty of the nation to think and to speak, all bonds of censorship were burst, and books of all kinds, but especially pamphlets on the current questions, were sent forth by their authors very much at their own discretion. The proportion of those that went through the legal ceremonial of being authorized by an appointed licenser, and registered in the Stationers' books by the Company's clerk under farther order from one of the Company's wardens, must, I should say, have been quite inconsiderable in comparison with the number that flew about printed anywhere and anyhow. Milton had been conspicuously careless or bold in this respect. Not one of his five Anti-Episcopal pamphlets, published in 1641 and 1642, had been licensed or registered; nor did any one of them bear his name, though he made no real concealment of that, and though each of them bore the printer's or publisher's name, or the address of the shop where it was on sale. Milton's friends, the Smectymnuans, had attended to the legal punctualities in some of *their* publications; but Milton's practice seems to have been the more general one among authors and pamphleteers. Nor did they need to resort any longer to clandestine presses, or to printers and booksellers who, not being members of the Stationers' Company, had no title to engage in such book-commerce at all, and were liable to prosecution for doing so. Even regular booksellers and printers who *were* freemen of the Stationers' Company had been infected by the general lawlessness, and had fallen into the habit of publishing books and pamphlets without caring whether they were licensed, and without taking the trouble of registering their copyright; which, indeed, they could hardly do if the books were unlicensed. All Milton's Anti-Episcopal pamphlets, I think, were published by such regular printers or booksellers. But worse and worse. Some of the less scrupulous members of the Stationers' Company had found an undue advantage in this

lax conduct of the book-business, and had begun to reprint and vend books the copyright in which belonged to their brethren in the trade. This last being the sorest evil, it was perhaps as much in consequence of repeated representations of its prevalence by the authorities of the Stationers' Company as on any grounds of public damage by the circulation of political libels and false opinions, that the Parliament still kept up the fiction of a law, and made attempt after attempt to regain the control of the Press. That they did so is the fact. Entries on the subject—sometimes in the form of notices of petitions from the Stationers' Company, sometimes in that of injunctions by Parliament to the Stationers' Company to be more vigilant—are found at intervals in the Journals of both Houses through 1641 and 1642. Particular books were condemned, and their authors inquired after or called to account, and offending printers and publishers were also brought to trouble. The Parliament had even tried to institute a new agency of censorship in the form of Committees for Printing, and licensers appointed by these Committees. Such licensers were either members of Parliament selected for the duty, or Parliamentary officials, or persons out-of-doors in whom Parliament could trust. Through 1641 and 1642 I find the following persons, among others. licensing books—John Pym, Sir Edward Deering, the elder Sir Henry Vane, Mr. (Century) White, and a Dr. Wykes, but I find evidence that the Parliament and its Committees for Printing had really, in a great measure, to leave the licensing of books to the Wardens of the Stationers' Company. [Footnote: My MS notes from the Stationers' Register for the years named] In short, the Press had escaped all effective supervision whatsoever. This is most strikingly proved by the Stationers' Registers for 1642. While for the previous year, ending Dec. 31, 1641, the total number of entries on the Register had been 240, the total number in this year, ending Dec. 31, 1642, was only 76; of which 76 less than half fell in the second half of the year, when the Civil War had just commenced. Actually, of all the publications which came out this year in England, not

more than at the rate of three a fortnight regularly registered throughout the whole year, and hardly more than one a week during the second half of the year! Clearly, censorship and registration had then become an absolute farce.

The same state of things continued into the first half of the year 1643. Between Jan. 1 of that year (Jan. 1, 1642-3, as we now mark it) and July 4, I find the number of entries to have been not more than 35—still a preposterously small number in proportion to the crowd of publications which these six months must have produced. But exactly at the middle of this year the Registers exhibit a remarkable phenomenon. Although in the first half of the year only 35 new publications had been registered, the entries in the second half of the year swell suddenly to 333, or ten times as many as in the first half. In the month of July alone there were 63 entries, or nearly twice as many as in the preceding six months together; in August there were 57; in September 58; in October 48; in November 56; and in December 51. Little wonder that, on going over the Registers long ago, I made this note in connexion with the year 1643: "Curious year: the swelling out in the latter half, so that only 35 in first half and 333 in second: inquire into causes." I ought to have known the chief cause at the time I made the note. It was the parsing, in June 1643, of a new, strict, and minutely framed Ordinance for Printing.

Forced by the public necessities of the case, including the necessity of preventing the diffusion of Royalist tracts and sheets of intelligence, or by the trade complaints of the Stationers' Company, or by both combined, the Commons at last addressed themselves to the subject resolutely. On June 10 an "Ordinance to prevent and suppress the Licence of Printing" was read in their House, agreed to, and sent to the Lords; on June 14 the Lords concurred, and signified their concurrence to the Commons; and, certain farther arrangement of detail having been made by the Commons on the

16th, the 20th, and the 21st of the same month, the Ordinance forthwith came into operation. The Ordinance (with the omission of clauses relative to printing of Parliamentary papers and to mere piracy of copyrights) is as follows:—

"Whereas divers good orders have been lately made by both Houses of Parliament for suppressing the late great abuses and frequent disorders in printing many forged, scandalous, seditious, libellous and unlicensed Papers, Pamphlets and Books, to the great defamation of Religion and Government—which orders (notwithstanding the diligence of the Company of Stationers to put them in full execution) have taken little or no effect, by reason the Bill in preparation for the redress of the said disorders hath hitherto been retarded through the present distractions, and very many, as well Stationers and Printers, as others of sundry other professions not free of the Stationers' Company, have taken upon them to set up sundry private printing-presses in corners, and to print, vend, publish and disperse Books, Pamphlets and Papers, in such multitudes that no industry could be sufficient to discover or bring to punishment all the several abounding delinquents.... It is therefore ordered that no ... Book, Pamphlet, Paper, nor part of any such Book, Pamphlet or Paper, shall from henceforth be printed, bound, stitched, or put to sale by any person or persons whatsoever, unless the same be first approved of and licensed under the hands of such person or persons as both or either of the said Houses shall appoint for the licensing of the same, and entered in the Register Book of the Company of Stationers according to ancient custom, and the Printer thereof to put his name thereto.... And the Master and Wardens of the said Company, the Gentleman-Usher of the House of Peers, the Sergeant of the Commons House, and their Deputies ... are hereby authorized and required from time to time to make diligent search in all places where they shall think meet for all unlicensed printing presses ... and to seize and carry away such printing-presses ... and likewise to make diligent search in all suspected printing-

houses, warehouses, shops and other places ... and likewise to apprehend all Authors, Printers, and other persons whatsoever employed in compiling, printing, stitching, binding, publishing and dispersion of the said scandalous, unlicensed and unwarrantable Papers, Books and Pamphlets ... and to bring them, afore either of the Houses, or the Committee of Examinations, that so they may receive such farther punishments as their offences shall demerit.... And all Justices of the Peace, Captains, Constables and other officers, are hereby ordered and required to be aiding and assisting to the foresaid persons in the due execution of all and singular the premises, and in the apprehension of offenders against the same, and, in case of opposition, to break open doors and locks.—And it is further ordered that this Order be forthwith printed and published, to the end that notice may be taken thereof, and all contemnors of it left inexcusable."

Such was the famous *Ordinance for Printing* of the Long Parliament, dated June 14, 1643. Within a week afterwards it was brought into working trim by the nomination of the persons to whom the business of licensing was to be entrusted. For Books of Divinity a staff of twelve Divines was appointed, the *imprimatur* of any one of whom should be sufficient—to wit: Mr. THOMAS GATAKER, Mr. CALIBUTE DOWNING, Dr. THOMAS TEMPLE, Mr. JOSEPH CARYL, Mr. EDMUND CALAMY, Mr. CHARLES HEKLE, Mr. OBADIAH SEDGWICK, Mr. CARTER of Yorkshire, Mr. JOHN DOWNHAM, Mr. JAMES CRANFORD, Mr. BACHELER, and Mr. JOHN ELLLS, junior. The first seven of these, it will be noted (if not also the eighth), were members of the Westminster Assembly; the others were, I think, all parish-ministers in or near London. For what we should call Miscellaneous Literature, including Poetry, History, and Philosophy, the licensers appointed were Sir NATHANIEL BRENT (Judge of the Prerogative Court), Mr. JOHN LANGLEY (successor of Gill the younger in the Head-mastership of St. Paul's School), and Mr. FARNABIE. The licensing of Law-Books was to belong to certain

designated Judges and Serjeants-at-law; of Books of Heraldry, to the three Herald Kings at Arms; of Mathematical Books, Almanacks, and Prognostications, to the Reader in Mathematics at Gresham College for the time being, or a certain Mr. Booker instead; and for things of no consequence—viz. "small pamphlets, portraitures, pictures and the like" — the Clerk of the Stationers' Company for the time being was to be authority enough.[Footnote: The Ordinance is printed in the Lords Journals under date June 14, 1644. Rushworth prints it under the same date (V. 335-6), and adds the names of the licensers, as appointed by the Commons June 20 and 21.]

The effects of this new Ordinance of Parliament were immediately visible. Whether because Parliament itself now seemed in earnest for the control of the Press, or because the new staff of licensers were determined to exercise their powers and earn their perquisites, or because the Master and Wardens of the Stationers' Company then in. office felt their hands strengthened and worked hard (Mr. Samuel Bourne was Master, and Mr. Samuel Man and Mr. Richard Whittaker were Wardens), certain it is that authors, printers, and publishers were brought at once into greater obedience. Ten times as many books, pamphlets and papers, we have shown, were duly licensed and registered in the second half of the year 1643, or from the date of the new Ordinance onwards, as had been licensed and registered in the preceding half-year.[Footnote: I ought to note, however, that the swelling out is caused chiefly by the shoals of *Mercuries*, *Diurnals*, *Scouts*, *Intelligencers*, &c. that were now registered. These news-sheets of the Civil War, the infant forms of our newspapers, had previously appeared at will; and there seems to have been particular activity in bringing them under the operation of the Ordinance, so as to deprive Royalism of the aid of the Press.]

Now, it so chanced that the first edition of Milton's *Doctrine and Discipline of Divorce* had been ready for the press exactly after the new Ordinance had come into operation. What had been his behaviour? He had paid no attention to the Ordinance whatever. He had been one of those "contemners" of it whom the Ordinance itself had taken the precaution of rendering inexcusable by the clause ordering its own publication! The treatise had appeared on or about the 3rd of August, unlicensed and unregistered, just as its predecessors, the Anti-Episcopal pamphlets, had been. Nay, there was this difference, that there was no printer's full name on the title-page of the Divorce treatise, but only the semi-anonymous declaration "Printed by T. P. and M. S. in Goldsmiths' Alley" [Footnote: See full title-page, *antè*, p. 44.] That Milton had acted deliberately in all this there can be no doubt. Not that we need suppose him to have made it a point of honour to outbrave the new law in general by continuing to publish without a licence; but because, in this particular case, he had no choice but to do so, and did not mind doing so. He wanted to publish his new *Doctrine of Divorce*: was he to go the round of the twelve Reverend Gentlemen who had just been appointed licensers of all books of Theology and Ethics, and wait till he found one of them sufficiently obtuse, or sufficiently asleep, to give his *imprimatur* to a doctrine so shocking? Clearly, nothing remained but to get any printer to undertake the treatise that would print it in its unlicensed state, the printer trusting the author and both running the risk. Whatever hesitations the printer may have had, Milton had none. He had taken no pains to conceal the authorship; and, when he found the doctrine of the treatise in disrepute, he had disdained even the pretence of the anonymous. The second edition, published in February 1643-4, appeared, as the first had done, without licence or registration, and indeed with no more distinct imprint at the foot of the title-page than "*London, Imprinted in the yeare 1664*"; but, to make up for this informality, it contained Milton's dedication to the Parliament and the Assembly signed with his name. It was

as if he said, "I do break your Ordinance for Printing, but I let you know who I am that do so." Since then Milton had published two more pamphlets—his *Tract on Education*, addressed to Hartlib (June 1644), and his *Bucer Tract*, continuing the Divorce subject (July 1644). In both of these he had conformed to the Ordinance. Both are duly registered in the Stationers' Books, the former as having been licensed by Mr. Cranford (*antè*, p. 233), the latter by Mr. Downham (*antè*, p. 255). In licensing the new Divorce Tract, even though it did consist mainly of extracts from Bucer, Mr. Downham must have been either off his guard or very good-natured.

Milton's carelessness or contempt of the Ordinance for Printing had now found him out. The charge of heresy, or of monstrous and dangerous opinion, preferred against him by Palmer and the clergy, was one about which there might be much argument *pro* and *con*, and with which most Parliamentary men might not be anxious to meddle. But here, in aid of that charge, another charge, much more definite, had been brought forward. The officials of the Stationers' Company were chosen from year to year; and the Master for the year beginning in the middle of 1644 was Mr. Robert Mead, with Mr. John Parker and Mr. Richard Whittaker for Wardens. It was these persons, if I mistake not, who thought themselves bound, either by sympathy with the horror caused by Milton's doctrine, or by sheer official duty, to oblige Mr. Palmer and his brethren of the Assembly by pointing out that both the editions of Milton's obnoxious pamphlet had been published in evasion of the law. There can be little doubt that the Assembly divines and the London clergy generally were at the back of the affair; but it was convenient for them to put forward others as the nominal accusers. "The Stationers' Company," these accusers virtually said, "knows nothing of these two publications, and has none of the discredit of them; they are not registered in the Company's books, and do not appear to have been ever licensed; and, if Mr. Milton, who has avowed himself the author, is to be questioned for the doctrine advanced in them, perhaps it would be well that

he should at the same time have the imprints on his two title-pages put before him—'*Printed by T. P. and M. S. in Goldsmiths' Alley,*' and '*London, Imprinted in the yeare 1644*'—and asked how he dared defy the law in that way, and who the printers are that abetted him." Such, studying all the particulars, is the most exact interpretation I can put on the Petition of the Stationers' Company to the Commons, Aug. 24, as it affected Milton. There was a trade-feeling behind it. There was a resentment against certain printers and booksellers (probably quite well known to the Master and Wardens) for their contempt of trade-discipline, as well as against Milton for his part in the matter. It was really rather hard on Milton. For, doubtless, the new Ordinance for Printing had been passed by Parliament not with a view to any application of it to sound Parliamentarians like him, but as a check upon writers of the other side; and, doubtless, he was not singular in having neglected the Ordinance. Probably scores of Parliamentary writers had taken the same liberty. Still, as he had offended against the letter of the law, and as those whom his doctrine had shocked now chose to avail themselves of this offence of his against the letter of the law, he found himself in an awkward position. All depended on the discretion of that "Committee of Printing," reinforced by four additional members, to which the Commons (Aug. 26) had entrusted the delicate task of dealing with him, and the farther task of revising the Ordinance of the previous year and seeing whether it could be improved or extended. They might trouble him much, or they might let him alone.

They let him alone. The Committee, I find, did indeed proceed so far in the general business assigned to them. They must have even drafted some new or supplementary Ordinance for the regulation of Printing, and obtained the agreement of the House to the draft; for, though I am unable to find any record of such proceeding in the *Commons' Journals*, there is this distinct entry in the *Lords' Journals* under date Sept. 18, 1644: "A message was brought from the House of Commons by Mr. Rous and others, to desire

concurrence in two Ordinances—(1) Concerning Ordination of Ministers, (2) Concerning Printing. The answer returned was, That this House will send an answer to this message by messengers of their own." The Lords, it appears in the sequel, did apply themselves to the Ordination Ordinance, so that the Commons received it back amended, and it passed, Oct. 1. But I find no farther mention of the new Printing Ordinance. Cromwell's great Accommodation or Toleration motion, passed in the Commons, in Solicitor St. John's modified form, on the 13th of September, had, it may be remembered, caused a sudden pause among the Presbyterian zealots. It may have helped indirectly to strangle many things; and I should not wonder if among them was the prosecution of the business prescribed to the Committee of Printing by the Order of Aug. 26. The Accommodation Order was a demand generally for clearer air and breathing-room for everybody, more of English freedom, and less of Scottish inquisitorship. If there had been ever any real intention among the Parliamentary people to proceed against Milton, it had now to be dropped.

THE AREOPAGITICA; A SPEECH FOR THE LIBERTY OF UNLICENSED PRINTING.

One good effect the incident had produced. It had prescribed for Milton a new piece of work. This Parliamentary Ordinance for Printing with which it had been proposed to crush him; this whole system of Censorship and licensing of books that had prevailed so long in England and almost everywhere else; this delegation of the entire control of a nation's Literature to a state-agency consisting of a few prejudiced parsons and schoolmasters seated atop, to decide what should go into the funnel, and a Company of Stationers seated below, to see that nothing else came out of the funnel:-was not this a subject on which something might be said? Would it not be more than a revenge if Milton were to express his thoughts on this subject?

Would it not be a service of moment to England? What might not be hoped for from the Parliament if they were fitly addressed on such a theme? It was the great question of Liberty in all its forms that England was then engaged in. Civil Liberty, Liberty of Worship, Liberty of Conscience, were the phrases ringing in the English air. But in the midst of this general clamour for Liberty no one yet had moved for one form of Liberty, which would be a very substantial instalment of the whole, and yet was practicable and perhaps within sight—the Liberty of Unlicensed Printing. Let this then be Milton's new undertaking! In the fact that it had been so clearly assigned to him, nay, forced upon him by circumstances, he began to discern a certain regulation, not quite dependent on his own forethought, of the recent course of his life. "When the Bishops at length had fallen prostrate, aimed at by the shafts of all, and there was no more trouble from *them*," he afterwards wrote, reviewing this portion of his life, "then I turned my thoughts to other matters—if I might in anything promote the cause of true and solid liberty; which is chiefliest to be sought for not without, but within, and to be gained not by fighting, but by the right basing and the right administration of life. When, therefore, I perceived that there are in all three sorts of liberty, without the presence of which life can hardly anyhow be suitably gone through—Ecclesiastical, Domestic or Private, and Civil—then, as I had already written on the first, and as I saw that the Magistrate was sedulously occupied with the third, I took to myself that which was left second, viz. Domestic Liberty. That also appearing to consist of three parts—whether Marriage were rightly arranged, whether the Education of Children were properly conducted, and whether, finally, there were the power of free Philosophising—I explained what I thought, not only concerning the due contracting of Marriage, but also, if it were necessary, the due dissolution of the same.... On that subject I put forth some books, exactly at that time when husband and wife were often the bitterest enemies, he at home with his children, and she, the mother of the family, busy in the camp of the

enemy, threatening death and destruction to her husband.... Then I treated the Education Question more briefly in one little book.... Finally, on the subject of the liberation of the Press, so that the judgment of the true and the false, what should be published and what suppressed, should not be in the hands of a few men, and these mostly unlearned and of common capacity, erected into a censorship over books—an agency through which no one almost either can or will send into the light anything that is above the vulgar taste—on this subject, in the form of an express oration, I wrote my *Areopagitica*." [Footnote: The Latin of the passage will be found in the *Defensio Secunda pro Populo Anglicano*.] In this passage, written in 1654, there is a slight anachronism. All Milton's Marriage and Divorce tracts had not yet been published: two of them were still to come. At the moment at which we have arrived, however, that mapping out of his labours on the Domestic or Private form of the general question of Liberty which the passage explains must have already been in his mind. He had written largely on a Reform in Marriage and Divorce, and more briefly on a Reform in Education. In the Marriage and Divorce subject he had found himself met with an opposition which did not permit him yet to lay it aside; but meanwhile, in consequence of that opposition, nay, of the very form it had taken, there had dawned on him, by way of interlude and yet of strictly continuous industry, a great third enterprise. In any lull of war with the Titans what is Jove doing? Fingering his next thunderbolt. Released from all trouble by the Committee of the Commons, and left at leisure in Aldersgate Street, through September, October, and November, 1644, what was Milton doing? Preparing his *Areopagitica*.

It appeared November 24, a month after the Second Battle of Newbury, and the very day before that outbreak by Cromwell, against the Earl of Manchester for slackness in the battle, which led to the Self-Denying Ordinance and the New-Modelling of the Army. It was a small quarto of 40 pages with this title:—

AREOPAGITICA;

A Speech of Mr. John Milton for the Liberty of Unlicens'd Printing, to the Parlament of England.

[Greek: Touleutheron d'ekeino, ei tis thelei polei
Chræston ti bouleum eis meson pherein, echon.
Kai tauth o chræzon, lampros esth, o mæ thelon,
Siga ti touton estin isaiteron polei;]

Euripid. Hicetid.

This is true Liberty, when free-born men
Having to advise the public may speak free,
Which he who can, and will, deserv's high praise,
Who neither can nor will, may hold his peace;
What can be juster in a State than this?

Euripid. Hicetid.

London, Printed in the yeare 1644.

There was no printer's or bookseller's name to the pamphlet; and it came forth unlicensed and unregistered. It would have been indeed absurd to ask one of the Censors to license a pamphlet cutting up the whole system of Censorship. Still here was another deliberate breach of the law by Milton. It was probably to soften and veil the offence that the pamphlet was cast into the form of a continuous Speech or Pleading by Milton to Parliament directly, without recognition of the public in preface or epilogue. [Footnote: That Nov. 24, 1644, was the day of the publication of the *Areopagitica* I learn from Thomason's MS. note "Novemb. 24" in the copy among the King's Pamphlets in the British Museum; Press Mark 12. G. e.9./182.]

The *Areopagitica* is now by far the best-known of Milton's pamphlets, and indeed the only one of his prose-works generally read. Knowing his

other prose-writings, I have sometimes been angry at this choice of one of his pamphlets by which to recollect him as an English prose-writer. I have ascribed it to our cowardly habit of taking delight only in what we already agree with, of liking to read only what we already think, or have been schooled into considering glorious, axiomatic, and British. As there are parts of Milton's prose-writings that would be even now as discomposing and irritating to an orthodox Briton as to an orthodox Spaniard or Russian, a genuine British reader might be expected perhaps to tend to those parts by preference. Hence there is something not wholly pleasing in the exclusive rush in our country now-a-days upon the *Areopagitica* as representative of Milton's prose. And yet the reasons for the fact are perhaps sufficient. Though the doctrine of the Treatise is now axiomatic, one remembers, as one reads, that the battle for it had then to be fought, that Milton was the first and greatest to fight it, and that this very book did more than any other to make the doctrine an axiom in Britain. But, besides this historical interest, the book possesses an interest of peculiar literary attractiveness. It is perhaps the most skilful of all Milton's prose-writings, the most equable and sustained, the easiest to be read straight through at once, and the fittest to leave one glowing sensation of the power of the author's genius. It is a pleading of the highest eloquence and courage, with interspersed passages of curious information, keen wit, and even a rich humour, such as we do not commonly look for in Milton. He must have taken great pains to make the performance popular.

After an exordium of respectful compliment to the Parliament, the rhetorical skill of which is as masterly as the sincerity is obvious, Milton announces his purpose. He thinks so highly of the Parliament that he will pay them the supreme compliment of questioning the wisdom of one of their ordinances and asking them to repeal it. He then quotes the leading clause of the Printing Ordinance of June 14, 1643, enacting that no Book, Pamphlet, or Paper should thenceforth be printed unless it had previously

been approved and licensed by the official censors or one of them. He is to challenge, he says, only that part of the Ordinance. He is not to challenge the part for preventing piracy of copyright; which he thinks quite just, though he can see that it may be abused so as to annoy honest men and booksellers. From a passage farther on we learn also that Milton did not object to a prohibition of anonymous publication; for he refers with entire approbation to a previous Parliamentary Ordinance, enacting that no book should be printed unless the names of the author and printer, or at least that of the printer, were registered. If Parliament had stopped at that Order, they would have been well advised; it is the licensing Enactment of the subsequent Order of June 1643 that he is to reason against. Books, indeed, were things of which a Commonwealth ought to take no less vigilant charge than of their living subjects, "For Books are not absolutely dead things, but do contain a potency of life in them to be as active as that soul whose progeny they are." All the more reason to beware of violence against books. "As good almost kill a man as kill a good book. Who kills a man kills a reasonable creature, God's image; but he who destroys a good book kills reason itself, kills the image of God as it were in the eye. Many a man lives a burden to the earth; but a good book is the precious life-blood of a master-spirit, embalmed and treasured up on purpose to a life beyond life." And how had this slaying of books, and even the prevention of their birth, by a Censorship, grown up? After a historical sketch of the state of the law and practice respecting books among the Greeks, the Romans, and the early and mediaeval Christians, Milton arrives at the conclusion that the system of Censorship and Licensing was an invention of the worst age of the Papacy, perfected by the Spanish Inquisition. He gives one or two specimens of the elaborate *imprimaturs* prefixed to old Italian books, and makes much fun of them. The Papal invention, he continues, had passed on into Prelatic England. "These are the pretty responsories, these are the dear antiphonies that so bewitched our late prelates and their chaplains with the goodly echo

they made, and besotted us to the gay imitation of a lordly *imprimatur*, one from the Lambeth House [the Archbishop of Canterbury's Palace, where MSS. had to be left by their authors for revision by his chaplains], another from the west end of Paul's [the site of Stationers' Hall]."

Yes! but, whoever were the inventors, might not the invention itself be good? To this question Milton next proceeds, and it leads him into the vitals of the subject.

He contends, in the first place, for the scholar's liberty of universal reading at his own peril, his right of unlimited intellectual inquisitiveness. What though there are bad and mischievous books? "Books are as meats and viands are, some of good, some of evil substance, and yet God in that unapocryphal vision said, without exception, 'Rise, Peter, kill and eat.'" Good and evil are inextricably mixed up together in everything in this world; and the very discipline to virtue and strength consists in full walking amid both, distinguishing, avoiding, and choosing. "I cannot praise a fugitive and cloistered virtue, unexercised and unbreathed, that never sallies out to see her adversary, but slinks out of the race where that immortal garland is to be run for notwithstanding dust and heat. Assuredly we bring not innocence into the world, we bring impurity much rather; that which purifies is trial, and trial is by what is contrary." There is much more in the same strain, a favourite one with Milton, with instances of readings in evil books turned to good account. Plato's Censorship of Books, or general regulation of literature by the magistrate, is handled gently, as only Plato's whimsy for his own airy Republic. What if the principle of State-licensing were carried out? "Whatever thing we hear or see, sitting, walking, travelling, or conversing, may be fitly called our book." Well, shall the State regulate singing, dancing, street-music, concerts in the house, looking out at windows, standing on balconies, eating, drinking, dressing, love-making? "It would be better done to learn that the law must needs be frivolous which

goes to restrain things uncertainly, and yet equally, working to good and to evil. And, were I the chooser, a dram of well-doing should be preferred before many times as much the forcible hindrance of evil-doing." Besides, suppression even of such tangible things as books by a Censorship was really impracticable, and everybody knew it. In spite of the existing Censorship, were not Royalist libels against the Parliament in everybody's hands in London every week, wet from the press? The system was a monstrous injustice and annoyance, and it did not answer its own end.

If the end were honestly the suppression of false and bad books, and if that end were in itself proper, and also practicable with sufficient means, all would still depend on the qualifications of the Licensers. And here Milton frankly lets the existing English licensers of Books, and especially the twelve parish-ministers among them, know his opinion of their office:—

"It cannot be denied but that he who is made judge to sit upon the birth or death of Books, whether they may be wafted into this world or not, had need to be a man above the common measure, both studious, learned, and judicious: there may be else no mean mistakes in the censure of what is passable or not; which is also no mean injury. If he be of such worth as behoves him, there cannot be a more tedious and unpleasing journey-work, a greater loss of time levied upon his head, than to be made the perpetual reader of unchosen books and pamphlets, oftentimes huge volumes. There is no book that is acceptable unless at certain seasons; but to be enjoined the reading of that at all times, and in a hand scarce legible, whereof three pages would not down at any time in the fairest print, is an imposition which I cannot believe how he that values time and his own studies, or is but of a sensible nostril, should be able to endure. In this one thing I crave leave of the present Licensers to be pardoned for so thinking: who doubtless took this office up, looking on it through their obedience to the Parliament, whose command perhaps made all things seem easy and unlaborious to

them. But that this short trial hath wearied them out already, their own expressions and excuses to them who make so many journeys to solicit their license (!) are testimony enough. Seeing therefore those who now possess the employment by all evident signs wish themselves well rid of it, and that no man of worth, none that is not a plain unthrift of his own hours, is ever likely to succeed them, except he mean to put himself to the salary of a press-corrector, we may easily foresee what kind of Licensers we are to expect hereafter—either ignorant, imperious, and remiss, or basely pecuniary.... How much it hurts and hinders the Licensers themselves in the calling of their ministry, more than any secular employment, if they will discharge that office as they ought, so that they must neglect either the one duty or the other, I insist not, because it is a particular, but leave it to their own conscience how they will decide it there."

Closely following this glance at the Licensers and *their* business is a description of the true Author and *his* business, and of the indignities and discomforts put upon him by the Licensing system:—

"When a man writes to the world, he summons up all his reason and deliberation to assist him; he searches, meditates, is industrious, and likely consults and confers with his judicious friends: after all which done he takes himself to be informed in what he writes, as well as any that writ before him. If in this, the most consummate act of his fidelity and ripeness, no years, no industry, no former proof of his abilities, can bring him to that state of maturity as not to be still mistrusted and suspected unless he carry all his considerate diligence, all his midnight watchings and expense of Palladian oil, to the hasty view of an unleisured Licensor—perhaps much his younger, perhaps far his inferior in judgment, perhaps one who never knew the labour of book-writing; and, if he be not repulsed or slighted, must appear in print like a punie [child] with his guardian, and his censor's hand on the back of his title, to be his bail and surety that he is no idiot or

seducer;—it cannot be but a dishonour and derogation to the Author, to the Book, to the privilege and dignity of Learning. And what if the Author shall be one so copious of fancy as to have many things well worth the adding come into his mind, after licensing, while the book is yet under the press—which not seldom happens to the best and diligentest writers, and that perhaps a dozen times in one book? The Printer dares not go beyond his licensed copy: so often then must the Author trudge to his leave-giver, that those his new insertions may be viewed; and many a jaunt will be made ere that Licenser (for it must be the same man) can either be found, or found at leisure. Meanwhile either the press must stand still (which is no small damage) or the Author lose his accuratest thoughts, and send the book forth worse than he had made it; which is the greatest melancholy and vexation that can befall. And how can a man teach with authority, which is the life of teaching, how can he be a *doctor* in his book, as he ought to be or else had better be silent, whenas all he teaches, all he delivers, is but under the tuition, under the correction, of his patriarchal Licenser, to blot or alter what precisely accords not with the hide-bound humour which he calls his judgment?"

The last half of the pamphlet is perhaps more knotty and powerful than the first. Milton's well-known retrospect of what he had seen in Italy, with his reminiscence of Galileo, occurs here. But his drift has now been made sufficiently apparent; and we shall best discharge what remains of our duty by presenting certain pieces of autobiographical information which the pamphlet supplies:—

We learn, for one thing, that Milton did not stand alone in his detestation of the Censorship, but represented a considerable constituency in the matter, and had even been solicited to be their spokesman and write this pamphlet. Those very words of complaint, he says, which he had heard, six years before, uttered by learned men in Italy against the Inquisition, it had been

his fortune to hear uttered of late by "as learned men" in England against the Licensing Ordinance of the Parliament. "And that so generally," he adds, "that, when I had disclosed myself a companion of their discontent, I might say, if without envy, that he whom an honest quæstorship had endeared to the Sicilians [Cicero] was not more by them importuned against Verres than the favourable opinion which I had among many who honour ye, and are known and respected by ye, loaded me with entreaties and persuasions that I would not despair to lay together that which just reason should bring into my mind toward the removal of an undeserved thralldom upon Learning. That this is not therefore the disburdening of a particular fancy, but the common grievance of all those who had prepared their minds and studies above the vulgar pitch to advance truth in others, thus much may satisfy."

Again, in a pamphlet the subject of which is Books and Authors, we have naturally some incidental indications of Milton's literary tastes and preferences. The most interesting of these are perhaps the following:—He was as fond as ever of Spenser, "our sage and serious poet" as he calls him, "whom I dare be known to think a better teacher than Scotus or Aquinas." He thought Arminius "acute and distinct," though perverted. He would be no slave even to Plato, but would take the liberty of quizzing any of the oddities even of that gorgeous intellect. On moral grounds, he could not bear Aristophanes, and wondered how Plato could have recommended "such trash" as the comedies of that writer to the tyrant Dionysius. His great liking for Euripides is shown by his taking four lines from that poet's *Hiketides* as the motto for the pamphlet. Lord Bacon is again mentioned reverently, once as "Sir Francis Bacon" and again as "Viscount St. Albans." There is a tribute of high admiration to the Parliamentary peer, Lord Brooke, so recently lost to England, and to the tract on the *Nature of Episcopacy* he had left behind him: those last words of his dying charge which "I know will ever be of dear and honoured regard with ye, so full of

meekness and breathing charity that, next to His last testament who bequeathed love and peace to his disciples, I cannot call to mind where I have read or heard words more mild and peaceful." Selden is again referred to and complimented: "one of your own now sitting in Parliament, the chief of learned men reputed in this land." Acquaintance, on the other hand, is implied or avowed, on Milton's part, with some of the most notoriously ribald writers that the world had produced: with Petronius Arbiter, and him of Arozzo "dreaded and yet dear to the Italian Courtiers," and an Englishman whom he will not name, "for posterity's sake," but "whom Harry the Eighth named in merriment his Vicar of Hell." We may add, that Wycliffe and Knox are both honourably mentioned in the *Areopagitica*: Knox as the "Reformer of a Kingdom," and Wycliffe as an Englishman who had perhaps had potentially in him all that had since come from the Bohemian Huss, the German Luther, or the French Calvin.

A more special piece of information supplied, or rather only confirmed, by the *Areopagitica*, is that Milton, when he wrote it, had broken off utterly from the Presbyterians, and regarded the domination of that party in the Westminster Assembly with complete disgust. "If it come to inquisitioning again, and licensing," he says, "and that we are so timorous of ourselves, and so suspicious of all men, as to fear each book, and the shaking of every leaf, before we know what the contents are,—if some, who but of late were little better than silenced from preaching, shall come now to silence us from reading, except what they please,—it cannot be guessed what is intended by some but a second tyranny over Learning; and will soon put it out of controversy that Bishops and Presbyters are the same to us, both name and thing." Again, a little farther on, "This is not, ye Covenants and Protestations that we have made, this is not to put down Prelaty: this is but to chop an Episcopacy; this is but to translate the Palace *Metropolitan* from one kind of dominion into another." Again, "A man may be a heretic in the Truth; and, if he believe things only because his pastor says so, or the

Assembly so determines, without knowing other reason, though his belief be true, yet the very truth he holds becomes his heresy." Again, "He who hears what praying there is for light and clearer knowledge to be sent down among us would think of other matters to be constituted, beyond the discipline of Geneva, framed and fabricked already to our hands." Again, of Ecclesiastical Assemblies in general, and the Westminster Assembly in particular, "Neither is God appointed and confined where and out of what place these his chosen shall be first heard to speak; for He sees not as man sees, chooses not as man chooses, lest we should devote ourselves again to set places, and Assemblies, and outward callings of men, planting our faith one while in the old Convocation House, and another while in the Chapel at Westminster; when all the faith that shall be there canonized is not sufficient, without plain convincement and the charity of patient instruction, to supple the least bruise of conscience, to edify the meanest Christian who desires to walk in the spirit and not in the letter of human trust, for all the number of voices that can there be made—no, though Harry the Seventh himself there, with all his liege tombs about him, should lend them voices from the dead to swell their number," [Footnote: The original meeting-place of the Westminster Assembly, and their meeting-place in the summer months, was Henry the Seventh's Chapel. In winter it was the Jerusalem Chamber—which had been the Convocation House of the English clergy before the Long Parliament.] Again, he says that, if the Presbyterians, themselves so recently released from Episcopal tyranny, should not have been taught by their own suffering, but should continue active in suppressing others, "it would be no unequal distribution in the first place to suppress the suppressors themselves."

Milton, however, the *Areopagitica* proves, had not passed away from Presbyterianism only to become an ordinary Congregationalist or Independent. In the fight between the Presbyterians and the Independents of the Assembly he would now, undoubtedly, have taken part with the

Independents; but Messrs. Goodwin, Nye, and the rest of them, had they interrogated him why, would have found him a strange adherent. For he had passed on into an Independency, if it could be called "Independency," more extreme than theirs, and resembling rather the vague Independency that Cromwell represented, and that was rife in the Army. The very notion of an official "minister of Religion," anyhow appointed, had become comical to him. It had come to seem to him supremely ridiculous that there should be anything like a caste of Brahmins or officers of Religion in England, by whatever means that caste should be formed or recruited. To curtail proof under this head, let me give but one extract. It is the richest bit of sheer humour that I have yet found in Milton, and is better and deeper, in that kind, than anything in Sydney Smith:—

**BEING RELIGIOUS BY DEPUTY: OR THE USE OF A POPULAR
LONDON CLERGYMAN.**

"There is not any burden that some would gladlier post off to another than the charge and care of their Religion. There be—who knows not that there be?—of Protestants and professors who live and die in as arrant and implicit faith as any lay Papist of Loretto. A wealthy man, addicted to his pleasure and profits, finds Religion to be a traffic so entangled, and of so many piddling accounts, that of all mysteries he cannot skill to keep a stock going on that trade. What should he do? Fain he would have the name to be religious; fain he would bear up with his neighbours in that. What does he therefore but resolves to give over toiling, and to find himself out some factor, to whose care and credit he may commit the whole managing of his religious affairs: some Divine of note and estimation *that* must be. To him he adheres; resigns the whole warehouse of his Religion, with all the locks and keys, into his custody; and indeed makes the very person of that man his Religion—esteems his associating with him a sufficient evidence and

commendatory of his own piety. So that a man may say his Religion is now no more within himself, but is become a dividual movable, and goes and comes near him according as that good man frequents the house. He entertains him, gives him gifts, feasts him, lodges him; his Religion comes home at night, prays, is liberally supt and sumptuously laid to sleep, rises, is saluted; and, after the malmsey or some well-spiced brewage, and better breakfasted than He whose morning appetite would have gladly fed on green figs between Bethany and Jerusalem, his Religion walks abroad at eight, and leaves his kind entertainer in the shop, trading all day without his Religion."

What light does the *Areopagitica* throw on Milton's notion of Toleration, or Liberty of Conscience, and on his feelings towards the Sects and Sectaries generally among whom he was now ranked? It is not uncommon to regard the *Areopagitica* as one of the first and greatest English pleas for Liberty of Conscience; and, broadly viewed, it is. But strictly it is not a plea for Liberty of Conscience or for Toleration, but only for the liberty of unlicensed Printing. Milton's views of Liberty of Conscience appear only by implication in the course of this one argument. So far as they do appear, it cannot be said that Milton advocated a Liberty of Conscience so complete and absolute as Roger Williams's or John Goodwin's. He even saves himself from the imputation of doing so. "If all cannot be of one mind," he says, "this doubtless is more wholesome, more prudent, and more Christian, that many be tolerated, rather than all compelled. I mean not tolerated Popery and open superstition; which, as it extirpates all religious and civil supremacies, so itself should be extirpate—provided first that all charitable and a compassionate means be used to win and regain the weak and the misled. That also which is impious or evil absolutely, either against faith or manners, no law can possibly permit that intends not to unlay itself." There are hints also to the effect that, while Milton wanted liberty of unlicensed publication for all kinds of books, he did not deny the right of the

magistrate to call writers to account, in certain cases, for the opinions they had published. On the whole, therefore, in his theory of Toleration, Milton was decidedly behind some of his contemporaries. One can see, however, that he was uneasy in his exceptions, and had little care for them in comparison with the principle he meant them to limit. Practically he stands forth in the *Areopagitica* as the advocate of a Toleration that would have satisfied all the necessities of the juncture, by giving full liberty not only to orthodox Congregationalists, but also to Baptists, so-called Antinomians, and Seekers, and perhaps all other Protestant sects that had any real rooting at that time in English society. His whole oration breathes the full principle rather than the exceptions. "Give me," he says, "the liberty to know, to utter and to argue freely according to my conscience, above all liberties." And he makes a brave defence of the existing Sects, without putting a mark of exclusion on any. Those Sects and Schisms, Sects and Schisms, which weak men were bewailing, and the Presbyterians were calling on Parliament to crush, appeared to Milton not only something that must be permitted because it could not be prevented, but positively the finest English phenomenon of the time, and the richest in promise:—

"The light which we have gained was given us not to be ever staring on, but by it to discover onward things more remote from our knowledge. It is not the unfrocking of a Priest, the unmitring of a Bishop, and the removing him from off the Presbyterian shoulders, that will make us a happy nation. No, if other things as great in the Church, and in the rule of life both economical and political, be not looked into and reformed, we have looked so long upon the blaze that Zuinglius and Calvin hath beacons up to us that we are stark blind. There be who perpetually complain of Schisms and Sects, and make it such a calamity that any man dissents from *their* maxims.... Lords and Commons of England, consider what Nation it is whereof ye are, and whereof ye are the governors: a Nation not slow and dull, but of a quick, ingenious, and piercing spirit, acute to invent, subtle

and sinewy to discourse, not beneath the reach of any point the highest that human capacity can soar to.... Now once again, by all concurrence of signs, and by the general instinct of holy and devout men, as they daily and solemnly express their thoughts, God is decreeing to begin some new and great period in his Church, even to the reforming of Reformation itself. What does He then but reveal himself to his servants, and, as his manner is, first to his Englishmen—I say, as his manner is, first to us, though we mark not the method of his counsels and are unworthy? Behold now this vast City, a city of refuge, the mansion-house of Liberty, encompassed and surrounded with His protection. The shop of war hath not there more anvils and hammers working, to fashion out the plates and instruments of armed Justice in defence of beleaguered Truth, than there be pens and heads there, sitting by their studious lamps, musing, searching, revolving new notions and ideas, wherewith to present, as with their homage and their fealty, the approaching Reformation: others as fast reading, trying all things, assenting to the force of reason and conviction. What could a man require more from a Nation so pliant and so prone to seek after knowledge? What wants there to such a towardly and pregnant soil, but wise and faithful labourers, to make a knowing people, a Nation of prophets, of sages, and of worthies?... Where there is much desire to learn, there of necessity will be much arguing, much writing, many opinions; for Opinion in good men is but Knowledge in the making. Under these fantastic terrors of Sect and Schism we wrong the earnest and zealous thirst after knowledge and understanding which God hath stirred up in this city. What some lament of we rather should rejoice at, should praise rather this pious forwardness among men to reassume the ill-deputed care of their Religion into their own hands again.... As in a body, when the blood is fresh, the spirits pure and vigorous, not only to vital, but to rational faculties, and those in the acutest and the pertest operations of art and subtlety, it argues in what good plight and constitution the body is, so, when the cheerfulness of the people

is so sprightly up as that it has not only wherewith to guard well its own freedom and safety, but to spare, and to bestow upon the solidest and sublimest points of controversy and new invention, it betokens us not degenerated, nor drooping to a fatal decay, but casting off the old and wrinkled skin of corruption to outlive these pangs and wax young again, entering the glorious ways of Truth and prosperous virtue destined to become great and honourable in these latter ages. Methinks I see in my mind a noble and puissant Nation rousing herself like a strong man after sleep, and shaking her invincible locks; methinks I see her as an eagle mewing her mighty youth, and kindling her undazzled eyes at the full midday beam; purging and unsealing her long-abused sight at the fountain itself of heavenly radiance, while the whole noise of timorous and flocking birds, with those also that love the twilight, flutter about, amazed at what she means, and in their envious gabble would prognosticate a year of Sects and Schisms."

After this it is bathos to speak of the Stationers' Company; but we must do so. For, at the end of the *Areopagitica* there is a distinct insinuation by Milton that the Ordinance he was asking the Parliament to repeal was less the invention of Parliament itself than of some cunning Stationers. "If we may believe those men," he says, "whose profession gives them cause to inquire most [*i.e.* some worthy booksellers of Milton's acquaintance] it may be doubted there was in it the fraud of some old patentees and monopolisers in the trade of bookselling; who, under pretence of the poor in their Company not to be defrauded, and the just retaining of each man his several copy—which God forbid should be gainsaid—brought divers glozing colours to the House, which were indeed but colours, and serving to no end except it be to exercise a superiority over their neighbours." Milton makes a farther and worse insinuation. "Another end," he says, "is thought was aimed at by some of them in procuring by petition this order—that, having power in their hands, malignant books might easier scape abroad [*i.e.* get

about the country], as the event shows." Here was a hit for some of the good people about Paternoster Row.

SECOND PROSECUTION OF MILTON BY THE STATIONERS' COMPANY: CONDUCT OF THE HOUSE OF LORDS IN THE CASE.

It might have been safer for Milton to let the Stationers alone. For, within five weeks after the publication of the *Areopagitica*, I find him again in trouble, and all by the doing of the Stationers' Company, in revenge for his past offences and this new insult. The story, as I have dug it out of the *Lords' Journals*, with some help from old pamphlets, is as follows:—

Monday the 9th of December, 1644, there being twenty-one Peers present, and Lord Grey of Wark in the chair, "a scandalous printed libel against the Peerage of this realm was brought into the House and read; and this House ordered, that the Master and Wardens of the Company of Stationers shall attend this House at four of the clock this afternoon, to know of them whether they do know of the print and can discover the author of it." That same afternoon, accordingly, there being now but fifteen peers present, the three gentlemen who had been sent for—Messrs. Mead, Parker, and Whittaker—appeared, and with this result: "The Master and Wardens of the Company of Stationers desired some longer time, and they will do their best endeavours to find out the printer that printed the scandalous libel brought into this House this day; and this House gave two or three days longer." On Friday the 13th of December they have not yet found either the author or the printer; but they have caught a poor fellow, George Jeffrey, apprentice to a hosier in Cornhill, who had been dispersing copies of the libel in London. Examined by the Earls of Salisbury and Kent, aided by the Judges, this George Jeffrey confesses all about it. On Monday morning last (the very day on which the Lords first discussed the subject)

he had found two-and-twenty copies of the thing between the stall-boards of his master's stall, put there by he knew not whom. He had taken them into the shop, read one of them, and been so greatly amused by it that he had told his neighbours of the prize. Some of the more unruly of the neighbours had snatched at copies and carried them off, so that he had only two left. When he found that there was a hue and cry on the matter, and that he had got himself into trouble, he had done what he could. He had sent his own two remaining copies to the Lord Mayor, and had recovered six of the other copies and sent them to the Mayor too, naming the persons from whom he got them back. One was an exciseman, one an oilman; and one or two were apprentices like himself; but there was also one Thomas Heath, who was actually the Lord Mayor's kinsman. This was positively all he knew of the matter; and he could not tell where the papers came from, nor where any more were to be found. Apparently the Peers believed him, for he was discharged on his own promise to attend again if he should be called for.

The libel, however, seems to have been unusually flagrant. The Peers sent a copy of George Jeffrey's examination to the Lord Mayor, with instructions that he should both give an account of what he had already done in the business and also prosecute it farther. It is not till Dec. 26 that we hear more. On that day, two-and-twenty Peers being present, and nothing having been farther reported either by the Lord Mayor or the Stationers, it was ordered "that the Lord Mayor of London and the Printers be sent to, to give an account of the scandalous paper printed and dispersed, what they have done in discovering the Author, Printer, and Publisher." The Mayor and the Stationers still not responding, the order was repeated more peremptorily on Saturday, Dec. 28, one-and-twenty Peers being present. The gentleman-usher of the House went there and then for the two Wardens of the Stationers' Company, who forthwith appeared and gave this account: "They have used their best endeavours to find out the printer and author of the scandalous libel, but they cannot yet make any discovery thereof, the

letter [type] being so common a letter; and further *complained of the frequent printing of scandalous Books by divers, as Hezekiah Woodward and Jo. Milton.*"—Here was an extremely clever trick of Messrs. Parker and Whittaker! They were themselves in trouble for not being good detectives: what if they diverted the attention of the Peers, while they were in this angry mood, upon other objects? It is as if they said to the Peers, "It is a very hard matter sometimes to find out the authors and printers of scandalous tracts; but really the abuse has attained to frightful dimensions, and perhaps the leniency of your Lordships in cases where the authors of scandalous tracts are well enough known encourages others. Last August, for example, we took the liberty of calling the attention of the House of Commons to a Tract on Divorce by Mr. John Milton, which the Assembly unanimously condemns as containing horrid doctrine, and which Mr. Palmer denounced on that ground in the hearing of your Lordships. It was our duty to do so, because the Tractate, in any case, was unlicensed and unregistered, and therefore a violation of the Printing Ordinance. The Commons referred the subject to their Committee for Printing, but nothing appears to have been done. And now, as your Lordships have sent for us on this other matter, in which we are sorry not to have succeeded as we could have wished, allow us to mention that the same Mr. Milton has since then—in fact, only last month—put forth another pamphlet, called *Areopagitica*, with his name to it certainly and addressed to your Lordships and the other House, but with no printer's name, and unlicensed and unregistered, like most of its predecessors. The pamphlet contains some very injurious personal reflections on us; but we should not think of mentioning it merely on that ground. It is very bold and strange altogether, very disrespectful to the Assembly, and is an attack on the whole Ordinance for Printing which it wilfully breaks. Besides Mr. Milton there are others as bad: for instance, Mr. Hezekiah Woodward."

Who Mr. Hezekiah Woodward was the reader already, in some degree, knows. He was that old friend of Samuel Hartlib's to whom Hartlib, in Aug. 1644, had addressed a letter requesting his opinion of Edwards's *Antapologia*, and who had furnished that opinion, which was published, with Hartlib's letter, in the following month (*antè*). He must have been fond of using his pen; for I find him to have been the author of at least seven other pamphlets, published before our present date, viz. *The Kings Chronicle* (1643); *Three Kingdoms made One* (1643); *The Cause, Use, and Cure of Fear* (1643); *A Good Soldier maintaining his Militia* (1644); *The Sentence from Reason and Scripture against Archbishops and Bishops, with their Curates* (1644); *As you were* (1644); *Inquiries into the Causes of our Miseries* (1644). The last-named but one of these pamphlets gives at least one additional particular about Woodward. Its full title is "*As you were: or a Reducing (if possibly any) seduc't ones to facing-about, turning head-front against God, by the Recrimination (so intended) upon Mr. J. G. (Pastor of the Church in Coleman Street) in point of fighting against God. By an unworthy auditor of the said (Juditious pious Divine) Master John Goodwin.*" This may have been the very pamphlet, or one of the pamphlets, of Woodward which the Stationers had in view when they complained of him; for it was published Nov. 13, 1644, or exactly eleven days before the *Areopagitica*, and it appeared anonymously and without a licence. Out of the confused wording of the title we gather that Woodward was a hearer and admirer of John Goodwin, and that the tract was intended as in some sort a vindication of that Sectary against attacks that had been made upon him in connexion more especially with a pamphlet of his entitled *Theomachia*. All this, though slight, is not uninteresting. It presents to us Woodward as a London citizen of what maybe called the Hartlib-Goodwin connexion, and possibly therefore known to Milton personally. He lived in Aldermanbury, and was addicted to writing pamphlets. From what I have read of them I judge him to have been a mild, hazy-headed person, with a liking for

indefiniteness and elbow-room rather than Presbyterian strictness, and therefore ranking among the Sectaries, but of such small mark individually that, but for his incidental association with Milton in the business under notice, we should not now have had any particular interest in inquiring about him. For some reason or other, however, the Stationers thought him worth their hostility. Had they any trade dislike to Hartlib? It is somewhat curious that the two persons they selected to be complained against were two of Hartlib's friends. [Footnote: For particulars here about Woodward, in addition to those already given (*antè* pp. 230-1), my authorities are (1) The British Museum Library Catalogue: *Woodward, Hezekiah*; (2) The two publications named as consulted by myself, viz., Woodward's *As You Were*, and his joint-tract with Hartlib, *A Short Letter, &c., with a large but modest answer*, which last is not given in the Museum Catalogue among Woodward's publications, but came in my way in my researches for Hartlib; (3) MS. notes of Thomason in Museum copies of these two publications: viz., in the first the words "suposed to be Ezech. Woodward's," and the date "Novemb. 13, London;" in the second the date "Sept 14."]

To resume our story from the *Lords' Journals*:—The device of the two Wardens for diverting the attention of the Peers was for the moment successful. The Peers on the same day (Sat. Dec. 28), as soon as the Wardens had withdrawn, passed this order: "Hereupon it is ordered, that it be referred to Mr. Justice Reeves and Mr. Justice Bacon to examine the said Woodward and Milton, and such others as the Master and Wardens of the Stationers' Company shall give information of, concerning the printing and publishing their Books and Pamphlets, and to examine also what they know concerning the Libel [the Libel against the Peers of which George Jeffrey had dispersed copies], who was the author, printer, and contriver of it; and the Gentleman-Usher shall attach the parties, and bring them before the Judges; and the Stationers are to be present at their examinations, and give evidence against them."

This was clearly a tighter action against Milton than the former one by the Commons. What came of it?—Woodward's business came up on the next Tuesday, Dec. 31, when Mr. Justice Bacon informed this House of some papers which Ezechiell Woodward [it was "Hezekiah" before] confessed he made: "Hereupon it is ordered, that Mr. Serjeant Whitfield shall peruse them over, and report them to this House; and, because the said Woodward is now in custody of the Gentleman-Usher, it is ordered, He shall be released, giving his own bond to appear before this House when he shall be summoned." Woodward's offence, it would therefore seem, was considered venial. He had nothing to do with the Libel that was the special subject of inquiry; and, though he had confessed to the authorship of some anonymous papers recently published, there seemed to be nothing formidable in them. He might go back to his house in Aldermanbury on his own recognisances. [Footnote: "*Soft Answers unto Hard Censures*, London 1645," is the title of a tract of Woodward's subsequent to the incident of the text, and possibly referring to it; after which I find him, so far as there is evidence, totally silent till 1656. In that year he published four new religious or politico religious pamphlets; which is the last I know of him at present.] But what of Milton? Not a word about *him* in the Journals of the same day. He was not in the custody of the Gentleman-Usher then at all events; and so far he had been more fortunate than Woodward. Possibly, he had had a call from the Usher in his house in Aldersgate Street on the Saturday or Monday, had accompanied him to the chambers of Mr. Justice Reeve or Mr. Justice Bacon, had confronted the Master and Wardens of the Stationers' Company there, and had there given such a satisfactory and straightforward account of his questioned pamphlets that there was no need for detaining him, or troubling him farther. Some report may have been made to the Peers by the Justices; but if so, it was of such a kind, and the Peers themselves had such information about Milton, that they thought it best to let the matter drop without the least farther mention of it. If even two

or three of them had read the *Areopagitica* (and probably even more had), that alone would have honourably acquitted him. It appears, however, from a subsequent allusion by Milton himself, as if the *Doctrine and Discipline* of Divorce was still the real stumbling-block. On that subject too the Peers may have been a little liberal by this time. Was not the great Mr. Selden understood to hold opinions on Marriage and Divorce very much the same as those Mr. Milton had published? So the Peers may have reasoned for themselves; and it is not at all improbable that Selden, Vane, and others of the Lower House may have given them a hint what to do. And so the Booksellers were baulked again. Baillie and Gillespie, who did not leave London for their Scottish holiday till Jan. 6, 1644-5, may have been a little disappointed, and the Presbyterians generally. [Footnote: Authorities for this curious story are the entries in the Lords' Journals of the dates named—Vol. VII. pp. 91, 92, 97, 115, 116, and 118. The one-and-twenty Peers who were present on Saturday, Dec. 28, when the order for Milton's examination was issued were—Lord Grey of Wark, as Speaker; the Lord General the Earl of Essex; the Lord High Admiral the Earl of Warwick; Earls Rutland, Kent, Pembroke, Salisbury, Bolingbroke, Manchester, Nottingham, Northumberland, Denbigh, and Stamford; Viscount Saye and Sele; and Lords North, Montague, Howard of Escrick, Berkeley, Bruce, Willoughby of Parham, and Wharton. The same Peers, with the omission of the Earl of Northumberland and Lord Wharton, and the addition of the Earl of Suffolk (*i.e.* twenty Peers in all), were present on Dec. 31, when a report was made on Woodward's case, but none on Milton's.—Selden's *Uxor Ebraica* was published in 1646, and was then much welcomed by Milton.—That the Divines of the Westminster Assembly were at the back of this second prosecution of Milton, though the authorities of the Stationers' Company were the nominal accusers, is not only probable in itself, but is distinctly implied by Anthony Wood's reference to the affair (*Fasti* I. 483). "Upon the publication of the said three books of marriage and divorce," says Wood,

with a slight error as to the number of the books on that subject then published, "the Assembly of Divines then sitting at Westminster took special notice of them; and thereupon, though the author had obliged them by his pen in his defence of *Smectymnuus*, and other their controversies had with the Bishops, they, impatient of having the clergy's jurisdiction (as they reckoned it) invaded, did, instead of answering or disproving what those books had asserted, cause him to be summoned before the House of Lords: but that House, whether approving the doctrine, or not favouring the accusers, did soon dismiss him."]

THE DIVORCE CONTROVERSY CONTINUED: HERBERT PALMER'S SERMON PUBLISHED: OTHER ATTACKS ON MILTON.

And now we are in the winter of 1644-5, when Parliament and all London, and all England, were astir with the two great businesses of the New-Modelling of the Parliamentary Army and the Self-Denying Ordinance. It was with public talk about these matters, and about such contemporary matters as the execution of Laud, the death of Century White, and the abortive Treaty of Uxbridge, that any immediate influence from Milton's *Areopagitica* must have mingled. In the midst of it all he had other labours on hand. They were still on the woful subject of Divorce.

Not only had the subject fastened on Milton with all the force of a propagandist passion, urging him to repeated expositions of it; there were, moreover, fresh external occasions calling on him not to desist. Of four such external occasions, amid others now unknown to us, we may here take note:—[Footnote: Palmer's Dedication of the Sermon.] Herbert Palmer's sermon, with the attack on Milton still remaining in it, had now been published. "Some bodily indispositions" had prevented Palmer from at once complying with the request of the two Houses that he would print the

sermon; but at length, in September or October 1644, it had appeared. [Footnote: "By William Prynne, of Lincoln's Inn, Esquier: London, Printed for Michael Sparke, Sem., and are to be sold at the Blew Bible in Green Arbour, 1644." The Exact date of publication I ascertain from Thomason's note, "Sept. 16," in a copy in the British Museum.] About the same time (more precisely the 16th of September, 1644) there appeared one of Prynne's interminable publications, entitled "*Twelve considerable serious Questions touching Church government: sadly propounded (out of a Reel Desire of Unitie and Tranquillity in Church and State) to all sober-minded Christians, cordially affecting a speedy settled Reformation and Brotherly Christian Union in all our Churches and Dominions, now miserably wasted with Civill Unnaturall Wars, and deplorably lacerated with Ecclesiastical Dissensions.*" Though with so long a title, the thing consists but of eight largish quarto pages, with a bristle of marginal references. "Having neither leisure nor opportunity," says Prynne, "to debate the late unhappy differences sprung up amongst us touching Church-government (disputed at large by Master Herle, Doctor Steward, Master Rutherford, Master Edwards, Master Durey, Master Goodwin, Master Nye, Master Simpson, and others), ... I have (at the importunity of some Reverend friends) digested my subitane apprehensions of these distracting controversies into the ensuing considerable Questions." Accordingly, the Tract consists of 12 Queries propounded for consideration, each numbered and beginning with the word "Whether." We are concerned mainly with Query 11. It runs as follows:—"Whether that Independent Government which some contend for ... be not of its own nature a very seminary of schisms and dangerous divisions in the Church and State? a floodgate to let in an inundation of all manner of heresies, errors, sects, religions, destructive opinions, libertinism and lawlessness, among us, without any sufficient means of preventing or suppressing them when introduced? Whether the final result of it (as Master Williams, in his late dangerous licentious work, *A Bloudy Tenent*,

determines) will not really resolve itself into this detestable conclusion, that every man, whether he be Jew, Turk, Pagan, Papist, Arminian, Anabaptist, &c., ought to be left to his own free liberty of conscience, without any coercion or restraint, to embrace or publicly to profess what Religion, Opinion, Church government, he pleaseth and conceiveth to be truest, though never so erroneous, false, seditious, detestable in itself? And whether such a government as this ought to be embraced, much less established among us (the sad effects whereof we have already experimentally felt by the late dangerous increase of many Anabaptistical, Antinomian, Heretical, Atheistical opinions, as of *The Soul's Mortality, Divorce at Pleasure*, &c., lately broached, preached, printed in this famous city; which I hope our Grand Council will speedily and carefully suppress), &c." Here, and by no less a man than Prynne, Milton's Divorce Doctrine is publicly referred to as one of the enormities of the time, and coupled, as of coequal infamy, with the contemporary doctrine of the Mortality of the Soul vented in an anonymous tract. (3) Farther, in the month of November, or while the *Areopagitica* was in the press, there had appeared the first distinct Reply to Milton's original Divorce Treatise. It was a pamphlet, in 44 pages of small quarto, with this title:—"An Answer to a Book, Intituled, *The Doctrine and Discipline of Divorce, or A Plea for Ladies and Gentlewomen, and all other Married Women, against Divorce. Wherein Both Sexes are vindicated from all bondage of Canon Law, and other mistakes whatsoever: And the Unsound Principles of the Author are examined and fully confuted by Authority of Holy Scripture, the Laws of this Land, and Sound Reason. London, Printed by G. M. for William Lee at the Turk's-Head in Fleet Street, next to the Miter Taverne. 1644.*" [Footnote: Entered at Stationers' Hall, Oct. 31, 1644 (my notes from the Registers); Licensed Nov. 14 (the pamphlet itself); out in London, Nov. 19 (Thomason's note in copy in British Museum, Press Mark 12 G. o. 12/181)] Milton had now his wish: one of his adversaries had written a book, and could be wrestled with. Nay

more, though the writer had not given his name, the licenser, Mr. Joseph Caryl, had, in his prefixed "Imprimatur," applauded the sentiments of the tract, and spoken slightly of Milton. Mr. Caryl, therefore, on his own account, might deserve a word. (4) Finally, in January 1644-5, Dr. Daniel Featley, from his prison in "the Lord Peter's house in Aldersgate Street," close to Milton's own dwelling, had sent forth his "*Dippers Dipt, or the Anabaptists Duck'd and Plung'd over Head and Eares*" [Footnote: See *antè*, p. 138.] dedicating it publicly to the Parliament and privately to his "Reverend and much-esteemed friend, Mr. John Downam,"— the very person, by the bye, who had good-naturedly licensed Milton's Bucer pamphlet. Now, Featley, in this book, had been at Milton among others. Denouncing the Anabaptists on all sorts of grounds in his Epistle Dedicatory to the Parliament, he charges them especially with originating odious heresies beyond their own. "For they print," he says, "not only Anabaptism, from whence they take their name, but many other most damnable doctrines, tending to carnal liberty, Familism, and a medley and hodge-podge of all Religions. Witness the Book, printed 1644, called *The Bloudy Tenent*, which the author affirmeth he wrote in milk; and, if he did so, he hath put some ratsbane in it [Footnote: Featley blunders here. Roger Williams did not say he had written his book in milk, but that the Baptist Tract of 1620 which he reprints in his book was said to have been written in milk in prison on pieces of paper sent to the writer as stoppers to his milk-bottle—his friends outside deciphering the writing by heating the papers.] —as, namely, 'that it is the will and command of God that, since the coming of his son the Lord Jesus, a permission of the most Paganish, Jewish, Turkish, or Anti- Christian consciences and worships, be granted to all men in all nations and countries,' ... Witness a Tractate on Divorce, in which the bonds of marriage are let loose to inordinate lust and putting away wives for many other causes besides that which our Saviour only approveth, viz. in case of Adultery. Witness a Pamphlet newly come forth, entitled *Man's*

Mortality, in which the soul is cast into an Endymion sleep from the hour of death to the day of Judgment. Witness," &c. One other dreadful pamphlet is mentioned; but it is worthy of note that the persons with whom Milton now, as before, is most pertinaciously associated are Roger Williams and the author of *Man's Mortality*.

These external occasions and provocations co-operating with his unabated interest in the Divorce doctrine on personal and general grounds, Milton was busy, through the winter of 1644-5, on two new Divorce Treatises. They both appeared on the same day—March 4, 1644-5. The one was his TETRACHORDON; the other was his COLASTERION. Neither was licensed, and neither was registered. [Footnote: The date of publication is ascertained from copies of both among the King's Pamphlets in the British Museum— both with the Press Mark 19. G. e. 11/195. In both the printed year of publication on the title-page is 1645; but in both Thomason, the Collector, has put his pen through the 5, and has annexed in manuscript the date "March 4, 1644." Books published near the 25th of March were generally dated in the year then to begin.] Some account of these two Treatises must conclude our present section of Milton's Biography.

TETRACHORDON.

We shall take the TETRACHORDON first. It is a bulky treatise, consisting, in the original edition, of 104 small quarto pages; of which 6, not numbered, are occupied with a Dedication to Parliament, and the remaining 98 are numbered and form the body of the work. The following is the complete title:—

TETRACHORDON:

Expositions upon the foure chief places in Scripture, which treat of Marriage, or nullities in Marriage.

On:

Gen. i. 27-28, compar'd and explain'd by Gen. ii. 18, 23, 24

Dent. xxiv. 1-2.

Matth. v. 31-32, with Matth. xix., from the 3 v. to the 11th.

1 Cor vii., from the 10th to the 16th.

Wherein the Doctrine and Discipline of Divorce, as was lately publish'd, is confirm'd by explanation of Scripture, by testimony of ancient Fathers, of civill lawes in the Primitive Church, of famousest Reformed Divines, and lastly, by an intended Act of the Parlament and Church of England in the last yeare of Edward the Sixth. By the former Author J. M.—

[Greek: skaioisi kaina prospheron sophia doxeis achreios k oy sophos pephykenai ton d ay dokounton eidenai ti poikilon kreisson nomistheis en polei lupros phanæ.] *Euripid. Medea* London: Printed in the yeare 1645.

As the title indicates, the body of the Treatise consists mainly of an elaborate examination and comparison of the four chief passages of Scripture relating to Marriage and Divorce, viz. *Genesis* i. 27-28, with ii. 18, 23, 24; *Deuteronomy* xxiv. 1-2; *Matthew* v. 31-32, with xix. 3-11; and 1 *Corinth*, vii. 10-16. This labour of Biblical exegesis Milton had undertaken, he tells us, in consequence of the representations of some judicious friends, who thought that, while there was "reason to a sufficiency" in his first Divorce Treatise, a fuller discussion of the texts of Scripture there alleged might be desirable. How he performed the labour—how he plods through the four passages in succession, explaining, commenting, answering objections, and in the end construing each and all together into a ratification

of his own Doctrine of Divorce, or at least into consistency with it—must be learnt, if it is learnt at all, from the *Tetrachordon* itself. Very few now-a-days will care to read it. For it is decidedly, according to our modern ideas, a heavy pamphlet. The *Areopagitica* bites into modern interests and the constitution of the modern intellect; the *Tetrachordon*, though it must have occupied the author longer, has, I should say, quite lost its bite, except for students of Milton, and for reasoners who would debate his Divorce Doctrine over again by the same method of the interpretation of Biblical texts. For Milton is most submissive to the Bible throughout. Clearly it was his opinion that whatever the Bible could be found to have ruled on any point must be accepted as the decision. There is no sign of any dissent by him from the most orthodox idea of the verbal inspiration of Scripture. Not the less he contrives that the Bible shall support his own free conclusions. It is evident that the method of his exegesis was not so much to extract positive injunctions from particular texts as to let the doctrine of the Bible as a whole invade and pervade his mind, uniting there with whatever of clear sense or high views of affairs it could find, and so forming a kind of organ of large and enlightened Christian reason, by which the Bible itself could then, in all mere particulars, be safely interpreted. Once and again, in the course of his *Tetrachordon*, he expresses his contempt for the grubbing literalists, who, in their microscopic infatuation over one text at a time, miss the view of the whole waving field of all the texts together. Yet he shows much ingenuity in parts of the verbal proof, and produces also commentators of repute who agreed with him.

There is, and doubtless purposely, in order to give weight to the new book, a large display of learning in its pages. Besides the motto from Euripides to begin with, there are references, in the course of the commentary, to Plato, Philo, Josephus, Cicero, Horace, Cellius, Justin Martyr, Eusebius, Tertullian, St. Augustine, Beza, Paræus, Rivetus, Vatablus, Dr. Ames, Spanheim, Diodati, Marinaro, Cameron, and many

more. At the end of the commentary on the Texts, also, there is an express synopsis of testimonies, for the benefit, as Milton is careful to explain, of the weaker sort who are led by authorities, and not because he sets much store on that style of proof himself. Here we have Justin Martyr again, Tertullian again, Origen, Lactantius, several early Councils, Basil, Epiphanius, Ambrose, Jerome, Augustine again, the Laws of Theodosius and Valentinian, Leo, Wycliffe, Luther, Melancthon, Erasmus, Bucer of course, Fagius of course, the Confession of the Church of Strasburg, Peter Martyr, Musculus, Gualter of Zurich, Hemingius, Hunnius, Bidenbachius, Harbardus, Wigandus, Beza again, Aretius of Berne, Alciat of Milan, Corasius, Wesembechius, and Grotius. When he quotes one of the Fathers, I may observe in passing, Milton is true to the Puritan instinct, and never prefixes to the name the title of Saint; it is always "Austin," for example, and not "St. Austin." Also it may be noted that he is punctual in making it clear whether he quotes from his own knowledge or at second hand. Thus, referring to Wycliffe's view of Marriage as put forth in one of his writings, he says, "This book, indeed, through the poverty of our Libraries, I am forced to cite from Arnisæus of Halberstadt on the Right of Marriage, who cites it from Corasius of Toulouse, *c. 4., Cent. Set.*, and he from Wicklef *l. 4. Dial c. 2l.*"—Appended to the collation of Testimonies, and winding up the whole treatise, is a historical statement to which Milton attached great importance, and which is really interesting. It was only by chance, he says, that a notion of Divorce not far short of his own was not then actually part and parcel of the Law of England. For, when young Edward VI. had abolished the Canon Law out of his dominions, a Committee of two- and-thirty select persons, Divines and Lawyers, had been appointed by Parliament—Cranmer, Peter Martyr, Walter Haddon, and Sir John Cheke, the King's tutor, being members of this Committee—to frame a new set of ecclesiastical laws. The draft was actually finished, and it included a law of Divorce substantially such as Bucer had then recommended to the English.

It allowed complete Divorce not only for the causes usually esteemed grave and capital, but for such causes as desertion, cruel usage, or even continued contentiousness and wrangling. The untimely death of the young King alone had prevented this Law from coming into effect. This fact in English history, it is evident, together with the knowledge of such an amount of scattered opinion in his favour lying in the works of other authors besides his formerly quoted Bucer, Fagius, Erasmus and Grotius, had been acquired by Milton by fresh research since he had published his Bucer Tract. And here again there is the curious struggle between Milton's delight in finding auxiliaries and his feeling of property in his own idea. "God, I solemnly attest him," he says, "withheld from my knowledge the consenting judgment of these men so late until they could not be my instructors, but only my unexpected witnesses to partial men that in this work I had not given the worst experiment of an industry joined with integrity, and the free utterance though of an unpopular truth." Again, in a passage where he points out that a truth is never thoroughly sifted out in one age, and that some of those who had preceded him in the Divorce notion had only hinted it in vague terms, and others who had been more explicit in the assertion of it had still left it to be fully argued, he concludes with a gentle remark that perhaps, after all, it will be his fortune "to meet the praise or dispraise of being something first."

There is no abatement in the *Tetrachordon* of the bitterness of Milton's feeling on the subject of an unsuitable marriage. Rather the bitterness is more concentrated and intense. It is as if eighteen months of rumination over his own unhappy condition had made him savage. There is careful abstinence still from all direct allusion to his own case; but there are again the repeated phrases of loathing with which he contemplates, chiefly from the man's side, the forced union of two irreconcilable or ill-matched minds:—"a creature inflicted on him to the vexation of his righteousness"; "a carnal acrimony without either love or peace"; "a ransomless captivity"; "the dungeon-gate as irrecoverable as the grave"; "the mere carcase of a marriage"; "the disaster of a no-marriage"; "counter-plotting and secret wishing one another's dissolution"; "a habit of wrath and perturbation"; "heavenly with hellish, fitness with unfitness," &c. "God commands not impossibilities," he bursts out, "and all the ecclesiastical glue that Liturgy or Laymen can compound is not able to sodder up two such incongruous natures into the one flesh of a true beseeeming marriage." Or take this remarkable passage, repeating an opinion we have already had from him, "No wise man but would sooner pardon the act of adultery once and again committed by a person worth pity and forgiveness than to lead a wearisome life of unloving and unquiet conversation with one who neither affects nor is affected, much less with one who exercises all bitterness, and would commit adultery too, but for envy lest the persecuted condition should thereby get the benefit of his freedom." This assertion that adultery is more venial than mental unfitness is reiterated in another place, with a bold addition: "Adultery does not exclude her other fitness, her other pleasingness; she may be otherwise loving and prevalent." Occasionally, it may be added, in a less startling way than this, Milton leaves the man's point of view and tries to be considerate about the woman. Not that he recants his doctrine of the inferiority of her sex to man's. On the contrary he repeats it, extracting out of Genesis the absolute certainty that it was Man

that was made primarily and immediately in the image of God, and that the image of God is in Woman only by derivation from Man. But he qualifies the doctrine at once gallantly and shrewdly. "Nevertheless," he says, "man is not to hold woman as a servant, but receives her into a part of that empire which God proclaims him to,—though not equally, yet largely, as his own image and glory; for it is no small glory to him that a creature so like him should be made subject to him. Not but that particular exceptions may have place, if she exceed her husband in prudence and dexterity, and he contentedly yield; for then a superior and more natural law comes in, that the wiser should govern the less wise, whether male or female."

This may be taken as the summary of Milton's doctrine about Woman's Rights. Incidentally also the Treatise furnishes us with his opinion on Teetotalism and the Permissive Bill. It comes in thus:—The Mosaic Law (Deut. xxiv. 1-2) allowing a man to give his wife a writing of divorcement and send her away, if he did not like her, had been interpreted by some, in consequence of Christ's comment upon it (Matt. xix. 8), as only a Permissive Bill on this subject to the hard-hearted Jews. To continue it in modern times would be to open the door to license: it would be abused; everybody would be putting away his wife; there must therefore be no longer any such Permissive Bill, but a strict Law of indissoluble marriage. Well then, by the same reasoning, Milton argues, there ought to be a great many more strict laws, that nobody had ever thought of. "What more foul and common sin among us than drunkenness; and who can be ignorant that, if the importation of wine, and the use of all strong drink, were forbid, it would both clean rid the possibility of committing that odious vice, and men might afterwards live happily and healthfully without the use of those intoxicating liquors? Yet who is there, the severest of them all, that ever propounded to lose his sack, his ale, toward the certain abolishing of so great a sin; who is there of them, the holiest, that less loves his rich canary at meals, though it be fetched from places that hazard the religion of them

who fetch it, and though it make his neighbour drunk out of the same tun? While they forbid not, therefore, the use of that liquid merchandise, which forbidden would utterly remove a most loathsome sin, and not impair either the health or the refreshment of mankind, supplied many other ways, why do they forbid a Law of God, the forbidding whereof brings into an excessive bondage oft-times the best of men, and betters not the worse? He, to remove a national vice, will not pardon his cups, nor think it concerns him to forbear the quaffing of that outlandish grape in his unnecessary fulness, though other men abuse it never so much; nor is he so abstemious as to intercede with the magistrate that all manner of drunkenness be banished the Commonwealth: and yet, for the fear of a less inconvenience, unpardonably requires of his brethren in their extreme necessity to debar themselves the use of God's Permissive Law, though it might be their saving, and no man's endangering the more! Thus, this peremptory strictness, we may discern of what sort it is, how unequal and how unjust." Lest the meaning of this passage should be mistaken, we may point out that the Permissive Bill in the matter of drinking which it defends by implication is a Permissive Bill to drink and not a Permissive Bill to prevent drinking. The passage, therefore, cannot be quoted as Milton's testimony in favour of the so-called modern Permissive Bill. It is dead the reverse. And yet there is a lurking kindness in the passage towards a Permissive Bill of that sort, contemplated as possible, though yet unheard of; and, though Milton's principle of Liberty would have bound him to oppose it, he would perhaps have done so reluctantly. The idea of a country cleared of all its apparatus of Bacchus, and in which wine, or ale, or any other form of intoxicating fluid, ruby, amber, or crystal at its purest, should be unattainable by any mortal breathing on its surface, had, so far as his personal tastes and habits were concerned, no terrors for Milton. Had it been a matter of personal preference, instead of principle, he would gladly, I doubt not, have consented to a Permissive Bill in England to prevent

absolutely the drinking of intoxicating liquors, if it had been accompanied by a ratification of Moses's Permissive Bill in quite the contrary sense, by which the sobered nation should have the right of divorcing.

Nothing has been said yet about the few pages prefixed to the *Tetrachordon*, in which Milton dedicates the treatise, as he had done three already (the *Doctrine and Discipline of Divorce*, the *Buear Tract*, and the *Areopagitica*), to the Parliament of England. These pages, though put first, were doubtless written last. They are signed with the writer's name in full. In respect of biographical information, of the external kind at least, they are more interesting than the treatise itself. Most of the information, however, will now be sufficiently intelligible, if given in the form of mere extracts, without more of explanation than may be supplied by Italic headings:—

Thanks to Parliament for Past Favour and Protection:—"Although it be generally known how and by whom ye have been instigated to a hard censure of that former Book entitled *The Doctrine and Discipline of Divorce*—an opinion held by some of the best among Reformed writers without scandal or confinement, though now thought new and dangerous by some of our severe Gnostics, whose little reading and less meditating holds ever with hardest obstinacy that which it took up with easiest credulity—I do not find yet that aught, for the furious incitements that have been used, hath issued by your appointment that might give the least interruption or disrepute either to the Author or the Book. Which he who will be better advised than to call your neglect, or connivance at a thing imagined so perilous, can attribute it to nothing more justly than to the deep and quiet stream of your direct and calm deliberations, that gave not way either to the fervent rashness or the immaterial gravity of those who ceased not to exasperate without cause. For which uprightness, and incorrupt refusal of what ye were incensed to, Lords and Commons— though it were done to justice, not to me, and was a peculiar demonstration how far your ways are

different from the rash vulgar— besides those allegiance of oath and duty which are my public debt to your public labours, I have yet a store of gratitude laid up which cannot be exhausted; and such thanks perhaps they may live to be as shall more than whisper them to the next ages."

Punishment for Mr. Herbert Palmer:—"I shall here briefly single one of them [his detractors], because he hath obliged me to it—who, I persuade me, having scarce read the book, nor knowing him who writ it, or at least feigning the latter [!], hath not forborne to scandalize him, unconferred with, unadmonished, undealt with by any pastorly or brotherly convincement, in the most open and invective manner, and at the most bitter opportunity that drift or set design could have invented. And this, whenas the Canon Law, though commonly most favouring the boldness of their priests, punishes the naming or traducing of any person in the Pulpit, was by him made no scruple. If I shall therefore take licence by the right of nature, and that liberty wherein I was born, to defend myself publicly against a printed calumny, and do willingly appeal to those Judges to whom I am accused, it can be no immoderate or unallowable course of seeking so just and needful reparations. Which I had done long since, had not these employments which are now visible deferred me.—It was preached before ye, Lords and Commons, in August last, upon a special Day of Humiliation, that 'there was a wicked book abroad;' and ye were taxed of sin. that it was yet 'uncensured, the book deserving to be burnt;' and 'impudence' also was charged upon the Author, who durst 'set his name to it, and dedicate it to yourselves.' First, Lords and Commons, I pray to that God before whom ye then were prostrate so to forgive ye those omissions and trespasses which ye desire most should find forgiveness, as I shall soon show to the world how easily ye absolve yourselves of that which this man calls your sin, and is indeed your wisdom and your nobleness, whereof to this day ye have done well not to repent. He terms it 'a wicked book,' and why but 'for allowing other causes of Divorce than Christ and his Apostles mention;' and

with the same censure condemns of wickedness not only Martin Bucer, that elect instrument of Reformation, highly honoured and had in reverence by Edward the Sixth and his whole Parliament—whom also I had published in English, by a good providence, about a week before this calumnious digression was preached, so that, if he knew not Bucer then, as he ought to have known, he might at least have known him some months after, ere the Sermon came in print; wherein, notwithstanding, he persists in his former sentence, and condemns again of wickedness, either ignorantly or wilfully, not only Martin Bucer, and all the choicest and holiest of our Reformers, but the whole Parliament and Church of England in those best and purest times of Edward the Sixth. All which I shall prove with good evidence at the end of these Explanations. And then let it be judged and seriously considered with what hope the affairs of our Religion are committed to one among others [the Westminster Assembly] who hath now only left him which of the twain he will choose—whether this shall be his palpable ignorance, or the same 'wickedness' of his own Book which he so lavishly imputes to the writings of other men; and whether this of his, that thus peremptorily defames and attaints of wickedness unspotted Churches, unblemished Parliaments, and the most eminent Restorers of Christian Doctrine, deserve not to be 'burnt' first. And, if his heat had burst out only against the *opinion*, his wonted passion had no doubt been silently borne with wonted patience. Eut, since, against the charity of that solemn place and meeting, it served him further to inveigh opprobriously against the *person*, traducing him with no less than 'impudence,' only for setting his name to what he had written, I must be excused not to be so wanting to the defence of an honest name, or to the reputation of those good men who afford me their society, but to be sensible of such a foul endeavoured disgrace—not knowing aught, either in mine own deserts or the laws of this land, why I should be subject, in such a notorious and illegal manner, to the intemperancies of this man's preaching choler. ... But, if only to have writ

my name must be accounted 'impudence' how doth this but justify another, who might affirm, with as good warrant, that the late Discourse of *Scripture and Reason*, which is certain to be chiefly his [Palmer's] own draft, was published without a name out of base fear, and the sly avoidance of what might follow if the party at Court should hap to reach him! And I, to have set my name where he accuses me to have set it, am so far from recanting that I offer my hand also, if need be, to make good the same opinion which I there maintain by inevitable consequences drawn parallel from his own principal arguments in that of *Scripture and Reason*; which I shall pardon him if he can deny without shaking his own composition to pieces. The 'impudence,' therefore, since he weighed so little what a gross revile that was to give his equal, I send him back again for a phylactery to stitch upon his arrogance, that censures not only before conviction so bitterly without so much as one reason given, but censures the Congregation of his Governors to their faces, for not being so hasty as himself to censure."

[Footnote: The discourse *Scripture and Reason*, which Milton here ascribes to Palmer, charging him with cowardice in having published it anonymously, was a quarto pamphlet of 80 pages, published in April 1643, and purporting to be "by divers Reverend and Learned Divines." More fully its title was *Scripture and Reason Pleaded for Defensive Armes: or the whole Controversie about Subjects taking up Armes*. It was, in fact, an elaborate proof, from Scripture and Reason, of the right of the English Parliament and People to make war upon the King. Doubtless Milton had ascertained that Palmer was its chief author: hence, rather unnecessarily, his taunt. Palmer had also published more recently (Dec. 1644), but *with* his name, the First Part of a Book called *Memorials of Godliness and Christianity*. It was afterwards completed by two additional Parts, also with his name, Part II. containing, among other things, a set of aphorisms entitled "The character of a Christian in Paradoxes and seeming Contradictions." It had so chanced, however, that, before he had published

this Part II. of his *Memorials*, a surreptitious edition of the aforesaid Aphorisms had found its way into print, with no author's name attached (July 1645). Hence a strange result. Palmer died in 1647, *ætat* . 46; and in the following year—though his *Memorials*, containing the "Christian Paradoxes," were in circulation with his name—the "Christian Paradoxes" by themselves, as they had been published anonymously in the surreptitious edition of July 1645, were published as Lord Bacon's in a quarto volume of Bacon's "Remaines." The blunder was probably then detected; but it was again committed in 1730, when the "Paradoxes" were included in Blackburn's Edition of Bacon's works. From that date till 1864 the "Paradoxes" were printed as Bacon's, and, though suspected by some, yet often written about as Bacon's; but in the last-mentioned year the mistake was rectified, and Herbert Palmer reinstated in the authorship of the "Paradoxes," by the Rev. Alexander B. Grosart (See his little volume *Lord Bacon not the Author of "The Christian Paradoxes:"* see also Spedding's *Bacon*, VII. 289 *et seq.*.)]

Punishment for Dr. Featley:—"Some whose necessary shifts have long inured them to cloak the defects of their unstudied years and hatred now to learn under the appearance of a grave solidity—which estimation they have gained among weak perceivers—find the ease of slighting what they cannot refute, and are determined, as I hear, to hold it not worth the answering. In which number I must be forced to reckon that Doctor who, in a late equivocating Treatise plausibly set afloat against the *Dippers*, diving the while himself with a more deep prelatical malignance against the present State and Church Government, mentions with ignominy the 'Tractate of Divorce;' yet answers nothing, but instead thereof (for which I do not commend his *marshalling*), sets Moses also among the crew of his Anabaptists, as one who to a holy nation, the Commonwealth of Israel, gave laws 'breaking the bonds of marriage to inordinate lost' These are no mean surges of blasphemy—not only 'dipping' Moses the Divine Lawgiver, but

dashing with a high hand against the justice and purity of God Himself; as these ensuing Scriptures, plainly and freely handled, shall verify to the lancing of that old apostemated error. Him, therefore, I leave now to his repentance." [Footnote: Poor Dr. Featley died April 17, 1645 (*ætat* 65), only six weeks after this punishment of him was published. He had then been restored to liberty, for he died in his house at Chelsea. Milton knew him perfectly when he characterized him as one of those who had gained among "weak perceivers" a reputation for "grave solidity." And yet it is touching to have before me, as I now have in a copy of the Sixth Edition of the *Dippers Dipt* (1651), not only an elaborate portrait of Featley by the engraver Marshall, done in the ordinary way, but also an engraving representing the old man most painfully as he looked when lying in his winding-sheet before they put him into his coffin. Over the corpse are these words, "I have fought a good fight; I have finished my course; I have kept the faith;" and underneath is Featley's Latin Epitaph, telling that he was "Impugnator Papismi, Propugnator Reformationis," and "Theologus Insignis, Disputator Strenuus, Conscionator Egregius."—The word "*marshalling*" which I have italicised in the extract from Milton about Featley is, no doubt, a punning allusion to an engraving by Marshall in the *Dippers Dipt*, giving caricatures of different kinds of Sectaries, with a representation of men and women bathing in the centre (see *antè*, p. 188, Note).]

A fact which might have been guessed independently, but which it is interesting to have told us by Milton himself, is that there were some persons who were particularly courteous in acknowledging the ability shown in the Divorce treatise, the "wit and parts" of the author, his "elocution," and the more than ordinary "industry, exactness, and labour" he had expended on the subject, but who made all this only an excuse for not discussing his proposition seriously. On this class of his critics Milton is very severe. They were like those, he said, who used to get off from Socrates, when they could not resist the force of his truths, by saying that

Socrates could at any time make the worse cause seem the better. To what would the world, to what would England, come, if this habit of regarding all novelty as sophistry, of making the very ability and learning bestowed upon a doctrine an objection to the receipt of that doctrine, were to become general? "Ignorance and illiterate presumption," he says, "which is yet but our disease, will turn at length into our very constitution, and prove the hectic evil of this age." He hoped better of the Parliament; he hoped that they would not overlook the necessity of a change of the Law in this matter of Divorce. At all events he had done his part. "Henceforth, except new cause be given, I shall say less and less. For, if the Law make not a timely provision, let the Law, as reason is, bear the censure of those consequences which her own default now more evidently produces. And, if men want manliness to expostulate the right of their due ransom, and to second their own occasions, they may sit hereafter and bemoan themselves to have neglected, through faintness, the only remedy of their sufferings, which a seasonable and well-grounded speaking might have purchased them. And perhaps in time to come others will know how to esteem what is not every day put into their hands, when they have marked events, and better weighed how hurtful and unwise it is to hide a secret and pernicious rupture under the ill counsel of a bashful silence." Here Milton seems to be speaking for himself. He seems to be giving warning what he means to do without leave of the Law if the Law will not give him leave,

COLASTERION.

COLASTERION is Greek for "Punishment." Now Mr. Herbert Palmer and Dr. Featley had each had his *colasterion* in the Dedication prefixed to the TETRACHORDON. Three other persons were waiting for their turn of the lash. These were the anonymous author of that Answer to Milton's Treatise which had been published in the preceding November; [Footnote: See its

full title, *antè*, pp. 299-300.] the Rev. Mr. Joseph Caryl, the licenser of that Answer; and the famous Mr. Prynne. The COLASTERION, expressly so called, published by Milton on the same day with the TETRACHORDON, settled accounts with these gentlemen. It is a short tract of twenty-seven pages, without preface. Its full title was as follows;— "*Colasterion: A Reply to a Nameles Answer against 'The Doctrine and Discipline of Divorce,' Wherein the trivial Author of that Answer is discover'd, the licenser conferr'd with, and the Opinion which they traduce defended. By the former author, J. M.* Prov. xxvi. 5. Answer a Fool according to his folly, lest hee bee wise in his own conceit. *Printed in the year 1645.*"

First for Mr. Caryl. What was *his* offence? It was that, not content with merely licensing the anonymous answer to Milton, he had become godfather to it by expressing the license thus:—

"To preserve the strength of the Marriage-bond and the Honour of that estate against those sad breaches and dangerous abuses of it which common discontents (on this side Adultery) are likely to make in unstaidd minds and men given to change, by taking in or grounding themselves upon the opinion answered and with good reason confuted in this Treatise, I have approved the printing and publishing of it.—November 14, 1644. Joseph Caryl."

Now Caryl was not a nobody. He was one of the Assembly of Divines, and in that Assembly was tending by this time to the side of the Independents. He was also Lincoln's Inn preacher, had published some sermons, and was known to be engaged on an exposition of the Book of Job; which attained at length, when it was published (1648-66), the vast dimensions of twelve quarto volumes. [Footnote: Lowndes's Bibliographer's Manual, by Bohn: Art. *Caryl*; and Wood's Athenæ, III. 979—983.] He was about four years older than Milton; who thus "confers with" him:—

Punishment for Mr. Caryl:-"A Licensor is not contented now to give his single "Imprimatur," but brings his chair into the title-leaf; there sits and judges up or judges down what book he pleases. If this be suffered, what worthless author, or what cunning printer, will not be ambitious of such a stale to put off the heaviest gear?—which may in time bring in round fees to the Licensor, and wretched mis-leading to the people. But to the matter. He approves 'the publishing of this Book, to preserve the strength and honour of Marriage against those sad breaches and dangerous abuses of it.' Belike then the wrongful suffering of all these sad breaches and abuses in marriage to a remediless thralldom is 'the strength and honour of Marriage!' A boisterous and bestial strength, a dishonourable honour, an infatuated doctrine, worse than the *salvo jure* of tyrannizing which we all fight against! Next he saith that 'common discontents make these breaches in unstaidd minds and men given to change.' His words may be apprehended as if they disallowed only divorce for 'common discontents in unstaidd minds,' having no cause but a 'desire for change;' and then we agree. But, if he take all discontents 'on this side adultery' to be common, that is to say, not difficult to endure, and to affect only 'unstaidd minds,' it might administer just cause to think him the unfittest man that could be to offer at a comment upon Job, as seeming by this to have no more true sense of a good man in his afflictions than those Edomitish friends had, of whom Job complains, and against whom God testifies his anger. Shall a man of your coat, who hath espoused his flock, and represents Christ more in being the true husband of his congregation than an ordinary man doth in being the husband of his wife—and yet this representment is thought a chief cause why marriage must be inseparable—shall this spiritual man, ordinarily for the increase of his maintenance, or any slight cause, forsake that wedded cure of souls that should be dearest to him, and marry another and another; and shall not a person wrongfully afflicted, and persecuted even to extremity, forsake an unfit, injurious, and pestilent mate, tied only by a civil

and fleshly covenant? If you be a man so much hating change, hate that other change; if yourself be not guilty, counsel your brethren to hate it; and leave to be the supercilious judge of other men's miseries and changes, that your own be not judged. The reasons of your licensed pamphlet, you say, 'are good.' They must be better than your own then . . . Mr. Licenser . . . you are reputed a man discreet enough, religious enough, honest enough—that is, to an ordinary competence in all these. But now your turn is to hear what your own hand hath earned ye, that when you suffered this nameless hangman to cast into public such a despiteful contumely upon a name and person deserving of the Church and State equally to yourself, and one who hath done more to the present advancement of your own tribe than you or many of them have done for themselves, you forgot to be either honest, religious, or discreet." [Footnote: In 1645, according to Wood (Ath. III. 979), Mr. Caryl was appointed to the living of St. Magnus near London Bridge. It is probably with this readiness of his to leave one congregation and wed another that Milton twits him. Evidently Milton would not spare an Independent, any more than a Presbyterian or Prelatist, who had given him offense.]

The punishment for Mr. Prynne is milder, and it comes in incidentally at the very beginning of the *Colasterion*:—

Punishment for Mr. Prynne:—"After many rumours of confutations and convictions forthcoming against *The Doctrine and Discipline of Divorce*, and now and then a bye-blow from the Pulpit, feathered with a censure, strict indeed, but how true more beholding to the authority of that devout place which it borrowed to be uttered in than to any sound reason which it could oracle,—while I still hoped, as for a blessing, to see some piece of diligence or learned discretion come from them—it was my hap at length, lighting on a certain parcel of *Queries* that seek and find not, to find not seeking, at the tail of 'Anabaptistical,' 'Antinomian,' 'Heretical,' 'Atheistical'

epithets, a jolly slander called '*Divorce at Pleasure*.' [Footnote: See the quotation from Prynne's "Queries" antè, pp. 298-9.] I stood a while and wondered what we might do to a man's heart, or what anatomy use, to find in it sincerity; for all our wonted marks every day fail us, and where we thought it was we see it is not—for alter and change residence it cannot sure. And yet I see no good of body or of mind secure to a man for all his past labours, without perpetual watchfulness and perseverance, whenas one above others [*i.e.* Prynne] who hath suffered much and long in the defence of Truth shall, after all this, give her cause to leave him so destitute, and so vacant of her defence, as to yield his mouth to be the common road of Truth and Falsehood, and such falsehood as is joined with the rash and heedless calumny of his neighbour. For what book hath he ever met with, as his complaint is, 'printed in the city,' maintaining, either in the title or in the whole persuance, '*Divorce at Pleasure*?' 'Tis true that to divorce upon extreme necessity, when, through the perverseness or the apparent unaptness of either, the continuance can be to both no good at all, but an intolerable injury and temptation to the wronged and the defrauded, to divorce then there is a book that writes it lawful. And that this law is a pure and wholesome national law, not to be withheld from good men because others likely enough may abuse it to their pleasure, cannot be charged upon that book, but must be entered a bold and impious accusation against God himself, who did not for this abuse withhold it from his own people. It will be just, therefore, and best for the reputation of him who in his *Subitanes* hath thus censured, to recall his sentence. And if, out of the abundance of his volumes, and the readiness of his quill, and the vastness of his other employments, especially in the great Audit for Accounts, he can spare us aught to the better understanding of this point, he shall be thanked in public, and what hath offended in the book shall willingly submit to his correction — provided he be sure not to come with those old and stale suppositions, unless he can take away clearly what that discourse hath urged against

them, by one who will expect other arguments to be persuaded the good health of a sound answer than the gout and dropsy of a big margent, littered and overlaid with crude and huddled quotations."

But it is the anonymous author of the pamphlet which Mr. Caryl had licensed that comes in for the most ferocious and protracted punishment. On the evidence of the pamphlet itself one can see that he was some very insignificant person, not worth Milton's while on his own account, but only because Milton wanted to toss and gore somebody publicly for a whole hour, by way of deterring others.

The Answerer begins by announcing that he is first to show what the Doctrine or Discipline of Divorce really is, then to give some reasons "why a man may not put away his wife for indisposition, unfitness, or contrariety of mind, although manifested in much sharpness," and finally to reply to the arguments to the contrary brought forward in Milton's book. Nine pages having sufficed for the first two divisions, the remaining thirty-five are devoted to Milton. They are dull and plodding, the punctuation and expression showing that the author was ill-educated and little accustomed to write; and, from the frequent use of scrivener- like or attorney-like phrases and illustrations, one soon comes to conjecture the pamphlet to have been written by some one in a small way of law-business. Occasionally there is a little hit of personal reference, proving that the writer knew something about Milton and his reputed habits. Thus, speaking of Milton's complaint of a wife "to all due conversation inaccessible," he says, "It is true, if every man were of your breeding and capacity, there were some colour for this plea; for we believe you to count no woman to due conversation accessible as to you, except she can speak Hebrew, Greek, Latin and French, and dispute against the Canon Law as well as you, or at least be able to hold discourse with you. But other gentlemen of good quality are content with fewer and meaner endowments, as you know well enough." Sometimes he

criticises Milton's phraseology. "The rankest politician," Milton had said in one of his sentences; on which this is the comment: "Is this the fine language that your book is commended for? Good your worship, look a little more upon your rhetoric in this one piece, shall I say of nonsense? However, I am sure it is contrary to all laws and customs of speaking. 'Rankest politician!' Wonderful!" Milton's phrase describing a dull woman as "an image of earth and phlegm" likewise attracts notice. "We confess," he says, "this is something of a sad case; but yet I believe you speak but hyperbolically (as they use to say): for women are usually more than earth and phlegm; they have many times spirit enough to wear the breeches, if they meet not with a rare wit to order them. I wonder you should use such phrases: I know nor hear of maids or women that are all earth and phlegm, much less images of earth and phlegm. If there be any such, yet you need take no thought for them; there are enough dull enough to own them; and, for yourself or any other who desire them, there are spirited dames enough who are something besides mere images of earth and phlegm." Here is a specimen of the argumentation:—"Suppose you should covenant with a man at Hackney that he should dwell in your house at Aldersgate Street, and you in requital should dwell in his house at Hackney, for a time: I doubt not but your main end in this your covenant was your own solace, peace, refreshing. Well, but suppose, when you came there, the Cavaliers or other soldiers should trouble you, and should be quartered there; who, peradventure, if they did not quite put you out, yet would lie in your most pleasant chamber, best situate for your solace, peace, and refreshing, and divers other ways would annoy you, by means whereof you could not enjoy that pleasure and delight which you intended in your covenant when you changed houses with the other. Think you in this case it would be lawful or accepted on by the other party if now you should come to him and say 'Sir, I covenanted for your house at Hackney for my own refreshing, comfort, and solace; but I am disturbed of it, I do not enjoy the end of my covenant: give

me my own house again, and go you and live there.' He would tell you, and so he might justly, 'Stay, Sir; take your own fortune; a bargain is a bargain; you must even stand to it.'" Sometimes the writer thinks he will rebuke sharply. Thus:—"This is a wild, mad, and frantic Divinity, just like to the opinions of the maids of Aldgate [some Antinomian young women that had been making themselves notorious]. 'Oh,' say they, 'we live in Christ and Christ doth all for us: we are Christed in Christ and Godded in God, and at the same time that we sin here we, joined to Christ, do justice in him.' ... Fie, fie, blush for shame, and publish no more of this loose Divinity." But the choicest bit shall come last. Criticising the conclusion of a passage in Milton's treatise, the language of the first portion of which is pronounced "too sublime and angelical for mortal creatures to comprehend it," the Answerer declares, "This frothy discourse, were it not sugared over with a little neat language, would appear so immeritous, so contrary to all humane learning, yea truth and common experience itself, that all that read it must needs count it worthy to be burnt by the hangman."

Milton's first glance at the anonymous pamphlet, he tells us, had shown him the sort of person he had to deal with. He could be no educated man, for in the very first page of his pamphlet, where he quotes Greek and Hebrew words, he misspells them. This was no serious crime in itself; only a man falsely pretending to know a language would do worse! "Nor did I find this his want of the pretended languages alone, but accompanied with such a low and homespun expression of his mother-English all along, without joint or frame, as made me, ere I knew further of him, often stop and conclude that this author could for certain be no other than some mechanic." It was singular also that, while the Second Edition of the *Doctrine and Discipline of Divorce* had been out for months before the publication of this Answer, only the First Edition was referred to in the Answer. This, indeed, had enabled Milton to find out who the Answerer was, and the whole history of his pamphlet. For, in the course of the

preceding summer, he had been amused by hearing that there was in the press, half printed, an Answer to the First Edition of his Divorce Book, concocted by a committee of heads, in the centre of whom was—"let the reader hold his laughter," he says, and hear the story out—"an actual serving-man." At least, he *had* been a serving-man, waiting at table, cleaning trenchers, and the like; but he was ambitious of rising in the world, and had turned Solicitor. Zeal for public morality, or some farther ambition for literary distinction, had put it into his head to answer the First Edition of Milton's treatise; and, taking into his confidence one or two raw young Divines of his acquaintance, he had actually composed something, and sent it to the press. Milton had resolved that, if the thing did appear, he would leave it unnoticed. For some months, during which it had been lying unfinished in the press, he had quite dismissed it from his mind. But lo! here it was at length, stitched and published—this precious composition of the Serving-man turned Solicitor. Not quite as it had come from his pen, however! A Divine of note—no other, in fact, than Mr. Caryl himself, the Licenser—had looked over the thing, and "stuck it here and there with a clove of his own calligraphy to keep it from tainting." This, and Caryl's approbation prefixed, had rather altered the state of matters; and Milton had resolved that, when he had leisure for a little recreation, his man of law "should not altogether lose his soliciting."

Nor does he. Never was poor wretch so mauled, so tumbled and rolled, and kept on tumbling and rolling, in ignominious mire. Milton indeed pays him the compliment of following his reasonings, restating them in their order, and quoting his words; but it is only, as it were, to wrap up the reasoner in the rags of his own bringing, and then kick him along as a football through a mile of mud. We need not trouble ourselves with the reasonings, or with the incidental repetitions of Milton's doctrine to which they give rise; it will be enough to exhibit the emphasis of Milton's foot administered at intervals to the human bundle it is propelling. "I mean not

to dispute Philosophy with this Pork." he says near the beginning; "this clod of an antagonist," he calls him at the next kick; "a serving-man both by nature and function, an idiot by breeding, and a solicitor by presumption," is the third propulsion; after which we lose reckoning of the number of the kicks, they come sometimes so ingeniously fast. "Basest and hungriest inditer," "groom," "rank pettifogger," "mere and arrant pettifogger," "no antic hobnail at a morris but is more handsomely facetious;" "a boar in a vineyard," "a snout in this pickle," "the serving-man at Addlegate" (suggested by 'the maids at Aldgate'), "this odious fool," "the noisome stench of his rude slot," "the hide of a varlet," "such an unswilled hogshead," "such a cock-brained solicitor;" "not a golden, but a brazen ass;" "barbarian, the shame of all honest attorneys, why do they not hoist him over the bar and blanket him?"—such are a few of the varied elegancies. Two or three of them break the bounds within which modern taste permits quotation. "I may be driven," he says in the end, "to curl up this gliding prose into a rough Sotadic, that shall rime him into such a condition as, instead of judging good books to be burnt by the executioner, he shall be readier to be his own hangman. So much for this nuisance." After which, as if feeling that he had gone too far, he begs any person dissenting from his Doctrine, and willing to argue it fairly, not to infer from this *Colasterion* that he was displeased at being contradicted in print, or that he did not know how to receive a fair antagonist with civility. Practically, however, I should fancy that, after the *Colasterion*, most people would be indisposed to try the experiment of knowing what Milton meant by being civil to an antagonist.

BOOK III.

April 1645-August 1646.

***HISTORY.*—SIXTEEN MONTHS OF THE NEW MODEL, AND OF THE LONG PARLIAMENT AND WESTMINSTER ASSEMBLY CONTINUED.—BATTLE OF NASEBY AND ITS CONSEQUENCES: EPISODE OF MONTROSE IN SCOTLAND: FLIGHT OF THE KING TO THE SCOTS AND CONCLUSION OF THE CIVIL WAR.—PROGRESS OF THE TOLERATION CONTROVERSY AND OF THE STRUGGLE BETWEEN THE PRESBYTERIANS AND THE INDEPENDENTS—LONDON AND LANCASHIRE PRESBYTERIANIZED.**

***BIOGRAPHY:*—RETURN OF MILTON'S WIFE: HIS REMOVAL FROM ALDERSGATE STREET TO BARBICAN: FIRST EDITION OF HIS POEMS: THREE MORE SONNETS: CONTINUED PRESBYTERIAN ATTACKS ON MILTON: HIS RETALIATION: TROUBLES OF THE POWELL FAMILY.**

CHAPTER I.

**COMPOSITION OF THE NEW MODEL, AND VIEW OF THE WORK LYING BEFORE IT
—FIRST ACTIONS OF THE NEW MODEL—CROMWELL RETAINED IN COMMAND:
BATTLE OF NASEBY: OTHER SUCCESSES OF THE NEW MODEL—POOR
PERFORMANCE OF THE SCOTTISH AUXILIARY ARMY—EPISODE OF MONTROSE
IN SCOTLAND—FAG-END OF THE WAR IN ENGLAND, AND FLIGHT OF THE KING
TO THE SCOTS—FALLEN AND RISEN STARS.**

By the Ordinance for New-Modelling the Parliamentary Army, passed February 15, 1644-5, and by the Self-Denying Ordinance, which followed April 3, 1645, excluding all members of either House from commands in the New Army, the prospects of the war had been completely altered. From these dates people everywhere were talking of the *New Model*, and what it was likely to accomplish, the only difference being that the bulk of the Parliamentarians expected great things from it, while the Royalists, and perhaps also those of the Parliamentarians who resented the removal of Essex from the chief command, and their own removal from commands under him, regarded the whole experiment rather sneeringly, and ridiculed it as the *New Noddle*. Which of these sets of prophets were in the right will appear presently; meanwhile it is desirable that we should know as exactly as possible what the *New Model* or *New Noddle* really was.

**COMPOSITION OF THE NEW MODEL, AND VIEW OF THE
WORK LYING BEFORE IT.**

The following is an account of the organization of the New Model, with a list of its chief Officers when it was first organized:—

TOTAL ARMY ESTIMATED AT 22,000.

Commander-in-Chief: SIR THOMAS FAIRFAX (*ætat.* 33).

Second-in-Command (for the present): PHILIP SKIPPON, with the rank of Serjeant Major-General.

Chief of Ordnance: THOMAS HAMMOND. He was a brother of the Royalist Divine and King's faithful Chaplain, Dr. Henry Hammond (see Vol. II. 519 and 526, Note); and the split of the Hammond family into Royalists and Parliamentarians was much noticed.

Scout-Master-General: LEONARD WATSON, "originally a goldsmith in Lincoln."

Chaplain to the Commander-in-Chief: Mr. EDWARD BOWLES.

Secretary to the Commander-in-Chief: JOHN RUSHWORTH.

I. FOOT = 14,400.

These consisted of twelve Regiments, each of 1,200 men, and each divided into ten Companies, The officers of the Regiments, respectively, were as follows:—

1. (The Commander-in-Chief's Regiment):—Colonel SIR THOMAS FAIRFAX; Lieutenant-Colonel JACKSON; Major COOKE; and seven Captains.

2. (The Serjeant-Major-General's Regiment):—Colonel PHILLIP SKIPPON; Lieutenant-Colonel FRANCIS; Major ASHFIELD; and seven Captains.

3. Colonel HOLBORN; Lieutenant-Colonel COTTESWORTH; Major SMITH; and seven Captains.

4. Colonel CRAWFORD or CRAYFORD, succeeded soon by young Colonel ROBERT HAMMOND (*ætat.* 24), a nephew of the chief of the Ordnance and of the Royalist Dr. Henry Hammond; Lieutenant-Colonel ISAAC EWER (reported to have been "a serving man"); Major SAUNDERS; and seven Captains.

5. Colonel BARCLAY; Lieutenant-Colonel EWINS (INNES?); Major COWELL; and seven Captains.

6. Colonel EDWARD MONTAGUE (*ætat.* only 20: he was cousin of the Earl of Manchester, being son of the Earl's brother, Sir Sidney Montague, who had been M.P. for Hunts, but was now dead); Lieutenant-Colonel ELLIS GRIMES; Major KELSEY; and seven Captains.

7. Colonel ALDRIDGE; Lieutenant-Colonel WALTER LLOYD (who succeeded to the Colonelcy); Major READ; and seven Captains.

8. Colonel JOHN PICKERING (of the family of the Pickerings, of Tichmarsh, Northamptonshire, "a little man," quite young, and cousin of the boy who was to be known as the poet Dryden); Lieutenant-Colonel JOHN HEWSON (originally a shoemaker in Westminster, but who had risen from the ranks by his valour); Major JUBBS; and seven Captains, one of whom was a Captain AXTELL.

9. Colonel FORTESCUE; Lieutenant-Colonel BULSTRODE; Major RICHBELL; and seven Captains.

10. Colonel RICHARD INGOLDSBY (*ætat.* 23: his father was Sir Richard Ingoldsby of Lentenborough, and his mother was a cousin of Cromwell's); Lieutenant-Colonel FARRINGTON; Major PHILIP CROMWELL (a cousin of Cromwell's: second son of his uncle Sir Philip Cromwell); and seven Captains.

11. (Artillery) Colonel THOMAS RAINSBOROUGH (once "a skipper of Lynn," who had seen service at sea); Lieutenant-Colonel OWEN; Major DOVE; and seven Captains.

12. (Artillery) Colonel RALPH WELDEN, a veteran; whose under-officers I have not ascertained, save that one of them seems to have been ROBERT LILBURNE (brother of John Lilburne), who in time succeeded to the Colonelcy.

II. HORSE AND DRAGOONS = 7,600.

The Horse (6,600) consisted of eleven Regiments, each of 600, divided into six troops; the Dragoons consisted of one Regiment (1,000), in ten troops of 100 each. They were officered thus:—

1. (The Commander-in-Chiefs Regiment):—Colonel SIR THOMAS FAIRFAX; Major JOHN DESBOROUGH (a brother-in-law of Oliver Cromwell's: married to his younger sister, Jane Cromwell); and four Captains, one of them a Captain BERRY.

2. Colonel MIDDLETON; Major RICHARD NORTON; and four Captains.

3. Colonel THOMAS SHEFFIELD (a younger son of the aged Earl of Mulgrave, and uncle of Sir Thomas Fairfax); Major SHEFFIELD (the Colonel's son or brother?); and four Captains.

4. Colonel CHARLES FLEETWOOD (a young man of a good Buckinghamshire family, and well known to Milton from his childhood, as Milton himself tells us: he had served first as a private trooper in the Earl of Essex's guards, and had rapidly distinguished himself); Major THOMAS HARRISON (formerly an attorney's clerk in London); and four Captains.

5. Colonel EDWARD ROSSITER; Major TWISTLETON; and four Captains.

6. Colonel VERMUYDEN (a Dutchman, who resigned after a month or two of good service, and returned to Holland, where his father, Sir Cornelius Vermuyden, was engaged in engineering works); Major HUNTINGDON (who succeeded Vermuyden in the Colonelcy); and four Captains.

7. Colonel ALGERNON SIDNEY (famous long afterwards for his death: now *ætat.* 23: third son of the Earl of Leicester: had served as a Captain in Manchester's army—he and his eldest brother, Philip, Lord Lisle, being more actively Parliamentarian than their father); Major ALFORD; and four Captains.

8. Colonel SIR ROBERT PYE, junior (son of the Sir Robert Pye who had been M.P. for Woodstock, as colleague with Speaker Lenthall, since the beginning of the Long Parliament, and was now a conspicuous man in the House); Major MATTHEW TOMLINSON (said to have been "a gentleman-usher to a lady"); and three Captains, one of whom was HENRY IRETON (a B.A. of Oxford, and barrister of the Middle Temple, *ætat.* 35,

who had taken to soldiering: described as of "a melancholic, reserved, dark nature," and great ability).

9. Colonel EDWARD WHALLEY (rumoured by the Royalists to have been "a woollen-draper or petty merchant in London," who had got into debt and migrated to Scotland for a time; but certainly of a Nottinghamshire family of mark, and certainly a cousin of Cromwell's; recently also known for excellent service under Cromwell as Major in Cromwell's own regiment); Major BETHELL; and four Captains.

10. Colonel RICHARD GRAVES; Major ADRIAN SCROOP; and four Captains.

11. Colonel Sir MICHAEL LIVESEY, Bart., of Co. Kent; Major SEDASOUE; and four Captains.

Regiment of Dragoons: Colonel JOHN OKEY (originally, it is said, a "drayman," then "stoker in a brewhouse at Islington," and next a "most poor chandler in Thames Street;" said also to have been "of more bulk than brains;" but certainly of late an invincible dragoon-officer); Major WILLIAMS or GWILLIAMS; and eight Captains.

N.B. Some of the above-mentioned officers (such as Colonels Middleton, Livesey, Holborn, and Barclay) do not seem to have taken the places assigned them in the New Model. Others therefore had to be brought in by Fairfax almost at once. Among these were:—1. As *Colonels of Horse*: Colonel BUTLER; the Hon. JOHN FIENNES (third son of Viscount Saye and Sele); CHARLES RICH (he had been nominated in the Commons for a Colonelcy Feb. 28 and March 1, 1644-5, and rejected both times; but must have been appointed soon afterwards). 2. As *Colonels of Foot*: EDWARD HARLEY (whose Lieutenant-Colonel was THOMAS PRIDE, a foundling who had been a drayman); JOHN LAMBERT (who had been a Colonel

under Fairfax in the North); SIR HARDRESS WALLER (*ætat.* 41, cousin of Sir William Waller). [Footnote: In the Lords Journals, date March 18, 1644-5, there is a list of the intended officers of the New Model as then agreed to, after a month or two of choosing, between the Lords and the Commons. This has been my chief authority; but it has been aided and checked by the *Anglia Rediviva* of the New Model chaplain Sprigge (pp. 8-10 *et seq.* of Oxford Edition of 1854) and by Rushworth (VI.13-17 *et seq.*). Mr. Clements Markham's account of the New Model Army in his life of Fairfax (pp. 188-202) has likewise been of use, though it does not profess to be more than general, nor to be calculated for the very commencement of the New Model. Some particulars of information respecting persons I have taken from Mr. Markham; others I have had to gather miscellaneously from the Parliamentary Journals, Wood, Carlyle's *Cromwell*, Walker's Hist. of Independency, Reprint of *The Mystery of the Good Old Cause* (a satirical tract of 1660) at end of Vol. III. of Parl. Hist., &c. I have had to rectify the spellings of some of the names in the original Lords Journals list, and to find out the Christian names where possible. It is not always so easy as one might suppose to ascertain the Christian name of a man who may have been of considerable note in his day and have left his mark.]

Such was the famous New Model. [Footnote: In the New Model the reader ought to note three things:—(1) The comparative youth of the officers. There *were* veterans; but the Commander-in-chief was but thirty three years of age, and most of the Colonels were still younger. (2) The blending of different ranks of society in the body of the officers. The majority were decidedly from the ranks of the aristocracy and gentry—peers' younger sons, knights, sons of knights and country-gentlemen, &c.; but in men like Skippon, Colonel Okey, Colonel Rainsborough, Lieutenant-Colonel Ewer, Lieutenant-Colonel Hewson, Lieutenant-Colonel Pride, Major Harrison, and Major Tomlinson, there was a conspicuous sprinkling of stout representatives of a lower and more popular stratum. The Royalists,

and even the Presbyterians, fastened on this fact and exaggerated it. All the army, from the general to the meanest sentinel, could not muster £1,000 a year in lands among them; so it was laxly said. (3) Another fact, of which the Presbyterians and the Royalists, and other anti- Cromwellians, afterwards made the most, was the unusual number of relatives of Cromwell that there were among the officers. To those who regarded the whole invention and organization of the New Model as a deep design of Cromwell's craft, with Fairfax as his temporary tool, this fact was blackly significant. But, apart altogether from that theory, the fact *is* important, and ought to be borne in mind. There was not only much of the Cromwell spirit in the New Model from the first, but a large leaven of the Cromwell *kin*.] Where was it first to be employed? This was an anxious question; and, to understand it, we must have the map of England before us as it appeared to the Parliamentarians in the early months of 1645.

England then, in the eyes of the Parliamentarians, consisted of four regions, as follows:—(I.) The *Pre-eminent and assured Parliamentary Region*. This included London and Middlesex, with the Eastern and South-Eastern counties at their back, or immediately flanking them north and south—viz.: Herts, Essex, Cambridge, Bedford, Northamptonshire, Hunts, Suffolk, Norfolk, and almost all Lincoln, together with Kent, Surrey, and Sussex. All this sweep of country was now thoroughly in the possession of the Parliament, and constituted the region whence it drew its main strength. The services of the New Model were not required in it; for it was the main feeder and support of the New Model. (II.) *The Northern Counties*. Here, beyond the Humber and Mersey, or perhaps even beyond the Trent, the cause of Parliament was also in the ascendant. Since Marston Moor Royalism lingered here only in a few towns and garrisons. In Cumberland, Carlisle still held out for the King, and the siege of this city, together with the preservation of the North generally, was the work now specially expected from the Scottish auxiliary army. In Yorkshire, the castles of

Skipton, Pontefract, Scarborough, Sandal, and Bolton, and, in Lancashire, Latham House and Greenhaugh Castle, kept up the King's flag, but were surrounded by local Parliamentary besiegers. On the whole there was no reason for anxiety now about the North within itself; and the hope was that the Scottish Army and other stray forces in those parts might be able soon to move southwards and co-operate with the New Model. (III.) *The South-West and Mid-Southern Counties*. Here the King was vastly in the ascendant. Cornwall was absolutely his; Devon was wholly his, with the exception of the port of Plymouth, still held for the Parliament, but besieged by the King's forces; Somerset was wholly his, save that Taunton was holding out for Parliament in great distress; all Wilts was his, except Malmesbury Castle; in Dorset he was nearly master, though the three port-towns of Poole, Lyme, and Weymouth (Melcombe) had Parliamentary garrisons; and even in Hants, where the Parliament divided the power with him more equally, he held the two strong places of Winchester and Basing. The King's field-forces in all this southwestern and southern region were extremely numerous, apart from the garrisons, and were commanded by Lords Goring and Hopton, Sir Richard Greenville, Major-General Sir John Digby, and others. With them was the Prince of Wales, now fifteen years of age. He had been recently sent from Oxford into those parts, with a view both to his own safety and to the effects of his influence. (IV.) *The English Midlands, backed by Wales*. Here also the King was firmly established. Here it was that, with the Princes Rupert and Maurice as his chiefs in command, he directly faced the massed Parliamentarianism of London and the Eastern Counties. In Bucks and Berks, indeed, his forces and those of the Parliament overlapped each other. Aylesbury, the chief town in Bucks, was the Parliament's, while Boarstall House, ten or twelve miles east from it, was the King's; and, similarly, the east of Berks, with Windsor, Reading, and Abingdon, were mainly held by Parliament, while in the same county the King had some strong garrisons. Oxford, however, the county of the

King's head-quarters, was wholly in his possession, with the exception of Henley on the Berks border. To the north of Oxfordshire was Warwickshire, all the King's except Warwick Castle, though bordered by Northamptonshire, which was all the Parliament's; and farther north were the shires of Leicester, Nottingham, and Stafford, in each of which, though the Parliament held the county- town, the King had countervailing strongholds. Then, at the back of this row of central counties facing the massed Parliamentarianism of the East, there were the shires of Gloucester, Worcester, Salop, and Chester, in which Parliament had scarcely any hold; that of Hereford, in which it had no hold; and the whole bulk of Wales, in which the two castles of Pembroke and Montgomery were the sole Parliamentarian specks. Leaning back upon Wales, and the English counties of the Welsh border, the King, from Oxford, with its flanking counties north and south, fronted Parliament very formidably. [Footnote: In this survey of the state of the war over all England in April 1645, I have availed myself of the introductory Tables in Sprigge (pp. xi-xvi, Edit. 1854), repeated in Rushworth, VI. pp. 18-22. The geographical information in the Tables is, however, somewhat confused, and I have recast it.]

FIRST ACTIONS OF THE NEW MODEL.

Clearly, it was against one or other of the two last-mentioned regions that the New Model must first show its prowess. Which of the two should it be?

The West had many claims. Besides the importance of relieving the besieged Parliamentary garrisons in that direction, there was the necessity of taking precaution against the possible advance from it of Goring's forces towards London. Accordingly, even before the Self-Denying Ordinance had become law, Cromwell and Sir William Waller had been ordered on a special expedition into the West (February 27), "for relief of Melcombe and

the garrisons and places adjacent, and for preventing and breaking the enemy's levies and recruits." Cromwell's men were very reluctant to go on this expedition, probably because they did not like to serve with Waller. But, Cromwell having managed them, he and Waller did go into the West as far as Dorset and Somerset, and, after as much success as was possible, returned about the middle of April. The Self-Denying Ordinance was then law; and on the 22nd of April Cromwell was at Windsor, to resign his command, and take leave of Fairfax.

Suddenly, on the following morning, a message from the Committee of the two Kingdoms came to Windsor ordering Fairfax to employ Cromwell on a new enterprise of pressing moment. [Footnote: This "Committee of the two Kingdoms" originally appointed in Feb. 1643-4, after the coming in of the Scots Auxiliary Army (see list of members *antè*, p. 41) is found very active after the organization of the New Model—a quorum always sitting in Derby House, Canon Row, Westminster, close to Parliament (the house in which Pym had died) and sending orders, &c., to Fairfax. Manchester, Saye and Sele, Wharton, and Vane the younger, of the English members of the Committee, and Loudoun and Sir Archibald Johnstone of the Scottish members, signed most such orders and letters in May and June 1645 (see Rushworth, VI. 27-33).] He was to ride with all haste into Oxfordshire, to intercept, if possible, a convoy of 2,000 horse, which Prince Rupert was to detach from Worcester, then the head-quarters of the King's main army, for the purpose of fetching off the King and his Artillery-train from Oxford. As the forty days of grace fixed by the Self-Denying Ordinance did not expire till the 13th of May, Cromwell would have time to perform this service before the exact day on which his resignation was required! In fact, he performed it thoroughly in two days. On the 24th of April he met the enemy, consisting of the Queen's own regiment, the Earl of Northhampton's, and Lord Wilmot's, at Islip Bridge, routed them utterly, slew many, and took about 200 prisoners and 400 horses, besides the

Queen's standard. Not only so; but, some of the fugitives having taken refuge in Bletchington House, then commanded by Colonel Thomas Windebank, son of the ex-Secretary, with a garrison of 200 men, Cromwell had summoned the house to surrender, and, though a defence might easily have been made, Windebank had actually surrendered that same night, giving up all his stores.

Such were the first actions of the New Model; and, as they carried joy into the Parliamentary heart, so in the King's quarters they caused rage and vexation. Windebank was tried by court-martial for cowardice, and, notwithstanding his connexions, was shot to death in the court of Merton College, Oxford (May 3). [Footnote: For facts in the preceding three paragraphs see *Commons Journals*, Feb. 27 and 28, and March 4 and at 20, 1644-5; Sprigge's *Angliæ Reduc.* (1854) 11-13; Carlyle's *Cromwell* (ed. 1857) I. 163-167; Rushworth, VI. 23-25. We had a glimpse of young Windebank at an earlier period, when he little foresaw this end. See Vol. II. p. 70.]

CROMWELL RETAINED IN COMMAND: BATTLE OF NASEBY: OTHER SUCCESSES OF THE NEW MODEL.

On the 1st of May, while Cromwell was still absent in Oxfordshire, the main body of the New Model, under Fairfax and Skippon, was on the move in another direction. It had seemed on the whole that it would be of most use in the South-West. In especial, there was great anxiety for the relief of Taunton. But, when Fairfax had got as far as into Dorset, on his way to Taunton, he was overtaken by an Ordinance of the two Houses, in conformity with a resolution of the Committee of both Kingdoms (May 6), recalling him and Skippon, with the bulk of the New Model, for service, after all, in the Mid-English Counties. For Goring had carried much of the South-Western force thither, and had joined Rupert and Maurice, so that

there was a great stir of something new intended about Oxford and round the King's person. Accordingly, detaching only a brigade of some 7,000, consisting of Welden's, Lloyd's, Fortescue's, and Ingoldsby's foot-regiments, and Graves's horse-regiment, with some other district forces, all under Welden's chief command, to push on for the relief of Taunton, Fairfax wheeled his main force back north-east, and, after forced cross-country marching, found himself (May 14) at the well-known Newbury, on his way to Oxford. By this time he knew, if he had not known it before, that he was to have the help of other generalship under him than that of Skippon. If it had ever been really intended that Cromwell should retire from the Army with the others, according to the strict terms of the Self-Denying Ordinance, the successes at Islip Bridge and Bletchington House had put it into all men's minds to inquire how the Army could get on without him. The Army itself had but one opinion on the subject. For many months past he had been the darling of the entire force, so that, whenever he appeared unexpectedly on the field, there were shouts of "*A Cromwell! A Cromwell!*" Willingly or unwillingly, Parliament had to defer to this sentiment; and on May 10, three days before the expiry of the forty days of grace fixed by the Self-Denying Ordinance, a special ordinance of the Commons continuing Cromwell in his employment for forty days longer, i.e. till June 22, was agreed to by the Lords. There was murmuring among the Presbyterians and the friends of the late generals, Essex, Manchester, and Waller; but the thing was inevitable. Nay, when Fairfax and other officers of the New Model, not content with the vague and brief additional use of Cromwell's services thus offered, petitioned distinctly for his appointment as Lieutenant-general, with chief command of the horse, that also had to be conceded. The petition was read in the Commons and agreed to, June 10; on which day a letter was drawn up, signed by the Speaker, and despatched to Fairfax, "to desire him, if he shall so think fit, to appoint Lieutenant-general Cromwell to command the

horse during so long time as the House shall dispense with his absence."
[Footnote: Commons Journals of days named.]

Within four days after the formal appointment of Cromwell to the Lieutenant-generalship under Fairfax there came that great action of the year which more than justified the appointment. The circumstances were these:—While Fairfax had been on the march towards Taunton, the King, with his Artillery-train, &c., had left Oxford (May 7) and taken the field with his main army of the Midlands under Prince Rupert. Cromwell, who had remained in Oxfordshire, kept hovering after him and watching his movements. These were uncertain; but it appeared as if he were tending northwards, to relieve Chester, then besieged by a Parliamentary force from Lancashire and Cheshire under Sir William Brereton. [Footnote: It is to be remembered that, apart from the New Model, there were still English Parliamentary garrisons, and field forces, here and there, doing necessary district work. Sir William Brereton, M.P. for Cheshire, had had in his hands much of the management of the war in those parts; and as he was still useful, Parliament had exempted him as well as Cromwell, from the same operation of the Self Denying Ordinance, extending his command (May 12) for forty days. The same extension, on the same day, was given to Sir Thomas Middleton, M.P. for Denbighshire, at work on the Welsh border, but with a reserve that, after the forty days his command was to be resigned to a Colonel Mitton Common Journal.] When, therefore, Fairfax had wheeled back from his South-Western expedition, and was once more in the Midlands, the question arose whether he and his New Model should besiege Oxford in the King's absence, or whether they should pursue his Majesty and fight him in the field. The siege of Oxford seemed the preferable course; and, accordingly (May 22), Fairfax, now rejoined by Cromwell, sat down before that city. Soon, however, it became questionable whether the war-committee had judged rightly. For discomfiting the King's design for the relief of Chester the Parliament had trusted to the Scottish Army, aided

by the English Parliamentarians of the Northern Counties, and by a band of the New Model horse despatched north under Colonel Vermuyden. But the Scots, out of humour with the New Model altogether, had been backward or careless; the King, through Warwickshire, Worcestershire and Shropshire, had made his way into Cheshire; his approach had relieved Chester; he had then turned eastwards into Staffordshire, had crossed that county, entered Leicestershire, and (May 30) taken the town of Leicester by storm. He was thus on the very verge of the Parliament's own faithful Association of the Eastern Counties, and might be expected to break into that Association. Immediately, therefore, the plans of the Parliament were changed. On the very day on which the news of the storming of Leicester arrived, Cromwell was off from Oxford into the Eastern Counties, and on the 5th of June, Fairfax, with the rest of the New Model, raised the siege of Oxford and marched north. June 13, he was in the north-west of Northamptonshire, within sight of the King's main force, which had advanced out of Leicestershire into that county. Early on that morning, while he was holding a council of war, Cromwell came in, fresh from his work in the Association, and welcomed as the man most wanted. He at once assumed his Lieutenant-generalship; and on the next day, Saturday, June 14, 1645, there was fought the great BATTLE OF NASEBY. There had been nothing like it since Marston Moor. The King's Army, commanded by the King in person, Prince Rupert, Prince Maurice, Sir Jacob Astley (now Lord Astley), Lord Barnard Stuart, Sir George Lisle, Sir Marmaduke Langdale, and Colonel Howard, was utterly defeated and ruined. The prisoners taken amounted to 5,000, and included many of the King's chief officers; all the artillery was captured, and much baggage, including the King's cabinet, with his private papers and correspondence. These papers were speedily published by Parliament under the title of *The Kings Cabinet Opened*; and, by the revelations they made of the King's duplicity, his absolute subjection to the Queen, and his secret dealings with the Irish and Papists, they did as much

to discredit his cause as the battle itself. [Footnote: Sprigge, 21-51; Rushworth, VI. 29-48; and Carlyle's *Cromwell*, I. 169-176.—Here is a note from the Stationers' Registers, July 9 (1645): "Robert Bostock entered for his copy, by special command, under the hands of Mr. Henry Parker and Mr. Thomas May, Secretaries, and Mr. Miller, Warden, a Book entitled *The King's Cabinet Opened, or certain Packets of Secret Letters and Papers, written by the King's own hand, taken in his Cabinet at Naseby Field*." For an account of Naseby battle and review of previous accounts, see Markham's *Fairfax*, 213- 230.]

Though Fairfax was voted everywhere the brave and worthy commander-in- chief at Naseby, and though Skippon had behaved like himself and kept his post after having been seriously wounded, much of the credit of the battle, as of that of Marston Moor, went to Cromwell. He had commanded the Horse on the right wing, and his success there against the enemy's left had been effectual and decisive. Moreover, in the whole marshalling of the battle, and in what had prepared for it, people saw, or thought they saw, Cromwell's influence. The horse regiments engaged were, on the right wing, Fairfax's Life-guards, Cromwell's Ironsides, Colonel Whalley's, Colonel Sir Robert Pye's, Colonel Rossiter's, Colonel Sheffield's, and Colonel Fiennes's, and, on the left wing, Colonel Butler's, Colonel Vermuyden's (now Huntingdon's), Colonel Rich's, Colonel Fleetwood's, and another; and the foot regiments engaged were Fairfax's own, Skippon's, Colonel Sir Hardress Waller's, young Colonel Pickering's, young Colonel Montague's, young Colonel Hammond's, Colonel Rainsborough's, and Lieutenant-colonel Pride's. Fairfax in person, with Skippon, commanded the foot or main body; Cromwell, as we have seen, commanded the right wing; but who commanded the left wing? It was the Colonel of that horse-regiment which we have left anonymous. And who was he? No other than that HENRY IRETON, the melancholic, reserved lawyer of the Middle Temple, who was only a Captain in Sir Robert Pye's regiment at the

formation of the New Model three months before (*antè*, p. 327). He had been recently promoted to a Colonelcy, and on the eve of the battle Fairfax had made him Commissary-general of Horse, with command of the left wing, over the heads of the other Colonels. This was at Cromwell's request, who had reason to know Ireton, and had special confidence in him. Nor did the result belie Cromwell's judgment. Ireton's wing, indeed, had given way and fled under the shock of Rupert's charges, but not till Ireton himself had had his horse shot under him, received two wounds, and been taken prisoner in a counter-attack. Rescued by the turn of the battle, he came in for a share of the praise. [Footnote: Rushworth, VI. 42, 43. Carlyle's *Cromwell*, I. 176.—It came to be an assertion with the Presbyterians, thought I do not believe they believed it themselves, that Cromwell's military fame had been gained by systematic puffing on the part of the Independents. "The news books taught to speak no language but Cromwell and his party, and were mute on such actions as he and they could claim no share in," wrote Clement Walker a year or two after Naseby (*Hist. of Indep.* Part I, 30). We have seen Baillie writing rather in the same way after Marston Moor.]—When the news of the victory reached London, the Parliament, amid their various rejoicings, and their voting of a day of public thanksgiving to God, a jewel worth 500_l_ to Fairfax, and the like, did not forget one practical inference from what had happened. That same day (June 16) the Commons signified to the Lords their desire that Cromwell's exceptional Lieutenant-generalship should be prolonged; and, accordingly, on June 18 it was agreed by both Houses "That Lieutenant-general Cromwell shall continue as Lieutenant-general of the Horse, according the established pay of the Army, for three months from the end of the forty days formerly granted to him." This extended his command under Fairfax only to Sept. 22; but, that we may not have to refer to the matter again, we may here state that, before that date arrived, the term of his service was stretched for other four months, with an understanding in fact that it was to be

indefinitely elastic. [Footnote: Commons and Lords Journals of days named.]

Naseby proved the beginning of the end. It was the shivering of the central mass of Royalism in England, and the subsequent events of the war may be regarded as only so much provincial addition, and tedious pursuit of the fragments. A sketch of these events will suffice.

The beaten King having fled, with the wrecks of his army, back through Leicestershire, Staffordshire, and Shropshire, into Wales, and the Midlands thus being safe, Fairfax was at liberty to transfer his victorious New Model to the part of England where its presence was then most sorely needed, i.e. the West and South-West.—The brigade which he had detached, under Colonel Welden, for the relief of Taunton, when recalled himself from his former march westward, had successfully accomplished that object (May 12), but only itself to be shut up in Taunton by a second and severer siege by Goring's forces, returned into those parts. By way of a temporary arrangement for action in the West in these circumstances, Parliament had by an ordinance, May 24, entrusted a separate command in chief of whatever forces could be raised for the West to Major-general Edward Massey, an officer well acquainted with that part of the country, and distinguished by his previous services in it throughout the war. [Footnote: The Ordinance is in the Lords Journals under the date named.] But Massey was to hold the separate command only till Fairfax could assume it in person. Accordingly, when Fairfax, after seeing the King fairly chased away from Naseby, turned once more southwards, and, by rapid marches through Warwickshire and Gloucestershire, arrived in Wilts (June 27), the conduct of the war in the South-West became the regular work of the New Model, with Massey as but an auxiliary. The progress was rapid. July 3, Taunton was relieved the second time, and Goring's forces obliged to retire: July 10, Lamport Battle was fought, in which Goring was defeated with great loss;

July 23, Bridgewater was taken by storm; July 30, the city of Bath surrendered. Thus in one month the King's power was broken all through Somersetshire. August sufficed for the same result in Dorsetshire, where Sherborne Castle was battered and stormed on the 15th. On the 10th of September came the splendid success of the storming of Bristol. This great city was defended by Prince Rupert, who had made his way again into the South-West for the purpose, and who had assured the King that he would hold it to the last. Nevertheless, after a siege of eighteen days, he was glad to surrender—himself and his men marching out with their personal baggage and the honours of war, but leaving all the ordnance, arms, and ammunition in the city as the spoil of the Parliament. [Footnote: Young Major Bethell was mortally wounded in the storming of Bristol; and here is a touching little incident of the same action from Mr. Markham's *Life of Fairfax*. "Among the slain (in one of the attacks) was a young officer named Pugsley, who was buried by Fairfax's order, with military honours in a field outside the fort. He was just married, and his wife survived him for 60 years. On her death, in 1705, she was buried, according to her expressed wishes, without a coffin, in her wedding dress, and with girls strewing flowers and fiddlers playing before her. In this way she was borne to her final resting place by the side of her husband, and the place is still known as Pugsley's Field."] It was the greatest blow the King had received since Naseby; and he was so enraged with Rupert that he revoked all his commands, and ordered him to leave England. Rupert, however, having gone to the King, a reconciliation was brought about; and, though he held no high command again during the rest of this war, he remained in the King's service. The surrender of Bristol was followed by that of Devizes Castle (Sept. 23) and that of Laycock House (Sept. 24) in Wilts, and by the storming of Berkeley Castle (Sept. 23) in Gloucestershire. [Footnote: This summary is chiefly from Sprigge; where, in addition to the text there is an

excellent chronological table of actions and sieges: one or two of the facts are from Clarendon, and Carlyle's *Cromwell*.]

POOR PERFORMANCE OF THE SCOTTISH AUXILIARY ARMY.

Let us leave the West and South-West for a time, and turn to the North.—As late as May and June 1645, Baillie, then back in London and again on duty in the Westminster Assembly, had still been hoping great things from his beloved Scottish Army in the North. Since the taking of Newcastle (Oct. 1644), indeed, the services of this army had been mainly dumb-show, so that the English had begun to despise it and to ask whether it was worth its wages. Baillie's hope, however, was that, somehow or other after all, it would be the Scottish Army, and not this New Model, the invention of the Independents and the Sectaries, that would perform the finishing action, and reap the final credit. What then were his thoughts when the news of Naseby reached him? "This accident," he writes, June 17, 1645, three days after the Battle, "is like to change much the face of affairs here. We hope the back of the Malignant [Royalist] Party is broken; [but] some fears the insolence of others, to whom alone the Lord has given the victory of that day." The news of the taking of Carlisle at last by the Scots (June 28) may have helped to revive his spirits; but that also may have been an indirect consequence of Naseby, and the subsequent small success of the Scots during those months when Fairfax, Cromwell, and the New Model were succeeding so splendidly in the South- West, again threw Baillie into despondency. The taking of Pontefract Castle (July 21) and of Scarborough (July 25) in Yorkshire, and finally that of Latham House in Lancashire, after its two years' defence by the Countess of Derby (Dec. 4), were the work of the English Parliamentarians of the Northern Counties; and all the Scots did was very disappointing. From Carlisle they did, indeed, march south, to keep a watch on the King's movements in the Midlands after Naseby, and,

after hovering about in those parts, they laid siege to the town of Hereford, by the desire of Parliament (July 31). But early in September they raised the siege, Leven pleading that he had not received the promised support and was unable to remain. With such grumblings and complaints of arrears in their pay, the Scots returned northwards, through the mid-counties, to Yorkshire, the English Parliament thinking worse and worse of them, but still speaking them fair, and desiring to retain them for minor service somewhere in England while the New Model was doing the real work. [Footnote: Rushworth, VI. 118-127; and Baillie, II. 286-316.]

THE EPISODE OF MONTROSE IN SCOTLAND.

It was not only the small performance and continued grumbling of the Scottish Auxiliary Army in England that had begun, by September 1645, to disgust the English Parliamentarians with their friends of the Scottish nation. In Scotland itself there had been an extraordinary outbreak of Royalism, which had not only perturbed that country throughout, but had latterly advanced to the very borders of England, threatening to connect itself with all of English Royalism that was not already beaten, and so undo the hard work and great successes of the New Model. Who that has read Scott's *Legend of Montrose* but must be curious as to the facts of real History on which that romance was founded? They are romantic enough in themselves, and they form a very important episode in the general history of the Civil War.

Our last sight of the young Earl of Montrose was in November 1641, when the King, during his visit to Scotland, procured his release, and that of his associates in the Merchiston House Compact, from their imprisonment in Edinburgh Castle (Vol. II. p. 307). The life of the young Earl had then been given back to him, but in what circumstances! Not only had all his

expectations from the Merchiston House Compact been falsified, expectations of the overthrow of the Argyle supremacy in Scotland, and of the establishment of a new government for the King on an aristocratic basis; but, by the King's own acts, Argyle was left doubly confirmed in the supremacy, with the added honour of the Marquisate, and the Presbyterian clergy dominant around him. Such a Scotland was no country for Montrose. Away from Edinburgh, therefore, on one or other of his estates, in Perthshire, Forfarshire, Stirlingshire, or Dumbartonshire, and only occasionally in the society of his wife and his four little boys, we see him for some months, thrown back moodily upon himself, hunting now and then, corresponding with his friends Napier and Keir, but finding his chief relief in bits of Latin reading, dreams of Plutarch's heroes, and the writing of scraps of verse. Thus:—

"An Alexander I will reign,
And I will reign alone;
My thoughts did evermore disdain
A rival on my throne:
He either fears his fate too much,
Or his deserts are small,
That dares not put it to the touch
To gain or lose it all."

Alas! in a Scotland abject under a squint-eyed Argyle, with Loudoun and Warriston for his lieutenants, and a thousand rigid and suspicious black-coats giving the law singly in their pulpits and parishes, and thundering it collectively from their Assemblies, what room or opening was there for any such Plutarchian life? It was little better in England, from which anyhow he was debarred. He would go abroad. Were there not great strifes in Europe, struggles other than Presbyterian, into which a young Scottish Earl might fling himself, to win a glorious name, or die sword in hand? [Footnote:

Napier's *Montrose* (1856), 371-3, and Appendix to Vol. I. p. xxxiv.; Wishart's *Memoirs of Montrose* (translation of 1819 from the original Latin of 1648), Preface, p. vi.] So till August 1642, when the King raised his standard for the Civil War in England. Then there was again hope. The King remembered the fiery young Scottish Earl, and communications had passed between them. Montrose went into England; saw the Queen immediately after her landing at Burlington Bay (February 1642- 3); and pressed upon her his views as to the way in which Scotland might be roused in the King's behalf. He seemed to her Majesty but a brave young enthusiast; and, the Marquis of Hamilton having hastened from Scotland to counteract him, and to promise that he himself and his brother Lanark would keep Scotland firm to the King's interest without that open rising against the Argyle government which Montrose recommended, the cooler counsel had prevailed, Hamilton and Montrose had thus gone back into Scotland together, Hamilton with the new title of Duke (April 12, 1643) to encourage him in his difficult labour, and Montrose disappointed, watched, and in fresh danger. Again, however, as months had passed on, the chance of some such bold enterprise for Montrose as he himself had projected had become more likely. How ill Hamilton and Lanark had succeeded in *their* milder undertaking we already know. They had not been able to check the tide of sympathy in Scotland with the English Parliamentarians; they had not been able to prevent that sudden Convention of the Scottish Estates which Argyle thought necessary in the crisis (June 1643); they had not been able to prevent the cordial reception there of the Commissioners from the English Parliament, nor the offer of armed aid from Scotland to the cause of the Parliament on the terms of Henderson's *Solemn League and Covenant* (August 1643). Montrose, who had foreseen this result, and had been trying in vain to engage the Marquis of Huntley and other Scottish nobles in an independent coalition for the King, had not gone near the Convention, but, while it was yet deliberating in Edinburgh, had taken care to be again in

England, on his way to the King with his budget of advices. A Scottish Covenanting army would certainly invade England in the cause of the Parliament: let their Majesties be in no doubt about that! He had himself the best reason to know the fact; for had not the Covenanting chiefs been secretly negotiating with him, and offering to forgive him all the past, if only now he would return to his allegiance to the Covenant, and accept the Lieutenant-generalship of their projected army under the Earl of Leven? If he had seemed to dally with this temptation, it had only been that he might the better fathom the purposes of the Argyle government, and report all to their Majesties! No service, however eminent, under Argyle, or with any of the crafty crew of the Covenant, was that on which his soul was bent, but a quite contrary enterprise, already explained to the Queen, by which the Argyle government should be laid in the dust, Scotland recovered for the King, and all her resources put at his disposal for the recovery of his power in England also! Hitherto their Majesties had not seen fit to confide in him, but had trusted rather the Hamiltons, with their middle courses and their policy of compromise! Were their Majesties aware what grounds might be shown for the belief that these Hamiltons, with all their plausibilities and fair seeming, were in reality little better than traitors, who had wilfully mismanaged the King's affairs in Scotland for interests and designs of their own? So, through the autumn of 1643, had Montrose been reasoning with the King and Queen, as yet to little purpose. But, when the autumn had passed into winter, and there had gathered round the King, in his headquarters at Oxford, other refugee Scottish Royalists, driven from their country by the stress of the new League and Covenant, and bringing intelligence that Leven's invading army was actually levied and ready to march, then the tune of the Royal mind did somewhat change. The Duke of Hamilton and his brother Lanark, coming to Oxford, December 16, to clear themselves, were immediately arrested on charges suggested by Montrose and the other Scots at Court. To wait trial on these charges, the Duke was

sent as a prisoner to Pendennis Castle; whence he was removed to St. Michael's Mount in the same county of Cornwall. Lanark, escaping from his arrest at Oxford, took refuge for a time in London, was cordially received there by the Scottish Commissioners and the English Parliamentarians, and returned thence to Scotland, converted by the King's treatment of him into an anti-Royalist and Covenanter to all temporary appearance, whatever he might still be at heart. [Footnote: Baillie, II. 73, 74; Wishart, 31-47; Napier, 373-384; Burnet's *Hamiltons* (edit. 1852), 280-349. Burnet gives the charges against the Hamiltons, with their answers, at length, and narrates events anxiously in their behalf.]

The Hamiltons being out of the way, Montrose obtained a better hearing for his plan. In the main, it was that the King should openly commission him as his Majesty's Lieutenant in Scotland, and furnish him with some small force with which to cut his way back into the heart of the country, and there rouse the elements, whether Lowland or Highland, that were ready for revolt against the Argyle supremacy. In connexion with this, however, there was the scheme of an Irish contingent. Was not the Earl of Antrim then with his Majesty at Oxford—that very Randal Macdonnell, Earl of Antrim, whom it had been proposed, as far back as 1638, to send secretly into Argyleshire with a force of Irishry, to aid the King in his first strife with the Covenanters (Vol. II. p. 23)? Six years had elapsed since then; but there was still extant in Antrim, as the head of the great Scoto-Irish clan of the Macdonnells and Macdonalds, that power for mischief in Scotland which consisted in the hereditary feud between this clan and all the family of the Campbells. Let Antrim go back to Ireland, raise a force of his Macdonnells and Macdonalds and whatever else, and make a landing with these on the West Scottish coast; and then, if the time could be so hit that Montrose should be already in Scotland as his Majesty's commissioned Lieutenant, might there not be such a junction of the two movements that the Argyle government would be thrown into the agonies of self-defence, and the recall

of Leven's army from England would be a matter of immediate necessity? So much at least might be surely anticipated; but Montrose promised still larger results. Listening to his arguments, iterated and reiterated at Oxford through January 1643- 4, the King and Queen hardly knew what to think. Montrose's own countrymen round about the King were consulted. What thought Traquair, Carnwath, Annandale, and Roxburgh? They would have nothing to do with Montrose's plan, and talked of him as a would-be Hotspur. Only a few of the younger Scottish lords at Oxford, including Viscount Aboyne (the Marquis of Huntley's second son) and Lord Ogilvy (the Earl of Airlie's son and heir), adhered to him. Among the King's English counsellors, of course, there were few that could judge of his enterprise. One of these, however, whom a kindred daring of spirit drew to Montrose, helped him all he could. This was the young Lord Digby. Chiefly by his means, the King's hesitations were at length overcome. Late in January, Antrim, created a Marquis for the occasion, did go over to Ireland, vowing that, by the 1st of April 1644, he would land so many thousands of men in Scotland with himself at their head; and on the 1st of February 1643-4, or when Leven's Scottish army had been ten days in England, a commission was made out appointing Montrose Lieutenant-general of all his Majesty's forces in Scotland. It had been proposed to name him Viceroy and Commander-in- chief; but he had himself suggested that this nominal dignity should be conferred rather on the King's nephew, Prince Maurice. For his own work in Scotland the subordinate commission, with some small force of volunteer Scots and English troopers to assist him in displaying it, would in the meantime be quite enough. [Footnote: Wishart, 47-52; Baillie, II.73, 74, and 164; Clarendon, 533-537; Rushworth, V. 927; and Napier, 385-388.]

Leaving Oxford, with a slender retinue of Scots, among whom were Aboyne and Ogilvy, Montrose went to York, and thence to Durham, where he attached himself to the Marquis of Newcastle, then engaged in resisting

the advance of Leven's army. From that nobleman he implored, in the King's name, some troops for his convoy into Scotland. Newcastle, himself ill-supplied, could spare him but 200 horse, with two brass field-pieces. There was an accession from the Cumberland and Northumberland militia, so that the band with which Montrose entered Scotland (April 13, 1644) was about 1,000 strong. Hardly, however, had he entered Scotland when most of the English mutinied and went back. With what force he had left he pushed on to Dumfries, surprised that town into surrender, and displayed his standard in it with a flourish of trumpets. But nothing more could be done. Of Antrim's Irish contingent, which was to have been in the West Highlands by the 1st of April, there were no tidings; and Scotland all to the north of Dumfries was full of Covenanters now alarmed and alert. To try to dash through these at all hazards, so as to lodge himself in the Highlands, was his thought for a moment; but he had to give up the attempt as impossible. From Dumfries, therefore, he backed again, most reluctantly, into the North of England, pursued by the execration of all Presbyterian Scotland, and by a sentence of excommunication pronounced against him in the High Church of Edinburgh. [Footnote: Wishart, 52-55, Napier, 385-397, Rushworth, V. 927-9.]

"Montrose's foolish bravado is turned to nothing," Baillie was able to write early in May 1644. This was the general impression. True, in recognition of his bravery, a patent for his elevation to the Marquisate had been made out at Oxford. It was fitting that, if ever he did come to represent the King in Scotland, it should be a Marquis of Montrose that should contend with the Marquis of Argyle. But would there ever be such a contest? Few can have entertained the belief besides Montrose himself. For some weeks after his retreat into England we hear of him as mingling actively in the war in Northumberland and Durham, taking and pillaging Morpeth, and the like; then we hear of him hurrying southwards to join Prince Rupert in his effort to raise the siege of York, but only to meet the

Prince beaten and fugitive from the field of Marston Moor (July 2). "Give me a thousand of your horse; only give me a thousand of your horse for another raid into Scotland," was the burthen of his talk with Rupert. The Prince promised, and then retracted. Though a younger man than Montrose, he had more faith in what he could himself do with a thousand horse in England than in what any Scot could do with them in Scotland. And so, though Lord Digby, Endymion Porter, and some others still spoke manfully for Montrose with the King, he is found back in Carlisle, late in July, with only his little band of Scottish adherents. Then ensued the strangest freak of all. With this very band he set out again distinctly southwards, as if all thought of entering Scotland were over, and nothing remained but to rejoin the King at Oxford. The band, however, had been but two days on their march when they found that their leader had given them the slip, and left the duty of taking them to Oxford to his second, Lord Ogilvy. He himself had returned to Carlisle. It was barely known that he had done so when he mysteriously disappeared (Aug. 18). No one, except Lord Aboyne, whom he had left in Carlisle with certain secret instructions, could tell what had become of him; but it was afterwards remembered, like the beginning of a novel, that on such an autumn day three persons had been seen riding from Carlisle towards the Scottish border, two gentlemen in front, one of whom had a club foot, and the third behind, as their groom, mounted on a sorry nag, and leading a spare horse. The two gentlemen were a Colonel Sibbald and a lame Major Rollo, intimate friends of Montrose, and the supposed groom was Montrose himself. [Footnote: Wishart, 56-64; Napier 396-413; Rushworth, V. 928]

There was a distinct cause for Montrose's entry into Scotland in this furtive manner. The Scottish Parliament (a regular Parliament, and not an informal Convention of Estates like that of the previous year) had met on the 4th of June, with Argyle, Loudoun, and twenty other Peers, more than forty lesser Barons, and about the same number of Commissioners from

Burghs, present at the opening. On the 12th of July, when they were approaching the end of their business, there had been this occurrence: "Five several letters read in the House from divers persons of credit, showing of the arrival of fifteen ships, with 3,000 rebels in them, from Ireland, in the West Isles, with the Earl of Antrim's brother, and the sons of Coll Kittoch, and desiring the States with all expedition to send the Marquis of Argyle there by land, with some ships likewise by sea, and powder and ammunition." On subsequent days there were corrections of this intelligence, bringing it nearer to the exact fact. That fact was that Antrim's invasion of Scotland, arranged by him with the King and Montrose at Oxford six months before, had at last come to pass, not indeed in the shape of that full Irish army with Antrim himself in command which had been promised, but in the shape of a miscellany of about 2,000 Irish and Scoto-Irish who had landed at Ardnamurchan in the north of Argyleshire under the command of a redoubtable vassal of Antrim's, called (and here, for Miltonic reasons, the name must be given in full) Alastair Mac Cholla-Chiotach, Mhic-Ghiollesbuig, Mhic-Alastair, Mhic-Eoin Chathanaich, *i.e.* Alexander, son of Coll the Left-Handed, son of Gillespie, son of Alexander, son of John Cathanach. This long-named Celt was already pretty well known in Scotland by one or other of the abbreviations of his name, such as Mac-Coll Mac-Gillespie, or Alaster Mac-Colkittoch, or Alexander Macdonald the younger of Colonsay. His father, Alexander Macdonald the elder, was a chief of the Scottish Island of Colonsay, off the Argyleshire coast, but nearly related by blood to the Earl of Antrim, professing himself therefore of the same race, kin, and religion as the Irish Macdonnells, and sharing their ancient grudge against the whole race of the Campbells. He had the personal peculiarity of being ambidexter, or able to wield his claymore with his left hand as well as with his right; and hence his Gaelic name of Coll Kittoch, or Coll the Left-Handed. The peculiarity having been transmitted to his son Alaster, it was not uncommon to distinguish the two as old

Colkittoch and young Colkittoch. The old gentleman had for some time been in durance in Edinburgh; but his sons had remained at large, and Alaster had been recently figuring in Antrim's train in Ulster, and acting for Antrim among the Irish rebels, with great repute for his bravery, and his huge stature and strength. Not inclined at the last moment for the command of the Scottish expedition himself, Antrim had done his best by sending this gigantic kinsman as his substitute. It was certainly but a small force, and most raggedly equipped, that he led; but, thrown as it was into the territories of King Campbell, and with a hundred miles of Highland glens before it, all rife and explosive with hatred to the name of Campbell, it might work havoc enough. So the Parliament in Edinburgh thought. On the 16th of July, or four days after the first rumour of the invasion, the Marquis of Argyle received a full commission of military command against the invaders, and left Edinburgh for the region of danger. [Footnote: Balfour's Annals, III. 215 *et seq.*; Napier, 416-7 and 504; Wishart, 67; Baillie, II. 217; Rushworth, V. 928. There is a curious, but confused, story of the wrongs which old Colkittoch and his family had received at the hands of Argyle in Walker's Hist. of Independency (1660), Appendix to Part I. pp. 3-6.]

This was what had caused Montrose's inexplicable restlessness about Carlisle through the latter part of July, and at length, on the 18th of August, his desperate plunge into Scotland in disguise, and with only two companions. By what route the three adventurers rode one does not know; but on the 22nd of August they turned up at the house of Tullibelton in Perthshire, near Dunkeld. It was the seat of Patrick Graham of Inchbrakie, a kinsman of Montrose. Received here by Inchbrakie himself, and by his eldest son, Patrick Graham the younger, locally known as "Black Pate," Montrose lay close for a few days, anxiously collecting news. As respected Scottish Royalism, the reports were gloomy. The Argyle power everywhere was vigilant and strong; no great house, Lowland or Highland, was in a mood to be roused. Only among the neighbouring Highlanders of Athole, or

North Perthshire, known to Montrose from his childhood and knowing him well, could he hope to raise the semblance of a force. All this was discouraging, and made Montrose more eager for intelligence as to the whereabouts of Colkittoch and his Irish. He had not long to wait. Since their landing at Ardnamurchan (July 8) they had been making the most of their time in a wild way, roving hither and thither, ravaging and destroying, taking this or that stronghold, sending out the fiery cross and messages of defiance to Covenanting Committees. They had come inland at length as far as Badenoch, the wildest part of Inverness-shire, immediately north of Athole and the Grampians; and there were reasons now why they should be inquiring as anxiously after Montrose as he was inquiring after them. For their condition was becoming desperate. The great clan of the Seaforth Mackenzies, north of Argyleshire, from whom they had expected assistance, had failed to give any; other clans refused to be led by a mere Macdonald of Colonsay; the fleet of vessels in which they had landed had been seized and burnt by Argyle; that nobleman was following them; and orders were out for a general arming for the Covenant north of the Grampians. Accordingly, Colkittoch, imagining that Montrose was still in Carlisle, had written to him there. The rude postal habits of those parts being such that the letters came into the hands of Black Pate, Montrose received them sooner than the writer could have hoped. His reply, dated from Carlisle by way of precaution, was an order to Macdonald to descend at once into Athole and make his rendezvous, if possible, at Castle Blair. [Footnote: Napier, 413-419; Wishart, 64-68; Rushworth, V. 928-9. I have had the satisfaction of rectifying a portion of the tale of Montrose's romantic adventure into Scotland as it is told by his biographers. Wishart distinctly makes him first hear of the landing of Colkittoch and his Irish *after* he had come into Scotland and was hiding about Tullibelton; and Mr. Napier's narrative conveys the same impression. But the idea is absurd. As the landing of Colkittoch and his Irish at Ardnamurchan on the 8th of July was known in

Edinburgh, and discussed in the Parliament there, on the 12th of the same month, it must have been well known about Tullibelton at that time too, or six weeks before Montrose appeared there; and the news must have reached Montrose about July 13 or 14, when he was yet in the North of England, and must have been, in fact, the cause of his resolution to make his way into the Highlands. It is possible, of course, that, after Montrose came to Tullibelton, he may have been uncertain for a time of Colkittoch's exact whereabouts; and there is a seemingly authentic anecdote to the effect that Montrose himself related that he first learnt that Colkittoch had broken into Athole by meeting in the wood of Methven a man running with a fiery cross to carry the dreadful news to Perth. A misconstruction of this anecdote, with inattention to dates, has led to the larger, and intrinsically absurd, hypothesis.]

A walk of twenty miles over the hills brought Montrose and Black Pate to the rendezvous. They found there a mixed crowd, comprising, on the one hand, the Irish, with a few Badenoch Highlanders, whom Colkittoch had brought with him, and on the other, the native Athole Highlanders, looking askance at the intruders, and, though willing enough to rise for King Charles, having no respect for an outlandish Macdonald from Colonsay. The appearance of Montrose put an end to the discord. He had put on the Highland dress, and looked "a very pretty man," fair-haired, with a slightly aquiline nose, grey eyes, a brow of unusual breadth, and an air of courage and command; but the Irish, noting his rather small stature, could hardly believe that he was the great Marquis. The wild joy of the Athole-men and the Badenoch-men on recognising him removed their doubts; and, amid shouts from both sides, Montrose assumed his place as Lieutenant-general for his Majesty, adopting the tall Macdonald as his Major-general. The standard was raised with all ceremony on a spot near Castle Blair, now marked by a cairn; and, when all was ready, the troops were reviewed. They consisted of about 1,200 Irish, with a following of women and children, and

1,100 Scottish Highlanders (Stuarts, Robertsons, Gordons, &c.). Artillery there was none; three old hacks, one of them for the lame Major Rollo, were the cavalry; money there was none; arms and ammunition were, for the most part, to seek, even clothing was miserably deficient. So began Montrose's little epic of 1644-5. He was then thirty- two years of age. [Footnote: Rushworth, V. 928-9; Napier, 419-422.]

It was the track of Mars turned into a meteor. Marches and battles, battles and marches: this phrase is the summary of the story. Flash the phrase through the Highlands, flash it through the Lowlands, for a whole year, and you have an epitome of this epic of Montrose and his triumph. Our account of the details shall be as rapid as possible.

Breaking forth southwards from Athole, to avoid Argyle's advance from the west, Montrose crossed the Tay, and made for Perth. Having been joined by his kinsman, Lord Kilpont, eldest son of the Earl of Menteith, Sir John Drummond, son of the Earl of Perth, and David Drummond of Maderty, he gave battle, at Tippermuir, near Perth, on Sunday, Sept. 1, 1644, to a Covenanting force of some 6,000 men, gathered from the shires of Perth and Fife, and under the command of Lord Elcho, the Earl of Tullibardine, Lord Drummond and Sir John Scot. The rout of the Covenanters, horse and foot, was complete. They were chased six miles from the field, and about 2,000 were slain. Perth then lying open for the victors, Montrose entered that town, and lie remained there three days, issuing proclamations, exacting fines and supplies, and joined by two of his sons, the elder of whom, Lord Graham, a boy of fourteen, accompanied him from that time. But movement was Montrose's policy. Recrossing the Tay, and passing north- eastwards, he came in sight of Dundee; but, finding that town too well defended, he pushed on, still north-east, joined on the way by the Earl of Airlie, and his two younger sons, Sir Thomas and Sir David Ogilvy, and came down upon Aberdeen. That city, too familiar with him in the days of

his Covenanting zeal, was now to experience the tender mercies of his Royalism. Defeating (Sept. 12) a Covenanting force of Forbeses, Erasers, and others, who opposed him at the Bridge of Dee under Lord Burleigh and Lord Lewis Gordon (third son of the Marquis of Huntley, and for the time on this side), he let his Irish and Highlanders loose for four days on the doomed Aberdonians. Then, as Argyle was approaching with a considerable army, and no reinforcement was forthcoming from Aberdeenshire and Banffshire, he withdrew west, into the country of the upper Spey. Thence again, on finding himself hopelessly confronted by a muster of Covenanters from the northern shires of Moray, Ross, Sutherland, and Caithness, he plunged, for safety, into the wilder Highlands of Badenoch, and so back into Athole (Oct. 4). Not, however, to remain there! Again he burst out on Angus and Aberdeenshire, which Argyle had meanwhile been traversing on behalf of the Covenant. For a week or two, having meanwhile despatched his Major-general, Macdonald, into the West Highlands to fetch what recruits he could from the clans there, he made it his strategy, with the small force he had left, to worry and fatigue Argyle and his fellow-commander the Earl of Lothian, avoiding close quarters with their bigger force, and their cannon and horse. Once at Eyvie Castle, which he had taken October 14, they did surprise him; but, with his 1,500 foot and 50 horse, he made a gallant stand, so that they, with their 2,500 foot and 1,500 horse, had no advantage. As much of this time as he could give was spent by him in the Marquis of Huntley's own domain of Strathbogie, still in hopes of rousing the Gordons. At length, winter coming on, and the distracted Gordons refusing to be roused, and Argyle's policy of private dealings with Montrose's supporters individually having begun to tell, so that even Colonel Sibbald had deserted him, and few people of consequence remained to face the winter with him except the faithful Ogilvies, Montrose, after a council of war held in Strathbogie, retired from that district (Nov. 6), again by Speyside, into savage Badenoch. But here, ere he could take any

rest, important news reached him. Argyle had certainly sent his horse into winter-quarters; but he had gone with all his foot to Dunkeld, whence the more easily to ply his craft of seduction among Montrose's trustiest adherents, the men of Athole. No sooner had Montrose heard this than, clambering the Grampian barrier between Badenoch and Athole, he brought his followers, by one tremendous night-march of twenty-four miles, over rocks and snow, down into the region in peril. He was yet sixteen miles off, when Argyle, bidding his men shift for themselves, fled from Dunkeld, and took refuge with the Covenanting garrison of Perth, on his way to Edinburgh. [Footnote: Wishart, 71-105; Napier, 426- 469; Rushworth, V. 929-931.]

Argyle's soldiering, it had been ascertained, was not the best part of him. He knew this himself, and, on his return to Edinburgh in the end of November, insisted on resigning his military commission. It was difficult to find another commander-in-chief; but at length it was agreed that the fit man was William Baillie, the Lieutenant-general, under Leven, of the auxiliary Scottish army in England. He had recently been in Edinburgh on private business, and was on his way back to England when he was recalled by express. Not without some misgivings, arising from his fear that Argyle would still have the supreme military direction, he accepted the commission. [Footnote: Baillie, II. 262: also at 416 *et seq.*, where there is an interesting letter of General Baillie to his namesake and kinsman.] Then Argyle went off to his own castle of Inverary, there to spend the rest of the winter.

It was time that Argyle should be at Inverary. Montrose, left in assured possession of his favourite Athole, had been rejoined by his Major-general, Mac-Colkittoch, bringing reinforcements from the Highland clans. There was the chief of Clanranald with 500 of his men; there were Macdonalds from Glengarry, Glencoe, and Lochaber; there were Stuarts of Appin,

Farquharsons of Braemar, Camerons from Lochiel, Macleans, Macphersons, Macgregors. What was winter, snow more or less upon the mountains, ice more or less upon the lakes, to those hardy Highlanders? Winter was their idlest time; they were ready for any enterprise: only what was it to be? On this point Montrose held a council of war. "Let us winter in the country of King Campbell," was what the Macdonalds and other clans muttered among themselves; and Montrose, who would have preferred a descent into the Lowlands, listened and pondered. "But how shall we get there, gentlemen? It is a far cry to Lochawe, as you know; how shall we find the passes, and where shall we find food as we go?" Then up spoke Angus MacCailen Duibh, a warrior from dark Glencoe. "I know," he said, "every farm in the land of MacCallummore; and, if tight houses, fat cattle, and clean water will suffice, you need never want." And so it was resolved, and done. From Athole, south-west, over hills and through glens, the Highland host moves, finding its way somehow—first through the braes of the hostile Menzieses, burning and ravaging; then to Loch Tay (Dec. 11); and so through the lands of the Breadalbane Campbells, and the Glenorchy Campbells, still burning and ravaging, till they break into the fastnesses of the Campbell in chief, range over Lorne, and assault Inverary. Argyle, amazed by the thunder of their coming, had escaped in a fishing-boat and made his way to his other seat of Roseneath on the Clyde; but Inverary and all Argyleshire round it lay at Montrose's mercy. And, from the middle of December 1644 to about the 18th of the January following, his motley Highland and Irish host ranged through the doomed domain in three brigades, dancing diabolic reels in their glee, and wreaking the most horrible vengeance. No one knows what they did. One sees Inverary in flames, the smoke of burning huts and villages for miles and miles, butcheries of the native men wherever they are found, drivings-in of cattle, and scattered pilgrimages of wailing women and children, with relics of the men amongst them, fugitive and starving in side glens and corries, where

even now the tourist shudders at the wildness. [Footnote: Rushworth, V. 930, 931; Baillie, II. 262; Wishart, 106-108; Napier, 470-473.]

The Scottish Parliament had reassembled for another Session on the 7th of January, without Argyle in it, but in constant communication with him; and about the same time General Baillie and a Committee of the Estates had gone to consult with Argyle at Roseneath. About the middle of the month they became aware that Montrose was on the move northward, out of Argyleshire by Lorne and Lochaber in the direction of the great Albyn chain of lakes, now the track of the Caledonian Canal. They knew, moreover, that directly ahead of him in this direction there was a strong Covenanting power, under the Earl of Seaforth, and consisting of the garrison of Inverness and recruits from Moray, Ross, Sutherland and Caithness. Evidently it was Montrose's intention to meet this power and dispose of it, so as to have the country north of the Grampians wholly his own. In these circumstances the arrangements of Baillie and Argyle seemed to be the best possible. Baillie, instead of going on to Argyleshire, as he had intended, went to Perth, to hold that central part of Scotland with a sufficient force; and Argyle, with 1,100 seasoned infantry, lent him by Baillie, and with what gathering of his own broken men he could raise in addition, went after Montrose, to follow him along the chain of lakes. Of this army Argyle was to be nominally commander; but he had wisely brought over from Ireland his kinsman Sir Duncan Campbell of Auchinbreck, a brave and experienced soldier, to command under him. The expectation was that between Seaforth, coming in strength from the north end of the trough of lakes, and Argyle, advancing cautiously from the south end, Montrose would be caught and crushed, or that, if he did break eastward out of the trough between them, he would fall into the meshes of Baillie from his centre at Perth. [Footnote: Balfour's Annals, III. 246 *et seq.*; Wishart, 109, 110; Napier, 475-477; and General Baillie's letter to his cousin Robert Baillie, in Baillie's Letters, II. 417t.]

Then it was that Montrose showed the world what is believed to have been his most daring feat of generalship. On the 29th and 30th of January he was at Kilchuilem on Loch Ness near what is now Fort Augustus. Thence it was his purpose to advance north to meet Seaforth, when he received news that Argyle was thirty miles behind him in Lochaber, at the old castle of Inverlochy, at the foot of Ben Nevis, near what is now Fort William. He saw at once the device. Argyle did not mean to fight him directly, but to keep dogging him at a distance and then to come up when he should be engaged with Seaforth! Instantly, therefore, he resolved not to go on against Seaforth, but to turn back, and fall upon Argyle first by himself. Setting a guard on the beaten road along the lakes, to prevent communication with Argyle, he ventured a march, where no march had ever been before, or could have been supposed possible, up the rugged bed of the Tarf, and so, by the spurs of big Carryarick and the secrets of the infant Spey, now in bog and wet, now knee-deep in snow, over the mountains of Lochaber. It was on Friday the 31st of January that he began the march, and early in the evening of Saturday the 1st of February they were down at the foot of Ben Nevis and close on Inverlochy. It was a frosty moonlight night; skirmishing went on all through the night; and Argyle, with the gentlemen of the Committee of Estates who were with him, went on board his barge on Loch Eil. Thence, at a little distance from the shore, he beheld the battle of the next day, Sunday, Feb. 2. It was the greatest disaster that had ever befallen the House of Argyle. There were slain in all about 1,500 of Argyle's men, including brave Auchinbreck and many other important Campbells, while on Montrose's side the loss was but of a few killed, and only Sir Thomas Ogilvy, among his important followers, wounded mortally. And so, with a heavy heart, Argyle sailed away in his barge, wondering why God had not made him a warrior as well as a statesman; and Montrose sat down to write a letter to the King. "Give me leave," he said, "after I have reduced this country to your Majesty's obedience and conquered from Dan to

Beersheba, to say to your Majesty then, as David's general did to his master, 'Come thou thyself, lest this country be called by *my* name.'" [Footnote: Rushworth, V. 931-2; Wishart, 110-114; Napier, 477-484. Mr. Napier winds up his account of the Battle of Inverlochy by quoting entire (484-488) Montrose's supposed letter to the King on the occasion. The letter, he says, was first "obscurely printed by Dr. Welwood in the Appendix to his Memoirs, 1699;" but he adds an extract from the *Analecta* of the Scottish antiquary Wodrow, to the effect that Wodrow had been told, by a person who had seen the original letter, that Welwood's copy was a "vitiated" one. No other copy having been found among the Montrose Papers, Mr. Napier has had to reprint Welwood's; which he does with great ceremony, thinking it a splendid Montrose document. It certainly is a striking document; but I cannot help suspecting the genuineness of it as it now stands. There are anachronisms and other slips in it, suggesting posthumous alteration and concoction.]—The Battle of Inverlochy was much heard of throughout England, where Montrose and his exploits had been for some time the theme of public talk. The King was greatly elated; and it was supposed that the new hopes from Scotland excited in his mind by the success of Montrose had some effect in inducing him to break off the Treaty of Uxbridge then in progress. The Treaty was certainly broken off just at this time (Feb. 24, 1644-5).

On Wednesday the 12th of February, ten days after Inverlochy, the Marquis of Argyle was in Edinburgh, and presented himself in the Parliament, "having his left arm tied up in a scarf." The day before, the Parliament had unanimously found "James, Earl of Montrose" (his title of Marquis not recognised) and nineteen of his chief adherents, including the Earl of Airlie, Viscount Aboyne, Alexander Macdonald MacColkittoch, and Patrick Graham younger of Inchbrakie, "guilty of high treason," and had forfeited "their lives, honours, titles, lands and goods;" also ordering the Lyon King of Arms, Sir James Balfour, to "delete the arms of the traitors

out of his registers and books of honour." The General Assembly of the Kirk was then also in session, rather out of its usual season (Jan. 22-Feb. 13), on account of important ecclesiastical business arising out of the proceedings of the Westminster Assembly; and Baillie and Gillespie had come from London to be present. Of course, the rebellion of Montrose was much discussed by that reverend body; and, in a document penned by Mr. Gillespie, and put forth by the Assembly (Feb. 12), there was this passage:—"In the meantime, the hellish crew, under the conduct of the excommunicate and forfaulted Earl of Montrose, and of Alaster Macdonald, a Papist and an outlaw, doth exercise such barbarous, unnatural, horrid, and unheard-of cruelty as is beyond expression." But, though Parliament might condemn and proscribe Montrose, and the General Assembly might denounce him, the real business of bringing him to account rested now with General Baillie. To assist Baillie, however, there was coming from England another military Scot, to act as Major-general of horse. He was no other than the renegade Urry, or Hurry, who had deserted from the English Parliament to the King, and been the occasion of Hampden's death in June 1643 (Vol. II. 470-1). Though the King had made him a knight, he had again changed sides. [Footnote: Sir James Balfour's Annals, III. 270-273; Baillie's Letters II. 258-263; Acts of General Assembly of the Church of Scotland (edition of 1843), p. 126.]

After Inverlochy, Montrose had resumed his northward march along the chain of lakes to meet Seaforth. That nobleman, however, had been cured of any desire to encounter him. Feb. 19, Elgin surrendered to Montrose; and here, or at Gordon Castle, not far off, he remained some little time, issuing Royalist proclamations, and receiving new adherents, among whom were Lord Gordon and his younger brother Lord Lewis Gordon, nay Seaforth himself! Lord Gordon remained faithful; Lord Lewis Gordon was more slippery; Seaforth had yielded on compulsion, and was to break away as soon as he could. At Gordon Castle Montrose's eldest son and heir, who had

been with him through so many hardships, died after a short illness. Hardly had the poor boy been buried in Bellie church near, when his father, now reinforced by the Gordons, so that he could count 2,000 foot and 200 horse, was on his "fiery progress" south through Aberdeenshire, "as if to challenge Generals Baillie and Urry." March 9, he was at Aberdeen; March 21, he was at Stonehaven and Dunnottar in Kincardineshire, burning the burgh and its shipping, and the barns of Earl Marischal's tenants under the Earl's own eyes. Baillie and Urry kept zig-zagging in watch of him; but, though he skirmished with Urry's horse and tried again and again to tempt on battle, they waited their own time. Once they nearly had him. He had pushed on farther south through Forfarshire, and then west into Perthshire, meaning to cross the Tay at Dunkeld on his way to the Forth and the Lowlands. The desertion of Lord Lewis Gordon at this point with most of the Gordon horse obliged him to desist from this southward march; but, having been informed that Baillie and Urry had crossed the Tay in advance of him to guard the Forth country, he conceived that he would have time for the capture of Dundee, and that the sack of so Covenanting a town would be a consolation to him for his forced return northwards. Starting from Dunkeld at midnight, April 3, he was at Dundee next morning, took the town by storm, and set fire to it in several places. But lo! while his Highlanders and Irish were ranging through the town, still burning and plundering, and most of them madly drunk with the liquors they had found, Baillie and Urry, who had not crossed the Tay after all, were not a mile off. How Montrose got his drunken Highlanders and Irish together out of the burning town is an inexplicable mystery; but he did accomplish it somehow, and whirled them, by one of his tremendous marches, of three days and two nights, himself in the rear and the enemy's horse close in pursuit all the while, past Arbroath, and so, by dexterous choice of roads and passes, in among the protecting Grampians. "Truly," says his biographer Wishart, "I have often heard those who were esteemed the most experienced officers, not in Britain only, but in

France and Germany, prefer this march of Montrose to his most celebrated victories." [Footnote: Wishart, 115-127; Rushworth, VI. 2.8; Napier, 490-497.]

Except Inverlochy, his most celebrated victories were yet to come. There were to be three of them. The first was the Battle of Auldearn in Nairnshire (May 9, 1645), in which Montrose's tactics and MacColl's mad bravery beat to pieces the regular soldier-craft of Urry, assisted by the Earls of Seaforth, Sutherland, and Findlater. [Footnote: Rushworth, VI. 229; Wishart, 128-138; Napier, 500-506.] The second was the Battle of Alford in Aberdeenshire (July 2, 1645), where Montrose defeated Baillie himself. MacColkittoch was not present in this battle, the commanders in which, under Montrose, were Lord Gordon, Nathaniel Gordon, Lord Aboyne, Sir William Rollo, Glengarry, and Drummond of Balloch, while Baillie was assisted in chief by the Earl of Balcarres. Montrose's loss was trifling in comparison with Baillie's, but it included the death of Lord Gordon [Footnote: Wishart, 133-152; Napier, 526-536]. To the Covenanting Government the defeat of Alford was most serious. The Parliament, which had adjourned at Edinburgh on the 8th of March, was convoked afresh for two short sessions, at Stirling (July 8-July 11), and at Perth (July 24- Aug. 5); and the chief business of these sessions was the consideration of ways for retrieving Baillie's defeat and prosecuting the war [Footnote: Balfour's Annals, III. 292-307.]. Baillie, chagrined at the loss of his military reputation, wanted to resign, throwing the blame of his disaster partly on Urry for his selfish carelessness, and partly on the great Covenanting noblemen, who had disposed of troops hither and thither, exchanged prisoners, and granted passes, without regard to his interests or orders. The Parliament, having exonerated and thanked him, persuaded him at first to retain his commission, appointing a new Committee of Estates, with Argyle at their head, to accompany and advise him (July 10). Not even so was Baillie comfortable; and on the 4th of August he definitively gave in his

resignation. It was then accepted, with new exoneration and thanks, but with a request that, to allow time for the arrival of his intended successor (Major-general Monro) from Ireland, he would continue in the command a little longer. Goodnaturedly he did so, but unfortunately for himself. He was in the eleventh day of his anomalous position of command and no-command, when he received from Montrose another thrashing, more fatal than the last, in the Battle of Kilsyth in Stirlingshire (Aug. 15, 1645). On both sides there had been great exertion in recruiting, so that the numbers in this battle were, according to the estimate of Montrose's biographers, 6,000 foot and 1,000 horse under Baillie against 4,400 foot and 500 horse under Montrose. Baillie would not have allowed this estimate, for he complains that the recruiting for him had been bad. Anyhow, his defeat was crushing. In various posts of command under Montrose were the aged Earl of Airlie, Viscount Aboyne, Colonel Nathaniel Gordon, Maclean of Duart, the chief of Clanranald, and MacColkittoch with his Irish. Acting under Baillie, or, as he would have us infer, above him and in spite of him, were Argyle, the Earls of Crawford and Tullibardine, Lords Elcho, Burleigh, and Balcarres, Major-general Holborn, and others. Before the battle, Montrose, in freak or for some deeper reason, made all his army, both foot and horse, strip themselves, above the waist, to their shirts (which, with the majority, may have implied something ghastlier); and in this style they fought. The battle was not long, the Macleans and Clanranald Highlanders being conspicuous in beginning it, and the old Earl of Airlie and his Ogilvies in deciding it. But, after the battle, there was a pursuit of the foe for fourteen miles, and the slaughter was such as to give rise to the tradition of thousands slain on Baillie's side against six men on Montrose's. Many prisoners were taken, but the chief nobles escaped by the swiftness of their horses. Argyle was one of these. Carried by his horse to Queens-ferry, he got on board a ship in the Firth of Forth (the third time, it was noted, of his saving himself in this fashion), sailed down the Firth into the open sea, and did not come ashore

till he was at Newcastle. [Footnote: Wishart, 162-171; Napier, 542-541. But see General Baillie's touching and instructive vindication of himself in three documents, printed in his cousin Baillie's Letters and Correspondence (II. 417-424). Baillie goes over the whole of his unfortunate commandership against Montrose, from his meeting with Argyle at Roseneath after Inverlochy (Jan. 1644-5) to the Battle of Kilsyth (Aug. 15. 1645); and the pervading complaint is that he had never been allowed to be real commander-in-chief, but had been thwarted and overridden by Argyle, Committees of Estates, and conceited individual nobles.]

The Battle of Kilsyth placed all Scotland at Montrose's feet. He entered Clydesdale, took the city of Glasgow under his protection, set up his headquarters at Bothwell, and thence issued his commands far and wide. Edinburgh sent in its submission on summons; other towns sent in their submissions; nobles and lairds that had hitherto stood aloof gathered obsequiously round the victor; and friends and supporters, who had been arrested and imprisoned on charges of complicity with him during his enterprise, found themselves released. Dearest among these to Montrose were his relatives of the Merchiston and Keir connexion—the veteran Lord Napier, Montrose's brother-in-law and his Mentor from his youth; Sir George Stirling of Keir, and his wife, Lord Napier's daughter; and several other nieces of Montrose, young ladies of the Napier house. In fact, so many persons of note from all quarters gathered round Montrose at Bothwell that his Leaguer there became a kind of Court. The great day at this Court was the 3rd of September, eighteen days after the victory of Kilsyth. On that day there was a grand review of the victorious army; a new commission from the King, brought from Hereford by Sir Robert Spotswood, was produced and read, appointing Montrose Lord Lieutenant and Captain-general of Scotland with those Viceregal powers which had till then been nominally reserved for Prince Maurice; and, after a glowing speech, in which Montrose praised his whole army, but especially his

Major-general, Alaster Macdonald MacColkittoch, he made it his first act of Viceroyalty to confer on that warrior the honour of knighthood. On the following day proclamations were issued for the meeting of a Parliament at Glasgow on the 20th of October. Montrose then broke up his Leaguer, to obey certain instructions which had come from the King. These were that he should plant himself in the Border shires, co-operating there with the Earls of Traquair, Hume, and Roxburgh, and other Royalists of those parts, so as to be ready to receive his Majesty himself emerging from England, or at least such an auxiliary force of English as Lord Digby should be able to despatch. For Montrose's triumph in Scotland had been reported all through England and had altered the state and prospects of the war there. Kilsyth (Aug. 15) had come as a considerable compensation even for Naseby (June 14) and the subsequent successes of the New Model. The King's thoughts had turned to the North, and it had become his idea, and Digby's, that, if the successes of the New Model still continued, it would be best for his Majesty to transfer his own presence out of England for the time, joining himself to Montrose in Scotland. [Footnote: Baillie, II. 313-314; Rushworth, VI. 231; Wishart, 190; Napier, 552-569.]

In obedience to his Majesty's instructions Montrose did advance to the Border. For about a week he prowled about, on the outlook for the expected aid from England, negotiating at the same time with some of the Border lords, and in quest of others with whom to negotiate. On the 10th of September he was encamped at Kelso; thence he went to Jedburgh; and thence to Selkirk. [Footnote: Napier, 570-575.] While he is at this last place, let us pause a little to ask an important question.

What was Montrose's meaning? What real political intention lay under the meteor-like track of his marches and battles? What did he want to make of Scotland? This is not a needless question. For, as we know, Montrose was not, after all, a mere military madman. He was an idealist in his way, a

political theorist (Vol. II. 296-298). Fortunately, to assist our guesses, there is extant a manifesto drawn up under Montrose's dictation at that very moment of his triumph at which we have now arrived. The document is in the handwriting of Lord Napier, his brother-in-law and closest adviser, and consists of some very small sheets of paper, in Napier's minutest autograph, as if it had been drawn up where writing materials were scarce. It was certainly written after Kilsyth, and in all probability at one of Montrose's halts on the Border. In short, it was that vindication of himself and declaration of his policy which Montrose meant to publish in anticipation of the meeting of a Scottish Parliament at Glasgow which he had summoned for the 20th of October.

The document is vague, and much of it is evidently a special pleading addressed to those who remembered that Montrose had formerly been an enthusiastic Covenanter. Still there are interesting points in it. His defence is that it was not *he* that had swerved from the original Scottish Covenant of 1638. He had thoroughly approved of that Covenant, and had gone on with Argyle and the rest of the Covenanters, perhaps "giving way to more than was warrantable," till their deviation from the true purposes of the Covenant had passed all legal bounds. He had seen this to be the ease at the time of the Treaty of Ripon at the conclusion of the Second Bishops' War; and at that point he had left them, or rather they had finally parted from him (Oct. 1640). He had since then gone on in perfect consistency with his former self; and they had gone on, in their pretended Parliaments and pretended General Assemblies, from bad to worse. The State was in the grasp of a few usurpers at the centre and their committees through the shires; finings and imprisonings of the loyal were universal; and all true liberty for the subject was gone. The Church too had passed into confusion, "the Brownistical faction" overruling it, joined "in league with the Brownists and Independents in England, to the prejudice of Religion." [Footnote: Several times in the course of the document this accusation of Brownism or

Independency comes in—an absurdly selected accusation at the very time when the most patent fact about the Presbyterian Kirk of Scotland was its deadly antagonism to Independency and all forms of Brownism. Montrose and Napier were probably a little behind-hand in their knowledge of English Ecclesiastical History, and merely clutched "Brownism" as a convenient phrase of reproach, much sanctioned by the King in his English proclamations against Parliament.] So much for a review of his past acts; but what were his *present* grounds? Here one listens with curiosity. One of his "grounds" he lays down definitely enough, and indeed with extraordinary and repeated emphasis. Let his countrymen be assured that he retained his hatred of Episcopacy and would never sanction its restoration in Scotland! He would not, indeed, be for uprooting Episcopacy in England, inasmuch as the King and his loyal subjects of that country did not desire it; nor was he pledged to that by any right construction of the Scottish Covenant of 1638. That Covenant referred to Scotland only, and it was that Covenant, and not the later League and Covenant of 1643, that he had signed. But he had not forgotten that the very cause of that original Scottish Covenant was the woe wrought by Prelacy in Scotland. "It cannot be denied," says the document, "neither ever shall be by us, that this our nation was reduced to almost irreparable evil by the perverse practices of the sometime pretended Prelates; who, having abused lawful authority, did not only usurp to be lords over God's inheritance, but also intruded themselves in the prime places of civil government, and, by their Court of High Commission, did so abandon themselves, to the prejudice of the Gospel, that the very quintessence of Popery was publicly preached by Arminians, and the life of the Gospel stolen away by enforcing on the Kirk a dead Service-book, the brood of the bowels of the Whore of Babel." For the defence, therefore, of genuine old Scottish Presbyterianism, he protests "in God's sight" he would be "the first should draw a sword." But a spurious Presbyterianism had been invented, and "the outcasting of the locust" had

been the "inbringing of the caterpillar." As he abjured Episcopacy, so he thought the system that had been set up instead "no less hurtful;" wherefore, he concludes, "resolving to eschew the extremities, and keep the middle way of our Reformed Religion, we, by God's grace and assistance, shall endeavour to maintain it with the hazard of our lives and fortunes, and it shall be no less dear to us than our own souls."—Allowing for the fact that Montrose, or Napier for him, must have considered it politic to conciliate the anti-Prelatic sentiment, we cannot but construe these passages into a positive statement that Montrose really was, and believed himself to be, a moderate Presbyterian. His programme for Scotland, in fact, was Moderate Presbyterianism together with a restoration of the King's prerogative. In this, of course, was implied the annihilation of every relic of the Argyle-Hamilton machinery of government and the substitution of another machinery under the permanent Viceroyalty of the Marquis of Montrose. [Footnote: The document described and extracted from in the text is printed entire by Mr. Napier, who seems first to have deciphered it (Appendix to Vol. I. of his Life of Montrose, pp. xlv.- liii.), and whose historical honesty in publishing it is the more to be commended because it must have jarred on his own predilections about his hero. Many of Montrose's admirers still accept him in ignorance as a champion and hero of high Episcopacy; and for these Mr. Napier's document must be unwelcome news.]

Ah! how Fortune turns her wheel! This manifesto of Montrose was to remain in Lord Napier's pocket, not to be deciphered till our own time, and the Parliament for which it was a preparation was never actually to meet.

In England there had been amazement and grief over the news of Montrose's triumph. The Parliament had appointed Sept. 5 to be a day of public fast and prayer in all the churches on account of the calamity that had befallen Scotland; and on that day the good Baillie, walking in London to and from church, was in the deepest despondency. Never, "since William

Wallace's days," he wrote, had Scotland been in such a plight; and "What means the Lord, so far against the expectation of the most clear-sighted, to humble us so low?" But he adds a piece of news, "On Tuesday was eight days" (*i.e.* Aug. 27), in consequence of letters from Scotland, David Leslie, the Major-general of Leven's Scottish army in England, had gone in haste from Nottingham towards Carlisle and Scotland, taking with him 4,000 horse. This was the wisest thing that could have been done. David Leslie was the very best soldier the Scots had, better by far than Lieutenant-general Baillie, whom Montrose had just extinguished, and better even than Monro, whom the Scottish Estates had resolved to bring from Ireland as Baillie's successor. [Footnote: Baillie, II. 313-315.]

Actually, on the 6th of September, Leslie passed the Tweed, with his 4,000 Scottish horse from Leven's army, and some 600 foot he had added from the Scottish garrison of Newcastle. He and Montrose were, therefore, in the Border counties together, watching each other's movements, but Leslie watching Montrose's movements more keenly than Montrose watched Leslie's. Montrose does not seem to have known Leslie's full strength, and he was himself in the worst possible condition for an immediate encounter with it. It was the custom of the Highlanders in those days, when they had served for a certain time in war, to flock back to their hills for a fresh taste of home-life; and, unfortunately for Montrose, his Highlanders had chosen to think the review at Bothwell a proper period at which to take leave. They had been encouraged in this, it is believed, by Colkittoch, who, having had the honorary captaincy-general of the clans bestowed upon him by Montrose in addition to knighthood, had projected for himself, and for his old father and brothers, the private satisfaction of a war all to themselves in the country of the Campbells. Montrose had submitted with what grace he could; and the Highlanders, with some of the Irish among them, had marched off with promises of speedy return. But, at the same critical moment, Viscount Aboyne, hitherto the most faithful of the

Gordons, had "taken a caprice," and gone off with his horse. He had been lured away, it was suspected, by his uncle Argyle, who had come back from his sea-voyage to Newcastle, and was busy in Berwickshire. Then Montrose's negotiations with the Border lords had come to nearly nothing, David Leslie's presence and Argyle's counter- negotiations having had considerable influence. Finally, of the King himself or the expected forces from England there was no appearance. It was, therefore, but with a shabby little army of Irish and Lowland foot and a few horse that Montrose, with his group of most resolute friends— Lord Napier, the Marquis of Douglas, the Earls of Airlie, Crawford, and Hartfell, Lords Ogilvy, Erskine, and Fleming, Colonel Nathaniel Gordon, Sir John Dalziel, Drummond of Balloch, Sir Robert Spotswood, Sir William Rollo, Sir Philip Nisbet, the young master of Napier, and others—found himself encamped, on the 12th of September, at Philiphaugh near Selkirk. His intention was not to remain in the Border country any longer, but to return north and get back among his Grampian strongholds. But somehow his vigilance, when it was most needed, had deserted him. The morning of Saturday, Sept. 13, had risen dull, raw, and dark, with a thick grey fog covering the ground; and Montrose, ill-served by his scouts, was at early breakfast, when Leslie sprang upon him out of the fog, and in one brief hour finished his year of splendour. Montrose himself, the two Napiers, the Marquis of Douglas, the Earls of Airlie and Crawford, with others, cut their way out and escaped; but many were made prisoners, and the places where the wretched Irish were shot down and buried in heaps, and the tracks of the luckier fugitives for miles from Philiphaugh, are now among the doleful memories of the Braes of Yarrow. [Footnote: Rushworth, VI. 231-2; Wishart, 189-207; Napier, 557-580. I have seen, in the possession of the Rev. Dr. David Aitken, Edinburgh, a square-shaped bottle of thick and pretty clear glass, which was one of several of the same sort accidentally dug up some few years ago at Philiphaugh, in a place where there were also many buried

gunflints. There were traces, I am told, from which it could be distinctly inferred that the bottles had contained some kind of Hock or Rhenish wine; and the belief of the neighbourhood was that they had been part of Montrose's tent-stock, on the morning when he was surprised by Leslie.]

Montrose and his fellow-fugitives found their way back to their favourite Athole, and were not even yet absolutely in despair. The venerable Napier, indeed, had come to his journey's end. Worn out by fatigue, he died in Athole, and was buried there. Montrose's wife died about the same time in the eastern Lowlands, and Montrose, at some risk, was present at her funeral. To these bereavements there was added the indignant grief caused by the vengeance taken by the restored Argyle Government upon those of his chief adherents who had fallen into their hands. Sir William Rollo (the same Major Rollo who had crossed the Border with Montrose in his disguise), Sir Philip Nisbet, young Ogilvy of Innerquharity, and others, were beheaded at Glasgow; and Colonel Nathaniel Gordon, Captain Andrew Guthrie, President Sir Robert Spotswood, and William Murray, the young brother of the Earl of Tullibardine, were afterwards executed at St. Andrews—Lord Ogilvy, who had been condemned with these last, having contrived to escape. The desire of retaliation for these deaths co-operating with his determination to make his Captaincy-general in Scotland of some avail still for the King's cause, Montrose lurked on perseveringly in his Highland retirement, trying to organize another rising, and for this purpose appealing to MacColkittoch and every other likely Highland chief, but above all to the Marquis of Huntley and his fickle Gordons. In vain! To all intents and purposes Montrose's Captaincy-general in Scotland was over, and the Argyle supremacy was reestablished. All that could be said was that he was still at large in the Highlands, and that, while he was thus at large, the Argyle Government could not reckon itself safe. And so for the present we leave him, humming to himself, as one may fancy, a stanza of one of his own lyrics:—

"The misty mounts, the smoking lake,
The rock's resounding echo,
The whistling winds, the woods that shake,
Shall all with me sing *Heigho*!
The tossing seas, the tumbling boats,
Tears dripping from each oar,
Shall tune with me their turtle notes:
'I'll never love thee more!'"

[Footnote: Rushworth, VI. 232; Wishart, 208-258; Napier, 581-630, with Montrose's Poems in Appendix to Vol. I.]

FAG-END OF THE WAR IN ENGLAND: FLIGHT OF THE KING TO THE SCOTS.

Montrose's defeat at Philiphaugh (Sept. 13, 1645) having relieved the English Parliament from the awkwardness of the Royalist uprising in Scotland while the New Model was crushing Royalism in England, and the storming of Bristol by the New Model (Sept. 10) having just been added as a most important incident in the process of the crushing, the war in England had reached its fag-end.

The West and the Southern Counties were still the immediate theatre of action for the New Model. Cromwell, fresh from his share with Fairfax in the recent successes in Somersetshire, Gloucestershire, and Wilts, was detached into Hants; and here, by his valour and skill, were accomplished the surrender of Winchester (Oct. 8), and the storming of Basing House, the magnificent mansion of the Marquis of Winchester, widower of that Marchioness on whom Milton had written his epitaph in 1631, but now again married (Oct. 14). Thus, by the middle of October, Royalism had been completely destroyed in Hants, as well as in Wilts, Dorset, and Somerset, and what relics of it remained in the south-west were cooped up

in the extreme shires of Devon and Cornwall, whither the Prince of Wales had retired with Lord Hopton. Here they lingered through the winter. [Footnote: Chronological Table in Sprigge.]

Meanwhile the King had been steadily losing ground in the Midlands and throughout the rest of England. Not even after Philiphaugh had he given up all hopes of a junction with Montrose in Scotland; and a northward movement, from Hereford through Wales, which he had begun before the news of that battle reached him, was still continued. He had got as far as Welbeck in Nottinghamshire (Oct. 13) when he was induced to turn back, only sending 1,500 horse under Lord Digby and Sir Marmaduke Langdale to make their way into Scotland if possible. Though defeated by the Parliamentarians in Yorkshire, Digby and Langdale did get as far as the Scottish border; but, finding farther progress hopeless, they left their men to shift for themselves, and escaped to the Isle of Man, whence Digby went to Dublin. The King himself had gone first to Newark, on the eastern border of Nottinghamshire, which was one of the places yet garrisoned for him; but, after a fortnight's stay there, he returned once more to his head-quarters at Oxford (Nov. 5). Here he remained through the winter, holding his court as well as he could, issuing proclamations, and observing the gradual closing in upon him of the Parliamentary forces. The position of the Scottish auxiliary army in particular had then become of considerable importance to him.—We have seen (*antè*, p. 339) how, in September, that army had raised the siege of Hereford, and had sulkily gone northward as far as Yorkshire, as if with the intention of leaving England altogether. There was some excuse for them in the state of Scotland at the time, where all the resources of the Argyle Government had failed in the contest with Montrose; but not the less were the English Parliamentarians out of humour with them. Angry messages had been interchanged between the English Parliament and the Scottish military and political leaders; and a demand had been put forth by the Parliament that the Scots should hand over into English keeping Carlisle

and other northern towns where they had garrisons. At length, Montrose having been suppressed by David Leslie's horse, and great exertions having been made by the Scottish Chancellor Loudoun to restore a good feeling between the two nations, Leven's army did come back out of Yorkshire, to undertake a duty which the English Parliament had been pressing upon it, as a substitute for its late employment at Hereford. This was the siege of Newark. About the 26th of November, 1645, or three weeks after the King had left Newark to return to Oxford, the Scottish army sat down before Newark and began the siege. The direct distance between Oxford and Newark is about a hundred miles.—Through the winter, though the New Model had not quite completed its work of victory in the South-west, the chief business of the King at Oxford consisted in looking forward to the now inevitable issue, and thinking with which party of his enemies it would be best to make his terms of final submission. Negotiations were actually opened between him and the Parliament, with offers on his part to come to London for a personal Treaty; and there was much discussion in Parliament over these offers. The King, however, being stubborn for his own terms, the negotiations came to nothing; and by the end of January 1645-6 it was the general rumour that he meant to baulk the Parliament, and take refuge with the Scottish army at Newark. Till April 1646, nevertheless, he remained irresolute, hoping against hope for some good news from the South-west.

No good news came from that quarter. Operations having been resumed there by the New Model, there came, among other continued successes of the Parliament, the raising of the siege of Plymouth (Jan. 16, 1645-6), the storming of Dartmouth (Jan. 19), and the storming of Torrington (Feb. 16). The action then came to be chiefly in Cornwall, where (March 14) Lord Hopton surrendered to Fairfax, giving up the cause as hopeless, and following the Prince of Wales, who had taken refuge meanwhile in the Scilly Isles. On the 15th of April, 1646, the picturesque St. Michael's Mount yielded, and the Duke of Hamilton, the King's prisoner there, found himself

again at liberty. The surrender of Exeter (April 13) and of Barnstaple (April 20) having then cleared Devonshire, the war in the whole South-west was over, save that the King's flag still waved over far Pendennis Castle at Falmouth. [Footnote: Chronological Table in Sprigge]

The New Model having thus perfected its work in the South-west and being free for action in the Midlands, and Cromwell being back in London, and a body of Royalist troops under Lord Astley (the last body openly in the field) having been defeated in an attempt to reach Oxford from the west, and Woodstock having just set even the Oxfordshire garrisons the example of surrendering, procrastination on the King's part was no longer possible. His last trust had been in certain desperate schemes for retrieving his cause by help to be brought from beyond England. He had been intriguing in Ireland with a view to a secret agreement with the Irish Rebels and the landing at Chester or in Wales of an army of 10,000 Irish Roman Catholics to repeat in England the feat of MacColkittoch and his Irish in Scotland; he had been trying to negotiate with France for the landing of 6,000 foreign troops at Lynn; as late as March 12 he had fallen back on a former notion of his, and proposed to invoke the aid of the Pope by promising a free toleration of the Roman Catholic Religion in England on condition that his Holiness and the English Roman Catholics would "visibly and heartily engage themselves for the re-establishment" of his Crown and of the Church of England. All these schemes were now in the dust. He was in a city in the heart of England, without chance of Irish or foreign aid, and hemmed round by his English subjects, victorious at length over all his efforts, and coming closer and closer for that final siege which should place himself in their grasp. What was he to do? A refuge with the Scottish army at Newark had been for some time the plan most in his thoughts, and actually since January there had been negotiations on his part, through the French Ambassador Montreuil, both with the Scottish Commissioners in London and with the chiefs of the Scottish army, with a view to this result.

Latterly, however, Montreuil had reported that the Scots refused to receive him except on conditions very different from those he desired. The most obvious alternative, though the boldest one, was that he should make his way to London somehow, and throw himself upon the generosity of Parliament and on the chances of terms in his favour that might arise from the dissensions between the Presbyterians and the Independents. But, should he resolve on an escape out of England altogether, even that was not yet hopeless. Roads, indeed, were guarded; but by precautions and careful travelling some seaport might be reached, whence there might be a passage to Scotland, to Ireland, to France, or to Denmark. [Footnote: Twenty-two Letters from Charles at Oxford to Queen Henrietta Maria in France, the first dated Jan. 4, 1645-6 and the last April 22, 1646, forming pp. 1-37 of a series of the King's Letters edited by the late Mr. John Bruce for the Camden Society (1856) under the title of "*Charles I. in 1646.*" See also Mr. Bruce's "Introduction" to the Letters. They contain curious facts and indications of Charles's character.]

It was apparently with all these plans competing in Charles's mind, that, on Monday the 27th of April, his Majesty, with his faithful groom of the bedchamber Mr. John Ashburnham and a clergyman named Dr. Hudson for his sole companions, slipped out of Oxford, disguised as a servant and carrying a cloak-bag on his horse. He rode to Henley; then to Brentford; and then as near to London as Harrow-on-the-Hill. He was half-inclined to ride on the few more miles that would have brought him to the doors of the Parliament in Westminster. At Harrow, however, as if his mind had changed, he turned away from London, and rode northwards to St. Alban's; thence again by crossroads into Leicestershire; and so eastwards to Downham in Norfolk. Here he remained from April 30 to May 4; and it is on record that he had his hair trimmed for him here by a country barber, who found much fault with its unevenness, and told him that the man who had last cut it had done it very badly. It was now known in London that his

Majesty was at large; it was thought he might even be in hiding in the city; and a Parliamentary proclamation was issued forbidding the harbouring of him under pain of death. On the 5th of May, however, he ended all uncertainty by presenting himself at the Scottish Leaguer at Newark. He had made up his mind at last that he would remain in England and that he would be safer with the Scots there than with the English Parliament.—It was a most perilous honour for the Scots. The English Parliament were sure to demand possession of the King. Indeed the Commons did vote for demanding him and confining him to Warwick Castle; and, though the vote was thrown out in the Lords, eight Peers protested against its rejection (May 8). In these circumstances the resolution of the Scots was to keep his Majesty until the course of events should be clearer. Newark, however, being too accessible, in case the Parliament should try to seize him, Leven persuaded the King to give orders to the Royalist governor of that town to surrender it to the Parliament; and, the siege being thus over, the Scottish army, with its precious charge, withdrew northward to the safer position of Newcastle (May 13). [Footnote: *Iter Carolinum* in Gulch's, *Collectanea Curiosa*(1781), Vol. II. pp. 445-448; Rushworth, VI. 267-2/1; Clar 601-2; Baillie, II. 374-5.]

On the 10th of June the King issued orders from Newcastle to all the commanders yet holding cities, towns, or fortresses, in his name, anywhere in England, to surrender their trusts. Accordingly, on the 24th of June, the city of Oxford, which the King had left two months before, was surrendered to Fairfax, with all pomp and ceremony, by Sir Thomas Glenham. The surrender of Worcester followed, July 22; that of Wallingford Castle in Berks, July 27; that of Pendennis Castle in Cornwall, Aug. 17; and that of Raglan Castle in Monmouthshire, Aug. 19. Thus the face of England was cleared of the last vestiges of the war. The defender of Raglan Castle, and almost the last man in England to sustain the King's flag, was the aged

Marquis of Worcester. [Footnote: Rushworth, VI. 276-297; and Sprigge's Table of Battle, and Sieges.]

FALLEN AND RISEN STARS.

In August 1646, therefore, the long Civil War was at an end. The King being then at Newcastle with the Scots, where were the other chief Royalists? I. *The Royal Family*. The Queen had been abroad again for more than two years. In July 1644, having just then given birth at Exeter to her youngest child, the Princess Henrietta Maria, she had escaped from that city as Essex was approaching it with his army, and had taken ship for France, leaving the child at Exeter. Richelieu, who had kept her out of France in her former exile, being now dead, and Cardinal Mazarin and the Queen Regent holding power in the minority of Louis XIV., she had been well received at the French Court, and had been residing for the two past years in or near Paris, busily active in foreign intrigue on her husband's behalf, and sending over imperious letters of advice to him. It was she that was to be his agent with the Pope, and it was she that had procured the sending over of the French ambassador Montreuil to arrange between the Scots and Charles. The destination of the Prince of Wales had for some time been uncertain. From Scilly he had gone to Jersey, accompanied or followed thither by Lords Hopton, Capel, Digby, and Colepepper, Sir Edward Hyde, and others (April 1646). Digby had a project of removing him thence into Ireland, and Denmark was also talked of for a refuge; but the Queen being especially anxious to have him with her in Paris, her remonstrances prevailed. The King gave orders from Newcastle that her wishes should be obeyed, and to Paris the Prince went (July). The young Duke of York, being in Oxford at the time of the surrender, came into the hands of the Parliament; who committed the charge of him, and of his infant brother the Duke of Gloucester, with the Princesses Mary and Elizabeth, to the Earl of

Northumberland in London. The baby Princess Henrietta, left at Exeter, had also come into the hands of the Parliament on the surrender of that city (April 1646), but had been cleverly conveyed into France by the Countess of Morton. The King's fighting nephews, Rupert and Maurice, who had been in Oxford when it surrendered, were allowed to embark at Dover for France, after an interview with their elder brother, the Prince Elector Palatine, who had been for some time in England as an honoured guest of the Parliament; and an occasional visitor in the Westminster Assembly. II. *Chief Royalist Peers and Counsellors*. Some of these, including the Duke of Richmond, the Marquis of Hertford, the Marquis of Worcester, and the Earl of Southampton, remained in England, submitting moodily to the new order of things, and studying opportunities of still being useful to their sovereign. Others, and perhaps the majority, either disgusted with England, or being under the ban of Parliament for delinquency of too deep a dye, dispersed themselves abroad, to live in that condition of continental exile which had already for some time been the lot of the Marquis of Newcastle and other fugitives of the earlier stage of the war. Some, such as Digby and Colepepper, accompanied the Prince of Wales to Paris; others, among whom was Hyde, remained some time in Jersey. The Queen's conduct and temper, indeed, so much repelled the best of the Royalist refugees that, when they did go to France (as most of them were obliged to do at last), they avoided her, or circled round her at a respectful distance.

While these were the descending or vanishing stars of the English firmament, who were the stars that had risen in their places? As the question interests us now, so it interested people then; and, to assist the public judgment, printers and booksellers put forth lists of those who, either from the decisiveness and consistency of their Parliamentarianism from the first, or from its sufficiency on a total review, were entitled, at the end of the war, to be denominated *The Great Champions of England*. [Footnote: One such fly sheet, published July 30, 1646 by "Francis Leach at the Falcon in Shoe

Lane," has been already referred to (see Vol. II, p. 480, *Note*, and p. 433, *Note*). The lists there given, though very useful to us now, contain a great many errors—misspellings of names, entries of persons as still alive who were dead some time, &c. In those days of scanty means of publicity, it was far more difficult to compile an accurate conspectus of contemporaries for any purpose than it would be now.]

There were two classes of these Champions, though not a few individuals belonged to both classes:—I. *The Political Champions, or Champion Peers and Commoners*. The Champion Peers were reckoned as exactly twenty-nine; and, if the reader desires to know who these twenty-nine were, let him repeat here the list already given of those who were Parliamentary Peers at the outset (Vol. II. pp. 430-1), only deleting from that list the heroic Lord Brooke and the Earls of Bolingbroke and Middlesex as dead, and the Earls of Bedford, Clare, and Holland, as having proved themselves fickle and untrustworthy, and adding a new Earl of Middlesex (son and successor of the former), an Earl of Kent, an Earl of Nottingham, and a Lord Montague of Boughton (successors of the deceased Royalists or Non-effectives who had borne these titles), and Lord Herbert of Cherbury, once a Royalist, but now passing as a Parliamentary. The Champion Commoners were, of course, a much larger multitude. At the beginning of the war, as we saw (Vol. II. pp. 431-4). about three-fifths of the Commons House as then constituted, or 300 of the members in all, might be regarded as declared or possible Parliamentarians. Of these, however, death or desertion to the other side in the course of four years had carried off a good few, so that, with every exertion to swell the list of the original Commoners who at the end of the war might be reckoned among the faithful, not more than about 250 could be enumerated in this category. On the other hand, it has to be remembered that, since August 1645, when the New Model was in its full career of victory, the House of Commons had been increased in numerical strength by the process called Recruiting, *i.e.* by the issue of writs for the

election of new members in the places of those who had died, and of the much larger host who had been disabled as Royalists. Of this process of Recruiting, and its effects on the national policy, we shall have to take farther account; meanwhile it is enough to say that, between Aug. 1645, when the first new writs were issued, and Aug. 1646, when the war ended, as many as 179 Recruiters had been elected, and were intermingled in the roll of the House with the surviving original members. [Footnote: This is my calculation from the Index of new Writs in the Commons Journals between August 21, 1645, and August 1, 1646. See also Godwin's *Commonwealth*, II. 84-39.] Now, most of these Recruiters, from the very conditions of their election, were Parliamentarians, and some had even attained eminence in that character since their election. About 140 of them, I find, were reckoned among the "Champions;" and, if these are added to the 250 original members also reckoned as such, the total number of the Champion Commoners will be about 390. [Footnote: In Leach's fly-sheet the exact number of Champion Commoners given is 397. Among these he distinguishes the Recruiters from the original members by printing the names of the Recruiters in italics. In at least *eleven* cases, however, I find he has put a Recruiter among the original members. Also I am sure, from a minute examination of his list throughout, that he admitted into it, from policy or hurry, a considerable number whose claims were dubious.] It must not be supposed that they had all earned this distinction by their habitual presence in the House. Only on one extraordinary occasion since the beginning of the war had as many as 280 been in the House together; very seldom had the attendance exceeded 200; and, practically, the steady attendance throughout the war had been about 100. Employment in the Parliamentary service, in various capacities and various parts of the country, may account for the absence of many; but, on the whole, I fancy that, if England allowed as many as 390 original members and Recruiters together

to pass as Champion Commoners at the end of the war, it was by winking hard at the defects of some scores of them.

II. *Military Champions*. Here, from the nature of the case, there was less doubt. In the first place, although the Army had been remodelled in Feb. 1644-5, and the Self-Denying Ordinance had excluded not a few of the officers of the First Parliamentary Army from commands in the New Model, yet the services of these officers, with Essex, Manchester, and Sir William Waller, at their head, were gratefully remembered. Undoubtedly, however, the favourite military heroes of the hour were the chief officers of the victorious New Model, at the head of whom were Fairfax, Cromwell, Skippon, Thomas Hammond, and Ireton. For the names of the Colonels and Majors under these, the reader is referred to our view of the New Model at the time of its formation (*antè* pp. 326-7). Young Colonel Pickering, there mentioned, had died in Dec. 1645, much lamented; Young Major Bethell, there mentioned, had been killed at the storming of Bristol, Sept. 1645, also much lamented; but, with allowance for the shiftings and promotions caused by these deaths, and by the retirement of several other field-officers, or their transference to garrison-commands, the New Model, after its sixteen months of hard service, remained officered much as at first. While, with this allowance, our former list of the Colonels and Majors of the New Model proper yet stands good, there have to be added, however, the names of a few of the most distinguished military coöperants with the New Model: *i.e.* of those surviving officers of the old Army, or persons of later appearance, who, though not on our roll of the New Model proper, had yet assisted its operations as outstanding generals of districts or commanders of garrisons. Such were Sir William Brereton, M.P. for Cheshire, and Sir Thomas Middleton, M.P. for Denbighshire, in favour of whom, as well as of Cromwell, the Self-Denying Ordinance had been relaxed, so as to allow their continued generalship in Cheshire and Wales respectively (*antè*, p. 334, Note); such was General Poyntz, who had been appointed to succeed

Lord Ferdinando Fairfax in the chief command of Yorkshire and the North; such were Major-general Massey, who had held independent command in the West (*antè*, p. 337), and Major-general Browne, who had held similar command in the Midlands; and such also were Colonel Michael Jones (Cheshire), Colonel Mitton (Wales), Colonel John Hutchinson (Governor of Nottingham), Colonel Edmund Ludlow (Governor of Wardour Castle, Wilts), and Colonel Robert Blake (the future Admiral Blake, already famous for his Parliamentary activity in his native Somersetshire, his active governorship of Taunton, and his two desperate defences of that town against sieges by Lord Goring). Several of these distinguished coöperants with the New Model, as well as several of the chief officers of the New Model itself, had already been honoured by being elected as Recruiters for the House of Commons. [Footnote: My authorities for this list of the military stars in August 1646, besides those already cited for the New Model at its formation (*antè*, p. 327, *Note*) and an imperfect list in Leach's fly-sheet (*antè*, p. 376, *Note*) are stray passages in the Lords Journals, in Whitelocke, and in more recent Histories. I think I have picked out the chief coöperants with the New Model, but cannot vouch that I have done so. When one has done one's best, one still stumbles on a Colonel *this* or a Lieut-colonel *that*, evidently of some note, perplexing one's lists and allocations.]

If one were to write out duly the names of all the Englishmen that have been described or pointed to in the last paragraph as the risen stars of the new Parliamentary world of 1646, whether for political reasons or for military reasons, there would be nearly five hundred of them. Now, as History refuses to recollect so many names in one chapter, as the eye almost refuses to see so many stars at once in one sky, it becomes interesting to know which were the super-eminent few, the stars of the highest magnitude. Fortunately, to save the trouble of such an inquiry for ourselves, we have a contemporary specification by no less an authority than the Parliament

itself. In December 1645, when Parliament was looking forward, with assured certainty, to the extinction of the few last remains of Royalism, and was preparing Propositions to be submitted to the beaten King, it was anxiously considered, among other things, who were the persons whose deserts had been so paramount that supreme rewards should be conferred upon them, and the King should be asked to do his part by admitting some of them, and promoting others, among the English aristocracy. This was the result:—

THE EARL OF ESSEX:—King to be asked to make him a Duke. The Commons had already voted him a pension of £10,000 a year.

THE EARL OF NORTHUMBERLAND:—To be made a Duke, and provision for him to be considered.

THE EARL OF WARWICK (Parliamentary Lord High Admiral):—To be made a Duke, with provision; but the dukedom to descend to his grandchild, passing over his eldest son, Lord Rich, who had taken the wrong side.

THE EARL OF PEMBROKE AND MONTGOMERY:—To be made a Duke, and all his debts to the public to be cancelled.

THE EARL OF MANCHESTER:—To be made a Marquis, and provision to be considered for him.

THE EARL OF SALISBURY:—To be made a Marquis.

VISCOUNT SAYE AND SELE:—To be made an Earl,

LORD ROBERTS:—To be made an Earl.

LORD WHARTON:—To be made an Earl.

LORD WILLOUGHBY OF PARHAM:—To be made an Earl.

DENZIL HOLLES:—To be made a Viscount.

GENERAL SIR THOMAS FAIRFAX:—To be made an English Baron and an Estate of £5,000 a year in lands to be settled on him and his heirs for ever: his father LORD FERDINANDO FAIRFAX at the same time to be made an English Baron.

LIEUTENANT-GENERAL CROMWELL:—To be made an English Baron, and an Estate of £2,500 a year to be settled on him and his heirs for ever.

SIR WILLIAM WALTER:—To be made an English Baron, with a like Estate of £2,500 a year.

SIR HENRY VANE, SEN.:—To be made an English Baron. As the peerage would descend to his son, SIR HENRY VANE THE YOUNGER, the honour included *him*.

SIR ARTHUR HASELRIG:—£2,000 a year to him and his heirs for ever.

SIR PHILIP STAPLETON:—£2,000 a year to him and his heirs for ever.

SIR WILLIAM BRERETON:—£1,500 a year to him and his heirs for ever.

MAJOR-GENERAL PHILIP SKIPPON:—£1,000 a year to him and his heirs for ever. [Footnote: Commons Journals, Dec 1, 1645.]

Had Pym and Hampden been alive, what would have been the honours voted for them? They had been dead for two years, and the sole honour for Pym had been a vote of £10,000 to pay his debts, It mattered the less

because these Dukedoms, Earldoms, Viscountcies, and Baronages were all to remain *in nubibus*. They were contemplated on the supposition of a direct Peace with the King; and such a peace had not been brought to pass, and had been removed farther off in prospect by the King's escape at the last moment to the Scottish Army. It remained to be seen whether Parliament could arrange any treaty whatever with him in his new circumstances, and, if so, whether it would be worth while to make the proposed new creations of peers and promotions in the peerage a feature of the treaty, or whether it would not be enough for the Commons to make good the honours that were in their own power—viz. the voted estates and pensions. For Essex, who was at the head of the list, the suspense (if he cared about the matter at all) was to be very brief. He died at his house in the Strand, September 14, 1646, without his dukedom, and having received little of his pension. Parliament decreed him a splendid funeral.

CHAPTER II.

WORK IN PARLIAMENT AND THE WESTMINSTER ASSEMBLY DURING THE SIXTEEN MONTHS OF THE NEW MODEL—THE TWO CONTINUED CHURCH CONTROVERSIES—INDEPENDENCY AND SECTARIANISM IN THE NEW MODEL: TOLERATION CONTROVERSY CONTINUED: CROMWELL'S PART IN IT: LILBURNE AND OTHER PAMPHLETEERS: SION COLLEGE AND THE CORPORATION OF LONDON: SUCCESS OF THE PRESBYTERIANS IN PARLIAMENT— PRESBYTERIAN FRAME OF CHURCH-GOVERNMENT COMPLETED: DETAILS OF THE ARRANGEMENT—THE RECRUITING OF THE COMMONS: EMINENT RECRUITERS—EFFECTS OF THE RECRUITING: ALLIANCE OF INDEPENDENCY AND ERASTIANISM: CHECK GIVEN TO THE PRESBYTERIANS: WESTMINSTER ASSEMBLY REBUKED AND CURBED— NEGOTIATIONS ROUND THE KING AT NEWCASTLE—THREATENED RUPTURE BETWEEN THE SCOTS AND THE ENGLISH: ARGYLE'S VISIT TO LONDON: THE NINETEEN PROPOSITIONS—PARLIAMENT AND THE ASSEMBLY RECONCILED: PRESBYTERIANIZING OF LONDON AND LANCASHIRE: DEATH OF ALEXANDER HENDERSON.

During the sixteen months of those New Model operations in the field which had brought the war so decisively to an end (April 1645—August 1646), there had been a considerable progress in Parliament, in the Westminster Assembly, and in the public mind of England, on the seemingly interminable Church-business and its collaterals.

THE TWO CONTINUED CHURCH CONTROVERSIES.

That the Church of England should be Presbyterian had been formally decided in January 1644-5 (*antè*, pp. 172—175). Not even then, however, could the Presbyterians consider their work over. There were two reasons

why they could not. (1) Although the essentials of Presbytery had been adopted, the details remained to be settled. What were to be the powers of the parochial consistories and the other church courts respectively? What discretion, for example, was to be left to each minister and his congregational board of elders in the matter of spiritual censure, and especially in the exclusion of offenders from the communion? Was there to be any discretion; or was the State to regulate what offences should be punished by excommunication? Again, were the various Church-courts, once established, to act independently of the Civil courts and the State; or was there to be an appeal of ecclesiastical questions at any point from Presbytery, or Synod, or the entire National Assembly, to the Civil courts and Parliament? (2) Another great question which remained undetermined was that of Toleration. Should the new Presbyterian State Church of England be established with or without a liberty of dissent from it? A vast mass of the English people, represented by the Army-Independents and some leading Sectaries, demanded an absolute, or at least a very large, freedom of religious belief and practice; the Independent Divines of the Assembly claimed a certain amount of such freedom; nay, Parliament itself, by its Accommodation Order of September 1644, had recognised the necessity of some toleration, and appointed an inquiry on the subject. In the universal belief of the Presbyterians, on the other hand, Toleration was a monster to be attacked and slain. Toleration was a demon, a chimera, the Great Diana of the Independents, the Daughter of the Devil, the Mother and Protectress of blasphemies and heresies, the hideous Procuress of souls for Hell!

Such were the questions for continued controversy between the Presbyterians and their opponents in England in the beginning of 1645, when the New Model took the field. What progress had been made in these questions, and what changes had occurred in the attitudes of the two parties mainly concerned, during the victorious sixteen months of the New Model?

**INDEPENDENCY AND SECTARIANISM IN THE NEW MODEL:
TOLERATION CONTROVERSY CONTINUED: CROMWELL'S
PART IN IT: LILBURNE AND OTHER PAMPHLETEERS: SION
COLLEGE AND THE CORPORATION OF LONDON: SUCCESS OF
THE PRESBYTERIANS IN PARLIAMENT.**

The New Model itself, as we know, had been a great chagrin to the Presbyterians. Fairfax, indeed, was understood to be Presbyterian enough personally; but the Army was full of Independents and Sectaries, it was largely officered by Independents, and its very soul was the Arch-Independent Cromwell. For a while, accordingly, it was the secret hope of the Presbyterians that this Army might fail. But, when evidently it was not to fail, when NASEBY was won (June 14, 1645), and when all the while the Scottish Presbyterian army in England was doing so ill in comparison, a sense of departing superiority sank on the spirits of the Presbyterians. "Honest men served you faithfully in this action," were Cromwell's words to Speaker Lenthall in his letter from Naseby field: "Sir, they are trusty; I beseech you, in the name of God, not to discourage them. I wish this action may beget thankfulness and humility in all that are concerned in it. He that ventures his life for the liberty of his country, I wish he may trust God for the liberty of his conscience, and you for the liberty he fights for." [Footnote: Carlyle's Cromwell, I. 176.] This immediate use by Cromwell of the victory of Naseby as an argument for Toleration did not escape the notice of the Presbyterians. "My Lord Fairfax," writes Baillie, June 17, "sent up, the last week, an horrible Anti-Triastian [Anti-Trinitarian]: the whole Assembly went in a body to the Houses to complain of his blasphemies. It was the will of Cromwell, in his letter of his victory, to desire the House not to discourage those who had ventured their life for them, and to come out expressly with their much-desired Liberty of Conscience. You will see the letter in print, by order, as I think, of the Houses." [Footnote: Baillie, II. 280] The horrible Anti-Trinitarian here

mentioned was Paul Best (see *antè*, p. 157). He was accused of "divers prodigious blasphemies against the deity of our Saviour and the Holy Ghost." Parliament, informed thereof by the Assembly, had been appalled, and had committed the culprit to close confinement in the Gatehouse to await his trial (June 10). The next day (June 11) the impression had been deepened by a complaint in the Commons against another culprit on similar grounds, and the House had instructed Mr. Millington, member for Nottingham, to prepare an ordinance on the subject of blasphemy generally. [Footnote: Commons Journals of dates given. Paul Best's case lasted two years.] All this only a day or two before Naseby; and now from the field of Naseby, in Cromwell's hand, a pleading of that victory on behalf of Toleration! Would Cromwell tolerate a Paul Best?

What Cromwell and the Army-Independents would have said about Paul Best must be left to conjecture. What they were saying about the state of things in general we learn from the Presbyterian Richard Baxter. Being at Coventry at the time of the battle of Naseby, Baxter, then a pious preacher of twenty-nine years of age, with a lean cadaverous body, and the gauntest hook-nosed face ever seen in a portrait, paid a visit of curiosity to the field immediately after the battle, and went thence to the quarters of the victorious army at Leicester, to seek out some of his acquaintances. "When I came to the army, among Cromwell's soldiers," he says, "I found a new face of things which I never dreamt of: I heard the plotting heads very hot upon that which intimated their intention to subvert both Church and State. Independency and Anabaptistry were most prevalent; Antinomianism and Arminianism were equally distributed; and Thomas Moor's followers (a weaver of Wisbeach and Lynn, of excellent parts) had made some shifts to join these two extremes together. Abundance of the common troopers, and many of the officers, I found to be honest, sober, orthodox men, and others tractable, ready to hear the Truth, and of upright intentions; but a few proud, self-conceited, hot-headed sectaries had got into the highest places, and

were Cromwell's chief favourites, and by their heat and activity bore down the rest, or carried them along with them, and were the soul of the Army. ... They said, What were the Lords of England but William the Conqueror's colonels, or the Barons but his majors, or the Knights but his captains? They plainly showed me that they thought God's providence would cast the trust of Religion and the Kingdom upon them as conquerors." They were full of railings and jests, Baxter adds, against the Scots or Sots, the Presbyterians or *Priest-biters*, and the Assembly of Divines or *Dry- vines*; and all their praises were of the Separatists, Anabaptists, and Antinomians.—Grieved at what he found, and thinking he might be of some use by way of antidote, Baxter at once gave up his charge at Coventry, to become chaplain to Col. Whalley's regiment. He had the more hope of being useful because he had some previous acquaintance with Cromwell. But his reception was far from satisfactory. "As soon as I came to the army," he says, "Oliver Cromwell coldly bid me welcome, and never spoke one word to me more while I was there, nor once all that time vouchsafed me an opportunity to come to the headquarters, where the councils and meetings of the officers were." Baxter never forgave that coolness of Cromwell to him. Hugh Peters, who was constantly with Cromwell as his chaplain, and would make camp-jokes at Baxter's expense, was never forgiven either. [Footnote: Baxter's Autobiography (*Reliquiæ Baxterianæ*), 1696, pp. 50, 51.]

Not only in the New Model Army was there this ferment of Anti-Presbyterianism, Anti-Scotticism, Independency, and Tolerationism, passing on into a drift of universally democratic opinion. Through English society, and especially in London, there was much of the same.

Since the publication of Edwards's *Antapologia* in July 1644 the war of pamphlets on the questions of Independency and Toleration had been increasingly virulent. The pamphleteers were numberless; but the chief of

them, on the side of Presbyterianism and Anti-Toleration, were perhaps Prynne, Bastwick, and John Vicars, and, on the side of Independency and Toleration, Henry Burton, John Goodwin, and Hanserd Knollys, If Bibliography were to apply itself to the investigation of the popular English Literature of the latter half of the year 1644 and the first half of the year 1645, it would come upon these, and other controversialists whose names have been long forgotten, writhing together like a twisted knot of serpents, not to be uncoiled except by a distinct enumeration of several scores or hundreds of the most quaintly-entitled pamphlets, in the exact order of their publication, and with an account of the nature of each. London contained so many of these pamphleteers that the most deadly antagonists in print could not avoid each other in the streets, and Burton, for example, meeting Dr. Bastwick, would ask him with irritating politeness when his new book was coming out. Many of the pamphlets, however, and these the most daring and intemperate in expression, were anonymous. Such was *The Arraignment of Persecution*, purporting to be "printed by Martin Claw-Clergy for Bartholomew Bang-Priest," and to be on sale at "his shop in Toleration Street, right opposite to Persecution Court." In this and other popular squibs, to which neither authors nor printers dared to put their names, the toleration which Goodwin and Burton argued for gravely and logically was demanded with passionate vehemence, and with the most unsparing abuse of the Presbyterians, the Scots, and the Westminster Assembly. [Footnote: Wood's Ash. III. 860 (Prynne) and 308-9 (Vicars); Jackson's Life of John Goodwin, 61—79; Hanbury's Memorials, II. 385 et seq. (Prynne and Burton), and III. 68, 69 (Bastwick, Burton, and others). Notes of my own from the Stationers' Registers.]—One Tolerationist, here deserving a notice by himself, was John Lilburne. An avowed Independent even before the meeting of the Long Parliament, and forward as a Parliamentary captain from the very beginning of the war (Vol. II. 175, 458, and 588- 9), Lilburne had been one of those who regarded the Solemn

League and Covenant of 1643 as incompatible with Liberty of Conscience, and whom no persuasions could induce to sign that document. He had risen, nevertheless, by Cromwell's arrangement, to be Lieutenant-colonel in Manchester's own dragoon regiment, and he had served bravely at Marston Moor. Between him and Cromwell there was the most friendly understanding. Lilburne looked upon Cromwell as "the most absolute single-hearted great man in England;" and Cromwell owned a kindly feeling for Lilburne. But there was a pig-headedness in Lilburne's honesty which even Cromwell could not control. "If only John Lilburne were left in the world, then John would quarrel with Lilburne and Lilburne with John" was Henry Marten's witty, and yet perfectly true, description of him. Having been a witness for Cromwell in Cromwell's impeachment of Manchester, he thought Cromwell culpably weak in allowing the impeachment to drop and not bringing Manchester to the scaffold; and he had himself brought a charge against a superior officer, named King. Then he had become utterly disgusted with the general conduct of affairs and the subservience of Parliament to the Presbyterians. He would leave the army; he would "dig for turnips and carrots before he would fight to set up a power to make himself a slave." His two brothers, Robert and Henry, continued to hold commands in the New Model; but not all Cromwell's arguments could induce Lilburne himself to come into it. On the 30th of April, 1645, he had resigned his commission, presenting at the same time a petition to the Commons for his arrears of pay, amounting to £880 2_s_. He had resolved to be thenceforward a political agitator, a link between the Independency of the Army and what Independency there was already in London itself. Accordingly, from the beginning of 1645, Lilburne, still not more than twenty-seven years of age, is to be reckoned as one of the most prominent Anti-Presbyterians in London, an especial favourite of all the sectaries, and even of the populace generally, on account of his boundlessly libertarian sentiments and his absolute fearlessness of consequences. There

was talk of trying to get him into Parliament on a convenient opportunity. Meanwhile he took to pamphleteering, selecting as his first object of attack his old master, Prynne. In the first half of 1645 Lilburne and Prynne were seen wrestling with each other, Lilburne for toleration and Independency, and Prynne for coercion and Presbyterianism, with a ferocity hardly paralleled in any contemporary duel, and made more piquant to the public by the recollection of the former intimacy of the duellists. [Footnote: Godwin's Hist. of the Commonwealth, II. 1-24, and 418-19; Wood's Ath. III. 353-4, and 860; Edwards's *Gangræna*, Part I. 46, 47, Part II. 38, and Part III. 153 *et seq.*; Commons Journals, Jan. 17, 1644-5; Prynne's *Fresh Discovery*.]

The denunciation of Paul Best (June 10, 1645) was a Presbyterian masterstroke. Even moderate people stood aghast at the idea of tolerating opinions like his; and that the wretched owner of them could plead his liberty of conscience (which Best did in prison) was more likely than anything else to put people out of patience with Conscience and its Liberty. But, about the same time that Paul Best was put in prison to be tried for his life for Blasphemy, there were persecutions and punishments of others, whose offence was far less theological heterodoxy than mere Independency or Anti-Presbyterianism. "Blessed be God," writes Baillie, July 8, 1645, "all the London ministers are with us: Burton and Goodwin, the only two that were Independent, are by the Parliament removed from their places." In other words, John Goodwin had just been ejected from his vicarage of St. Stephen's, Coleman Street, and Henry Burton for the second time from his living in Friday Street, nominally for irregular practices in their ministry, but really because they were in the way of Prynne and the Presbyterians. Mr. Goodwin, who had a large following in the City, had little difficulty in setting up an Independent meeting-house of his own in Coleman Street; but poor old Mr. Burton seems to have been in sad straits for some time. [Footnote: Baillie, II. 299; Jackson's Life of Goodwin, 79 *et seq.*; Hanbury's

Memorials, III. 78, note.— Burton, I believe, migrated to Stepney.]—— Burton and Goodwin having been called to account, the next blow was at John Lilburne. With characteristic bluntness Lilburne had been for some months pressing the business of his own petition for arrears of pay upon the House of Commons, going to the House personally, waiting on the Speaker, circulating printed copies of his petition among the members, and always with outspoken comments on affairs, and attacks on this person and on that. On one occasion he and Prynne had met by chance, and there had been a violent altercation between them. Twice, in consequence, Lilburne had been in custody for examination as to his concern in certain Anti- Presbyterian pamphlets, but on each occasion he had been discharged. He had then gone down to the Army, and procured a letter from Cromwell, recommending his case to the House. "He hath done both you and the kingdom good service," wrote Cromwell, "and you will not find him unthankful." Returning to London, Lilburne had caused this letter to be printed and had circulated copies of it. No effect followed, and Lilburne still haunted Westminster Hall, waylaying members as they went into the House, till they abhorred the sight of him. On the 19th of July he was in the Hall, and was overheard by his enemies Colonel King and Dr. Bastwick taking part in a conversation in which dreadful things were said of the Speaker, his brother, and other public men. The information was immediately reduced to writing by King and Bastwick, and sent in to the Speaker, with this result: "*Resolved*, That Lieutenant-colonel Lilburne be taken into custody, and so kept till the House take further order." Questioned in custody by a committee of the House, Lilburne refused to answer, stood on his rights as a freeborn citizen, &c. He also caused to be printed *A Letter to a Friend*, stating his case in his own way; this Letter, as increasing his offence, was reported to the House, Aug. 9; and, on the 11th of August, having been again contumacious in private examination and committed to Newgate, he was ordered to remain there for trial at Quarter Sessions. He remained in Newgate till Oct. 14,

when he was discharged, by order of the House, without trial. [Footnote: Godwin's Hist. of the Commonwealth, II. 15-21; Commons Journals of dates given; Wood's Ath. III. 860.]

Such prosecutions of individuals formed an avowed part of the method of the Presbyterians for suppressing the Toleration heresy. Cromwell, away with the Army, could only continue to hint his remonstrances to Parliament in letters; but this he did. The greatest success of the New Model after Naseby was the storming of Bristol, Sept. 10, 1645; and in the long letter which Cromwell wrote to the Speaker, giving an account of this success (Sept. 14), he recurred to his Toleration argument. "Presbyterians, Independents, all," he wrote, "have here the same spirit of faith and prayer, the same presence and answer; they agree here, have no names of difference: pity it is it should be otherwise anywhere! All that believe have the real unity, which is most glorious, because *in* the Body and *to* the Head. For being united in forms, commonly called Uniformity, every Christian will, for peace sake, study and do as far as conscience will permit. And for brethren, in things of the mind, we look for no compulsion but that of light and reason." By order of Parliament this Letter was read in all the churches of London on Sunday, Sept. 21, and also circulated in print. It does not seem, however, to have sunk very deep. [Footnote: Carlyle's Cromwell, I. 188.—As late as 1648 I find this passage of Cromwell's letter quoted and largely commented on by the Scottish Presbyterian Rutherford (*A Survey of the Spiritual Antichrist*. 1648, p. 250 *et seq.*) in proof of Cromwell's dangerousness, and his sympathy with Familism, Antinomianism, and other errors.]

Cromwell's hints from the field in favour of Liberty of Conscience may be regarded as little "Accommodation Orders" in his own name, reminding Parliament and the Westminster Assembly of that formal "Accommodation Order" which he had moved in the House a year before, and which had then

been passed (*antè*, pp. 168-9). What had become of this Accommodation Order? The story may be given in brief:—The Grand Accommodation Committee had immediately appointed a small Sub-Committee, consisting of Dr. Temple and Messrs. Marshall, Herle, and Vines, for the Presbyterians, and Messrs. Thomas Goodwin and Philip Nye for the Independents. The business of this Sub-Committee, called "The Sub-Committee of Agreements," was to reduce into the narrowest compass the differences between the Independents and the rest of the Assembly. The Sub-Committee did their best, and reported to the Grand Committee; but for various reasons the Grand Committee postponed the subject. Meanwhile these proceedings had obtained for the Independents a re-hearing in the Assembly itself. The five original Independents in the Assembly, Messrs. Goodwin, Nye, Bridge, Burroughs, and Simpson, with Mr. William Carter and Mr. William Greenhill now added to their number, presented in writing (Nov. 14, 1644) their Reasons of Dissent from the propositions of Presbytery most disagreeable to them; [Footnote: The increase of the number of avowed Independents in the Assembly at this point from Five to Seven is worth noting. From the very first, however, there must have been a few in sympathy to some variable extent with the leading Five. Thus Baillie, as early as Dec. 7, 1643 (Letters, II. 110), speaks of "the Independent men, whereof there are some *ten* or *eleven* in the Synod, many of them very able men," and mentions Carter, Caryl, Phillips, and Sterry, as of the number. (See our List of the Assembly, Vol. II. 516-524,) There had been efforts on the part of the Independents in Parliament to bring more representatives of Independency into the Assembly. Actually, on the 2nd of Nov. 1643, the very day on which the Lords agreed with the Commons in the nomination of John Durie to succeed the deceased Calibute Downing, the Lords on their own account nominated John Goodwin of Coleman Street to ho of the Assembly, and with him "Dr. Homes of Wood Street, and Mr. Horton, Divinity Lecturer at Gresham College" (Lords Journals of

date). The Commons, whose concurrence was necessary, seem quietly to have withheld it, and thus the Assembly missed having John Goodwin in it as well as Thomas. "Homes" (Nathaniel Holmes: Wood's Ath. III. 1, 168) was also an Independent, and probably "Horton" leant that way (Thomas Horton: Wood's Fasti, II. 172).] and the Assembly produced (Dec. 17) an elaborate Answer. Copies of both documents were furnished to Parliament; but, without reference to the objections of the Independents, the essential parts of the Frame of Presbyterial Government had been ratified by Parliament in January 1644-5. [Footnote: The Reasons of Dissent by the Seven Independents and the Assembly's Answer were not published till 1648. They then appeared by order of Parliament; and they were republished in 1652 under the title of *The Grand Debate concerning Presbytery and Independency*.] Affairs then took a new turn in the Assembly. The Independents having often been taunted with being merely critical and never bringing fully to light their own views, one of them was led in a moment of heat to declare that they were quite willing to prepare their own complete Model of Congregationalism, to be contrasted with that of Presbytery. The Assembly eagerly caught at the imprudent offer, and the Seven Independents were appointed to be a committee for bringing in a Frame of Congregational Church Government, with reasons for the same. This was in March 1645; and from that time the Seven, supposed to be busy in Committee upon the work assigned them, had a dispensation from attendance at the general meetings. Spring passed, summer passed, September arrived; and still the Independents had not brought in their Model. The Assembly became impatient, and insisted on expedition. At length, on the 13th of October, the Seven presented to the Assembly—what? Not the Model on which they were supposed to have been engaged for seven months, but a brief Paper of Reasons for not bringing in a Model at all! "Upon these considerations," they said in concluding the Paper, "we think that this Assembly hath no cause to require a Report from us; nor will

that Report be of any use: seeing that Reports are for debates, and debates are for results to be sent up to the Honourable Houses; who have already voted another Form of Government than that which we shall present."—It was the astutest policy that the Independents could possibly have adopted; and the Presbyterians, feeling themselves outwitted, were furious. The machinery of the Accommodation Order had again to be put in motion by Parliament (Nov. 14). There were conferences of the Divines with members of the two Houses. What was the upshot? "The Independents in their last meeting of our Grand Committee of Accommodation," writes Baillie, Nov. 25, "have expressed their desires for toleration, not only to themselves, but to other sects." That was the upshot! Army Independency and Assembly Independency had coalesced, and their one flag now was Indefinite Toleration. [Footnote: Hetherington's Hist. of the Westminster Assembly (1843), pp. 220-236; Hanbury's Memorials, II. 548-559, and III. 1-32; Baillie, II. 270-326; Commons Journals, Nov. 14, 1645.]

The Presbyterians behaved accordingly. There was an end to their endeavours to reason over the few Independents in the Assembly, or arrange a secret compromise with them; and there was a renewed onset on the Toleration principle by the whole Presbyterian force. As if on a signal given, there was a fresh burst of Anti-Toleration pamphlets from the press. Prynne published one; Baillie sent forth his *Dissuasive* (*antè*, p. 142); and Edwards was printing his immortal *Gangræna* (*antè*, p. 141). But appeals to the public mind through the press were not enough. The real anxiety was about the action of Parliament. The expectation of the Presbyterians, grounded on recent experience, as that Parliament, even if left to itself, would see its duty clearly, and repudiate Toleration once and for ever. Still it would only be prudent to bring to bear on Parliament all available external pressure. Through December 1645 and January 1645-6, accordingly, the Presbyterians were ceaseless in contriving and promoting demonstrations in their favour. And with signal success:—Only a certain selected number of

the parish-clergy of London and the suburbs, it is to be remembered, were members of the Assembly: the mass of them remained outside that body. But this mass, being Presbyterian almost to a man, had organized itself in such a way as both to act upon the Assembly and to obey it. Since 1623 there had been in the city, in the street called London Wall, a building called SION COLLEGE, with a library and other conveniences, expressly for the use of the London clergy, and answering for them most of the purposes of a modern clubhouse. Here, as was natural, the London clergy had of late been in the habit of meeting to talk over the Church-question, so that at length a weekly conclave had been arranged, and Sion College had become a kind of discussion forum, apart from the Assembly, and yet in connexion with it. At Sion College the London Presbyterians could concoct what was to be brought forward in the Assembly, and a hint from the Assembly to Sion College in any moment of Presbyterian difficulty could summon all the London clergy to the rescue. At the moment at which we have arrived such a hint was given; and on the 18th of December, 1645, there was drawn up at Sion College a Letter to the Assembly by all the ministers of the City of London expressly against Toleration. "These are some of the many considerations," they say in the close of the Letter, "which make a deep impression upon our spirits against that Great Diana of Independents and all the Sectaries, so much cried up by them in these distracted times, namely, A Toleration—A Toleration. And, however none should have been more rejoiced than ourselves in the establishment of a brotherly, peaceable, and Christian *accommodation*, yet, this being utterly rejected by them, we cannot dissemble how, upon the fore- mentioned grounds, we detest and abhor the much-endeavoured *Toleration*. Our bowels, our bowels, are stirred within us, &c." The Letter was presented to the Assembly Jan. 1, 1645-6, and the Assembly took care that it should be published that same day.[Footnote: Cunningham's London, Art. *Sion College*; Hanbury's Memorials, III. 97-99; Stationers' Registers, Jan. 1, 1645-6.]—The

Corporation of London was as staunchly Presbyterian as the clergy, and they too were stirred up. "We have gotten it, thanks to God, to this point," writes Baillie, Jan. 15, "that the Mayor, Aldermen, Common Council, and most of the considerable men, are grieved for the increase of sects and heresies and want of government. They have yesterday had a public Fast for it, and solemnly renewed their Covenant by oath and subscription, and this day have given in a strong Petition for settling Church-government, and suppressing all sects, without any toleration." The Petition was to the Commons; and it was particularly represented to that House, by Alderman Gibbs, as the spokesman for the Petitioners, that "new and strange doctrines and blasphemies" were being vented in the City by women-preachers. [Footnote: Baillie, II. 337; Hanbury, III. 99, 100; Commons Journals, January 15, 1645-6.]

Environed by such a sea of Presbyterian excitement, what could the Parliament do? They did what was expected. They shook off Toleration as if it had been a snake. Not only did they assure the Aldermen and Common Council that there would be due vigilance against the sects and heretics; but on the 29th of January, or within a fortnight after they had received the City Petition, they took occasion to prove that their assurance was sincere. The two Baptist preachers Cox and Richardson, it seems, had been standing at the door of the House of Commons, distributing to members printed copies of the Confession of Faith of the Seven Baptist Congregations in London (see *antè*, p. 148). It was as if they had said, "Be pleased to look for yourselves, gentlemen, at the real tenets of those poor Anabaptists who are described as such monsters." But the Commons were in a Presbyterian panic; Cox and Richardson were taken into custody; and orders were issued for seizing and suppressing all copies of the Baptist Confession that could be found. This alone would prove that as late as the end of January, 1645-6, the Presbyterians, in their character of Anti-Tolerationists, were still masters of the field. [Footnote: Commons Journals, Jan. 29, 1645-6.]

PRESBYTERIAN FRAME OF CHURCH-GOVERNMENT COMPLETED: DETAILS OF THE ARRANGEMENT.

Hardly less successful had the Presbyterians been in their more proper task of perfecting their Frame of Church-government. Here, indeed, they had encountered little or no opposition from the Independents. The essentials of the Presbyterian scheme having been voted by Parliament, the Independents had quietly accepted that fact; and, though they tended, as was natural, more and more to doubt whether there ought to be any National Church at all, they had left Parliament and the Presbyterians of the Assembly to construct the detailed machine of the future English Presbytery very much as they pleased. [Footnote: Absolute Voluntaryism, as we know, was already represented in Roger Williams. The *Seekers*, his followers, were bound to the same conclusion; and accordingly, I find a little tract of six pages, in 1645, by John Saltmarsh, the Seeker and Antinomian (*antè*, p. 151-3), entitled "A New Quere, at this time seasonably to be considered, &c.. viz. Whether it be fit, according to the principles of true Religion and State to settle any Church-government over the Kingdom hastily or not." Burton was already in the same mood of hypothetical Voluntaryism (*antè*, p. 109), and I think it was spreading now among the Independents. Certainly, however, the perception of the necessary identity of the principle of Independency with absolute Voluntaryism, or the doctrine of No State Church, was not universal among them.] It was the Erastians rather than the Independents that were here the clogs upon the thorough-going Presbyterians. Selden especially was their torment. He was quite willing, O yes! that the Church of England should be thenceforward Presbyterian; but then what about the rights of the individual subject and the relations of the Church to the State? The State or central Power in every community must be, in the last resort, the guardian of all the rights and liberties of the individual subjects; there had been but one Sanhedrim in the Jewish Commonwealth, supreme in causes ecclesiastical as well as in causes civil;

but the Presbyterian Divines of the Assembly, with the Scots for their advisers, wanted the Church in England to be a separate Sanhedrim, supreme in ecclesiastical causes, and irresponsible to the State! Plying his learning in this fashion, and assisted by Whitlocke, St. John, and the other lawyers in the Assembly and in Parliament, Selden had, throughout 1645, kept up an Erastian obstruction to the Presbyterians. Now, as Prynne out of doors, with all his Presbyterianism, was also lawyer-like, and therefore staunchly Erastian, and as the Independents in Parliament made common cause with the Erastians wherever they could, the obstruction had been very formidable. "The Erastian party in the Parliament is stronger than the Independent, and is like to work us much woe," wrote Baillie in May 1645; "Mr. Prynne and the Erastian lawyers are now our *remora*" he wrote in September; and he kept repeating the complaint throughout the year. [Footnote: Baillie, II. 277, 315, and also in intermediate and following pages.]

Nevertheless great progress had been made in devising and settling the details of the Presbyterian system. What it was will be best exhibited in a dated series of paragraphs, digesting the proceedings of the Assembly and the Parliament:—

*May 1645: Presbyterian Arrangements for all England prospectively, and for London to begin with:—*That every English Congregation or Parish have its lay-elders along with its minister, just after the Scottish fashion; That the meetings of the Presbyterians be once a month; That the ecclesiastical provinces of England be about sixty in number (about co- numerous with the shires, and, in most cases, identical with them), and that the Synods of these provinces be held twice a-year, and consist of delegates from the Presbyteries; That the National Assembly be held once a year, and consist of delegates from the sixty Synods, at the rate of three ministers and two ruling elders from each, so as to form a House of about 300 members.—

That London, reckoned by a radius of ten miles from its centre, be one of the Synodical Provinces, and that the number of Classes or Presbyteries in the Synod of London be fourteen.— *Baillie*, II. 271, 272.

Aug. 23: Ordinance of Parliament, calling in all copies of the old Liturgy, enforcing the use of the new Westminster Directory of Worship, and forbidding any use of the Liturgy, even in private houses, under penalties.— *Commons Journals*.

July-Sept. 1645; Directions for the Election of Ruling Elders in Congregations, and for the Division of the English Counties into Presbyteries. July 23, the Commons resolved that Ruling Elders in congregations should be chosen by the ministers and all members duly qualified by having taken the Covenant and being of full age, save that servants without families were not to have votes: no man to be a ruling elder in more than one congregation, and that in the place of his usual residence. July 25, they appointed a committee of forty-seven of their own body to find out the fittest persons to be a committee for superintending the elections of Elders for the Congregations and Presbyteries of London, and at the same time to prepare a letter to be sent down into the counties by the Speaker, giving instructions for the formation of County-Committees to consider the best division of the counties respectively into Presbyteries. The letter was ready Sept. 17, when it was ordered to be sent down into the counties, with a copy of the Votes and Ordinances on the subject of the election of Elders that had then passed and been concurred in by the Lords.—*Commons Journals*.

Sept.-Dec. 1645: Special Presbyterian Arrangements for London. It having been resolved by the Commons (Sept. 23) that there should be a choice of Elders forthwith in London, the aforesaid Committee of forty-seven reported to the House (Sept. 26) the names of the persons judged

most suitable to be TRIERS of the ability and integrity of the Elders that should be elected, and of the validity of their election according to the Parliamentary regulations. In each of the twelve London Classes or Presbyteries (there were only *twelve* as yet) there were to be nine of these Triers—three ministers and six lay citizens; and they were to decide all questions by a majority of votes. Thus there were to be 108 Triers in all in London. Their names are all registered. The machinery being thus ready, the Lord Mayor was requested, Oct. 8, to intimate to all the London ministers the desire of Parliament that Congregations should at once proceed to the election of their Elders.—Dec. 5, it was ordered that the whole world of the lawyers—*i.e.* the Chapel of the Rolls, the two Serjeants' Inns, and the four Inns of Court—should be constituted into a Presbytery by itself, but divided into two Classes. Triers were also appointed for the Elders in this peculiar Presbytery, one of them being William Prynne.—*Commons Journals of dates cited.*

Nov. 8, 1645: *New Ordinance for the Ordination of Ministers.* In this long Ordinance the original identity of Bishop and Presbyter is asserted, and consequently the right of Presbyters, without any so-called Bishop among them, to ordain; nevertheless the ordinations by the late Bishops are recognised as valid. Directions are then given to Presbyters for the examination of candidates for the ministry in future, and for the formalities to be observed in their ordination. Every candidate must be twenty-four years of age at least, and must be tried not only in respect of piety, character, preaching ability, and knowledge of divinity, but also in respect of skill in the tongues and in Logic and Philosophy; and congregations were to have full opportunity of stating exceptions against ministers offered them. From a clause in the Ordinance it appears that certified ordination in Scotland was to be accepted in England.—*Lords Journals.*

Powers of the Congregational Elderships in suspending from Church-membership, and excluding from the Communion. This was perhaps the most important subject of all, for it involved the mode of the action of the new Presbyterian system at the heart of social life and its interferences with the liberties of the individual. Parliament was naturally slow and jealous on this subject, so that the discussion of it, part by part, extended over the whole year 1645. The briefest sketch of results must suffice here:—The Assembly having sent in to Parliament a Paper concerning the exclusion of ignorant and scandalous persons from the Sacrament of the Lord's Supper, the Parliament had desired a more particular definition by the Assembly of what they included in the terms *ignorant* and *scandalous*. The Assembly having then sent in an explanation, in which, under the head of the *ignorance* that should exclude from the Lord's Table, they mentioned "the not having a competent understanding concerning the Trinity," the Commons (March 27, 1645) had desired to know what the Assembly considered to be a competent understanding concerning the Trinity, The Assembly having farther declared, under the same head of *ignorance*, that no persons ought to be admitted to the Lord's Table who had not a "competent understanding" of the Deity, of the state of Man by Creation and by his Fall, of Redemption by Jesus Christ and the means to apply Christ and his benefits, of the necessity of Faith, Repentance and a Godly life, of the Nature and Use of Sacraments, and of the Condition of Man after this Life, the Commons had still demurred about the "competent understanding," and had begged the Assembly to be more precise and business-like (April 1). At length, some resolutions having been come to about the "competent understanding," and there being less difficulty in deciding who should come under the category of the *scandalous*, the Commons had before them a pretty extensive index of the kinds of persons, whether *ignorant* or *scandalous*, whom the Congregational Elderships were to be empowered to suspend or debar from the Communion. The index was

not complete, I think, till January 1645-6; by which time, after numerous discussions, it included, in addition to the grossly ignorant in the elementary articles of Christianity, and to murderers, notorious drunkards, swearers, *et hoc genus omne*, a considerable list of such varieties of offenders as these—makers of images of the Trinity, worshippers of saints, persons sending or accepting challenges, persons playing at games selling wares or unnecessarily travelling on Sunday, persons consulting witches, persons assaulting magistrates or their own parents, persons legally convicted of perjury or bribery, persons consenting to the marriage of their children with Papists, and, finally, the maintainers of errors that subvert the prime Articles of Religion. To provide, moreover, for cases not positively enumerated, there were to be commissioners in every ecclesiastical province authorized to decide on such cases, when represented to them by ministers and the elderships. All this, with much more of the same kind, was partly agreed upon, partly still under Parliamentary consideration, in the beginning of 1646.—*Commons Journals, with references there to the Lords Journals.*

THE RECRUITING OF THE COMMONS; EMINENT RECRUITERS.

January 1645-6, I think, was the month in which Presbyterianism was in fullest tide. After that month, and through the spring and early summer of 1646, there was a visible ebb. The cause may have been partly that continued triumph everywhere of the New Model Army which had brought the War obviously to its fag-end, and now, perhaps, suggested to Parliament and the Londoners the uncomfortable idea that the marching mass of Independency, relieved from its military labours, would soon be re-approaching the capital, and at leisure to review the proceedings of its masters. There was, however, a more obvious cause. This was the increase

of the Independent Vote in the House of Commons by the gradual coming in of the RECRUITERS.

By the outbreak of the Civil War in August 1642, and the consequent desertion of the House of Commons by two-thirds of its members, most of whom were then or afterwards formally disabled, the House, as we know, had been reduced to a mere stump of what it ought to have been constitutionally. There had been complaints about this outside, and regrets within the House itself; but it was felt that a time of Civil War could not be a time for Parliamentary elections. How could there be such elections while the King's forces were in possession of large regions of England, and these the very regions where most seats were vacant? For three years, therefore, the House had allowed the vacant seats in it to remain vacant, and had persisted in the public business in the state to which it had been reduced, *i.e.*, with a nominal strength at the utmost of about 280, and a constant working attendance of only 100 or thereabouts. Not till after Naseby, and the recovery of more and more of English ground for Parliament by the successes of the New Model, was it deemed prudent to begin the issue of new writs; and even then the process was careful and gradual.

The first new writs issued were in Aug. 1645, and were for Southwark, St. Edmundsbury, and Hythe; in September there followed 95 additional new writs for boroughs or counties; in October there were 27 more; and so on by smaller batches in succeeding months, until, by the end of the year, 146 new members in all had been elected. This did not complete the process; for 89 new members more remained to be elected in the course of 1646, bringing the total number of the Recruiters up to about 235. Now, among these Recruiters, all of them Parliamentarians in the main sense, there were both Presbyterians and Independents. As Presbyterians, more or less, may be reckoned, among those elected before January 1645-6, Major-general RICHARD BROWNE (Wycombe), Major-general EDWARD

MASSEY (Wootton Bassett), WALTER LONG, Esq. (Ludgershall, Wilts), and CLEMENT WALKER, Esq. (Wells): this last a very peculiar-tempered person from Somersetshire, a friend of Prynne's, and described by himself as an "elderly gentleman, of low stature, in a grey suit, with a little stick in his hand." Decidedly more numerous among the Recruiters, however, were men who might be called Independents, or were at least Tolerationists. Among such, all elected before January 1645-6, or not later than that month, may be named Colonel ROBERT BLAKE (Taunton), Sir JOHN DANVERS, brother of the late Earl of Danby (Malmesbury), the Hon. JOHN FIENNES, third son of Viscount Saye and Sele (Morpeth), GEORGE FLEETWOOD, Esq. (Bucks), Colonel CHARLES FLEETWOOD (Marlborough), Sir JAMES HARRINGTON (Rutland), the Hon. JAMES HERBERT, second son of the Earl of Pembroke (Wilts), Colonel JOHN HUTCHINSON (Notts), Commissary-general HENRY IRETON (Appleby), HENRY LAWRENCE, Esq., a gentleman of property and some taste for learning and speculation (Westmoreland), Sir MICHAEL LIVESEY (Queenborough), Colonel EDMUND LUDLOW (Wilts), SIMON MAYNE, Esq. (Aylesbury), young Colonel EDWARD MONTAGUE (Hants), Colonel RICHARD NORTON (Hants), Colonel CHARLES RICH (Sandwich), Colonel EDWARD ROSSITER (Great Grimsby), THOMAS SCOTT (Aylesbury), young Colonel ALGERNON SIDNEY (Cardiff), Colonel WILLIAM SYDENHAM (Melcombe Regis), and PETER TEMPLE, Esq. (Leicester). Of this list, nearly half, it may be noted, were or had been officers in the New Model. The fact was very significant. It was still more significant that among these New Model officers elected among the first Recruiters there was a knot of men who were already recognised as in a special sense Cromwellians. Almost all the New Model officers were devoted to Cromwell; but Ireton was his *alter ego*, and young Fleetwood, young Montague, young Sidney, and young Sydenham, belonged to a group known in the Army as Cromwell's

passionate admirers and disciples. [Footnote: The statistics of the Recruiting in this paragraph are from my own counting of the New Writs from Aug. 1645 onwards in the Commons Journals, checked by Godwin's previous counting or calculation (*Hist. of Commonwealth*, II. 38, 39), and by the noting of new writs in the list of members of the Long Parliament given in the *Parl. Hist.* (II. 599-629). Among the individual Recruiters named I have tried not to include any whose election was *later* than Jan. 1645-6, and have trusted, in that particular, to the notices of new writs in the Commons Journals and the *Parl. Hist.*; but one cannot be perfectly sure that in each case an election immediately followed the new writ. My often-cited fly-sheet authority, Leach's *Great Champions of England*, has been of use. It distinguishes 131 Recruiters as of Parliamentary note before the end of July, 1646; but its list of Recruiters up to that date is neither complete nor accurate.—The description of Clement Walker is from his own *Hist. of Independency* (edit. 1660), Part I. p. 53.—The county in which there had to be most Recruiting, *_i.e._* in which there were most vacant seats, was Somersetshire. Nearly all the seats were vacant there. A large proportion of the seats was vacant in Notts, Yorkshire, Sussex, Westmoreland, and Wales.—The Recruiting went on not only through 1646, but also in stray cases through subsequent years; and FAIRFAX, SKIPPON, HARRISON, INGOLDSBY, among military men, and PRYNNE himself among civilians, came at length into the House.]

Not *called* Recruiters, but practically such for the Independents, were two original members who, after having been out of the House for a long while, were now restored to their places. These were Nathaniel Fiennes, *alias* "Young Subtlety," and the witty and freethinking Henry Marten. Fiennes, having been tried by court-martial and sentenced to death in December 1643, for his surrender of Bristol (*antè*, p. 6), had been forgiven and allowed to go abroad; but opinion of his conduct in that affair had meanwhile become more favourable, and before the end of 1645 he

returned and resumed his seat. Marten (Vol. II. p. 166) had been expelled from the House by vote, Aug. 16, 1643, for words too daringly disrespectful of Royalty—in fact, for premature Republicanism; but, the House having become less fastidious in that matter, and his presence being greatly missed, the vote was rescinded January 6, 1645-6, and the record of it expunged from the Journals. [Footnote: Godwin's Commonwealth, II. 77, 78; Wood's Ath. III. 878 and 1238; and Commons Journals of dates given.]

Although as many as 146 Recruiters had been elected before the end of the year, they appear to have taken their places but slowly. Not till January 26, 1645-6, does one perceive any considerable effect on the numbers of the House. On that day there was a House of at least 183, the largest there had been for many a day—larger by 13 than the House that had made Fairfax commander-in-chief twelve months before. And thenceforward the numbers keep well up. On two occasions early in February there were Houses of 203 and 202 respectively; and before the summer of 1646 there were members enough at hand to form on great field-days Houses of from 250 to 270. By that time some of the military men among the Recruiters were able to be present. [Footnote: My notes of Divisions, from the Commons Journals.]

EFFECTS OF THE RECRUITING: ALLIANCE OF INDEPENDENCY AND ERASTIANISM: CHECK GIVEN TO THE PRESBYTERIANS: WESTMINSTER ASSEMBLY REBUKED.

As soon as the Recruiting had begun to tell upon the *numbers* of the House, an effect on the *policy* of the House is also perceptible. Thus on Feb. 3, the very day when the Commons mustered a House of 203, a division took place involving Toleration in a subtle form. The question was whether in a Declaration setting forth the true intentions of the House in Church-matters this clause should be inserted: "A fitting care shall be taken of tender consciences, so far as may stand with the Word of God and the Peace of the

Kingdom." This, though mild enough, displeased the Presbyterians, and was proposed from their side that the words "Church and" should be inserted before the word "Kingdom." On a division the *Yeas* (for adding the words and so making the pledge of a toleration weaker) were 105, and had for their tellers the Presbyterian party-chiefs, Denzil Holles and Sir Philip Stapleton; but 98 *Noes* rallied round Sir Arthur Haselrig and Sir Henry Mildmay, the tellers for the Opposition. [Footnote: Commons Journals of date.] A wavering of the balance towards Independency and Toleration was indicated by this vote; but it was not till the following month that the balance was decisively turned, and then not directly on the Toleration question, but on that great related question of the "Power of the Keys" which the Presbyterians of the Assembly wanted to see settled in their favour before they could consider the Presbyterian establishment perfect. If the phrase "Power of the Keys" should seem a mystic one to English readers now, it will perhaps be cleared up by the following story of what happened in March 1645-6.

On the 5th of that month the Commons passed and sent up to the Lords one all-comprehensive Ordinance, recapitulating in twenty-three Propositions the substance of their various Presbyterian enactments up to that date. [Footnote: See the Ordinance in the Commons Journals of the date. It is a clear and excellent summary of what had been done and what was intended in the matter of Presbyterian Establishment.] What these were we have just seen (*antè*, pp. 397-400). They amounted, as one might now think, to a sufficiently strict Presbyterianizing of all England, with London first by way of example. The Presbyterian Divines were not ill satisfied on the whole; but they had not succeeded to the full extent of their wishes, and there were various matters in the Recapitulating Ordinance that they hoped yet to see amended. In particular, notwithstanding all their efforts for months past to indoctrinate the Parliament with the right Presbyterian theory of the independent spiritual jurisdiction of the Church, the natural

Erastianism of the lay mind had been so strong in the Commons that the 14th Proposition of the Recapitulating Ordinance stood as follows:—

"XIV. That, in every Province, persons shall be chosen by the Houses of Parliament that shall be Commissioners to judge of scandalous offences (not enumerated in any Ordinance of Parliament) to them presented: And that the Eldership of that Congregation where the said offence was committed shall, upon examination and proof of such scandalous offence (in like manner as is to be done in the offences enumerated), certify the same to the Commissioners, together with the proof taken before them: And before the said certificate the party accused shall have liberty to make such defence as he shall think fit before the said Eldership, and also before the Commissioners before any certificate shall be made to the Parliament: And, if the said Commissioners, after examination of all parties, shall determine the offence, so presented and proved, to be scandalous, and the same shall certify to the Congregation, the Eldership thereof may suspend such person from the Sacrament of the Lord's Supper, in like manner as in cases enumerated in any Ordinance of Parliament."

Here was wormwood for the Presbyterians; and over this 14th Article, and one or two subsequent articles, settling farther details of the superiority of the proposed Parliamentary Commissioners over the Church Courts, and also reserving the appeal of ecclesiastical questions to Parliament, they prepared to fight a most strenuous battle. The Assembly, the City Corporation, the City ministers in their Sion College conclave, and the Scottish Commissioners, all flew to arms. Their first hope was with the Lords; and *them* they nearly conquered. On the 13th of March there was a long debate in that House on the whole Ordinance, and especially its 14th Article; and, out of twenty-one Peers present, *nine* were so opposed to that Article that, before the vote was taken, they begged leave to be allowed to register their protest if the vote went against them. These Peers were the

Earls of Essex, Manchester, Warwick, Bolingbroke, and Suffolk, and Lords Willoughby, Roberts, Dacres, and Bruce. There were, however, *twelve* Peers in favour of the Erastian Article: viz. the Earls of Northumberland, Kent, Pembroke, Salisbury, Denbigh, Nottingham, Stamford, and Middlesex, and Lords North, Howard of Escrick, Wharton, and Grey of Wark. Four of the minority, viz. Essex, Manchester, Bolingbroke, and Bruce, did then protest, on the ground that they considered the institution of Parliamentary Commissioners apart from the Church Courts inconsistent with the Solemn League and Covenant. The entire Ordinance, with insignificant amendments, thus passed the Lords; and, the Commons having accepted the amendments, it became law on the 14th of March. [Footnote: Commons Journals, Feb. 27, and March 3, 5, and 14, 1645-6; and Lords Journals, March 13 and 14.]

Was it, then, such a mongrel Presbytery as this, an Erastian Presbytery, a Presbytery controlled and policed by Parliamentary Commissioners, that was to be set up in England? Not if the Presbyterian clergy of England, with all Scotland to aid them, could prevent it! "We, for our part [the Scottish Commissioners]," writes Baillie, March 17, "mind to give in a remonstrance against it; the Assembly will do the like; the City ministers will give the third; but that which, by God's help, may prove most effectual is the zeal of the City itself. Before the Ordinance came out, they petitioned against some materials of it. This both the Houses voted to be a breach of their privilege, to offer a petition against anything that is in debate before them, till once it be concluded and come abroad. This vote the City takes very evil: it's likely to go high betwixt them. Our prayers and endeavours are for wisdom and courage to the City." [Footnote: Baillie, II. 361.] Within a fortnight, however (March 31), Baillie writes, in a postscript to the same letter, in a much more downcast mood. "The leaders of the people," he says, "seem to be inclined to have no shadow of a King, to have liberty for all Religions, to have but a lame Erastian Presbytery, to be so injurious to us [the Scots] as

to chase us home with the sword. ... Our great hope on earth, the City of London, has played *nipshot* [*i.e.* miss-fire or burnt priming]: they are speaking of dissolving the Assembly." [Footnote: Ibid. II. 362.]—To understand this wail of Baillie's we have again to turn to the Journals of the Commons.

Having passed the all-conclusive Ordinance for Presbytery, the two Houses had resolved to stand on their dignity, and resent the attempted dictation of the City, the Sion College conclave, the Assembly, and the Scottish Commissioners. They had already, as Baillie informs us, made a beginning, while the Ordinance was yet in progress, by voting a petition of the City against some parts of it to be a breach of privilege. At this, as late as March 17, the City was in proper dudgeon, and vowed that Parliament should hear from it again on the subject. Before a fortnight had elapsed, however, there was a wonderful change. News had come to London of Hopton's final surrender to the New Model in Cornwall, of the defeat of Astley in Gloucestershire with the last shred of the King's field-force, and in fact of the absolute ending of the war, except for the few Royalist towns and garrisons that had yet to make terms. In the midst of the universal joy, why dwell on a difference between the City and Parliament as to the details of the Presbyterian mechanism? Accordingly, on Friday, March 27, divers Aldermen and others were at the door of the House of Commons, not to remonstrate farther this little difference, but to beg that the House would "so far honour" the City as to dine with the Corporation at Grocers' Hall on the following Thursday, being Thanksgiving Day, after the two usual sermons! The House was most gracious, and accepted the invitation; and this restoration of good feeling between Parliament and the City was probably the "nipshot" or miss-fire which Baillie lamented on the 31st.—The City being out of the business for the time, it was easier for the Parliament to deal with the other parties. To the Scottish Commissioners hints were conveyed, as politely as possible, that Parliament would prefer having less

of their valuable assistance in the governing of England. With the Westminster Assembly and the London Divines there was less ceremony. The Assembly *had* drawn up a Petition or Remonstrance against the Articles of the conclusive Ordinance of March 14, providing for an agency of Parliamentary Commissioners to aid and supervise the Church judicatories. "The provision of Commissioners," they said, "to judge of scandals not enumerated appears to our consciences to be contrary to that way of government which Christ hath appointed in his Church, in that it giveth a power to judge of the fitness of persons to come to the Sacrament unto such as our Lord Jesus Christ hath not given that power unto;" and they added that the provision was contrary to the Solemn League and Covenant, and besought Parliament to cancel it and put due power into the hands of the Elderships. This Petition, signed by the Prolocutor, one of the Assessors, and the ten Scribes of the Assembly, was presented to the two Houses, most imposingly, March 23, When Baillie wrote his lamentation he did not know the precise result, but he guessed what it was to be.

It was worse than Baillie could have guessed. After much inquiry and consultation about the Assembly's Petition, the Commons, on the 11th of April 1646, came to two sharp votes. The first was on the question "Whether the House shall first debate the point concerning the Breach of Privilege in this Petition;" and it was carried in the affirmative by 106 *Yeas*, told by Evelyn of Wilts and Haselrig, against 85 *Noes*, told by Holles and Stapleton. The question was then put "Whether this Petition, thus presented by the Assembly of the Divines, is a Breach of Privilege of Parliament;" and on this question, the tellers on both sides being the same, 88 voted *Yea* and 76 *No*: *i.e.* it was carried by a majority of 12 that the Assembly, in their Petition, had been guilty of a grave political offence, for which they might be punished individually, by fine or imprisonment or both. No such punishment, of course, was intended. It was enough to shake the rod over the Assembly. A Committee, including Haselrig, Henry Marten, the younger Vane, and Selden, was appointed to prepare a Narrative on the whole subject, with a statement of the particulars; and this Narrative, ready April 21, was discussed clause by clause, and adopted. It is a striking document, quiet and tight in style, but most pungent in matter. It begins with an assertion of the supremacy of Parliament in all matters whatsoever; it recites the specific purposes for which the Assembly had been called by Parliament, and the limitations imposed upon it by the Ordinance to which it owed its being; and it proceeds to this rebuke: "The Assembly are not authorized, as an Assembly, by any Ordinance or Order of Parliament, to interpret the Covenant, especially in relation to any law made or to be made; nor, since the Law passed both Houses concerning the Commissioners, have [the Assembly] been required by both or either of the Houses of Parliament, or had any authority before from Parliament, to deliver their opinions to the Houses on matters already judged and determined by them. Neither have they the power to debate or vote whether what is passed as a Law by both Houses be agreeing or disagreeing to the

Word of God, unless they be thereunto required." On the day on which the Narrative containing this passage of rebuke was adopted (April 21) a Committee was appointed to communicate it, with the appertaining Vote of the Commons, "in a fair manner," to the Assembly. Actually, on the 27th of April the communication was made most ceremoniously, and from that day the Assembly knew itself to be under curb. [Footnote: For the facts of this and the preceding paragraph the authorities are Commons and Lords Journals, March 23, 1645-6, and Commons Journals of April 1, 3, 8, 11, 16, 18, 21, and 24, 1646. The Lords Journals give the Assembly's Petition; the Narrative of the Commons is in their Journals for April 21.—It is strange, in modern times, to note the frequency with which the Parliament, and even the popular party in it, resorted to the fiction of Breach of Privilege in order to quash opposition to their proceedings. Sometimes, as in the Vote about the City Petition recently mentioned, it was the Breach of Privilege to assume to know what was going on in Parliament or petition against any measure while it was pending; at other times, as now, it was a Breach of Privilege to question by petition a measure already determined. In the present case, however, the Commons seem to have founded on the fact that the Assembly, "as an Assembly," had transgressed its powers. Individually, they seem to say, the Divines might have petitioned, but not as an Assembly, the creature of the Parliament whose acts they censured.]

Not only under curb, but thrown to the ground, and baited with sarcasms and interrogatories! Thus, on the 17th of April, six days after the Vote of Breach of Privilege, but four days before the Vote and the accompanying Narrative had been communicated officially to the Assembly, there was finally agreed upon by the Commons that Declaration as to their true intentions on the Church question which had been in preparation since February 3, and in this Declaration there was a double-knotted lash at the prostrate Assembly. Parliament, it was explained, had adopted most of the Assembly's recommendations as to the Frame of Church-government to be

set up, with no exception of moment but that of the Commissioners; in which exception Parliament had only performed its bounden duty, seeing it could not "consent to the granting of an arbitrary and unlimited power and jurisdiction to near 10,000 judicatories to be erected in this kingdom." Farther it was announced that Parliament reserved the question of the amount of toleration to be granted under the new Presbyterian rule to "tender consciences that differ not in fundamentals of Religion." But there was more to come. Selden and the Erastians, and Haselrig, Vane, Marten, with the Independents and Free Opinionists, had been nettled by those parts of the Assembly's Petition which assumed that the whole frame of the Presbyterian Government scheme by the Assembly was *jure divino*. They resolved to put the Assembly through an examination about this *jus divinum*. On the 22nd of April, therefore, there was presented to the House, by the same Committee that had prepared the Narrative of the Breach of Privilege, a series of nine questions which it would be well to send to the Assembly. "Whether the Parochial and Congregational Elderships appointed by Ordinance of Parliament, or any other Congregational or Presbyterian Elderships, are *jure divino*, and by the will and appointment of Jesus Christ; and whether any particular Church- government be *jure divino*, and what that government is?"—such is the first of the nine queries; and the other eight are no less incisive. They were duly communicated to the Assembly; it was requested that the Answers should be precise, with the Scripture proofs for each, in the express words of the texts; every Divine present at a debate on any of the Queries was to subscribe his name to the particular resolution he might vote for; and the dissentients from any vote were to send to Parliament their own positive opinions on the point of that vote, with the Scripture proofs. Selden's hand is distinctly visible in this ingenious insult to the Assembly. [Footnote: Commons Journals, April 17 and April 22, 1646; Baillie, II. 344.] It was a more stinging punishment than

adjournment or dissolution would have been, though that also had been thought of, and Viscount Saye and Sele had recommended it in the Lords.

In the midst of these firm dealings of the Parliament with the Assembly, Cromwell was back in London. He was in the House on the 23rd of April 1646, and received its thanks, through the Speaker, for his great services. He probably brought a train of his young Cromwellians with him (Ireton, Fleetwood, Montague, &c.) to swell the number of Recruiters that had already taken their seats. In the course of May, at all events, there were Houses of 269, 241, 261, 259, and 248, and the Recruiters had so increased the strength of the Independents and Erastians that a relapse into the policy of ultra-Presbyterianism and No Toleration appeared impossible. [Footnote: Baillie, II. 369, and Commons Journals for several days in May 1646.]

NEGOTIATIONS ROUND THE KING—AT NEWCASTLE: THREATENED RUPTURE BETWEEN THE SCOTS AND THE ENGLISH: ARGYLE'S VISIT TO LONDON.

Suddenly, by the King's flight to the Scottish Army at Newark (May 5), and by the retreat of that army, with the King in their possession, to the safer position of Newcastle (May 13), the whole condition of things was changed. The question between Independency and Presbyterianism, and the included question of Toleration or No Toleration, were thrown, with all other questions, into the crucible of the negotiations, between the English and the Scots, round the King at Newcastle.

It was known that the strife between the Independents and the Presbyterians had long been a solace to Charles, and a fact of great importance in his calculations. Should he fail to rout both parties and reimpose both Kingship and Episcopacy on England by force of arms, did there not remain for him, at the very worst, the option of allying himself

with that one of the parties with which he could make the best bargain? Now that he had been driven to the detested alternative, he had, it appeared, though not without hesitation, and indeed partly by accident, given the Presbyterians the first chance. He had done so, it was true, in a circuitous way, but perhaps in the only way open to him. To have surrendered himself to the English Presbyterians was hardly possible; for, had he gone to London with that view, how could the Presbyterians of the Parliament and the City have protected him, or kept him to themselves, when the English Army that would then instantly have closed round London was an Army of Independents? By placing himself in the hands of the Scottish Army, had he not cleverly avoided this difficulty, receiving temporary protection, and yet intimating that it was with the Presbyterians that he preferred to treat? So, in fact, the King's flight to the Scots was construed by the English Presbyterians. They were even glad that it had fallen to the Scots to represent for the moment English Presbyterianism as well as Scottish, advising Charles in his new circumstances, and ascertaining his intentions. And the Scots, on their part, it appeared, had accepted the duty.

Hardly was the King at Newcastle when there were round him not only General Leven, Major-general Leslie, and the Earls of Lothian, Balcarres, and Dunfermline, all of whom had chanced to be at Newark on his reception there, but also other Scots of mark, expressly sent from Edinburgh and from London. The Earl of Lanark was among the first of these. Argyle himself, who had been excessively busy in Scotland and in Ireland since the defeat of Montrose, thought his presence now essential in England, and hastened to be with his Majesty. The Chancellor Loudoun made no delay, but was off from London to Newcastle on the 16th of May. Above all, however, it was thought desirable that Alexander Henderson should be near his Majesty at such a crisis. Accordingly, some days before Loudoun's departure, Henderson had taken leave of his brother-divines, Baillie, Rutherford, and Gillespie, with Lauderdale and Johnstone of Warriston, in

their London quarters at Worcester House, and, though in such a state of ill-health as to be hardly fit to travel, had gone bravely and modestly northwards to the scene of duty. How much was expected of him may be inferred from a jotting in one of Baillie's letters just after he had gone. "Our great perplexity is for the King's disposition," wrote Baillie on the 15th of May: "how far he will be persuaded to yield we do not know: I hope Mr. Henderson is with him this night at Newcastle." [Footnote: Baillie, II. 370 *et seq.*]

The immediate object of the Scots round Charles was to induce him to take the Covenant. That done, they had little doubt that they would be able to bring him and the English Parliament amicably together.—Charles, however, at once showed by his conduct that the current interpretation of the meaning of his flight to the Scots had been too hasty. It was not because he wanted to bargain with the Presbyterians as against the Independents that he had come to the Scots; it was because he had the more subtle idea that he might be able to bargain with the Scots as such against the English as such. He hoped to wrap himself up in the nationality of the Scots; he hoped to appeal to them as peculiarly their sovereign, born forty-six years before in their own Dunfermline, once or twice their visitor since, always remembering them with affection, and now back among them in his distress. [Footnote: On the verge of a wooded dell or glen close to the burgh of Dunfermline, in Fife, there still stands one fine length of ruined and ivy-clad wall, the remains of the palace in which, on the 19th of November 1600, Charles I. was born. The dell, with the adjacent Abbey, is sacred with legends and stony memorials of the Scottish royal race, from the days of Malcom Canmore and his Queen Margaret.] Of course, in such a character, concessions to *their* Presbyterianism would have to be made; but these concessions had all, in fact, been made already, and involved no new humiliation. It was about Episcopacy in England, his English coronation oath, his English sovereignty, that he was mainly anxious; and what if, from

his refuge among the Scots, and even with the Scots as his instruments, he could recommence, in some way or other, his struggle with the English? Charles did labour under this delusion. When he had come among the Scots it was actually with some absurd notion that Montrose, who still lurked in the Highlands, might be forgiven all the past and brought back, as one of his Majesty's most honoured servants, though recently erratic, into the society of Argyle, Loudoun, Lanark, and the rest of the faithful. [Footnote: See in Rushworth (VI. 266-7) a Letter of the King's to the Marquis of Ormond in Ireland, dated from Oxford, April 13, 1646, and explaining his reasons for his then meditated flight to the Scots. "We are resolved to use our best endeavours, with their assistance," says Charles, speaking of the Scottish Army, "and with the conjunction of the forces under the Marquis of Montrose and such of our well-affected subjects as shall rise for us, to procure, if it may be, an honourable and speedy peace." At the same time (April 18) Charles had written to Montrose himself to the same effect. The infatuation that could believe in the possibility of such a combination was monstrous.]—A day or two among the Scots had undeceived him. They repudiated at once any supposed arrangement with him arising out of the negotiations of Montreuil; they repudiated expressly the notion that they could by possibility have been so false to the English Parliament as to have pledged themselves to a separate treaty. Charles, they maintained, had come among them voluntarily and without any prior compact. Most willingly, however, would they do their best for him in the circumstances. If he would declare his renunciation of Episcopacy and acceptance of Presbyterianism for England, and especially if he would do this in the best mode of all, by personally taking the Covenant, then they did not doubt but a way would be opened for a final treaty with England in which they could assist.

Perforce Charles had now to disguise the real motive of his coming among the Scots, and let the interpretation at first put upon it continue current. Not, of course, that he would take the Covenant, or in any way

commit himself even now to Presbytery. But, while he stood firm against the proposal that he should himself take the Covenant (which would have been to abjure Episcopacy personally), and while he refrained from committing himself to an acceptance of Presbytery for his English realm, he does not appear to have objected to the impression that on this second matter he might yield to time and reason. And so, while writing in cipher to Queen Henrietta Maria, complaining of the "juggling" of the Scots, because they would not break with the English Parliament in his behalf, and while urging the Queen in the same letters to press upon Cardinal Mazarin, and through him on the Pope, the scheme of a restitution of Episcopacy in England by Roman Catholic force, on condition of "free liberty of conscience" for the Catholics in England and "convenient places for their devotions," he was patiently polite to the Presbyterians around him, and employed part of his leisure in penning, from the midst of them, letters of a temporizing kind to the two Houses of Parliament, and the Mayor, Aldermen, and Common Council of London. The letter to the City (May 19) was short and general, but cordial. That to the Parliament (May 18) was a proposal of terms. A speedy settlement of the Religious Question by the wisdom of Parliament with the advice of the Assembly (no word of Episcopacy or Presbytery, but some compromise with Presbytery implied); the Militia to be as proposed in the Treaty of Uxbridge— *i.e.* to be for seven years in the hands of Parliament, and after that a fresh agreement to be made; Ireland to be managed as far as possible as Parliament might wish: such were his Majesty's present propositions. [Footnote: Letters of Charles numbered XXV. XXVI. and XXVII. (pp. 39-43) in Mr. Bruce's *Charles I. in 1646*; Parl. Hist. III. 471 *et seq.*] He would be glad, however, to receive those of Parliament.

There was a Presbyterian ecstasy in London on the receipt of these letters. The Corporation, which had, to Baillie's grief, so inopportunistically played "nipshot" in the end of March, and left the Assembly and Sion

College to bear the brunt, now hastened to make amends. Headed by Alderman Foot, a famous City orator, they presented, May 26, a Remonstrance to both Houses of Parliament, couched in terms of the most unflinching Presbyterianism, Anti-Toleration, and confidence in the Scots. "When we remember," they said, "that it hath been long since declared to be far from any purpose or desire to let loose the golden reins of discipline and government in the Church, or to leave private persons or particular congregations to take up what form of divine service they please; when we look upon what both Houses have resolved against Brownism and Anabaptism, properly so called; when we meditate upon our Protestation and Covenant; and, lastly, when we peruse the Directory and other Ordinances for Presbyterian government; and yet find private and separate congregations daily erected in divers parts of the city and elsewhere, and commonly frequented, and Anabaptism, Brownism, and almost all manner of schisms, heresies, and blasphemies, boldly vented and maintained by such as, to the point of Church-government, profess themselves to be Independents: we cannot but be astonished." After more complaints, they end with petitions for Presbyterian Uniformity, the suppression of Independent congregations, the punishment of Anabaptists and other sectaries, strict union with the Scots, &c., all to be combined with immediate "Propositions to his Majesty for settling a safe and well-grounded Peace." There was but one meaning in this. The City was the mouthpiece; but in reality it was the united ultra- Presbyterianism of the City, the Assembly, Sion College, and some of the Presbyterian leaders in Parliament, trying to turn the King's presence with the Scots into an occasion for any practicable kind of peace whatsoever that would involve the overthrow of Independency, the Sects, and Toleration. The House of Lords bowed before the blast, and returned a gracious answer. The Commons, after two divisions, of 148 to 113, and 151 to 108, in favour of returning some kind of answer, returned one which was curt and general.

The divisions indicate the gravity of the crisis. The Independents, thinned perhaps in numbers by the action of the Newcastle peace-chances upon weaker spirits, but with Cromwell, Haselrig, and Vane as their leaders, formed now what was avowedly the Anti-Scottish party, profoundly suspicious of the doings at Newcastle, and taking precautions against a treaty that should be merely Presbyterian. The Presbyterians, on the other hand, with Holles, Stapleton, and Clotworthy as their chiefs, were as avowedly the Pro-Scottish party, anxious for a peace on such terms as the King might be brought to by the help of the Scots. [Footnote: Parl. Hist. III. 474-480; Lords Journals, May 26, 1646; Commons Journals of same date; Whitlocke's Memorials (ed. 1853), II. 27.]

Through June the struggle of the parties was continued in this new form. At Newcastle the Scottish Commissioners, with Henderson among them, were still plying the King with their arguments for his acceptance of the Covenant and Presbytery. To these, in their presence, he opposed only the most stately politeness and desire for delay; but in his letters to the Queen he characterized them as "rude pressures on his conscience." The phrase is perfectly just in so far as there was pressure upon him to accept Presbytery and the Assembly's Directory of Worship for himself and his family, and it might win our modern sympathies even beyond that range but for the evidences of incurable Stuartism which accompanied it. He amuses the Queen in the same letters with an analysis he had made of the Scots from his Newcastle experience of their various humours. He had analysed them into the four factions of the "Montroses" or thorough Royalists, the "Neutrals," the "Hamiltons," and the "Campbells" or thorough Presbyterians of the Argyle following. He estimates the relative strengths of the factions, and has no doubt that the real management of Scotland lies between the Hamiltons, leading most of the nobility, and the Campbells, commanding the votes of the gentry, the ministers, and the burghs; he refers individual Scots about him to the classes to which he thinks, from their private talk,

they belong respectively; he tells how they are all "courting" him, and how he is behaving himself "as evenly to all as he can;" and his "opinion upon this whole business" is that they will all have to join him in the end, or, which would be quite as satisfactory to himself and the Queen, go to perdition together. What could be done with such a man? Quite unaware of what he was writing about them, the Scots were toiling their best in his service. There were letters from Edinburgh (where the General Assembly of the Kirk had met Jun. 3) to Newcastle and London; there were letters from Newcastle to Edinburgh and London; there were letters from London back to Newcastle and Edinburgh. And still, in the English Parliament, the Pro-Scottish party laboured for the result they desired, and the Anti-Scottish or Independent party maintained their jealous watch. Pamphlets and papers came forth, violently abusive of the Scottish nation; and more than once there were discussions in the Commons in which Haselrig and the more reckless Independents pushed for conclusions that would have been offensive to the Scots to the point of open quarrel. It did not seem impossible that there might be a new and most horrible form of the Civil War, in which the English Army and the Independents should be fighting the Scottish Army and the Presbyterians. [Footnote: King's Letters, xxix.-xxxiv. in Bruce's *Charles I. in 1646*; Baillie, II. 374-5; Acts of the General Assembly of the Church of Scotland for 1646. Parl. Hist. III. 482-488; and Commons Journals of various days in May and June, when there were divisions.]

What mainly averted such a calamity was the prudent behaviour of the much-abused Scots. Anxious as they naturally were to save their Scottish Charles from too severe a reckoning from his English subjects, and very desirous, as was also natural, that the issue of the present dealings with him should be one favourable to Presbytery and Religious Conformity, they do not seem to have permitted these feelings to disturb their sense of obligation to the English Parliament, and of a general British responsibility. That this

was the case arose, I believe, from the fact that Argyle had come to England to take the direction, and that he imparted a deep touch or two of his own to their purely Presbyterian policy. It is interesting, at all events, to have a glimpse of the great Marquis at this point, not as a fugitive from Montrose, not in the military character which suited him so ill, but in his more proper character as a British politician. He had been at Newcastle for some time, "very civil and cunning," as the King wrote to the Queen; but on the 15th of June he went to London. He was received there with the greatest respect by the English Parliament. A Committee of 20 of the Lords and 40 of the Commons, composed indifferently of Presbyterians and Independents, was appointed to meet him in the Painted Chamber to hear the communication which, it was understood, he desired to make. Accordingly, to this Committee, on the 25th of June, the Marquis addressed a speech, which was immediately printed for general perusal. Here are portions of the first half of it, with one or two passages *Italicised* which seem peculiarly pregnant, or peculiarly characteristic of Argyle himself:—

"MY LORDS AND GENTLEMEN,—Though I have had the honour to be named by the Kingdom of Scotland in all the Commissions which had relation to this Kingdom since the beginning of the war, yet I had never the happiness to be with your lordships till now; wherein I reverence God's providence, that He hath brought me hither at such an opportunity, when I may boldly say it is in the power of the two Kingdoms, yea I may say in your lordships' power, to make us both happy, if you make good use of this occasion, by settling of Religion and the Peace and Union of these Kingdoms. .. As the dangers [in the way of the first enterprise, 'Reformation' or the 'settling of Religion'] are great, we must look the better to our duties; and the best way to perform these is to keep us by the Rules which are to be found in our National Covenant,—principally the Word of God, and, in its own place, the Example of the best Reformed Churches; and in our way we must beware of some rocks, which are temptations both

upon the right and left hand, so that we must hold the middle path. Upon the one part we should take heed not to settle lawless liberty in Religion, whereby, instead of uniformity, we should set up a thousand heresies and schisms; which is directly contrary and destructive to our Covenant. *Upon the other part, we are to look that we persecute not piety and peaceable men who cannot, through scruple of conscience, come up in all things to the common Rule; but that they may have such a forbearance as may be according to the Word of God, may consist with the Covenant, and not be destructive to the Rule itself, nor to the peace of the Church and Kingdom.*—As to the other point, the Peace and Union of these Kingdoms [here the mutual good services of the two Kingdoms since 1640 are recited]: let us hold fast that union which is so happily established betwixt us; and let nothing make us again two who are so many ways one; all of one language, in one island, all under one King, one in Religion, yea one in Covenant; so that, in effect, we differ in nothing but in name (as brethren do): *which I wish were also removed, that we might be altogether one, if the two Kingdoms think fit....* I will forbear at this time to speak of the many jealousies I hear are suggested; for, as I do not love them, so I delight not to mention them: only one I cannot forbear to speak of,—as if the Kingdom of Scotland were too much affected with the King's interest. I will not deny but the Kingdom of Scotland, by reason of the reigns of many kings, his progenitors, over them, hath a natural affection to his Majesty, whereby they wish he may be rather reformed than ruined: *yet experience may tell that their personal regard to him hath never made them forget that common rule, 'The Safety of the People is the Supreme Law.'*"

Altogether Argyle's speech in the Painted Chamber, June 25, 1646, produced a great impression in London; and, as he remained in town till the 15th of July, he was able to deepen it, see all sorts of people, and make observations. He may not have met Cromwell at this time, who was away all June looking after the siege and surrender of Oxford, and the marriage,

in that neighbourhood, of his eldest daughter Bridget to General Ireton; but he must have renewed acquaintance with Vane. He renewed acquaintance, at all events, with an older friend—no other than the Duke of Hamilton, recently released from his captivity in Cornwall, and now again busy with affairs. He also took his place in the Westminster Assembly for a few days by leave of the parliament. [Footnote: King's Letter xxii. in Bruce's *Charles I*, in 1646; Baillie, II. 374-378; Lords Journals, June 23 and July 7, and Commons Journals, June 25; and Parl. Hist. III. 488-491, where Argyle's Speech is reprinted from the original edition, published by authority, at London, by Laurence Chapman, June 27, 1646.]

Part of Argyle's purpose in coming to London had been to co-operate with the resident Scottish Commissioners there in moderating as much as possible, or at least delaying, the *ultimatum* which the English Parliament were preparing to send to the King. For, though the Parliament had taken small notice hitherto of the King's letters from Newcastle, they had been anxiously constructing such an *ultimatum*. in the form of a series of Propositions exhibiting in one view, all the terms which they required Charles to accept at once and completely if he would retain the sovereignty of England. Without being much influenced, apparently, by the appeals of Scottish Commissioners for moderation and clemency to the King in the purely English portions of this document, and having the perfect concurrence of these Commissioners in the other portions, Parliament did at length complete it, and, on the 14th of July, send it to Charles. The document is remembered by the famous name of "The Nineteen Propositions," and was altogether most comprehensive and stringent. All the late Royal Acts and Ordinances were to be annulled; the King was to take the Covenant and consent to an Act enjoining it afresh on all the subjects of the three kingdoms; he was to consent to the abolition of Episcopacy, root and branch, in England, Wales, and Ireland; he was to approve of the proceedings of the Westminster Assembly, and of the establishment of Presbytery as Parliament had ordained or might yet ordain; he was to surrender to Parliament the entire control of the Militia for 20 years, sea-forces as well as land- forces; he was to let Parliament have its own way in Ireland; and he was to submit to various other requirements, including the outlawing and disqualification of about 120 persons of both nations named as Delinquents—the Marquis of Newcastle, the Earls of Derby and Bristol, Lords Cottington, Digby, Hopton, Colepepper and Jermyn, with Hyde, Secretary Nicholas, and Bishops Wren and Bramhall, in the English list, and the Marquises of Huntly and Montrose, the Earls of Traquair, Nithsdale, Crawford, Carnwath, Forth, and Airlie, Bishop Maxwell, and MacDonald MacColkittoch, in the Scottish list. As bearers of these fell Propositions to the King the Lords appointed the Earls of Pembroke and Suffolk, and the Commons appointed four of their number. These six persons were at Newcastle on Thursday the 23rd of July; and the next day they had their first interview with the King, Argyle and Loudoun being also present. The rough Pembroke took the lead and produced the Propositions. Before letting them be read, Charles, who had had a copy in his possession privately for some time, asked Pembroke and the rest whether they had powers to treat with him on the Propositions or in any way discuss them. On their answering that they had no such powers, and had only to request his Majesty's *Ay* or *No* to the Propositions as they stood, "Then, but for the

honour of the business," said the King testily, "an honest trumpeter might have done as much." Recovering himself, he listened to the Propositions duly read out, and then said he was sure they could not expect an immediate answer in so large a business. They told him that their instructions were not to remain in Newcastle more than ten days, and so the interview ended. Charles, in fact, in anticipation of their coming, had been planning how to act. "All my endeavours," he had written to the Queen, "must be the delaying of my answer till there be considerable parties visibly formed; to which end I think my proposing to go to London, if I may be there with safety, will be the best put-off, if (which I believe to be better) I cannot find a way to come to thee." And so, day after day, though it was the effort of all who had access to him, and especially of Argyle and Loudoun, to persuade him to accept the inevitable, he remained stubborn. When the Commissioners at length told him they must return to London, all the answer they could obtain from him was a letter, dated Aug. 1, and addressed to the Speaker of the House of Peers *pro tempore*, in which he said a positive and immediate answer was impossible, but offered to come to London or its neighbourhood to treat personally, if his freedom and safety were guaranteed, and also to send for the Prince of Wales from France. With this answer the Commons left Newcastle on Sunday, Aug. 2, and they reported their success to the two Houses on Wednesday, Aug. 12. And here, so far as the King is concerned, we shall for the present stop. [Footnote: King's Letters, xxxiv.-xl. (June 24—July 3) in Bruce's *Charles I. in 1646*; Baillie, II. 379; Lords Journals, July 11, and Commons Journals, July 6; Rushworth, VI. 309-321; and Parl. Hist. III. 499-516. Both Rushworth and the Parl Hist. give the text of the nineteen Propositions.]

PARLIAMENT AND THE WESTMINSTER ASSEMBLY RECONCILED: PRESBYTERIANIZING OF LONDON AND LANCASHIRE.

Not the less, while the two Houses had thus been watching the King at Newcastle and corresponding with him, had they been acting as the real Government of England without him.

The King's flight to the Scots having, as we have seen, turned the balance once more in favour of Presbyterianism, the combined Erastians and Independents had not been able to keep Parliament steady to that mood of sharp mastership over the Assembly and the London Divines in which we left it in the months of March and April (*antè*, pp. 407-411). It had been necessary to make a compromise in that question of "The Power of the Keys" on which the Parliament and the Assembly had been so angrily at variance. The compromise was complete in June. On the 3rd of that month the two Houses agreed on an Ordinance modifying, in a somewhat

complicated fashion, their previous device of Parliamentary Commissioners to assist and control the Congregational Elderships. Instead of the contemplated sets of Commissioners in each ecclesiastical Province, there was now to be one vast general Commission for all England, consisting of about 180 Lords and Commoners named (Cromwell, Vane, and everybody else of any note among them); which Commissioners, or any nine of them, should be a Court for judging of non-specified offences, after and in conjunction with the Congregational Elderships, with right of reference in certain cases to Justices of the Peace, and with the reserve of a final appeal from excommunicated persons to Parliament itself. It does not very well appear why this arrangement, as Erastian in principle as that which it superseded, should have pleased the London Presbyterians better. Perhaps it was made palatable by an accompanying increase of the list of scandalous offences for which the Elderships were to be entitled to suspend or excommunicate without interference by the Commissioners. At all events, when Parliament again required the London ministers and congregations by a new Ordinance (June 9) to proceed in the work which had been interrupted, and elect Elders in all the parishes of the province of London, there was no reluctance. At a meeting at Sion College, June 19, the London ministers, the Assembly Presbyterians in their counsels, agreed to proceed. They contented themselves with a paper of *Considerations and Cautions*, explaining that the Parliamentary Rule for Presbyterianism was not yet in all points satisfactory to their consciences. [Footnote: Commons Journals, June 3 and 9, 1646; Baillie, II. 377; Neal's *Puritans* (ed. 1795) III. 106.]

Nothing now hindered the establishment of Presbytery in London; and, actually, through the months of July and August 1646, while the King was making his solitary personal stand for Episcopacy at Newcastle, the Presbyterian machinery was coming into operation in the capital. "Matters here," writes Baillie, July 14, "look better upon it, blessed be God, than sometimes they have. On Sunday, in all congregations of the city, the Elders

are to be chosen. So the next week church-sessions in every paroch; and twelve Presbyteries within the City, and a Provincial Synod, are to be set up, and quickly, without any impediment that we apprehend. The like is to be done over all the land." On the 13th of August Baillie was able to report that the Elders had been elected in almost all the parishes, and approved by the Triers; and he adds, "We expect classical meetings speedily." These "classical meetings," or meetings of the twelve London Presbyteries and the two Presbyteries of the Inns of Court, were somewhat later affairs, and the crowning exultation of the first meeting of the Provincial Synod of London did not come for some months; but from August 1646 the city of London was ecclesiastically a Scotland condensed.—Though there was, and continued to be, a general Presbyterian stir throughout England, only in Lancashire was the example of London followed in effective practice. The division of that shire into classes or Presbyteries was already under consideration, with the names of the persons fit to be lay-elders in each Presbytery. There were to be nine Presbyteries. Manchester parish, Oldham parish, and four other parishes, were to form the first; Rochdale parish came into the second; Preston parish into the seventh; Liverpool did not figure by name as a distinct Lancashire parish at all, but it had one minister, Mr. John Fogg, and he was put into the fifth Presbytery. The names of all the Lancashire ministers thus classified, and of the Lancashire gentlemen, yeomen, and tradesmen, to the number of some hundreds, thought fit to be lay-elders in the different Presbyterial districts, may be read yet in the Commons Journals. [Footnote: Baillie, II. 378 and 388; Neal, III. 307-310 (List of classes or Presbyteries of London). The division of Lancashire into Presbyteries is given in the Commons Journals, Sept. 15, 1646. See also Halley's "Lancashire: its Puritanism and Nonconformity" (1869), Vol. I. pp. 432 et seq., where there are many details concerning the first introduction of the Presbyterial system into Lancashire. According to Dr. Halley, the system was set up more rigidly in Lancashire than in London itself, chiefly

in consequence of the activity and energy of Richard Heyricke, or Herrick, M.A., warden of the Collegiate Church, Manchester. He was one of the Divines of the Westminster Assembly (see Vol. II. p. 510); but he had returned to Lancashire, preferring Presbyterian leadership in that county to second rank in London.]

The compromise in the matter of "The Power of the Keys" having been accepted, with such practical consequences, the Assembly might consider the long and laborious business of *The Frame of Church Government* out of its hands, and laid on the shelf of finished work beside the *New Directory of Worship* concluded and passed eighteen months before. It was free, therefore, to turn to the other great pieces of business for which it had been originally called: viz. *The Confession of Faith* and *The Catechisms*. Notwithstanding interruptions, good progress had already been made in both. Incidentally, too, the Assembly had concluded a work which might be regarded as an appendage to their Directory. They had discussed, revised, and finally approved Mr. Rous's Metrical Version of the Psalms, referred to them by Parliament for criticism as long ago as Nov. 1643. Their revised copy of the Version for the purposes of public worship had been in the hands of the Commons since Nov. 1645; the Commons had ratified the same, with a few amendments, April 15, 1646; and it only wanted the concurrence of the Lords to add this "Revised Rous's Psalter" (which Rous meanwhile had printed) to the credit of the Assembly, as a third piece of their finished work. The Lords were too busy, or had hesitations in favour of a rival Version by a Mr. William Barton, so that their concurrence was withheld; but that was not the fault of the Assembly. Rous's Psalter, therefore, as well as the Directory and the Frame of Government being done with, what was to hinder them longer from the Confession and Catechisms? Only one impediment— those dreadful *jus divinum* interrogatories which the Parliament, by Selden's mischief, had hung round their necks! Here also a little management sufficed. "I have put some of my good friends, leading

men in the House of Commons," says Baillie, July 14, "to move the Assembly to lay aside our Questions for a time, and labour that which is most necessar and all are crying for, the perfecting of the Confession of Faith and Catechise." The order thus meritoriously procured by Baillie passed the Commons July 22. The Assembly, in terms of this order, were to lay aside other business, and apply themselves to the *Confession of Faith* and *Catechisms*. And so at this point the Assembly had come to an end of one period of its history and entered on a second. As if to mark this epoch in its duration, the Prolocutor, Dr. Twisse, had just died. He died July 19, 1646, and there is a record of the fact in the Commons Journals for that same July 22 on which the Assembly was ordered to change the nature of its labours. Mr. Herle was appointed his successor. [Footnote: Baillie, II. 378-9; Commons Journals, July 22, 1646; and Mr. David Laing's Notices of Metrical Versions of the Psalms in Appendix to Baillie, Vol. III. pp. 537-540.]

DEATH OF ALEXANDER HENDERSON.

There was a death about this time more important than that of Dr. Twisse:—The health of Henderson had for some time been causing anxiety to his friends in London; and, when he left them, early in May, on his difficult mission to Newcastle, they had followed him in their thoughts with some foreboding. Actually, from the middle of May to the end of July, these two strangely-contrasted persons—the wise, modest, and massive Henderson, the chief of the Scottish Presbyterian clergy, and the sombre, narrow, and punctilious Charles I., the beaten sovereign of three Kingdoms—were much together at Newcastle, engaged in an encounter of wits and courtesies. Charles had seen a good deal of Henderson before (at Berwick in 1639, in Edinburgh during the royal visit to Scotland in 1641, and more recently during the Uxbridge Treaty of Feb. 1644-5), and had always singled him

out as not only the most able, but also the most likeable, man of his perverse tribe. He had therefore received him graciously on his coming to Newcastle; and, though there arrived subsequently from Scotland three other Presbyterian ministers, Mr. Robert Blair, Mr. Robert Douglas, and Mr. Andrew Cant, all commissioned by the General Assembly to work upon his Majesty's conscience, it was still with Henderson that he preferred to converse. The main subject of their conversations was, of course, the question between Presbytery and Episcopacy. Could the King lawfully do what was required of him? Could he lawfully now, on any mere plea of State-necessity, give up that Church of England in the principles of which he had been educated, which he had sworn at his coronation to maintain, and which he still believed in his conscience to be the true and divinely-appointed form of a Church? If Mr. Henderson could prove to his Majesty even now that Episcopacy was not of divine appointment, then the plea of State-necessity might avail, and his Majesty might see his way more clearly! It was on this point that the repeated conversations of the King and Henderson at Newcastle did undoubtedly turn. Nay, there was more than mere conversation: there was an elaborate discussion in writing. The King, it is said, would fain have had a little council of Anglican Divines called to assist him; but, as that could not be, he was willing to adopt Henderson's suggestion of a paper debate between themselves. Accordingly, there is yet extant, in the *Reliquiæ Sacræ Carolinæ* or Printed Works of Charles I., what purports to be the actual series of Letters exchanged between the King and Henderson. The King opens the correspondence on the 29th of May; Henderson answers June 3; the King's second letter is dated June 6; Henderson's reply does not come till June 17; the King's third letter is dated June 22; Henderson replies July 2; and two short letters of the King, being the fourth and fifth on his side, are both dated July 16. There the correspondence ends, Henderson having, it is believed, thought it fit that his Majesty should have the last word. In the King's letters, as they are printed,

one observes a stately politeness to Henderson throughout, with very considerable reasoning power, and sometimes a really smart phrase; in Henderson's what strikes one is the studied respectfulness and delicacy of the manner, combined with grave decision in the matter.—The controversy, whether in speech or in writing, was unreal on the King's part, and for the purpose of procrastination only; and Henderson, while painfully engaging in it, had known this but too well. His heart was already heavy with approaching death. He had been ill when he came to Newcastle; and in July, when he is said to have let the King have the last word in the written correspondence, he was hardly able to go about. His friends in London, hearing this, were greatly concerned. "It is part of my prayer to God." Baillie writes to him affectionately on the 4th of August, "to restore you to health, and continue your service a time: we never had so much need of you as now." In the same letter, referring to the King's obstinacy, and to the grief on that account which he believes to be preying on Henderson, he implores him to take courage, shake off "melancholious thoughts," and "digest what cannot be gotten amended." But Baillie knew what was coming. "Mr. Henderson is dying, most of heartbreak, at Newcastle," he wrote, three days later, to Spang in Holland. No! it was not to be at Newcastle. "Give me back one hour of Scotland: let me see it ere I die." Some such wish was in Henderson's mind, and they managed to convey him by sea to Edinburgh. He arrived there on the 11th of August, and was taken either to his own house, in which he had not been for three years, or to some other that was more convenient. He rallied a little, so as to be able to dine with one friend and talk cheerfully, but never again left his room. There his brother-ministers of the city, and such others as were privileged, gathered round him, and took his hands; and the rest of the city lay around, making inquiries; and prayers went up for him in all the churches. On the 19th of August, eight days after his return, he died, aged sixty-three years, and there began a mourning in the Scottish Israel over the loss of their greatest man.

They buried him in the old churchyard of Greyfriars, where his grave and tombstone are yet to be seen. [Footnote: Baillie, II. 381- 387; Burnet's Memoirs of the Hamiltons (ed. 1852), 356-7; Wodrow's Correspondence (Wodrow Society), III. 33, 34; Life of Mr. Robert Blair, by Row (Wodrow Society), 185-188; and "*Reliquiæ Sacræ Carolinæ*: or, The works of that great Monarch and glorious Martyr King Charles the I." (Hague edition of 1651), where the Letters are given in full. There is a fair abstract of them in Neal's *Puritans* (ed. 1795), III. 311-324. The death of Henderson at so critical a moment, and so closely after his conferences with the King at Newcastle, made a deep impression at the time, and became an incident of even mythical value to the Royalists. Hardly was the breath out of his body when there began to run about a lying rumour to the effect that he had died of remorse, acknowledging that the King had convinced him, and confessing his repentance of all he had said or done against that wisest and best of monarchs. Baillie, in London, was indignant. "The false reports which went here of Mr. Henderson," he wrote to Spang in Holland, Oct. 2, 1646, or less than six weeks after Henderson's death, "are, I see, come also to your hand. Believe me (for I have it under his own hand a little before his death) that he was utterly displeased with the King's ways, and over the longer the more; and whoever say otherwise, I know they speak false. That man died as he lived, in great modesty, piety, and faith." But the lie could not be extinguished; it circulated among the Royalists; and within two years it was turned into cash or credit by some scoundrel Scot in England, who forged and published a document entitled *The Declaration of Mr. Alexander Henderson, principall Minister of the Word of God at Edinburgh, and chief Commissioner from the Kirk of Scotland to the Parliament and Synod of England, made upon his death-bed*. This forgery was immediately denounced by the General Assembly of the Scottish Church in a solemn Declaration set forth by them Aug. 7, 1648, stating particulars of Henderson's last days, and vindicating his memory. Nevertheless the fiction

was too convenient to be given up: it lasted; was embalmed by Clarendon in his History (605); and still leaves its odour in wretched compilations.—The genuineness of the series of Letters on Episcopacy between the King and Henderson, first printed in 1649, immediately after Charles's death, and included since then in all editions of Charles's works, does not seem to have been questioned by contemporaries on either side, or by subsequent Presbyterian critics. In the year 1826, however, the eminent and acute Godwin, in an elaborate note in his *History of the Commonwealth* (II. 179-185), did challenge the genuineness of the correspondence. He was inclined to the opinion that there had been no interchange of written Papers between the King and Henderson at all, but only "discourses and conferences," and that the whole thing was a Royalist forgery of 1649, contemporary with the *Eikon Basilike*, and for the same purpose. In venturing on so bold an opinion, Godwin, besides undervaluing other evidence to the contrary, seems to have dismissed too easily Burnet's information, in his *Lives of the Hamiltons* in 1673, as to the manner in which the Letters were written and kept. No less eminent a man than Sir Robert Moray, one of the founders of the Royal Society, and its first President, and of whom Burnet elsewhere says, "He was the wisest and worthiest man of his age, and was as another father to me," had told Burnet, "a few days before his much-lamented death" (June 1673), that he had been the amanuensis employed in the correspondence. Being with the King at Newcastle in 1646, then only as Mr. Robert Moray, it had fallen to him, as a person much in his Majesty's confidence, to receive each letter of the King's as it was written in his own royal hand, and make the copy of it which was to be given to Henderson, and also, Henderson's hand being none of the most legible, to transcribe Henderson's replies for the King's easier perusal; and with his Majesty's permission he had "kept Mr. Henderson's papers and the copies of the King's." After all, however, Godwin's sceptical inquiry leaves a shrewd somewhat behind it. For, granted that a written correspondence did take

place, "the question remains," as Godwin asserts, "whether the papers now to be found in King Charles's works are the very papers that were so exchanged at Newcastle. The suspicion here suggested tells, in my mind, more against the King's letters as we now have them than against Henderson's. The King's letters, we may be sure, would be pretty carefully *edited* in 1649; and what may have been the amount and kind of *editing* thought allowable?"]

The last of Baillie's letters to Henderson, dated Aug. 13, 1646, contains a curious passage, "Ormond's Pacification with the Irish," writes Baillie, "is very unseasonable; the placing of Hopes (a professed Atheist, as they speak) about the Prince as his teacher is ill taken." The *Hopes* here mentioned is no other than THOMAS HOBBS, then just appointed tutor to the Prince of Wales in Paris. As the letter must have reached Edinburgh after Henderson was dead, he was not troubled with this additional piece of bad news before he left the world. Doubtless, however, he had heard of Hobbes, and formed some imagination of that dreadful person and his opinions. Hobbes indeed was now in his fifty- eighth year, or not much younger than the dying Henderson himself. But he was of slower constitution, and had begun his real work late in life, as if with a presentiment that he had plenty of time before him, and did not need to be in a hurry. He was to outlive Henderson thirty-three years.

CHAPTER III.

EFFECTS OF MILTON'S *AREOPAGITICA*—HIS INTENTION OF ANOTHER MARRIAGE: HIS WIFE'S RETURN AND RECONCILIATION WITH HIM—REMOVAL FROM ALDERSGATE STREET TO BARBICAN—FIRST EDITION OF MILTON'S COLLECTED POEMS: HUMPHREY MOSELEY THE BOOKSELLER—TWO DIVORCE SONNETS AND SONNET TO HENRY LAWES—CONTINUED PRESBYTERIAN ATTACKS ON MILTON: HIS ANTI-PRESBYTERIAN SONNET OF REPLY—SURRENDER OF OXFORD: CONDITION OF THE POWELL FAMILY—THE POWELLS IN LONDON: MORE FAMILY PERPLEXITIES: BIRTH OF MILTON'S FIRST CHILD.

The effect of Milton's *Areopagitica*, immediately after its publication in November 1644, and throughout the year 1645, seems to have been very considerable. Parliament, indeed, took no formal notice of the eloquent pleading for a repeal of their Licensing Ordinance of June 1643. As a body, they were not ripe for the discussion of the question of a Free Press, and the Ordinance remained in force, at least as an instrument which might be applied in cases of flagrant transgression. But public opinion was affected, and the general agitation for Toleration took more and more the precise and practical form into which Milton's treatise had directed it: viz. an impatience of the censorship, and a demand for the liberty of free philosophising and free printing. "Such was the effect of our author's *Areopagitica*," says Toland, in his sketch of Milton's life, "that the following year Mabot, a licenser, offered reasons against licensing, and, at his own request, was discharged that office." [Footnote: Toland's Memoir of Milton prefixed to the Amsterdam (1698) edition of Milton's Prose Works, p. 23.] Toland is in a slight mistake here, at least in his dating. The person whom

he means—Gilbert Mabbott, *not* 'Mabol'—was Rushworth's deputy in the office of Clerk to the House of Commons, doing duty for him while he was away with the New Model as Secretary to Fairfax: and not only did this Mabbott occasionally license pamphlets and newspapers, as it would have been Rushworth's part to do, through the year 1645, but he was expressly recommended to be licenser of "weekly pamphlets" or newspapers, Sept. 30, 1647, and he continued to act in this capacity till May 22, 1649, at which time it was, and not in 1645, that he was released from the business at his own request.[Footnote: My notes from the Stationers' Registers of 1645 and subsequent years; Lords Journals, Sept. 30, 1647; and Commons Journals, May 22, 1649. There is some evidence, however, that, before this last date, Mabbott had found the duty irksome (see Commons Journals, Aug. 31, 1648).] The effect of Milton's argument on Mabbott in particular, therefore, was not so immediate as Toland represents. There can be no doubt, however, that as Milton, in his *Areopagitica*, had tried to make the official licensers of books, and especially those of them who were ministers, ashamed of their office, so his reasons and sarcasms, conjoined with the irksomeness of the office itself, did produce an immediate effect among those gentlemen, and modify their official conduct. Several of them, among whom appears to have been Mr. John Downham, who had licensed Milton's own Bucer Tract (*antè*, p. 255, note), became more lax in their censorship than the Presbyterians thought right; and there was at least one of them, Mr. John Bachiler, who became so very lax, from personal proclivity to Independency, that he was denounced by the Presbyterians as "the licenser-general not only of Books of Independent Doctrine, but of Books for a general Toleration of all Sects, and against Pædo-Baptism." [Footnote: *Gangræna*: Part I. (ed. 1646), pp. 38, 39. In Part III. Edwards devotes three pages (102— 105) to a castigation of Mr. Bachiler for his offences as a licenser. Bachiler, he says, "hath been a man-midwife to bring forth more monsters begotten by the Devil and born of the Sectaries within

the last three years than ever were brought into the light in England by all the former licensers, the Bishops and their Chaplains, for fourscore years." He was in the habit, Edwards adds, of not only licensing sectarian books, but also recommending them; and among the Toleration pamphlets he had licensed was the reprint of Leonard Busher's tract of 1614 called *Religious Peace* (see *antè*, p. 102). "I am afraid," says Edwards, "that, if the Devil himself should make a book and give it the title *A Plea for Liberty of Conscience, with certain Reasons against Persecution for Religion*, and bring it to Mr. Bachiler, he would license it, and not only with a bare *imprimatur*, but set before it the commendations of 'a useful treatise' or 'a sweet and excellent book.'" The *Areopagitica*, in fact, found out, even among the official licensers of books, men who sympathised with its views; and it established prominently, as one of the practical questions between the Independents and the Presbyterians, the question of the liberty of Unlicensed Printing. It was Milton that had taught the Independents, and the Anti-Presbyterians generally, to bring to the front, for present purposes, this form of the Toleration tenet. For example, one finds that John Lilburne had been a reader of the *Areopagitica*, and had imbibed its lesson, and even its phraseology. "If you had not been men that had been afraid of your cause," is one of Lilburne's addresses to the Presbyterians and the Westminster Assembly Divines, "you would have been willing to have fought with us upon even ground and equal terms—namely, that the Press might be as open for us as for you, and as it was at the beginning of this Parliament; which I conceive the Parliament did of purpose, that so the free-born English subjects might enjoy their Liberty and Privilege, which the Bishops had learnt of the Spanish Inquisition to rob them of, by locking it up under the key of an *Imprimatur*." [Footnote: Lilburne, as quoted by Prynne in his *Fresh Discovery of Blazing Stars*, p. 8.] There is proof, in the writings of other Independents and Sectaries, that Milton's jocular specimens of the *imprimaturs* in old books had taken hold of the popular fancy. It became a

common form of jest, indeed, in putting forth an unlicensed pamphlet, to prefix to it a mock licence. Thus, at the beginning of the anonymous *Arraignment of Persecution*, the author of which was a Henry Robinson (*antè*, p. 387), there is a mock order by the Westminster Assembly, with the names of the two Scribes appended, to the effect that the author, "Young Martin Mar-Priest," be thanked for his excellent treatise, and authorized to publish it, and that no one except "Martin Claw-Clergy," appointed by the author to print the same, presume to do so. [Footnote: Quoted by Prynne in his *Fresh Discovery*, p. 8.] Prynne quotes this as an example of the contempt into which the Ordinance for Licensing had fallen with the Sectaries, and of their supreme effrontery, Robinson, he says, was one of the chief publishers of scandalous libels, having brought printers from Amsterdam, and set up a private printing press for the purpose. [Footnote: I may take this opportunity of announcing a rather curious fact, of which I have ample and incontestable proof, thought the proper place for stating it in detail is yet to come. It is that Milton, the denouncer of the Licensing System, and the satirist of the official licensers of 1644, was himself afterwards an official censor of the Press. He was one of the licensers of newspapers through 1651 and a portion of 1652, doing the very work from which Mabbott had begged to be excused. The fact, however, is susceptible of an easy explanation, which will save Milton's consistency.]

On the whole, then, Milton's position among his countrymen from the beginning of 1645 onwards may be defined most accurately by conceiving him to have been, in the special field of letters, or pamphleteering, very much what Cromwell was in the broader and harder field of Army action, and what the younger Vane was, in Cromwell's absence, in the House of Commons. While Cromwell was away in the Army, or occasionally when he appeared in the House and his presence was felt there in some new Independent motion, or some arrest of a Presbyterian motion, there was no man, outside of Parliament, who observed him more sympathetically than

Milton, or would have been more ready to second him with tongue or with pen. Both were ranked among the Independents, as Vane also was; but this was less because they were partisans of any particular form of Church-government, than because they were agreed that, whatever form of Church-government should be established, there must be the largest possible liberty under it for nonconforming consciences. If this was Independency, it was a kind of large lay Independency; and of Independency in this sense Milton was, undoubtedly, the literary chief. Only, when he was thought of by the Independents as one of their champions, it was always with a recollection that his championship of the common cause was qualified by a peculiar private crotchet. He figured in the list of the chiefs of Independency, if I may so express it, with an asterisk prefixed to his name. That asterisk was his Divorce Doctrine. He was an Independent with the added peculiarity of being the head of the Sect of Miltonists or Divorcers.

INTENTION OF ANOTHER MARRIAGE: HIS WIFE'S RETURN AND RECONCILIATION WITH HIM.

In 1645 Milton still gloried in the asterisk. All the copies of the second and augmented edition of *The Doctrine and Discipline of Divorce* having been sold, there was a reprint of it in this year, forming substantially the third edition of the original treatise. None of his writings hitherto had been in such popular demand; and as, besides the three editions of the original Divorce treatise, there were also in circulation his *Bucer Tract*, his *Tetrachordon*, and his *Colasterion*, he had identified himself with the Divorce subject by a total mass of writing larger than he had yet devoted to any other. While his five Anti-Episcopal pamphlets, of 1641-42, make together 326 pages of his prose works in Pickering's edition, the four Divorce treatises, of 1643-45, make 378 pages of the same; so that, in mere quantity, Milton was 52 pages more a Divorcer than an Anti-Prelatist. He

had now, however, as he had announced in his dedication of the *Tetrachordon* to Parliament, done all that he meant to do on the subject through the medium of mere pamphleteering. But he had hinted to Parliament, while making that announcement, that a man with his opinions might do more than write pamphlets in their behalf. "If the Law make not a timely provision," he had said, "let the Law, as reason is, bear the censure of the consequences." There was a covert threat here that Milton, if the Law would not allow him to marry again, might marry again in defiance of the Law.

Early in 1645, at all events, Milton did think of marrying again. His wife had been away from him for the better part of two years; and she was now nothing more in his memory than a girl who had been in his house in Aldersgate Street as his bride for a few weeks, whom he had found out in that short experience to be stupid and uncompanionable, who had then left him on some pretence, and gone back to her father's house, and whose only communications with him since had been a message or two of contempt and insult. Law or no law, it was all over between him and that girl! All the circumstances were known: his unfortunate position was the talk of neighbours; often, as we have imagined, kindly souls of women, young and older, must have had their colloquies and whispers about his pitiable bachelorhood caused by the shameful desertion of his wife. Kindly talk was all very well: but was there any unmarried lady willing to take the place of the deserter, if asked to do so? This was really the question in Aldergate Street, and in all the round of Milton's acquaintances. Candidates were not likely to be numerous, even among those freer Christian opinionists among whom Milton principally moved; and there was, moreover, a complication in the general difficulty. Milton, having blundered in his choice once, and having principled himself now with very high notions of feminine fitness, was very likely to be careful in a second choice. Was there accessible any lady in whom the two indispensable conditions of fitness and willingness

could be found united? This was the problem for Milton, and it is on record that he tried to solve it. One remembers his sonnet "*To a Virtuous Young Lady*," written about the same time as that to the Lady Margaret Ley, and wonders whether the "virgin wise and pure" there commemorated for her excellencies of mind and character was thought of by him as the possible successor of Mary Powell. Can her name have been Miss Davis? That, at all events, was the name of the lady who was thought of as Mary Powell's probable successor. It is from Phillips that we have the particulars of the story:—

"Not very long after the setting forth of these treatises," says Phillips, referring to the Divorce Treatises, "having application made to him by several gentlemen of his acquaintance for the education of their sons, as understanding haply the progress he had infixed by his first undertakings of that nature, he laid out for a larger house, and soon found it out. But, in the interim, before he removed, there fell out a passage which, though it altered not the whole course he was going to steer, yet it put a stop, or rather an end, to a grand affair, which was more than probably thought to be then in agitation: it was indeed a design of marrying one of Dr. Davis's daughters, a very handsome and witty gentlewoman, but averse, as it is said, to this motion. However, the intelligence hereof, and the then declining state of the King's cause, and consequently of the circumstances of Justice Powell's family, caused them to set all engines on work to restore the late married woman to the station wherein they a little before had planted her. At last this device was pitched upon:—There dwelt in the Lane of St. Martin's-le-Grand, which was hard by, a relation of our author's, one Blackborough, whom it was known he often visited; and upon this occasion the visits were the more narrowly observed, and possibly there might be a combination between both parties, the friends on both sides concentrating in the same action, though on different behalfs. One time above the rest, he making his usual visit, the wife was ready in another room, and on a sudden he was

surprised to see one whom he thought to have never seen more, making submission and begging pardon on her knees before him. He might probably at first make some show of aversion and rejection; but partly his own generous nature, more inclinable to reconciliation than to perseverance in anger and revenge, and partly the strong intercession of friends on both sides, soon brought him to an act of oblivion, and a firm league of peace for the future; and it was at length concluded that she should remain at a friend's house, till such time as he was settled in his new house at Barbican, and all things for her reception in order. The place agreed on for her present abode was the Widow Webber's house in St. Clement's Churchyard, whose second daughter had been married to the other brother [Christopher Milton] many years before."

Phillips tells the story very clearly, and a little annotation is all that is wanted:—The lady whom Milton thought of, and had perhaps been thinking of for some time, as a possible substitute for Mary Powell, was "one of Dr. Davis's daughters." Who this Dr. Davis was, Phillips, writing at a time when the mere name was probably enough for Londoners, does not inform us; nor have I been able, with any certainty, to identify him. [Footnote: There had been a Thomas Davies, M.D., born about 1564, and educated at Christ's College, Cambridge, where he had graduated in medicine in 1591, and who was afterwards a medical practitioner in London, and Licentiate and Censor of the Royal College of Physicians there. As he had died in 1615, the youngest of any surviving daughters of his in 1645 must have been past her thirtieth year. But, on the whole, Phillips's words suggest that the Dr. Davis he means was alive in 1645 or had recently been alive; so that this is not likely to have been the one. There was a Nicholas Davis, or Davys, M.D., who had taken that degree at Leyden in 1638, had been incorporated in the same degree at Oxford in 1642, and may have been afterwards in practice in London (Munk's Roll of the Royal College of Physicians of London, and Wood's Fasti, II. 9). The date of his graduation at Leyden, however, seems

rather late for the hypothesis that he was Phillips's Dr. Davis. After all, there may have been some other conspicuous Dr. Davis among Milton's acquaintances, and he need not have been a medical doctor.] Dr. Davis, at all events, dead or living, had daughters, one of them "a very handsome and witty gentlewoman," between whom and Milton there was some attempt to arrange a marriage. She herself, however, was naturally "averse to this motion;" and, indeed, one can hardly understand what kind of proposition could have been made to her or her friends. That something was in agitation, nevertheless, and that it was talked of more particularly in the spring and early summer of 1645, Phillips had a positive recollection, more by token because at that very time, he also remembered, his uncle had offers of more pupils than he could accommodate in the house in Aldersgate Street. He had consequently been looking about for a larger house, and had found one suitable close at hand, in the street called Barbican.

Was Miss Davis to be persuaded to be mistress of this new house? Would the "several gentlemen" of Milton's acquaintance who meant to board or half-board their sons with him, or would the spouses of those gentlemen, have been satisfied with that arrangement? The experiment was not to be tried. The house in Barbican had been taken, but Milton had not yet removed into it, when, to Miss Davis's relief, another arrangement was brought about.

Rumours of what was going on, and of the new house in Barbican, had been borne to Oxford, and the Foresthill mansion of the Powells. In any case the news of the Miss Davis project, the "grand affair," as Phillips calls it, could not but have caused some excitement there. But the news came at a time when the family-fortunes were no longer what they had been when Mary Powell had left her Parliamentary husband and taken refuge again under the maternal wing, amid her Royalist relatives and acquaintances, close to the King's head-quarters. Crippled already, like other Royalist

families, by necessary contributions to the King's cause, the Powells had begun to be aware, and more poignantly than others because of their more straitened means, that their sacrifices were likely to be all in vain—that Parliament was to be master, and to have the power of pains and penalties over those whom it called Delinquents. Especially after the shattering blow to the King at Naseby (June 14, 1645), doubt on the subject was nearly at an end. What was then more natural than that distressed Royalist families should be looking forward anxiously to the amount of new distress which the final triumph of Parliament would inflict upon them? And so in the Foresthill mansion there had been grave consultations between Mr. and Mrs. Powell and between Mrs. Powell and her daughter, ending in a resolution, in which Mrs. Powell was perhaps the last to acquiesce—for the daughter afterwards pleaded that her mother all along had been "the chief promoter of her frowardness" [Footnote: Wood, *Fasti*, I. 482.]—that it would be best for the daughter to return to London and try to make it up with Mr. Milton. At least one member of the family would thus have a roof over her head in the hard time coming; and might not Milton, with his Parliamentary connexions, be able to befriend the family generally when the time did come? Soon after Naseby, accordingly, we are to imagine the poor young wife taking the journey to London, accompanied by her mother or some other relative, on her humiliating and dubious errand.

How were they to manage when they were in London? It was not a simple matter of going straight to the house in Aldersgate Street and obtaining admission. Ingenuity was necessary, and preparation of a mode for approaching Milton. But that, too, had been thought of. Communications were opened or had already been opened, with those of Milton's friends who, it was supposed, would be willing to co-operate in the intended reconciliation, if not in the wife's interest, at least in his. And which of all Milton's friends was *not* willing? In such cases, it is in the man himself that the storm rages; he alone passionately feels: the friends that

stand by, even most sympathisingly, are cool and collected, regarding the principal only as a difficult patient, who must be soothed and humoured till he can be brought to reason. To Milton's friends his Divorce notion may have seemed a just enough speculation, or one at least about which *they* would not quarrel with him; the real question with them was as to the continued practical implication of his own life and prospects with such a speculation, infamous as it seemed to respectable society and to the leaders of religious opinion. Let him hold it, if he would, and even write for it still; but was he, at the age of thirty-seven, to wrap up his whole future life in it, and proceed as if he and it must be dashed to pieces together? Was not this reconciliation between him and his wife, of which there seemed now to be a chance, the best thing that could happen for him as well as for her? If once it were brought about, would not things adjust themselves so that the public would hear no more of the perilous stuff of the Divorce Doctrine, or hear of it only in dying echoes? So reasoned Milton's friends then, just as people would reason now in a similar case; and the friendly plot was arranged. Milton, it appears, was in the habit of dropping in, almost daily, in his walk City-wards from Aldersgate Street, on a kinsman of his, named Blackborough, whose house was in St. Martin's-le-Grand Lane— *i.e.* in that bend of Aldersgate Street which was *within* the Gate, and where now the General Post-Office of London stands. Here, some day in July or August 1645, he was surprised into an interview with his girl-wife. The good Blackborough had consented to aid and abet, and had lent his house for the purpose; and, other friends being at hand to second him, he had opened, let us say, the door of the room in which Mary Powell was waiting, had ushered Milton in, and had left them together. Then, as Phillips imagines, had come Milton's two moods in succession,— the first his instinctive mood of anger and rejection, and the second that mood of his slow relenting which was witnessed and helped through by the in-bustling friends:—

Mood First.

Samson. My wife, my traitress! let her not come near me!

Chorus. Yet on she moves; now stands and eyes thee fixt,
About to have spoke; but now, with head declined,
Like a fair flower surcharged with dew, she weeps,
And words addressed seem into tears dissolved,
Wetting the borders of her silken veil:
But now again she makes address to speak.

Dalila. With doubtful feet and wavering resolution
I came, still dreading thy displeasure, Samson,
Which to have merited, without excuse,
I cannot but acknowledge: yet, if tears
May expiate (though the fact more evil drew
In the perverse event than I foresaw),
My penance hath not slackened, though my pardon
No way assured. But conjugal affection,
Prevailing over fear and timorous doubt,
Hath led me on desirous to behold
Once more thy face, and know of thy estate;
If aught in my ability may serve
To lighten what thou suffer'st, and appease
Thy mind with what amends is in my power,
Though late, yet in some part to recompense
My rash, but more unfortunate, misdeed.

Samson. Out, out! hyæna! *Samson Agonistes*, 725-747.

Mood Second.

She ended weeping, and her lowly plight,
Immoveable till peace obtained from fault

Acknowledged and deplored, in Adam wrought
Commiseration: soon his heart relented
Towards her, his life so late and sole delight,
Now at his feet submissive in distress,
Creature so fair his reconciliation seeking,
His counsel whom she had displeased, his aid;
As one disarmed, his anger all he lost,
And thus with peaceful words upraised her soon.

Paradise Lost, X. 937-946.

Was this Milton's idealized history long afterwards of his own two moods in Blackborough's house in St. Martin's-le-Grand Lane some time in July or August 1645? So far as it was autobiography at all, I should not say that it was much idealized, except in so far as Dalila in the land of the Philistines, and Eve in Paradise, had to be represented poetically as beautiful, eloquent, and fascinating, while of poor Mary Powell's claims to beauty we know little, and our information as to her eloquence and fascination consists in our irremovable impression that it was of her that Milton had been thinking in that passage in his first Divorce Tract in which he described the hard fate of a man bound fast by marriage to "an image of earth and phlegm." From the side of Milton there was, I think, no idealizing: hardly else than as his own Samson, or his own Adam, in his poems, did Milton feel or speak on any important occasion of his own real experience. If, then, the second mood now prevailed, and he yielded, it was only, I believe, because despair for himself and pity for another overcame him jointly, and what was alone possible was accepted as disastrously fated. So much by way of necessary anticipation, and that there may not be a mistake, even for a moment, as to the real nature of the reconciliation that had been effected. Meanwhile, the friends of both wife and husband were delighted with their success; and, till the new house in the Barbican should be ready, young Mrs. Milton went to

lodge in the house of the Widow Webber, Christopher Milton's mother-in-law, near St. Clement's Church in the Strand.

REMOVAL FROM ALDERSGATE STREET TO BARBICAN.

September 1645, when the New Model Army had stormed Bristol and was otherwise carrying all before it in the English South-west, when Montrose in Scotland had been extinguished by David Leslie at Philiphaugh, and when the Presbyterian system had been so far arranged for England that the first order of Parliament for the election of Elders in all the London parishes had gone out, and Triers of the competency of these Elders had been appointed in all the London Presbyteries: then it was, as near as one can calculate, that the interesting house in Aldersgate Street was left by Milton, and he, his wife, his father, the two boys Phillips, and the other pupils, entered together into the new house in Barbican.

It was no great remove. The street called Barbican derived its name, according to Stow, from the fact that at one time there had stood there "*a burgh-kenning*, or watch-tower of the city, called in some language a *barbican*;" and modern etymologists perfect Stow's observation by tracing the name, through the mediæval Latin *barbacana*, to the Persian *bāla khaneh*, meaning "upper chamber," whence our less corrupt form *balcony*, actually identical with *barbican*. [Footnote: Stow, as quoted in Cunningham's *London*, Art. "*Barbican*;" and Wedgwood's *Dict. of English Etymology*, Art. "*Balcony*."] There had, in short, been a *barbican*, or outer defence of the city, at this spot, a little beyond the particular gate called Aldersgate, just as there were such things beyond others of the city-gates; but the name had lingered only here as applied to the street or site where a *barbican* had been. The street, retaining its warlike name, still exists—a short street going off from Aldersgate Street at right angles on one side, and

within a walk of not more than two or three minutes from the site of Milton's Aldersgate Street house. The house in Barbican was larger, and so much farther off from the city- gate; but that was all. There was no real change of neighbourhood or of street-associations. A dingy street now, dingier even than the main thoroughfare of Aldersgate Street, Barbican was then a fair enough bit of suburban London towards the north; and it boasted, as we already know, of at least one aristocratic mansion in which Milton had some interest—the town-house of the Earl of Bridgewater, ex-President of Wales, and the peer of *Comus*. The name "Bridgewater Gardens" still designates, without a shred of garden left there, but only grimy printing-offices and the like instead, the portion of the street which the mansion occupied. Nay more, till within a few years ago; Milton's own house in Barbican, with some modern change of frontage, and some filling-up of interstices right and left, was extant and known. Somehow, while the more important house in Aldersgate Street had perished from the memory of the neighbourhood (probably because the fabric itself had perished), the tradition of Milton still clung around this house in Barbican, I have passed it many a time, stopping to look at it, when it was occupied, if I remember rightly, by a silk-dyer, or other such tradesman, exhibiting on his sign the peculiar name of "Heaven," and using the lower part of it for his shop. Though jammed in with other houses and undistinguished in the line of bustling street, it had the appearance of having once been a commodious enough house in the old fashion; and I have been informed that some of the old windows, consisting of thick bits of dim glass lozenged in lead, still remained in it at the back, and that the occupants knew one of the rooms in it as "the Schoolroom" where Milton had used to teach his pupils. But alas! one of the city railways took it into its head that it required to run through this precise bit of Barbican, and the house, with others near it, was doomed to demolition. When I was last in Barbican part of the shell of the house was still standing, roofless, disfloored, diswindowed, and pickaxed into

utter raggedness, as so much rubbish yet waiting to be removed from the new railway gap. The inscription yet remained on the front-door—"This was Milton's House," or to that effect—which had been very properly put there by the contractor or his workmen to lure people to a last look at the interior before the demolition was complete. [Footnote: My information about the interior of the house is from a friend who visited it just when it was doomed. Though I had passed it often when it was yet complete, I had unfortunately, not expecting its doom, deferred going in till it was too late; and my last homage to it had to be a lingering saunter near and in the railway gap behind, when there was only the remnant of it described in the text.]

FIRST EDITION OF MILTON'S COLLECTED POEMS: HUMPHREY MOSELEY THE BOOKSELLER.

Among Milton's first employments in his new and larger house in Barbican, while his wife was resuming her duties and the schoolroom was getting gradually into use, we are able to distinguish one of particular interest. It was nothing else than the revision for the press of the proof-sheets of the first collected edition of his *Miscellaneous Poems*.

By his dealings with the Press hitherto, it is to be remembered, Milton had made himself known to most people chiefly as a prose pamphleteer. Except his lines *On Shakespeare*, written in 1630, and prefixed anonymously to the Second Folio Shakespeare in 1632; his *Comus*, written and acted in 1634, and sent to the press, also without the author's name, by his friend Henry Lawes in 1637; and his *Lycidas*, written in 1637, and printed in 1638, in the Cambridge University volume of Verses on Edward King's death, but only with the initials "J.M."—except these, and perhaps another scrap or two of Latin or English verse that had been printed in a semi-private manner, all Milton's poems, written at intervals over a period

of more than twenty years, had remained in his own keeping in manuscript, and had been communicated to friends only in that form. In consequence of what had been thus printed, or privately circulated, a certain reputation for Milton as a poet had, indeed, been established; but the voice of this reputation was hardly heard amid the much louder uproar caused by his eleven prose-pamphlets between 1641 and 1645. Now, to a man who believed Poesy to be his true calling, who had consented reluctantly to put aside "his garland and singing robes" in order that he might engage in the work of politics, and who had announced while doing so that in that work it was but the strength of his left hand he could lend and not the nobler cunning of his right, this state of public opinion about himself must have begun to be a little disagreeable. It was the most natural thing in the world that, as soon as there should be a lull in the political tumult, the least leisure of the public for a return to purer and blander literature, Milton should make some sign of resuming his garland, so as to remind those about him of his original vocation. But, precisely in the year 1645, when Naseby had assured the victory of Parliament, there did come, for the first time since the war had begun, or indeed since the Long Parliament had met, such a lull of the polemical tumult. The statistics of the English book-trade, as they are presented in the Registers of the Stationers' Company, verify and illustrate this statement.

Even in the year 1640, when there was political agitation enough in England, but the Long Parliament had not yet met, there was still so much leisure for the purer forms of literature in English society that London publishers were bringing out such things as Masques and other remains of Ben Jonson, the Works of Thomas Carew, various Plays by Shirley, Glapthorne, Habington, Heywood, Killigrew, and Brome, an edition of Herrick's Poems, and Thomas May's Supplement to Lucan. As soon, however, as we pass beyond 1640, and the real work of the Long Parliament is begun, such books almost entirely cease to appear. The matter then

provided for the reading of the English public consisted of a huge jumble of Pamphlets on the Church-question, Sermons, semi-controversial Treatises of Theology, Political Speeches, fragments of Ecclesiastical History, Prose Invectives and Satires, and latterly, when the Civil War was in progress, an abundance of Diurnals, Intelligencers, Mercuries, and other news-sheets. Between 1640 and 1645 one does indeed discern twinkling in this jumble some gems or would-be gems of the purer ray serene. The "Epigrams Divine and Moral" of Sir Thomas Urquhart, the translator of Rabelais, were published in April 1641; Howell's "Instructions for Foreign Travel" came out in September in the same year; Baker's "Chronicle of the Kings of England" in the following December; in April 1642 there was a London edition of Thomas Randolph's Poems, which had appeared originally at Oxford in 1638; and the publication of Denham's "Cooper's Hill" and his "Tragedy called The Sophy" is a rather notable event of August 1642, the very month in which the King raised his standard. In the same month one London publisher, Francis Smethwick, registered for his copies a number of books of the poetical kind which had been the property of his late father, including "Mr. Drayton's Poems," "Euphues's Golden Legacy," Meres's "Witt's Commonwealth," and also "Hamblett, a Play," "The Taming of the Shrew," "Romeo and Juliet," and "Love's Labour's Lost." This transaction, however, hardly implied that these books were in demand, but only that Smethwick wanted to secure his interest in them on succeeding to his father's business. Afterwards, while the war was actually raging, it is not till December 1644 that one comes upon anything of the finer sort worth mentioning. On the 14th of that month there was registered for publication the first edition of "Poems, &c., written by Mr. Edmund Waller, of Beckonsfield, Esq., lately a member of the Honourable House of Commons," but then, as we know, a disgraced plotter, who, having, by great favour, been permitted to carry his dear-bought life, and his remaining wealth, into exile in France, left this parting gift to his countrymen, that

they might think of him meanwhile as kindly as they could. Except that I have not taken notice of a publication or two of the voluminous Scotchman Alexander Rosse, Chaplain to his Majesty, [Footnote: This Alexander Rosse, or "Dr. Alexander Ross," made famous in *Hudibras*, was one of the singular characters of the time, and a memoir of him, with a complete list of his writings, would be a not uninteresting curiosity. He was a native of Aberdeen, born about 1590, but had migrated to England, where he became Master of the Free School at Southampton, and Chaplain in Ordinary to King Charles. By a succession of publications of all kinds, in Latin and in English., he acquired the reputation of being "a divine, a poet, and an historian." He made a good deal of money, and, at his death in 1654, left bequests, for educational purposes, to Aberdeen, Southampton, Oxford, and Cambridge.] the foregoing enumeration fairly represents, I believe, the amount of book-production of the purer or non-controversial kind that went on in London in the four loud-roaring years between 1640 and 1645.

In 1645, however, and especially after Naseby, there are symptoms of a slightly revived leisure for other kinds of reading than were supplied by Diurnals, Sermons, Pamphlets, and books of Polemical Theology, and of a willingness among the London booksellers to cater for this leisure. In that year, interspersed amid the still continuing tide of Pamphlets, Diurnals, Sermons, and other ephemerides, were such novel appearances in the London book-world as these—two Treatises, one physical, the other metaphysical, by Sir Kenelm Digby, then abroad; an edition of Buxtorf's Hebrew Grammar; an Essay by Lord Herbert of Cherbury; some metrical religious remains of Francis Quarles, then just dead; some attempts to introduce the mystic Jacob Bohme, by specimens of his works; a translation of Æsop's Fables and those of Phædrus; the issue of the second and third parts of the *Epistolæ Hoelianæ* or James Howell's Letters, with a re-issue of his "Dodona's Grove;" and a re-issue of Randolph's comedy of "The Jealous Lovers." Clearly, as the Civil War was drawing to a close, the Muses of

pure History, pure Speculation or Philosophy, Scholarship for its own sake, and even lighter Phantasy, did hover over England again, timidly seeking some spots where they might rest themselves in the all-prevailing controversy between Independency and Presbyterianism.

Almost always, in such cases, a social tendency is represented in the activity of some particular person. Nor is it otherwise here. So far as Poetry and so-called Light Literature are concerned, one has no difficulty in pointing to the particular London publisher who in 1645, and from that year onwards, stood out from all his fellows by his alertness in the trade. This was HUMPHREY MOSELEY, who had his shop at the sign of the Prince's Arms in St Paul's Churchyard. Something in his personal tastes, I am inclined to think, must have determined him to the line of business which he selected; so marked is his avoidance of all dealings in sermons, ephemeral treatises on theology, and pamphlets either way on the present crisis, and his preference for poetry and books of general culture. He had been in the trade, in partnership with a Nicholas Fussel, in St. Paul's Churchyard, as early as 1634, [Footnote: Wood's Ath. II 503.] and shortly after that is heard of as in business for himself. I have a note of him as registering for his copyright, on March 16, 1639-40, Howell's "Dodona's Grove;" and thenceforward, in worse times, he stuck to Howell. He not only published Howell's "Instructions for Foreign Travel" in September 1641, and again the second and third parts of Howell's "Letters" in 1645, with a re-issue of "Dodona's Grove;" but he acquired, in the same year, the copyright of the first part of the "Letters," which had been originally brought out by another publisher. More significant still is the fact that it was Moseley that was the publisher of Waller's Poems in December 1644. [Footnote: "Poems &c. written by Mr. Ed. Waller of Beckonsfield, Esquire; lately a member of the Honourable House of Commons. All the Lyrick Poems in this Booke were set by Mr. Henry Lawes, Gent. of the King's Chappell, and one of his Majestie's Private Musick. Printed and Published

according to Order. London. Printed by T.W. for Humphrey Mosley at the Princes Armes in Paul's Churchyard: 1645:" pp.96 small 8vo. My authority for the date of the publication of the volume—December 1644—is the Stationers' Registers.] After that date his tendency to trade-dealings in Poetry and the like is so manifest in the Stationers' records that I find appended to my MS. notes, from these records, for the London Bibliography of the year 1646, this memorandum:—"Poetry and Pure Literature looking up again this year, and chiefly through the medium of Moseley's shop." By that time Moseley had distinguished himself as the publisher of original editions of books, not only by Howell and Waller, but also by Milton, Davenant, Crashaw, and Shirley, and moreover as the ready purchaser of whatever copyrights were in the market of poems and plays by Beaumont and Fletcher, Webster, Ludwick Carlell, Shirley, Davenant, Killigrew, and other celebrities dead or living. To this group of Moseley's authors Cowley and Cartwright were soon added; and it was not long before he snapped out of the hands of duller men Denham's Poems, Carew's Poems, various things of Sir Kenelm Digby, and every obtainable copyright in any of the plays of Shakespeare, Massinger, Ford, Rowley, Middleton, Tourneur, or any other of the Elizabethan and Jacoban dramatists. For at least the ten years from 1644 onwards there was, I should say, no publisher in London comparable to Moseley for tact and enterprise in the finer literature.

Moseley was only on the way to make all this reputation for himself, and indeed Waller's volume of Poems, published in Dec. 1644, was yet the principal advertisement of his shop, when he and Milton came together. Pleased with the success of the Waller, it appears, Moseley thought of a collection of Mr. Milton's Poems as a likely second experiment of the same kind, and applied to Milton for the copy. The application was not disagreeable to Milton; and, accordingly, some time after the middle of 1645, or just while he was preparing to remove from Aldersgate Street to

Barbican, and there came upon him the great surprise of his wife's re-appearance, Moseley and he were busy in arrangements for the new volume. Milton's acknowledged London publishers hitherto had been these three— "Thomas Underhill, of the Bible in Wood Street" (*Of Reformation*, 1641, *Of Prelatical Episcopacy*, 1641, and *Animadversions on Remonstrant's Defence*, 1641), "John Rothwell, at the sign of the Sun in Paul's Churchyard" (*Reason of Church Government*, 1641, and *_Apology for Smectymnuus*, 1642), and "Matthew Symmons" (the *Bucer Tract*, 1644); and this last-mentioned Symmons, who does not give the locality of his shop, had been probably the printer also of those pamphlets of Milton which bore no publisher's name (*Doctrine and Discipline of Divorce*, 1643, 1644, and 1645, *Of Education*, 1644, *Areopagitica*, 1644, and *Tetrachordon* and *Colasterion*, 1645). Now, however, these were forsaken for the moment, and for bringing out the Volume of Poems the conjunction was Milton and Humphrey Moseley. The revisal of the proof- sheets may have been begun in Aldersgate Street, but it must mainly, as I have said, have been among Milton's first employments at the new house in Barbican. Here, at all events, is Moseley's entry of the new volume in the Stationers' Registers: "Oct. 6 [1645], *Mr. Moseley ent. for his copie, under the hand of Sir Nath. Brent and both the Wardens, a booke called Poems in English and Latyn by Mr. John Milton.*" Usually the entry of a book in the Stationers' Registers was about simultaneous with its publication. In this case, however, there was a delay of nearly three months between the registration and the actual appearance. The precise day of the publication of the new volume was Jan. 2, 1645-6. [Footnote: This is ascertained by a MS. note of the collector Thomason's, or by his direction, on a copy among the King's Pamphlets in the British Museum; Press-mark E. 1126. "Jan. 2" is inserted before the word "London" in the title-page.] Either, therefore, Moseley had registered the volume before the printing had proceeded far, or after the sheets were printed there was some little cause of delay.

The following is the title-page of this interesting and now very rare volume:—

"Poems of Mr. John Milton, both English and Latin, compos'd at several times. Printed by his true Copies. The Songs were set in Musick by Mr. Henry Lawes, Gentleman of the King's Chappel, and one of His Majestie's Private Musick.

'Baccare frontem
Cingite, ne vati noceat mala lingua futuro.'
VIRGIL, *Eclog.* vii.

Printed and publish'd according to Order. London, Printed by Ruth Raworth, for Humphrey Moseley; and are to be sold at the signe of the Princes Arms in Paul's Churchyard. 1645."

The volume is a very tiny octavo, divided into two parts in the paging. First come the ENGLISH POEMS, occupying 120 pages, and arranged thus:— *On the Morning of Christ's Nativity*, compos'd 1629; *A Paraphrase on Psalm CXIV.* ; *Psalm CXXXVI.* ; *The Passion*; *On Time*; *Upon the Circumcision*; *At a Solemn Music*; *An Epitaph on the Marchioness of Winchester*; *Song on May Morning*; *On Shakespear*, 1630; *On the University Carrier who, &c.* ; *Another on the Same*; *L'Allegro*; *Il Penseroso*; *Sonnets*, English and Italian—ten in number (I. "O Nightingale;" II. "Donna leggiadra;" III. "Qual in colle," with the attached "Canzone;" IV. "Diodati e te'l;" V. "Per certo i bei;" VI. "Giovane piano;" VII. "How soon hath Time;" VIII. "Captain or Colonel;" IX. "Lady that in the prime;" X. "Daughter to that good Earl");— *Arcades*; *Lycidas*; *Comus*. [Footnote: To this enumeration of the English pieces in the volume of 1645 I may append three bibliographical notes—(1) Of the 28 pieces the original drafts of 10 still exist in the volume of Milton MSS. in Trinity College, Cambridge—viz.: *On Time*, *Upon the Circumcision*, *At a Solemn Music*,

Sonnets 7, 8, 9, and 10, *Arcades*, *Lycidas*, and *Comus*. All these drafts are in Milton's own hand, except that of Sonnet 8, only the heading of which is in his hand. Of the other 18 pieces, the most important of which are *L'Allegro* and *Il Penseroso*, the original MSS. have not come down to us. (2) It will be seen that two of the known early English Poems are omitted in the volume: viz. the piece *On the Death of a Fair Infant dying of a Cough*— i.e. the poem on the death of his niece, the infant girl Phillips, written in 1626; and the College piece of 1628 entitled *At a Vacation Exercise*. These pieces first appeared in the Second Edition of the Poems in 1673. (3) It may also be noted that the latest written pieces which appear in the volume of 1645 are Sonnets 9 and 10—the one to the anonymous young lady, the other to the Lady Margaret Ley. We have assigned them to the year 1644, but they *may* have been as late as 1645.] As if to call attention to *Comus* as the longest and chief of the poems, it has a separate title-page, thus, "*A Mask of the same Author, presented at Ludlow Castle, 1634, before the Earl of Bridgewater, then President of Wales, Anno Dom. 1645;*" but, though there is this break of a new title-page, the paging runs on without interruption, *Lycidas* ending p. 65, and *Comus* taking up the rest to p. 120. Here, however, there is a *complete* break, as if it were intended that the English Poems, there ending, might be bound by themselves. The LATIN POEMS follow as a separate collection, paged separately from p. 1 to p. 88, and with this new title-page prefixed to them: "*Joannis Miltoni Londinensis Poemata: quorum pleraque intra annum aetatis vigesimum conscripsit: nunc primum edita. Londini, Typis R.R., Prostant ad Insignia Principis, in Coemeterio D. Pauli, apud Humphredum Moseley, 1645.*" There is, however, a double arrangement of the Latin Poems, or a distribution of them into two classes. First come those which constitute the so-called ELEGIARUM LIBER; viz., the "Elegies" proper, numbered from I. to VII., as they now stand in all editions of Milton, together with the eight little scraps in the same elegiac verse (five of them on the subject of the

Gunpowder Plot, and three on the Italian singer Leonora) which some modern editors have preferred to detach from the Elegies, and put under the separate heading of "Epigrams." This is contrary to Milton's intention; for the phrase "*Elegiarum Finis*" follows those scraps in the volume, showing that he meant them to go with the Elegies, and that, in fact, he thought it permissible to call anything an Elegy that was written in the ordinary elegiac verse of alternate Hexameter and Pentameter. Accordingly, all his Latin poems in that kind of verse having been included in the *Elegiarum Liber*, all his other Latin poems, not in that kind of verse, but either in Hexameter pure or in rarer metres, together with two fragments of Greek verse, are regarded as "*Sylvæ*," and constitute the distinct SYLVARUM LIBER which ends the volume. First among the "*Sylvæ*" come the six Latin poems of the Cambridge period—*In obitum Procancellarii Medici*, *In Quintum Novembris*, *In obitum Præsulis Eliensis*, *Naturam non pati Senium*, *De Ideâ Platonicâ quemadmodum Aristoteles intellexit*, and *Ad Patrem*; then, by way of typographic interruption, come the two scraps of Greek verse—viz. *Psalm LXIV.* and the scrap entitled *Philosophus ad Regem Quendam*, &c.; after which are the two Latin pieces, *Ad Salsillum* and *Mansus*, written in Italy, and the *Epitaphium Damonis*, written immediately after the return to England. This last stands a little apart from the body of the "*Sylvæ*," as if Milton attached a peculiar sacredness to it.

Such is a general description of the First or 1645 Edition of Milton's Miscellaneous Poems. The volume, however, presents some points of additional interest:—Has the reader noticed the motto on the title-page from Virgil's seventh Eclogue? It is peculiarly significant of the mood in which the volume was published. Milton, who had called himself Thyrsis in the *Epitaphium Damonis*, here adopts in the happiest manner the words of the young poet-shepherd Thyrsis in Virgil's pastoral. Thyrsis there, contending with Corydon for the prize in poetry, begs from his brother shepherds, if not the ivy of perfectly approved excellence, at least

"Some green thing round the brow,
Lest ill tongues hurt the poet yet to be."

Could anything more gracefully express Milton's intention in the volume? This collection of his Poems, written between his sixteenth year and his thirty-eighth, was a smaller collection by much, he seems to own, than he had once hoped to have ready by that point in his manhood; but it might at least correct the impression of him common among those who knew him only as a prose pamphleteer. Something green round his brow for the present, were it only the sweet field-spikenard, would attest that he had given his youth to Poesy, and would re-announce, amid the clamour of evil tongues which his polemical writings had raised, that he meant to return to Poesy before all was done, and to die, when he did die, a great Poet of England.

This feeling, which is the motive of the publication, appears curiously in all the details of its arrangement. The order in which the poems are printed, within each division or class, is, as nearly as possible, the order in which they were written; the deviations being only such as proper editorial art required. To almost every juvenile piece, too, whether in English or in Latin, there is prefixed some indication of the exact date of its composition; and the title-page of the Latin Poems distinctly solicits attention to the fact that most of them were composed before the author was twenty. Even more remarkable than this care in the dating is the introduction into the volume of all the eulogiums which Milton had already received from private friends on account of the Poems, or of any portion of them. To the *Comus* there is prefixed Henry Lawes's eulogistic Dedication of it, in the edition of 1637, to Viscount Brackley, and also Sir Henry Wotton's cordial letter to Milton, with its praise of the poem in that edition, when Milton was on the start for his continental tour in the spring of 1638. To the Latin Poems as a whole there is even a more formal vestibule of encomiums. First of all, there is a

little preface by Milton in Latin apologizing to the reader for troubling him with them. "Though these following testimonies concerning the Author," he says, "were understood by himself to be pronounced not so much *about* him as *over* him, by way of subject or occasion— it being the general habit of men of brilliant genius, if they are at the same time one's friends, to fashion their praises too eagerly rather by the standard of their own excellencies than by truth—yet he was unwilling that the singular goodwill of such persons towards him should remain unknown, and the rather because others advised him strongly to the step he is now taking. While therefore he puts from him with all his strength the imputation of desiring overpraise, and would rather not have attributed to him more than is due, he cannot deny but he considers the opinion of him meantime by wise and celebrated men a very high honour." Accordingly there here follow the encomiums of his various Italian friends, known to us long ago, and which had been carefully preserved by him till now among his papers—the Latin distich by the famous Marquis Manso of Naples; the outrageously complimentary Latin verses of the two Romans, Salzilli and Selvaggi; and the more interesting Italian ode of compliment and Latin Dedication by the two Florentines, Francini and Carlo Dati. (See Vol. I. pp. 732-4, 753-4, and 768.) One has to remember that the insertion of such commendatory verses in new volumes of poetry was a fashion of the day. But, besides, there was really the anxiety for "something green round the brow." In short, it is as if Milton said to his countrymen—"Here is plenty of greenery, and to spare, with florid stuff intermixed, of which I am rather ashamed: pick out as much or as little of it as you like; only, at this date in my life, to prevent mistake, let me have *some* kind of garland."

The publisher, Humphrey Moseley, for one, was most willing to oblige Milton. Prefixed to the volume, on the blank space before the poems themselves begin, is this most interesting preface in Moseley's own name:

"THE STATIONER TO THE READER.

"It is not any private respect of gain, gentle Reader—for the slightest Pamphlet is nowadays more vendible than the works of learnedest men—but it is the love I have to our own language, that hath made me diligent to collect and set forth such pieces, both in prose and verse, as may renew the wonted honour and esteem of our English tongue; and it's the worth of these both English and Latin Poems, not the flourish of any prefixed encomions, that can invite thee to buy them—though these are not without the highest commendations and applause of the learnedest Academicks, both domestick and foreign, and amongst those of our own country the unparalleled attestation of that renowned Provost of Eton, Sir Henry Wootton. I know not thy palate, how it relishes such dainties, nor how harmonious thy soul is: perhaps more trivial Airs may please thee better. But, howsoever thy opinion is spent upon these, that encouragement I have already received from the most ingenious men, in their clear and courteous entertainment of Mr. Waller's late choice pieces, hath once more made me adventure into the world, presenting it with these ever- green and not to be blasted laurels. The Author's more peculiar excellency in these studies was too well known to conceal his papers or to keep me from attempting to solicit them from him. Let the event guide itself which way it will, I shall deserve of the age by bringing into the light as true a birth as the Muses have brought forth since our famous Spenser wrote; whose poems in these English ones are as rarely imitated as sweetly excelled. Reader, if thou art eagle-eyed to censure their worth, I am not fearful to expose them to thy exactest perusal.

"Thine to command, HUMPH. MOSELEY."

This is most creditable to Moseley, and confirms the impression of him which is to be derived from all the known facts of his publishing life. One notices, with real respect, his introductory statement about himself, that, in

an age when only pamphlets were thought vendible, he was resolved, from his own liking for good literature, to keep to a finer line of business; one observes with interest the admission that it was Moseley who had solicited the copy from Milton, and not Milton who had offered the copy; and one is struck with the justness of taste shown in the hint that, however choice Mr. Waller's late Pieces might be, here was a poet of "more peculiar excellency." Above all, nothing could be critically truer than the assertion that since Spenser's death there had been no English poetry of Spenser's kind equal to that contained in this volume.

Another feature of the volume, for which Moseley, without doubt, is also responsible, is a prefixed portrait of the Author. There was then living in London a certain William Marshall, an engraver and sketcher of designs for books. He had been some fourteen or fifteen years in this employment; and among the many heads he had done, separately, or as frontispieces to books, ere those of Richard Brathwayte the Poet, Dr. Donne, Archbishop Abbot, Laud, and Dr. Daniel Featley. Very probably Moseley had already had dealings with Marshall, as he had certainly had with the more celebrated engraver Hollar, who had done a frontispiece for him for Howell's "Instructions for Foreign Travel." At all events, Hollar being now out of the way and in trouble (he and Inigo Jones were in the Marquis of Winchester's house at Basing when it was taken by Cromwell), it was Marshall that came in for most such pieces of engraving work as Moseley and other London publishers required. The connexion between him and Moseley became, indeed, a permanent one, so that Marshall is perhaps best remembered now by Horace Walpole's description of him as "the graver of heads for Moseley's books of poetry." If the first head he did for Moseley was this for the edition of Milton's Poems in 1645, it was an unlucky beginning of the connexion. It turned out, at all events, to be an unfortunate piece of work for Marshall's own memory with posterity:— Moseley, we are to suppose, insisted on a portrait of Milton as a proper ornament to be prefixed to such a

volume, chose Marshall to do it, and sent him to Milton. Now Milton, as we know, had some recollection of Marshall, and not a very respectful one. It was Marshall that had done not only Dr. Featley's portrait, but also the caricature of the different sorts of Anabaptists and Sectaries, including a river-scene with bathers of both sexes, which had been inserted in the Doctor's treatise entitled *The Dippers Dipt*. Milton, as we have seen (*antè*, p. 311), while administering punishment to Dr. Featley in his *Tetrachordon* on account of a passage in this treatise, had not allowed the vulgarity of the engraving in Featley's book to escape. "For which I do not commend his *marshalling*" had been Milton's punning notice of it in a parenthesis of the punishment. When, therefore, Mr. Marshall came to Milton from Moseley, Milton must have remembered him as the caricaturist for Dr. Featley's book. Nevertheless, he seems to have given him every facility for the portrait wanted. Marshall's habit, in such cases, was to take a sketch from the life when he could get it, but to assist himself with whatever was at hand in the shape of a picture or former engraving. Milton, therefore, may have given him a sitting or two, but perhaps avoided unnecessary trouble by referring to that portrait of himself at the age of 21, now celebrated as "the Onslow Portrait," which then hung in some room in the house in Barbican. As the forthcoming volume consisted largely of Milton's juvenile Poems, an engraving from that portrait, touched up a little, would be the very thing. And so Marshall set to work. His dilatoriness over the plate may have been the cause of the unusual delay in the publication of the volume after it had been registered. In due time, however, the result was presented to Moseley and to Milton. And what a result! How they must have both stared! The general design of the plate was, indeed, pretty enough—an oval containing the portrait, with a background partly of curtain and low wall or window-sill, partly of an Arcadian scene of trees and meadow beyond, in which a shepherd is piping under one of the trees, and a shepherd and shepherdess are dancing; and then, outside the oval, in the four corners, the Muses

Melpomene, Erato, Urania, and Clio, with their names. All this was passable; it was the portrait within the oval that gave the shock. The face is that of a grim, gaunt, stolid gentleman of middle age, looking like anybody or nobody, with long hair parted in the middle and falling down on both sides to the lace collar round the neck; one shoulder is cloaked, and the other shown tight in the buttoned tunic or coat; and the arms meet clumsily across the breast, the left arm uppermost. Round the oval was the legend, "*Joannis Miltoni Angli Effigies, anno ætatis vigess: pri. W. M. Sculp.*"—i.e. "Portrait of John Milton, Englishman, in the 21st year of his age: W. M. Sculp." The legend *said* twenty-one years of age; the portrait *looked* somewhere about fifty. What was to be done? What *ought* to have been done was to cancel the plate and print the book without it. Perhaps not to vex Moseley, Milton did not insist on this, but allowed the engraving, just as it was, to be prefixed to the volume. But he took his revenge in one of the most malicious practical jokes ever perpetrated. "Mr. Marshall," he must have said to the unfortunate engraver, "here are a few lines of Greek which I should like to have carefully engraved on the plate under the portrait," at the same time handing him the following:—

[Greek: Amatheî gegraphthai cheiri tænde men eikona
Phaiæs tach an, pras eidos autophues blepon.
Ton d'ektupoton ouk epignontes, philoi,
Gelate phaulou dusmimæma xographou.]

Away went Mr. Marshall, and duly, and with some pains, engraved these letters on the plate, utterly ignorant of their meaning. Accordingly, when the volume appeared (Jan. 2, 1645-6), purchasers of it did indeed find Marshall's portrait of Milton in it, but those among them who knew Greek could read, underneath it, inscribed by Marshall's own graving tool, this damning criticism of his handiwork:—

"That an unskilful hand had carved this print
You'd say at once, seeing the living face;
But, finding here no jot of me, my friends,
Laugh at the botching artist's mis-attempt."

[Footnote: This was very savage in Milton; but really, as it turned out, it was a prudent precaution. For, till 1670, Marshall's botch prefixed to the Poems was the only published portrait of Milton—the only guide to any idea of his personal appearance for those, whether friends or foes, whether in Britain or abroad, who were not acquainted with himself. Especially among enemies on the Continent, as we shall find, both Marshall's portrait and Milton's sarcastic disavowal of it were eagerly scanned and interpreted for the worst. As late as 1655, Milton, in his *Pro se Defensio contra Alexandrum Morion*, had to refer to both portrait and disavowal as follows:—"Now I am a Narcissus with you, because I would not be the Cyclops you paint me from your sight of the most unlike portrait of me prefixed to my Poems. Really, if, in consequence of the persuasion and importunity of my publisher, I allowed myself to be clumsily engraved by an unskilful engraver, because there was not another in the city in that time of war, this argued rather my entire indifference in the affair than the too great care with which you upbraid me." The passage quite confirms the view taken in the text of the way in which the portrait came to be published. In justice to Marshall, it is right to say that he had done much better things, and did better things afterwards for Moseley, than this head of Milton. "Marshall," says Bliss (Wood's Ath. III. 518, Note), "though in general a coarse and hasty performer, is not to be despised, since his heads, though often very rough sketches, bear evident marks of authenticity and resemblance to the originals. The best head he ever engraved, in my opinion, is one of Dr. Donne when young." I can confirm this by saying that his head of Featley really gives one an idea of that obstinate and consequential old divine. I only wish he had done Milton half as well. About Marshall's engraving of

Milton see Mr. J. F. Marsh's tract on the *Engraved and Pretended Portraits of Milton* (Liverpool, 1860). Mr. Marsh thinks, with me, that Marshall based his engraving partly on the Onslow picture, and that that picture suggested the date, *ætat.* 21, so absurdly given to the engraving.]

TWO DIVORCE SONNETS, AND SONNET TO HENRY LAWES.

Moseley's precious little volume, with the engraver Marshall thus grimly immortalized in it, brings Milton to the beginning of 1646, or twelve months beyond his *Tetrachordon* and *Colasterion*. His wife having been for some months back with him, for better or worse, in the house at Barbican, he had dropped the Divorce argument, or at least its public prosecution. That he did so with a certain reluctance, and in no spirit of recantation, appears from two of his Sonnets, which must have been written about the time of the publication of his volume of Poems (Oct. 1645—Jan. 1645-6), but which are not included in that volume, either because they were too late to come in their places after the Ten Sonnets contained in it, or because Milton thought it better not then to print them. "*On the Detraction which followed upon my writing certain Treatises*" is the title given by Milton himself in MS. to the two Sonnets together; but they may have been written separately.

I.

I did but prompt the age to quit their clogs,
By the known rules of ancient liberty,
When straight a barbarous noise environs me
Of Owls and Cuckoos, Asses, Apes, and Dogs;
As when those hinds that were transformed to frogs
Railed at Latona's twin-born progeny,
Which after held the sun and moon in fee.

But this is got by casting pearl to hogs,
That bawl for freedom in their senseless mood,
And still revolt when Truth would set them free.
Licence they mean when they cry Liberty;
For who loves that must first be wise and good:
But from that mark how far they rove we see,
For all this waste of wealth and loss of blood.

II.

A book was writ of late called *Tetrachordon*,
And woven close, both matter, form, and style;
The subject new. It walked the town a while
Numbering good intellects; now seldom pored on.
Cries the stall-reader "Bless us! what a word on
A title-page is this!" and some in file
Stand spelling false while one might walk to Mile-
End Green. Why is it harder, Sirs, than *Gordon*,
Colkitto, or *Macdonnell*, or *Galasp*?
Those rugged names to our like mouths grow sleek,
That would have made Quintilian stare and gasp.
Thy age, like ours, O soul of Sir John Cheke,
Hated not learning worse than toad or asp,
When thou taught'st Cambridge and King Edward Greek.

The second of these Sonnets is printed first in all the editions of Milton, but there is proof that it was written second. [Footnote: It stands first in the Second or 1673 Edition of Milton's Poems; but in the Cambridge MSS, it comes second in Milton's own hand.] And, while the two together form what may be called Milton's poetical farewell to the Divorce subject, the mood in the second, it may be noted, is more humorous than in the first. In

the first Milton, still angry, clenches his fist in the face of his generation, as a generation of mere hogs and dogs, unable to appreciate any real form of the liberty for which they are howling and grunting; in the second the spleen is less, and he is content with a rigmarole of rhyme about the queer effects among the illiterate of the Greek title of his last Divorce Pamphlet. And here what is chiefly interesting in the rigmarole is the evidence that Milton had been recently attending to the news from Scotland. The "*Colkitto*, or *Macdonnell*, or *Galasp*" of the Sonnet is no other than our friend Alexander MacDonnell, *alias* MacColkitto, *alias* MacGillespie, Montrose's gigantic Major-general; and the "Gordon" is either Lord Aboyne, the eldest son of the Marquis of Huntly, who adhered to Montrose till Philiphaugh, or it is a general name for the many Gordons who were with him (see *antè*, pp. 348, 358, 367). The odd Scottish and Gaelic names had amused Milton's delicate ear; *Gordon* rhymed aptly to *Tetrachordon*; and hence the notion of the Sonnet. [Footnote: Those annotators on Milton who have tried to identify *Galasp* at all have supposed him to be the Mr. George Gillespie who was one of the Scottish Divines in the Westminster Assembly. There *may* be a side-reference to him, for Milton must have heard much of him; but the primary reference is not to the Presbyterian minister, but to the huge Colonsay Highlander, recently heard of everywhere as Montrose's comrade in arms, and who was *Colkitto*, *MacDonnell*, and *Galasp*, all in one.]

A third Sonnet, written about the same time, shows even more distinctly the calming effect on Milton's mind produced by his changed mode of life in the house in Barbican, after his wife's return and the publication of his little Volume of Poems. It is the well-known Sonnet to his friend Henry Lawes, the musician.

So far as the two artists, William and Henry Lawes, concerned themselves in the politics of the time, they were, of course, Royalists.

Officially attached to his Majesty's household and service, what else could they be? The elder of the two, indeed, William Lawes, had gone into the Royalist army, taken captain's rank there, and been slain quite recently at the siege of Chester (October 1645), much regretted by the King, who is said to have put on private mourning for him. Henry, the younger, and much the more celebrated as a composer, had remained in London, exercising his art as much as might be at such a time, and kept by it in acquaintance with many who, differing in other things, were at one in their love of music. Everybody liked and admired the gentle Harry Lawes, and he was welcome everywhere. But there was still no family with which he was on more intimate terms than with his old patrons of the accomplished Bridgewater group, and there can have been no house where his visits were more frequent than at their house in Barbican. True, the family was greatly reduced from what it had been in the old days of the *Arcades* and *Comus*, when Lawes was teacher of music to its budding girls and boys, and the master and stage-director of their tasteful masques and private concerts. The Countess had been ten years dead; Lord Brackley, the heir of the house, and the elder of the boy-brothers in *Comus*, had wedded, in July 1642, when only nineteen years of age, the Lady Elizabeth Cavendish, daughter of the powerful Royalist Earl, afterwards Marquis and Duke, of Newcastle; and one or two of his sisters, unmarried in the *Comus* year, had since found husbands. With the widower Earl, however, inhabiting now his town-house in Barbican, and visiting but seldom his country mansion at Ashridge, Herts, there still remained his youngest daughter, the Lady Alice of *Comus*, verging on her twenty-fifth year, and Mr. Thomas Egerton, the younger of the boy-brothers in *Comus*, now a youth of about twenty. Probably elder and married members of the family gave the Earl their occasional company; for he was now about sixty-five years of age, in an infirm state of health, sorely impoverished, and in the unfortunate condition of a Peer who would have been with the King if he could, and whom the King had expected to be

with him, but who was obliged to plead his infirm health and his poverty for a kind of semi-submission to Parliament. He had reluctantly taken the Covenant (*antè*, pp. 39,40), and there are entries in the Lords Journals proving that his excuses for non-attendance in the House were barely allowed to pass. Music and books were among the invalid Earl's chief recreations; and some of his happiest moments in his old age may have been in listening to the Lady Alice, or another of his daughters, singing one of Lawes's songs, with Lawes, now the privileged artist- friend rather than the professional tutor, standing by or accompanying. What if it were the Lady Alice, and the song were that well-remembered one of *Comus* which she had sung, when a young girl, eleven years before, in the Hall of Ludlow Castle, before the assembled guests of her father's Welsh Presidency, her proud mother then among the listeners,—

"Sweet Echo, sweetest nymph that liv'st unseen
Within thy airy shell"?

If so, the sound of her voice might have almost reached Milton in *his* house close by in the same street. At all events, here, in the street called Barbican, by a strange chance, were assembled, within a few yards of each other, at the very time when *Comus* was first published by Milton himself, and acknowledged among his other poems, at least five of the persons chiefly concerned in the masque on its first production—the Earl in whose honour it had been composed; the Lady Alice, and Mr. Thomas Egerton, two of the chief actors: the musician Lawes, who had directed all, composed the music, and sustained the parts of Thyrsis and the Attendant Spirit in the, performance; and the poet who had written the words.

When Lawes was in Barbican of an evening, it was but a step for him from the Earl's house to Milton's. And then would there not be more music, mingled with talk perhaps about the Bridgewater family, while Mrs. Milton

sat by and listened? And would not the old Scrivener come down from his room to see Mr. Lawes, and bring out his choicest old music-books, and almost set aside his son in managing the visit for musical delight? So one fancies, and therefore keeps to the interrogative form as the safest; but the fancy here is really the most exact possible apprehension of the facts as they are on record. Lawes's friendship with Milton had been uninterrupted since 1634; but it so chanced that the third point in Milton's life at which his intimacy with Lawes emerges into positive record is precisely the winter of 1645-6, when Milton was the Earl of Bridgewater's neighbour in Barbican, and his Volume of Poems was going through the press. Not only was there reprinted in this volume Lawes's Dedication of the *Comus* in 1637, "To the Right Honourable John, Lord Brackley, son and heir-apparent to the Earl of Bridgewater;" but in the very title-page of the volume, as arranged by Moseley, Lawes's name is associated with Milton's. "*The Songs were set in musick by Mr. Henry Lawes, &c.*," says the title-page; and this may mean that not only the songs in *Arcades* and *Comus*, but other lyrical pieces in the volume, had been set to music by Lawes. If so, a good deal more of Lawes's music to Milton's words may have been in existence about 1645 than his settings of the five songs in *Comus*, which are all that have come down to us in his own hand. Songs of Milton set by Lawes may have been in circulation in MS. copies, and may have been as well known in musical families as the numerous songs by Carew, Herrick, Waller and others, which had been set by the same composer; and it may be to this that Moseley alludes by the prominent mention of Lawes in the title-page of the collected Poems. And, if Lawes had done so much for Milton's verse, it was fitting that Milton should make some return in kind. He had indeed introduced skilful compliments to Lawes personally in his *Comus*; but something more express might be now appropriate. Accordingly, on the 9th of February, 1645-6, or five weeks after the publication of the Poems, Milton wrote the following:—

"TO MY FRIEND MR. HENRY LAWES.

"Harry, whose tuneful and well-measured song
First taught our English music how to span
Words with just note and accent, not to scan
With Midas ears, committing short and long,
Thy worth and skill exempts thee from the throng,
With praise enough for Envy to look wan:
To after-age thou shalt be writ the man
That with smooth air could humour best our tongue.
Thou honour'st Verse, and Verse must lend her wing
To honour thee, the priest of Phoebus' quire,
That tun'st their happiest lines in hymn or story.
Dante shall give Fame leave to set thee higher
Than his Casella, whom he wooed to sing,
Met in the milder shades of Purgatory."

The original draft of this Sonnet, entitled as above, and with the date "Feb. 9, 1645," attached, and a corrected transcript underneath, both in Milton's own hand, are in the Cambridge volume of Milton MSS. The Sonnet was prefixed by Lawes, with the same title, in 1648 to a publication of some of his own and his deceased brother's compositions, entitled *Choice Psalmes put into Musick for Three Voices*; but in the Second or 1673 Edition of Milton's Poems it reappeared with the title which it has retained in all subsequent editions: viz. "To Mr. Henry Lawes on his Airs." For biographical purposes it is well to remember the first title and the dating. The Sonnet is, in fact, a memorial of a time when Milton and Lawes must have been much together. [Footnote: The details about the state of the Bridge water family in the text are partly from Todd's Note prefixed to *Comus* (Todd's Milton, ed. 1852, IV 38-44), partly from entries in the *Lords Journals* already referred to in this volume. Todd has also (*ibid.* 45-54) an

elaborate, though ill-digested, note on Lawes, with particulars of his continued connexion, to 1653 and beyond, with various members of the Bridgewater family. In the Stationers' Registers there is this entry:—"Nov. 16, 1647, Rich. Woodnoth entered for his copy under the hands of Mr. Downham and Mr. Bellamy, warden, a book called 'Compositions of Three Parts,' by Henry and William Lawes, servants to his Majesty." I suppose this was the book published in 1648 with the title "*Choice Psalmes*," &c.]

CONTINUED PRESBYTERIAN ATTACKS ON MILTON: HIS ANTI-PRESBYTERIAN SONNET OF REPLY.

Altogether it was beginning to be a more placid time with Milton. With his book out, his wife restored to him, the Divorce argument dropped, and his pupils to teach, he might look about him quietly on the state of public affairs, and expect what should be the next call on him. There did not seem to be any immediate call. In the month when his volume of Poems appeared Presbyterianism was at its fullest tide in Parliament; but in the succeeding months, what with the increase of Recruiters in the Commons, what with the tramp of Independency in the field growing louder and nearer as the New Model ended its work, he could see the political power of the Presbyterians gradually waning, until, in April 1646, when Cromwell reappeared in London, Anti-Toleration was abashed and the Westminster Assembly itself under control. The spectacle must have been quite to Milton's mind; but, as he had already expressed himself sufficiently on the main question between the Independents and the Presbyterians, and as nobody doubted on which side he was to be ranked, he was disposed to take his ease on this subject too, and to leave the issue to the Parliament and the Army. He was too marked a man, however, to be quite let alone. The Presbyterian writers, true to their policy of publicly naming all prominent heretics and sectaries, and painting their opinions in the most glaring

colours, with a view to disgust people with the idea of a Toleration, could not part with Milton and his Divorce Doctrine. After he and his wife were in the Barbican house together, he was still pursued by the hue and cry. Here are two specimens:—

Mr. Baillie on Milton.—"Mr. Milton permits any man to put away his wife upon his mere pleasure without any fault, and without the cognisance of any judge," writes Baillie in the Table of Contents to the First Part of his *Dissuasive*, published in November 1645; and in the text of the work (p. 116) the statement is amplified as follows:—"Concerning Divorces, some of them [the Independents] go far beyond any of the Brownists; not to speak of Mr. Milton, who in a large treatise hath pleaded for a full liberty for any man to put away his wife, whenever he pleaseth, without any fault in her at all, but for any dislike or dyssympathy of humour. For I do not certainly know whether this man professeth Independency, albeit all the heretics here whereof ever I heard avow themselves Independents. Whatever therefore may be said of Mr. Milton, yet Mr. Gorting and his company were men of renown among the New English Independents before Mistress Hutchinson's disgrace; and all of them do maintain that it is lawful for every woman to desert her husband when he is not willing to follow her in her church-way." In other words, Baillie is not sure that it is fair to charge Milton's extreme opinion upon Independency as such, inasmuch as it may be the crotchet of a solitary heretic; but he is inclined to think that Milton is an Independent, and he knows at least that Mr. Gorting and other Independents have broached a milder form of the same heresy. In his Notes (pp. 144,145) he quotes sentences to the amount of a page from Milton's *Doctrine and Discipline of Divorce* to prove that he does not misrepresent him.—The "Gorting" here mentioned by Baillie is the "Samuel Gorton" who had been such a sore trouble to the New Englanders, and even to Roger Williams at Providence, by his anarchical opinions and conduct (Vol. II. 601). He had returned or been ejected from America, and was making himself notorious

in London. "This I am assured of from various hands," wrote Edwards (*Gangr.* Part II. p. 144), "that Gorton is here in London, and hath been for the space of some months; and I am told also that he vents his opinions, and exercises in some of the meetings of the sectaries, as that he hath exercised lately at Lamb's Church, and is very great at one Sister Stagg's, exercising there too sometimes." This will explain Baillie's allusion to Gorton in connexion with Milton's Divorce Doctrine. Strange that Gorton should be cited as holding a *milder* form of the heresy than Milton's!

Mr. Edwards on Milton.—Of course, Milton got into the *Gangræna*. Everybody that deviated in anything, to the right or left, from the path of Presbyterian orthodoxy, got into that register of scandals; and we have already availed ourselves of information incidentally supplied in the Second and Third Parts of it as to the horror caused by Milton's Divorce Doctrine among the Presbyterians (*antè*, pp. 189-192). We have still to present, however, Edwards's direct notice of Milton in the First Part of his scandalous medley. It was published in January or February 1645-6; so that, at the very time when Milton's volume of Poems was out, and he was writing his Sonnet to Lawes, he found himself pilloried again in the new book which all London was reading greedily. A leading portion of the book, as we know (*antè*, pp. 143-5), consisted of a catalogue of 176 "Errors, Heresies, and Blasphemies" that had been vented by divers Sectaries and were then distracting and corrupting the soul of England. Well, the 154th Error, Heresy, and Blasphemy in this catalogue is this:— "That 'tis lawful for a man to put away his wife upon indisposition, unfitness, or contrariety of mind, arising from a cause in nature unchangeable; and for disproportion and deadness of spirit, or something distasteful and averse in the immutable bent of nature; and man, in regard of the freedom and eminency of his creation, is a law to himself in this matter, being head of the other sex, which was made for him; neither need he hear any judge therein above himself." To this summary by Edwards of Milton's Doctrine, partly in

Milton's own words, the reference is appended in the margin: "*Vide Milton's Doctrine of Divorce.*" (*Gangræna*, Part I. p. 29.) And so for the moment Edwards dismisses Milton, very much as Baillie had done, to return to him again in the Second and Third Parts of his *Gangræna*, as Baillie was to do in the Second Part of his *Dissuasive*.

Milton was provoked. It was not in his nature to let any attack upon him, from whatever quarter, pass without notice; and attacks by persons of such popular celebrity as Baillie and Edwards could hardly be ignored. But, as he had given up the public prosecution of the Divorce argument, his punishment for Edwards and Baillie came in a different form from that which he had administered in the *Tetrachordon* and *Colasterion* to Herbert Palmer, Dr. Featley, Mr. Caryl, Mr. Prynne, and the anonymous attorney. It came in verse, thus—

"ON THE FORCERS OF CONSCIENCE.

"Because you have thrown off your Prelate lord,
And with stiff vows renounced his Liturgy,
To seize the widowed whore Plurality
From them whose sin ye envied, not abhorred,
Dare ye for this adjure the civil sword
To force our consciences that Christ set free,
And ride us with a Classic Hierarchy,
Taught ye by mere A. S. and *Rutherford*?
Men whose life, learning, faith, and pure intent
Would have been held in high esteem with Paul,
Must now be named and printed heretics
By *shallow Edwards* and *Scotch What d'ye call*.
But we do hope to find out all your tricks,
Your plots and packing, worse than those of Trent,

That so the Parliament
May, with their wholesome and preventive shears,
Clip your phylacteries, though baulk your ears,
And succour our just fears,
When they shall read this clearly in your charge—
New PRESBYTER is but old PRIEST writ large."

Milton, we are to suppose, having already written two Divorce Sonnets, did not care to write a third, but preferred to punish Edwards and Baillie in a general Anti-Presbyterian Sonnet. It turned out, however, not a Sonnet proper, but a *Sonetto con coda*, as the Italians call it, or "Sonnet with a tail"—the Anti-Presbyterian rhythm prolonging itself beyond the fourteen lines that would have completed the normal Sonnet, and demanding the scorpion addition of six lines more. Into this peculiar "tailed Sonnet" Milton condenses metrically all the rage against Presbytery, the Westminster Assembly, and the Anti-Tolerationists, which had already broken forth at large in his later prose pamphlets. The piece is unusually full of historical allusions. It breathes throughout his acquired hatred of the Presbyterians for their opposition to Liberty of Conscience, and their determination that the "Classic Hierarchy," or system of Presbyterian *classes* which they were establishing in England, should be as compulsory on all as the Prelacy they had thrown off; and there is a palpable side-hit at the recent acquisition by some of the leading Presbyterian Divines in the Assembly of University posts and the like in addition to their previous livings, notwithstanding their outcries against Pluralities in the time of Episcopacy. In this side-hit not a few known Divines are slashed; and among them, I fear, Milton's old tutor Thomas Young, now Master of Jesus College, Cambridge, as well as Vicar of Stowmarket. But the open personal references are four. The "A. S." selected as one prominent expounder of Presbytery is the Scotchman, Dr. Adam Steuart, who, under his initials "A. S.," had been one of the first to rush into print in behalf of strict Presbytery and Anti-Toleration against the

Apologetical Narrative of the Independents of the Assembly, and who had been replied to by John Goodwin, but had since gone into Holland (*antè*, p. 25). The "Rutherford" coupled with him is the celebrated Scottish divine, and Commissioner to the Assembly, Samuel Rutherford, who had set forth several expositions of strict Scottish Presbytery for the enlightenment of the English. "Shallow Edwards" is obvious enough: he is Mr. Edwards of the *Gangræna*, once far from a nobody in London, but who will now, through Milton's mention of him, be "Shallow Edwards" to the world's end. In Milton's draft of the Sonnet he was "hair-brained Edwards;" but "hair-brained" was erased, and "shallow" substituted. The "Scotch What d'ye call" has cost the commentators more trouble. Most of them have identified him with George Gillespie, whom they also, though erroneously, suppose to be the "Galasp" of one of the Divorce Sonnets. There can be little doubt now, I think, that I have detected the real "What d'ye call" in Gillespie's fellow-Commissioner from Scotland, our good friend Baillie, whose *Dissuasive*, with its reference to Milton as one of the heretics of the time, had just preceded Edwards's *Gangræna*. I am sorry for this, but it cannot be helped. There was, I ought to add, in the original draft of the Sonnet, a fifth personal allusion, which Milton saw fit, on second thoughts, to omit. Line 17, which now stands "*Clip your phylacteries, though baulk your ears*" (i.e. "though pass over your ears and leave them undipped"), was originally "*Crop ye as close as marginal P—'s ears.*" As Milton had already, in his *Colasterion*, said enough about Prynne and the heavy margins of his many pamphlets, and as the circumstances in which Prynne had lost his ears made the subject hardly a proper one for a public joke, it was but good taste in Milton to make the change.

It is from internal evidence that I assign this famous Anti-Presbyterian outburst of Milton to some early month of the year 1646. [Footnote: The lines were first published in the Second or 1673 Edition of Milton's Poems, and not there among the Sonnets, but as a piece apart, with the title, since

always given to it, *On the New Forcers of Conscience under the Long Parliament*. The draft of it among the Milton MSS. at Cambridge has the simpler title *On the Forcers of Conscience*. This draft, however, is not in Milton's own hand, but is a transcript by an amanuensis. Hence we have not the means of determining the date so exactly as if Milton's own draft had been preserved. I am pretty confident that the date cannot be later than 1646, and I fancy copies may have been in private circulation in that year.] It fits in exactly with the state of public affairs and of Milton himself at that time; all the motives to it, public and private, were in existence by the March of that year; and it is difficult to suppose that the composition was of much later date. Or, if it was a little later, the lines fairly represent Milton's feeling at the time to which I assign them. In March, April, and May, 1646, Milton was one of those Englishmen who had done for ever with Presbyterianism, who rejoiced over the curb imposed at length upon the Westminster Assembly by the Independents and Erastians of the Parliament, and who longed to see that conclave dismissed, and the Scots sent packing home.

SURRENDER OF OXFORD: CONDITION OF THE POWELL FAMILY.

That the Scots should be sent packing home, but that they should leave the King behind them in English custody, was the result for which all the Independents were anxious. Through May and June 1646, it was for Milton, among the rest, to watch the progress of the negotiations with the Scots at Newcastle round the person of the King, and at the same time to observe the surrender of one after another of the few remaining Royalist garrisons, including the great Royalist capital of Oxford. The siege of this city by Fairfax, begun May 1, a week after the King had left it, and continued for seven or eight weeks with the help of Cromwell and Skippon, must have

been a matter of considerable personal interest to Milton, and of more interest to his wife. She was now in a state of health requiring as much freedom from anxiety as possible; but, while the siege was going on, there was good reason for anxiety in the fact that her father and mother, with the rest of her family, or some of them, were in the besieged city and undergoing its dangers. They had taken refuge there on the approach of the Parliamentary troops into Oxfordshire, leaving their house at Forest-hill to take its chance. What might that chance be, and what worse chances might come of the siege itself? It was a relief when the news came of the actual surrender of the city (June 24), on terms exceedingly liberal to the garrison, the citizens, and all the resident Royalists. The terms, indeed, were thought far too liberal by the Presbyterians. "The scurvy base propositions which Cromwell has given to the Malignants at Oxford has offended many," writes Baillie, June 26; [Footnote: Baillie, II. 376] the reason for the offence being that it was but too clear that the Independents had been in haste to obtain Oxford on any terms whatever, in order that the army might be free to act, if necessary, against the Scots in the north. Anyhow the surrender had taken place. The Princes Rupert and Maurice had left the city with a retinue and promise of liberty to go abroad; the garrison, to the number of 7,000 men, had marched out honourably, with arms and baggage; security for the property of the citizens and the colleges had been guaranteed; and all the miscellaneous crowd of Royalists of various ranks that had been cooped up so long in Oxford were at liberty to disperse themselves on certain stipulated conditions. To one of the Articles of the Treaty of Surrender I must ask special attention, as it came to be of much domestic consequence to Milton in future years:—

"XI. That all lords, gentlemen, clergymen, officers, soldiers, and all other persons in Oxford, or comprised in this capitulation, who have estates real or personal under or liable to sequestrations according to the Ordinance of Parliament, and shall desire to compound for them (except persons by name

excepted by Ordinance of Parliament from pardon), shall at any time within six months after the rendering of the garrison of Oxford be admitted to compound for their estates; which composition shall not exceed two years' revenue for estates of inheritance, and for estates for lives, years, and other real and personal estates, shall not exceed the proportion aforesaid for inheritances, according to the value of them: And that all persons aforesaid whose dwelling-houses are sequestered (except before-excepted) may after the rendering of the garrison repair to them, and there abide, convenient time being allowed to such as are placed there under the sequestrations for their removal. And it is agreed that all the profits and revenues arising out of their estates after the day of entering their names as Compounders shall remain in the hands of the tenants or occupiers, to be answered to the Compounders when they have perfected their agreements for their compositions; And that they shall have liberty, and the General's pass and protection, for their peaceable repair to and abode at their several houses or friends, and to go to London to attend their compositions, or elsewhere upon their necessary occasions, with freedom of their persons from oaths, engagements, and molestations during the space of six months, and after so long as they prosecute their compositions without wilful default or neglect on their part, except an engagement by promise not to bear arms against the Parliament, nor wilfully to do any act prejudicial to their [Parliament's] affairs so long as they remain in their quarters. And it is further agreed that, from and after their compositions made, they shall be forthwith restored to and enjoy their estates, and all other immunities, as other subjects, together with the rents and profits, from the time of entering their names, discharged from sequestrations, and from fifths and twentieth parts, and other payments and impositions, except such as shall be general and common to them with others." [Footnote: Whitlocke (ed. 1853), II. 38; also in Rushworth, VI. 282, 283.]

Some hundreds of persons in Oxford at the time of its surrender must have had their movements for the next few months determined by this article. Among these was Milton's father-in-law, Mr. Richard Powell.

The view we arrived at as to the condition of the Powell family before the Civil War was (Vol. II. p. 499) that they were then "an Oxfordshire family of good standing, keeping up appearances with the neighbour-gentry, and probably more than solvent if all their property had been put against their debts, but still rather deeply in debt, and their property heavily mortgaged." During the war, we have now to record, on the faith of a statement afterwards made by Mr. Powell himself, the losses of the family in one way or another had amounted to at least 3,000_l_. Remembering this heavy item, I will try to present in figures the state of Mr. Powell's affairs while he was shut up in Oxford:—

I. PROPERTY.

1. Lease, till 1672, of the Forest-hill mansion and £ estate, worth about 270 a year. 2. Furniture, household-stuff, and corn in the Forest- hill mansion and appurtenances, valued at . 500 3. Wood and timber stacked about the Forest-hill premises, worth 400 4. Property in land and cottages at Wheatley, valued at 40 a year. 5. Debts owing to Mr. Powell 100

II. DEBTS AND OBLIGATIONS.

1. Due to Mr. John Milton, by recognisance since 1627, as unpaid part of an original debt of £500 300
2. Promised to the said Mr. Milton, when he married Mr. Powell's eldest daughter, a marriage portion of. 1,000

3. Due to Mr. Edward Ashworth, or his representatives,
in redemption of a mortgage on the
Wheatley property since 1631, a capital sum
(besides arrears of interest) of 400
4. Due to Sir Robert Pye, in redemption of a mortgage
on the Forest-hill mansion and property
since 1640, a capital sum (besides arrears of
interest) of 1,400
5. Other debts, as estimated by Mr. Powell . . . 1,200

It is difficult to square this ragged account (which, however, is the best one can produce); [Footnote: My authorities for it are—(1) My own previous accounts of the state of Mr. Powell's affairs before the war, Vol. II. pp. 492-9, based on authorities there cited. (2) "A Particular of the Real and Personal Estate of Richard Powell of Forest-hill," after the surrender of Oxford, attested by himself Nov. 21, 1646, and given in the Appendix to Hamilton's *Milton's Papers*. (3) Other papers in the same Appendix, especially an attestation of Milton himself at p. 95. (4) The documents relative to Milton's Nuncupative Will printed by Todd and others.] but the general effect is that Mr. Powell's affairs were in a woful condition. It was almost mockery now to style him Mr. Powell of Forest-hill and Wheatley; for, before he could call these Oxfordshire properties his own, with their joint revenue of 310_l. a year, he had to clear off a debt of 1,400_l. to Sir Robert Pye, and another of 400_l. to one Ashworth, each with heavy arrears of interest. Actually, in furniture, goods, corn, and timber in the house at Forest-hill and its premises, and in debts owing to him, he fancied himself worth 1,000_l.; but his debts, apart from those to Pye and Ashworth, and apart also from the 300_l. legally owing to his son-in-law Milton (which, with the promised marriage-portion of 1,000_l., might stand over to a convenient time), amounted to 1,200_l. Nay, this is too favourable a view; for, while the siege of Oxford had been going on,

incidents had happened which much increased Mr. Powell's difficulties:—

(1) The terms of the mortgage of the Forest-hill mansion and estate to Sir Robert Pye had been that the mortgage was to be void if Mr. Powell should pay Sir Robert a sum of 1,510_l._ by the 1st of July, 1641. This not having been done, Sir Robert had had, ever since that date, a legal right to eject Mr. Powell from the mansion and lands and take possession of them for his debt. A friendly compromise appears to have been arranged on the subject in May, 1642, by the payment to Sir Robert of 110_l._, being the difference between the original debt and the higher sum which was to void the mortgage. Nevertheless the right to take possession remained with Sir Robert; and that he had not exercised it may have been as much owing to the fact that Oxford was difficult of access to a Parliamentary creditor during the war as to neighbourly forbearance. But, now that Parliament was at the gates of Oxford, and its troops quartered in and about Forest-hill, it was but common prudence in Sir Robert to use the only method left of saving himself from the loss of his 1,400_l._ with the unpaid interest. Some time in May, accordingly, or early in June, while the siege of Oxford was in progress, he caused his servant, or agent, Laurence Farre, to take formal possession of the Forest-hill premises. At the date of the surrender of Oxford, therefore, Mr. Powell was no longer owner of the Forest-hill manor and mansion; they belonged to his neighbour, Sir Robert Pye. There was, perhaps, a temporary convenience in this for Mr. Powell. If he had lost the property, his debt to Sir Robert was cancelled by the loss in the meantime; and, if at any future time he or his heirs should be in a position to re-acknowledge the debt with arrears, arrangements for the redemption of the property would be easier with the Pye family than with strangers. Besides, Sir Robert had taken possession of the property just in time to anticipate its sequestration by Parliament as part of the estate of a Delinquent; and in this too there may have been some intention of neighbourly service, or saving of future trouble, to Mr. Powell. Still it was a hard thing for the Powells to

know that their lease of their family residence and estate was gone, and they were no longer the Powells of Forest-hill. [Footnote: The vouchers for the statements in the text about the transfer of Forest-hill to Sir Robert Pye in May or June, 1646, are in various documents printed in Mr. Hamilton's *Milton Papers*. See especially p. 56 and Documents xxii., xli., xlii., and xlv. in the Appendix. The Forest-hill property, we shall find, did eventually come back to the Powell family; but it is worthy of remark that in Mr. Powell's own "Particular" of the state of his property in 1646 the Forest-hill lease is not mentioned, but only the goods and household stuff on the premises. On the other hand, of course, the 1,400_l_. and arrears of interest due to Sir Robert Pye are omitted from the list of debts, as cancelled by the loss of the property.] (2). But not only was the lease of the family house and lands gone. There had come a sequestration, and worse than a sequestration, upon the goods, household stuff, and timber on the Forest-hill premises, which formed now the best part of Mr. Powell's worldly all. The order for the sequestration was issued by the Committee of Parliamentary Sequestrations for the County of Oxford just after Sir Robert Pye had possessed himself of the premises; and, on the 16th of June, while Mr. Powell and his family were in Oxford with the rest of the besieged, three of the sequestrators, John Webb, Richard Vivers, and John King, with assistants and spectators, were rummaging the rooms and offices at Forest-hill, and taking an inventory and valuation of all the furniture, goods, and stock of every kind contained in them. The inventory still exists, and has been used in our description of the house when Milton went to fetch his bride from it (Vol. II. pp. 500, 501). Now, however, it comes in more sadly. *A copy of the Inventory, with the prices of the goods as they were appraised the 16th of June 1646*, is the title of the document; and, as we read it, we see the sequestrators, with their pens behind their ears, going round the house, and through the house, and in among the wood- yards, attended by gaping country-people, and jotting down particulars. A trunk of linen first

attracts them, and they set down its contents, including "1 pair of sheets, 3 napkins, 6 yards of broad tiffany," at 16_s._ Next is a heavier entry—to wit, "240 pieces of tymber, 200 loades of firewood, 4 carts, 1 wain, 2 old coaches, 1 mare colt, 3 sows, 1 boar, 2 ewes, 3 parcels of boards," valued in the aggregate at 156_l_. 12_s_. And so on they go, pell-mell, putting down "hops in the wool-house" at 2_l_., "a bull" at 1_l_. 10_s._, "14 quarters of mastline" at 14_l_., "5 quarters of malt" at 5_l_., "6 bushels of wheat" at 1_l_. 2_s._, two more parcels of wood at 100_l_. and 60_l_. respectively, a piece of growing corn at 42_l_., a piece of growing wheat at 6_l_. 13_s_. 4_d._, and even two fields of meadow, which they leave unappraised for the good reason that they had been "eaten up by the souldiers." At this point also are mentioned, as also unappraised, some bit of land at Forest-hill, apparently not included in the lease that had gone to Sir Robert Pye, and also Mr. Powell's property at Wheatley. Then, having concluded the outer survey, and brought the total, so far as appraised, up to 400_l_. or a little more, the sequestrators proceed to a separate and special inventory of the household goods. "In the hall" they find furniture which they value at 1_l_. 4_s._; "in the great parlour" 7_l._; "in the little parlour" 3_l._; "in the study or boys' chamber" 2_l_. 13_s._; and so on through the other rooms—"Mrs. Powell's chamber," as the best furnished of all, counting for 8_l_. 4_s._, while "Mr. Powell's study" goes for only 1_l_. 14_s._ Altogether the household stuff amounts in their estimate to a little over 70_l_. It was a monstrously good bargain to any one who would give that sum for it. Nor, in fact, had the sequestrators been taking all the trouble of the inventory without inducement. Going about with them all the while, and possibly haggling with them over the values, was an intending purchaser in the person of a certain Matthew Appletree from London—one of those dealers who followed in the wake of the Parliamentary forces as they advanced into Royalist districts, with a view to pick up good bargains for ready money in the confiscated property of Delinquents. To this Appletree the aforesaid

sequestrators, Webb, Vivers, and King, did sell all the household stuff they had inventoried, together with the best part of the out-of-door-stock, including the carts, wain, and old coaches, the mare, the bull, and other animals, and all of the timber except 100%, worth in keeping of a Mr. Eldridge. The sum which Appletree was to give for the whole was 335_l._, whereas the real value may have been about 800_l._ or 900_l._; and no sooner had he concluded his bargain than he began to cart some of the lighter things away. We can tell what went off in the first cart. They were: "1 arras work chayre, 6 thrum chayres, 6 wrought stooles, 2 old greene carpetts, 1 tapestry carpett, 1 wrought carpett, 1 carpett greene with fringe, 3 window curtaines." [Footnote: Document xxvi. in Appendix to Hamilton's *Milton Papers*, with references to other Documents in same Appendix.] All this took place on the 16th of June, 1646, eight days before the surrender of Oxford. On the preceding day, June 15, Cromwell had been at Halton, close to Forest-hill, seeing his daughter Bridget married to Ireton.

The reader now understands the state of Mr. Powell's affairs, when he was released from Oxford, as well as he did himself, if not better. It was all very well that the Articles of Capitulation had provided for the liberty of all persons among the besieged to return to their several places of abode and resume their estates and callings, subject only to composition with Parliament within six months according to the fixed rates of fine for Delinquency. This may have been a privilege for many; but it was poor comfort for the Powells. In the first place, they had now no home of their own to go to. Forest-hill was in possession of their old friend, Sir Robert Pye, who was preparing to fit up the mansion afresh for himself or some of his family, its redemption by Mr. Powell being now out of the question. But what remained was worse. Though the house and manor of Forest-hill were gone, Mr. Powell, by the terms of the Treaty, might still hope to compound for the wreck of his other property which lay under sequestration—viz. the small Wheatley estate; the goods, furniture, timber, &c., which he had left

on the Forest-hill premises; and also, it appears, some odd bits of land about Forest-hill not included in the mortgage to Sir Robert Pye. With what grief and anger, then, must the family, on the surrender of Oxford, have learnt that even this poor remainder of their property was for the most part irrecoverable—that not only had it been sequestered by the County Commissioners, but most of it sold and some actually dispersed. There appears, indeed, to have been some very harsh, if not unfair and underhand, dealing on the part of the sequestering Commissioners in this matter of the hurried sale of Mr. Powell's goods to Matthew Appletree. It became afterwards, as we shall find, the subject of legal complaint by the Powells, and of a long and tedious litigation on their behalf. Only two facts need at present be noted. One is the significant fact that among the members of the County Committee who issued the order for the sequestration was a "Thomas Appletree," clearly a relative of the "Matthew Appletree" who purchased the goods, while a third Appletree, named Richard, was also concerned somehow in the transaction. [Footnote: Hamilton's *Milton Papers*: Appendix, Documents xlv. and xlvii.] One suspects some collusion between the public sequestrators and the private purchaser. Then again, when the transaction came to be litigated, one observes a discrepancy between the two parties as to its alleged date. The preserved copy of the inventory and valuation, signed by the sequestrators, Webb, Vivers, and King, is distinctly dated "the 16 of June 1646," and as distinctly declares that day to have been the date of the sale to Appletree. [Footnote: *Ibid.* Document xxvi.] If this is correct, the sale had occurred while the Treaty for the surrender of Oxford was in progress, but exactly four days before it was completed and the Articles of Surrender signed (June 20). On the other hand, the Powells afterwards invariably represented the sale as a violation of the Articles; they quoted June 17, and not June 16, as the date of the order for sequestration issued by "the Committee for the County of Oxford sitting at Woodstock;" and they laid stress on the fact that the sequestrators

Webb, Vivers, and King had sold the goods to Appletree "within few days after the granting of the said Articles." [Footnote: Hamilton's Milton Papers: Appendix, Documents xxviii. and xiv.] How the discrepancy is to be accounted for one does not very well see; but one again suspects over-eagerness to injure Powell by obliging Appletree. Can the sequestrators possibly have inventoried and sold the goods, as they themselves declared, on the 16th, though the sequestrating Order was not formally issued till the 17th? If so, they were evidently in a hurry to push through the business before the Treaty for the Surrender of Oxford was signed, so as to deprive Mr. Powell, if possible, of any advantage from it. Or, after all, can there have been any contrivance of ante- dating, to disguise the fact that the sale, though intended on the 16th, was really pushed through between Saturday the 20th of June, when the Articles were signed, and Wednesday the 24th, when the surrender took place? In either case it must have been a sore sight to Mr. Powell, when, on this latter day, or the day after, he was free to walk over to Forest- hill, to find some of his goods already gone and Mr. Matthew Appletree superintending the carting away of the rest-all except the timber, which remained upon the premises till its removal should be convenient. [Footnote: This appears from an extract from "the Certificate of the Solicitor for Sequestration in the County of Oxford," not given in Mr. Hamilton's Milton Papers, but in Hunter's Milton Gleanings, pp. 31, 32.]

THE POWELLS IN LONDON: MORE FAMILY PERPLEXITIES: BIRTH OF MILTON'S FIRST CHILD.

What was to be done? Only one thing was possible. Mr. Powell must go to London to compound for what shreds of his sequestered property survived the sale to Appletree, and at the same time to see whether he could have any redress at head-quarters against the Oxfordshire Committee of Sequestrations. On other grounds, too, a removal to London was advisable

or necessary. There, in Mr. Milton's house, the family would have a roof over their heads until some new arrangement could be made and while Mr. Powell prosecuted the composition business. Accordingly, on the 27th of June, or three days after the surrender of Oxford, Mr. Powell obtained Fairfax's pass, as follows:-"Suffer the bearer hereof, Mr. Richard Powell, of Forest-hill in the county Oxon., who was in the city and garrison of Oxford at the surrender thereof, and is to have the full benefit of the Articles agreed unto upon the surrender, quietly and without let or interruption to pass your guards, with his servants, horses, arms, goods, and all other necessities, and to repair unto London or elsewhere upon his necessary occasions: And in all places where he shall reside, or whereto he shall remove, to be protected from any violence to his person, goods, or estate, according to the said Articles, and to have full liberty, at any time within six months, to go to any convenient port and to transport himself, with his servants, goods, and necessities, beyond the seas: And in all other things to enjoy the benefit of the said Articles. Hereunto due obedience is to be given by all persons whom it may concern, as they will answer the contrary. Given under my hand and seal the 27th day of June, 1646. (Signed) T. FAIRFAX."

[Footnote: From the Composition Papers: Document i. in Hamilton's Appendix VOL. III.] Provided with this pass, Mr. Powell and Mrs. Powell, with some of their sons and daughters, arrived in London some time early in July, and took up their abode for the while at their son-in-law Milton's in the Barbican. That they were there, and a pretty large party of them too, we learn from Phillips. "In no very long time after her [the wife's] coming [back to Milton] she had a great resort of her kindred with her in the house: viz. her father and mother and several of her brothers and sisters, which were in all pretty numerous." The surrender of Oxford and the loss of Forest-hill were the immediate causes of this crowding of the Barbican house with the Powell kindred, unless we are to suppose that some of them had preceded Mr. Powell thither.

Poor Mr. Powell's perplexities were never to have an end. He cannot have been more than a fortnight in London when he became aware not only that he had small chance of redress at head-quarters against the injury already done him by the Oxfordshire sequestrators, but that Parliamentary public opinion in Oxfordshire was pursuing him to London with fell intent of farther damage. July 15, 1646, we read in the *Lords Journals*, "A Petition of the inhabitants of Banbury was read, complaining that the one half of the town is burnt down, and part of the church and steeple pulled down; and, there being some timber and boards at one Mr. Powell's house, a Malignant, near Oxford, they desire they may have these materials assigned them for the repair of their church and town. It is Ordered, that this House thinks fit to grant this Petition, and to desire the concurrence of the House of Commons therein, and that an Ordinance may be drawn up to that purpose." The Commons concurred readily; for, in the *Commons Journals* of the very next day, July 16, we read, "The humble Petition of the inhabitants of Banbury was read; and it is thereupon Ordered: That the Timber and Boards cut down by one Mr. Powell, a Malignant, out of Forest Wood near Oxford, and sequestered, being not above the value of 300%., be bestowed upon the inhabitants of the town of Banbury, to be employed for the repair of the Church and Steeple, and rebuilding of the Vicarage House and Common Gaol there; and that such of the said Timber and Boards as shall remain of the uses aforesaid shall be disposed, by the members of both Houses which are of the Committee for Oxfordshire, to such of the well-affected persons of the said town, for the rebuilding of their houses, as to the said members, or major part of them, shall seem meet." Here was a confiscation by Parliament itself of every moveable thing belonging to Mr. Powell that had been left at Forest-hill after the sale to Appletree. All the precious timber, including that bought by the harpy Appletree, but not yet removed by him, was voted to these cormorants of the town of Banbury: Mr. Powell's condition was to be that of Job at his worst. He had come to London to

plead the benefit of the Articles of Surrender; and behold, enemies in Oxfordshire and Parliament in London had conspired to strip him totally bare!

One sees the poor gentleman in his son-in-law's house utterly broken down with the accumulation of his misfortunes, hanging his head in a corner of the room where they all met, letting his wife and daughters come round him and talk to him, but refusing to be comforted. What mattered it to him to be told of better times that might be coming, or even of the new little creature of his own blood that was then daily expected into the world? To Mrs. Powell, however, this expected event was of more consequence. She was a person of some temper and spirit; and, even in her troubles, there was some spur upon her in her present motherly duty. And so, when, on the 29th of July, 1646, being Wednesday, and the day of the monthly Fast, Milton's first-born child saw the light, at about half-past six in the morning, and was reported to be a daughter, what could they do but agree to name the little thing ANNE in honour of her grandmother? [Footnote: Pedigree of the Milton Family by Sir Charles Young, Garter King at Arms, prefixed to Pickering's edition of Milton's Works, 1851. But the original authority was an inscription in Milton's own hand on a blank leaf of his wife's Bible:—"Anne, my daughter, was born July the 29th, the day of the monthly Fast, between six and seven, or about half an hour after six in the morning, 1646." This, with subsequent entries on the same leaf, was copied by Birch, Jan. 6, 1749-50, when the Bible was shown him by Mrs. Foster, granddaughter to Milton (daughter to his youngest daughter Deborah), then keeping a chandler's shop in Cock Lane, near Shoreditch Church. It was the Bible in which Milton had written the dates of his children's births. It was, however, his wife's book: "I am the book of Mary Milton" was written on it in her hand.—The fact that the 29th of July, 1646, on which Milton's first child was born, was Wednesday and a day of public Fast, is verified by a reference to the *Commons Journals*. The Commons had but a brief sitting

that day after hearing Fast-day sermons by Mr. Caryl and Mr. Whittaker; and their chief business was to pass thanks to these two preachers for the same.] It was the name also of Milton's sister, once Mrs. Phillips, now Mrs. Agar; but there is little doubt that this can have been thought of only incidentally, and that the real compliment was to Mrs. Powell. The babe was, of course, shown to Mr. Powell in his sadness, and also to its other grandfather, then in the house, who could be cheerier over it, as having less reason for melancholy. "A brave girl," is Phillips's description of the newborn infant; "though, whether by ill constitution, or want of care, she grew up more and more decrepit." The poor girl, in fact, turned out a kind of cripple. This, however, was not foreseen, and for the present there was nothing but the misfortunes of the Powells to mar the joy in the Barbican household over the appearance of this little pledge of the reconciliation of Milton and his wife about a year before.

After the little girl was born, they did rouse Mr. Powell to take the necessary steps for the recovery of what could be recovered of his property, if that should prove to be anything whatsoever. The first of these steps consisted in appearing personally, or by petition, before a certain Committee at Goldsmiths' Hall, in Foster-lane, Cheapside, to whom had been entrusted by Parliament the whole business of arranging the compositions with Delinquents whose estates had been sequestrated. To this Committee, which must have had a very busy time of it at the end of the war, when would-be compounders were flocking in from north, south, and west, Mr. Powell, among others, addressed his petition on the 6th of August, 1646, in these terms: "To the Honourable the Committee sitting at Goldsmiths' Hall for Compositions, the humble Petition of Richard Powell, of Forest-hill, in the County of Oxon., Esq., sheweth—That your Petitioner's estate for the most part lying in the King's quarters, he did adhere to his Majesty's party against the forces raised by Parliament in this unnatural war; for which his Delinquency his estate lieth under

sequestration. He is comprised within those Articles at the surrender of Oxford; and humbly prays to be admitted to his composition according to the said Articles. And he shall pray, &c.—RICHARD POWELL." [Footnote: Hamilton's Milton Papers Appendix, Document ii.] This was all he could do in the meantime. As soon as the Committee should have leisure to attend to his case, he could take the other necessary steps. Among these would be the preparation of the most perfect schedule of his estate, real and personal, which he could draw up, the verification of every item of the same, and (which would be the most difficult part of the business) his argument with the Committee that, by the Articles of Oxford, he ought to be reinstated both in the goods and furniture which had been sold, at an under value, by the Oxford sequestrators to Appletree, and in the 300_l., worth of his timber which had been hastily bestowed by Parliament on the people of Banbury. To these matters it would be time enough to attend when the Committee at Goldsmiths' Hall had returned their answer to his Petition. Not till then either need he go through the formality of subscribing the Covenant in the presence of a parish-minister or other authorized person. That was, indeed, an indispensable formality for any Delinquent who would sue out his composition, or otherwise signify his submission to Parliament. But it was a formality which a Delinquent in Mr. Powell's circumstances would willingly put off to the last moment.

Milton's father-in-law was not the only one of his relatives who were engaged about this time in the disagreeable business of compounding for their Delinquency. His younger brother, Christopher Milton, was in the same predicament. Our last glimpse of this gentleman was after the surrender of Reading to the Parliamentary Army under Essex, in April 1643. He was then, we found (Vol. II. pp. 488-490), a householder in Reading, and decidedly a Royalist; and, after the siege, when his father came from Reading to London, to reside with his Parliamentary brother, he himself remained at Reading, a Royalist still. In the interim he had even

been rather active as a Royalist, having been "a Commissioner for the King, under the great seal of Oxford, for sequestering the Parliament's friends of three Counties." Latterly, in some such capacity, he had gone to Exeter; and he had been residing in that city, if not in 1644, when Queen Henrietta Maria was there, at least some time before its siege by the New Model Army. On the surrender of Exeter (April 10, 1646), on Articles similar to those afterwards given to Oxford, he had come to London on very much the same errand as that on which Mr. Powell came three months later. More forward in one respect than Mr. Powell, he had at once begun his submission to Parliament by taking the Covenant. He did so before William Barton, minister of John Zachary, in Alders-gate Ward, on the 20th of April, or almost immediately on his arrival in London. That preliminary over, he had been residing, most probably, in the house of his mother-in-law. Widow Webber, in St. Clement's Churchyard, Strand, where Milton had boarded his wife while the house in Barbican was getting ready. Not till August 7, the day after Mr. Powell had sent in his Petition for compounding to the Goldsmiths' Hall Committee, did Christopher Milton send in *his* petition to the same body. Then, still styling himself "Christopher Milton, of Reading, in the county of Berks, Esq., a Councillor at Law," he acknowledged his Delinquency in having served as a Commissioner of Sequestrations for the King, but prayed that he might have the benefit of the Exeter Articles of Surrender, so as to be allowed to compound for his little property now sequestered in turn. "I am seized in fee, to me and to my heirs," he said in his accompanying statement, "in possession of and in a certain messuage or tenement situate, standing, and being within St. Martin's parish, Ludgate, called the sign of the Cross Keys, and was of the yearly value, before these troubles, 40_l._ Personal estate I have none but what hath been seized and taken from me and converted to the use of the State. This is a true particular of all my estate, real and personal, for which I only desire to compound to free it out of sequestration, and do submit unto and undertake to satisfy and

pay such fine as by this Committee for Compositions with Delinquents shall be imposed and set to pay for the same in order to the freedom and discharge of my person and estate." Two years' value of an estate was about the ordinary fine for Delinquency; but different grades of Delinquency were recognised, and the fines for very pronounced Delinquency were heavier. [Footnote: Particulars about Christopher Milton and his Delinquency are from Hamilton's *Milton Papers*, pp. 62-64, and from Documents lxii. and lxiii. in Appendix.]

We have arrived, biographically as well as historically, at August 1646. In this month, while Mr. Powell and Christopher Milton had begun severally to sue out their compositions for Delinquency, it is on a rather crowded domestic tableau round Milton in Barbican that the curtain drops. On one side of him was his own old father, on the other was his father-in-law; the mother-in-law, Mrs. Powell, was there, with her married daughter Mrs. Milton, and the little baby Anne; how many of Mrs. Milton's brothers and sisters were in the group can hardly be guessed; the two boys Phillips, and one knows not how many other pupils, fill up the interstices between the larger people in front; and one sees Christopher Milton, his wife Thomasine, their children, and perhaps the Widow Webber, as visitors in the background. Of the whole company, I should say, the mother-in law, Mrs. Powell, was, for the time being, and whether to Milton's private satisfaction or not, the chief in command.

BOOK IV.

AUGUST 1646—JANUARY 1648-9.

***HISTORY:*—THE LAST TWO YEARS AND A HALF OF THE REIGN OF CHARLES I.:—**

I. HIS CONTINUED CAPTIVITY WITH THE SCOTS AT NEWCASTLE, AND FAILURE OF HIS NEGOTIATIONS WITH THE PRESBYTERIANS;

II. HIS CAPTIVITY AT HOLMBY HOUSE, AND THE QUARREL BETWEEN THE ENGLISH PARLIAMENT AND THE ENGLISH ARMY;

III. HIS CAPTIVITY WITH THE ENGLISH ARMY, AND THEIR PROPOSALS TO HIM;

IV. HIS CAPTIVITY IN THE ISLE OF WIGHT, AND THE SECOND CIVIL WAR;

V. HIS TRIAL AND DOOM.

***BIOGRAPHY:*—MILTON IN BARBICAN AND IN HIGH HOLBORN.—PRIVATE AND PUBLIC ANXIETIES: ODE TO ROUS, TWO MORE SONNETS, AND TRANSLATION OF NINE PSALMS: OTHER WORKS IN PROGRESS: LETTERS TO AND FROM CARLO DATI.**

CHAPTER I.

CHARLES IN HIS CAPTIVITY.

Charles himself becomes now the central object. For now, one may say, he was left to think and act wholly for himself, and to work out by his own cogitations and conduct the rest of the long problem between him and his subjects. From this point, therefore, one follows him with a more sympathetic interest than can be accorded to any part of his previous career. When his captivity began (which may be said to have been when the Scots withdrew with him to Newcastle, May 1646) he was forty-five years and six months old. His hair was slightly grizzled; but otherwise he was in the perfect strength and health of a man of spare and middle-sized frame, whose habits had been always careful and temperate.

Henrietta-Maria was nine years younger than her husband. For two years they had not seen each other, her co-operation during that time having been given from her residence at or near Paris. There her effort had been to induce the French Queen Regent and Cardinal Mazarin to interfere actively for Charles, with or without the help of the Pope; and, when she had not succeeded in that, she had contented herself with sending to Charles from time to time her criticisms of his procedure and her notions of the kind of arrangement he ought to try to make with his subjects in the last extremity. The influence she had acquired over him was so great that these missives

were perfectly efficient substitutes for her black eyes and French-English tongue when she had been with him. Unfortunately, however, the co-agency with his absent Queen to which he thus felt himself obliged, and to which indeed he had solemnly pledged himself, had become the more perplexing because, in the particular of greatest practical moment to both, he and she tended different ways. Of the two main concessions involved in any possible treaty with the Parliament, that of the abandonment of Episcopacy and that of the surrender of the Militia, Charles was most tenaciously predetermined against the first. It was a matter of conscience with him. Next to the death of Strafford, the thing in his past life which caused him the most continued private remorse was his assent, in Feb. 1641-2, to the Bill excluding Bishops from Parliament: whatever happened, he would sin no more in that direction. He would consent to any restriction of his kingly power in the Militia and other matters, rather than do more in repudiation of Episcopacy. Nay, he had reasoned himself into a belief that the course thus most to his conscience would be also the most expedient. Buoying himself up with a hope that, though Parliament demanded both concessions, they might let him off with one, he was of opinion that kingly power in the Militia and other matters might be more easily fetched back by a retained Episcopacy than a lost Episcopacy could be restored by any remnant of his power in the Militia. With Queen Henrietta-Maria the reasoning was different. To her, a Roman Catholic, back now among her co-religionists, what were all the disputes of British Episcopalians, Presbyterians, and Independents, but battles of kites and crows? If her husband's kind of Protestant Church could have been retained, that of course would have been well; but, as things were, she had no patience with those scruples of conscience for which he would sacrifice the most substantial interests of himself and his family. His main object ought to be to retain as much of real kingly power as possible, to be enjoyed by himself and her, and transmitted to their descendants; and might not this be attained by a frank concession to

the English of the Presbyterian settlement, only with a personal dispensation to the King if he desired it very much, a reservation of liberty for the Roman Catholics of Ireland and England, and, of course, a toleration for the Queen herself in her private Roman Catholic worship?

Actually, with all the King's firmness within himself on the Episcopacy question, the Queen's influence had so far prevailed as to bring him into a position where her views rather than his had chances in their favour. That he was now a captive at all, that he was still in Great Britain to maintain passively the struggle in which he had failed actively, was very much the Queen's doing. Again and again since the blow of Naseby, or at least since Montrose's ruin at Philiphaugh, it had been in the King's mind to abandon the struggle for the time, and withdraw to Holland, Denmark, or some other part of the Continent. That he had not, while the sea was open to him, adopted this course, was owing in part to his own irresolution, but very considerably to his dread of the Queen's displeasure. She did not want him to be on the Continent with her, a dependent on her relatives of the French Court or on the Dutch Stadtholder; she wanted him to remain in Britain and struggle on, somehow, anyhow. Nay, she had devised a particular way for him, and almost compelled him to it. A flight to the Scots and a pact with them on the basis of some acceptance of their Presbyterianism even for England: this was the course which she had urged on him ever since his defeat by Parliament had become certain; this was the course she had arranged for him by causing the French Court to send over Montreuil to negotiate for his reception among the Scots; and, though things had not turned out quite as she expected, and the Scots had shown no disposition to save Charles from the tremendous Nineteen Propositions of the English Parliament, still she did not regret that the course had been taken. It was for the King now to extricate himself from the Nineteen Propositions by his utmost ingenuity, and she did not doubt that this would be most easily done by adhering to the Scots, humouring them in all those parts of the

Propositions that related to Presbytery, and evading or refusing the rest. [Footnote: For this and last paragraph see *Charles I. in 1646*, Introduction by Mr. Bruce, and the King's own Letters *passim*; Clar. 591-600 (Hist.) and 961 (Life); Hallam's Const. Hist. (10th ed.), II. 182-188, with notes.]

Irritating as the Queen's conduct in the main had been to Hyde, Hopton, and others of the Royalist exiles, there were particulars of selfishness in it which positively disgusted them. Having persisted in her determination that the Prince of Wales should reside with herself, and nowhere else, she had carried that point, as she did every other, with Charles; and since July the Prince, as well as his infant sister, the Princess Henrietta-Maria, had been under her charge. Rather than accompany the Prince to Paris, and undertake the responsibility of advising him in matters in which it would be necessary to detach him from his mother, Hyde, Hopton, and Lord Capel had remained in Jersey, happy for a time in their mutual society, and Hyde, as he tells us, passing the pleasantest hours of his life in the composition of parts of his History. Others of the King's late counsellors, such as Cottington, the Earl of Bristol, and Secretary Nicholas, had domiciled themselves in Rouen, Caen, or elsewhere in France, away from Paris. But round the Queen, in Paris or at St. Germain, there *had* gathered not a few of the exiles, gratifying the King more, as it proved, by this compliance than the others did by their prudery. Among these were Lord Jermyn, Lord Digby, Lord Percy, Lord Wilmot, and even Lord Colepepper, though he had at first agreed with Hyde in opposing the removal of the Prince from Jersey. Conspicuous in the same group of refugees was the veteran Thomas Hobbes, Not that he had gone to Paris at that time, as the others had done, in the mere course of Royalist duty. He had been there for several years on his own account, that he might be out of the turmoil of affairs at home, and free to pursue his speculations in quiet, with the relaxation of walks about Notre Dame and the Sorbonne, and much of the agreeable company of M. Gassendi. But the Prince could not be without a tutor, and Hobbes was

chosen to instruct him in mathematics and whatever could be brought under that head. If what Clarendon says is true, the philosopher must have had curious remarks to make on the relations between his royal pupil and his mother, and on that lady's own behaviour. Though the Prince was sixteen years of age, she governed him with a high hand. "He never put his hat on before the Queen," says Clarendon; "nor was it desired that he should meddle in any business, or be sensible of the unhappy condition the royal family was in. The assignation which was made by the Court of France for the better support of the Prince was annexed to the monthly allowance given to the Queen, and received by her and distributed as she thought fit; such clothes and other things provided for his Highness as were necessary; her Majesty desiring to have it thought that the Prince lived entirely upon her, and that it would not consist with the dignity of the Prince of Wales to be a pensioner to the King of France. Hereby none of his Highness's servants had any pretence to ask money, but they were contented with what should be allowed them; which was dispensed with a very sparing hand; nor was the Prince himself ever master of ten pistoles to dispose as he liked. The Lord Jermyn was the Queen's chief officer, and governed all her receipts; and he loved plenty so well that he would not be without it, whatever others suffered who had been more acquainted with it." In this last sentence there is an insinuation of more than meets the eye. Henry Jermyn, originally one of the members for Bury St. Edmunds in the Long Parliament, and created Baron Jermyn by Charles (Sept. 8, 1643) for his conspicuous Royalism, had long been the special favourite of the Queen and the chief of her household; after Charles's death he became the Queen's second husband by a secret marriage; and so cautious a writer as Hallam does not hesitate to countenance the belief that his relations to the Queen were those of a husband while Charles was yet alive. [Footnote: Clar. 594-602 and 640; Hallam, Const. Hist. (10th ed.), II. 183 and 188, with footnotes; and Letters of the King, to the Queen, numbered xxvii., xxviii.,

xxxii., xxxv., and xxxviii. in Brace's *Charles I. in 1646*. In the last of these letters, dated Newcastle, July 23, Charles writes:—"Tell Jermyn, from me, that I will make him know the eminent service he hath done me concerning Pr. Charles his coming to thee, as soon as it shall please God to enable me to reward honest men. Likewise thank heartily, in my name, Colepepper, for his part in that business; but, above all, thou must make my acknowledgments to the Queen of England (for none else can do it), it being her love that maintains my life, her kindness that upholds my courage; which makes me eternally hers, CHARLES R."]

Such were Charles's circumstances, such was his real isolation, when his captivity began. It was to last all the rest of his life, or for more than two years and a half. The form and place of his captivity were indeed to be varied. There were to be four stages of it in all, the first only being his detention among the Scots at Newcastle. At the point which we have reached in our narrative, viz. the conclusion of the Civil War, three months of this first stage of the long captivity (May-August 1646) had already elapsed. We have now, therefore, to follow the King, with an eye also for the course of events round him, through the remainder of this stage of his captivity, and through the three stages which succeeded it.

FIRST STAGE OF THE CAPTIVITY: STILL WITH THE SCOTS AT NEWCASTLE: AUG. 1646—JAN. 1646-7.

Balancings of Charles between the Presbyterians and the Independents—
His

Negotiations in the Presbyterian direction: The Hamiltons his Agents
among the Scots—His Attempt to negotiate with the Independents: Will
Murray in London—Interferences of the Queen from France: Davenant's
Mission to Newcastle—The Nineteen Propositions unanswered: A Personal
Treaty offered—Difficulties between the Scots and the English

Parliament—Their Adjustment: Departure of the Scots from England, and Cession of Charles to the English—Westminster Assembly Business, and Progress of the Presbyterian Settlement.

Three months of Scottish entreaty and argumentation had failed to move Charles. He would not take the Covenant; he would not promise a pure and simple acceptance of Presbytery; and to the Nineteen Propositions of the English Parliament he had returned only the vaguest and most dilatory answer.

The English Parliamentarians, as a body, were furious, and the milder of them, with the Scots, were in despair. "We are here, by the King's madness, in a terrible plunge," Baillie writes from London, Aug. 18; "the powerful faction desires nothing so much as any colour to call the King and all his race away." In another letter on the same day he says, "We [the Scots in London] strive every day to keep the House of Commons from falling on the King's answer. We know not what hour they will close their doors and declare the King fallen from his throne; which if they once do, we put no doubt but all England would concur, and, if any should mutter against it, they would be quickly suppressed." And again and again in subsequent letters, through August, September, and October, the honest Presbyterian writes in the same strain, breaking his heart with the thought of the King's continued obstinacy. [Footnote: Baillie, II. 389 *et seq.*]

It must not be supposed that Charles was merely idle or inert in his obstinacy. In the wretched phrase of those who regard politics as a kind of game, he was "playing his cards" as well as he could. What was constantly present to his mind was the fact that his opponents were a composite body distracted by animosities among themselves. He saw the Presbyterians on the one wing and the Independents on the other wing of the English or main mass, and he saw this main mass variously disposed to the smaller and very

sensitive Scottish mass, to whose keeping he had meanwhile entrusted himself. Hence he had not even yet given up the hope, which he had been cherishing and expressing only a month before his flight to the Scots, that he "should be able so to draw the Presbyterians or the Independents to side with him for extirpating one the other, that he should really be King again." [Footnote: From a letter to Lord Digby, dated March 26, 1646, quoted by Godwin (II. 132-3) from Carte.] He could not now, of course, pursue that policy in a direct manner or with the expectation of immediate success. But he could pursue it indirectly. He could extract from the Nineteen Propositions the two main sets of concessions which they demanded—the concession of Presbytery and what went along with that, and the concession of the Militia and what went along with that; and, holding the two sets of concessions in different hands, he could alternate between that division of his opponents which preferred the one set and that which preferred the other, so as to find out with which he could make the best arrangement. By a good deal of yielding on the Episcopacy question, coupled with a promise to suppress Sects and Heresy, might he not bribe the Scots and Presbyterians to join him against the Independents? By a good deal of yielding on the Militia question, coupled with a promise of Toleration for the Sects, might he not bribe the Independents to join him against the Presbyterians, and perhaps even save Episcopacy? Which course would be the best? Might not that be found out most easily by trying both?

In accordance so far with the advices from France, Charles had begun with the Presbyterian "card," and had played it first among the Scots. We have seen the classification he had made of the Scots, from his observation of them at Newcastle, into the four parties of the Montroses, the Neutrals, the Hamiltons, and the Campbells. The Montroses, or absolute Royalists, were now nowhere. After having lurked on in his Highland retreat, with the hope of still performing some feat of Hannibal in the service of his captive Majesty, Montrose had reluctantly obeyed the orders to capitulate and

disband which had been sent to him as well as to all the Royalist commanders of garrisons in England, and, without having been permitted the consolation of going to Newcastle to kiss his Majesty's hand, had embarked, with a few of his adherents, at Stonehaven, Sept. 3, in a ship bound to Norway. The first of the four parties of Scots in the King's reckoning of them being thus extinct, and the second or Neutrals making now no separate appearance, the real division, if any, was into the Hamiltons and the Campbells. The division was not for the present very apparent, for Hamilton and his brother Lanark had not been ostensibly less urgent than Argyle and Loudoun that his Majesty would accept the Nineteen Propositions. But underneath this apparent accord his Majesty had discerned the slumbering rivalry, and the possibility of turning it to account. He had regained the Hamiltons. When the Duke, indeed, came to Newcastle in July to kiss the hand of his royal kinsman from whom he had been estranged, and by whose orders he had been in prison for more than two years, the meeting had been rather awkward. Both had "blushed at once." But forgiveness had passed between them; and, though the King in his letters to the Queen continued to speak of the "bragging" of the Hamiltons, and of his "little belief" in them, the two black-haired brothers did not know that, but were glad to hear themselves again addressed familiarly by the King as "Cousin James" and "Lanark." Through these Hamiltons might not a party among the Scots be formed that should be less stiff than Argyle, Loudoun, and the others were for concurrence with the English in all the Nineteen Propositions? The experiment was worth trying, and in the course of September the King did try it in a very curious manner.

The Duke of Hamilton, who had meanwhile paid a visit to Scotland, had then returned to Newcastle at the head of a new deputation from the Committee of the Scottish Estates, charged with the duty of reasoning with his Majesty. Besides the Duke, there were in the deputation the Earls of Crawford and Cassilis, Lords Lindsay and Balmerino, three lesser barons,

and three burgesses. They had had an interview with the King, and had pressed upon him the Covenant and the Nineteen Propositions by all sorts of new arguments, but without effect. The next day, however, they received a communication from his Majesty in writing. After expressing his regret that his conversation with them the day before had not been satisfactory, he explains more fully an arrangement which he had then proposed. Whatever might be his own opinion of the Covenant, he by no means desired from the Scots anything contrary to their Covenant. But was it not the main end of the Covenant that Presbyterian Government should be legally settled in England? Well, he was willing to consent to this after a particular scheme. "Whereas I mentioned that the Church- government should be left to my conscience and those of my opinion, I shall be content to restrict it to some few dioceses, as Oxford, Winchester, Bristol, Bath and Wells, and Exeter, leaving all the rest of England fully under the Presbyterian Government, with the strictest clauses you shall think upon against Papists and Independents." In other words, Charles offered a scheme by which Presbytery and Episcopacy should share England between them on a strict principle of non-toleration of anything else, Presbytery taking about four-fifths, and Episcopacy about one-fifth. He argues eagerly for this scheme, and points out its advantages. "It is true," he says, "I desire that my own conscience and those that are of the same opinion with me might be preserved; which I confess doth not as yet totally take away Episcopal Government: but then consider withal that this [scheme] will take away all the superstitious sects and heresies of the Papists and Independents; to which you are no less obliged by your Covenant than the taking away of Episcopacy." How far this scheme of the King was discussed or even published does not appear. It was one which the Scottish Commissioners collectively could not even profess to entertain; and, however well disposed Hamilton may have been privately to abet it, he dared not give it any countenance openly. [Footnote: Authorities for this and the last paragraph

are— Napier's Montrose, 631 *et seq.*; Burnet's Lives of the Hamiltons (ed. 1852), 359-375; Rushworth, VI. 232, and 327-329; King's Letters l. and lxiii. in *Brace's Charles I*, in 1646. The remarkable Paper of the King proposing a compromise between Episcopacy and Presbytery is given entire both by Rushworth and by Burnet. It is not dated, but is one of several letters given by both these authorities as written by the King in September 1646. Burnet, who had a copy before him in Lanark's hand, notes the absence of the date. In a postscript to the letter, however, as given in Rushworth, the King says: "I require you to give a particular and full account hereof to the General Assembly in Scotland;" and in Burnet's copy the words are "to the General Assembly *now sitting in Scotland*." This phrase would refer the Paper to some time between June 3 and June 18 when the Assembly was last in session, its next meeting not being till August 4, 1647. In that case the Paper must have been delivered not to the deputation mentioned in the text, but to the prior deputation from Scotland. of which Lanark was one (*antè*, pp. 412-418), This is possible; but it does not lessen the significance of the document in connexion with the King's dealings with the Hamiltons in September. The extant copy of the Paper seen by Burnet was in Lanark's hand; it must therefore have been mainly through the Hamiltons that Charles wanted to feel the pulse of Scotland respecting his proposal; and the proposal, if first made in June, must have been a topic between the King and the Hamiltons in subsequent months. Altogether, however, I suspect, the proposal did not go far beyond the King and the Hamiltons, I have found no distinct cognisance of it in Baillie or in the Acts of the Assembly of 1646.]

And so, with a heavy heart, Hamilton, in the end of September, returned to Scotland. Foreseeing the King's ruin, he had resolved to withdraw altogether from the coil of affairs, and retire to some place on the Continent. In vain did his brother Lanark fight against this resolution; and not till he had received several affectionate letters from the King did he consent to

remain in Britain on some last chance of being useful. Actually, from this time onwards, Hamilton and Lanark, though not yet daring a decidedly separate policy from that of Argyle and his party in Scotland, did work for the King as much as they could within limits. He continued to correspond with both, but chiefly with Lanark.

Not the less, while the King was trying to bargain with the Presbyterians through the Hamiltons, was he intriguing in the opposite direction. His agent here was a certain Mr. William Murray, son of the parish-minister of Dysart in Scotland, and known familiarly as Will Murray. He had been page or "whipping-boy" to Charles in his boyhood, had been in his service ever since, had been recently in France, but had returned early in 1646. His connexions with the King being so close, and his wiliness notorious, he had been arrested by Parliament and committed to the Tower as a spy; and it had cost the Scottish Commissioners some trouble—Baillie for one, but especially Gillespie, who was related to Murray by marriage—to procure his release on bail. This having been accomplished in August, he had been allowed to go to his master in Newcastle, the Scottish Commissioners vouching that he would use all his influence to bring the King into the right path. He had been well instructed by Baillie as to all the particulars of the duty so expected from him, not the least of which, in Baillie's judgment, was that he should get the King to dismiss Hobbes from the tutorship of the Prince at Paris. Once with the King, however, Murray had forgotten Baillie's lectures, and relapsed into his wily self. "Will Murray is let loose upon me from London," the King writes to the Queen Sept. 7; but on the 14th he writes that Murray has turned out very reasonable, and that, though he will not absolutely trust him, the rather because he is not a client of the Hamiltons, but "plainly inclines more to Argyle," yet he hopes to make good use of him. On the 21st we hear of "a private treaty" he has made with Murray; and the result was that, in October, Murray, created Earl of Dysart in prospect, was back in London on a secret mission, the general aim of

which was the conciliation of the Independents. On the condition that the King should surrender on the Militia question, give up the Militia even for his whole life, would the Parliamentary leaders consent to the restoration of a Limited Episcopacy after three or five years? It was a dangerous mission for Murray, "so displeasing that it served only to put his neck to a new hazard;" and he was obliged to keep himself and his proposals as much within doors as he could. [Footnote: Baillie, II. 391-396, and Appendix to same vol., 509, 510; Burnet's Hamiltons, 378; and Hallam, II. 187-8, and Notes.] To the Queen at Paris her husband's continued hesitation on the Episcopacy question seemed positively fatuous. Her letters, as well as Jermyn's and Colepepper's, had not ceased to urge bold concession on that question, and a paction with the Scots for Presbytery. Now, accordingly, their counsels to this effect became more emphatic. The Queen thought the King perfectly right in refusing his personal signature to the Covenant, and advised him to remain steady to that refusal, and also to his resolution not to let the Covenant be imposed upon others; she was moreover sure that he ought not to abandon Ireland or the English Roman Catholics to the mercies of Parliament; but, with these exceptions, she would close with the Scots and Presbyterians in the matter of Church- government, if by that means she could save the Militia and the real substance of kingly prerogative. "We must let them have their way in what relates to the Bishops," she wrote to Charles, Oct. 9/19; "which thing I know goes quite against your heart, and, I swear to you, against mine too, if I saw any one way left of saving them and not destroying you. But, if you are lost, they are without resource; whereas, if you should be able again to head an army, we shall restore them. Keep the Militia, and never give it up, and by that all will come back— (*Conservez-vous la Militia, et n'abandonnez jamais, et par cela tout reviendra*)." Colepepper, always rough-speaking, used more decided language. Nothing remained for the King, he wrote, but a union with the Scottish nation and the English Presbyterians against the Independents and

Anti-monarchists; and to secure such a union Episcopacy must go overboard. His Majesty's conscience! Did his Majesty really believe that Episcopacy only was *jure divino*, and that there could be no true Church without Bishops? If so, Colepepper personally did not agree with him, and doubted whether there were six Protestants in the world that did. "Come," he breaks out at last, "the question in short is whether you will choose to be a King of Presbytery, or no King and yet Presbytery or perfect Independency to be." [Footnote: Baillie, II. 389 *et seq.*; Rushworth VI. 327 *et seq.*; Clarendon, 605; Hallam, II. 185-6; and Queen's Letter in the original French in Appendix to Mr. Bruce's *Charles I. in 1646.*]

It was not only by letter that such counsels from France reached Charles. Bellievre, who had succeeded Montreuil as French ambassador in England, and had been much with the King at Newcastle, plying him with the same counsels, had reported to Mazarin that some person of credit among the English exiles should be sent over, expressly to reason with Charles on the all-important point. They seem to have had some difficulty at Paris in finding a proper person for the mission. To have sent Hobbes, even if he would have gone, would have been too absurd. Hobbes a successor of Alexander Henderson in the task of persuading the King to accept Presbytery! The person sent, however, was the one next to Hobbes in literary repute among the Royalist exiles, the one most liked by Hobbes, and oftenest in his company. He was no other than the laureate and dramatist Will Davenant, known on the London boards by that name for a good many years before the war, but now Sir William Davenant, knighted by the King in Sept. 1643 for his Army-plotting and his gallant soldiering. He was over forty years of age, and had just turned, or was turning, a Roman Catholic in Paris, or perhaps rather a Roman Catholic Hobbist. Clarendon, with a sneer at Davenant's profession of play-writer, makes merry over the choice of such an agent by the Queen, Jermyn, and Colepepper, and relates the result with some malice. Arrived at Newcastle

late in September, or early in October, Davenant had delivered his letters to the King, and proceeded to argue according to his instructions. Charles had heard him for a while with some patience, but in a manner to show that he did not like the subject of his discourse. Determined, however, to do his work thoroughly, Davenant had gone on, becoming more fluent and confidential. It was the advice of all his Majesty's friends that he should yield on the question of Episcopacy! "What friends?" said the King. "My Lord Jermyn," replied Davenant. His Majesty was not aware that Lord Jermyn had given his attention to Church questions. "My Lord Colepepper," said Davenant, trying to mend his answer. "Colepepper has no religion," said the King, bluntly; and then he asked whether the Chancellor of the Exchequer (*i.e.* Clarendon himself, then Sir Edward Hyde) agreed with Colepepper and Jermyn. Davenant could not say he did, for Sir Edward was not in Paris with the Prince, as he ought to have been, but in Jersey: and he proceeded to convey from the Queen some insinuations to Hyde's discredit. The King, Clarendon is glad to tell, had defended him, and said he had perfect trust in him, and was sure *he* would never desert the Church. Something of the wit, or of the Roman Catholic Hobbist and freethinker, had then flashed out in the speech of the distressed envoy. He "offered some reasons of his own in which he mentioned the Church slightly." On this the King had blazed into proper indignation, given poor Davenant "a sharper reprehension than he ever did to any other man," told him never to show his face again, and frowned him to the door. And so, says Clarendon, "the poor man, who had indeed very good affections," returned to Paris crestfallen. [Footnote: Clar. 606, and Wood's Ath. III. 801, 805. The King's Letters mention Davenant's presence at Newcastle and the purport of his argument, but without tolling of any such *scene* between him and Davenant as Clarendon describes. Davenant had not arrived at Newcastle Sept. 26, but was there Oct. 3. He was back in Paris in November.]

Perturbed by the Queen's difference from him on the matter he had most at heart, and saddened by the failure of his own schemings in opposite directions, Charles appears to have sunk for a time into a state of sullen passiveness, varied by thoughts of abdication or escape. By December, however, he had again roused himself. By that time, Will Murray having returned to him with fresh suggestions from London, he had made up his mind to send to the English Parliament an Answer to their Nineteen Propositions in detail. He had prepared such an Answer, and on the 4th of December he sent a draft of it to the Earl of Lanark in Edinburgh. In this draft he goes over the Propositions one by one, signifying his agreement where it is complete, or the amount of his agreement where it is only partial. In such matters as the management of Ireland, laws against the Roman Catholics, &c., he will yield to Parliament; but he would like an act of general oblivion for Delinquents. In the matter of the Militia his offer is to resign all power for ten years. In the matter of the Church he offers his consent to Presbytery for three years, as had been settled by Parliament, with these provisions—(1) that there be "such forbearance to those who through scruple of conscience cannot in everything practise according to the said rules as may consist with the rule of the Word of God and the peace of the kingdom;" (2) "that his Majesty and his household be not hindered from that form of God's service which they have formerly done;" and (3) that he be allowed to add twenty persons of his own nomination to the Westminster Assembly, to aid that body and Parliament in considering what Church-government shall be finally adjusted after the three years' trial of Presbytery. Altogether, the concessions were the largest he had yet offered, and an elated consciousness of this appears in the letter which conveyed the Draft to Lanark for the consideration of him and his friends in Scotland. Only on one point is he dubious. The clause promising a toleration for scrupulous consciences may not please the Scots! He explains, however, that that clause had been inserted "purposely," to make the whole "relish the

better" with the English Independents, and adds, "If my native subjects [the Scots] will so countenance this Answer that I may be sure they will stick to me in what concerns my temporal power, I will not only expunge that clause, but likewise make what declarations I shall be desired against the Independents, and that really without any reserve or equivocation." This was Charles all over!—Alas! Lanark's reply was unfavourable. The Toleration clause, he wrote, was but one of the stumbling-blocks. As far as he could ascertain Scottish opinion, he dared not "promise the least countenance" to the King's proposals about the Church, omitting as they did all mention of the Covenant, and contemplating an entire re-opening of the debate on Presbytery. Nor was it from Lanark only that the Draft met discouragement. From the Queen, to whom also a copy had been sent, the comments that came, though from a point of view different from Lanark's, were far more cutting. The surrender of the Militia for ten years amazed her. "By that you have also confirmed them the Parliament for ten years; which is as much as to say that we shall never see an end to our misfortunes. For while the Parliament lasts you are not King; and, for me, I shall never again set foot in England. And with this shift of your granting the Militia you have cut your own throat (*Et avec le biais que vous avez accordé la Milice, vous vous este coupé la gorge*)." On the promised concession with respect to Ireland she remarks: "I am astonished that the Irish do not give themselves to some foreign king; you will force them to it at last, seeing themselves made a sacrifice."—The result was that, though the terms of Charles's draft Answer got about, and he was in a manner committed to them, the message which he did formally send to Parliament, on the 20th of December, was quite different from the Draft. It explained that, though he had bent all his thoughts on the preparation of a written Answer to the Nineteen Propositions, "the more he endeavoured it he more plainly saw that any answer he could make would be subject to misinformations and misconstructions." He repeats, therefore, his earnest desire for a personal

treaty in London. [Footnote: Burnet's *Hamiltons*, 381-389 (for the interesting correspondence between the King and Lanark); *King's Letters*, liii.-lxii. in Bruce's *Charles I. in 1646*, and *Queen's Letters* in Appendix to the same: *Rushworth*, VI. 393; and *Parl. Hist.* III. 537.]

Meanwhile, quite independently of the King, his messages, or his wishes, matters had been creeping on to a definite issue. For four months now there had been a most intricate debate between the Scots and the English Parliament on the distinct and yet inseparable questions of the Disposal of the King's Person and the Settlement of Money Accounts. Though the reasoning on both sides on the first question was from Law and Logic, it was heated by international animosity. Lord Loudoun was the chief speaker for the Scottish Commissioners in the London conferences; the great speech on the English side was thought to be that of Mr. Thomas Challoner, a Recruiter for Richmond in Yorkshire; but the speeches, published and unpublished, were innumerable, and a mere abstract of them fills forty pages in *Rushworth*. Not represented by so much printed matter now, but as prolix then, was the dispute on the question of Accounts. The claim of the Scots for army-arrears and indemnity was for a much vaster sum than the English would acknowledge. This item and that item were contested, and the Accounts of the two nations could not be brought to correspond. Not even when the Scots consented to a composition for a slump sum roughly calculated was there an approach to agreement. The Scots thought 500,000_l_. little enough; the English thought the sum exorbitant. Equally on this question as on the other it was the Independents that were fiercest against the Scots and the most careless of their feelings; and again and again the Presbyterians had to deprecate the rudeness shown to their "Scottish brethren." And so on and on the double dispute had wound its slow length between the two sets of Commissioners, the English Parliament looking on and interfering, and the Scottish Parliament, after its meeting on

the 3rd of November, contributing its opinions and votes from Edinburgh.
[Footnote: Rushworth, VI. 322-372.]

To Charles in Newcastle all this had been inexpressibly interesting. A rupture between the English and the Scots, such as would occasion the retreat of the Scots into their own country, carrying him with them, was the very greatest of his chances; and it was in the fond dream of such a chance that he had procrastinated his direct dealings with the English Parliament. But from this dream there was to be a rude awakening. It came in December, precisely at the time when he was corresponding with the Queen and Lanark over his proposed compromises on all the Nineteen Propositions. Already, indeed, there had been signs that the dispute between the two nations was working itself to an end. By laying entirely aside the question of the Disposal of the King's person, and prosecuting the question of Accounts by itself, difficulties had been removed and progress made. It had been agreed that the sum to be paid to the Scots should be 400,000_l._ in all, one-half to be paid before they left England, and the rest in subsequent instalments; and actually on the 16th of December the first moiety of 200,000_l._ was off from London in chests and bags, packed in thirty-six carts, to be under the charge of Skippon in the North till it should be delivered to the Scots. Yes! but would it ever be delivered to the Scots? Not a word was in writing as to the surrender of the King by the Scots, but only about their surrender of the English towns and garrisons held by them; and, so far as appeared, the money was to be theirs even if they kept the King. Here, however, lay the very skill of the policy that had been adopted. Instead of persisting in the theoretical question of the relative rights of the two nations in the matter of the custody of the King, and wrangling over that question in its unfortunate conjunction with a purely pecuniary question, it had been resolved to close the pecuniary question by putting down the money in sight of the Scots as undisputedly theirs on other grounds, and allowing them to decide for themselves, under a sense of their

duty to all the three kingdoms, whether they would let Charles go to Scotland with them or would leave him in England. Precisely in this way was the issue reached. But oh! with what trembling among the Scots, what wavering of the balance to the very last! Dec. 16, the very day when the money left London, there was a debate in the Scottish Parliament or Convention of Estates in Edinburgh, the result of which was a vote that the Scottish Commissioners in London should be instructed to "press his Majesty's coming to London with honour, safety, and freedom," for a personal treaty, and that resolutions should go forth from the Scottish nation "to maintain monarchical government in his Majesty's person and posterity, and his just title to the crown of England." This vote, passing over altogether the question of the surrender of the King, and pledging the Scots to his interests generally, was a stroke in his favour by the Hamilton party in the Convention, carried by their momentary preponderance. But the flash was brief. There was in Edinburgh another organ of Scottish opinion, more powerful at that instant than even the Convention of Estates. This was the Commission of the General Assembly of the Kirk, or that Committee of the last General Assembly whose business it was to look after all affairs of importance to the Kirk till the next General Assembly should meet. The Commission then in power, by appointment of the Assembly of June 1646, consisted of eighty-nine ministers and about as many lay-elders; and among these latter were the Marquis of Argyle, the Earls of Crawford, Marischal, Glencairn, Cassilis, Dunfermline, Tullibardine, Buccleuch, Lothian, and Lanark, besides many other lords and lairds. It was in fact a kind of ecclesiastical Parliament by the side of the nominal Parliament, and with most of the Parliamentary leaders in it, but these so encompassed by the clergy that the Hamilton influence was slight in it and the Argyle policy all-prevailing. Now, on the very day after that of the Hamilton resolutions in Parliament for the King (Dec. 17), and when Parliament was again in debate, the Commission spoke out. In "A Solemn and Seasonable Warning

to all Estates and Degrees of Persons throughout the Land" they proclaimed their view of the national duty. Nothing could be more dangerous, they said, than that his Majesty should be allowed to come into Scotland, "he not having as yet subscribed the League and Covenant, nor satisfied the lawful desires of his loyal subjects in both nations;" and they therefore prayed that this might be prevented, and that, in justice to the English, to whom the Scots were bound by the Covenant, the King should not be withdrawn at that moment from English influence and surroundings. This opinion of the Commission at once turned the balance in the Convention. The resolutions of the previous day were rescinded; and on that and the few following days it was agreed, Hamilton and Lanark protesting, that nothing less than the King's absolute consent to the Nineteen Propositions would be satisfactory, and that, unless he made his peace with the English, he could not be received in Scotland. When the letters with this news reached Charles at Newcastle, he was playing a game of chess. He read them, it is said, and went on playing. He had a plan of escape on hand about the time, and the very ship was at Tynemouth. But it could not be managed. [Footnote: Rushworth, VI. 389-393; Burnet's *Hamiltons*, 389-393; Baillie, III. 4, 5; *Parl. Hist.* III. 533-536.]

January 1646-7 was an eventful month. On the 1st it was settled by the two Houses that Holdenby House, usually called Holmby House, in Northamptonshire, should be the King's residence during farther treaty with him; and on the 6th the Commissioners were appointed who should receive him from the Scots, and conduct him to Holmby. The Commissioners for the Lords were the Earls of Pembroke and Denbigh and Lord Montague; those for the Commons were Sir William Armyn (for whom Sir James Harrington was substituted), Sir John Holland, Sir Walter Earle, Sir John Coke, Mr. John Crewe, and General Browne. On the 13th these Commissioners set out from London, with two Assembly Divines, Mr. Stephen Marshall and Mr. Caryl, in their train, besides a physician and other

appointed persons. On the 23rd they were at Newcastle. On the whole, the King seemed perfectly content. When the English Commissioners first waited on him and informed him that they were to convey him to Holmby, he "inquired how the ways were." On Saturday, Jan. 30, the Scots marched out of Newcastle, leaving the King with the English Commissioners, and Skippon marched in. Within a few days more, the 200,000_l_ having been punctually paid, and receipts taken in most formal fashion, as prescribed by a Treaty signed at London Dec. 23, the Scots were out of England. The Scottish political Commissioners (Loudoun, Lauderdale, and Messrs. Erskine, Kennedy, and Barclay) had left London immediately after the conclusion of the Treaty. [Footnote: Commons Journals, Jan. 7 and 12, 1646-7; Rushworth, VI. 393-398; Parl. Hist. III. 533-536; Burnet's Hamiltons, 393-397. Burnet has a curious blunder here, and founds a joke on it. Before the Scottish Commissioners left London, he says, there was a debate in the Commons as to the form of the thanks to be tendered to them. It was proposed, he says, to thank them for their *civilities and good offices*, but the Independents carried it by 24 votes to strike out the words *good offices* and thank them for their *civilities* only. "And so all those noble characters they were wont to give the Scottish Commissioners on every occasion concluded now in this, that they were *well-bred gentlemen*." On turning to the Commons Journals for the day in question (Dec. 24, 1646), one finds what really occurred. It was reported that Loudoun, Lauderdale, and the other Scottish Commissioners, were about to take their leave, and that they desired to know whether they could do any service for the English Parliament with the Parliament of Scotland. The vote was on the question whether thanks should be returned to them *for all their civilities and for this their last kind offer*. The Independents (Haselrig and Evelyn, tellers) wanted it to stand so; the Presbyterians (Stapleton and Sir Roger North, tellers) wanted an *addition* to be made, *i.e.*, I suppose, wanted some particular use to be made of the offer of the Commissioners to convey a message to the

Scottish Parliament. Actually it was carried by 129 to 105 that the question should stand as proposed by the Independents; and, the Lords concurring next day, the Commissioners were thanked in those terms.]

With the Scottish lay Commissioners, there returned to Scotland at this time a Scot who has been more familiar to us in these pages than any of them. For a long time, and especially since Henderson had gone, Baillie had been anxious to return home. Having now obtained the necessary permission, he had packed up his books, had taken a formal farewell of the Westminster Assembly, in which he had sat for more than three years, had received the warmest thanks of that body and the gift of a silver cup, and so, in the company of Loudoun and Lauderdale, had made his journey northwards, first to Newcastle, thence to Edinburgh, and thence to his family in Glasgow. On the whole, he had left the Londoners, and the English people generally, at a moment when the state of things among them was pleasing to his Presbyterian heart. For, both in the Parliament and in the Westminster Assembly, notwithstanding the engrossing interest of the negotiations with and concerning the King, there had been, in the course of the last five months, a good deal of progress towards the completion of the Presbyterian settlement. Thus, in Parliament, there had been (Oct. 9) "An Ordinance for the abolishing of Archbishops and Bishops within the Kingdom of England and the Dominion of Wales, and for settling their lands and possessions upon Trustees for the use of the Commonwealth." It was an Ordinance the first portion of which may seem but the unnecessary execution of a long-dead corpse; but the second portion was of practical importance, and prepared the way for another measure (Nov. 16), entitled "An Ordinance for appointing the sale of the Bishops' lands for the use of the Commonwealth." Then in the Westminster Assembly there had been such industry over the *Confession of Faith* that nineteen chapters of it had been presented to the Commons on Sept. 25, a duplicate of the same to the Lords Oct. 1, and so with the residue, till on Dec. 7 and Dec. 12 the two

Houses respectively had the text of the entire work before them. The Houses had not yet passed the work, or permitted it to be divulged, but had only ordered a certain number of copies to be printed for their own use; nay they had, with what seemed an excess of punctiliousness, required the Assembly to send in their Scriptural proofs for all the Articles of the Confession; but still, when Baillie left London, that great business might be considered off the Assembly's hands. A good deal also had been done in the *Catechisms* by the Assembly; and, if the Assembly's revised edition of Rous's *Metrical Version of the Psalms* had not received full Parliamentary enactment, that was because the Lords still stood out for Mr. Barton's competing Version. It was satisfactory to Baillie that, on his return to Scotland, he could report to his countrymen that so much had been done for the Presbyterianizing of England. There were, indeed, drawbacks. Both in London and in Lancashire, where the machinery of Presbytery was already in operation, the procedure was a little languid; and in other parts of England, "owing to the sottish negligence of the ministers and gentry of the shires more than the Parliament," they were woefully slow in setting up the Elderships and the Presbyteries. Even worse than this was the unchecked abundance of Sects and Heresies throughout England, and the prevalence of the poisonous tenet of Toleration. An Ordinance for the suppression of Blasphemies and Heresies, which had been occupying a Grand Committee of the Commons through September, October, November, and December, had not yet emerged into light. These were certainly serious causes of regret to Baillie, but his mood altogether was one of thankfulness and hope. "This is the incomparably best people I ever knew if they were in the hands of any governors of tolerable parts," had been his verdict on the English in a letter of Dec. 7, when he was preparing to take leave of them. An Ordinance against Heresies and Blasphemies would make them perfect, and till that came were there not substitutes? Had not a number of the orthodox ministers of London put forth a famous treatise, called *Jus Divinum*

Regiminis Ecclesiastici, arguing for the Divine Right of Presbytery in a manner which left nothing to be desired? The Second Part of Baillie's own *Dissuasive from the Errors of the Time*, published just as he was leaving London (Dec. 28, 1646), and intended as a parting-gift to the English, might also do some good! And, though he himself was no longer to sit in the Westminster Assembly, had he not left there his excellent colleagues, Samuel Rutherford and George Gillespie? [Footnote: Baillie, II. 397-403, 406-7, 410-416, and III. 1-5; Rushworth, VI. 373-388; Parl. Hist. III. 518; Commons and Lords Journals of dates given; Neal's Puritans III. 350-51.]

**SECOND STAGE OF THE CAPTIVITY: AT HOLMBY HOUSE:
FEB. 1646-7—JUNE 1647.**

The King's Manner of Life at Holmby—New Omens in his favour from the
Relations of Parliament to its own Army—Proposals to disband the Army
and reconstruct part of it for service in Ireland—Summary of Irish
Affairs since 1641—Army's Anger at the proposal to disband it—View of
the State of the Army: Medley of Religious Opinions in it: Passion for
Toleration: Prevalence of Democratic Tendencies: The Levellers—
Determination of the Presbyterians for the Policy of Disbandment, and
Votes in Parliament to that effect—Resistance of the Army: Petitions and
Remonstrances from the Officers and Men: Regimental Agitators—
Cromwell's
Efforts at Accommodation: Fairfax's Order for a General Rendezvous—
Cromwell's Adhesion to the Army—The Rendezvous at Newmarket, and
Joyce's
Abduction of the King from Holmby—Westminster Assembly Business:
First
Provincial Synod of London: Proceedings for the Purgation of Oxford
University.

Holmby or Holdenby House in Northamptonshire had been built by Lord Chancellor Hatton in Elizabeth's time, but afterwards purchased by Queen Anne for her son Charles while he was but Duke of York. It was a stately mansion, with gardens, very much to the King's taste. It was not till the 16th of February that he arrived there, the journey from Newcastle having been broken by halts at various places, at each of which crowds had gathered respectfully to see him, and poor people had begged for his royal touch to cure them of the king's evil. Near Nottingham he had been met by General Fairfax, who had dismounted, kissed his hand, and then turned back, conveying him through that town, and conversing with him. [Footnote: Rushworth, VI. 398; Whitlocke (ed. 1853), II. 115; Sir Thomas Herbert's

Memoirs of the last Two Years of the Reign of King Charles I. (1813), 13-15. Herbert was a kinsman and *protégé* of the Pembroke family, who had travelled much in the East, published an account of his travels, and had acquired quiet and æsthetic tastes. He had been in various posts of Parliamentary employment, procured for him by Philip, Earl of Pembroke; but, having accompanied that Earl when he went to Newcastle as one of the Commissioners to take charge of the King, he had attracted the King's regard, so that, on the dismissal of some of the King's attendants at Holmby, *he* was selected to be one of the grooms of the bedchamber. He remained faithfully with the King to his death, cherished his memory afterwards, was made a baronet by Charles II. after the Restoration, and died in 1681. Two or three years before his death he wrote, at a friend's request, the above-mentioned *Memoirs*, containing interesting reminiscences and anecdotes of Charles in his captivity. They were reprinted in 1702 and again in 1813 (see a memoir of Herbert in Wood's *Ath.* IV. 15-42).]

During the four months of the King's stay at Holmby his mode of life was very regular and pleasant. The house and its appurtenances, being large, easily accommodated not only the King and all his permitted servants, but also the Parliamentary Commissioners and their retinue, besides Messrs. Marshall and Caryl, Colonel Graves as military commandant, and the under-officers and soldiers of the guard. The allowance of Parliament for the King's own expenses was 50_l._ a day, so that "all the tables were as well furnished as they used to be when his Majesty was in a peaceful and flourishing state." At meal-times the Commissioners always waited upon his Majesty, and the two chaplains were generally also present. It was almost his only complaint that Parliament persisted in keeping these two reverend gentlemen about him, and would not let him have chaplains of his own persuasion. But, though he declined the religious services of Messrs. Marshall and Caryl, and said grace at table himself rather than ask them to do so, he was civil to them personally, and allowed such of his servants as

chose to attend their sermons. On Sundays Charles kept himself quite retired to his private devotions and meditations, and on other days two or three hours were always spent in reading and study. Among his favourite English books were Bishop Andrewes's Sermons, Hooker's Ecclesiastical Polity, Herbert's Poems, Fairfax's Tasso, Harrington's Ariosto, Spenser's Faery Queene, and, above all, Shakespeare's Plays, his copy of the Second Folio Edition of which is still in extant, with the words "*Dum spiro spero: C. R.*" written on it by his own hand. But he read also in Greek and Latin, and fluently in French, Italian, and Spanish. At dinner and supper he ate of but a few dishes, and drank sparingly of beer, or wine and water mixed by himself. He disliked tobacco extremely, and was offended by any whiff of it near his presence. His chief relaxations were playing at chess after meals, and walking much in the garden; but, not unfrequently, as he was fond of bowls and there was no good bowling-green at Holmby, he would ride to Lord Spencer's house at Althorp, about three miles off, or even to Lord Vaux's at Harrowden, nine miles off, at both of which places there were excellent bowling-greens and beautiful grounds. In these rides, of course, he was well attended and watched, but still not so strictly but that a packet could sometimes be conveyed to him by a seeming country- bumpkin on a bridge, or a letter in cipher entrusted to a sure hand. Always through the night at Holmby a light was kept burning in the King's chamber, in the form of a wax-cake and wick inside a large silver basin on a low table by the bed, on which also were placed the King's two watches and the silver bell with which he called his grooms. This custom had begun at Oxford and had become invariable. [Footnote: Rushworth, VI. 452-4; Parl. Hist. III. 551 and 557-9; Clar. 608; but chiefly Herbert's Memoirs, 15-25, 61-65, 124-126, and 131. It is remarkable that Herbert, who mentions the other favourite English books of Charles named in the text, does not mention Shakespeare; for Charles's copy of the Second Folio, now in the Royal Library at Windsor, was given to Herbert himself by Charles before his death, and

bears, in addition to the inscription in Charles's hand, this in Herbert's, "*Ex dono Serenissimi Regis Car. servo suo humiliss. T. Herbert*" (Lowndes by Bohn, 2,257). Herbert mentions that *Dum spiro spero* was a favourite motto with Charles, inscribed by him on many books. But that Shakespeare was a prime favourite of Charles we have Milton's authority in the well-known phrase in the [Greek: Gakonoklastæs]—"one whom we well know was the closet companion of these his solitudes, William Shakespeare."]

Of course there were continued negotiations between Charles and the Parliament. Anything done in this way, however, during the four months of the stay at Holmby, hardly deserves notice. For at that time there was a huge new clouding of the air in England, pregnant with no one knew what changes, and making the postponement of conclusions between the King and the Parliament quite natural on both sides. All the world has heard of the extraordinary quarrel between the Long Parliament and its own victorious Army.

The war being over, and the troublesome Scots out of England at last, what remained but to disband the Parliamentary Army, and enter on a period of peace, retrenched expense, and renewed industry? This was what all the orthodox politicians, and especially all the Presbyterians, were saying. In the very act of saying it, however, they faltered and explained. By disbanding they did not mean complete disbanding; some force must still be kept up in England for garrison duty, as a police against fresh Royalist attempts; they meant the disbanding of all beyond the moderate force needed for such use; nay, they did not even then mean actual disbanding of all the surplus; they contemplated the immediate re- enlistment and re-organization of a goodly portion of the surplus for service in another employment. What that was, who needed to be told? Did there not remain for England a tremendous and long-postponed duty beyond her own

bounds? Now at length, now at length, was there not leisure to attend to the case of unhappy Ireland?

Unhappy Ireland! Her history at any time is hard to write; but no human intellect could make a clear story of those five particular years of triple distractedness which intervene between the murderous Insurrection of 1641-2 (Vol. II. pp. 308-314) and the beginning of 1647. One can but note a few points.

Through the first year or more of the Insurrection there seemed to be but two parties in Ireland. There was the vast party of the Insurgents, or Confederates, including the whole Roman Catholic population of the island, both the old Irish natives, who had mainly begun the Rebellion, and the Catholics of English descent who had joined in it. Gradually the mere spasmodic atrocity of the first Rebels had been changed into something like an organized warfare, commanded in chief by Generals Preston and Owen Roe O'Neill, while the political conduct of the Rebellion and the government of Confederate Ireland had been provided for by the assembling at Kilkenny of a Parliament of Roman Catholic lords, prelates, and deputies from towns and counties, and by the appointment by that body of county-councils, provincial councils, and a supreme executive council. The other party in Ireland was the small Protestant party, consisting of the mixed English and Scottish population of certain districts of the east and north coasts, with the surviving Protestants from other parts amongst them, and with Dublin and other strongholds still in their possession. At their head ought to have been the Earl of Leicester, Stafford's successor in the Irish Lord-Lieutenancy. But, as Leicester had been detained in England by the King, the management had devolved on the Lords Justices and Councillors resident in Dublin, and on their military assessor, James Butler, 12th Earl of Ormond, who had been Lieutenant-General of the Irish forces under Strafford. In fact it was this able Ormond that had to fight the Rebellion.

Though supplies and forces, with some good officers, were sent over from England, and a special army of Scots under General Monro had been lent to the English Parliament for service in Ulster, it was still Ormond that had to direct in chief. His success had been very considerable.

In the course of 1643, however, after the Civil War had begun in England, Ireland and the Rebellion there had become related in a strangely complex manner to the struggle between the King and the Parliament. Whatever share the King may have had, through the Queen, in first exciting the Roman Catholics, he had come to regard the Irish distraction as a magazine of chances in his favour. If he could get into his own hands the command of the Protestant forces employed in putting down the Rebellion, he would have an army in Ireland ready for his service generally, and the policy would then be to come to an arrangement with the Roman Catholic Insurgents, so as to free that army, and perhaps the Insurgents too, for his service in England. Now, though the Lords Justices and most of the Councillors in Dublin were Parliamentary in their sympathies, Ormond was a Royalist, of a family old in Ireland, far from fanatical in his own Protestantism, and with many relatives and friends among the Roman Catholics. Willing enough, therefore, to fight on against the Confederates, he was yet as willing, on instructions from Oxford, to make an arrangement with them in the King's interests. Actually, on the 15th of September, 1643, he did make a year's truce with the Rebels, which permitted the despatch of some portions of his own force, mixed with Irish Roman Catholics, to the King's assistance in England. Vehement had been the outcry of the English Parliamentarians over this breach of the King's compact with them to leave the conduct of the Irish war wholly to the Parliament; and from that moment there were two Protestant powers or trusteeships for the management of the Irish Rebellion. Ormond, made a Marquis, and raised to the Lord-Lieutenancy in Leicester's place (Jan. 1643-4), was trustee for the King, and continued to rule in Dublin, bound by his truce. In other parts of

Ireland, however, the war was maintained in the interests of Parliament and by instructions from London—in Munster by Lord Inchiquin; in Connaught by Sir Charles Coote; and in Ulster by Monro and his Scots, in conjunction with English officers and advisers. So the imbroglio had gone on, a mere chaos of mutual sieges and skirmishes in bogs, and Ireland in fact, through the stress of the Civil War at home, all but abandoned to herself in the meantime. The Confederates were stronger after the end of Ormond's year of truce than they had been before; and in 1645 they were up again against Ormond, as well as against Inchiquin, Coote, and Monro. They had already received help from France and Spain, and in Oct. 1645 there arrived among them no less than a Papal nuncio, Archbishop Rinuccini, with a retinue of other Italians, to take possession of the tumult in the name of his Holiness, and regulate it sacerdotally. In this complexity Ormond had still kept his footing. He had kept it even in the midst of a sudden shock given to his Vice-royalty by Charles himself.

Without Ormond's knowledge, Charles had been trafficking for months with the Confederate Irish Catholics through another plenipotentiary. In Jan. 1645-6 it came out, by accident, that the Roman Catholic Earl of Glamorgan, to whose presence in Ireland for some months no particular significance had been attached, had been treating, in Charles's name, for a Peace with the Confederates on the basis not merely of a repeal of all penal laws against their Religion, but even of its establishment in Ireland. All Britain and Ireland were aghast at the discovery, and even Ormond reeled. Recovering himself, however, he did what he could to save Charles from the results of his own double-dealing. Glamorgan was imprisoned for a time, with tremendous threats; all publicity was given to Charles's letters authorizing proceedings against him as "one who either out of falseness, presumption, or folly, hath so hazarded the blemishing of his Majesty's reputation with his good subjects, and so impertinently framed these Articles out of his own head;" and meanwhile Charles's letters of

consolation to Glamorgan, with his thanks, and promises of "revenge and reparation," remained private.

One consequence of the Glamorgan exposure, happening as it did when the King had been all but completely beaten in England, was a resolution of Parliament that Irish affairs should be managed thenceforward not by the mere Committee for these affairs meeting at Derby House, Westminster, and communicating with Inchiquin, Coote, and others in Ireland, but by "a single person of honour," in fact a Parliamentary Lord-Lieutenant. For this high post there was chosen Philip Sidney, Viscount Lisle, M.P. for Yarmouth in the Isle of Wight. This was partly a tribute to Lord Lisle's own zeal and to service he had already rendered in Ireland, partly a compliment to his father, the Earl of Leicester, whom Charles had displaced from the Lord-Lieutenancy to make way for Ormond. Accordingly, from April 1646, while Ormond remained in power for Charles at Dublin, it was in the name of Lord Lisle, as "Lord Lieutenant-General," that all commissions for Parliament respecting Ireland were issued. Lord Lisle, however, had not gone over to Ireland, but had been waiting till he could take troops with him. It remained, therefore, for Ormond to do what he finally could in Ireland for the fallen King. He had been in negotiation with the Confederates for a Peace on more respectable terms than Glamorgan's, and yet valuable for the King; and though, after Charles's flight to the Scots, letters had come from Newcastle (June 11) countermanding previous instructions, Ormond had persevered. On the 28th of July, 1646, *Ormond's Articles of Peace with the Irish Rebels* were signed at Dublin and published for general information. They promised the repeal of all acts against the Roman Catholic Religion in Ireland, and admission of Roman Catholics to a proportion of all places of public trust; and the recompense was to be an army of 10,000 Irish for his Majesty's assistance in England. The indignation among the Parliamentarians in Ireland, and throughout England and Scotland, was immense, and Ormond was the best-abused man living.

Fortunately for him, he was extricated from the consequences of his own Treaty. The Papal Nuncio disowned it as insulting to the Church after Glamorgan's; the Roman Catholic clergy gathered round the Nuncio; there were riots wherever it was proclaimed; excommunications were thundered against its adherents; the Confederate Commissioners who had made the Treaty were imprisoned; the Nuncio himself became generalissimo, and, with Owen Roe O'Neile's army on one side of him and General Preston's on the other, declared war afresh against Ormond, and marched in his robes upon Dublin. For Ormond then there remained one plain duty. To save English rule and the existence of Protestantism in Ireland, he must hand over Dublin and the entire management of the war to the English Parliament. Having procured the King's full consent, he began a treaty with Parliament to this effect in Nov. 1646. As he was staunch in his desire to make the best bargain for the King he could, he was in no hurry; so that in February 1646-7, when the King was taken to Holmby, Ormond was still in Dublin, going on with the Treaty. In reality, however, by that time Ireland was as good as transferred to the Parliament. They had acted on the knowledge. Dec. 23, 1646, "Resolved that this House doth declare that they will prosecute and carry on an offensive war in Ireland for the regaining of that kingdom to the obedience of the kingdom of England;" Jan. 4, 1646-7, "Resolved that an Ordinance be forthwith prepared and brought in for establishing and settling the same Form of Church- government in the kingdom of Ireland as is or shall be established in the kingdom of England;" such were two momentous votes of the Commons when the King was about to leave Newcastle. Nay, on the 28th of January, when the Scots were handing over the King to the English, Lord Lisle had left London for Ireland to assume his Lord-Lieutenancy. A new sword of State had been made for him; his Irish Council, of nine members at £500 a year each, had been nominated; and, at his special request, Major Thomas Harrison of the New Model had accompanied him. [Footnote: Authorities for the summary

of Irish affairs from 1641 to 1647 given in the text are— Rushworth, VI. 238-249; Clar. 641, and at various other points; Whitlocke under Jan. 25 and 28 and March 9, 1646-7; Godwin, I. 245 *et seq.*, and II. 102 *et seq.*; Commons Journals of dates given, with other entries from Dec. 1646 to Feb. 1646-7; and Carte's Ormond. Carte's large book is of some value from the abundance of information that was at his disposal, but is intrinsically silly.]

What could Lord Lisle do without troops? Now was the time for England to perform fully for "the gasping and bleeding Island" that duty of which, with all the excuse of her own pressing needs, she had been long too negligent. Now was the time to revenge the massacre of 1641, and re-subject Ireland to English rule and the one only right faith and worship. And were not the means at hand? An army of 25,000 or 30,000 Englishmen was now standing idle: why not disband and cashier part of them, and recast the rest into a new army for the service of Ireland? The question was obvious and natural to all; but it was put most loudly by the Presbyterians, because of a peculiar interest in it. They had never liked the Army of the New Model; all its victories had not reconciled them to it, or made them cease to regret the Army of the Old Model, That had been a respectable army, with the Earl of Essex at its head; this was an army of Independents, Sectaries, Tolerationists. Might not the disbanding of this army be so managed as to be at once a deliverance of England from a great danger and the salvation of Ireland? What was necessary in the process was to get rid of Cromwell, his followers among the officers, and the most peccant parts of the soldiery, so as to leave a sufficient mass to be re-formed, with additions, into an army of the Old Model type, the command of which might be given to Fairfax if he would take it, or perhaps to honest Skippon, or, best of all, to Sir William Waller.

This had been the understanding between the English Presbyterians and their Scottish friends since the close of the war. [Footnote: In a letter of Baillie's October 2, 1646, he expects "the Sectarian Army disbanded and that party humbled."] There was, however, another party likely to have a voice in the business. This was the Army itself.

Never under the sun had there been such an army before. It was not large according to our modern ideas of armies: only some 25,000 or 30,000 men, four-fifths of them foot-soldiers and the rest horse-troopers and dragoons. But imagine these all hardy men, thoroughly drilled and disciplined, and conscious that it was they who had done the work, they who had fought the battles, they who had saved England. Imagine farther that this Army had somehow come to be constituted, through its entire mass, on Cromwell's extraordinary principle, announced by him to Hampden at the beginning of the war, that the power of an army depends ultimately on the "spirit," or intrinsic moral mood, of the individuals composing it. Imagine that the atoms of this army were all "men of a spirit," men who had not fought as hirelings, but as earnest partakers in a great cause. Imagine them, if you like, as an army of fanatics. This phrase, however, might mislead, unless qualified.

The common conception of an army of fanatics is that of an army mad for one set of tenets. Now the Parliamentary Army was really, as the Presbyterians called it, an Army of Sectaries. It was a miscellany of all the forms of Puritan belief known in England, with forms of belief included that were not Puritan. The much largest proportion, after Presbyterians, of whom there were many, and ordinary Independents, of whom there were more, were Sectaries of the fervid and devout sorts, such as Baptists, Old Brownists, and Antinomians, with mystical Millenaries and Seekers, all passionately Scriptural, saturated with the language and history of the Old Testament, and zealously Anti-Romanist and Anti- prelatic; and these, on

the whole, were the men after Cromwell's heart. Such, among others, was Harrison—whom Baxter, who had seen much of him, classes at this time among the Anabaptists and Antinomians, telling us "he would not dispute at all [with Baxter], but he would in good discourse very fluently pour out himself in the extolling of Free Grace, which was savoury to those that had right principles, though he had some misunderstandings of Free Grace himself:" a man, adds Baxter, "of excellent natural parts for affection and oratory, but not well seen in the principles of his Religion; of a sanguine complexion; naturally of such a vivacity, hilarity, and alacrity, as another man hath when he hath drunken a cup too much;" and whom Baxter had once heard, in a battle, when the enemy began to flee, "with a loud voice break forth into the praises of God, with fluent expressions, as if he had been in a rapture." But there were also in the army Sectaries of a cooler or easier order— Arminians, Anti-Sabbatarians, Anti-Scripturists, Familists, and Sceptics. Hardly a form of odd opinion mentioned in our conspectus of English Sects in a former chapter but had representatives in the Army; nay, new speculative oddities had broken out in some regiments; and it may be doubted whether even in the English mind of our own time there is any form of speculation so peculiar as not to have had its prototype or lineal progenitor in that mass of steel-clad theorists contemporary with the Westminster Assembly. Nor did each man keep his theory to himself. There were constant prayer-meetings in companies and regiments, and meetings for theological debate; troopers or foot-soldiers off duty would expound or harangue to their fellows in camp, or even from the pulpits of parish-churches when such were convenient; whenever the Army halted there was a hum of holding-forth. There were army-chaplains, it is true, and some of them, such as Peters, Dell, and Saltmarsh, great favourites; but, on the whole, the regular cloth was in disrepute: those who belonged to it were spoken of as the *Levites* or priests by profession; the need for such a profession was voted obsolete; and any man was held to be as good for the

preaching office as any other, if he had the preaching gift. And with the respect for ordination had vanished the respect for most of the regular Church-forms and symbols. Not only did preaching officers and troopers, when they chanced to enter parish-churches, often eject the regular ministers from the pulpits, and hold forth themselves instead—in which kind of practice Colonel Hewson and Major Axtell are reported to have been conspicuous; but the contempt for established decencies of worship had vented itself, at least in occasional instances, in very profane humours. Soldiers had scandalized country-congregations by sitting with their hats on during prayer and singing; and Hewson's men were said once to have kept possession of a parish-church for eight days, having a fire in the chancel, and smoking tobacco *ad libitum*. Such were, doubtless, mere excesses here and there, which would have been rebuked by the more serious men who formed the bulk of the Army; but it is quite certain that even among these that extreme kind of Independency had become common which repudiated a National Church of any kind whatsoever, nay denied that there was any Church on earth at all, any system of spiritual ordinances visibly from God, anything but a great invisible brotherhood of Saints, walking in this life's darkness, passionately using meanwhile this symbol and that to feature forth the unimaginable, glad above all in the great glow of the present Bible, but expecting also, each soul for itself, rays and shafts from the Light beyond. Of this kind of indifferency to all competing forms of external worship, and even of doctrine, combined with either a mystical and dreamy piety, or a wildly-fervid enthusiasm, Dell and Saltmarsh, among the army-chaplains, seem to have been the most noted exponents; but it was really a modification of that which is already known to us as the *Seekerism* of Roger Williams. At all events, that absolute doctrine of Toleration which Roger Williams had propounded, and which was logically inseparable in his mind from Independency at its purest, had found its largest discipleship in the Parliamentary Army. Toleration to some extent was the universal Army

tenet; even the Presbyterians of the Army, with some exceptions, had learnt to be Tolerationists in some degree. But a very full principle of Toleration had possessed most, and the most absolute possible principle was avowed by many. "If I should worship the Sun or Moon. like the Persians, or that pewter-pot on the table, nobody has anything to do with it," one sectary had been heard to say; and some even had "justified the Irish Rebellion," on the ground that the Irish "did it for the liberty of their consciences and for their country." If this last extreme application of the Toleration doctrine did actually come from the mouth of a sectary serving in the Army (which is not quite clear from the report), it must be regarded, I suspect, as one of those eccentricities of mess-table debate which, when Baxter talked of them to Colonel Purefoy, vouching that he had heard such things himself, that officer indignantly refused to credit, saying, "If Noll Cromwell should hear any soldier speak but such a word, he would cleave his crown." Precisely the Toleration doctrine, however, was that in which Cromwell himself was most thorough-going and most distinctly the representative of the whole Army. Even Baxter, after his two years of army-chaplaincy, spent in observing the medley of sects around him and combating their errors, could not refer Cromwell with positive certainty to any one of the Sects. He seemed most for the Anabaptists, Antinomians, and Seekers, but "did not openly profess what opinion he was of himself." But on Toleration of Religious Differences he was explicit and decided. All that were most to his mind in the Army "he tied together by the point of Liberty of Conscience, which was the common interest in which they did unite." [Footnote: This description of the Parliamentary Army is a digest of the best knowledge I have been able to form from various readings in contemporary books and study of Army documents; but particulars of it are from Baxter's Autobiography (1696), Part I. 52-57, and Edwards's *Gangræna*, Parts II. and III. *passim*. The good, though narrow and hypochondriac, Baxter may be thoroughly relied on for whatever he vouches as a fact known to himself;

otherwise, *cum grano*. Edwards has to be put into the witness-box and cross-examined unmercifully, not as a wilful liar, but as an incredibly spiteful collector of gossip for the Presbyterians. After all, many of the so-called ribaldries and profanities reported by him of the Army Sectaries turn out innocent enough, or only very rough jokes, as when a soldier told a godly old woman that, if she did not believe in universal redemption, she would be damned. Perhaps his most horrible story is that of some soldiers taking a horse into a village church in Hunts and baptizing him in all due form at the font, giving him the name of *Esau* because he was hairy. The story, with a certificate of its truth by seven of the villagers, will be found in *Gangræna*, Part III. 17, 18. But, if the atrocity ever did occur, its date, according to Edwards himself, was June 2, 1644, *i.e.* in the time of the Old Model Army, to which the very objection of Cromwell and others was that it did not consist sufficiently of "men of a spirit."]

There were three reasons why this extraordinary Army should object to being disbanded:—(1) They had large and long-deferred claims upon the Parliament for arrears of pay, compensation for losses, provision for the wounded and disabled and for widows and orphans, indemnity also for illegal or questionable acts done in the time of war. Was the Army to let itself be disbanded without due security on these points? (2) There was the unsettled question of Religious Toleration. The whole drift of things in the Parliament and in the Westminster Assembly seemed to be to a uniform and compulsory Presbyterianism; and was that a prospect to which the Army, or nine-tenths of it, could look forward placidly? The Army did not want to undo the Presbyterian settlement as already decreed, but they were unwilling to disband before a Toleration under that settlement had been arranged. (3) Over and above these two reasons, and in powerful conjunction with them, was another. The Army, although an Army, had not ceased to regard itself as a portion of the English people; nay, it had come to regard itself as a select portion of that people, whose opportunities of

thinking and reasoning on political affairs had been peculiarly good. It had come to be, in its own belief, an organ of political opinion, representing wishes and feelings of large parts of the population which were not represented in Parliament, and representing these in the form of conclusions for the future more radical and more definite than any that Parliament alone was ever likely to work out. In short, those democratic ideas the prevalence of which in the Army had so surprised Baxter when he first joined it had now become paramount. It was not only that the Army had formed views more severe than those of the Presbyterians as to the proper terms of the settlement to be made with the King; it was that the Army thought the present the time for discussing the whole subject of the constitution of the country. The House of Lords, for example! Whether there should be a Peerage at all, legislating in a separate House by mere hereditary right, might be a very fair question, and was one on which the Army had pretty decided opinions. But that the House of Lords then sitting—not the assembled Peerage of England at all, but a mere fifth-part of that Peerage, in the shape of some twenty-eight persons meeting from day to day, sometimes as few as half-a-dozen of them at a time, and not only partaking with the other House in the legislation, but often obstructing that House, thwarting it, throwing out its measures,—that this should continue who would maintain? No! the House of Lords must go, and the sole House in England must be the other House, the "House of Representatives." But here too there was room for improvement. The House of Commons then sitting was numerically substantial enough, now that it had been Recruited; and no one could look back on the great things which the House had done without gratitude and admiration. But were there not signs of exhaustion, debility, and wrong-headedness, even in that House, arising partly from its long independence of the People, partly from the imperfect system of suffrage under which it had been elected. Only in an imperfect sense could the existing House be called a "House of Representatives;" and, as soon as should

be convenient, it must be dissolved and succeeded by a House fully deserving that name. For the election of such a House there must be a reform of the details of the electoral system, including the abolition of such anomalies as the return of one-twelfth of the whole House by the single and remote county of Cornwall, and a redistribution of seats in accordance with the proportions of population and property in the various parts of England. All these ideas, and many more, anticipating with surprising exactness the Parliamentary Reform movements of much later times, were agitating the Parliamentary Army while the King was in his captivity at Holmby. Pamphlets from London, actively circulated among the regiments, aided the discussion and supplied it with topics and catch- words. Especially popular among the soldiers, and keeping up their excitement more particularly against the House of Lords, were the pamphlets that came from John Lilburne and an associate of his named Richard Overton.—Lilburne, whom we left in October 1645, just released from the short imprisonment to which he had been committed by the Commons (*antè*, p. 390), had gone on again in his old pugnacious way, till, by Prynne's contrivance, he found himself in the clutches of the Lords. Called before that House, in June 1646, for a Letter he had printed, called *The Just Man's Justification*, he had amazed the Peers by conduct such as they had never seen before. He had refused to kneel, refused to take off his hat, refused to hear the charges against him, stopped his ears while they were read, denied the jurisdiction of the Peers, stamped at them, glared at them, told them his whole mind about them, appealed to the Commons as the sole power in the State, and altogether behaved like a mad ox. They had consequently fined him £4,000, and committed him to Newgate for seven years. For similar offences to the Peers, and similar contumacy when charged with them, Richard Overton, a printer and assiduous publisher of pamphlets, had also been sent to prison two months afterwards (Aug. 1646). There was considerable sympathy with both among the Londoners, and the Independents in the Commons had

taken up Lilburne's case and procured the appointment of a Committee on it. Nor even in Newgate, it appears, had he been debarred the use of pen and ink; for, in addition to his former pamphlets, there had come from him fiercer and fresh ones—*Anatomy of the Lords' Tyranny, London's Liberty in Chains, The Free Man's Freedom, The Oppressed Man's Oppressions, The Resolved Man's Resolution, &c.* These were the pamphlets of Lilburne which, together with Overton's, one of which was *An Arrow Shot into the Prerogative Bowels of the Arbitrary House of Lords*, were popular with the common soldiers of the Parliamentary Army, and nursed that especial form of the democratic passion among them which longed to sweep away the House of Lords and see England governed by a single Representative House.—Baxter, who reports this growth of democratic opinion in the Army from his own observation, distinctly recognises in it the beginnings of that rough ultra-Republican party which afterwards became formidable under the name of THE LEVELLERS. All the while, however, there was also a quiet formation, in some of the superior and more educated minds of the Army, of sentiments essentially Republican, but more reserved and tentative in the style of their Republicanism. Among these minds too it had become a question whether a mere settlement with the King even on the basis of the Nineteen Propositions would suffice, and whether the hour had not come for organic changes in the Constitution of England. Perhaps the leader of Army thought in this direction was Cromwell's son-in-law Ireton. [Footnote: Baxter *ut supra*; Gangræna, part III. *passim*; Lords Journals, June 10, 11, 23, and July 11, 1646 (Lilburne's case), and Aug. 11 (Overton's); Godwin, II. 407 *et seq.*; Wood's Ath. III. 353] That the English Presbyterians, bereft now even of that overrated support which had been afforded them by the presence of a Scottish Army in England, should have rushed into a struggle with the English Army, such as it has been described, without trying so much as a compromise on the Toleration question, is one of the greatest examples of political stupidity on record. They seem to have

calculated mainly on the fact that they had a majority in Parliament. Of the few Lords forming the Upper House they could count nearly all as decidedly with them. In the Commons, too, where the balance had always been more nearly equal, Presbyterianism had of late been gaining force. Why it had been so is not very obvious. The latest Recruiters may have been politicians of a more Presbyterian type than the earlier ones; and of these earlier Recruiters some who had come in as Independents may have veered round. Men whose opinions are not very decided tend naturally to the winning side, and the King's flight to the Scots and their long possession of him had put Presbyterianism in the likelihood to win. However it had happened, the Presbyterians had of late been preponderating in the Commons. In a vote on Sept. 1, 1646, affecting the relations of the Parliament to the Scots, the Presbyterians had beaten the Independents by 140 to 101; in another vote on Dec. 25, on the question whether the words "according to the Covenant" should be added to a Resolution, the *Yeas* or Presbyterians had beaten by 133 to 91; and in an interesting vote on Dec. 31, on the question whether the words "or expound the Scriptures" should be added to a Resolution forbidding unordained persons to preach, the *Yeas* or Presbyterians had beaten by no fewer than 105 to 57. In this last vote Cromwell was one of the Tellers for the *Noes* or Independents. In testing divisions these numbers may be taken as representing the relative strengths of the two parties in the end of 1646 and the beginning of 1647. But, even with a considerable majority in the Commons, and with the Lords all but wholly a Presbyterian House, the confidence of the Presbyterians in confronting the Army can be accounted for only by reckless leadership. Holles and Stapleton, their most forward men in the Commons, appear to have been men of but ordinary faculty and decidedly rash temper, incomparably inferior to their great opponents. One argument they had, of which they did not fail to make the most. The City of London was eminently and staunchly Presbyterian; and would that great city, the central

money-power of the nation, allow the Government to be dictated to by an Army of Sectaries? [Footnote: Commons Journals of dates given, with divisions generally between Aug. 1646 and Feb. 1646-7; Godwin, II. 263 *et seq.*]

The struggle, long foreseen, began actually in the first two months and a half of the King's stay at Holmby, *i.e.* in February, March, and April, 1646-7. The gauntlet was thrown down by Parliament. Feb. 19, in an unusually full House, it was carried by 158 (Holles and Stapleton tellers) against 148 (Haselrig and Evelyn tellers), that no force of Foot beyond what was necessary for garrisons should be kept up in England, but only a certain force of Horse. On the 5th of March there came a vote on the important question who should be the Commander-in-chief of the retained Army, and so jealous had the Presbyterians become even of Fairfax, because of his connexion with the existing Army, that the Independents, though going for him to a man, carried his appointment but by a majority of 12. Subsequent resolutions, carried without division, were that no member of the House should hold a military command (Cromwell's Self-denying Ordinance cleverly repeated against himself), that no officer in the future Army under Fairfax should be above the rank of Colonel, and that all officers should take the Covenant; and when, on the farther and more outrageous proposition, that all officers must conform to the Presbyterian Church-government, the Independents forced a division; they lost by 108 *Noes* (Haselrig and Evelyn), against 136 *Yeas* (Holies and Stapleton). By additional Resolutions of March 29 and April 8 the arrangements were completed. It was formally resolved that all the Foot of the existing Army not required for the garrisons should be disbanded, and that the future Army of Horse under Fairfax should consist of nine regiments of 600 each, or 5,400 in all, recruited out of the existing Army or otherwise. The Colonels for the nine re-modelled regiments were named, some of them cavalry Colonels of the existing Army, but not all. Cromwell's own regiment, or the

regiment that should be built out of any safe shred of it with other materials, was to go to the Presbyterian Major Huntingdon.—So much for England and Wales; but what of the new Army for Ireland? That also had been arranged for. March 6, it was voted by the Commons that the Army for Ireland should consist of 8,400 foot, 3,000 horse, and 1,200 dragoons, to be recruited as far as possible from the existing English Army. But how about the command of this Army and the government of Ireland while it should be serving there? Lord Lisle, then in Ireland as Lord-Lieutenant for the Parliament, was one of Cromwell's disciples, and had been appointed by Cromwell's influence. It would not do to leave *him* in command. Fortunately, he had been appointed but for a year; and, to avoid re-appointing him, it was resolved (April 1) that the previous vote of the Houses for the management of Ireland through "a single person of honour" should be rescinded, and that, while the Civil Government should revert to the two Lords-Justices in Dublin, the military command should be in the hands of a Field-Marshal, attended by Parliamentary Commissioners. Sir William Waller was named for this Field-Marshalship; but the Presbyterians did not go to the vote for him; and Skippon, then at Newcastle, and unaware of the honour intended for him, was unanimously chosen (April 2). The Presbyterian Massey was to be his Lieutenant-General. As an inducement to officers and soldiers of the English Army to re-enlist for the Irish service, high pay was promised, with an option of taking part of it in the valuable form of Irish lands. [Footnote: Commons Journals of the dates given.]

O, if you had been at Saffron Walden in Essex, where the bulk of the English Army was quartered, when the news of these votes of the Commons reached them! What murmurs among the common soldiers, what consultations among the officers! The officers, as was fitting, took the lead. A deputation of four Colonels and five Lieutenant-colonels had already gone to London (March 22) with a Petition and Remonstrance. They had been received graciously enough by the Lords, but coldly and with rebuke

by the Commons. Then, a great Petition being in preparation throughout the Army, to be signed by both officers and men, and addressed to Fairfax as Commander-in-chief, there had come, on a hasty motion by Holles, a Declaration of the two Houses (March 29-30) voting the same dangerous and mutinous, and threatening proceedings against such as should go on with it. With vast self-control on the part of the Army, and much good management on the part of Fairfax, the offensive Petition had been suppressed; and through a great part of April the dispute took the form of conferences between Fairfax and his officers and five Commissioners sent down to the Army from Parliament (Waller and Massey among them) to argue for the disbandment and promote re-enlistment for Ireland. At these conferences the questions of arrears, indemnity, the rate of pay in Ireland, &c., were all discussed, and the Commissioners tried to give satisfactory explanations. It was a great point with the Army whether Skippon would accept the Irish Field-Marshalship; and at one of the conferences, when Colonel Hammond was expressing this for his comrades, and saying that nothing would be more likely to induce them to enlist for Ireland than the knowledge that that "great soldier" was to be in command, "*All, all!*" cried the assembled officers, "*Fairfax and Cromwell, and we all go!*" No real conciliation, however, was effected; and on the 26th of April the Commissioners, in their "perfect list" of officers who had agreed individually to go to Ireland, could report but three Colonels, and a proportionate following of Captains and subalterns. Among the men it was worse. In one company, eight score strong, twenty-six had volunteered to go with their Captain; in another the Captain could not get a single man to join him. Parliament was taken aback by this ill success; but Holles and his party were undaunted. It was a gleam in their favour that Skippon, coming to London from Newcastle, did at length (April 27) accept the Irish Field-Marshalship. The Houses voted him their thanks and a gift of 1,000_l_ and on the same day it was carried in the Commons, by the overwhelming

majority of 114 to 7 (the Independents evidently abstaining from the vote), that the Army, horse and foot, should be immediately disbanded with payment of six weeks of arrears. Orders were also issued for the appearance at the bar of the House of some of the most refractory superior officers and the arrest of several subalterns; and at the same moment the Common Council of the City of London proved their Presbyterian zeal by ejecting Alderman Pennington and other prominent Independents from the Committee of the City Militia. On the very day of this concurrence of Presbyterian demonstrations (April 27) there was presented to the Commons a "Humble Petition of the Officers in behalf of themselves and the Soldiers," with an accompanying "Vindication" of their recent conduct. Lieutenant-general Thomas Hammond headed the list of Petitioners; next came Colonels Whalley, Lambert, Robert Lilburne, Rich, Hewson, Robert Hammond, and Okey; then Lieutenant-colonels Pride, Kelsay, Reade, Jubbs, Grimes, Ewer, and Salmon; then Majors Rogers, Axtell, Cowell, Smith, Horton, and Desborough; and there followed about 130 captains and inferior officers. Such an Officers' Petition might well have given the Presbyterians pause; but three days afterwards (April 30) there came something more extraordinary. It was a Letter brought to town, and delivered to Skippon and Cromwell for presentation to the House, by three private troopers, professing to be "agents" or "agitators" or "adjutators" for some regiments in the Army. It used very high language indeed. It complained of the "scandalous and false suggestions" current against the Army, spoke darkly of "a plot contrived by some men who had lately tasted of sovereignty," and declared flatly that the soldiers "would neither be employed for the service of Ireland nor suffer themselves to be disbanded till their desires were granted, and the rights and liberties of the subjects should be vindicated and maintained." The amazed House ordered the three troopers who had brought the Letter, and who were waiting outside, to be brought in. They came in, gave their names as Edward Saxby, William

Allen, and Thomas Sheppard, and stood stoutly to their business. Holles and his clique were for committing them to prison; but, Skippon certifying that they were honest men, and another member suggesting that, if they were committed at all, it should be "to the best inn of the town, and sack and sugar provided for them," the more good-humoured counsel prevailed, and they were dismissed. Nay, their appearance and their Letter had produced an impression. In Holles's own words, "the House flattered," began to think it had been too peremptory, and resolved that Skippon, Cromwell, Ireton, and Fleetwood, should go at once to Saffron Walden, as mediators between it and the Army. [Footnote: Commons Journals of all the cited dates; Rushworth, VI. 444-475; Whitlocke, II. 121-137; Parl. Hist. III. 560-576; Holles's Memoirs by himself (1699), pp. 88-90.]

Agents, or Agitators, or Adjutators, the three bold troopers had called themselves; and it was the first time the Houses had heard the name. It announced, however, an important reality. The common soldiers had made up their minds that they could not leave the struggle for the Army's rights wholly in the hands of the officers, and that it might assist these officers if they, the rank and file, with the corporals and sergeants, formed an organization among themselves for the same ends. Accordingly, trusty men in each regiment had been chosen to meet and consult with others of other regiments, and the name "Agitators" or "Adjutators" had been given to these deputies. Very soon the organization was so perfect that every troop or company had its two Agitators, every regiment its distinct Agitatorship composed of the Agitators of the several troops or companies, and so by gradation upwards to general meetings of the Agitators of the whole Army and special meetings of Committees for maturing business more privately. Too obvious a connexion between this association and the higher army-officers was inconvenient; but it was useful to have connecting links in officers of the lower ranks; and the Presidency of the Agitators came, at length, to be vested in one such officer. This was James Berry, one of the

captains of Fairfax's own horse-regiment, in which Desborough was Major. He had been a clerk in some iron-works in the west of England, and was "of very good natural parts, especially mathematical and mechanical." Before the war he and Richard Baxter had been bosom friends; but, since he had come into the Army and been much in the society of Cromwell, he had become, says Baxter, a man of new lights in religion, regarding the old Puritans of his acquaintance as "dull, self-conceited men of a lower form." During Baxter's two years of army-chaplaincy, Berry had never visited him, nor even seen him, except once or twice accidentally. [Footnote: Rushworth, VI. 485; Holles, 86, 87; Baxter's Autobiography, Part I. 57 and 97.]

Through the greater part of May, Fairfax being then in London, Cromwell, and his fellow-commissioners, Skippon, Ireton, and Fleetwood, remained at Saffron Walden, busy in their work of mediation. Three successive letters to Speaker Lenthall reported the amount of their success. It was next to nothing. They had obtained, they say in the last of the three letters (May 17), a complete statement of the grievances of the Army, in the form of papers which they would bring to town; but meanwhile they found the soldiers so unsettled that they did not think it safe to leave them. Skippon and Ireton, in fact, did remain; but Cromwell and Fleetwood returned to town, May 21, to report to the House in greater detail. Among the documents they brought with them, representing the opinions and demands of the Army, was one which had been prepared with extraordinary care. The various votes relating to the Army having been read to each regiment by its commanding officer, the regimental Agitatorships (apparently now first fully constituted) had reported the opinions and demands of the regiments severally, and these opinions and demands had been digested into one Draft at a conference of the chief officers, on the principle of including only such demands as were made unanimously by all the regiments. Rushworth does not give the document, but describes it as

fair and moderate, and tells us in particular that, while it complained of misrepresentations and ill-treatment, and desired reparation, it denounced only one person by name. One is not surprised to learn that this was the Rev. Mr. Edwards. His *Gangræna*, it was said, had been written expressly to make the Army odious. [Footnote: Letters in Appendix IX. to Carlyle's Cromwell; Commons Journals of May 21; and Rushworth, VI. 485-6.]

Moderate or not, the Army's *ultimatum* obtained but an unfriendly hearing in the two Houses; and, between the 22nd and the 28th of May, Fairfax having meanwhile returned to the Army, they issued their opposed *ultimatum* in a sharp series of orders. The entire army of Foot was to be disbanded, willing or unwilling, on the terms fixed: Fairfax's own regiment at Chelmsford on June 1, Hewson's at Bishop's Stortford on June 3, Lambert's at Saffron Walden on June 5, and so on regiment by regiment, each on a named day and at a named place, a Committee of the two Houses to be present at each disbanding, and Skippon also to be present to enlist such of the disbanded men as would go to Ireland. These orders reached Fairfax at Bury St. Edmund's in Suffolk, to which he had removed his headquarters. They threw the Army into an ungovernable uproar, which subsided in a day or two into an ominous calm. For a great resolution had been taken. The Agitators, at a meeting on Saturday, May 29, had drawn up a petition to Fairfax for a speedy Rendezvous of the whole Army at one place for united action; and a council of officers, to the number of 200, with Ireton among them, had declared themselves on the same day to the same effect. They advised Fairfax to grant the Rendezvous, telling him that, if he did not, the men would hold one themselves and it was sure then to end in tumult. Fairfax had taken the advice; and in the last days of May orders were out for the "contraction of the Army's quarters" by drawing the dispersed regiments closer together, and for a general "Rendezvous" at Kentford Heath, close to Newmarket, on Friday the 4th of June. [Footnote: Parl. Hist. III. 582-588, and Rushworth, VI. 494-500.] Fairfax, with whatever

hesitation, had thus thrown in his lot with the Army. Skippon, though he had accepted the Irish Field-Marshalship, almost repented having done so, and was one at heart with his old comrades. Of the other officers only a small minority, whether from Presbyterian predilections or out of mere respect for authority, wavered towards Parliament. The chief of these were Colonels Harley, Herbert, Fortescue, Sheffield, Butler, Sir Robert Pye, and Graves, this last being the Colonel in charge of the King at Holmby. On the other side, round Fairfax, and sustaining him, were Generals Ireton and Hammond, as next in rank; with Whalley, Rich, Okey, Rainsborough, Robert Lilburne, Sir Hardress Waller, Robert Hammond, Lambert, Hewson, Ewer, Kelsay, Ingoldsby, Pride, Axtell, Jubbs, Desborough, and other Colonels, Lieutenant-Colonels, and Majors, among whom is not to be forgotten the enthusiast Harrison, back from Ireland just at the right moment. But what of Fleetwood and Cromwell, left in their places in the House of Commons? Which way they would go nobody could doubt; but the question was whether they might not be seized as hostages by the Presbyterians and detained in London. As far as Fleetwood was concerned, the danger was over on the 2nd of June; on which day he had leave from the House "to go into the country," and went we can imagine whither. For Cromwell the danger was greater. He too, however, had made his arrangements. On the evening of the 3rd of June, or early on the following morning, just in time to avoid the arrest and impeachment which Holles and the Presbyterians were preparing for him, he rode quietly out of London in the direction of the Army. As far as can be ascertained, he had waited purposely to cover Fleetwood's departure, and be himself the last army-man to leave the Commons. [Footnote: Commons Journals, June 2; Whitlocke, May 31; Rushworth, VI. 464-8 and 495; Holles 85, 86; Clar. 611; Godwin, II. 311, 312. Cromwell's so-called "Flight to the Army" is an incident made much of by Royalist and Presbyterian writers, and Clarendon's account of it and what preceded it is a perfect jumble of incompatible dates and confused

rumours. What all those writers (Holles, Clement Walker, Clarendon, Baxter, Burnet, &c.) wanted to make out, and really succeeded in transmitting as a fact, was that Cromwell's whole conduct through the dispute between the Army and Parliament, up to the moment of his flight, had been a tissue of the profoundest craft and hypocrisy. He had pushed on the policy of disbandment in the Parliament on the one hand, and on the other he had fomented the mutiny in the Army through the Agitators; to lull suspicion when it was roused, he had at the last moment protested in the House in the presence of Almighty God that he knew the Army would lay down their arms; and not till his flight was the whole depth of his dissimulation known! On these statements, and the disposition of mind that could invent them or believe in them, see Mr. Carlyle's impressive words (Cromwell's Letters and Speeches, I. 220-222). The real facts are to be gathered or inferred from the Commons Journals. Cromwell had been in London through February, March, and April, while the votes for disbandment, &c. were passed, unable to resist those votes, but anxious to prevent a rupture, and doing his best to that end: and not till after his return from his mission of mediation to the Army (May 21), or even till after the Army's resolution for a Rendezvous (May 29), were his hopes of a reconciliation utterly gone.]

The general Rendezvous of the Army was duly held, as appointed, near Newmarket, in Cambridgeshire, on Friday the 4th of June. There were present seven foot-regiments and six regiments of horse—a full representation of the Army, though not the whole. There was the utmost display of resolution. One great general Petition was agreed to; a solemn engagement was drawn up and signed by officers and soldiers; Fairfax rode from regiment to regiment, addressed each, and was received with outcries of applause. The proceedings were not over on the 4th, but protracted themselves into the next day. On that day it was that a strange excitement or suspense, which had been visible in all faces from the very beginning of the

Rendezvous, in consequence of news then received, was relieved by the arrival of farther news. "Joyce has done it! Joyce has done it!" were the words that might then have been heard through the assembled Army, caught up and repeated by group after group of talking soldiers over the heath. [Footnote: Rushworth, VI. 504-512.]

Who was Joyce, and what had he done? These questions take us back to the King at Holmby.—His Majesty, watching the course of the struggle between the Parliament and the Army, had at last, on the 12th of May, sent in his long-deferred Answer to the Nineteen Propositions. It was substantially the Draft which he had submitted to the Queen and the Earl of Lanark in the preceding December, but had suppressed (*antè*, pp. 505-6). He offered the surrender of the Militia for ten years, and assent to Presbytery for three years, but with a reserve of the Liturgy for himself and his household, and the right of adding twenty divines to the Westminster Assembly to assist in the final settlement of the Church-question. The clause about a toleration for tender consciences, inserted in the former Draft as a bait for the Independents, was now totally omitted. In other words, Charles had thought the moment favourable for re-opening negotiations with the Presbyterians. The reception of his Letter by Parliament had been encouraging. It had been read in the Lords, May 18; and it had then been carried in that House by a majority of 15 to 9 that his Majesty should be brought at once from Holmby to some place nearer London, for the convenience of treating with him. Oatlands in Surrey had been named, and the concurrence of the Commons requested. Actually on May 21, the very day when Cromwell and Fleetwood returned to the Commons from their mission to the Army, the matter had been mentioned in that House. Although no decision had been come to, the Independents and the Army had taken alarm. Colonel Graves, commanding the guard at Holmby, was a Presbyterian; some of those everlasting Scottish Commissioners were back in London, in their old quarters at Worcester House; nay, one of them, the

Earl of Dunfermline, had obtained leave from the two Houses (May 13) to visit the King at Holmby! What might not be in agitation under this proposal of a removal of the King to Oatlands? What so easy as for the Presbyterians, with Colonel Graves for their agent, to secure the King wholly to themselves, and so, having bargained with him on their own terms, to invite back the Scots and defy the Army? Such had been questions gossiped over in the Army at the very time when for other reasons the resolution was taken for a general Rendezvous. This very danger of some Presbyterian plot for removing the King from Holmby was an additional reason for the Rendezvous and the contraction of the Army's quarters. But the Rendezvous was not enough. Simultaneously with the Rendezvous, and to turn it to full account, something else was necessary. What that was had also been discussed among the Agitators with every precaution of secrecy; select parties of troopers from different regiments had been told off for the enterprise; and a George Joyce, once a tailor, but now cornet in Fairfax's lifeguard, had been appointed to take the lead. [Footnote: Lords and Commons Journals of dates given; and Parl. Hist. III. 577-581, containing the King's Letter.]

As early as Wednesday June 2, or two days before the Rendezvous at Newmarket, there had been a suspicious appearance of parties of horse gathering to a body near Holmby. That night there was no doubt about it; and Colonel Graves, who had reasons for thinking that he was their main object, had just made his escape, when, about one in the morning of June 3, the troopers were in the park and meadows surrounding the house. Before daylight they were within the gates, Graves's men having let them in and at once fraternized with them. The whole of that day was spent by the troopers, Joyce acting as their spokesman, in a parley with the Commissioners in charge of the King—viz.: Lord Montague of Boughton, Sir John Coke, Mr. Crewe, and General Browne—the King meanwhile aware of what was going on, but keeping his privacy. Messengers had been

sent off from the Commissioners to London; where, accordingly, on Friday the 4th, there was great excitement in the two Houses. That same morning the news was known in the Army at Newmarket, just before the proceedings of the Rendezvous began, not much to the surprise of some there perhaps, but certainly to the surprise of Fairfax himself. He could not then countermand the Rendezvous; but at once he detached Whalley and his horse-regiment, to gallop to Holmby, take Colonel Graves's place, and see that no harm was done. By that time, however, Joyce had completed his business. Passing from his first topic with the Commissioners, which had been Colonel Graves and his plot, he had insisted on seeing the King; had compelled the Commissioners late at night on the 3rd to introduce him into his Majesty's bedchamber; had there apologized, talked with his Majesty, answered his questions, and distinctly informed him that he had authority from the Army to carry him away from Holmby. The King, amused and interested, as it seemed, rather than displeased, had taken the night to think over the matter; and by six o'clock next morning he had left his chamber, and was again in colloquy with Joyce, who had his troopers all mounted and ready where they could be seen. His Majesty did not seem disinclined to go, but was naturally inquisitive as to the authority by which Joyce acted. Had he a commission from Fairfax? Mr. Joyce could not say he had. Had he any commission at all? "*There* is my commission, your Majesty," said Joyce at last, pointing to his mounted troopers. "A fair commission and well-written," said the King, smiling: "a company of as handsome, proper gentlemen as ever I saw in my life." In short, as there was no help for it, he supposed he must go. And so, actually, after vain protests and solemn threats by the Commissioners, and especially by General Browne, to all which Joyce listened unmoved, the party did set off at a trot from Holmby, about two o'clock in the afternoon of June 4, with Joyce at their head, and the King in their charge, accompanied by the Commissioners. The Scottish Earl of Dunfermline, who had witnessed much of the affair, had posted off

to London, The Rendezvous at Newmarket was then going on. [Footnote: Original accounts of Joyce's conduct at Holmby and abduction of the King are (1) Letters of the Commissioners from Holmby, June 3 and 4, and from Childersley June 8, addressed to Manchester as Speaker of the Lords, and given in the Lords Journals; (2) Fairfax's Letters to Speaker Lenthall, of June 4 and 7, in the Commons Journal giving Fairfax's account of the information he had collected, and of his own proceedings in consequence; (3) A very curious and interesting contemporary account called "*An Impartial Narration, &c.*," reprinted by Rushworth in five folio pages (VI. 513-517). On reading this paper, one soon finds, from lapses from the third into the first personal pronoun, that the writer is Joyce himself. The narrative, though by a man stiff at the pen and rather elated by the importance of his act, appears perfectly trustworthy, and supplies, many particulars. Clarendon's version of the incident is very loose and inaccurate. He huddles into one day what was really an affair of two, &c.]

Joyce having given the King the option, within a certain extent, of the place to which he would be conveyed, his Majesty himself had suggested Newmarket. Thither, accordingly, they were bound. The evening of the 4th brought them to Huntingdon, where his Majesty rested that night in the mansion-house of Hinchinbrook, once the property of Cromwell's uncle, Sir Oliver, but now of Colonel Edward Montague. Next day (Saturday, June 5) they were again on their march for Newmarket, when they were met, about four miles from Cambridge, by Whalley and his regiment of horse. Joyce, of course, then retired from the management. Whalley, in accordance with his instructions, was willing to convey the King and the Commissioners back to Holmby; but this his Majesty positively declined. Till there should be farther deliberation, therefore, his Majesty was quartered at the nearest convenient house, which chanced to be Sir John Cutts's at Childersley, near Cambridge. Here he remained over Sunday the 6th and Monday the 7th. Meanwhile both in London and at Newmarket the commotion was

boundless. The full news had reached the two Houses on Saturday the 5th. Next day, though it was Sunday, they re-assembled for prayer and business; but nothing practical could be thought of; all was panic, passing into a mood of submissiveness to the Army. The only show of anger, even in words, up to the mark of the occasion, was in a paper given in to a Committee of the two Houses by the Scottish Commissioners, with a speech in their name by the Earl of Lauderdale. The Scottish nation had been insulted; its resentment might be expected; it would co-operate at once with the Parliament for "the rescuing and defending his Majesty's person," &c.! It was easier for the Scottish Commissioners to speak in this strain than for the Parliament to take corresponding action. The opportunity was now wholly with the Army. That they would adopt Joyce's deed, and take the full benefit of it, could not be doubted; or, if it could, the procedure of Fairfax at once put an end to the doubt. On Saturday and Sunday he was lifting his Rendezvous from Newmarket; by Monday the 7th he had brought his army bodily round about Cambridge, so as to encircle the King; and on that day he, Cromwell, Treton, and Hammond, with Whalley, Waller, Lambert, and other chief officers, were assembled in interview with the King and the Commissioners at Childersley House. No persuasion could induce his Majesty to go back to Holmby. Much of the conversation turned on Joyce's daring act and his authority for it; and Joyce, having been called in, underwent a long examination and cross-examination on this point. Very little could be got out of him, except that he had had no commission from Fairfax, and yet that he considered his authority perfectly sufficient. Let the question, he said, be put to the Army itself whether they approved of what he had done, and, if three-fourths or four-fifths did not approve with acclamations, he would be hanged with pleasure. The Commissioners thought Joyce deserved hanging in any case; but the King, who had taken a liking for him, told him that, though it was a great treason he had done, he might consider himself pardoned. Joyce having then withdrawn, and the

King, having consented to remain with the Army, it was agreed that he should be conveyed to Newmarket next day. [Footnote: Lords and Commons Journals of June 5 and 6; Parl. Hist. III. 591-594; Rushworth, VI. 545- 550, with the previously-mentioned "Impartial Narration" of Joyce. To this day nothing more is positively known of the real origin of the scheme of the King's abduction than Joyce allowed himself to reveal. We have Fairfax's own solemn word "as in the presence of God" that he was utterly ignorant of the transaction till it was over; and in the same Letter (June 7) he "dares be confident" the officers and the body of the Army were equally ignorant. Royalist and Presbyterian writers attribute the act directly to Cromwell. It was planned, says Holles, at a meeting at Cromwell's house in London, May 30; and Clarendon and others lay stress on the fact that the very day of Cromwell's flight from London "was the day of Joyce's appearance at Holmby. The Presbyterian Major Huntingdon, Cromwell's own Major, afterwards distinctly declared, Aug. 1648, that Joyce had his instructions from Cromwell, and that Joyce himself averred this to excuse himself from Fairfax's displeasure (Parl. Hist. III. 967-8). I suspect that, whatever Cromwell and Ireton may have privately sanctioned, the thing was managed among the Agitators; and it does not seem impossible that the original design was to seize Graves at Holmby, quash his supposed plotting there with Lord Dunfermline, and take possession of the King for the Army without removing him. As to the abduction, Joyce may have been left a discretion.]

Before we pass on, with the King, into the third stage of his captivity, we have to report briefly the progress that had been made, during his stay at Holmby, in one or two matters of public concern, not directly involved in the feud between the Parliament and the Army.

In April 1647, there had been a vigorous resumption of the Church-question in the Commons, in consequence of the Report of a Committee on

obstructions which had arisen to the Presbyterian settlement. There was great sluggishness all over the country in establishing elderships and classes; returns from counties were deficient; even in London the Provincial Synod had not yet met! To remove these obstructions various orders were passed, the Lords concurring (April 20-29). The most important of these was one for the immediate meeting of the FIRST PROVINCIAL PRESBYTERIAN SYNOD OF LONDON. It met in the Convocation House of St. Paul's, on Monday, May 3, 1647, and consisted of 108 representatives of the London classes or Presbyteries, in the proportion of three ministers and six lay-elders from each. Dr. Gouge, of Blackfriars, was chosen Prolocutor or Moderator of this first Synod, and the term of the Moderatorship and of the Synod itself was to be for half a year, or till November 1647; after which the Second Synod, similarly elected, was to meet, with a new Moderator; and so on, every six months, Synod after Synod, in Presbyterian London for ever. Of the First Synod, under Dr. Gouge, we need only say that they arranged to meet twice a week, and that, with the leave of the Parliament, they transferred their meeting-place from St. Paul's to Sion College. The discussions there may have been a little crippled by the fact that the new Presbyterian Church of England was not yet provided with an authorized *Confession of Faith*. The text of such a document, as prepared by the Westminster Assembly, had been before the two Houses since Dec. 1646 (*antè*, p. 512); the Lords on the 16th of February had urged the Commons in almost reproachful terms to quicken their pace in that business; the Commons on the 22nd of April had at length roused themselves so far as to order the Westminster Assembly to send in the Scriptural proofs which they had been preparing according to a previous order; but, though on the 29th of April these proofs were actually received and the Assembly thanked, it was not till the 19th of May that the Commons did begin, Math printed copies of the Confession before them, to examine the work, paragraph by paragraph. On that day and May 28 they considered

and passed, without division, and apparently without much debate, the three first chapters of the Confession—viz.: Chap. I. *Of the Holy Scriptures* (ten paragraphs); Chap. II. *Of God and the Holy Trinity* (three paragraphs); Chap. III. *Of God's Eternal Decrees*. The next chapter, entitled *Of Creation*, was to be proceeded with punctually on Wednesday next, June 2; but, when that day came, Fairfax's orders for the Army Rendezvous were out, Joyce was prowling about Holmby, and the "Creation" had to be postponed. [Footnote: Commons and Lords Journals of the days given (also a curious entry in Commons Journals of April 27); Rushworth, VI. 476; Neal, III. 356-358.]

A matter on which the Parliament had been intent for some time was the purgation and regulation of the University of Oxford. If Parliamentary purgation had been found necessary for Cambridge three years before (*antè*, pp. 92-96), how much more was this process needed in Oxford, always the more Prelatic University of the two, and recently, as the King's headquarters through the Civil War, more deep-dyed in Prelacy than ever! Where but in Oxford, amid courtiers and cavaliers, had ex-bishops, Anglican doctors, and other dangerous persons, found house-room for the last few years? Whence but from the colleges at Oxford had come all the Prelatic sermons, pamphlets, and squibs against the Parliament, the Covenant, and Presbytery, including the official Royalist newspaper, the *Mercurius Aulicus*, edited by Mr. John Birkenhead and a society of his brother-wits? Accordingly, since the surrender of Oxford in June 1646, punishment for the University had been in preparation. For various reasons, however, it had been administered first in a didactic form. Preachers of the right Presbyterian type had been sent down to Oxford by authority in Aug. 1646; and these had been followed by such a rush of volunteer zealots of all varieties that the loyal Oxford historian, Anthony Wood, shuddered to his life's end at the recollection. "Hell was broke loose," he says, "upon the poor remnant" of the scholars, so that most of them "did either leave the

University or abscond in their respective houses till they could know their doom." That doom came at length in the form of an Ordinance of the two Houses for the Visitation of the University (May 1, 1647). It empowered twenty-four persons, not members of Parliament, among whom were Sir Nathaniel Brent, William Prynne, and thirteen other lawyers, the rest being divines, to visit Oxford, inquire into abuses and delinquencies, impose the Covenant on Heads of Houses, Fellows, &c., and report the results to a standing Committee of both Houses, consisting of twenty-six Peers and fifty-two of the Commons. Under this Ordinance the Visitors issued a citation to the Heads of Houses and others to meet them in the Convocation House at Oxford on the 4th of June. That was the day of the Army Rendezvous and of the King's abduction; beyond which point we do not go at present. Suffice it to say that there was to be a most strenuous resistance by the Oxonians, headed by their Vice-Chancellor Dr. Fell. [Footnote: Wool's *Fasti Oxon.* II 100-1 and 106-7; *Lords Journals*, May 1; Neal, III. 395 *et seq.*]

THIRD STAGE OF THE CAPTIVITY: THE KING WITH THE ARMY, JUNE-NOV. 1647.

Effects of Joyce's Abduction of the King—Movements of the Army: their Denunciation of Eleven of the Presbyterian Leaders: Parliamentary Alarms and Concessions—Presbyterian Phrenzy of the London Populace: Parliament mobbed, and Presbyterian Votes carried by Mob-law: Flight of the two Speakers and their Adherents: Restoration of the Eleven—March of the Army upon London: Military Occupation of the City: The Mob quelled, Parliament reinstated, and the Eleven expelled—Generous Treatment of the King by the Army: His Conferences with Fairfax, Cromwell, and Ireton—The Army's *Heads of Proposals*, and Comparison of the same with the *Nineteen Propositions* of the Parliament—King at Hampton Court, still

demurring privately over the *Heads of Proposals*, but playing them off publicly against the *Nineteen Propositions*: Army at Putney—Cromwell's Motion for a Recast of the *Nineteen Propositions* and Re-application to the King on that Basis: Consequences of the Compromise: Intrigues at Hampton Court: Influence of the Scottish Commissioners there: King immoveable—Impatience of the Army at Putney: Cromwell under Suspicion: New Activity of the Agitatorships: Growth of Levelling Doctrines among the Soldiers: *Agreement of the People*—Cromwell breaks utterly with the King: Meetings of the Army Officers at Putney: Proposed Concordat between the Army and Parliament: The King's Escape to the Isle of Wight,

The effects of Joyce's abduction of the King from Holmby may be summed up by saying that for the next five months the Army and the Independents were in the ascendant, and the Presbyterians depressed. There were to be vibrations of the balance, however, even during this period.

What the Presbyterians dreaded was an immediate march of the Army upon London, to occupy the city and coerce Parliament. With no wish to resort to such a policy so long as it could be avoided, the Army-leaders, for a time, kept moving their head-quarters from spot to spot in the counties north and west of London, now approaching the city and again receding, and paying but slight respect to the injunctions of the Parliament not to bring the Army within a distance of forty miles. On the 10th of June there was a Rendezvous 21,000 strong at Triplow Heath, near Royston; thence, on the 12th, they came to St. Alban's, only twenty miles from London, spreading such alarm in the City by this movement that guards were posted, shops shut, &c.; and they remained at St. Alban's till the 24th, when they withdrew to Berkhamstead. Through this fortnight negotiations had been going on between the Army-leaders and Parliamentary Commissioners who had been sent down expressly; letters had also passed between the Army-

leaders and the City; and certain general "Representations" and "Remonstrances" had been sent forth by the Army, penned by Ireton and Lambert, but signed by Rushworth in the name of Fairfax and the whole Council of War. In these it was distinctly repeated that the Army had no desire to overturn or oppose Presbyterian Church- government as it had been established, and only claimed Liberty of Conscience under that government; but there were also clear expressions of the opinion that a dissolution of the existing Parliament and the election of a new one on a more popular system ought to be in contemplation. Nay, till the time should come for a dissolution, one thing was declared essential. In order that the existing Parliament might be brought somewhat into accord with public necessities and interests, and so made enduring, it must be purged of its peccant elements. Not only must Royalist Delinquents who still lurked in it be ejected, but also those conspicuous Presbyterian enemies of the Army who had occasioned all the recent troubles! That there might be no mistake, eleven such members of the House of Commons were named—to wit, Holles, Stapleton, Sir William Lewis, Sir John Clotworthy, Sir William Waller, John Glynn, Esq., Anthony Nichols, Esq. (original members), and Sir John Maynard, Major-general Massey, Colonel Walter Long, and Colonel Edward Harley (Recruiters). This Army denunciation of eleven chiefs of the Commons, dated from St. Alban's June 14, had greatly perplexed the House; but in the course of their debates on it they recovered spirit, and in a vote of June 25 they stood out for Parliamentary privilege. As there had been votes of the two Houses about bringing the King to Richmond for a treaty, and other more secret signs of Presbyterian activity, the Army then again applied the screw. They advanced to Uxbridge, some of the regiments showing themselves even closer to the City (June 26). This had the intended effect. The eleven consented to withdraw from their places in the Commons, for a time at least (June 26); votes favourable to the Army were passed by both Houses (June 26-29); and, though these were mingled

with others not quite so satisfactory, the Army had no pretext for a severer pressure. They withdrew, therefore, to Wycombe in Bucks. Here, at a Council of War (July 1), a Commission of ten officers (Cromwell, Ireton, Fleetwood, Lambert, Rainsborough, Sir Hardress Waller, Rich, Robert Hammond, Desborough, and Harrison) was appointed to treat farther with new Commissioners of the Parliament (the Earl of Nottingham, Lord Wharton, Vane, Skippon, &c.). Then surely all seemed in a fair way. [Footnote: Parl. Hist. III. 591-662; Rushworth, VI. 545-597; Godwin, II. 323-354; Carlyle's Cromwell, I. 226-232.]

While Parliament, however, was thus yielding to the Army, the dense Presbyterianism of the City and the district round was more reckless and indignant. Whatever Parliament might do, the great city of London would be true to its colours! Accordingly, in addition to various Petitions already presented to the two Houses from the Lord Mayor, Aldermen, and Common Council, all of an anti-Army character, a new one in the same sense, but purporting to be simply "for payment of the soldiery and a speedy settlement of the Nation," was presented July 2. A public and responsible body like the Common Council could express itself only in such general terms; but the Presbyterian "young men and apprentices of the City," the number of whom was legion, and whose ranks and combinations could easily be put in motion by the higher powers, were able to speak out boldly. On the 14th of July a Petition, said to be signed by 10,000 such, was presented to both Houses, praying for strict observance of the Covenant, the defence of his Majesty's person and just power and greatness, the disbandment of the Army, the thorough settlement of Presbyterian Government, the suppression of Conventicles, and defiance to the crotchet of Toleration. This audacious document having been received even with politeness by the Lords, and only with cautious reserve by the Commons, the City was stirred through all its Presbyterian depths, made no doubt it could control Parliament, and grew more and more violent to that end.

Crowds came daily to Palace Yard and Westminster Hall, signifying their anger at the seclusion of the Presbyterian Eleven, and at all the other concessions made to the Army and the Independents. What roused the City most, however, was the acquiescence of Parliament in a demand of the Army that the Militia of London should be restored to the state in which it had been before the 27th of April last. On that day the Common Council, in whose trust the business was, had placed the direction of the Militia in a Committee wholly Presbyterian, excluding Alderman Pennington and other known Independents; and what was desired by the Army was that Parliament, resuming the power, should bring back the Independents into the Committee. An Ordinance to that effect had no sooner passed the two Houses,—carried in the Commons by a majority of 77 to 46 (July 22), and accepted by the Lords without a division (July 23), —than the City broke out in sheer rebellion. By this time there had been formed in the City and its purlieus a vast popular association, called "A Solemn Engagement of the Citizens, Officers, and Soldiers of the Trained Bands and Auxiliaries, Young Men and Apprentices of the Cities of London and Westminster, Sea-Commanders, Seamen, and Watermen, &c. &c.," all pledged by oath to an upholding of the Covenant and the furthering of a Personal Treaty between King and Parliament, without interference from the Army. A copy of this Engagement, said by Presbyterian authorities to have been signed by nearly 100,000 hands, with an accompanying Petition in the same sense, which had been addressed by the Engagers to the Lord Mayor, Aldermen, and Common Council, was brought before both Houses on the 24th of July. They declared it insolent and dangerous, and adjudged all who should persevere in it guilty of high treason. That day was Saturday, and the next day's Sabbath stood between the Houses and the wrath they were provoking. But on Monday the 26th they were called to a mighty reckoning. A Petition came in upon them from the Lord Mayor, Aldermen, and Common Council, praying for a revocation of the Militia Ordinance of the

23rd, and enclosing Petitions to the same effect which the Common Council had received from "divers well-affected Citizens" and from the "Young Men, Citizens and others, Apprentices." That was not all. Another Petition came in, from "the Citizens, Young Men, and Apprentices" themselves, complaining of the "pretended Declaration" of the 24th against their Engagement, and of the seclusion of the Eleven. Even that was not all. While the Petitions were under consideration, the Young Men, Citizens, and Apprentices, with Seamen, Watermen, Trained-Bands, and others, their fellow-Engagers, were round the Houses in thousands in Palace Yard, and swarming in the lobbies, and throwing stones in upon the Lords through the windows, and kicking at the doors of the Commons, and bursting in with their hats on, all to enforce their demands. The riot lasted eight hours. Speaker Lenthall, trying to quit the House, was forced back, and was glad to end the uproar by putting such questions to the vote as the intruders dictated. The unpopular Ordinance of the 23rd and the Declaration of the 24th having thus been revoked under mob- compulsion, the Houses were allowed to adjourn. They met next day, Tuesday the 27th, but only to adjourn farther to Friday the 30th. [Footnote: Parl. Hist. III. 664-723; Lords and Commons Journals; Whitlocke, II. 182-185.]

When the Houses did re-assemble on that day, their appearance was most woe-begone. Neither Manchester, the Speaker of the Lords, was to be found, nor Lenthall, the Speaker of the Commons; there were but eight Lords in the one House; and the benches in the other were unusually thin. Nevertheless they proceeded in all due form. Each House elected a new Speaker—the Peers Lord Willoughby of Parham for the day, and the Commons Henry Pelham, Esq., M.P. for Grantham, in permanence; each took notice of its absentees, and commanded their immediate re-attendance—the Commons also restoring the Eleven, by special enumeration, to their places; and each went on for six or seven days, transacting business or trying to transact it. A good deal of the business related to military

preparations to make good the position the City had taken. Sir William Waller and General Massey, two of the Eleven, were added to a Committee for consultation with the City Committee of the Militia; this City Committee was empowered to choose a commander-in-chief and other commanders of the London forces; and, when the Committee named Massey for the command-in-chief, and Waller for the command of the Horse, the Houses gave their cordial assent. In short, the two Houses, as they met during this extraordinary week from July 30 to Aug. 5, consisted mainly of a forlorn residue of the most fanatical Presbyterians in each, regarding the riots of the 26th as a popular interposition for right principles, and anxiously considering whether, with such a zealous London round them, and with Massey, Waller, Poyntz, and perhaps Browne, for their generals, they might not be able to face and rout the Army of Fairfax. There may, however, have been some who remained with the residuary Houses on lazier or more subtle principles. The restored Eleven, with Sir Robert Pye, Sir Robert Harley, and a few other typical Presbyterians, certainly led the business of the Commons in this extraordinary week; but among those that remained in that House how are we to account for Selden? [Footnote: Lords and Common Journals, July 30-Aug. 5, 1647.]

The City-tumults, intended as such a brave stroke for Presbytery, had been, in fact, a suicidal blunder. Manchester and Lenthall, the missing Speakers, though themselves Presbyterians, had withdrawn in disgust from the dictation of a London mob of mixed Presbyterian young men and Royalist intriguers, and had been joined by about fourteen Peers, some of them also eminently Presbyterian, and a hundred Commoners, mostly Independents. Deliberating what was to be done, these seceders had resolved to place themselves under the protection of Fairfax, make common cause with him and the Army, and act as a kind of Parliamentary Council to him until they could resume their places in a Parliament free from mob-law. Meanwhile Fairfax, acting for himself, was on the march towards London.

On the day of the tumults in London his headquarters had been as far off as Bedford; but, starting thence on the 30th of July, he had reached Colnbrook on Sunday Aug. 1. Next day he came on to Hounslow; and here it was that, at an imposing Review of his Army, horse, foot, and artillery, over 20,000 strong, the seceding Peers and Commons came in, and were received by the soldiers with acclamations, and cries of "*Lords and Commons, and a Free Parliament!*" Only ten miles now intervened between the Army and the Common Council of the City of London consulting with their Militia commanders at Guildhall, and somewhat less than that distance between the Army and the presumptuous fragment of the two Houses at Westminster. Both these bodies, but especially the citizens, had begun to come to their senses. The tramp, tramp, of Fairfax's approaching Army had cooled their courage. At Guildhall, indeed, as Whitlocke tells us, whenever a scout brought in the good news that the Army had halted, the people would still cry "*One and all;*" but the cry would be changed into "*Treat, Treat*" a moment afterwards, when they heard that the march had been resumed. At Hounslow, therefore, Fairfax received the most submissive messages and deputations, with entreaties to spare the City. His reply, in effect, was that the City need fear no unnecessary harshness from the Army, but that the late "prodigious violence" had brought things into such a crisis that the Army must and would set them right. Nothing more was to be said: the rest was action. On the morning of Wednesday, Aug. 4, a brigade of the Army under Rainsborough, which had been despatched across the Thames to approach London on the south side, was in peaceable possession of the borough of Southwark, and had two cannon planted against the fort on London Bridge till the citizens thought good to yield it up. That day and the next other defences on the Thames, eastwards and westwards, were seized or surrendered. On Friday the 6th, Fairfax with his main Army, all with laurel-leaves in their hats, and conducting the Lords and Commons in their coaches, marched in from Hammersmith by Kensington to Hyde Park,

where the Lord Mayor and Aldermen joined them, and so to Charing Cross, where the Common Council made their obeisances, and thence to Palace Yard, Westminster. There the two Speakers were ceremoniously reinstated, the Houses properly reconstituted, and Fairfax and the Army thanked. Finally, on Saturday the 7th, the grand affair was wound up by another deliberate march of the Army through the main streets of the City itself, all the more impressive to the beholders from the perfect order kept, and the abstinence from every act, word, or gesture, that could give offence. The Tower was made over to Fairfax on the 9th; and his head-quarters for some time continued to be in London or its immediate neighbourhood. [Footnote: Parl. Hist. III. 723-756; Whitlocke, II, 187-193; Godwin, II. 371-387.]

By the Army's march through the City events were brought back so far into the channel of regular Parliamentary debate, but with Independency naturally more powerful than ever. All acts done by the two Houses during the week's Interregnum of riot were voted null; and there were measures of retaliation against those who had been most prominent in that Interregnum. Six of the culpable Eleven—viz. Holles, Stapleton, Sir William Waller, Clotworthy, Lewis, and Long—having fled abroad together, had been chased at sea and overtaken, but let escape; and Stapleton had died at Calais immediately after his landing. Massey had gone to Holland, with Poyntz; but Glynn and Maynard, remaining behind, were expelled the House, impeached, and sent to the Tower (Sept. 7). Seven out of the nine Peers who had formed the Lords' House through the wrong-headed week were similarly impeached and committed—viz. the Earls of Suffolk, Lincoln, and Middlesex, and Lords Willoughby, Hunsdon, Berkeley, and Maynard. The Lord Mayor and four Aldermen were disabled, impeached, and imprisoned (Sept. 24); several officers of the City Trained Bands were called to account; and one result of inquiries respecting culprits of a lower grade was an order by the Commons (Sept. 28 and Oct. 1) for the arrest and indictment for high treason of twelve persons, most of them young men and

apprentices, ascertained to have been ringleaders in the dreadful outrage on the two Houses on the 26th of July. As there was a "John Milton, junior" among these young rioters, one would like to have known whether they were found and how they fared. In truth, however, nothing very terrible was intended by such indictments and arrests. As the Army's treatment of the conquered City had been studiously magnanimous, so what was chiefly desired by the leaders now in power was that, by the removal from public sight of persons like the Seven in the one House, the Eleven in the other, and their City abettors, there might be a Parliament and Corporation reasonably in sympathy with the Army. As respected the Parliament, this object had been attained. From the reinstatement of the two Houses by Fairfax, Aug. 6, on through the rest of that month and the months of September and October, what we see at Westminster is a small Upper House of from half-a-dozen to a dozen Peers, most of them moderately Presbyterian, but several of them avowed Independents, co-operating with a Commons' House from which the Presbyterians had withdrawn in large numbers, so that the average voting-attendance ranged from 90 to 190, and the divisions were mainly on new questions arising among the Independents themselves. [Footnote: Lords and Commons Journals of dates given, and generally from Aug. 6 to the beginning of November.— The Peers who formed the Lords' House through this period were the Earl of Manchester (Speaker), the Earls of Northumberland, Pembroke (whose error in remaining in the House through the week of intimidation had been condoned), Kent, Salisbury, Mulgrave, Nottingham, and Denbigh, Viscount Saye and Sele, and Lords Wharton, Grey of Wark, Howard of Escrick, and Delawarr, with occasionally Lords Montague, North, and Herbert of Cherbury. In the Commons I find one division (Sept. 25) when only 41 voted, and another (Nov. 3) when the number rose to 264. At a call of the House, Oct. 9, note was taken of about 240 absentees; and of these 59,

whose excuses were not considered sufficient, were fined 20_l._ each. A good few of these were Independents.]

It was on these two Houses that the duty devolved of hammering out, if possible, a new Constitution for England that should satisfy the Army and yet be accepted by the King.

It had been a halcyon time with his Majesty since he had come into the keeping of the Army. He was still a captive, but his captivity was little more than nominal. Subject to the condition that he should accompany the Army's movements, and not range beyond their grasp, he had been allowed to vary his residence at his pleasure. From his own house or hunting- lodge at Newmarket, whither he had gone from Childersley (June 7), he had made visits in his coach or on horseback to various noblemen's houses near; thence he had gone to his smaller hunting-seat at Royston; thence (June 26) to the Earl of Salisbury's mansion at Hatfield; thence (July 1) to Windsor; thence (July 3) to Lord Craven's at Caversham, near Beading; thence (July 15) to Maidenhead; thence (July 20) to the Earl of Bedford's at Woburn; thence to Latimers in Bucks, a mansion of the Earl of Devonshire; and so by other stages, always moving as the Army moved, till, on the 14th of August, he was at Oatlands, and on the 24th at his palace of Hampton Court. At all these places the freest concourse to him had been permitted, not only of Parliamentary noblemen and gentlemen, and Cambridge scholars desiring to pay their respects, but even of noted Royalists and old Councillors, such as the Duke of Richmond. His three young children—the Duke of York, the Princess Elizabeth, and the Duke of Gloucester—had been brought to see him, in charge of their guardian the Earl of Northumberland, and had spent a day or two with him at Caversham, to the unbounded delight of the country-people thereabouts. But, what was the most agreeable change of all for Charles, he had been permitted, since his first coming to the Army, to have his own Episcopal chaplains, Dr.

Hammond, Dr. Sheldon, and others, in constant attendance upon him. These civilities and courtesies had been partly yielded to him by the personal generosity of the Army chiefs, Fairfax, Cromwell, and Ireton, acting on their own responsibility, partly procured for him by their mediation with the Parliament. There had been grumblings in the Houses, indeed, at the too great indulgence shown to his Majesty in his choice of chaplains and other company. [Footnote: Herbert's Memoirs (ed. 1813), pp. 37-49; Godwin, II. 349-361.]

What one dwells on as most interesting in the changed circumstances of his Majesty is that, amid all the concourse of people round him, it was Fairfax, Cromwell, Ireton, and the other Army chiefs, that could now come closest to him for purposes of real conference. They were now, indeed, frequently with him, conversing with him, studying him face to face, considering within themselves whether it would be possible after all to come to an arrangement with that man. In their interviews with him they were most studious of external respect, though Cromwell and Ireton, it seems, never offered to follow Fairfax in the extreme ceremony of kissing the royal hand. The King, on his side, showed them every attention, and would be "sometimes very pleasant in his discourse with them." What was to come of it all? [Footnote: Herbert, 36, 37; Clar. 614.]

The meetings of the Army-chiefs with Charles were not purposeless. Since he had been in their keeping they had been carefully drawing up, and putting into exact expression, certain *Heads of Proposals*, to be submitted both to him and to Parliament as a basis for Peace, better in its own nature, and certainly more to the mind of the Army, than those *Nineteen Propositions* of July 1646 which had hitherto been the vexed subject of debate. What these *Heads of Proposals* were, or came to be in their complete shape, we know from a final redaction of them put forth on the 1st of August when the Army was at Colnbrook on its march upon refractory

London. The document is signed by Rushworth, "by the appointment of his Excellency Sir Tho. Fairfax and the Council of War," but the penning is Ireton's, and probably much of the matter too. It is a document of consummate political skill and most lawyerlike precision. It consists of sixteen Heads, some of them numerically subdivided, each Head propounding the Army's desires on one of the great questions in dispute between the nation and the King. Biennial Parliaments in a strictly guaranteed series for the future, each to sit for not less than 120 days and not more than 240, and the Commons House in each to have increased powers and to be elected by constituencies so reformed as to secure a fair and equable representation of population and property all over England: this is the substance of the first Head. Entire control by Parliament of the Militia for ten years, with a voice in subsequent arrangements, and farther, for security on this matter, the exclusion from places of public trust for the next five years of persons who had borne arms against the Parliament, unless in so far as Parliament might see fit to make individual exceptions: such is the provision under the second Head. Of the remaining Articles, one or two refer to Ireland, and others to law-reforms in England. Articles XI.-XIII. treat of the Religious Question, and are remarkably liberal. They say nothing about Episcopacy or Presbytery as such, but stipulate for the abolition of "all coercive power, authority and jurisdiction of Bishops and all other ecclesiastical officers whatsoever extending to any civil penalties upon any," and also for the repeal of all Acts enforcing the Book of Common Prayer, or attendance at church, or prohibiting meetings for worship apart from the regular Church; and they expressly stipulate for non-enforcement of the Covenant on any. In other words, the Army, as a whole, neither advised an Established Church, nor objected to one, nor would indicate a preference for Presbytery or Episcopacy in the rule of such a Church, but stood out, in any case and all cases, for Liberty of Religious Dissent. How far they went on this negative principle may be judged from

the fact that they do not haggle on even the Roman Catholic exception, but hint that, so far as it might be necessary to discover Papists and Jesuits and prevent them from disturbing the State, other means than enforced church-attendance might be devised for that end. Article XIV. proposes the restoration of the King, Queen, and their issue, to full "safety, honour, and freedom," when the preceding Articles shall have been settled, and with no limitation of the regal power except as therein provided. The remaining two Articles appear therefore supernumerary. One refers to Compositions by Delinquents, and urges a generous relaxation of the rates on such, so as not to ruin people for past faults. So also the last Article recommends a general Act of Oblivion of past offences, and a restoration of all Royalists to their full civil rights and privileges, after composition, or, in cases of good desert, without composition, with only the exception provided in the second Article.

These *Heads of Proposals* of the Army strike one as not only inspired by a far wiser and deeper political philosophy than the *Nineteen Propositions* of the Parliament, but really also as magnanimously considerate of the King in comparison. They are so generous that we can account for them only by supposing that the Army-chiefs were really prepared for a fresh trial of government by King, Lords, and Commons, with the security against renewed despotism furnished by the Article about the Militia, combined with the Article for a succession of Biennial Parliaments. Two things are to be observed, however. One is that the *Heads of Proposals* were tendered for the English kingdom alone, "leaving the terms of Peace for the kingdom of Scotland to stand as in the late [Nineteen] Propositions of both kingdoms, until that kingdom shall agree to any alteration." But farther, even as respected England, there was no promise by the Army that the King could avoid the establishment of Presbytery. Things had gone so far in that direction, and the majority seemed so determined in it, that the Army neither could nor did desire to resist a Presbyterian establishment, were it

persevered in by Parliament. Only they were resolved that the creed, discipline, or worship of that establishment, or of any other, should not be compulsory either on the King or on any of his subjects. [Footnote: See the *Heads of Proposals* complete in Parl. Hist. III. 738-745, and Rushworth, VII. 731-736 (the paging in this vol. beginning p. 731). Sufficient attention has not been paid by historians, except perhaps Godwin (II. 373-378), to this great document. Even Godwin resorts to the extraordinary hypothesis the Proposals were not in good faith, but only a Machiavellian device of Cromwell and Ireton for detaching Charles from the Presbyterians and bringing him over to the Army, who could then laugh at him and the Proposals too. Godwin remarks in particular that, as Ireton, who penned the Proposals, was "the most inflexible Republican that ever existed," his self-repression in drawing up such a document, accepting restored Royalty, and casting away the chance of a Republic, must have been colossal. In Royalist historians of the seventeenth century this kind of reasoning was natural, but one is surprised to find it affecting a mind so able and candid as Godwin's. There is no reason to doubt that, when the *Heads of Proposals* were settled, they expressed the real and deliberate conclusions of the Army chiefs as to those terms the honest acceptance of which by Charles would satisfy them. Nay, the publication of them was a service to Charles, by instructing the nation generally on a better means of dealing with him than the Nineteen Propositions. See Denzil Holles's amazed opinion of them as "a new platform of government, an Utopia of their own." (Memoirs, p. 176 *et seq.*). As for Ireton's suppression of his Republicanism, Ireton's Republicanism, like other people's, probably *grew*.]

The Army Proposals, or the main substance of them, had been the subject of conversations between Charles and the Army-chiefs, and even of a formal conference between him and them, on or about July 24, when he was at Woburn. He had fumed and stormed at the Proposals, telling the deputation he would have Episcopacy established by law, the Army could

not do without him, its chiefs would be ruined if they had not his support, and so on. The secret of this behaviour seems to have been that Charles was at that moment building great hopes on the recent demonstrations of the City of London in favour of a Personal Treaty with him in the Presbyterian interest, and was even aware of the attempted revolution then about to break forth in the form of the London tumults. It says much for the forbearance of the Army-leaders that they did not withdraw the Proposals after this first rejection of them by the King. On the contrary, they were resolved that the King should still have the option of agreeing with them; they modified them in some points to suit him; and they were willing that the whole world should know what they were. Hence the formal redaction of them into the Paper of Aug. 1, at Colnbrook. Copies of the Paper were then and there delivered to the Parliamentary Commissioners with the Army; and it was with that Paper carried before it that the Army continued its march into London. Accordingly, on the first day of the meeting of the reconstituted Houses (Aug. 6), the Army's *Heads of Proposals* were officially tabled in both (in the Commons by Sir Henry Vane), in order that the Houses might, if they saw fit, adopt them in future dealings with the King, instead of the *Nineteen Propositions*. [Footnote: Major Huntingdon's Paper accusing Cromwell, Parl. Hist. III. 970; Sir John Berkley's *Memoirs of Negotiations* (1699), reprinted in Harleian' Miscellany, IX 466-488; Godwin (quoting Bamfield), II. 378-380; Parl. Hist. III. 737; Commons Journals, Aug. 6. There is evidence that, between the submission of the Proposals to the King at Woburn on or about July 24 and their complete redaction for publication Aug. 1; additions had been made to accommodate the King. Such additions may have been the two supernumerary Articles providing for lenity to compounders and a general Act of Oblivion.]

September and October were the months of the complicated negotiation thus arising. The King was then at Hampton Court, whither he had removed Aug. 24, and where he was surrounded by such state and luxury that it

seemed as if the old days of Royalty had returned. Not only had he his chaplains about him, and favourite household servants brought together again from different parts of England; not only could he ride over when he liked to see his children at the Earl of Northumberland's seat of Sion House; but, as if an amnesty had already been passed, Royalists of the most marked antecedents, some of them from their places of exile abroad, were permitted to gather round him, permanently or for a day or two at a time, so as to form a Court of no mean appearance. Such were (in addition to the Duke of Richmond) the Marquis of Hertford, the Earls of Southampton and Dorset, Lord Capel from Jersey, Sir John Berkley and Mr. Legge and Mr. Ashburnham from France, and, not least, the Marquis of Ormond, now at last, by his surrender of Dublin to Parliament, free from his long duty in Ireland. Save that Colonel Whalley and his regiment of horse kept guard at Hampton Court, "captivity" was hardly now a word to be applied to Charles's condition. Whalley's horse, it is true, were but the outpost at Hampton Court of the greater force near at hand. On the 27th of August, or three days after the King had removed to Hampton Court, the Army's headquarters had been shifted to Putney, and they continued to be at Putney all the while the King was at Hampton Court. From Hampton Court to Westminster is twelve miles, and Putney lies exactly half way between; and the complex problem then trying to work itself out may be represented to the memory by the names and relative positions of these three places. At Westminster was the regular Parliament, moving for that policy which could command the majority in a body of mixed Presbyterians and Independents of various shades, with Army officers among them; at Putney midway was the Army, containing its military Parliament, of which the generals and colonels were the Upper House, while the under-officers, with the regimental agitators, were the Commons; and at Hampton Court, in constant communication with both powers, and entertaining proposals from both, was Charles with his revived little Court. Scotland in the distance

must not be forgotten. Her emissaries and representatives were on the scene too, running from Parliament to Hampton Court and from Hampton Court to Parliament, as busy as needles, but rather avoiding Putney. [Footnote: Rushworth, VII. 789 *et seq.*; Herbert, 47-51.]

A very considerable element, indeed, in the now complex condition of affairs was the interference from Scotland. As the Presbyterian Rising in London had occasioned great joy in Scotland, so the collapse of that attempt had been a sore disappointment. Baillie's comments, written from Edinburgh, where he chanced to be at the time, are very instructive. The impression in Edinburgh was that there had been great cowardice among the London Presbyterians, and stupid mismanagement of a splendid opportunity. Had the Parliament put on a bolder front, had the City stood to their "brave Engagement," had Massey and Waller shown "any kind of masculine activity," and above all had not Mr. Stephen Marshall and seventeen of the London ministers with him separated themselves at the critical moment from the body of their brethren, and put forth a childish Petition disavowing all sympathy with the tumults, what a different ending there might have been! As it was, "a company of silly rascals" (Fairfax's Army to wit) had "made themselves masters of the King and Parliament and City, and by them of all England." So wrote Baillie privately, and the public organs of Scottish opinion had spoken out to the same effect. There had been Letters and Remonstrances from the Scottish Committee of Estates to the reconstituted English Parliament, severely criticising the general state of affairs in England, and complaining especially of the monstrous insolence of the Army in possessing themselves of the King, and the expulsion at their instance of the eleven Presbyterian leaders from the Commons. Were not these acts, though done in England, outrages on Scotland as well, and against the obligations of the Covenant? The England with which Scotland had consented to league herself by the Covenant was a very different England from that which seemed now to be coming into fashion—an

England in which constituted authority seemed to be at an end, and an Army ruled all! And what an Army! An Army of Sectaries, driving on for a principle of Liberty of Conscience which would lead to a "Babylonish confusion," and impregnated also (as could be proved by extracts from their favourite pamphlets) with ideas actually anti-monarchical and revolutionary! So, in successive letters, from Aug. 13 onwards, the Scottish Government remonstrated from Edinburgh, intermingling political criticisms with special complaints, which they had a better right to make, of insults done by officers and soldiers of Fairfax's Army to the Scottish envoys in England, and especially to the Earl of Lauderdale. Nor was the Scottish Kirk more backward. The regular annual Assembly of the Kirk had met at Edinburgh Aug. 4; and in a long document put forth by that body Aug. 20, in the form of "A Declaration and Brotherly Exhortation to their Brethren of England," the anarchy of England on the religious question is largely bewailed. "Nevertheless," they say, after recounting the steps of the happy progress made by England to conformity with Scotland in one and the same Presbyterian Church-rule, "we are also very sensible of the great and imminent dangers into which this common cause of Religion is now brought by the growing and spreading of most dangerous errors in England, to the obstructing and hindering of the begun Reformation: as namely (besides many others) Socinianism, Arminianism, Anabaptism, Antinomianism, Brownism, Erastianism, Independency, and that which is called, by abuse of the word, Liberty of Conscience, being indeed liberty of error, scandal, schism, heresy, dishonouring God, opposing the truth, hindering reformation, and seducing others; whereunto we add those Nullifidians, or men of no religion, commonly called Seekers." [Footnote: Baillie, III. 9- 22; Acts of Scottish General Assembly of 1647; Rushworth, VII. 768-771; and correspondence of Scottish Commissioners in Lords Journals of Aug. and Sept. 1647. For the escapade of Stephen Marshall and his friends, referred to by Baillie, see Neal, III. 375-6. While these few of

the city ministers disavowed the tumults, the Westminster Divines as a body merely mediated in a neutral style to avoid bloodshed (Commons Journals, Aug. 2).]

Great as was the influence of the Army on the Parliament it had reinstated, the extreme Tolerationism of the Army Proposals would have made their chance hopeless with that body even if left to itself. But with such blasts coming from Scotland, and repeated close at hand by the key-bugles of Lauderdale and the other Scottish Commissioners in London, the Parliament did not dare even to consider the Proposals. To have done so would have been at once to sever the two nations, enrage the Scots, and drive them to no one could tell what revenge. To fall back on the Nineteen Propositions was, therefore, the only possible policy. Accordingly, on the 7th of September, the Nineteen Propositions, with but one or two slight alterations, were again ceremoniously tendered to Charles on the part of the English Parliament and the Scottish Commissioners conjointly. They desired his answer within six days at the utmost. "Six or sixteen, it was equal to him," he said to the Earl of Pembroke, who presented them; and in fact his Majesty's Answer, dated Hampton Court, was returned Sept. 9. It was that he retained all his former objections to those now familiar Propositions, and that, having seen certain "Proposals of the Army," to which "he conceived his two Houses not to be strangers," he was of opinion that *they* would be "a fitter foundation for a lasting Peace." In other words, though Charles had rejected the Army Proposals when first offered to him, he now played them against the Nineteen Propositions, ironically asking the Parliament not to persevere in terms of negotiation that might be regarded as obsolete, but to agree to a Treaty with him on the much better terms which had been suggested by their own Army, but which apparently they wanted to keep out of sight. This for England; and, for what concerned Scotland, he would willingly have a separate Treaty with the Scottish Commissioners, if they chose, on those parts of the Nineteen Propositions

which were of interest to the Scottish nation. [Footnote: Rushworth, VII. 796, 802-3, and 810-11; and Lords Journals, Sept. 8 and Sept. 14.]

Parliament was in a dilemma. Was Charles to be taken at his word? Were the Nineteen Propositions to be flung overboard, and the Army Proposals publicly brought forward instead? The Presbyterian dread of Toleration, if not Presbyterianism itself, was still too strong in the Parliament, and the prospect of a rupture with the Scots was still too awful with many, to admit of such a course. What was actually done, after twelve days of hesitation and consultation, appears from three entries in the Commons Journals of Sept. 21, Sept. 22, and Sept. 23, respectively. Sept. 21: "*Resolved*, That the King, in this Answer of the 9th Sept., given at Hampton Court, hath denied to give his consent to the Propositions: "such is the first entry. The second, on the following day, runs thus:" The question being put, That the House be forthwith resolved into a Grand Committee, to take into consideration the whole matter concerning the King, according to the former order, the House was divided. The *Yeas* went forth: (Lieut.-General Cromwell, Sir John Evelyn of Wilts, tellers for the *Yea*) with the *Yea* 84; (Sir Peter Wentworth, Colonel Rainsborough, tellers for the *No*) with the *No* 34; so that the question passed with the affirmative." On the following day, accordingly, we find "The question was propounded, That the House will once again make application to the King for those things which the Houses shall judge necessary for the welfare and safety of the kingdom; and, the question being put, Whether this question shall be now put, the House was divided: (Sir Arthur Haselrig, Sir John Evelyn of Wilts, tellers for the *Yea*) with the *Yea* 70; (Sir Peter Wentworth, Colonel Marten, tellers for the *No*) with the *No* 23: so that the question passed with the affirmative." As far as one can construe what lies under these entries, the state of the case was this:—By the King's new rejection of the Nineteen Propositions (the Army-chiefs aware of the rejection beforehand and much approving [Footnote: Berkley's Memoirs, Harl. Misc. IX. 478. "We [Berkley, Ashburnham, &c.] gave our

friends in the Army a sight of this [the King's] Answer the day before it was sent, with which they seemed infinitely satisfied.")), the Presbyterians were checkmated. Unless they would vote the King dethroned, they had no move left. The power of moving then lay with the Independents. Now the more strenuously Republican of these, including Colonel Rainsborough and Henry Marten, were for not using the power, either because they desired to break with Charles entirely, or because they wanted to shut up him and Parliament together to the Army Proposals absolutely. Cromwell, however, though faithful to the Army Proposals as the plan ideally best, was not prepared to take the responsibility of bringing on the crash at once. Might there not be a temporizing method? Might not the two Houses be asked to cease thinking of the Nineteen Propositions as a perfected series to which they were bound in all its parts and items, and to go over the whole business afresh, selecting the most essential questions of the Nineteen Propositions and expressing present conclusions on these in new Propositions to be offered to the King? Haselrig, Evelyn of Wilts, and others of the Independent leaders, agreeing with this view, and a good few of the Presbyterians perhaps accepting it gladly in their dilemma, Cromwell divided the Commons upon it, and obtained his decisive majority of Sept. 22, confirmed by the as decisive majority of the next day. [Footnote: Commons Journals of days named.]

The Lords having concurred, Sept. 30, in this motion for a new application to the King, and the Scottish Commissioners having been duly informed, the two Houses went on busily, framing the new Propositions, and, where any differences arose, adjusting them at conferences with each other. By the 28th of October a good many important propositions had been agreed to; but, on the whole, one does not see that the terms for Charles were to be much easier by this route than they had been by the other. In one matter, however, the Commons *had* proposed a change. On the 13th of October, a committee having reported on that one of the intended

Propositions which concerned Church-government, and the resolution before the House being that the King be asked to give his consent to the Acts for settling the Presbyterian Government, Cromwell had forced the House to three divisions. First he tried to limit the term of such settlement to three years, and lost in a small House by a minority of 35 to 38; then he insisted that *some* limit of time should be mentioned, and won by 44 to 30; then he proposed that seven years should be the term, and lost by 33 to 41, Finally it was agreed that the Presbyterian Settlement to which the King's consent should be asked should be till the end of the Parliament next after that then sitting. But on the same day and the following the question of Toleration also came up, and with these results: Toleration to be granted of separate worship for Nonconformists of tender consciences, but not for Roman Catholics, nor any toleration of the use of the Book of Common Prayer, nor of preaching contrary to the main principles of the Christian Religion, nor yet of absence on the Lord's day from worship and hearing of the word of God somewhere. This was all the amount of Toleration that Cromwell and the Independents even in October 1647, with an Army at Putney all aflame for Toleration, could extract from the reluctant Commons at Westminster. The Lords appear to have hesitated about even so much as this; for it was not till the 2nd of November that the two Houses came to an understanding on the subject, and even on the 9th of that month the Lords wanted some additional security in the form of a "Proposition for suppressing innovations in Religion." [Footnote: Lords and Commons Journals of dates named; and Rushworth, VII. 843-4 and 853-4.]

Here, to bring the history of the English Church-question to a period for the present, we may notice one or two contemporary incidents.—On Saturday, Oct. 2, the Commons had resumed their examination of the Westminster Assembly's *Confession of Faith*, at the point where they had left off that work in the preceding May, viz. at Chap. IV. "Of Creation," (*antè*, p. 545). They passed that chapter and also the first paragraph of

Chap. V., "Of Providence," that day, and resolved to continue the business next Wednesday and punctually every following Wednesday till it should be despatched. But Wednesday after Wednesday came; other business was too pressing; and so the matter hung. This was the more inconvenient because on the 22nd of October the Assembly presented to the two Houses their *Larger Catechism* completed. It was ordered that 600 copies should be printed for consideration, and that matter too lay over. In the midst of such delays in Parliament it was something on the credit side that the SECOND PROVINCIAL PRESBYTERIAN SYNOD OF LONDON duly met in Sion College on the 8th of November, with Dr. Seaman for Moderator. It was, indeed, time now for English Presbyterianism to be walking alone. Gillespie, one of the two Scottish Divines left last in the Westminster Assembly, had returned to Scotland in the preceding August; and on the 9th of November it was announced in the Lords that Mr. Rutherford too was going. In bidding farewell to his brethren of the Assembly he took care to have it duly recorded in their books that the Scottish Commissioners, all or some, had been present to that point and had constantly taken part in the proceedings. The Assembly was still to linger on, he meant to say, but its best days were over. [Footnote: Lords and Commons Journals of the dates given; and Neal, III. 354 and 358-9.]

There was no greater mystery all this while than the conduct of Cromwell and Ireton. Since the King had come to Hampton Court he had been in continual intercourse with them, either in direct conferences, or by messages through Mr. Ashburnham and others. The intercourse had been kept up even after Cromwell's motion of Sept. 22 for re-approaching the King on the whole question in a Parliamentary way, and while Cromwell was constantly attending the House and taking part in the proceedings consequent on his motion. [Footnote: "Sir, I pray excuse my not- attendance upon you. I feared to miss the House a day, where it's very necessary for me to be." So wrote Cromwell to Fairfax Oct. 13, the very day of his three

divisions of the House on the duration of Presbytery, and of the compromise there on Toleration (Carlyle's *Cromwell*, f. 239).] What did it all mean? We have little difficulty now in seeing what it meant. Cromwell, even while urging on the re-application to the King in a Parliamentary way, had not given up hope that the King might be constrained into an extra-Parliamentary pact on some basis like that of the Army Proposals. Might not Charles be wise now in the extremity to which he saw himself reduced, and accept the prospect, which the Army scheme held out, of a restoration of his Royalty, under inevitable constitutional restrictions, but those less galling in many respects, and especially in the religious respect, than the restrictions demanded by Parliament? Such, we can see now, were the reasonings of Cromwell and Ireton, and to such an end were their labours directed. But the world at the time was suspicious and saw much more. What the English Presbyterians and the Scots saw was Cromwell wheedling his Majesty into the possession of himself and his Sectaries, so as to be able to overthrow Parliament and Presbytery immediately, and then reserve his Majesty for more leisurely ruin. What the Royalists round the King saw was more. A blue riband, the Earldom of Essex, the Captaincy-general of all the forces, the permanent premiership in England under the restored Royalty, and the Lieutenancy of Ireland for his son-in-law Ireton—how could the Brewer resist such temptations? Mean rumours of this kind ran about, or were mischievously circulated, till they affected the Army itself and roused suspicions of Cromwell's integrity even among his own Ironsides. It was not only that Colonel Rainsborough, who had opposed Cromwell's motion for re-opening negotiations with Charles, had since then stood out against his policy of conciliation, and had been joined by other officers, such as Colonel Ewer. Despite this opposition in the Council of the chief officers at Putney, Cromwell and Ireton still ruled in that body. But among the inferior officers and the Agitatorships a spirit had arisen outgoing the control of the chiefs, critical of their proceedings, and impatient for a swifter and rougher

settlement of the whole political question than seemed agreeable to Cromwell. [Footnote: Berkley's Memoirs (Harl. Misc.) 476, 478; Holles, 184; Baxter, Book I. p.60; Clar. 620; Godwin, II. 400 *et seq.* See also Major Huntington's Paper of Accusations against Cromwell and Ireton in Aug. 1648 (Parl. Hist. III. 966-974). Duly interpreted, it is very instructive.]

At Putney the Army, having little to do, had resolved itself into a great daily debating-society, holding meetings of its own Agitatorships and receiving deputations from the similar but civilian Agitatorships that had sprung up in London. Hence a rapid increase among the common soldiers of the political school of THE LEVELLERS. Of this school John Lilburne, still in his prison in the Tower, but with the freedom of pen and ink there, was now conspicuously one of the chiefs. "That the House of Commons should think of that great Murderer of England (meaning the King), for by the impartial Law of God there is no exemption of Kings, Princes, Dukes, Earls, more than cobblers, tinkers, or chimney-sweepers;" "That the Lords are but painted puppets and Dagens, no natural issue of Laws, but the mushrooms of prerogative, the wens of just government, putting the body of the People to pain,"—such were opinions and phrases collected from Lilburne's and other pamphlets by the Scottish Government as early as Aug. 13, and then publicly presented in the name of Scotland for the rebuke of the English Parliament and the horror of the whole British world. In such phrases we have the essence of the doctrine of the Levellers, as distinct from the more tentative Democracy of many contemporary minds. The *Army Proposals* of Aug. 1 were not for a total subversion of the English Constitution of King, Lords, and Commons, but only for a great limitation of the Royal Power, a reduction also of the power of the House of Lords, a corresponding increase of the power of the Commons or Representative House, and a broader basing of that House in a popular suffrage. But, now that the King had rejected the Proposals, the Levelling Doctrine burst up from its secret beds, and rushed more visibly through the whole Army.

There began to be comments among the Agitators on the dilatoriness of Cromwell, and especially on his coquettings with the King. "I have honoured you, and my good thoughts of you are not yet wholly gone, though I confess they are much weakened," Lilburne had written to Cromwell Aug. 13, kindly offering him a chance of redeeming his character, but otherwise threatening to pull him down from all his "present conceived greatness" before he was three months older. Cromwell not having mended his ways, Lilburne had been endeavouring to fulfil his threat; and by the end of October there was a wide-spread mutiny through the regiments at Putney. The Army, having its own printers, had by that time made its designs known in two documents. One, entitled *The Case of the Army*, was signed by the agents of five regiments, Cromwell's and Ireton's own included (Oct. 18); the other, entitled *An Agreement of the People* (Nov. 1), emanated from the same regiments and eleven others. Both documents pledged the regiments not to disband until the Army had secured its rights; and among these rights were the speedy dissolution of the existing Parliament, and the reconstitution of the Government of England in a single Representative House, elected by a reformed system of suffrage, and meeting biennially. This House was to be supreme in all matters, except five specified fundamentals which were to be regarded as settled *ab initio* beyond disturbance or even reconsideration by any corporate authority whatever. One of them was absolute freedom to all "in the matter of Religion and the ways of God's worship"; but this was not to prevent the State from setting up any "public way of instructing the Nation, so it be not compulsive." In fact, here was the accurate essence of the *Army Proposals* over again, only distilled to a higher strength and more fiercely flavoured. [Footnote: Rushworth, VII. 769, 770, 845-6, and 859, 860; Godwin, II. 423-428, and 436-450. One of the numerous incredible and contradictory hypotheses about Cromwell is that it was he who, while in treaty with the King for a restoration of his Royalty, was all the while, by his secret grip of

the Army-Agitatorships, hounding them on in their ultra democratic tendencies. The Levelling Principle itself would be a useful force in his hands, and he could well consent to being abused by the Agitators while they were really working for his ends!!]

Cromwell's preserved Letters of this period are few, but one of them contains a reference to the misconstructions to which he was then subject. "Though, it may be, for the present," he says, "a cloud may lie over our actions to those who are not acquainted with the grounds of them, yet we doubt not but God will clear our integrity, and innocency from any other ends we aim at but His glory and the Public Good." [Footnote: Letter to Colonel Jones, Governor of Dublin, dated Sept 14, 1647; Carlyle's Cromwell, I. 237-8.] At length, however, he had to let it be seen that he had broken off from Charles utterly. Who does not know the picturesque popular myth at this point of Cromwell's biography? Cromwell and Ireton says the myth, sat one night in the Blue Boar Tavern, Holborn, disguised as common troopers and calling for cans of beer, till the sentinel they had placed outside came in and told them the man with the saddle had arrived; whereupon, going out, they collared the man, got possession of the saddle he carried, and, ripping up the skirt of it, found the King's letter to the Queen in which he quite agreed with her opinion of the two Army-villains he was then obliged to cajole, and assured her they should have their deserts at last. [Footnote: The story professes to have come from Cromwell's own lips in conversation in 1649 with Roger Boyle, Lord Broghill, afterwards Earl of Orrery; but its mythical character is obvious.].

It needed no such interception of a letter in the yard of a tavern to convince Cromwell at last that Charles could not be trusted even in a negotiation for his own benefit. All the while that he had been treating with Cromwell and Ireton, in the sense of the Army Proposals, with a Religious Toleration included, he had been treating with the Scots, both by messages

through the Earl of Lauderdale and by letters in his own hand to the Earl of Lanark in Edinburgh, in a sense directly the opposite: *i.e.* on the terms of a paction with the Scots for compulsory Presbytery and suppression of the Sects in England, in return for the armed assistance of the Scottish nation towards a restoration of his kingship in all other respects. Late in October, Lanark and Loudoun had come from Scotland to help Lauderdale in finishing this negotiation; and the three Lords together, in conferences at Hampton Court, had assured Charles that, "if he would give satisfaction in the point of Religion, he was master of Scotland on what terms as to other things he would demand." He had not quite given them all the satisfaction they wanted; but the three Lords still remained loyally about him, with plans for his escape to Berwick. Nothing of all this appeared, of course, in the public communications of the Scottish Commissioners with the English Parliament. The purport, however, had been entrusted to Ormond, Capel, and others of the Royalists who were chief in the King's counsels; and Cromwell had his means of guessing. [Footnote: For the interesting and instructive correspondence of Charles with Lanark from June 1647 onwards, with details of the negotiations after Lanark and Loudoun joined Lauderdale at Hampton Court, see Burnet's *Hamiltons*, 401-412. See also *Clar.* 622-3; *Rushworth*, VII, 850; and *Lords Journals*, Nov. 6.]

The mutinous disposition of so many Regiments, and its manifestation in such tracts as *The Case of the Army* and the *Agreement of the People*, had greatly alarmed Parliament. The investigation of the matter had been substantially left, however, in the hands of Fairfax and the Council of War at Putney. That Council, with Fairfax and Cromwell present in it, had appointed a special Committee of Inquiry, consisting of twenty officers with Ireton at their head; and in a series of meetings of this Committee and of the collective Council itself, extending from Oct. 22 to Nov. 8, things were brought to a kind of adjustment. There was to be a general Rendezvous of the Army for ending of disorder; and meanwhile certain new Proposals

were sketched out, to be presented to Parliament as a summary of what might now be considered the opinions of the chief representatives of the Army, reviewing their former Proposals of Aug. 1 in the light of all that had since occurred. So far as the Proposals *were* sketched out, one observes in them a curious combination of compromises. There is decidedly greater severity in them to the King than in the original Army Proposals. On the other hand, there is nothing about the abolition of Kingship or of the House of Lords, no concession on these points to the ultra-democratic tendency of the Levellers. The question of King or No King had been raised, it is said, in the Council meetings by the Agitators, but had been quashed by the chief officers. Again, rather strangely, the question of Liberty of Conscience and the terms of the establishment of Presbytery is entirely waived, unless we regard the provision that Delinquents should be obliged to take the Covenant before being admitted to compound as a sign that on this question too there was a recession from former liberality. On the whole, the new Army Proposals look like a jumble of incongruities, and rather disappoint one after the clear political comprehensiveness of the original Proposals which Ireton had drafted, or even the rude simplification of the same put forth by the democratic Agitators. The reason probably was that the Army-chiefs desired at the moment to patch up a concordat, suppressing all unnecessary appearance of difference between the Parliament and the Army, and bringing both as amicably as possible into the one direct track of the new set of Parliamentary Propositions to the King. [Footnote: Rushworth, VII. 849-866; Godwin, II, 450-454.]

On the 10th of November, all the Propositions being ready, a very emphatic Preamble to them was agreed upon by the two Houses. It was intended that they should be presented to the King formally at Hampton Court within the next few days. Before that could be done, however, his Majesty had vanished.

The vicinity of Putney, with exasperated Levellers and Agitators all about, had become really unsafe for Charles; and, after some meditation and hesitation, he had himself arranged a plan of escape. It was put in execution on Thursday the 11th of November. On the evening of that day his Majesty, accompanied by Mr. Ashburnham, Mr. William Legge, and Sir John Berkley, contrived to slip out of Hampton Court Palace, by the back garden, unobserved. It was supper-time before he was missed by Whalley and the guard; the night was excessively dark and stormy; and, though it was ascertained that he and his companions had mounted horses near the Palace, the route they had taken could not be guessed. For the next two or three days, therefore, London was all anxiety. Meanwhile the fugitives, guided by the King himself through the New Forest, had reached the south coast, near Southampton, and in sight of the Isle of Wight. The King's reasons for taking this direction appear to have been the vaguest; nor is it certainly known that the Isle of Wight had been in his mind when he left Hampton Court. No ship, however, having been provided for a more distant voyage, and the King being in any case irresolute about yet leaving England altogether, the island did now, if not before, occur to him as suitable for his purpose. One inducement may have been that the Governor, young Colonel Robert Hammond, was a person whom the King had reason to believe as well disposed to him as any Parliamentary officer. Hammond, indeed, was the nephew of the King's favourite chaplain, Dr. Henry Hammond; and, though he was one of Cromwell's admiring disciples, and had married a daughter of Hampden, his uncle's reasonings, or other influences, had begun of late to weaken his ardour. It had been with undisguised pleasure that, but a week or two before, he had left his post in the Army and gone to this quiet and distant governorship, where he might live in retirement and without active duty. What, then, was his horror when, on the morning of Saturday, Nov. 13, as he was riding along the road near his residence of Carisbrooke Castle, in the centre of the island, Sir John Berkley and Mr. Ashburnham

presented themselves, and told him that the King had fled in their company from Hampton Court and desired to be his guest! "He grew so pale," says Berkley, "and fell into such a trembling, that I did really believe he would have fallen from his horse; which trembling continued with him at least an hour after, in which he broke out into passionate and distracted expressions, sometimes saying 'O gentlemen, you have undone me.'" He collected himself at length, however, and accepted the duty which fate had sent him. Crossing over, with Berkley and Ashburnham, to the earl of Southampton's house of Titchfield on the mainland, where Charles had meanwhile been waiting with Legge, he paid his homage gravely enough; and, after some conversation, in which he promised to do all for his Majesty that might be consistent with his obedience to Parliament, he returned to the island, with the King in his charge, and Berkley, Ashburnham, and Legge in attendance. His letter, narrating what had happened, and asking instructions, was read in the two houses of Parliament on Monday, Nov. 15. [Footnote: Berkley's Memoir, Harl. Miscell. IX. 479-483; Rushworth, VII. 871-874; Clar. 624-7; Parl. Hist. III. 785-791. As usual, in the later Royalist accounts, it is Cromwell that had contrived the whole affair of the King's escape both matter and form. Hammond's appointment to the Governorship of the island (Sept. 9) was Cromwell's doing, in anticipation of what might be needed; then he had stirred up the Agitators at Putney to threaten the King's life at Hampton Court; then he had warned the King, through Whalley, of the designs of the Agitators, so as to frighten him into flight; then, through Ashburnham or otherwise, he had suggested the Isle of Wight as the very place for the King to go to, and so had caught him in the prepared trap.]

FOURTH STAGE OF THE CAPTIVITY: IN THE ISLE OF WIGHT: NOV. 1647-NOV. 1648.

Carisbrooke Castle, and the King's Letters thence. Parliament's New Method of the *Four Bills*. Indignation of the Scots; their Complaints of Breach of the Covenant—Army Rendezvous at Ware: Suppression of a Mutiny of Levellers by Cromwell, and Establishment of the Concordat with Parliament—Parliamentary Commissioners in the Isle of

Wight: Scottish Commissioners also there: the King's Rejection of the Four Bills—Firmness of Parliament: their Resolutions of No Further Addresses to the King: Severance of the Scottish Alliance—*The Engagement*, or Secret Treaty between Charles and the Scots in the Isle of Wight—Stricter guard of the King in Carisbrooke Castle: His Habits in his Imprisonment—First Rumours of *The Scottish Engagement*: Royalist Programme of a SECOND CIVIL WAR—Beginnings of

THE SECOND CIVIL WAR: Royalist Risings: Cromwell in Wales: Fairfax in the

South-east: Siege of Colchester—Revolt of the Fleet: Commotion among the

Royalist Exiles abroad: Holland's attempted Rising in Surrey—Invasion of England by Hamilton's Scottish Army: Arrival of the Prince of Wales off the Southeast Coast: Blockade of the Thames—Consternation of the Londoners: Faintheartedness of Parliament: New Hopes of the Presbyterians: their Ordinance against Heresies and Blasphemies: their Leanings to the King: Independents in a struggling minority: Charge of Treason against Cromwell in his absence—The Three Days' Battle of Preston and utter Defeat of the Scots by Cromwell: Surrender of Colchester to Fairfax: Return of the Prince of Wales to Holland: Virtual End of THE SECOND CIVIL WAR—Parliamentary Treaty with the King at

Newport: Unsatisfactory Results—Protests against the Treaty by the

Independents—Disgust of the Army with the Treaty: Revocation of their Concordat with Parliament, and Resolution to seize the Political Mastery: Formation of a Republican Party—Petitions for Justice on the King: The *Grand Army Remonstrance*—Cromwell in Scotland: Restoration of the Argyle Government there: Cromwell at Pontefract: His Letter to Hammond—The King removed from the Isle of Wight to Hurst Castle—The Army again in possession of London.

Carisbrooke Castle, now mostly a ruin, but in Charles's time the chief fortified place in the Isle of Wight, stands almost in the centre of the island, close to the village of Carisbrooke, and near the town of Newport, which, although really an inland town, communicates with the sea by a navigable river. Here, with the verdant island all round him, and fine views both of land and sea, Charles was to live for a whole year. Though it was November when he came into the island, a lady, as he passed through Newport on his way to Carisbrooke, could present him with a damask-rose just picked from her garden; and he was to see all the circle of seasons in that mild South-English climate, till November came round again. [Footnote: Herbert, 55, 56.]

In a letter which Charles had left at Hampton Court, to be communicated to the two Houses, he had avowed that, though security from threatened violence was the immediate reason for his disappearance for a time into a place of retirement, yet another reason was his desire to extricate himself from a negotiation in which he felt that the "chief interests" concerned were not all represented. In the same spirit of eclecticism, with a word for each of the "chief interests," and a special show of solicitude for the Army, is a Letter sent by the King to the two Houses only four days after he had been in the Isle of Wight (Nov. 17). It gives his Majesty's view of what would be the right kind of negotiation, and conveys his definite offers. He cannot

consent to the abolition of Episcopacy, but he will assent to the experiment of Presbytery for three years, if accompanied by a Toleration, but not for Papists, Atheists, and Blasphemers; he will surrender the Militia for his own life, on condition that it shall afterwards revert to the Crown; he will undertake for the Arrears of the Army; and on other matters he will be ready to do his utmost in a conclusive Personal Treaty in London. [Footnote: Rushworth, VII. 871-2 and 880-833; Parl. Hist. III. 786-7 and 799-802; and King Charles's Works (1651), 117-125.]

The two Houses retained their own ideas of the negotiation necessary; and, while giving orders for the despatch of a sufficient guard to the Isle of Wight, to be under Hammond's command, and also for the King's household they were re-adjusting *their* battery of negotiation for the changed circumstances of its object.

At first the notion was to pursue the King to the Isle of Wight with the whole series of Propositions which the Houses had so carefully drawn out for presentation to him at Hampton Court. Here, however, they encountered the most obstinate opposition from the Scottish Commissioners. The mood of these gentlemen (Loudoun, Lanark, Lauderdale, Sir Charles Erskine, Hugh Kennedy, and Robert Barclay), sufficiently irritable before the King's flight from Hampton Court, was now that of the Thistle in full bloom. The King, they declared, had done right in fleeing from the hard usage of the English. Could his Majesty be expected to endure longer the insults, terrors, indignities, to which he had been of late subjected, ending actually in danger to his life from the ruffians of an ill-managed Army? Moreover, was not Charles also the sovereign of Scotland! Could the Scottish nation be expected to bear the contempt shown it in these "tossings" to and fro of their King, aggravated by the studied neglect of all the previous Remonstrances of the Scottish Commissioners and Estates on this very subject? No! let those Propositions which the English Parliament had been

preparing be thrown aside, and let the King be invited to come to London, in safety and honour, for a Personal Treaty with Parliament, in which all might be "voluntary and free"!—Partly to please the angry Scottish Commissioners, partly to shake them off if they would not be pleased, the two Houses did make an alteration in their procedure. Instead of the entire prepared series of Propositions, or rather as antecedent to them, it was resolved to send to the King "Four Bills," embodying the Propositions "absolutely necessary for present security." Bill 1 was for the power of Parliament over the Militia for twenty years, or longer if necessary; Bill 2 was for confirmation of all acts of the Parliament in the late war; Bill 3 was for the cancelling of all Peerages conferred by the King since the beginning of the war, and the creation of new Peers only with consent of the two Houses; and Bill 4 was for giving the two Houses the right of adjournment at their own pleasure.—This change of procedure was first proposed in the Lords Nov. 25 (fifteen Peers present); there were divisions on it in the Commons Nov. 26 and 27, in the last of which it was carried by 115 to 106 (an unusually full House) to concur generally with the Peers in the matter; and then, after debates and conferences on details, the Bills, as above indicated, passed the Commons finally Dec. 11, and the Lords finally Dec. 14. It was also then arranged that the Earl of Denbigh and Lord Montague, for the Lords, and Mr. John Bulkeley, Mr. John Lisle, Mr. John Kemp, and Mr. Robert Goodwin, for the Commons, should be the Commissioners for carrying the Four Bills, and the Propositions too, so far as not superseded by the Bills, to the King in the Isle of Wight. They were to require his Majesty's consent to the Four Bills within ten days at the utmost; but the remaining Propositions were to be delivered to his Majesty only as containing matters on which the Houses would send another Commission to treat with him after he had assented to the Four Bills. [Footnote: Parl. Hist. II. 799-804 and 823-826; Lords and Commons Journals of days named; also (for a special Letter of the Scottish Commissioners) Lords Journals, Nov.

18. For this Letter Charles thanked Lanark, saying, "Seriously, it is as full to my sense as if I had penned it myself." Burnet's *Hamiltons*, 416.]

If the two Houses had resorted at first to this changed method of procedure with any idea of pleasing the Scots, they had found reason to abandon that idea. The very day the Four Bills were finally passed (Dec. 14), the Scottish Commissioners, knowing well enough privately what they were, applied formally to the Committee of the Two Kingdoms for a copy of them. This being reported to the Commons, a discussion ensued, and Mr. Selden (particularly active about this time, and at any rate always eager for a brush with the Scots) was appointed chairman of a Committee to prepare an Answer. The Answer, adopted by the Commons Dec. 16, was taken up by Mr. Selden to the Lords the same day, and by them adopted also. It was to the effect that, as it was against the custom of the English kingdom to communicate Bills ready for the King's assent to "any other whomsoever" until his Majesty's reply had been received, the Four Bills could not be communicated to the Scottish Commissioners, but that, as for the rest, it was intended to send these Bills to the King on Monday next, together with those Propositions of which the Scottish Commissioners were already cognisant, and that, if the Scottish Commissioners desired to add any Propositions concerning Scotland, they had better make haste. As if to increase the irony of this Answer, there was frankly included in it a copy of the Instructions to the English envoys as to their procedure both with the Bills concealed from the Scots and the Propositions known to them. Matter and manner both, the Answer drove the Scottish Commissioners mad. There may be yet read in the *Lords Journals* of Dec. 18 the Reply, in nineteen printed folio columns, which they thundered in upon the two Houses. We do not see such documents now-a-days, and even then it was a marvel. The whole soul of Scotland, past and present, seemed to launch itself upon the Londoners in this tremendous lecture, issued from Worcester House "by command of the Commissioners for the Parliament of Scotland," and signed

by John Chiesley, their clerk. After a hint of the indebtedness of England to the Scots for some years past, there was a recapitulation of all the recent acts of contumely sustained by Scotland at the hands of the English, followed by a summary of the reasons for preferring the Scottish plan of a free Personal Treaty with the King to the English plan of prosecuting him with peremptory and ready-made Propositions. But, as the English Parliament *had* communicated to the Scottish Commissioners their new set of Propositions (though not the Four Bills), there was a criticism of these Propositions, from the Scottish point of view, collectively and *seriatim*. The largest criticism was on the Religious question. Nearly one half of the entire document was occupied with this subject. Was not the Religious question the main one, the *unum necessarium*, deserving the first place in any national negotiation? Yet was it not made secondary in the Propositions, brought in anywhere in the middle of them, as if to show that the two Houses did not really care much about it, and would not be so stiff in it as in matters of civil import? Tenacious in one's own concerns, and "liberal in the matters of God"! Again, not a word in the Propositions, or hardly a word, respecting the Solemn League and Covenant itself, a vow that had been sworn to with uplifted hands by nearly the whole generation of living Englishmen! Oh! what an omission was that! Was the Covenant to be voted out of date, and buried in the ashes of oblivion? But, apart from the Covenant, how did the Propositions treat the cause of Presbyterian government in England and of conformity of Church-rule in the two kingdoms? Most miserably! No pressing of Presbytery to full purity and completeness, but rather a cynical acquiescence in the imperfect Presbytery that had already been set up, and a glee in not being committed even to that beyond three years! Finally, even this Presbytery was turned into a present mockery by an accompanying concession to the cry for Liberty of Conscience! The Commissioners had never desired that "pious and peaceable men should be troubled because in everything they cannot

conform themselves to Presbyterianial government;" but they did "from their very souls abhor such a general and vast Toleration" as one of the Propositions seemed to provide. Unless they were mistaken, it was a Toleration to "all the sectaries of the time," whether they were "Anabaptists, Antinomians, Arminians, Familists, Erastians, Brownists, Separatists, Libertines, or Independents;" yea it extended to "those Nullifidians the Seekers, to the new sect of Shakers, and divers others;" and, though it professed not to include "Antitrinitarians, Arians, and Antiscripturists," where was the security that these might not at least print and publish their blasphemies and errors? "Our minds are astonished, and our bowels are moved, &c.!"—There is a story of an irascible and fluent man who, after a torrent of abusive words addressed to a cool-tempered friend with whom he had a difference, was brought to a stop by the calm request of his friend that he would be so good as to repeat his observations. Something of the kind happened now. The reply of the two Houses to the portentous Paper of the Scottish Commissioners was that its length prevented immediate attention to it; but that they were sensible of the "aspersions" it cast upon them, and begged that such might be "forborne for the future." This drew from the Commissioners a shorter letter (Dec. 20), in which they disavowed any intention of disrespect, and assigned the gravity of the crisis as a reason why their expressions had been "more pathétique than ordinarily." Nevertheless from that moment the connexion between the English Parliament and the Scottish Commissioners was totally severed. [Footnote: Lords and Commons Journals of Dec. 15- 21.]

What had become of the third party concerned, the English Army?—The general Rendezvous resolved on by the Council of War at Putney, in consequence of the Concordat between the Army and Parliament (*antè*, p. 573), had been cleverly changed into a tripartite Rendezvous, or distribution of the regiments into three brigades, to be reviewed on different days and at different places. The first of these Reviews was held near Ware in Herts,

Nov. 15, the very day on which the King's arrival in the Isle of Wight was known. At the head of each of seven regiments then present according to order there was read a Remonstrance by Fairfax, pointing out the evils of relaxed discipline, condemning the recent excesses of the Agitators and their attempts to make the men disaffected to their officers, declaring the resolution of himself and the chief officers to maintain all the Army's just rights, but protesting that he could not continue to head an Army which was mutinous, and requiring therefore that the officers and men of each regiment should subscribe an engagement of future obedience, As nothing was said in the document about either King or House of Lords, but mention only made of a guarantee of future Parliaments and a Reformed Representative House, no offence was given to the Democratic instincts of the regiments, and they at once acquiesced in what was but a fit soldierly compact. There were, however, two regiments on the field that had come without orders—Colonel Harrison's horse-regiment and Colonel Robert Lilburne's foot-regiment. They had come in a wild state of excitement, with copies of the *Agreement of the People* stuck in their hats. John Lilburne, recently released from the Tower, had come down to Ware to see the result. It was decisive, but not in the way John had expected. Harrison's regiment, on being reasoned with by Fairfax and the other officers, at length good-humouredly gave way, tore the mutinous emblem from their hats, and broke into cheers. Lilburne's, which had driven away most of its officers, remained sulky and vociferous, till Cromwell, riding up to them, ordered them also to remove that thing from their hats, and, on their refusing, had fourteen of them dragged from the ranks, three of these tried on the spot and condemned to death, and one of the three shot. After this turn given to the first Review, the others passed off pleasantly enough, and all that was farther needed was the minor punishment of one or two of the mutineers among the common soldiers, with temporary restraint or rebuke for Colonel Rainsborough, Colonel Ewer, Major Scott, Major Cobbet, and Lieutenant

Bray, the officers who had been most implicated in the revolt.—So, at the expense of but one life, had a dangerous Mutiny been quelled, and the ultra-Democrats of the Army taught the lesson of the Concordat. That lesson was that, in the opinion of Cromwell and Ireton as well as of Fairfax, it was best for England that the Army should still serve the constituted authority of Parliament, and not raise any political banner of its own. No sooner had this lesson been taught, however, than Cromwell and Ireton had hastened to obliterate all traces of the occasion there had been for teaching it. Their intention had not been to struggle with the Democratic spirit itself, but only with its mutinous manifestation; and they knew, in fact, that the political tenets of the poor fellow whom it had been necessary to shoot remained, and would remain, not the less the tenets of two-thirds of the Army. Accordingly, through November and December the great aim of Cromwell and Ireton, in the new Army head-quarters at Windsor, had been to soothe ruffled spirits and restore harmony. Rainsborough, Ewer, Scott, and the other ultra-Democratic officers had been restored to their places, with even studied respect; and strong recommendations had gone to Parliament that Rainsborough, who, before the Mutiny, had been named for the post of Vice-Admiral of the Fleet (in recollection of his original profession), should be confirmed in that high appointment. At Windsor there had been Army-dinners and great prayer-meetings of officers and men, in which Cromwell and Ireton took a conspicuous part, winning all back by their zeal and graciousness into a happy frame of concord, which the Parliamentary Commissioners with the Army described as "a sweet and comfortable agreement, the whole matter of the kingdom being left with Parliament." And so, while the two Houses were arranging to send their Four Bills and the Propositions to the Isle of Wight, the Army only looked on approvingly. [Footnote: Parl. Hist. III. 791-799 and 805-822; Godwin, II. 462-8; Carlyle's Cromwell, I. 254; Rushworth, VII. 951.]

On Friday, Dec. 24, the Earl of Denbigh and the other Commissioners of the two Houses arrived in the Isle of Wight and delivered the Four Bills and the Propositions to his Majesty. Next day (Christmas Day) Loudoun, Lanark, Lauderdale, and the other Scottish Commissioners, arrived, and delivered to his Majesty, in the name of the Kingdom of Scotland, a Protest against the English Bills and Propositions. For the day or two following, these Scottish Commissioners were more with his Majesty than the English Commissioners; but on the 28th the English Commissioners received from him in writing his Answer to the two Houses. It was utterly unfavourable, declining to assent to the Bills or anything else except after a complete and deliberate Treaty, and assigning the Protest of the Scottish Commissioners as a sufficient reason for this had there been no other. With this Answer the English Commissioners returned to London, and it was read in both Houses on the 31st. The effects were extraordinary. On the 3rd of January, 1647-8, it was resolved in the Commons, by a majority of 141 to 92, that no farther applications or addresses should be made to the King by that House, that no addresses or applications to him by any person whatsoever should be made without leave of the Houses under the penalties of High Treason, that no messages from the King should be received, and that no one should presume to bring or carry such. On the 15th the Lords agreed in these Resolutions, only Manchester and Warwick dissenting out of sixteen Peers present. Negotiation was thus declared to be at an end; and the Army, delighted with the news, burst into applauses of Parliament, and vowed to live or die with it in the common cause.

One consequence of what had occurred was the dissolution of the peculiar body which, under the name of "The Committee of the two Kingdoms," had hitherto exercised so much power, and been in fact a common executive for the Parliaments of England and Scotland (*antè*, p. 41). As Scotland had broken off from England, this body had become an absurdity; and so, on the same days on which the two Houses adopted the

No-Address Resolution, they resolved "That the powers formerly granted by both Houses to the Committee of both Kingdoms, relating to the kingdoms of England and Ireland, be now granted and vested in the members of both Houses only that are of that Committee." In other words, Lords Loudoun and Lauderdale and the other Scottish Commissioners were no longer wanted in England, and might go home. These gentlemen, being themselves of the same opinion, sent a letter to the Lords, Jan. 17, intimating that they were about to take their leave. With great civility the Lords sent Manchester and Warwick "to wish them a good journey," assure them that any arrears of business between England and Scotland would be attended to, and express a desire for "the continuance of the brotherly union and good correspondency between the two nations." Actually, a few days afterwards, the Commissioners left London; and on the 29th the Houses appointed six Commissioners of their own to follow them to Edinburgh, and allay, if possible, any ill feeling that might be caused there by their representation of recent occurrences.

Had the two Houses known all, their politeness would have been less! It had not been only to give in a protest in the name of Scotland against the English Bills and Propositions that Lanark, Loudoun, and Lauderdale had made their Christmas journey to Carisbrooke in the wake of the English Commissioners. The King had been in correspondence with them for some time before on the subject begun with them at Hampton Court; and, when they came to Carisbrooke, they had brought with them not only the Protest against the English Bills, but also a secret document of a more momentous nature, prepared for the King's signature. Actually on the 26th of December, or two days before the English Commissioners were dismissed with the unfavourable Answer to the English Parliament, this document had been signed in Carisbrooke Castle by the King on the one part, and by Loudoun, Lauderdale, and Lanark on the other. Not daring to bring it out of the island with them, the Commissioners, Clarendon says, had it wrapt up in lead and

buried in a garden whence they could recover it afterwards. And little wonder! It was A SECRET TREATY BETWEEN CHARLES AND THE SCOTTISH COMMISSIONERS, in which his Majesty bound himself, on the word of a King, to confirm the Covenant for such as had taken it or might take it (without forcing it on the unwilling), also to confirm Presbyterian Church-government and the Westminster Directory of Worship in England for three years (with a reservation of the Liturgy, &c., for himself and his household), and moreover to see to the suppression of the Independents and all other sects and heresies; while the Scots, in return, were to send an Army into England for the purpose of restoring him, on these conditions, to his full Royalty in that kingdom! Thus at last Charles had made a conclusive Treaty with one section of his adversaries; and, as Queen Henrietta Maria had always advised, it was with the Scots, all but absolutely on their own terms of the abolition of Episcopacy and the establishment of strict Presbytery in England!! [Footnote: Lords and Commons Journals; Parl. Hist. III. 827-837; Burnet's Hamiltons (for correspondence between the King and Lanark) 412-423; Stevenson's Hist. of the Church of Scotland, ed. 1840, p. 586 (for Loudoun's account of the substance of the Treaty); Clarendon, 634-637. Clarendon's account of the Treaty is full; and, though he condemns it as "monstrous," he gives the apology that had reconciled the King to it in his despair. It was that Lanark, Loudoun, and Lauderdale had themselves argued that the Treaty would turn out mere waste paper. After the Scottish Army should be in England, and the Royalists in England roused, "there would be nobody to exact all those particulars, but everybody would submit to what his Majesty should think fit to be done!"]

Until the decisive rupture with Parliament on the Four Bills, Charles had been permitted to range about the Isle of Wight very much at his pleasure, and the concourse of visitors to him had been as free as at Hampton Court. From the moment of the rupture, however, all was changed. Aware that an

escape abroad was now meditated by Charles, and warned by some stir about Carisbrooke itself for the King's rescue, Colonel Hammond had at once taken precautions, but implored Parliament at the same time either to remove the King to some other place or else to discharge himself from an office the burden of which he found insupportable. With this last request Parliament did not comply, and Hammond had to continue in his painful trust, obeying the instructions sent him. His Majesty was not to be allowed any longer to ride about the island, or to receive unauthorized visitors; he was to be restrained to Carisbrooke Castle and the line round it; Ashburnham, Legge, and other suspicious persons in his service, including his chaplains Hammond and Sheldon, were to be dismissed; and his remaining household were to be under very strict regulation. These instructions having been carried into effect, Charles's life in the Isle of Wight from January 1647-8 onwards was one of straiter captivity and seclusion than he had experienced even at Holmby. He had the liberty only of the Castle and its precincts; which, however, were sufficiently large and convenient for the exercise of walking, with "good air and a delightful prospect both to the sea and land." For his solace and recreation in his favourite game, the barbican of the Castle, a spacious parading ground beyond the walls but within the line, was converted by Hammond into "a bowling-green scarce to be equalled," at one side of which there was built "a pretty summer-house for retirement." This at vacant hours became the King's chief resort both forenoon and afternoon, there being "no gallery, nor rooms of state nor garden," within the Castle walls. Occasionally, notwithstanding the strict guard, some poor stray creature troubled with scrofula, who had come to the Isle of Wight for the Royal touch, would contrive to beguile the sentries and obtain admission to the barbican. As at Holmby, however, the King had his set times in-doors for his devotions and for reading and writing; and his favourite books, catalogued and placed in the charge of Mr. Herbert, were again in request. Though he still declined

the services of any Presbyterian clergyman, he rather liked the society of young Mr. Troughton, the governor's chaplain, and had arguments with him daily on theological points. Once, when a half-crazed minister, nicknamed Doomsday Sedgwick, came all the way from London to present him with a book he had written, suitable for his comfort and entitled "Leaves from the Tree of Life for the healing of the Nations," he ordered him to be admitted, received the book, glanced at some pages of it, and then returned it to the author with the observation that surely he must need some sleep after having written a book like that. And so day by day the routine flowed on, and always at night the wax-lamp was kept burning in the silver basin close to his Majesty's bed. [Footnote: Lords Journals, Dec. 31, 1647, and of subsequent dates; Herbert's *Memoirs of the Last Years of Charles*, 57- 67 and 95-98; Wood's *Ath.* III. 894-6. Doomsday Sedgwick was not Obadiah Sedgwick of the Assembly, but William Sedgwick of Ely.]

The Treaty with the Scots could not remain long secret. No sooner had the Scottish Commissioners who had framed it returned to Edinburgh than they were obliged to let the substance of it become known. This was done in the Committee of Estates on the 15th of February, when Loudoun and Lauderdale formally reported the result of their visit to the Isle of Wight. Then ensued a most perplexed agitation in Scotland on the whole subject. THE ENGAGEMENT, as the Secret Treaty was called, was universally discussed, and with great diversity of opinion. In the Committee of Estates, the Hamiltons, who had been the real authors of the Engagement, carried all their own way. Nay in the Parliament, or full Convention of the Estates, which met on the 2nd of March, the majority went passionately with the Hamiltons. Four-fifths of the nobles went with them; more than half the lairds; and nearly half the burgesses, including most of the representatives of the larger Scottish towns. These were the HAMILTONIANS or ENGAGERS. Not the less in Parliament itself was there a strong opposition party, headed by Argyle, Eglinton, Lothian, Cassilis, and some half-dozen

other nobles, aided by Johnstone of Warriston; and, as this party rested on the nearly unanimous support of the Scottish clergy, it had a powerful organ of expression, apart from Parliament, in the Commission of the Kirk. It was argued, on their side, that the Commissioners to the Isle of Wight had exceeded their powers, that the conditions made with Charles were too slippery, that he had in reality evaded the Covenant, and that, though Scotland might have a just cause for war against the English Sectaries, no good could come of a war, nominally against them, in which Presbyterians would be allied with Malignants, Prelatists, and perhaps even Papists. Declarations embodying these views were published by the Commission; the pulpits rang with denunciations of the Engagement; petitions against it from Provincial Synods and Presbyteries of the Kirk were poured in upon Parliament; had the entire population been polled, the PROTESTERS or ANTI-ENGAGERS would have been found in the majority. Even Loudoun detached himself from the Hamiltons, and publicly, in the High Church of Edinburgh, submitted to ecclesiastical rebuke, professing repentance of his handiwork. Nevertheless the Hamiltons persevered; two-thirds of the Parliament adhered to them; and by the end of April 1648 it was understood, not in England only, but also on the Continent, that an Army of 40,000 Scots was to be raised somehow, in spite of Argyle and the Scottish clergy, for an invasion of England in the King's behalf. The Army was to be commanded in chief by the Duke of Hamilton himself, with the Earl of Callander for his Lieutenant-general. [Footnote: Baillie, III. 24-46; Stevenson, 582-595; Burnet's Hamiltons, 424-435.] Thus out of the Scottish Engagement with the King in the Isle of Wight there grew what is called THE SECOND CIVIL WAR, It was a much briefer affair than the first. That had spread over four years; but the real substance of this was to be crushed into as many months (May-Aug. 1648). The military story of these months shall concern us here only in so far as it is interwoven with the political narrative.

The Engagement with the Scots had been communicated to Queen Henrietta Maria at St. Germain, and gradually, with more or less precision, to all those dispersed Royalists, at home or abroad, who might be expected to take leading parts in co-operation with the promised Scottish invasion. The programme, so far as it could be settled, was something after this fashion:—(1) Risings were to be promoted in all parts of England and Wales, to coalesce at last, if possible, into a great general rising in which London should be involved. All the conditions seemed favourable for such an attempt. Not only in every county were there eager and revengeful remains of the old Episcopal Royalism, but the tendency even of the Presbyterians throughout England had been of late decidedly Royalist. The Presbyterians had never been anti-monarchical in theory; and large numbers of them had begun of late to pity the King, and to question whether the excessively hard terms imposed upon him by Parliament were altogether necessary. Even if he were to be restored to larger powers in some things than might be quite desirable, would not that be better than continuing in the present state of uproar and confusion, with a Democratic Army fastened vampire-like on the land, preying on its resources, and poisoning its principles? For people in this state of mind the promised invasion of the Scots in Charles's behalf was the very pretext needed. Much of the Presbyterianism of England, including the City of London, might be whirled, along with the readier Old Royalism, into a rising for the King. To promote and manage risings in particular districts, however, there must be leaders authorized from St. Germain. Such leaders were found among eminent Royalists either already in England or able to transfer themselves thither without delay. In the North, where immediate co-operation with the Scots would be necessary, Sir Marmaduke Langdale and Sir Philip Musgrave were to be the chief agents; and for the West, the Midlands, and the South, there were the Earl of Norwich (formerly Lord Goring), the Earl of Peterborough, Lord Byron, Lord Capel, and others. The young Duke of

Buckingham, and his brother Lord Francis Villiers, who had not been concerned in the first Civil War, being then but boys and on their travels abroad, had recently returned to their great estates in England, and were anxious to figure as became the name they bore. Strangely enough, in the midst of all these, as the commissioned generalissimo of the King's forces in England when they should be in the field, was to be the Earl of Holland. His veerings in the first war had not been to his credit; but his long seclusion had done him good; he had always been in favour with the Queen; and his Parliamentary and Presbyterian connexions were an advantage. (2) There was to be a gathering of all the Royalist exiles to accompany or follow the Prince of Wales in a landing on the British shores. As early as Feb. 8, when only the vaguest rumour of the Scottish Engagement can have been in circulation on the Continent, the report from the Hague had been that it would be "no wonder to see 10,000 merry souls, then lying there, and cursing the Parliament in every cup they drank, venturing over to make one cast more for the King." Certain it is that in the following months there was a stir in all the nests of English refugees in France and Holland, and in the Channel Islands. Not only Prince Rupert, Percy, Wilmot, Jermyn, Colepepper, Ormond, and others round the Queen and the Prince in Paris, but the Earl of Bristol, Lord Cottington, Secretary Nicholas, and others, in Rouen or Caen, and Hopton and Hyde in Jersey, were all in motion. Money was the great want; they were all so wretchedly poor; but that difficulty might be overcome so far as to make an expedition to England at least possible. Mazarin might lend help; or, if he did not, the Prince of Orange, the husband of Charles's eldest daughter, and now Stadtholder of Holland, might be expected to do all he could for his father-in-law consistently with the limited powers of his Stadtholdership. A Dutch port might be more convenient than a French one for the embarkation of the refugees collectively or in detachments. Most would be bound for England; but the true sphere of some, as for example Ormond, would be in Ireland. For the

Prince of Wales himself what was specially destined by the Queen was a voyage to Scotland. It was by being among the Scots personally till their Army could be got ready, and either remaining in Scotland afterwards or accompanying the Army into England, that his Royal Highness would be of most use. On this point the Queen was emphatic. [Footnote: Clarendon, Book XI., where the pre-arrangement of the new Civil War from headquarters, and the parts assigned to different persons, are set forth more lucidly, and with better information, than anywhere else. Dates are deficient, but the sketching is masterly. See also Rushworth for Feb., March, and April, 1648.]

Such being the programme, what was the performance? It did not quite come up to the programme, but it was sufficiently formidable.

The first rising was in Wales. There a certain drunken Colonel Poyer, governor of Pembroke Castle, with a Colonel Powell and a Colonel Laughern, also in Parliamentary employment, revolted as early as the end of February. Ostensibly it was in resentment of an order of Parliament for disbanding supernumeraries; but, before the end of April, the affair became a Royalist outbreak of all Pembrokeshire, Carmarthenshire, and Cardiganshire, spreading through the rest of South Wales. To suppress this rising Cromwell was to go from London, May 1, with two regiments of horse and three of foot; which, with the forces already in the region, would make an army of about 8,000 men. Before he went, risings of less importance had been heard of in Cornwall and Dorsetshire, and there had been one tremendous tumult in London itself, to the cry of "For God and King Charles!" (Sunday, April 9.) It had been suppressed only by street-charges of the regiments quartered at Whitehall and Charing Cross. Significant incidents of the same month were the revolt to the Irish Rebels of Lord Inchiquin, hitherto one of the most zealous Parliamentarians in Ireland, and the escape from London of the young Duke of York. By the

contrivance of a Colonel Bamfield the Duke was whisked away from St. James's Palace (April 21), and conveyed, in girl's clothes, to Holland. He was not quite fifteen years of age; but his father had instructed him to escape when he could, and the fact that he had been designated for the command of the Navy was likely to be useful.

All this before Cromwell had gone into Wales; but hardly had he gone when there came the news that Berwick had been seized for the King by Sir Marmaduke Langdale (April 30), and Carlisle by Sir Philip Musgrave and Sir Thomas Glenham (May 6). Langdale and Musgrave had been staying in Edinburgh, and the seizure of these two towns was by arrangement with the Duke of Hamilton and in preparation for his invasion. Langdale, indeed, announced himself as commissioned General for the King in the five northern counties, and the business of watching against his advance lay with Lambert, the Parliamentary General in those parts, assisted by Sir Arthur Haselrig, now Governor of Newcastle.

Meanwhile the preservation of the peace in and near London was in the hands of Fairfax, Ireton, and Skippon—Fairfax now no longer mere Sir Thomas, but Lord Fairfax of the Scottish Peerage, as successor to his father Lord Ferdinando, who had died March 13. These three were soon as hard at work in their south-eastern region as Cromwell in Wales and Lambert in the north. For the county of Surrey having followed the counties of Norfolk and Suffolk in sending in a petition for the disbanding of the Army and the restoration of the King "to the splendour of his ancestors" (May 16), a new riot in London "For God and King Charles" was the consequence, and in a short time there was more or less of Royalist commotion north and south of London, through Norfolk, Suffolk, Cambridge, Herts, Essex, Surrey, and Kent. The insurrection in Kent was of independent origin, and was the most extensive and hence it had been begun by the Kentish people themselves, roused by Roger L'Estrange and a young Mr. Hales; but the Earl of Norwich

had come into Kent to take the lead. Canterbury, Dover, Sandwich, and the castles of Deal and Walmer, had been won for the King; there were communications between the insurgents and the Londoners, and in the end of May some 10,000 or 12,000 men of Kent, with runaway citizens and apprentices from London in their ranks, were marching towards the City with drums and banners. To meet these Fairfax and Ireton, with seven regiments, went out to Blackheath, May 29; and, the insurgents then drawing back, the two were at Gravesend May 31, and at Maidstone June 1. A few days of their hard blows, struck right in the heart of Kent, sufficed for that county; and the Earl of Norwich, with the Kentish fugitives, crossed the Thames into Essex. Insurgents from other parts, including Lord Capel, Lord Loughborough, and Sir Charles Lucas, having at the same time gathered into that county, there was a junction of forces, with the intention of a roundabout march upon London, by Suffolk, Norfolk, and Cambridge. The swift approach of Fairfax out of conquered Kent (June 11) compelled them to change their plan. They threw themselves into Colchester (June 12), adding some 4,000 or 5,000 armed men to the population of that doomed town. Doomed! for Fairfax, having failed to take it on the first assault, resolved to reduce it by starvation, and so, the insurgents on their side resolving to hold out to the last, inasmuch as the detention of Fairfax in Essex till the Scots should be in England was the best hope, both for themselves and for the general cause, the SIEGE OF COLCHESTER (June 12— Aug. 28) turned out one of the most horrible events of the war.

An important episode of the Kentish Insurrection was the Revolt of the Fleet. The main station of the Fleet being in the Downs, just off the Kentish coast, Royalist emissaries had been busy among the sailors, and with such effect that, when Vice-Admiral Rainsborough, who had been ashore Defending Deal Castle against the insurgents, tried to go on board his own ship, he was laid hold of and sent back. This was about the 27th of May; and, though the Parliament immediately re-appointed the Presbyterian Earl

of Warwick to his old post of Lord High Admiral, and sent him down to pacify the Fleet (May 29), the effort failed. The cry of the sailors was, "We will go to our own Admiral," meaning the young Duke of York in Holland. Actually, some ten warships, having ejected all their Parliamentary officers, did put to sea, and, after cruising about the coasts of Kent, Essex, Suffolk, and Norfolk, till the insurrection in those parts was quashed, did cross to Helvoetsluys in Holland, early in June, in search of the young Duke. It was a splendid accident for the world of Royalist exiles on the Continent, for it supplied them with the wooden bridge they needed for transit into the mother-country. Accordingly, though the royal boy-admiral came at once from the Hague to Helvoetsluys, went on board the Fleet, and was for a week or two the pet of the sailors, the higher powers at Paris hastened to turn the accident to the largest account. Mazarin refusing all help, some money was raised otherwise, so as to enable the Prince of Wales, with Prince Rupert, Hopton, Colepepper and others, to embark at Calais for Helvoetsluys. He arrived there early in July, was received with acclamations by the Fleet, and immediately relieved his younger brother in the command. The Prince and Princess of Orange coming from the Hague to welcome him, there was a joyful family-meeting, with much consultation, but a good deal of difference, among all concerned, as to the ways and means.

About the time of the Revolt of the Fleet, Parliament had received other bad news. Pontefract had been seized for the King, June 2, and other important places in Yorkshire were taken or attempted soon after. Through the rest of June there were risings or threats of rising in the Midlands, so that in the beginning of July things looked very ill. There had been successes, it was true, against the insurgents in Wales, and Cromwell was hopefully besieging Pembroke; Lambert was doing well with his small forces against Langdale in the north; Colchester was beginning to be distressed in the grip of Fairfax; but still, with the whole of England in Royalist or semi-Royalist palpitation, and the City of London actually

heaving with suppressed revolt, what could be expected when Hamilton and his army of Scottish Presbyterians did cross the border? There had been delays in the levy of this army, owing to the continued resistance of the Argyle party, the clergy, and the western shires; and it had only been by the most tyrannic exercise of power that it had been got together. At last, however, it *had* been got together; and now England was full of the rumour of its coming. Lo! at the rumour the Earl of Holland, the designated generalissimo of the English army of co-operation, could not choose but start from his lethargy! With the young Duke of Buckingham, young Lord Francis Villiers, the Earl of Peterborough, and the Dutch Colonel Dalbier, in his company, and a following of 500 horse, he started up at Kingston-on-Thames on the 6th of July; addressed a formal Declaration of his motives to Parliament and the City of London, as well as a letter of encouragement to the besieged at Colchester; and called on all Surrey, Sussex and Middlesex, to join him. That bravado, however, lasted but two days. On the 8th of July, a Parliamentary force under Sir Michael Livesey attacked Holland's horse and routed them utterly. Lord Francis Villiers and Dalbier were slain; the Duke of Buckingham and the Earl of Peterborough escaped to London, and thence abroad; but Holland himself, pursued into Hunts, was taken prisoner.

On the very day of the defeat of Holland in Surrey (Saturday, July 8) the Scots did come into England. They came from Annan on the Solway Firth, marching to Carlisle. They were not the expected 40,000, but the advanced portion of an army which, when it had all come in, may have numbered about 20,000. The Duke himself led the van with his Lifeguards in great state, preceded by trumpeters "all in scarlet cloaks full of silver lace;" Generals Thomas Middleton and William Baillie came next with horse and foot; and the Earl of Callander brought up the rear. Joined by Sir Marmaduke Langdale and his English, they marched on, or rather sauntered on, to Penrith (July 15), and thence to Kendal (Aug. 1?), the wary Lambert retreating before them, but watching their every motion, skirmishing when

he could, and waiting anxiously for the arrival of Cromwell, who, having at length taken Pembroke and so far settled Wales (July 11), was hurrying to the new scene of action in the north. Off Kendal, a body of about 3,000 Scots, brought over from Ireland by Major-general Sir George Monro, attached itself to Hamilton, with an understanding that Hamilton's orders to it were to be directly from himself to Monro. There was then a debate whether it would be best to advance straight south into Lancashire, or to strike east into Yorkshire. It was decided for Lancashire. On into Lancashire, therefore, they moved, the poor people in the track behind them grieving dreadfully over their ravages, but dignified papers of the Scottish Parliament preceding them to explain the invasion. Scotland had made an Engagement to rescue the King, free England from the tyranny of an Army of Sectaries, establish Presbytery, and put down "that impious Toleration settled by the two Houses contrary to the Covenant!"

While the Scots were thus advancing into the north-west of England, the Prince of Wales had brought his Fleet from Holland, and (the Queen's idea that he should go to Scotland having been postponed) was hovering about the south-east coast. By fresh accessions the fleet had been increased to nineteen sail; it had been provisioned by the Prince of Orange; and there were 2,000 soldiers on board. On the 25th of July the Prince was off Yarmouth, where a landing of the soldiers was attempted with a view to relieve Colchester. That failing, he removed to the mouth of the Thames, to obstruct the commerce of the Londoners, and make prizes of their ships. Precisely at the time when the Westmorland and Lancashire people were grieving over the ravages of the invading Scots, the Londoners were in consternation over the capture by the Prince of an Indiaman and several other richly-laden vessels. For the ransom of these by their owners the Prince demanded huge sums of money, intimating at the same time (Aug 8) that the block of the Thames would be kept up until the Londoners declared for the King, or Parliament agreed to a cessation of arms on certain loyal

conditions. [Footnote: In the summary given in the text of the incidents of the Civil War from March to August 1648, I have tried to reduce into chronological connexion the information given disconnectedly in Rushworth, VII. 1010-1220, and at large in Clarendon, Book XI. There have been references, for dates and facts, to the Parliamentary History and Journals, Burnet's *Hamiltons*, Godwin's *Commonwealth*, and Carlyle's *Cromwell*.]

Through these four or five months of Royalist risings coalescing at last in a Civil War as extensive as the first had been, and much more entangled (April-Aug. 1648), what had been the conduct of Parliament? It had been very odd indeed.

Nothing could have been bolder than the attitude of the two Houses, and especially of the Commons, for a month or so after their famous No-Address Resolutions of Jan. 1-15. Thus, on the 11th of February, the Commons adopted, by a majority of 80 to 50, a Declaration, which had been prepared in Committee, and chiefly by Nathaniel Fiennes and Henry Marten, setting forth their Reasons for breaking off communication with the King. They published the document without consulting the other House. It was the severest criticism of the King personally that had yet been put forth by either House of Parliament, severe even to atrocity. His whole reign was reviewed remorselessly from its beginning, and characterized as "a continued track of breach of trust to the three kingdoms," and there was even the horrible insinuation that he had connived with the Duke of Buckingham in poisoning his own father. After this tremendous document — so tremendous that two Answers to it were published, one from the King himself, and the other written anonymously by Hyde in Jersey—who could have expected that the Commons would again make friendly overtures to his Majesty? Yet such was the fact. The tergiversation, however, was gradual. Through the rest of February, the whole of March and most of

April, the Commons were still in their austere fit, utterly ignoring the King, and prosecuting punctiliously such pieces of business as the Reply to the recent Declarations and Protests of the Scots, and the Revision of the Westminster Assembly's *Confession of Faith and Larger Catechism*. [Footnote: The Revision of the *Confession of Faith* by the two Houses was completed June 20, 1648, when, with the exception of certain portions about Church-government held in reserve, it was passed and ordered to be printed: not, however, with the title "Confession of Faith," but as "Articles of Christian Religion approved and passed by both Houses of Parliament after advice had with the Assembly of Divines by authority of Parliament sitting at Westminster." The Revision, though detailed, was much a matter of form, paragraph after paragraph passing without discussion. On at least one point, however, there was a division in the Commons (Feb. 18, 1647-8). It related to Chap. XXIV. of the Confession, entitled *Of Marriage and Divorce*. The question was whether the House should agree to the last clause of the 4th paragraph of that Chapter—"The man may not marry any of his wife's kindred nearer in blood than he may of his own, nor the woman of her husband's kindred nearer in blood than of her own." For the *Yea* there voted 40 (Sir Robert Pye and Sir Anthony Irby, tellers); for the *No* 71 (Sir William Armyn and Mr. Knightley, tellers); in other words, the House by a majority of 31 doubted the ecclesiastical doctrine of forbidden degrees of *affinity* in marriage.] The attendance during these months ranged from about 70 to 190, and the Independents, or friends of the Army, seemed still to command the majority. On the 24th of April, however, on a call of the House, occasioned by the prospect of the Scottish invasion and the signs of Royalist movement in England, no fewer than 306 members appeared in their places, Many of these seem to have been Presbyterian members, long absent, but now whistled back by their leaders for a fresh effort in behalf of Royalty in connexion with Presbytery. At all events, from this call of the House on April 24 the tide is turned, and we find vote after vote showing

renewed Presbyterian ascendancy with an inclination to the King. Thus, on the 28th of April, it was carried by 165 votes to 99, that the House should declare that it would not alter the fundamental government of the kingdom, by King, Lords, and Commons; also, by 108 to 105, that "the matter of the Propositions sent to the King at Hampton Court by consent of both kingdoms" should be the ground of a new debate for the settlement of the kingdom; also, by 146 to 101, that the No-Address Resolutions of January should not hinder any member from propounding in the debate anything that might tend to an improvement of the said Propositions. Here certainly was a change of policy; and, if there could be any doubt that it was effected by a sudden influx of Presbyterians, that doubt would be removed by a stupendous event which followed, appertaining wholly to the Religious question. On the 1st of May (the very day on which Cromwell was ordered off to South Wales by Fairfax and the Council of War) there was brought up in the Commons an "*Ordinance for the Suppression of Blasphemies and Heresies*," which the Presbyterians had been long urging and labouring at in committees, but which the Independents and Tolerationists had hitherto managed to keep back. Without a division it passed the House that day; next day it passed the Lords; and, accordingly, under date May 2, 1648, this is what stands in the Lords Journals as thenceforward to be the Law of England:—

"For the preventing of the growth and spreading of Heresy and Blasphemy: Be it ordained ... That all such persons as shall, from and after the date of this present Ordinance, willingly, by preaching, teaching, printing, or writing, maintain and publish that there is no God, or that God is not present in all places, doth not know and foreknow all things, or that He is not Almighty, that He is not perfectly Holy, or that He is not Eternal, or that the Father is not God, the Son is not God, or that the Holy Ghost is not God, or that They Three are not One Eternal God; or that shall in like manner maintain and publish that Christ is not God equal with the Father, or

shall deny the Manhood of Christ, or that the Godhead and Manhood of Christ are several natures, or that the Humanity of Christ is pure and unspotted of all sin; or that shall maintain and publish, as aforesaid, that Christ did not die, nor rise from the dead, nor is ascended into Heaven bodily, or that shall deny His death is meritorious in the behalf of Believers; or that shall maintain and publish, as aforesaid, that Jesus Christ is not the Son of God; or that the Holy Scripture, *videlicet* [here comes in the entire list of the Canonical Books of the Old and New Testaments], is not the Word of God; or that the bodies of men shall not rise again after they are dead; or that there is no Day of Judgment after death:—All such maintaining and publishing of such Error or Errors, with obstinacy therein, shall, by virtue hereof, be adjudged Felony: And all such persons [here is explained the process by which they are to be accused and brought to trial].. and in case the indictment be found and the party upon his trial shall not abjure the said Error, and defence and maintenance of the same, he SHALL SUFFER THE PAINS OF DEATH, AS IN CASE OF FELONY, WITHOUT BENEFIT OF CLERGY..."

"Be it further ordained, by the authority aforesaid, That all and every person or persons that shall publish or maintain, as aforesaid, any of the several Errors hereafter ensuing, *videlicet* [here a long enumeration of *minor* forms of Religious Error, such as "that man by nature hath free will to turn to God," that God may be worshipped by pictures and images, that there is a Purgatory, "that man is bound to believe no more than by his reason he can comprehend," "that the baptizing of infants is unlawful," that the observation of the Lord's Day is not obligatory, or "that the Church-government by Presbytery is Anti- Christian or unlawful"], shall be [ordered to renounce their Error or Errors in public congregation, and, in case of refusal,] COMMITTED TO PRISON...."

Imagine *that* going forth, just as the Second Civil War had begun, as the will and ordinance of Parliament! One wonders that the Concordat between Parliament and the Army, arranged by Cromwell and the other Army- chiefs in the preceding November, was not snapped on the instant. One wonders that the Army did not wheel in mass round Westminster, haul the legislating idiots from their seats, and then undertake in their own name both the war and the general business of the nation. The behaviour of the Army, however, was more patient and wise. Parliament could be reckoned with afterwards; meanwhile let it pass what measures it liked, so long as it did not absolutely throw up its trust and abandon all to the King! Till Parliament should do that, the fighting which the Army had to do at any rate might as well be done in the name of the Parliament!

Really there seemed a chance that even the last extremity of faint-heartedness would be reached, and that Parliament *would* throw up its national trust. Here, for example, were some of its proceedings in June and July, of which Cromwell must have heard, with rather strange feelings, in the midst of his hard work in Wales, Lambert in his watch against the Scots in the north, and Fairfax and Ireton in their siege of Colchester. June 3, 7, and 8, the two Houses, of their own accord, or on earnest Petitions from the City, agreed to drop all the impeachments and other proceedings voted in the preceding year at the instance of the Army against members of their own body, and against City officials implicated in the Presbyterian tumults in London, and in particular to invite the Seven peccant Peers and the survivors of the Eleven peccant Commoners to return to their places. June 30 and July 3 the proposal to re-open a Treaty with the King was after much intermediate debating, brought to a bearing by a formal agreement of the two Houses to rescind their No- Address Resolutions of January, and by a vote of the Commons that the Propositions to be submitted to the King for his assent before farther treaty should be these three—Presbytery for three years, the Militia with Parliament for ten years, and the Recall by the King

of all Proclamations and Declarations against the Parliament. Even this, so much more favourable to the King than former offers, the Lords thought too harsh; and they refused (July 5) to make the Treaty conditional on the King's prior assent to the three Propositions. Nor was this the only proof that the bravery of the Lords had evaporated even more completely than that of the Commons. On July 14, when it was known that Hamilton's Army of Scots was actually in England, the Commons did vote that the invaders were public enemies, and that all Englishmen who should abet them should be accounted traitors; but the Lords (July 18) refused to concur in that vote. Were the soldiers of Parliament, then, to be fighting against invaders whom one of the Houses did not regard as public enemies?—In short, the fact had come to be that, in the beginning of August, the forces of Fairfax, Lambert, and Cromwell, were conducting a war in the name of Parliament which Parliament and the City of London were taking every means to stop. A Petition of the Lord Mayor, Aldermen, and Common Council of the City, presented to the Lords Aug. 8 (the last of scores of Petitions in the same sense that had for a month or two been poured in), expressed the general Presbyterian feeling. "The government of the Church still unsettled; blasphemy, heresy, schism, and profaneness increased; the relief of bleeding Ireland obstructed; the war, to their great astonishment, renewed; the people of England thereby miserably impoverished and oppressed; the blood of our fellow-subjects spilt like water upon the ground; our Brethren of Scotland now entered into this kingdom in a hostile manner, his Highness the Prince of Wales commanding at sea a considerable part of the Navy, and other ships under his power, having already made stay of many English ships with merchandise and provisions to a very great value:"—these were the complaints; and the Petitioners humbly conceived there was no visible remedy but the "speedy freeing of his Majesty" from restraint, and "a Personal Treaty" with him for "restoring him to his just rights." The City was to have its will. The Commons (July 28) had abandoned, by a majority

of 71 to 64, their intention to require assent to the three Propositions in preparation for a Treaty, and had agreed to a general and open Treaty, such as the Lords desired; communications on the subject had been made to the King; and, though his Majesty would have preferred to treat in London, he consented (Aug. 10) that the place should be Newport in the Isle of Wight. —Note also two contemporary incidents of deep significance. On the 2nd of August Major Robert Huntingdon, Cromwell's former Major, presented to the Lords, in the form of a Paper of "Sundry Reasons inducing him to lay down his Commission," what was really a series of charges of High Treason against Cromwell; the Paper was that day duly entered in the Lords Journals for future occasion; and it was with the utmost difficulty, and much contrivance of the Speaker, that the same Paper was kept out of the Commons. Such was the first incident; the other is thus given by Rushworth under date Aug. 14: "Colonel Denzil Holles came this day to the House and sat." This means that the chief of the Eleven, the Arch- Presbyterian of the House, the man who hated Cromwell worse than poison, had come back at this juncture to re-assume the Presbyterian leadership. After that Major Huntingdon's charges against Cromwell were not likely to be kept long out of the Commons by any contrivance of the Speaker. [Footnote: The facts in this account of the conduct of Parliament from Feb. to Aug. 1648 are from the Parliamentary History, the Lords and Commons Journals, and Rushworth. The dates given will indicate the exact places in these authorities.]

If ever a General fought for his country with the rope round his neck, that General was Cromwell, as he now fought for England. No one knew this better than himself, when, with his hardy troops hurried north from their severe service in Wales, he joined Lambert among the Yorkshire hills (Aug. 10 or thereabouts), to deal with the army of Hamilton and Langdale. Let him fail in this enterprise, let him succeed but doubtfully in it, and, in the relapse into Royalism which would then be universal, the first uproar of

execration would be against *him*, and London would either never see him again or see him dragged to death. Fail!-succeed but doubtfully! When the wicked plot against the just and gnash upon him with their teeth, doth not the Lord laugh at them and see that their day is coming? It was in this faith that Cromwell, descending westward from the Yorkshire hills after his junction with Lambert, hurled himself, with his little army of not more than 9,000 in all, right athwart the track of Hamilton and his 24,000 of mixed Scots and English advancing through Lancashire. The result was THE THREE DAYS' BATTLE OF PRESTON (Aug. 17- 19), in which the Scots and their English allies were totally ruined. About 3,000 were slain; 10,000 were taken prisoners; of the host of fugitives only a portion succeeded in attaching themselves to Monro, who had been lying considerably to the rear of the main battle and now picked up its fragments for a retreat northwards; the rest were dispersed miserably hither and thither, so that for weeks afterwards poor Scots were found begging about English farmhouses, either pretending to be dumb lest their speech should betray them, or trying vainly to pass for Yorkshiremen. Hamilton, with a fraction of the fugitives, made his way into Staffordshire, but had to surrender himself a prisoner Aug. 25.

The collapse of the King's cause, begun in Lancashire Aug. 17-19, was to be absolute within the next fortnight. On the 28th of August the Prince of Wales withdrew from his useless hovering about the south-east coast and sailed back with his fleet to Holland; whence most of the ships were recovered in due time, the officers remaining in exile, but the crews only too glad to return to their allegiance to Parliament. On the same day the town of Colchester, after a siege of more than six weeks, during which the most hideous extremities of famine had been endured by the poor townsmen, surrendered at mercy to Fairfax. Above 3,000 soldiers, with their officers, thus became prisoners. Two of the chief officers, Sir Charles Lucas and Sir George Lisle, selected for special reasons, were shot immediately after the surrender by order of the Council of War; the others,

including the Earl of Norwich and Lord Capel, were reserved for the disposal of Parliament. [Footnote: Rushworth, VII. 1225-1248; Parl. Hist. III. 992-1002; Lords and Commons Journals; Carlyle's Cromwell, I. 279-299.]

Thus, in the end of August 1648, the SECOND CIVIL WAR, with the exception of a few relics, was trampled out. Events then resolved themselves into two distinct courses, running parallel for a time, but one of which proved itself so much the more powerful that at last it disdained the pretence of parallelism with the other and overflowed the whole level.

In the first place, there was the progress of that TREATY OF NEWPORT to which the two Houses had pledged themselves while the war was going on. Delays had occurred in arranging particulars with the King, and it was not till Sept. 1 that the Commissioners of the two Houses were appointed. They were, for the Lords, the Earls of Northumberland, Pembroke, Salisbury, and Middlesex, and Viscount Saye and Sele, and, for the Commons, Viscount Wenman (of the Irish Peerage), Denzil Holles, Glynn, Vane the younger, William Pierrepont, Sir Harbottle Grimstone, Sir John Potts, John Crewe, Samuel Browne, and John Bulkley. Their instructions were to proceed to the Isle of Wight, and there, all together or any eight of them (of whom two must be lords), to treat with the King for forty days on the Propositions formerly presented to him at Hampton Court, taking these Propositions in a fixed order and doing their best to get his Majesty to agree to them, but receiving any counter-proposals he might make, and transmitting these to the two Houses. All demands on the King and all answers or proposals from him were to be in writing; but the debates might be oral between the Commissioners and his Majesty. Not to partake in these debates, but to be present at them by permission, and to form a kind of Council with whom the King might retire to consult on difficult points, were to be a largish body of Royalist lords, divines, lawyers, and others, to

whom, at his special request, leave had been given to repair to the island and to be in attendance on him throughout the Treaty. Among these were the Duke of Richmond, the Marquis of Hertford, the Earls of Lindsey and Southampton, Bishops Juxon, Duppa, and Dr. Saunderson, Sir Orlando Bridgman, Sir Thomas Gardiner, and Mr. Geoffrey Palmer. Finally, the King was to be on his parole not to attempt an escape during the Treaty, nor for twenty days afterwards. More than one attempt of the kind had been made during the four months of the Civil War. The wonder is that, while the Prince of Wales was off the English coast with his fleet, a rescue of the King had not somehow been effected. [Footnote: Parl. Hist III. 1001-4; Commons Journals, Sept. 1.]

Not till Friday Sept. 15 did the Parliamentary Commissioners arrive in the Isle of Wight. They were accompanied by Messrs. Marshall, Nye, Vines, Seaman, and Caryl, from the Assembly of Divines. The Treaty began on Monday the 18th, in a house in the town of Newport selected as the most suitable for the purpose. At the head of a table, under a canopy of state, sat the King; the lords, divines, and lawyers, permitted to be present as listeners in his behalf, stood grouped behind his chair; the Parliamentary Commissioners sat at the sides of the table, with a space between them and his Majesty. It was hoped at first by the Commissioners that the Treaty would be a short one. That the King would accept the Propositions one by one, without criticism or demur, as fast as they could be tabled, was the desire, above all, of Holles, Glynn, and the other Presbyterian Commissioners. To their surprise, even to their horror, Charles had never been more captious or guarded in his highest kingliness than he was now found in the depths of his doubled ruin. Over the Proposition first presented—that for annulling all declarations and acts against Parliament—he was so dilatory that not till Sept. 25 was it completely passed, and then only with the proviso that his assent to it should have no force until the whole Treaty should be concluded. On the Church question, also brought forward the first

day, he was more hopelessly unimpressible. The Proposition on this question being complex, he framed his first Answer so as to include only some of the points and evade the others. He consented to the establishment of Presbytery for three years, but not to the perpetual alienation of the Bishops' lands; and as to the abolition of Episcopacy and the obligation of the Covenant he said not a word. Then, these points being pressed, he argued and re-argued, day after day, conceding only that Episcopacy should be limited, and the like, till the Commissioners, despairing of any full agreement on that Proposition, left it, and passed to others (Oct. 9). On some of these others, including that on the Militia, he chose to acquiesce at once; but a second block occurred on the Proposition relating to Delinquents (Oct. 13-17). All this while, the King was the sole speaker on his side, retiring now and then to consult with his advisers, and of course framing his written Papers with their advice, but always resuming the oral debate himself, and showing an ability both in actual reasoning and in the conduct of the business generally which surprised some of the Commissioners. The necessity of continual reference to the two Houses increased the delay. There had been various debates in both on the progress of the Treaty as reported by the Commissioners, and on the 12th of October the Commons had voted the King's answer on the Church question unsatisfactory. The King, in consequence, revised his Answer on this question, and offered, among other things, to consent to the abolition of Archbishops and all other grades of the hierarchy, if the single office of Bishops were preserved. This revised Answer the Commons voted unsatisfactory, Oct. 26, the Lords agreeing substantially next day; and on the 30th of October the Commons passed a similar vote respecting the Answer on Delinquents. At this point, therefore, the Treaty may be considered to have come to a stop. At the same time there came to a stop a written controversy on the Church question, which had been going on collaterally between his Majesty and the Divines of the Assembly attending

the Commissioners. The controversy was a repetition of that between the King and Henderson at Newcastle. It had begun Oct. 2, and it was wound up by his Majesty in a long last Paper Nov. 1.

It was mainly on the Episcopacy question that the Treaty was wrecked; or rather it was on this question that the King had chosen that there should be the appearance of wreck. For, in truth, the Treaty on his side, like his former Treaties, had been all along a pretence. Though his doom was staring him in the face, he could not see it, but had again been mustering up wild hopes of some great turn of the wheel in his favour if he could but procrastinate enough. Had not the Marquis of Ormond, for example, effected a landing in Wexford, with a view to a junction with the Irish Roman Catholic Confederates? Might not something come out of that? Or might there not be some help yet from the Prince of Wales in Holland, or from the Queen's and Jermyn's plottings at Paris, or from the Scots after all? To take advantage of any or all of these contingencies, a temporary refuge on the Continent might be necessary; and so, when the time of his parole should be over, a means of escape must be devised! Such having been Charles's mood when he began the Treaty, one does not wonder at finding that he had been behaving with his usual duplicity while it was in progress. "To deal freely with you," he had secretly written to one correspondent on the day when he had accepted the Proposition on the Militia question, "the great concession I made this day was merely in order to my escape, of which if I had not hope, I would not have done it." Again to the Marquis of Ormond in Ireland, "Though you will hear that this Treaty is near, or at least most likely to be, concluded, yet believe it not; but pursue the way you are in with all possible vigour: deliver also that my command to all your friends, but not in public way." With such a man, now as ever, a Treaty was absurd.

Parliament did not break off the Treaty, even when its failure had become apparent, but allowed it to straggle on. The term of forty days first fixed had

been prolonged to Nov. 4, and on that day most of the Commissioners left Newport on their return to London. Six of them, however, remained behind, on the chance that his Majesty might yet see his way to more complete concessions on the Church question. On this mere chance the Treaty was prolonged to Nov. 18, and again to Nov. 25; and, as his Majesty had begged Parliament that he might have the assistance of such new advice on the Church question as could be given by Usher, ex- Bishops Brownrigg, Prideaux, and Warner, and Drs. Ferne and Morley, leave had been granted to these divines to proceed to Newport. Nothing to the purpose came of their advice; for in the King's final letters from Newport to the two Houses, dated Nov. 18 and Nov. 21, he is as firm as ever on the necessity and Apostolical origin of the order of Bishops, quotes 1 Timothy v. 22 and Titus i. 5 in that behalf, and protests that he can go no farther than his previous offer of a reduction of Episcopacy to its barest Apostolical simplicity. On Friday the 24th of November these letters were voted unsatisfactory by both Houses, but it was resolved (not without a division in the Commons) to allow the King two days more. The Treaty was to be considered at an end on the night of Monday the 27th, and on the next day, with or without satisfaction, the Commissioners still on duty were to take their leave. By the King's parole he would be bound not to attempt an escape from the island till twenty days after that. Colonel Hammond, observing signs that the King meant to assume that the terms of his original parole had ceased to be binding, had prudently insisted on its public renewal. [Footnote: For the account of the treaty of Newport my authorities have been—Parl. Hist III. 1013-1133, with references at the chief dates to Rushworth and the Lords and Commons Journals; Works of King Charles I. (1651), pp. 191-286 of third paging; Godwin, II. 608-618.]

Meanwhile, in utter disgust at this protracted play of negotiation between Parliament and the King in the Isle of Wight, there had been forming itself

that other agency which was to interpose irresistibly, and hurry all to a real catastrophe.

The reader knows the nature of the paction between the Parliament and the Army-chiefs which we have taken the liberty of calling by the name of *The Concordat* (*antè*, pp. 573-4, 583-4). It was the agreement of the Army-chiefs, in Nov. 1647, to suppress for the time the democratic manifestations of the Army and its pretensions to political dictation, leaving the conduct of affairs wholly to Parliament. This Concordat, as we saw, though it saved the country from the peril of an immediate democratic revolution, was theoretically a clumsy one. The political views of the Army were singularly clear and direct. A strictly constitutional government of King, Lords, and Commons, with a large increase of the power of the Commons, guaranteed Biennial Parliaments, and a thoroughly Reformed System of Representation—such had been the ideal of the Army-chiefs in their *Heads of Proposals* of August 1647; the Levellers had gone a good deal farther in their *Agreement of the People* in Nov. 1647, and had proposed the abolition of hereditary privileges, and the concentration of supreme power in a single Representative House; but in both documents alike Liberty of Conscience and Worship was laid down as axiomatic, with a demand that it should be so recognised in the future law of England, for the benefit of Episcopalian and Papist no less than of Presbyterian, Independent, and Sectary. How could an Army burning with these notions bind itself to be the silent servant of a Parliament whose behaviour hitherto, on the religious question generally, and on the political question very often, had been so muddled and fatuous? Better surely for the Army to raise its own political flag and coerce Parliament into the right way! That this had not been done had been owing partly to the unwillingness of Cromwell, Ireton, and the other chiefs to take the responsibility all at once of heading a movement in which the Levelling Principle would be let loose, but partly also because hopes had been conceived that the balance in Parliament had been turned in favour of the

Independents. For several months, accordingly, the Army had not repented of the Concordat. Especially in January 1647-8, when the two Houses broke off their abortive Treaty with the King on the Four Bills, and passed their No- Address Resolutions, their boldness won renewed confidence from the Army. But, in the succeeding months, when the rumour of the Scottish Engagement with the King began to rouse Royalists and Presbyterians alike for a new war, and the absent Presbyterians of the Commons came back to their places to turn the votes, and these votes tended to a renewed Treaty with the King on the basis of a strict Presbytery, the disbandment of the Army, and the suppression of Sects,—then what could the Army do but spurn the Concordat? Like their own previous dealings with the King himself in the hope of winning him over, had not this Concordat been, after all, but a piece of carnal and crooked policy? To hold certain beliefs in the heart, and yet to consent to be the dumb instrument of those whose views were wholly different, or only half the same, could not be right in a reasoning body of free men, merely because they were called an Army! What had become of Cromwell's principles, avowed so frequently that the whole Army had them by heart—the principle "That every single man is judge of just and right as to the good or ill of a kingdom," and the principle "That the interest of honest men is the interest of the kingdom"? Nay, had not the Levellers had more of the real root of the matter in them than it had been convenient to allow, and had not the poor fellow who had been shot as a mutineer at the Rendezvous at Ware been in some sense a martyr? Now, at all events, would it not be necessary that at least *something* of the spirit of the Levellers, *some* of those proposals of theirs which had been lately suppressed as harsh and premature, should be revived with new credit, and adopted into the general creed of the Army?

That such self-reproaches for past mistakes, and such questionings as to the course of future duty, had become universal in the Army before the outbreak of the Second Civil War, is proved by very abundant evidence, but

nowhere more strikingly than in the record of the famous Prayer-meeting of the Officers, with Cromwell among them, held at Windsor Castle in March or April 1648. Adjutant-general Allen, the writer of this record, had a vivid recollection of this meeting eleven years afterwards, and could then look back upon it as an undoubted turning-point in the history of the Army and of the nation. At that time, he says, the Army was "in a low, weak, divided, perplexed condition in all respects" and there were even some who, in the prospect of the Scottish invasion and a new war at such vast odds, argued that the Army ought to resist no longer, but break up, and change the policy of collective action into one of individual passive endurance. Others, however, still thought that more remained to be done in the way of active duty, and it was at their instance that the meeting was called. It lasted three days, and with most remarkable results. The first day was spent in prayer for light as to the causes of God's renewed anger and their own perplexities. On the second day Cromwell proposed, as the best method of inquiry among themselves, that they should all simultaneously engage in silent retrospection, both upon their own past "ways particularly as private Christians," and also upon their "public actions as an Army." If they should each and all be led, in such retrospection, to fasten on some one precise point of time as that at which the Lord had withdrawn His former countenance and things had begun to go wrong, might there not be a lesson in that unanimity? And lo! on the third day it was so. They had all, in their silent review of the past, fastened on one and the same point, as that at which their departure from the straight path of truth and simplicity had begun. It was a point beyond their Concordat with the Parliament, and lay among those prior negotiations of the Army-chiefs with the King personally out of which the Concordat had seemed a natural escape. It lay, says Allen, in "those cursed carnal conferences our conceited wisdom, our fears, and want of faith, had prompted us, the year before, to entertain with the King and his Party." And with this unanimous agreement on the question where

the steps of error had begun there came a unanimous consent as to the right course of future duty. "We were led and helped," says Allen, "to a clear agreement amongst ourselves, not any dissenting, That it was the duty of our day, with the forces we had, to go out and fight against those potent enemies which that year in all places appeared against us...; and we were also enabled then, after serious seeking His face, to come to a very clear and joint resolution, on many grounds at large there debated amongst us, That it was our duty, if ever the Lord brought us back again in peace, to call Charles Stuart, that man of blood, to an account for that blood he had shed and mischief he had done to his utmost against the Lord's Cause and People in these poor Nations." [Footnote: See Allen's striking narrative (written in 1659) quoted at length in Carlyle's *Cromwell*, I. 263-266.]

This momentous resolution of the Army Officers, formed at Windsor most probably in April 1648, or just before Cromwell went off to suppress the Royalist rising in Wales, had lain dormant, but not wholly secret, in the bosom of the Army through all the four months of the renewed Civil War (May-Aug.). Not till the war was over, however, was the resolution formally announced. Even then it was done gradually. The first hints came from those Independents in the Commons who were in the confidence of the Armychiefs. In the debates preceding the Treaty of Newport some of these Independents had spoken with significant boldness, Mr. Thomas Scott for one declaring that "a peace with so perfidious and implacable a prince" was an impossibility; and, in fact, the Treaty was carried by the Presbyterians against the implied protest of the Independents. Then, just as the Treaty was beginning, there was presented to the House (Sept. 11) an extraordinary document purporting to be "The humble Petition of Thousands of well-affected Persons inhabiting the City of London, Westminster, the Borough of Southwark, Hamlets, and places adjacent." This Petition, said to have been penned by Henry Marten, was not merely a denunciation of the Treaty; it was a detailed democratic challenge. It

proclaimed the House of Commons to be "the Supreme Authority of England," and declared that it was for this principle, and nothing short of this, that England had fought and struggled for six years; and, after a severe lecture to the House for its pusillanimity in never yet having risen to the full height of this principle, it enumerated twenty-seven things which were expected from it when it should do so. Among these were the repudiation of any sham of a power either in the King or in the Lords to resist the will of the Commons, the passing of a Bill for Annual Parliaments, the execution of justice on criminals of whatever rank, the "exemption of matters of Religion and God's worship from the compulsive or restrictive power of any authority upon earth," and the consequent repeal of the recent absurd Ordinance "appointing punishments concerning opinions on things supernatural, styling some Blasphemies, others Heresies." Such a Petition, signed by about 40,000 persons, in or near London, hitherto pre-eminently the Presbyterian city, was a signal for similar Petitions from other parts. On the 30th of September there came a Petition in the same sense from "many thousands" of the well-affected in Oxfordshire, and on the 10th of October there were Petitions from Newcastle, York, and Hull, and from Somerset. [Footnote: Parl. Hist, III. 1005-11; Whitlocke, II. 413, 419.]

These civilian Petitions having prepared the way, the Army itself spoke out at last. Since Sept. 16 the headquarters of the Army had been at St. Alban's; and it was thence that on the 18th of October letters from Fairfax announced to the House of Commons that Petitions from the Officers and Soldiers of different regiments had been presented to him, or were in preparation, some of which were of a political nature. One, in particular, from General Ireton's regiment, called for "impartial and speedy justice" upon public criminals, and demanded "that the same fault may have the same punishment in the person of King or Lord as in the poorest Commoner." Such petitions to Fairfax appear to have dropped in upon him from regiment after regiment at St. Alban's during the next fortnight. One

Petition, however, heard of in London Oct. 30, was from Colonel Ingoldsby's regiment, then in garrison at Oxford. It also demanded "immediate care that justice should be done upon the principal invaders of our liberties, namely the King and his party;" it demanded, moreover, that "sufficient caution and strait bonds should be given to future Kings for the preventing the enslaving of the people;" and it went on to say that, as the Petitioners were almost past hope of these things from Parliament, and regarded the Treaty then in progress as a delusion, they could only pray his Excellency to "re-establish a General Council of the Army" to consider of some effectual remedies. This, in fact, was the practical conclusion on which the whole Army was bent, and to which all the regimental Petitions pointed. If Fairfax had yet any hesitations about complying, they must have been ended by what occurred in Parliament immediately afterwards. Not only were the two Houses still looking for some last chance from the Treaty of Newport, and extending the time of the Treaty again and again in the vain chase of this last chance; but in another matter, which lay wholly in their own power, their "half-heartedness" became apparent. At the very time when the Independents of London and other places, and the several regiments of Fairfax's Army, were calling for exemplary justice on the chief Delinquents in the late war, what were the punishments with which the Presbyterian majority in the Parliament proposed to let off those of the Delinquents who were then in custody? For the Duke of Hamilton (Earl of Cambridge in the English Peerage, and so liable to the pains of English treason) a fine of 100,000_l., with imprisonment till it should be paid; and for the Earls of Holland and Norwich, Lord Capel, Lord Loughborough, and four others, simple banishment! Resolutions to this effect passed the Commons Nov. 10, and were sent up for the approval of the Lords. The Army, though prepared for almost anything from the "half-heartedness" of the Parliament, heard of this last exhibition of it with positive "amazement." What else, it was asked, now remained than that the Army itself as a whole

should step forward, call its masters to a reckoning, and either compel them to be the instruments of a better policy, or take affairs into its own hands? Fairfax, with all his prudence, could not decline the responsibility: and accordingly a General Council of the Officers of the Army was held at St. Alban's under his presidency. It had sat about a week when (Nov. 16) a GRAND ARMY REMONSTRANCE, to be presented to the House of Commons, was unanimously adopted. [Footnote: Rushworth, VII. 1297-8, 1811-12, and 1830; Commons Journals, Nov. 10 1618, Whitlocke, II. 436.]

This GRAND ARMY REMONSTRANCE of Nov. 1648 is another of those documents from the pen of Ireton which deserve to be rescued from the contemporary lumber with which they are associated, and to be carefully studied on account of their supreme interest in English History. The document is of most elaborate composition, and of a length about equal to fifty pages of this volume; for, in fact, though formally addressed to the House of Commons, it was intended as a kind of Pamphlet to the English nation, setting forth the Army's views in a reasoned shape, and the programme of action on which they had resolved:—There is first an exposition of the rule *Salus Populi lex suprema*, a rule admitted to be capable of abuse and misapplication, but declared nevertheless to have a real meaning. Then there is a review of the relations between the Parliament and the Army from the time of what we have called the Concordat. Fain, it is added, would the Army have seen that Concordat perpetual; most reluctant were they to break it. But what had happened? Had not Parliament itself lapsed from those honest No-Address Resolutions of ten months ago which expressed the true sense of the Concordat? Had they not, within a few months after passing those Resolutions, utterly forgotten them, and run after that wretched rag of delusive hope called "A Personal Treaty with the King"? Nay, though events had again proved that the fears that had partly swayed them in this direction were groundless—though the Lord had again laid bare His arm, and that small Army which they had ceased to trust and

had well-nigh deserted and cast off, had been enabled to shiver all the banded strength of a second English Insurrection, aided by an invasion from Scotland—even after this rebuke from God, were they not still pursuing the same phantom of an Accommodation? Here the Remonstrants argue the whole subject most earnestly. Having laid down the principle that in every State the care of all matters of public concern must be in a Supreme Representative Council or Parliament, freely elected by the whole people, they maintain that any Kingship or other such office instituted in any State must be regarded as a creation of such Supreme Council for special ends and within special limits, and that any one holding such office who shall have been proved to have perseveringly abused his trust, or sought to convert it into a personal possession, may justly be called to account. They appeal to the entire recollection of Charles's reign whether he had not been such a false King, a cause of woe and war from first to last, a functionary guilty of the highest treason. But, if the past could be considered alone, and there were reasonable chance for the present and the future, they would not be relentless. "If there were good evidence of a proportionable remorse in him, and that his coming in again were with a new or changed heart," then, they say, "his person might be capable of pity, mercy, and pardon, and an accommodation with him, with a full and free yielding on his part to all the aforesaid points of public and religious interest in contest, might, in charitable construction, be just, and possibly safe and beneficial." But no such ground for charity, leniency, or tenderness had been afforded by Charles. Even now, while actually treating with the Parliament after his complete second ruin, was he not the same man as ever, dissembling, prevaricating, secretly expecting something from Ormond and the Irish Rebels? If such a man were restored to power, under whatever bonds, promises, guarantees, the consequences were but too obvious. All the credit, all the huzzas, of the new situation would be his; he would figure for a while as the Father of his People, the Restorer of would be forgotten, or

would be remembered only as implicated in the confusion that had ceased; and in a short time there would be parties, factions, divisions, and the beginnings of a new spider-web of Court-government and Absolutism. "Have you not found him at this play all along? And do not all men acknowledge him most exquisite at it?" So the Remonstrance proceeds, page after page, in long, complex, wave-like sentences, every sentence vital, and the whole impressing one with the grave seriousness of spirit, and also the political thoughtfulness, with which it was drawn up.—Towards the end come the specific demands which the Army made on the Commons, and which they were resolved to enforce. These are divided into two sets:—

I. *Immediate Demands*. These are five. First of all, it is demanded "That the capital and grand author of our troubles, the Person of the King, by whose commissions, commands, or procurement, and in whose behalf and for whose interest only, of will and power, all our wars and troubles have been, with all the miseries attending them, may be specially brought to justice for the treason, blood, and mischief he is therein guilty of." Next it is demanded that a limited time be set wherein the Prince of Wales and the Duke of York may return to England and render themselves: with the proviso that, if they do not so return, they are to be declared incapable for ever of any government or trust in the kingdom, and are to be treated without mercy as enemies and traitors if ever afterwards they are found in England; and also that, if they do return within the limited time, their cases are to be severally considered, and their past delinquencies (the Prince's being greatest, and "in appearance next unto his father's") either remitted or remembered for penalty as may be found fit; but that in any case all the estates and revenue of the Crown be sequestered for a good number of years, and applied to public uses, with reserve of a reasonable provision for the Royal Family and for old Crown- servants. Then it is demanded that a competent number of the King's chief instruments in the two Civil Wars may be brought, with him, in capital punishment. With this satisfaction to justice the

Remonstrants would be content; and they recommend that there should be moderate and clement treatment of other Delinquents willing to submit, but with perpetual banishment and the confiscation of estates for those of them who should remain obdurate. Finally, the special claims of the Army are brought forward, and it is demanded that there shall be full payment of their damages and arrearages.—II. *Prospective Demands*. These point to the future Political Constitution of England. Under this head the Army demand (1) a termination of the existing Parliament within a reasonable time; (2) a guaranteed succession of subsequent Parliaments, annual or biennial, to be elected on such a system of suffrage and of redistribution of constituencies as should make them really representative of the whole people; (3) the temporary disfranchisement and disqualification of the King's adherents; and (4) a strict provision that Parliament, as the representative body of the people, should henceforth be supreme in all things, except such as would question the policy of the Civil War itself, and such as might trench on the foundations of common Right, Liberty, and Safety. In this last provision it is definitely stipulated as a necessary item that, should Kingship be kept up in England, it should be as an elective office merely, every successive holder of which should be chosen expressly by Parliament, and should have no veto or negative voice on laws passed by the Parliament. [Footnote: See the entire Remonstrance (well worth reading) in Parl. Hist. III. 1077]

This vast document, signed officially by John Rushworth, "by the appointment of his Excellency the Lord General and his General Council of Officers," was brought to the Commons, with a brief note from Fairfax himself, on Monday, Nov. 20. It was presented in all form by a deputation of officers, consisting of Colonel Ewer, Lieutenant-colonels Kelsay, Axtell, and Cooke, and three Captains. The House was thunderstruck, and for some hours there was a high and fierce debate. Some of the Independents among the members spoke manfully in favour of the Remonstrance; others were for temporizing; but the more resolute Presbyterians, among whom Prynne was conspicuous, resented the Remonstrance as an insolence "subversive of the law of the land and the fundamental constitutions of the kingdom," and protested that "it became not the House of Commons, who are a part of the Supreme Council of the Nation, to be prescribed to, or regulated and baffled by, a Council of Sectaries in Arms." Nothing of all this appears in the Journals of the House, but only this entry: "Ordered, That the debate upon the Remonstrance of the General and his General Council of Officers be resumed on Monday next." That "Monday next" was the 27th of November, the very day on which the Houses had agreed that the negotiations with the King at Newport should finally cease. [Footnote: Commons Journals, Nov. 20, 1648; Whitlocke, same date; Parl. Hist. III. 1127-8 (where extracts are given from a contemporary account of the in the *Mercurius Pragmaticus*).]

Cromwell, it is to be remembered, was not at this time in the immediate scene of action. After his victory over Hamilton at Preston (Aug. 17-19), he had remained in the north, to recover Berwick and Carlisle from the Scots, dispose of the remnant of the Scottish invading forces under Monro, and take such other measures against the Scottish Government as that no more should be feared from that quarter.

His task had been easy. The "Engagement" with the King, and the consequent invasion of England by a Scottish army in the King's interest, had been, as we know (*antè*, p. 589), the acts only of the Scottish party then in power, the party of Hamilton and Lanark; and they had been vehemently opposed and disowned by the party of Argyle and Loudoun, backed by the popular sentiment and by nearly the entire body of the Scottish clergy. When, therefore, the news of the disaster at Preston reached Scotland, the "Anti-Engagers" rose everywhere against the Government of the existing Committee of Estates, assailed it with reproaches and execrations, and prepared to call it to account. Lanark, who had been left as the chief of the Government after the capture of his brother, endeavoured for a while to hold his ground. He recalled Monro and the relics of the Scottish army from England, and took the field with their joint forces. Meanwhile, the zealous Covenanting peasantry of the western shires, nicknamed *Whigs* or *Whigamores*, having obeyed the summons of Argyle, Loudoun, and the Earls of Eglinton and Cassilis, and marched eastward to assist their brethren round Edinburgh, the forces of the Anti-Engagers had swelled into an army of more than 6,000 men, the command of which was assumed by old Leslie, Earl of Leven, with David Leslie under him. For some time the two armies, or portions of them, moved about in East Lothian, and between Edinburgh and Stirling; there were some skirmishes; and a conflict seemed imminent. In reality, however, most of the noblemen of the Committee of Estates had no heart for the enterprise into which Lanark was leading them. They saw it to be desperate, not only from the strength of the Whigamore rising in Scotland itself, but also because Cromwell was at hand in the north of England, in communication with Argyle and the other Whigamore chiefs, and ready to cross the borders for their help, if necessary. Accordingly, after some negotiation, a Treaty was arranged (Sept. 26). By the terms of this Treaty, Monro was to return to Ireland with his special portion of the troops; but otherwise both armies were to be disbanded, Lanark and all who had

been concerned with him in the Engagement retiring from all places of trust, and the government of Scotland to be confirmed in the hands of Argyle and the Whigamores, who had already constituted themselves the new Committee of Estates *de facto*.

Although this arrangement had been effected without Cromwell's direct interference, he was actually in Scotland when it was made, having crossed the Tweed on the 21st of September with an army of horse and foot. The next day he had been met by Argyle, Lord Elcho, and others, as a Deputation from the new Committee of Estates, bearing letters signed in the name of the Committee by their Chancellor Loudoun. The new Government of Scotland most handsomely surrendered to Cromwell the towns of Carlisle and Berwick, with apologies for the conduct of their predecessors in having seized them; and Cromwell, delaying some days about Berwick to see all duly performed there, was able to write letters thence to Fairfax and Speaker Lenthall (Oct. 2), praising Argyle and Elcho, and announcing that there was a very good understanding between "the Honest Party of Scotland" and himself. It was involved in this understanding, however, that Cromwell should visit Edinburgh, and add the weight of his personal presence to the re-establishment of the Argyle Government on the ruins of that of the Hamiltons. On Wednesday, Oct. 4, therefore, he did enter Edinburgh, with his officers and guard, and with Sir Arthur Haselrig in their company. They were escorted into the city with all ceremony by the authorities, and lodged by them in Moray House in the Canongate, the finest mansion at hand for their reception. For four days the people of Edinburgh, waiting in crowds outside Moray House, had the opportunity of studying the features of the great English Independent as he came out or went in, passing the English sentries on guard at the gate. For the Whigamore nobles and those select citizens, including the magistrates and city clergy, who had the privilege of calling on him, the opportunities were, of course, still closer; and on the fourth day (Saturday, Oct. 7) there was a

sumptuous banquet in the Castle to him and his officers, at which the old Earl of Leven presided, and the Marquis of Argyle and other lords of the Committee of Estates were present.

So ended Cromwell's memorable first visit to Edinburgh; and, his real object having been accomplished (which was to pledge, the new Government of Scotland, and especially Argyle, to alliance in future with the advanced English party), he began his return journey southwards on the same day, only leaving Lambert, with two regiments of horse and two troops of dragoons, to be at the service of the Argyle Government so long as they might be wanted. A week later (Oct. 14) he was at Carlisle, seeing after the surrender of that town; and in the beginning of November he was at Pontefract in Yorkshire. Here he was to be delayed a while. The Castle of Pontefract, a very strong place, commanded by one Morris, still held out for the King, and was the refuge of much of the fugitive Cavalierism of the surrounding district, now in a mood of actual desperation. Sallies from the Castle for robbery and revenge had been frequent; and, just as Cromwell was expected in the neighbourhood, a party of the desperadoes, riding out in disguise, had gone as far as Doncaster, obtained admission to the lodging of Colonel Rainsborough there, under pretence of bringing him letters from Cromwell, and left him stabbed dead (Sunday, Oct. 29). The business of pacifying Yorkshire, which otherwise might have been left to Rainsborough, thus devolved upon Cromwell. He summoned Pontefract Castle to surrender Nov. 9; and, the surrender having been refused, he remained at Pontefract all the rest of that month, superintending the siege. [Footnote: Burnet's *Hamiltons* (edit. 1852), 465-482; Carlyle's *Cromwell*, I. 299-333; Rushworth, VII. 1314-15. The first open occurrence of the word *Whig* in British History was, I believe, in the circumstances described in the text at p.621. The original *Whigs* were the zealous Covenanting peasants, or true-blue Presbyterians, of Ayrshire, Lanarkshire, and other western Scottish counties; and the nickname was derived, it is supposed, either from

the sound *Whigh* (meaning *Gee-up*) used by the peasantry of those parts in driving their horses, or simply from the word *Whey* (in Anglo-Saxon *hwæg*), by comparison to the solemn Presbyterians to the sour watery part of milk separated from the curd in making cheese.]

Thus, through the three months in which the English Army and Independents were waxing more and more indignant at the Treaty with the King at Newport, and determining to break it down, and to bring the King to trial for his life with or without the concurrency of Parliament, Cromwell, as we said, was away from the immediate scene of action. There is not the least doubt, however, that he was aware generally of the proceedings of his friends in the south, and that one of their encouragements was the knowledge that Cromwell was with them. There are, however, actual proofs. Thus, about the middle of September, or just after the presentation to the Commons of the great London Petition asking the Commons to declare themselves the supreme authority of England, one finds Henry Marten, the framer of that Petition, on a journey to the north, for the purpose of consulting with Cromwell, then on his way to Scotland. Their consultation cannot have boon for nothing. At all events, after Cromwell returned into England and engaged in the siege of Pontefract Castle, his letters attest his interest in the proceedings of Ireton and the other Army officers at St. Alban's. In one letter, dated "near Pontefract," Nov. 20, he expresses his own anger and that of his officers at the recent lenient votes of the Commons in the case of the Duke of Hamilton and the other eminent Delinquents. On the same day he writes in the same sense to Fairfax, and forwards Petitions from the regiments under his command in aid of those which Fairfax had already received from the southern regiments. When these letters were written Cromwell had not heard of the adoption at St. Alban's of the Grand Army Remonstrance drawn up by his son-in-law, or at least did not know that on that very day it had been presented to the Commons. Before the 25th of November, however, he had

received this news too, and had a full foresight of what it portended. For that is the date of one of the most remarkable letters he ever wrote, his letter from "Knottingley near Pontefract "to Colonel Robert Hammond, Governor of the Isle of Wight. This young Colonel, upon whom the sore trial had fallen of having the King for his prisoner, was, as we have said, one of Cromwell's especial favourites, and the long letter which Cromwell now addressed to him was in reply to one just received from Hammond, imparting to Cromwell his doubts respecting the recent proceedings of the Army, and his own agony of mind in the difficult and complicated duties of his office in the Isle of Wight. Cromwell's letter, so occasioned, begins "Dear Robin," and is conceived throughout in terms of the most anxious affection, struggling with a half-expressed purpose. He reasons earnestly with Hammond on his doubts and scruples, sympathizing with them so far, but at the same time combating them, and suggesting such queries as these—"first, Whether *Salus Populi* be a sound position? secondly, Whether in the way in hand [*i.e.* the Parliamentary rule as then experienced], really and before the Lord, before whom Conscience has to stand, this be provided for?... thirdly, Whether this Army be not a lawful Power, called by God to oppose and fight against the King upon some stated grounds, and, being in power to such ends, may not oppose one Name of Authority, for these ends, as well as another Name?" [*i.e.* may not oppose Parliament itself as well as the King.] He refers to the Grand Army Remonstrance, of the publication of which he has just heard. "We could perhaps have wished the stay of it till after the Treaty," he says, for himself and the officers of his northern part of the Army; "yet, seeing it is come out, we trust to rejoice in the will of the Lord, waiting His further pleasure." Again returning to the main topic, Hammond's scruples, he pleads almost yearningly with him: "Dear Robin, beware of men; look up to the Lord." Had Hammond really reasoned himself, with other good men, into that excess of the passive-obedience principle which maintained that as much good might come to England by

an accommodation with the King as by breaking with him utterly? "Good by this Man," Cromwell exclaims, "against whom the Lord has witnessed, and whom *thou* knowest!" Then, after a few more sentences: "This trouble I have been at," he concludes, "because my soul loves thee, and I would not have thee swerve, or lose any glorious opportunity the Lord puts into thy hand." [Footnote: Rushworth, VII. 1265; Lords Journals, Nov. 21 (Hammond's Letter); Carlyle's Cromwell, I. 333-345.]

Cromwell's letter to Hammond was too late for its purpose. At Fairfax's head-quarters at St. Alban's it had been resolved that, until there should be a satisfactory answer from the Commons to the Army's Remonstrance, the Army must secure the main object of that Remonstrance by taking the King's person into its own custody. For the management of this business it was most important that the officer in command in the Isle of Wight should be one of unflinching Army principles. Hence, as the amiable Hammond's scruples were well known, and had indeed been communicated by him to Fairfax as well as to Cromwell, it had been resolved, partly in pity to him, partly in the interest of the business itself, to withdraw him from the Isle of Wight at that critical moment. Accordingly, on the 21st of November, Fairfax had penned a letter to Hammond from St. Alban's, requiring his presence with all possible speed at head-quarters, and ordering him to leave the island meanwhile in charge of Colonel Ewer, the bearer of the letter. This letter did not reach Hammond till Nov. 25 (the very day when Cromwell was writing to him from Yorkshire); and it was not then delivered to him by Colonel Ewer in person, but by a messenger. The next day, Sunday, Nov. 26, Hammond wrote from Carisbrooke Castle to the two Houses of Parliament, informing them of what had happened, enclosing a copy of Fairfax's letter, and signifying his intention of obeying it. This communication was brought to London with all haste by Major Henry Cromwell, Oliver's second son, then serving under Hammond, and was the subject of discussion in both Houses on the 27th. Fairfax's intervention

between Parliament and one of its servants was condemned as unwarrantable; a letter to that effect, but in mild terms, was written to Fairfax; and Major Cromwell was sent back with a despatch from both Houses to Hammond, instructing him to remain at his post. Before this despatch reached Hammond, however, there had been a meeting between him and Ewer, and some intricate negotiations, the result of which was that he and Ewer left the island together, Nov. 28, bound for the Army's headquarters (then removed to Windsor)—Hammond entrusting the charge of the island in his absence, with strict care of the King's person, to Major Rolph and Captain Hawes, his subordinates at Newport, in conjunction with Captain Bowerman, the commandant at Carisbrooke Castle. Ewer having thus succeeded in withdrawing Hammond from his post, and having doubtless made other necessary arrangements while he hovered about the island, the execution of what remained was left to other hands, and principally to Lieutenant-colonel Cobbet and a Captain Merryman. [Footnote: Lords Journals, Nov. 27 and 30; Parl. Hist. III. 1133 *et seq.*; Rushworth. VII. 1338 *et seq.* In most modern accounts Ewer simply comes to the Isle of Wight, displaces Hammond, and removes the King. Not so by any means. It was a complicated transaction of seven or eight days; Ewer was *in* the trans-action, and perhaps the principal in it; but, except in his interview with Hammond, he keeps in the background.]

Not till the evening of Thursday, Nov. 30, does any suspicion of what was intended seem to have been aroused in the mind of the King. He was then still in his lodgings in Newport. The Treaty had come to an end three days before; the Parliamentary Commissioners for the Treaty had returned to London; most of the Royalist Lords and other Counsellors who had been assisting the King in the Treaty had also gone; only the Duke of Richmond, the Earls of Lindsey and Southampton, and some few others, remained. The stir through the island attending the close of the Treaty and the departure of so many persons had probably covered the coming and going of Ewer, his

interview with Hammond, and certain arrivals and shiftings of troops which he had managed. But on the Thursday evening, about eight o'clock, the Duke of Richmond, the Earl of Lindsey, and a certain Colonel Cook, who was with them, were summoned from their lodgings in the town to the King's. A warning had that moment been conveyed to his Majesty that there were agents of the Army at hand to carry him off. Immediately Colonel Cook went to Major Rolph's room, and interrogated him on the subject. The answers were cautious and unsatisfactory. The fact was, though Major Rolph dared not then divulge it, that he and his fellow-deputies, Captain Hawes and Captain Bowerman, knew themselves to be superseded by Lieutenant-colonel Cobbet and Captain Merryman, who had arrived that day with a fresh warrant from Fairfax and the Army Council, empowering them to finish what Ewer had begun. Only inferring from Rolph's uneasiness that something was wrong, Colonel Cook returned to the King and the two Lords. There was farther consultation, and a second call on Rolph; after which Cook volunteered to go to Carisbrooke Castle for farther information. It was an excessively dark night, with high wind and plashing rain; and the King consented to the Colonel's going only after observing that he was young and might take no harm from it. The Colonel, accordingly, groped his way through the dark and rain over the mile and a half of road or cross-road intervening between Newport and the Castle. His object was to see the commandant, Captain Bowerman. After some considerable time, spent under the shelter of the gateway, he was admitted and did see Captain Bowerman, but only to find him sitting sulkily with about a dozen strange officers, who were evidently his masters for the moment, and prevented his being in the least communicative. Nothing was left for the Colonel but to grope his way back to Newport. It was near midnight when, with his clothes drenched with wet, he reached the King's lodgings; and there, what a change! Guards all round the house; guards at every window; sentinels in the passages, and up to the very door of the

King's chamber, armed with matchlocks and with their matches burning! Major Rolph, glad to be out of the business, had gone to bed. They managed to rouse him, and to get the sentinels, with their smoke, removed to a more tolerable distance from the King's chamber-door. Then, for an hour or more, there was an anxious colloquy in the King's chamber, the Duke of Richmond and the Earl of Lindsey urging some desperate attempt to escape, but the King dubious and full of objections. Nothing could be done; and, about one o'clock, the Earl and the Colonel retired, leaving the King to rest, with the Duke in attendance upon him. There were then several hours of hush within, disturbed by sounds of moving and tramping without; but between five and six in the morning there came a loud knocking at the door of the King's dressing-room. When it had been opened, after some delay, a number of officers entered, headed by Colonel Cobbet. Making their way into the King's chamber, they informed him that they had instructions to remove him. On his asking whither, they answered, "To the Castle;" and, on his farther asking whether they meant Carisbrooke Castle, they answered, after some hesitation, that their orders were to remove him out of the island altogether, and that the place was to be Hurst Castle on the adjacent Hampshire mainland. Remarking that they could not have named a worse place, the King rose, was allowed to summon the Earl of Lindsey and all the rest of his household, and had breakfast. At eight o'clock coaches and horses were ready, and the King, having chosen about a dozen of his most confidential servants to accompany him, and taken a farewell of the rest of the sorrowing company, placed himself in charge of Colonel Gobbet and the troop of horse waiting to be his escort. Having seated himself in his coach, he invited Mr. Harrington, Mr. Herbert, and Mr. Mildmay to places beside him. Colonel Gobbet, as the commander of the party, was about to enter the coach also, when his Majesty put up his foot by way of barrier; whereupon Cobbet, somewhat abashed, contented himself with his horse. The cavalcade then set out, gazed after by all

Newport, the Duke of Richmond allowed to accompany it for two miles. A journey of some eight miles farther brought them to the western end of the island, a little beyond Yarmouth; whence a vessel conveyed them, over the little strip of intervening sea, to Hurst Castle that same afternoon (Dec. 1). The so-called Castle was a strong, solitary, stone blockhouse, which had been built, in the time of Henry VIII., at the extremity of a long narrow spit of sand and shingle projecting from the Hampshire coast towards the Isle of Wight. It was a rather dismal place; and the King's heart sank as he entered it, and was confronted by a grim fellow with a bushy black beard, who announced himself as the captain in command. The possibility of private assassination flashed on the King's mind at the sight of such a jailor. But, Colonel Cobbet having superseded the rough phenomenon, the King was reassured, and things were arranged as comfortably as the conditions would permit. [Footnote: Rushworth, VII. 1344-8 (narrative of Colonel Cook); *Ib.* 1351 and Parl. Hist. III. 1147-8 (Letter to Parliament from Major Rolph and Captains Hawes and Bowerman); and Sir Thomas Herbert's Memoirs of Charles I. 112-124. The day of the King's abduction from Newport has been variously dated by historians. It was really Friday, Dec. 1.]

Meanwhile Fairfax and the Army, by whose orders, all punctually written and dated, this abduction of the King had been effected, were on the move to take advantage of it. On Monday the 27th of November, the Commons, instead of taking up the consideration of the Grand Army Remonstrance as they had proposed, had again adjourned the subject. On Wednesday the 29th, accordingly, there was a fresh manifesto from Fairfax and his Council of Officers at Windsor. After complaining of the delays over the Remonstrance and of the continued infatuation of the Commons over the farce of the Newport Treaty, they proceeded. "For the present, as the case stands, we apprehend ourselves obliged, in duty to God, this kingdom, and good men therein, to improve our utmost abilities, in all honest ways, for the avoiding those great evils we have remonstrated, and for prosecution of

the good things we have propounded;" and they concluded with this announcement, "For all these ends we are now drawing up with the Army to London, there to follow Providence as God shall clear our way." This document, signed by Rushworth, reached the Commons on the 30th. They affected to ignore it, and still refused, by a majority of 125 to 58, to proceed to the consideration of the Army's Remonstrance. Next day, Friday Dec. 1, the tune was somewhat changed. The advanced guards of the Army were then actually at Hyde Park Corner, and the City and the two Houses were in terror. Saturday, Dec. 2, consummated the business. Despite an order bidding him back, Fairfax was then in Whitehall, his head-quarters close to the two Houses, and his regiments of horse and foot distributed round about. London and Westminster were, in fact, once more in the Army's possession. Nevertheless both Houses met that day in due form, and there was a violent debate in the Commons over the Treaty as affected by the new turn of affairs. The debate broke off late in the afternoon, when it was adjourned till Monday by a majority of 132 to 102. The news of the abduction of the King to Hurst Castle had not yet reached London, and Cromwell was still believed to be at Pontefract. [Footnote: Commons and Lords Journals of Nov. 27 to Dec. 2, 1648: Parl. Hist. III. 1134-1146; Rushworth, VII. 1349-59.]

CHAPTER II.

TROUBLES IN THE BARBICAN HOUSEHOLD: CHRISTOPHER MILTON'S COMPOSITION SUIT: MR. POWELL'S COMPOSITION SUIT: DEATH OF MR. POWELL: HIS WILL: DEATH OF MILTON'S FATHER—SONNET XIV. AND ODE TO JOHN ROUS-ITALIAN REMINISCENCES: LOST LETTERS FROM CARLO DATI OF FLORENCE: MILTON'S REPLY TO THE LAST OF THEM—PEDAGOGY IN THE BARBICAN: LIST OF MILTON'S KNOWN PUPILS: LADY RANELAGH—EDUCATIONAL REFORM STILL A QUESTION: HARTLIB AGAIN: THE INVISIBLE COLLEGE: YOUNG ROBERT BOYLE AND WILLIAM PETTY—REMOVAL FROM BARBICAN TO HIGH HOLBORN—MEDITATIONS AND OCCUPATIONS IN THE HOUSE IN HIGH HOLBORN: MILTON'S SYMPATHIES WITH THE ARMY CHIEFS AND THE EXPECTANT REPUBLICANS—STILL UNDER THE BAN OF THE PRESBYTERIANS: TESTIMONY OF THE LONDON MINISTERS AGAINST HERESIES AND BLASPHEMIES: MILTON IN THE BLACK LIST—ANOTHER LETTER FROM CARLO DATI: TRANSLATION OF NINE PSALMS FROM THE HEBREW—MILTON THROUGH THE SECOND CIVIL WAR: HIS PERSONAL INTEREST IN IT, AND DELIGHT IN THE ARMY'S TRIUMPH: HIS SONNET TO FAIRFAX—BIRTH OF MILTON'S SECOND CHILD: ANOTHER LETTER FROM CARLO DATI.

The two years and four months of English History traversed in the last chapter were of momentous interest to Milton at the time, were preparing an official career of eleven years for him at the very centre of affairs, and were to furnish him with matter for comment, and indeed with risk and responsibility, to the end of his days. While they were actually passing, however, his life was rather private in its tenor, and we have to seek him not so much in public manifestations as in his household and among his books.

PROBLEMS IN THE BARBICAN HOUSEHOLD: CHRISTOPHER MILTON'S COMPOSITION SUIT: MR. POWELL'S

COMPOSITION SUIT: DEATH OF MR. POWELL: HIS WILL: DEATH OF MILTON'S FATHER

We left the household in Barbican a rather overcrowded one, consisting not merely of Milton, his wife, their newly-born little girl, his father, and his two nephews, but also of his Royalist father-in-law Mr. Powell, with Mrs. Powell, and several of their children, driven to London by the wreck of the family fortunes at Oxford. For some months, we now find, the state of poor Mr. Powell's affairs continued to be a matter of anxiety to all concerned.

On the 6th of August, 1646, or as soon as possible after Mr. Powell's arrival in London, he had applied, as we saw, to the Committee at Goldsmiths' Hall for liberty to compound for that portion of his sequestered Oxfordshire estates which was yet recoverable. Milton's younger brother, Christopher, we saw, was at the same time engaged in a similar troublesome business. He too was suing out pardon for his delinquency on condition of the customary fine on his property; and, according to his own representation to the Goldsmiths' Hall Committee, the sole property he had consisted of a single house in the city of London, worth 40_l._ a year.

The Goldsmiths' Hall Committee being then overburdened with similar applications of Delinquents from all parts of England, the cases of Mr. Powell and Christopher Milton had waited their turn.

The case of Christopher Milton came on first. His delinquency had been very grave. He had actually served as one of the King's Commissioners for sequestrating the estates of Parliamentarians in three English counties. There seems, therefore, to have been a disposition at head-quarters to be severe with him. On the 24th of September the Committee at Goldsmiths' Hall did fix his fine for his London property at 80_l._ (*i.e.* a tenth of its whole value calculated at twenty years' purchase), receiving the first moiety of 40_l._ down, and accepting "William Keech, of Fleet Street, London,

goldbeater," as Christopher's co-surety for the payment of the second moiety within three months. But they do not seem to have been satisfied that the young barrister had given a correct account of his whole estate; and it was intimated to him that, while the 80_l_. would restore to him his London property, the House of Commons would look farther into his case, and he might have more to pay on other grounds. In fact, his case was protracted not only through the rest of 1646, but for five years longer, the Goldsmiths' Hall Committee never letting him completely off all that while, but instituting inquiries repeatedly in Berks and Suffolk, with a view to ascertain whether he had not concealed properties in those counties in addition to the small London property for which he had compounded. [Footnote: It is rather difficult to follow Christopher Milton's case through the Composition Records and other notices respecting it; but here is the substance of the first of them:— *Aug. 7, 1646, Delinquent's Application to Compound, with statement of his property, referred to Sub-Committee (Hamilton's Milton Papers, 128, 129); Aug. and Sept. 1646, Various proposals of the Committee as to the amount of his fine—at 80_l_ or "a tenth," at 200_l_ or "a third"— ending, ending Sept. 24, in the imposition of a fine of 80_l_ for his London property, with a hint that there might be farther demand (Hamilton, 62 and 129-30, and Todd. I. 162-3); Undated, but seemingly after Dec. 1646, Note of Christopher Milton as a defaulter for the latter moiety of his fine (Hamilton, 62). The case runs on through subsequent years to 1652; nay, as late as Feb. 1657-8 there is trace of it (Hamilton, 130, Document lxvi.).]*

Mr. Powell's case, for different reasons, was more complex. On the 21st of Nov. 1646, or somewhat more than three months after he had petitioned the Goldsmiths' Hall Committee for leave to compound, he sent in the necessary "Particular of Real and Personal Estate" by which his composition was to be rated. He had been living all the while in his son-in-law's house in Barbican; and the delay may have arisen from those

circumstances of perplexity, already known to the reader (*antè*, pp. 473-483), which rendered it difficult for him to estimate what the amount of his remaining property might really be. In the "Particular" now sent in, though he still designates himself "Richard Powell of Forest-hill," the Forest-hill mansion and lands are totally omitted, as no longer his property in any practical sense, but transferred by legal surrender to his creditor Sir Robert Pye. All that he can put on paper as his own is now (1) his small Wheatley property of 40_l. a year; (2) his "personal estate in corn and household stuff," left at Forest-hill before the siege of Oxford, and estimated at 500_l. if it could be properly recovered and sold; (3) his much more doubtful stock of "timber and wood," also left at Forest-hill, and worth 400_l. on a similar supposition; and (4) debts owing to him to the amount of 100_l. Against these calculated assets, of about 1,800_l. altogether, he pleads, however, a burden of 400_l., with arrears of interest, due to Mr. Ashworth by mortgage of the Wheatley property, and also 1,200_l. of debts to various people, and a special debt of 300_l. "owing upon a statute" to his son-in-law Mr. John Milton. As a reason for leniency, the fact is moreover stated that he had lost 3,000_l. by the Civil War. Actually, if his account is correct, he was insolvent; or, if his debt to his son-in-law were regarded as cancelled, he had but about 200_l. left in the world. In criticising his account, however, the Committee would be sharp-sighted. They would remember that it was his interest, on the one hand, to rate his debts and losses at the highest figure, and, on the other hand, to represent at the lowest figure all his remaining property, except those items of "corn and household stuff," and "timber and wood," which he held to have been illegally disposed of by Parliamentary officials, and for the recovery of which he might bring forward a claim against Parliament. How the Committee, or the sub-Committee to whom the case was referred Nov. 26, did proceed in their calculations can only be conjectured; but the result was that they charged Mr. Powell on his whole returned property, without any allowance whatever

for his debts. This appears from three documents in the State Paper Office, all of date Dec. 1646. On the 4th of that month Mr. Powell went through the two formalities required by law of every Delinquent before composition. He subscribed the National Covenant in the presence of "William Barton, minister of John Zachary" (the same clergyman who had administered the Covenant to Christopher Milton seven months before); and he took the so-called "Negative Oath" in presence of another witness. On the same day, before a third witness, he took another and more special oath, to the effect that the debts mentioned in his return to the Goldsmiths' Hall Committee were genuine debts, "truly and really owing by him," and that the estimate of his losses by the Civil War there set down was also just. Nevertheless, in the paper drawn up on the 8th of December by two of the Goldsmiths' Hall officials, containing an abstract of Mr. Powell's case, in which his own statements are accepted, and notice is taken of a request he had made for an allowance of 400_l._ off the value of the Wheatley property on account of the mortgage to that amount with which it was burdened, the fine is fixed by these ominous words at the close: "Fine at 2 yeeres value, 180_l._" The officials had been strict as Shylock. Taking the Wheatley property at Mr. Powell's own valuation of 40_l._ a year, without allowing his claim of a half off for the Ashworth mortgage, they had added 50_l._ a year as the worth of the remaining 1,000_l._ made up by the three other capital items in his return, and thus appraised him as worth 90_l._ a year in all. At the customary rate of two years' value, his fine therefore was to be 180_l._ The debts of the Delinquent might amount to more than his estimated property, as he said they did; but that was a matter between himself and the world at large, and not between him and the Commissioners for Compositions. [Footnote: The documents the substance of which is here given will be found in the Appendix to Hamilton's Milton Papers (pp. 76-78).—The Rev. William Barton seems to be the person of that name already known to us as author of that Metrical Version of the Psalms which the Lords favoured

against Rous's (*antè*, pp. 425 and 512). He may have been an acquaintance of Milton's; at all events, as minister of a church in Aldergate Ward, he was conveniently near to Barbican.]

Either the decision of the Goldsmiths' Hall Committee broke Mr. Powell down unexpectedly, or he had been ailing before it came. It is possible, indeed, that he had been confined to Milton's house during the negotiation, signing the Covenant and other necessary documents there, and unable to walk even the little distance between Barbican and Goldsmiths' Hall. Certain it is that he died there on or about the 1st of January, 1646-7, leaving the following will, executed but a day or two before:—

"In the name of God, Amen!—I, Richard Powell, of Forresthill, *alias* Forsthill, in the countie of Oxon, Esquire, being sick and weak of bodie, but of perfect minde and memorie, I praise God therefore, this thirtieth daie of December in the yeare of our Lord God one thousand six hundred fortie and six, doe make and declare this my will and testament in manner and forme following:—First and principallie, I comend my soule to the hands of Almighty God my Maker, trusting by the meritts, death, and passion of his sonn Jesus Christ, my Redeemer, to have life everlasting; and my bodie I comitt to the earth from whence it came, to be decentlie interred according to the discretion of my Executor hereafter named.—And, for my worldlie estate which God hath blessed rue withall, I will and dispose as followeth:—*Imprimis*, I give and bequeathe unto Richard Powell, my eldest son, my house at Forresthill, *alias* Forsthill, in the countie of Oxford, with all the household stuffe and goods there now remaining, and compounded for by me since at Goldsmiths' Hall, together with the woods and timber there remaining; and all the landes to my said house of Forresthill belonging and heretofore therewith used, together with the fines and profitts of the said landes and tenements, to the said Richard Powell and his heires and assignes for ever: to this intent and purpose, and it is the true meaning of

this my last will, that my landes and goods shalbe first employed for the satisfieing of my debts and funerall expenses, and afterwards for the raiseing of portions for his brothers and sisters soe far as the estate will reach, allowing as much out of the estate abovementioned unto my said sonn Richard Powell as shall equal the whole to be devided amongst his brothers and sisters, that is to saie the one halfe of the estate to himselfe and the other halfe to be devided amongst his brothers and sisters that are not alredie provided for; in which devision my will is that his sisters have a third parte more than his brothers.—My will and desire is that my said sonn Richard doe, out of my said landes and personall estate herein mentioned, satisfy his mother, my dearely-beloved wife Ann Powell, that bond I have entered into for the makeing her a joynture, which my estate is not in a condition now to dischargd.—And, lastlie, I doe by this my last will and testament make and ordaine my sonn Richard Powell my sole executor of this my last will, and I doe hereby revoke all former wills by me made whatsoever. And my will farther is that, in case my sonn Richard Powell shall not accept the executorshipp, then I doe hereby constitute and appointe, and doe earnestly desire, my dearely beloved wife Ann Powell to be my sole executrix, and to take upon her the mannageing of my estate abovementioned to the uses and purposes herein expressed. And, in case she doe refuse the same, then I desire my loveing friend Master John Ellston of Forresthill to take the executorshipp uppon him and to performe this my will as is herebefore expressed; to whom I give twentie shillings, to buy him a ring. And my earnest desire is that my wife and my sonn have no difference concerning this my will and estate.— *Item*, I give and bequeathe to my sonn Richard Powell all my houses and landes at Whately in the countie of Oxford, and all other my estate reall and personall in the kingdom of England and dominion of Wales, to the use, intent, and purpose above herein expressed: And my desire is that my daughter Milton be had a regard to in the satisfieing of her portion, and adding thereto in case my

estate will beare it. And, for this estate last bequeathed, in case my sonn take not upon him the executorshipp, then my will is my beloved wife shall be sole executrix, unto whom I give the landes and goods last abovementioned, to the uses and purposes herein mentioned. In case she refuses, then I appoint Master John Ellstone my executor, to the uses and purposes above-mentioned.—In witness hereof I have hereto put my hand and seale the daie and yeare first above-written.—For the further strengthening of this my last will, I doe constitute and appoint my loveing friends, Sir John Curson and Sir Robert Pye the elder, Knights, to be overseers of this my last will, desireing them to be aiding and assisting to my executor to see my last will performed, according to my true meaning herein expressed, for the good and benefitt of my wife and children; and I give them, as a token of my love, twentie shillings apiece, to buy them each a ring, for their paines taken to advise and further my executor to performe this my will. "RICHARD POWELL.

"Subscribed, sealed, and acknowledged to be his last will, in the presence of

"JAMES LLOYD, JOHN MILTON, HENRY DELAHAY." [Footnote: Found by me at Doctors' Commons.—The date assigned for Mr. Powell's death depends on his widow's statement on oath, four years afterwards (Feb. 27, 1650-1), that "said Richard Powell, her late husband, died near the first day of January, in the year of our Lord 1646, at the house of Mr. John Milton situate in Barbican, London." (Todd, I. 57.)]

While this is clearly the will of a dying man whose property is in such a state of wreck and confusion that he knows not whether any provision whatever will arise out of it for his wife and family, there are certain suggestions in it of a contrary tenor. It is evident, for example, that Mr. Powell had not given up all hope that his main property, the mansion and

lands of Forest-hill, might ultimately be recovered. Though these are entirely omitted in the Particular of his Estate given in a month before to the Goldsmiths' Hall Committee for Compositions, they figure in his will so expressly that one sees the testator did not consider them quite lost. This, followed by the kindly mention of Sir Robert Pye in the end of the will, and the appointment of that knight as one of the overseers to assist the executor in carrying out the will, confirms a guess which we have already hazarded (*antè*, pp. 475-6): viz. that the entry of Sir Robert Pye into possession of the Forest-hill estate during the siege of Oxford was not the harsh exercise of his legal right to do so, nor even only the natural act of a prudent creditor seeing no other way of recovering a large sum lent to a neighbour, but in part also a friendly precaution in the interests of that neighbour himself and his family. That Forest-hill, if it were to be alienated from the Powells, should pass into the possession of Sir Robert Pye, an old friend of the family, might be for their advantage in the end. Though nominally proprietor, he would regard himself as interim possessor for the Powells; and, should they ever be able to reclaim their property, and to pay the 1,400_l._ and arrears of interest for which it had been pledged, they would find Sir Robert or his family more accommodating than strangers would have been. Something of this kind must have been in Mr. Powell's mind when he made his will. He clung to the Forest-hill property; it was worth much more really than the sum for which it had been alienated; he looked forward to some arrangement in that matter between his heir and Sir Robert Pye, in which Sir Robert himself would advise and assist. Then, as the smaller Wheatley property was also really worth more than the 40_l._ a year at which it was rated, and as, besides other chances only vaguely hinted, the family had immediate claims for 500_l._ on account of goods left at Forest-hill, 400_l._ on account of timber, and 100_l._ in miscellaneous debts, why, on the whole, with patience and good management, should there not be enough to discharge all obligations, and

still leave something over for the heir, the widow, and the other eight or nine children, in the proportions indicated? Alas! if this were the possibility, it had to be arrived at, the testator foresaw, through a dense medium of present difficulties. The very items of most importance in the meantime, if his widow and children were to be saved from actual straits, were the items of greatest uncertainty. The household goods, the timber, and the debts due, were estimated together at 1,000_l._ of cash; but it was cash which had to be rescued from the four winds. Nay, most of it had to be rescued from worse than the four winds—from the Parliamentary Government itself, and from its agents in Oxfordshire. The household stuff and goods at Forest-hill! Had they not been sold in June last by the Oxfordshire sequestrators to Matthew Appletree of London, carted off by that dealer, and dispersed no one knew whither? The timber at Forest-hill! Had not that also vanished, most of it voted in July last by the two Houses of Parliament themselves to the people of Banbury for repairs of their church and other buildings? To be sure, the Goldsmiths' Hall Committee, by accepting these portions of Mr. Powell's property at his own valuation and including them in their calculation of his fine for Delinquency, had virtually pledged Government that they should be restored. But then the fine had not been paid. Notwithstanding the statement in Mr. Powell's will that he had compounded for his property, the case was not really so. The Committee had fixed his composition at 180_l.,_ and so had admitted him to compound; but, as he had not yet paid the usual first moiety, the transaction was really incomplete at his death. Who was to pursue the matter to completeness, undertaking on the one hand to pay the composition to Government, and on the other obliging Government to reproduce the value of the goods and timber that had been made away with by itself or by its Oxfordshire agents? All this too was in the testator's mind, and hence his difficulty in fixing on an executor. His eldest son and heir, Richard, then a youth of five-and-twenty, was to have the first option of this office; if he shrank from it, then the widow was

to be the sole executrix; but, if she also shrank from it, a certain "Master John Ellston of Forest-hill," in whom Mr. Powell had confidence, was entreated to take it up. This Ellston, it is implied, understood the business, and, as acting for the family, might expect the advice of Sir Robert Pye and Sir John Curzon. [Footnote: The "Ellston" of the will may be the "Eldridge" mentioned in a previously quoted document (*antè*, p. 478) as having 100_l._ worth of Mr. Powell's timber on his premises. If so, Mr. Hamilton (92) has miscopied "Eldridge" for "Ellston" or "Ellstone" in that document.]

The eldest son did shrink from the hard post of executor under the will; but the widow did not. This appears from the probate of the will, dated March 26, 1647, when she appeared as executrix before Sir Nathaniel Brent of the Prerogative Court, took the oath, and had the administration committed to her. [Footnote: Probate attached to the will in Doctors' Commons. There is a *second* Probate in the margin, dated May 10, 1662, showing that then the eldest son, Richard Powell, at the age of forty-one, reclaimed the executorship, and was admitted to it, the former Probate being set aside. This fact does not concern us at present.] It was, as we shall find, a legacy of trouble and vexation to her, and collaterally to Milton as her son-in-law, for many years; and, as we shall also find, she fought in it perseveringly and bravely. The trouble and vexation, however, so far as records revive it, do not begin within our limits in this volume. For the present it is enough to add that, some time after Mr. Powell's death and burial, his widow and children removed from Milton's house in the Barbican, and quartered themselves elsewhere. They can hardly have gone back to Oxfordshire. Not only was Forest-hill no home for them now, but the smaller tenement and grounds at Wheatley in the same county seem to have been equally unavailable. There is documentary proof, at least, that immediately after Mr. Powell's death, in the same month of January 1646-7, his relative Sir Edward Powell, Bart., took formal possession of that property in consequence of his legal title to it from non-payment of the sum

of £300 which he had advanced to Mr. Powell, on that security, five years before (see Vol. II. p. 497). [Footnote: Document, dated Aug. 28, 1650, among the Composition Papers given by Hamilton (86, 87).] This transaction, by a relative, may, like the similar transaction by Sir Robert Pye, have had some meaning in favour of the Powells; but, on the whole, though Mrs. Powell may have managed to dispose of some of her children, especially the elder boys, by appeal to relatives, the probability is that she remained in London and kept most of them with her. There is evidence that she had to live on in most straitened circumstances. Relatives probably did something for her; and Milton, as we shall find, performed his part.

Little more than two months after the burial of Mr. Powell, and possibly before the removal of his widow and children from the house in Barbican, there was another funeral from that house. It was that of Milton's own father. Father-in-law and father had gone almost together, and the house was in double mourning.

Who can part with this father of one of the greatest of Englishmen without a last look of admiration and regret? Nearly fifty years ago, in the last years of Elizabeth's reign, we saw him, an "ingeniose man" from Oxfordshire, detached from his Roman Catholic kindred there, and setting up in London in the business of scrivenership, with music for his private taste, and a name of some distinction already among the musicians and composers of the time. Then came the happy days of his married life in Bread Street, all through James's reign, his business prospering and music still his delight, but his three surviving children growing up about him, and his heart full of generous resolves for their education, and especially of pride in that one of them on whose high promise teachers and neighbours were always dilating. Then to Cambridge University went this elder son, followed in time by the younger, the father consenting to miss their presence, and instructing them to spare no use of his worldly substance for

their help in the paths they might choose. It had been somewhat of a disappointment to him when, after seven years, the elder had returned from the University with his original destination for the Church utterly forsworn, and with such avowed loathings of the whole condition of things in Church and State as seemed to bar the prospect of any other definite profession. There had been the recompense, indeed, of that son's graceful and perfected youth, of the haughty nobleness of soul that blazed through his loathings, and of his acquired reputation for scholarship and poetry. And so, in the country retreat at Horton, as age was beginning to come upon the good father, and he was releasing himself from the cares of business, how pleasant it had been for him, and for the placid and invalid mother, to have their elder son wholly to themselves, their one daughter continuing meanwhile in London after her first husband's decease, and then younger son also mainly residing there for his law-studies. What though the son so domiciled with them was plowing up to manhood, still without a profession, still absorbed in books and poetry, doing exactly as he liked, and in fact more the ruler of them than they were of him? Who could interfere with such a son, and why had God given them abundance but that such a son might have the leisure he desired? All in all, one cannot doubt that those years of retirement at Horton had been the most peaceful on which the old man could look back. But those years had come to an end. The sad spring of 1637 had come; the invalid wife had died; and he had been left in widowhood. Little in the ten years of his life since then but a succession of shiftings and troubles! For a while still at Horton, sauntering about the church and in daily communion with the grave it contained, his younger son and that son's newly-wedded wife coming to keep him company while the elder was on his travels. Then, after the elder son's return, the outbreak of the political tumults, and the sad convulsion of everything. In this convulsion his two sons had taken opposite sides, the elder even treasuring up wrath against himself by his vehement writings for the Parliamentarians.

How should an old man judge in such a case? The Horton household now broken up, he had gone for a time with Christopher and his wife to Reading, but only to be tossed back to London and the safer protection of John. We have seen him under that protection in Aldersgate Street, all through the time of Milton's marriage—misfortune and the Divorce pamphlets. There was some comfort, on the old man's account, in the picture given of him by his grandson Phillips, then in the same house, as living through all that distraction "wholly retired to his rest and devotion, without the least trouble imaginable." All the same one fancies him having his own thoughts in his solitary upper room, contrasting the now with the then, and feeling that he had become feeble and superfluous. A cheerful change for him may have been the larger house in Barbican, with his son's forgiven wife in her proper place in it and more numerous pupils going in and out, and at last the birth of the infant-girl that made his grandfatherhood complete in all its three branches. He had been about eighteen months in this house. The Civil War had come to an end, and the King had been surrendered by the Scots at Newcastle and shifted to the second stage of his captivity at Holmby House, and Christopher Milton had returned ruefully to London from Exeter to sue out pardon for his delinquency, and the impoverished Powells also had come to the house from Oxford. Old Mr. Powell and old Mr. Milton had been a good deal together, and at length, when Mr. Powell was dying, old Mr. Milton may have assisted, scrivener-like, in the framing of his will. Only two months afterwards his own turn came. No will of his has been found, and probably he had made a will unnecessary by previous arrangements. His Bible and music-books left in his room may have been the mementoes of his last occupations. He was buried, March 15, 1646-7, in the chancel of the Church of St. Giles, Cripplegate, not far from Barbican; and the entry "John Milton, Gentleman, 15" among the "Burialls in March 1646" may be still looked at with interest in the Registers of that parish.

[Footnote: To the courtesy of the Rev. P. P. Gilbert, M.A., Vicar of the parish, I owe a certified copy of the burial- entry.]

Nothing came from Milton's pen on the occasion; but one remembers his Latin poem "*Ad Patrem*," written fifteen years before, and the lines with which that poem closes may stand fitly here as the epitaph for the dead:—

"At tibi, care Pater, postquam non aqua merenti
Posse referre datur, nec dona rependere factis,
Sit memorasse satis, repetitaque munera grato
Percensere animo, fidæque reponere menti.
Et vos, O nostri, juvenilia carmina, lusus,
Si modo perpetuos sperare audebitis annos,
Nec spisso rapiunt oblivia nigra sub Orco,
Forsitan has laudes decantatumque parentis
Nomen, ad exmplum, sero servabitis ævo."

[Footnote: It seems to me not improbable that the poem, as originally written, ended at the word "menti." and that the last six lines, beginning "Et vos," were an addition when Milton published his Poems in 1645 his father then residing with him.]

SONNET XIV, AND ODE TO JOHN ROUS.

Since the removal from the Aldersgate Street house to that in Barbican, Milton, as we know, had ceased from prose pamphleteering; and all that he had done of a literary kind, besides publishing his volume of collected Poems, had been his two Divorce Sonnets, his Sonnet to Henry Lawes, and his Sonnet with the scorpion tail, entitled *On the Forcers of Conscience*. To these have now to be added, as written since Aug. 1646, two other scraps—viz.: the Sonnet marked XIV. in most of our modern editions of his Poems,

and the Latin Ode to John Rous which generally appears at or near the end of the Latin portion of these editions.

Sonnet XIV., though printed without a heading by Milton himself in the Second or 1673 edition of his Poems, and often so printed still, exists fortunately in two drafts in his own hand (one of them erased) among the Milton MSS. at Cambridge, and bears there this heading, also in his own hand: "*On the Religious memory of Mrs. Catherine Thomson, my Christian friend, deceased 16 Decemb. 1646.*" We have no other information about this Mrs. Catherine Thomson than is conveyed by these words and the Sonnet itself; and the fact that we know of her existence only by chance suggests to us how many friends and acquaintances of Milton there may have been in London whose very names have perished. One may suppose her to have been a neighbour of Milton's, and rather elderly. That he had no ordinary respect for her appears from the fact that he felt moved to write something in her memory. If written exactly at the time of her death, it was while his house was full of the Powells, and Mr. Powell was grieving over the state of his affairs and perhaps known to be dying. There is a suggestion, however, in the wording, that it may have been written later.

"When Faith and Love, which parted from thee never,
Had ripened thy just soul to dwell with God,
Meekly thou didst resign this earthy load
Of death, called life, which us from Life doth sever.
Thy works, and alms, and all thy good endeavour,
Stayed not behind, nor in the grave were trod;
But, as Faith pointed with her golden rod,
Followed thee up to joy and bliss for ever.
Love led them on; and Faith, who knew them best
Thy handmaids, clad them o'er with purple beams
And azure wings, that up they flew so drest,

And speak the truth of thee on glorious themes
Before the Judge, who thenceforth bid thee rest
And drink thy fill of pure immortal streams."

Certainly written in Barbican between the death of Mr. Powell and that of Milton's father, but in a very different strain from the foregoing, is the Latin Ode to Rous, the Oxford Librarian. The circumstances were these:—

Milton, we have had proof already, cared enough both about his opinions and about his literary reputation to adopt the common practice of sending presentation-copies of his books to persons likely to be interested in them. He had sent out, we have seen, such presentation-copies of Lawes's 1637 edition of his "Comus," and of some of his pamphlets individually. We find, however, that in 1645 or 1646, when he had published no fewer than eleven pamphlets in all, and when moreover his English and Latin Poems had been issued by Moseley, he must have taken some pains to secure that copies of the entire set of his writings, as then extant, should be in the hands of eminent book-collectors and scholars. Thus, in the Library of Trinity College, Dublin, there is a small quarto volume containing ten of the pamphlets bound together in this order—"Of Reformation," "Of Prelatical Episcopacy," "The Reason of Church- government," "Animadversions upon the Remonstrant's Defence," "An Apology against a modest Confutation," "The Doctrine and Discipline of Divorce," "The Judgment of Martin Bucer," "Colasterion," "Tetrachordon," "Areopagitica;" and the volume exhibits (in a slightly mutilated form, owing to clipping in the re-binding) this inscription in Milton's autograph: "*Ad doctissimum virum, Patricium Junium, Joannes Miltonius hæc sua, unum in fasciculum conjecta, mittit, paucis hujusmodi lectoribus contentes*" ("To the most learned man, Patrick Young, John Milton sends these things of his, thrown together into one volume, content with few readers were they but of his sort") The volume, therefore, though it has found its way to Dublin, originally belonged to the

Scotchman Patrick Young, better known by his Latinized name of Patricius Junius, one of the most celebrated scholars of his time, especially in Greek, and for more than forty years (1605?-1649) keeper of the King's Library in St. James's, London. Milton, it is clear, did not intend the gift for the Royal Library, unless Young chose to put it there. He meant it for Young himself, with whom he had probably some personal acquaintance, and who was of Presbyterian sympathies, and in fact then under the orders of Parliament. [Footnote: There is a facsimile of the inscription to Young in Sotheby's Milton Ramblings, p. 121; but I am indebted for a more particular account of the volume, with a tracing of the inscription, to the Rev. Andrew Campbell of Dublin. There is a memoir of Young in Wood's Fasti, I. 308-9]

About the time when Milton sent this collection of his pamphlets to Patrick Young, or perhaps a little later, he sent a similar gift to another librarian, expressly in his official capacity. This was John Rous, M.A., chief Librarian of the Bodleian at Oxford from 1620 to 1652, Milton, there is reason to believe, had known Rous since the year 1635 (see Vol. I. p. 590); at all events an acquaintance had sprung up between them, as could hardly fail to be the case between a reader like Milton and the keeper of the great Oxford Library; and, as Rous's political leanings, Oxonian though he was, were distinctly Parliamentary, there was no reason for coolness on that ground. Accordingly, Rous, it appears, had asked Milton for a complete copy of his writings for the Bodleian, and had even been pressing in the request. Milton at length had despatched the required donation in the form of a parcel containing two volumes—the Prose Pamphlets bound together in one volume, and the Poems by themselves in the tinier volume as published by Moseley. On a blank leaf at the beginning of the larger volume he had written very carefully with his own hand a long Latin inscription, "*Doctissimo viro, proloque librorum æstimatori, Joanni Rousio*" &c.; which may be given in translation as follows: "To the most learned man, and excellent judge of books, John Rous, Librarian of the University of Oxford,

on his testifying that this would be agreeable to him, John Milton gladly forwards these small works of his, with a view to their reception into the University's most ancient and celebrated Library, as into a temple of perpetual memory, and so, as he hopes, into a merited freedom from ill- will and calumny, if satisfaction enough has been given at once to Truth and to Good Fortune. They are—'Of Reformation in England,' 2 Books; 'Of Prelatical Episcopacy,' 1 Book; 'Of the Reason of Church-government,' 2 Books; 'Animadversions on the Remonstrant's Defence,' 1 Book; 'Apology against the same,' 1 Book; 'The Doctrine and Discipline of Divorce,' 2 Books; 'The Judgment of Bucer on Divorce,' 1 Book; 'Colasterion,' 1 Book; 'Tetrachordon: An Exposition of some chief places of Scripture concerning Divorce,' 4 Books; 'Areopagitica, or a Speech for the Freedom of the Press;' 'An Epistle on Liberal Education;' and 'Poems, Latin and English,' separately." Here, it will be seen, Milton sends to Rous the same pamphlets he had sent to Patrick Young, and in the same order, only adding the Letter on Education to Hartlib, and the Moseley volume of Poems. Now, all the pieces so enumerated, with the inscription, had duly reached Rous in the Bodleian, with one exception. In the carriage of the parcel to Oxford the tiny volume of Poetry had somehow dropped out or been abstracted; so that Rous, counting over the pieces by the inventory, found himself in possession only of the eleven prose-pamphlets. He had intimated this to Milton, and petitioned for another copy of the Poems to make good the loss of the first. Milton complied; but, as the loss of the first copy had amused him, he took the trouble of writing a mock-heroic Latin ode on the subject to Rous, and causing this ode, transcribed on a sheet of paper in a secretary hand of elaborate elegance, to be inserted by the binder in the new copy, between the English and the Latin portions of the contents. This is the *Ode to Rous* of which we have spoken as, with the exception of *Sonnet XIV.*, the sole known production of Milton's muse during those eight months of his Barbican life which have brought us to our present point. When he printed it

in the second or 1673 edition of his Poems, he prefixed the exact date, "Jan. 23, 1646" (*i.e.* 1646-7). It was written, therefore, in the interval between Mr. Powell's death and his father's—three weeks after the one, and six or seven weeks before the other. The manuscript copy sent to Rous still exists in the Bodleian in the volume into which it was inserted; and in the same library they show also the volume of the eleven collected prose pamphlets, with the previous inscription to Rous in Milton's autograph. [Footnote: Warton's Note on the Ode to Rous (Todd's Milton, IV. 507-9); Milton's Poems ed. 1678, Latin portion, p. 90; Sotheby's Milton Ramblings, pp. 113-121, where there is a fac-simile of the inscription in the Bodleian volume of the prose pamphlets, and also a fac-simile of a considerable portion of the Latin Ode to Rous from the MS. copy in the other Bodleian volume. The "inscription" is indubitably Milton's autograph; Mr. Sotheby thinks the "ode" also to be in his penmanship, though not in his usual hand, but in a "beautiful secretary hand" which he assumed for the special purpose. Judging from the fac-simile, I doubt this, and think the transcript may have been by some professional scribe.—According to Warton's account, it is by accident that these two precious volumes have been preserved in the Bodleian. In 1720 a number of books, whether as being duplicates or as being thought useless, were weeded out of the Library and thrown aside, and a Mr. Nathaniel Crynes, one of the Esquire Bidels and a book collector, was permitted to have the pick of these for himself on the understanding that he was to leave the Library a valuable bequest. Fortunately Mr. Crynes did not care for the Milton volumes, and so they went back to the shelves.]

The ode is headed "*Ad Joannem Rousium, Oxoniensis Academiae Bibliothecarium: de Libro Poematum amisso, quem ille sibi denuo mitti postulabat, ut cum aliis nostris in Bibliothecâ publicâ reponeret, Ode*" ("To John Rous, Librarian of the University of Oxford: An Ode on a lost Book of Poems, of which he asked a fresh copy to be sent him, that he might replace it beside our other books in the Public Library").

What strikes one first in reading the Ode is the strange metrical structure. Evidently in a whim, and to suit his mock-heroic purpose, Milton chose a peculiar form of mixed verse, distantly suggested by the choruses of the Greek dramatists, and more closely by some precedents in Latin poetry. There are three Strophes, each followed by an Antistrophe, and the whole is wound up by a closing Epodos. In an appended prose note Milton calls attention to this novelty, and explains moreover that he had taken considerable liberties with the verse throughout, pleasing his own ear, and regarding rather the convenience of modern reading than ancient prosodic rules. Altogether, in this respect, the poem was a bold experiment, for which Milton has been taken to task by purists among his commentators down to our own time.

It is the *matter*, however, that interests us most here. The ode opens half-humorously with an address to the little book he was sending to Rous. It is described as a pretty little book enough, with two sets of contents and a double arrangement of paging to match, neatly but simply bound (*fronde licet geminâ, munditieque nitens non operosâ*), and containing the juvenile productions of a certain Poet of no superlative merit (*haud nimii poetæ*), written partly in Britain and partly in Italy, partly in English and partly in Latin. [Footnote: Critics have objected to Milton's volume, phrase "*fronde licet geminâ*," on the ground that "*fronte*" would be the better Latin word for "title- page." But Milton did not mean only that there were two title pages in the volume, one to the English and one to the Latin poems; he meant also that these two sets of poems were paged separately throughout. His phrase "*fronde geminâ*," ("with double leafing") was therefore perfectly exact.] Then the Antistrophe asks what had become of the former copy of the same, on its way to the sources of the Thames and the great seat of learning there established. The second Strophe and Antistrophe continue the strain, with a hope that now at length the wretched civil tumults may cease in England and Peace and Literature come back, but still with a return of the

query what could possibly have become of the missing volume between London and Oxford, and into what clownish hands it might have fallen. In the third Strophe and Antistrophe there is a compliment to Rous as the faithful keeper of one of the most splendid libraries in the world, with acknowledgment of his kindness in seeking to have the missing volume replaced, so that it might have a chance of readers in such glorious company and in all-famous Oxford. The closing Epode may be given in the skilful, though rather lax, rendering of Cowper:—

"Ye, then, my Works, no longer vain
And worthless deemed by me,
Whate'er this sterile genius has produced,
Expect at last, the rage of envy spent,
An unmolested happy home,
Gift of kind Hermes and my watchful friend,
Where never flippant tongue profane
Shall entrance find,
And whence the coarse unlettered multitude
Shall babble far remote.
Perhaps some future distant age,
Less tinged with prejudice, and better taught,
Shall furnish minds of power
To judge more equally.
Then, malice silenced in the tomb,
Cooler heads and sounder hearts,
Thanks to Rous, if aught of praise
I merit, shall with candour weigh the claim."

**ITALIAN REMINISCENCES: LOST LETTERS FROM CARLO
DATI OF FLORENCE: MILTON'S REPLY TO THE LAST OF
THEM.**

Our next trace of Milton, through anything written by himself in his Barbican abode, belongs to April 1647, the month after his father's death. We owe it also perhaps to the fact that the publication of his Poems by Moseley had given him an opportunity of distributing presentation-copies of some of his former writings.

A feature in that volume, it may be remembered, was its richness in Italian reminiscences. Not only were there included among the English Poems the five Italian Sonnets and the Italian Canzone which Milton is believed to have written in Italy; not only were the encomiums of his Italian friends, Manso of Naples, Salzilli and Selvaggi of Rome, and Francini and Dati of Florence, prefixed to the Latin Poems, with a note of explanation; not only among these Latin poems did he print the three pieces to the singer Leonora, the Scazontes to Salzilli, and the fine farewell to Manso; but in the *Epitaphium Damonis*, or pastoral on Charles Diodati's death, which ended the volume, and which had been written immediately after his return to England, there were references throughout to his Italian experiences, and passages of express mention of Dati, Francini, the Florentine group generally, and the venerable Manso. What more natural than to have sent copies of such a volume to the various Italian friends named in it, to remind them of the Englishman to whom they had been so kind. The venerable Manso, indeed, was by this time dead; Salzilli seems to have been dead; the great Galileo, whom Milton had at least once visited near Florence, had died in 1642; but most of the Florentine group were still alive. To these last, all of them poets themselves more or less, Milton might have been expected to send copies of his volume. Or, if he did not trouble them with the English part, which they could not read, he might have sent them at least the Latin part, which had been separately paged, and provided with a separate title and imprint, precisely in order that it might be so detached. For a reason which will appear Milton did not even do this. He seems, however, to have procured from the printer some copies of the last eleven pages of the Latin

part, which contained the *Epitaphium Damonis* by itself, and to have sent these to Florence. Either so, or by some prior transmission of this particular poem to his Florentine friends, unaccompanied by any letter, copies of it *had* reached them. This we learn from the sequel.

Of all Milton's Florentine friends none had remembered him more faithfully than young Carlo Dati (see Vol. I. pp. 724-5). Only nineteen years of age when Milton had visited Florence in 1638-9, but then a leading spirit in the literary Academies of the city, and especially enthusiastic in his attentions to strangers, he had outgone all the others, except Francini, in his admiration of the Englishman who had come among them, and in the extravagance of his parting adieu. The admiration was real; and, after Milton had gone, young Dati had often thought of him, often talked of him among his companions of the Delia Crusca and of Gaddi's more private Academy of the Svogliati, often wondered what he was doing in his native land. Three times at intervals he had written to Milton; but all the letters had miscarried. Conceive, then, Dati's pleasure, when, some time in 1646 (if that is the correct supposition), a copy of the *Epitaphium Damonis* reached him from London, and he read the passage there in which Milton had made such affectionate mention of his Florentine friends of 1638-9, and of himself and Francini in particular. Immediately he wrote to Milton a fourth time; and this letter, more fortunate than its predecessors, did arrive at its destination. Milton, on his part, though the letter must have reached him about the time of his father's death, had peculiar pleasure in receiving it and returning an answer. The answer was in Latin, and may be translated as follows:—

"To CHARLES DATI, Nobleman of Florence.

"With how great and what new pleasure I was filled, my Charles, on the unexpected arrival of your letter, since it is impossible for me to describe it

adequately, I wish you may in some degree understand from the very pain with which it was dashed, such pain as is almost the invariable accompaniment of any great delight yielded to men. For, on running over that first portion of your letter, in which elegance contends so finely with friendship, I should have called my feeling one of unmixed joy, and the rather because I see your labour to make friendship the winner. Immediately, however, when I came upon that passage where you write that you had sent me three letters before, which I now know to have been lost, then, in the first place, that sincere gladness of mine at the receipt of this one began to be infected and troubled with a sad regret, and presently a something heavier creeps in upon me, to which I am accustomed in very frequent grievings over my own lot: the sense, namely, that those whom the mere necessity of neighbourhood, or something else of a useless kind, has closely conjoined with me, whether by accident or by the tie of law (*sive casu, sive lege, conglutinauit*), *they* are the persons, though in no other respect commendable, who sit daily in my company, weary me, nay, by heaven, all but plague me to death whenever they are jointly in the humour for it, whereas those whom habits, disposition, studies, had so handsomely made my friends, are now almost all denied me, either by death or by most unjust separation of place, and are so for the most part snatched from my sight that I have to live well nigh in a perpetual solitude. As to what you say, that from the time of my departure from Florence you have been anxious about my health and always mindful of me. I truly congratulate myself that a feeling has been equal and mutual in both of us, the existence of which on my side only I was perhaps claiming to my credit. Very sad to me also, I will not conceal from you, was that departure, and it planted stings in my heart which now rankle there deeper, as often as I think with myself of my reluctant parting, my separation as by a wrench, from so many companions at once, such good friends as they were, and living so pleasantly with each other in one city, far off indeed, but to me most dear. I

call to witness that tomb of Damon, ever to be sacred and solemn to me, whose adornment with every tribute of grief was my weary task, till I betook myself at length to what comforts I could, and desired again to breathe a little—I call that sacred grave to witness that I have had no greater delight all this while than in recalling to my mind the most pleasant memory of all of you, and of yourself especially. This you must have read for yourself long ere now, if that poem reached you, as now first I hear from you it did. I had carefully caused it to be sent, in order that, however small a proof of talent, it might, even in those few lines introduced into it emblem-wise, [Footnote: See the lines themselves in the translation of the *Epitaphium Damonis*, Vol. II. p. 90.] be no obscure proof of my love towards you. My idea was that by this means I should lure either yourself or some of the others to write to me; for, if I wrote first, either I had to write to all, or I feared that, if I gave the preference to any one, I should incur the reproach of such others as came to know it, hoping as I do that very many are yet there alive who might certainly have a claim to this attention from me. Now, however, you first of all, both by this most friendly call of your letter, and by your thrice-repeated attention of writing before, have freed the reply for which I have been some while since in your debt from any expostulation from the others. [Footnote: Although I have supposed that the copies of the *Epitaphium Damonis* sent by Milton to Italy were from the sheets of the Moseley volume of 1645 as it was passing through the press, the reader ought to note, with me, the *possibility* (already hinted, and now implied in this passage of the letter to Dati) that Milton had sent copies in some form at an earlier date—say immediately after the poem was written, and when his parting from his Italian friends was quite recent.] There was, I confess, an additional cause for my silence in that most turbulent state of our Britain, subsequent to my return home, which obliged me to divert my mind shortly afterwards from the prosecution of my studies to the defence anyhow of life and fortune. What safe retirement for literary leisure could

you suppose given one among so many battles of a civil war, slaughters, flights, seizures of goods? Yet, even in the midst of these evils, since you desire to be informed about my studies, know that we have published not a few things in our native tongue; which, were they not written in English, I would willingly send to you, my friends in Florence, to whose opinions I attach very much value. The part of the Poems which is in Latin I will send shortly, since you wish it; and I would have done so spontaneously long ago, but that, on account of the rather harsh sayings against the Pope of Rome in some of the pages, I had a suspicion they would not be quite agreeable to your ears. Now I beg of you that the indulgence you were wont to give, I say not to your own Dante and Petrarch in the same case, but with singular politeness to my own former freedom of speech, as you know, among you, the same you, Dati, will obtain (for of yourself I am sure) from my other friends whenever I may be speaking of your religion in our peculiar way. I am reading with pleasure your description of the funeral ceremony to King Louis, in which I recognise your style (*Mercurium tuum*)—not that one of street bazaars and mercantile concerns (*compitalem ilium et mercimoniis ad dictum*) which you say jestingly you have been lately practising, but the right eloquent one which the Muses like, and which befits the president of a club of wits (*facundum ilium, Musis acceptum, et Mercurialium virorum præsidentem*). [Footnote: The production of Dati to which Milton refers, and of which a copy had probably accompanied Dati's letter, was an Italian tract or book, entitled "Esequie del la Maestà Christianiss: di Luigi XIII. il Giusto, Re di Francia e di Navarra, celebrate in Firenze dall altezza serenissima di Ferdinando Granduca di Tose., e discritte da Carlo Dati: 1644." Louis XIII. of France had died May 14, 1643, and the Grand Duke of Tuscany had ordered a celebration in his honour at Florence.—The hint that Dati was now engaged in mercantile business is confirmed by subsequent evidence.] It remains that we agree on some method and plan by which henceforth our letters may go between us

by a sure route. This does not seem very difficult, when so many of our merchants have frequent and large transactions with you, and their messengers run backwards and forwards every week, and their vessels sail from port to port not much seldomer. The charge of this I shall commit, rightly I hope, to Bookseller James (*Jacobo Bibliopolæ*), or to his master, my very familiar acquaintance (*vel ejus hero mihi familiarissimo*). [Footnote: I have translated this as well as I can, but it is obscure. Did Milton refer to some Florentine "Jacopo," a bookseller (the publisher of Dati's *Esequie*?), and playfully entrust the arrangement of the future means of correspondence to Dati himself, as master of the services of this person?] Meanwhile farewell, my Charles; and give best salutations in my name to Coltellini, Francini, Frescobaldi, Malatesta, Chimentelli the younger, anyone else you know that remembers me with some affection, and, in fine, to the whole Gaddian Academy. Again farewell!

London: April 21, 1617." [Footnote: This letter to Dati is the tenth of Milton's *Epistolæ Familiares*, as published by himself in 1674, and reprinted in the collected editions of his works. By a curious chance, however, a MS. copy of it exists in Milton's own hand—either a draft which Milton kept at the time, or perhaps the actual copy sent to Dati. It is one of some valuable Milton documents in the possession of Mr. John Fitchett Marsh of Warrington, who has described it in his *Milton Papers*, printed for the Chetham Society in 1851, and given there a fac-simile of the beginning and end of it. There is a copy of this fac-simile in Mr. Sotheby's *Milton Ramblings* (p. 122). Mr. Marsh, who is inclined to think that the MS. is the actual letter as it reached Dati, has favoured me with an exact list of some verbal variations in it from the printed copy. They are slight, but rather confirm the idea that the printed copy is from the draft which Milton kept and that the MS. was the transcript actually dispatched to Italy. Thus, while the printed copy is headed merely "*Carolo Dato, Patricio Florentino*," the MS. is headed "*Carolo Dato, Patricio Florentino, Joannes Miltonius*,

Londinensis, S.P.D." Again, at the close, instead of the printed dating "*Londino, Aprilis 21, 1647*," the MS. presents the dating "*Londini: Pascatis feria tertia, MDCXLVII*," ("London: the third feast day of Easter, 1647.") On this Mr. Marsh, in a note to me, remarks ingeniously, "Dating from the feast-day, according to the Roman Catholic usage, in writing to an Italian friend, indicates a tolerance and politeness worth noticing." Easter in 1647 fell on Sunday, April 18, so that the third day, or Easter-Tuesday, was April 20. The printed copy is dated a day later.]

There are passages in this letter which we can interpret now better than Dati can have done then. The sentences in which Milton speaks of his hard fate in being tied by accident or law to the constant companionship of people with whom he had no sympathy, while those whom he really cared for were distant or dead, may have been read by Dati with only a vague general construction of their meaning, and perhaps would not have been written by Milton to any one capable of a more exact construction from knowledge of the circumstances. We can now discern in them, however, a reference by Milton to his domestic troubles, to the worry brought on him by the whole Powell connexion, and perhaps also to the recent loss of his father. Altogether the letter is a melancholy one. One sees Milton, as he wrote it in Barbican in the spring of 1647, the gloomy master of an uncomfortable household.

PEDAGOGY IN THE BARBICAN: LIST OF MILTON'S KNOWN PUPILS: LADY RANELAGH.

Yet precisely this spring of 1647, if we are to believe his nephew Phillips, was Milton's busiest time with his pupils. "And now," says Phillips, after mentioning the death of Milton's father, and the departure at last of the Powell kindred from the house in Barbican, "the house looked again like a house of the Muses only, though the accession of scholars was not great.

Possibly his proceeding thus far in the education of youth may have been the occasion of some of his adversaries calling him Pedagogue and Schoolmaster; whereas it is well known he never set up for a public school to teach all the young fry of a parish, but only was willing to impart his learning and knowledge to relations, and the sons of some gentlemen that were his intimate friends, besides that neither his converse, nor his writings, nor his manner of teaching ever savoured in the least anything of pedantry; and probably he might have some prospect of putting in practice his academical institution, according to the model laid down in his sheet *Of Education!*" Taking this passage in connexion with prior passages already quoted from the same memoir, we are to conclude that, though Milton's practice in teaching had begun as far back as 1639-40, when he gave lessons to his two nephews in his lodgings in St. Bride's Churchyard, and although the practice had been kept up all through the time of his residence in Aldersgate Street, when his nephews boarded with him and other pupils were gradually added (1640-45), yet it was in the Barbican house, and there more especially in 1647, that his employment in pedagogy was most engrossing. The house had been taken expressly that there might be accommodation for additional pupils, and such pupils had come in—not in any considerable number, nor yet miscellaneously from the neighbourhood, but rather by way of favour on Milton's part to select boys whose parents knew him well, and were anxious that they should have the benefit of his instructions.

As to Milton's theories and methods of education we are already sufficiently informed. This may be the place, however, for a list of those who can be ascertained to have had the honour of being his pupils. Perhaps that honour may have been shared by as many as twenty or thirty youths in all, afterwards distributed through English society in the seventeenth century, and some of them living even into the eighteenth; but I have been able to recover only the following:—[Footnote: It is to be understood that

Milton may have continued the practice of pedagogy, in individual cases at least, after the Barbican period of its fullest force, and hence that one or two of the pupils in my present list may not have been in the Barbican house, but may be strays afterwards undertaken by him, on special request, in those later days and those other houses into which we have yet to follow him. As it is not worth while, however, to break up such a list, I present all Milton's known pupils, of whatever date, in one cluster.]

EDWARD PHILLIPS (the elder nephew):—Not ten years old when he first received lessons from Milton in the St. Bride's Churchyard lodging, this elder nephew, after five years of board in Aldersgate Street, and about a year and a half in Barbican, had reached his seventeenth year. He had received the full benefit so far of his uncle's method of teaching; and, if he were to go to the University, it was about time that he should be preparing. About two years after our present date, or in March 1648-9, by whatever management of his uncle, or of his mother and step-father, Mrs. and Mr. Agar, he did enrol himself in Magdalen Hall, Oxford. The rest of his life will concern us hereafter. [Footnote: Wood's Ath., IV. 760, and Godwin's Lives of the Phillipses, p. 12.]

JOHN PHILLIPS (the younger nephew):—This nameson of Milton's, first committed to his entire charge in the St. Bride's Churchyard lodging, had been as long under training as his elder brother, and had now reached his sixteenth year. He was to remain a more unmixed example of his uncle's training, for he never went to any University. He also will reappear in the subsequent course of his uncle's life. [Footnote: Wood's Ath., IV. 764, and Godwin.]

RICHARD HEATH, OR HETH:—That a person of this name was among Milton's pupils, rests on the evidence of one of Milton's own *Epistolæ Familiares*, dated Dec. 1652, and addressed "Richardo Hetho." As he was

then a minister of the Gospel somewhere, it is to be inferred that he was one of the earliest pupils of the Aldersgate Street days. I have not been able to identify him farther.

——PACKER:—"Mr. Packer, who was his scholar," is one of Aubrey's Jottings about Milton, written in 1680 or thereabouts. This is a very insufficient clue. A John Packer, who had taken the degree of Doctor of Physic at Padua, was incorporated in the same degree at Oxford, Feb. 19, 1656-7. [Footnote: Aubrey's Notes on Milton's Life (Godwin's reprint, p. 349); Wood's Fasti, II. 196.]

CYRIACK SKINNER:—He was the third son of William Skinner, a Lincolnshire squire (son and heir of Sir Vincent Skinner, Knt., of Thornton College, co. Lincoln) who had married Bridget Coke, second daughter of the famous lawyer and judge, Sir Edward Coke. As his father died in 1627, Cyriack must have been at least twenty years of age in 1647: he had, therefore, been one of the Aldersgate Street pupils. The fact that he was a grandson of the great Coke was one of his distinctions through life; but he was to become of some note in London society on his own' account. The connexion formed between him and Milton continued, as we shall find, unbroken and affectionate through future years. Indeed, there came to be associations, presumably through Cyriack, between Milton and other persons of the name of Skinner. A Daniel Skinner, and a Thomas Skinner, presumably relatives of Cyriack's, are heard of as merchants in Mark Lane, London, from 1651 onwards. This Daniel Skinner, merchant, had a son, Daniel Skinner, junior, whose acquaintance with Milton in the end of his life led to curious and important results. Care must be taken, even now, not to confound this far future Daniel Skinner, junior (not born till about 1650), with our present Cyriack, his senior, and probable kinsman. [Footnote: Aubrey's Notes; Wood's Ath., III. 1119; Skinner's Pedigree in Introd. to Bishop Sumner's Translation of Milton's Treatise on Christian Doctrine

(1825); Hamilton's Milton Papers, 29 *et seq.* and 131-2. Wood (Fasti, I. 486) has confounded Cyriack Skinner in one particular with the much later Daniel Skinner junior, and the mistake has been kept up.]

HENRY LAURENCE:—There is no positive attestation, as in the other cases, that this person, certainly intimate with Milton in subsequent years, began acquaintance with him as one of his pupils. The presumption is so strong, however, that I risk including him. He was the second son of Henry Laurence, of St. Ives, Hunts, member for Westmoreland in the Long Parliament, known in 1647 as a thoughtful man, and author of "A Treatise of our Communion and War with Angels," and afterwards a staunch Oliverian, President of Cromwell's Council (1654), and one of his Lords (1657). He had an elder son, Edward, who was fourteen years of age in 1647, and died in 1657, when Henry became the heir. Therefore, if we are right in supposing Henry to have been Milton's pupil in the Barbican, he cannot have been older than twelve or thirteen at the time. [Footnote: Wood's Ath., IV. 63, 64; note by Bliss.]

SIR THOMAS GARDINER, OF ESSEX:—That a person of this name was among Milton's pupils in the Barbican, either with the title already, or having it to come to him, seems to be implied in a statement of Wood, quoted in the next paragraph.

RICHARD BARRY, 2ND EARL OF BARRIMORE:—"To this end that he might put it in practice," says Wood, after describing Milton's system of education as explained in his Letter to Hartlib, "he took a larger house, where the Earl of Barrimore sent by his aunt the Lady Ranelagh, Sir Thomas Gardiner of Essex, to be there with others (besides his two nephews) under his tuition." [Footnote: Wood's Fasti (edit. by Bliss), I. 483. The sentence is exactly in the same form in earlier editions.] The pointing and structure of the sentence make it obscure; but I take the meaning to be

that Wood had heard of two of Milton's pupils in the Barbican house specially worth naming on account of their rank—the Earl of Barrimore and Sir Thomas Gardiner—and that he had also been informed that it was the Earl of Barrimore's aunt, the Lady Ranelagh, that had placed that young Irish nobleman under Milton's charge. The full significance of this was clear when Wood wrote, for Lady Ranelagh was then still alive, and known as one of the most remarkable women of her century; but readers now may need to be informed who Lady Ranelagh was.—Her husband was Arthur Jones, 2nd Viscount Ranelagh in the Irish peerage; but that was not her chief distinction. By birth she was a Boyle, one of the daughters of that Richard Boyle, an Englishman of Kent, who, having gone over to Ireland in 1588, had risen there, by his prudence and integrity through three reigns, to be successively Sir Richard Boyle, Lord Boyle of Youghall, Viscount Dungarvan, and Earl of Cork, with the office of Lord High Treasurer of Ireland, and with vast estates both in Ireland and England. This great Earl, dying in good old age in 1643, after some final service against the Irish Rebellion, left four sons mid six daughters surviving out of a total family of fifteen. The eldest surviving son, Richard, till then Viscount Dungarvan, succeeded to the Earldom of Cork, and was afterwards created Lord Clifford of Lanesborough (1644) and Earl of Burlington (1664) in the English peerage; the second, Roger, created Baron Broghill in his father's lifetime, bore that title till the Restoration, with a high character for wisdom and literary talent, which he maintained afterwards as Earl of Orrery; the next, Francis, after giving proof of his Royalism both in England and in exile, received a place with his brothers in the Irish peerage as Viscount Shannon; and the fourth and youngest, born Jan. 25, 1626-7, was called to the end of his days merely "The Hon. Mr. Robert Boyle," but became the most famous of them all as "the divine philosopher," and founder of English Chemistry. So also, among the daughters, though all were "ladies of great piety and virtue and an ornament to their sex," one was the paragon. This

was Catharine, Viscountess Ranelagh, born March 22, 1614-15, or twelve years before her brother Robert. Of her reputation for "vast reach both of knowledge and apprehension," "universal affability," and liberality both of mind and of purse, there is the most glowing tradition, interspersed with facts and anecdotes; and the singularly strong mutual affection that subsisted between her and her brother Robert till the close of their lives runs like a silver thread through that philosopher's biography. At our present date she was yet a young woman, but her influence among the members of her family was already recognised. Since the Irish Rebellion the fixed residence of herself and her husband had been in (Pall Mall?) London. Here her relatives from Ireland and elsewhere gathered round her; and here in 1644 her youngest brother, the future chemist, turning up brown and penniless, a foreign-looking lad of eighteen, after his six years of travel abroad, had been received with open arms. He had remained in her house about five months, and then had retired to his estate of Stalbridge in Dorsetshire, where he continued mainly till 1650, corresponding with her from amid his speculative studies and his apparatus for chemical experiments.—One other service, if Anthony Wood's information is correct, Lady Ranelagh must have rendered about the same time to another member of her family. Most of her sisters had married into noble English or Irish houses; but the eldest of them, Alice, Lady Barrimore, had been left a widow with three young children by the death of her husband, David, first Earl of Barrimore. This death had occurred before that of her father the great Earl of Cork, and in that Earl's will, dated Nov. 24, 1642, he had shown his concern for this unexpected widowhood of his eldest daughter by special bequests to her three children. Two of them, being daughters, were to receive 1,000_l._ apiece; and for the behoof of the only son there was this provision: "For that I have ever cordially desired the restitution and recovery of the Earl of Barrimore's noble and anciently honourable house, that his posterity may raise the same to its former lustre and greatness again, and in regard that in

my judgment there is no way so likely and probable (God blessing it) to redeem and bring home the encumbered and disjointed estate of the said Earl, and his house and posterity, as by giving a noble, virtuous, and religious education to the said now young Earl, my grandchild, who, by good and honourable breeding, may (by God's grace) either by the favour of the prince, or by his service to the King and country, or a good marriage, redeem and bring home that ancient and honourable house, which upon the marriage of my daughter unto the late Earl I did with my own money freely clear: I do hereby, for his lordship's better maintenance and accommodation in the premises, bequeath unto my said grandchild, Richard, now Earl of Barrimore, from the time of my decease, for, during, and until he shall attain the full age of 22 years, one yearly annuity of 200_l._" This was the boy who, a year or two afterwards, was sent to Milton's in the Barbican for tuition. His aunt Ranelagh had heard of Milton, or had come to know him personally; and she thought he was the very man to give the boy the training which his wise grandfather had desired for him.—There will be proof in time that Lady Ranelagh did know Milton well, saw him often, and entertained a high regard for him, which he reciprocated. Meanwhile we may anticipate so far as to say that she was not content with having obtained Milton's instructions for her nephew, the Earl of Barrimore, but secured them also for her only son, Richard Jones, afterwards third Viscount and first Earl of Ranelagh. This nobleman, who lived to as late as 1712 with considerable distinction of various kinds, and on the site of whose last house at Chelsea Ranelagh Gardens were established, is also to be reckoned, we shall find, in the list of Milton's pupils. It is just possible he may have begun his lessons, with his cousin Barrimore, in the Barbican house; but, as he was but seven years of age in 1647, this is hardly probable. [Footnote: Birch's *Life of Robert Boyle*, prefixed to the 1714 edition of Boyle's Works in five volumes folio (pp. 1-20); Collins's *Peerage* by Brydges, VII. 134 *et seq.* (*Boyle, Lord Boyle*), and VI. 184; Irish

Compendium or Rudiments of Honour (1756), for Barrimore family, Debrett's Peerage, for Ranelagh family; Worthington's Diary, by Crossley, I, 164-7; Cunningham's Handbook of London, 373 and 418; Phillips' Memoir of Milton; and four letters "*Nobili Adolescenti Richardo Jonslo*" in Milton's *Epistolæ Familiares*.]

EDUCATIONAL REFORM STILL A QUESTION: HARTLIB AGAIN: THE INVISIBLE COLLEGE: YOUNG ROBERT BOYLE AND WILLIAM PETTY.

There may be something in Phillips's guess that his uncle, about 1647, had some idea of putting in practice his system of Pedagogy on a larger scale than a mere private house permitted, by becoming the head of some such public Academy as that which he had described three years before in his Letter to Hartlib.

The question of a Reform of the apparatus for national Education had never quite vanished from the public mind even in the midst of the engrossing struggle between the Presbyterians and the Independents, and a fresh interest was imparted to the subject by the Ordinance of Parliament in May 1647 for a Visitation and Purgation of the University of Oxford (*antè*, pp. 545-6). Hartlib, for one, was again on the top of the wave. The claims of this indefatigable man to some reward for his long and various services had at length been brought before Parliament. On the 25th of June, 1646, on the report of a Committee, the House of Commons had voted him 100_l_ and in April 1647 the two Houses farther agreed in a resolution to pay him 300_l_ "in consideration of his good deserts and great services to the Parliament," with a recommendation that, on account of his special merits "from all that are well-wishers to the advancement of learning," he should be provided with some post of emolument at Oxford. [Footnote: Commons Journals of June 25, 1646, and March 31, 1647; and Lords Journals of April

1, 1647.] Nothing came of the last suggestion, and Hartlib lived on in London as before, still only ventilating his ideas of Educational Reform in a general way, amid the other novelties of all sorts which he patronized.

Hartlib's hero-in-chief on the Educational subject, the great Comenius, though doubtless remembered, had practically gone out of view. Labouring at Elbing on that piece of mere drudgery for which Oxenstiern and others had persuaded him to lay aside his Pansophic dreams (*antè*, p. 228), he had indeed compiled, in four years, a large recast of his Latin Didactics under the title of *Novissima Linguarum Methodus*, and had returned to Sweden in 1646 to present the mass of manuscript to his employer Ludovicus de Geer. The Swedish critics do not seem to have yet been satisfied with the performance, and Comenius had carried it away with him again for corrections and additions, not any longer in Elbing, but in his old Polish home. [Footnote: Comenius's Preface to the Second Part of his *Opera Didactica*, between 1627 and 1657.] No chance for Hartlib, then, of co-operating again with Comenius in the foundation of a Pansophic College in London! Hartlib's faculty of making new acquaintances, however, was as versatile as his passion for new lights; and a certain "*Invisible College*" which had already some habitat in London, had become the substitute in his fancies for the unbuilt Pansophic Temple of the distant Slavonian sage. Since 1645 there had been held, sometimes in Wood Street, sometimes in Cheapside, and sometimes in Gresham College, those humble weekly meetings of a few "worthy persons inquisitive into Natural Philosophy," out of which there grew at length the great Royal Society of London. Theodore Haak, a naturalized German, had originated the club; and among the first members were Dr. John Wallis (the clerk of the Westminster Assembly, but with other things in his head than what went on there), the afterwards famous Wilkins, and the physician Dr. Jonathan Goddard. If Hartlib, the fellow-countryman and friend of Haak, was not an original member, he knew of the meetings from the first; and the *Invisible College* of his

imagination seems to have been that enlarged future association of all earnest spirits for the prosecution of real and fruitful knowledge of which this club might be the symbol and promise. The *Invisible College*, at all events, was the temporary form of his ever-varying, and yet indestructible, zeal for progress. It figures much in his correspondence at this time with one new friend, who, though not more than twenty years of age, had that in him which made his friendship as precious to Hartlib as any he had yet formed. This was young Robert Boyle, recently returned to England from his foreign travels, and dividing his time between philosophical retirement at his house in Dorsetshire and occasional visits to London. In a letter to a Cambridge friend written in Feb. 1646-7, during one of those London visits, Boyle says: "I have been every day these two months upon visiting my own ruined cottage in the country; but it is such a labyrinth, this London, that all my diligence could never yet find my way out on't.... The cornerstones of the *Invisible*, or, as they term themselves, *Philosophical College*, do now and then honour me with their company, which makes me as sorry for those pressing occasions that urge my departure as I am at other times angry with that solicitous idleness that I am necessitated to during my stay: men of so capacious and searching spirits that school-philosophy is but the lowest region of their knowledge, and yet, though ambitious to lead the way to any generous design, of so humble and teachable a genius as they disdain not to be directed by the meanest, so he can but plead reason for his opinion,—persons that endeavour to put narrowmindedness out of countenance, by the practice of so extensive a charity that it reaches unto everything called man, and nothing less than an universal goodwill can content it. ... I will conclude their praises with the recital of their chiefest fault, which is very incident to almost all good things; and that is that there is not enough of them." The first extant letters of Boyle to Hartlib were written from his Dorsetshire retreat immediately after this visit to London, and are in reply to letters received there from Hartlib. A new system of Real characters or

Universal Writing; Pneumatical Engines or Wind-guns; Mr. Durie, his Church-conciliation Scheme, and a Discourse on the Teaching of Logic he had brought out; the ingenious Utopian Speculations of a certain young Mr. Hall; the Copernican Astronomy (to which Mr. Boyle was "once very much inclined"); the French mathematicians, Mersenne and Gassendi; Oughtred's *Clavis Mathematica*; a Cure for the Stone suggested by Hartlib, or rather by Mrs. Hartlib: such are some of the topics of the correspondence, but with the *Invisible College* irradiating all. Thus, May 8, 1647, Boyle, writing to Mr. Hartlib, to congratulate him on the 300th he had been voted by Parliament, says: "You interest yourself so much in the *Invisible College*, and that whole society is so highly concerned in all the accidents of your life, that you can send me no intelligence of your own affairs that does not, at least relationally, assume the nature of Utopian." In the same letter Boyle expresses his anxiety to have a copy of a pamphlet of Hartlib's which had just appeared. He names it rather vaguely; but I have ascertained it to be "*A Briefe Discourse concerning the Accomplishment of our Reformation: tending to shew that by an Office of Publicke Address in spirituall and temporall matters the Glory of God and the Happiness of this Nation may be greatly advanced.*" It consisted of a preface, addressed by Hartlib to Parliament, and 59 pages of text, explaining the said Office of Public Address to be a kind of universal Register House "whereunto all men might freely come to give information of the commodities they have to be imparted to others." The pamphlet was out in May 1647. [Footnote: Birch's Life of Boyle, pp. 20-25; Worthington's Diary by Crossley, 1. 313; and copy of Hartlib's pamphlet in the British Museum, with MS. note of date of publication.]

While Hartlib was writing on all things and sundry to young Boyle, the Education subject included, there was another new acquaintance of his, only three years older than Boyle, with whom he seems to have been discussing the Education subject more expressly. William Petty, afterwards

so famous as "the universal genius, Sir William Petty," had returned from France at the age of twenty-three. The considerable stock of knowledge which he had taken abroad with him when he left his native Hampshire, eight years before, a pushing boy of fifteen, had been increased by his studies at foreign Universities, his readings with Hobbes in Paris, his commercial dealings, and his inquisitiveness into the processes of all trades and handicrafts by which men earn their livings. He came back a tall, slender youth, with a very large head, to be spoken of in London as an encyclopædia of information, a wonderful mathematician and mechanic, teeming with schemes of all sorts, and yet shrewd, practical, and business-like. He was an invaluable addition to the Invisible College, and a delightful discovery for Hartlib; and he took to Hartlib at once, as every one else did. What occupied him especially at the moment was a machine for double writing, *i.e.* for making two copies of any writing at once. He hoped to obtain a patent for this invention from Parliament; and such a patent, for seventeen years, he did obtain in March 1647-8. While the thing was in progress, however, Hartlib was his chief confidant. This appears from a tract of his, of 26 pages, published Jan. 8, 1647-8, and entitled "*The Advice of W. P. to Mr. Samuel Hartlib for the advancement of some particular parts of Learning.*" The invention for double writing is described in the tract, but it also sets forth Petty's ideas on Hartlib's favourite subject of a Reformation of Schools. In fact, in any collection of seventeenth-century tracts on that subject, it ought to be bound up with Hartlib's own older tracts in exposition of Comenius, and with the Letter on Education which Hartlib had elicited from Milton in 1644. Petty's notions, as may be supposed, differ considerably from Milton's. He is for a universal education in what he calls *Ergastula Literaria* or Literary Workhouses, "where children may be taught as well to do something toward their living as to read and write;" and, though he does not undervalue reading and writing, or book-culture generally, he lays the stress rather on mathematical and physical science,

manual dexterity, and acquaintance with useful arts and inventions. Besides reading and writing, he would have all children taught drawing and designing; he would rather discourage the learning of languages, both because people may have all the books they want in their mother-tongue, and because the use of real characters, or an ideographic system of writing, would lessen the necessity of knowing foreign tongues; but, so far as languages might have to be learnt, their acquisition, as well as that of the simple arts of reading and writing, might be much facilitated by improved methods. In short, in Petty's project of Education, with much of the same general spirit of innovation, utilitarianism, contempt of tradition, as in Milton's, there is a characteristic difference of detail and even of principle. You are to be made expert in "graving, etching, carving, embossing, and moulding in sundry matters," in "grinding of glasses dioptrical and catoptrical," in "navarchy and making models for building and rigging of ships," in "anatomy, making skeletons, and excarnating bowels;" but you miss all that Milton would have taught you of Latin and Greek, Poetry and Philosophy, Italian and Hebrew, moral magnanimity and spiritual elevation, the History of Nations, and the ways of God to men. [Footnote: Wood's Ath., IV. 214; Worthington's Diary by Crossley, I. 294- 8; and Pett's own Tract. On its title-page are the words "London: Printed anno Dom 1648;" but a copy in the British Museum bears the MS. note "London, 8 January, 1647-8."]

REMOVAL FROM BARBICAN TO HIGH HOLBORN.

It would have been no surprise if Milton, on the skirts of the Invisible College as he was, and in sympathy with many of their aims, had exerted himself about this time in setting up a great Academy for young gentlemen, embodying some of the new utilitarian fancies even to the satisfaction of Petty, but fulfilling also his own higher ideal. He was peculiarly fond of

Pedagogy; and his notion of an institution combining the School with the University, and so tending to the abolition of Universities, seems to have been coming more and more into favour.

Not only, however, did Milton abandon the experiment of which Phillips thinks there was then some prospect; but, precisely in 1647, he broke up his actual pedagogic establishment in Barbican, and went into a new house, where he either ceased to teach altogether, or had no pupils remaining but his two nephews. What may have been his reasons for the step we do not know; but it is not unlikely that the change of his circumstances by his father's death had something to do with it. No will of the ex-scrivener having been found, it is not known what property he left; but there is reason to believe that he left something considerable, and that, whatever it was, it came more completely to the two sons, and their sister Mrs. Agar, than while the old man lived. [Footnote: We may remember here Phillips's and Aubrey's hints as to the scrivener's prosperity in business. Phillips's information is that he "gained a competent estate, whereby he was enabled to make a handsome provision both for the education and maintenance of his children;" and he adds such particulars as that his mother, Mrs. Phillips, "had a considerable dowry given her" on her first marriage, and that the lease of the scrivener's house in Bread Street—the Spread Eagle, where he had carried on his business, and where his children had been born (or at least of some house in that street)—became in time part of the poet's estate. Aubrey distinctly reckons the Spread Eagle house as the scrivener's property, besides another house in the same street called The Rose," and other houses in other places." Christopher Milton, as we know, owned a house in London called the Cross Keys, worth 40_l._ a year, while his father was alive.] At all events, the fact of Milton's change of residence within a few months after his father's death is certified by Phillips. "It was not long," says Phillips, "after the march of Fairfax and Cromwell through the City of London, with the whole Army, to quell the insurrections Browne

and Massey, now malcontents also, were endeavouring to raise in the City against the Army's proceedings, ere he left his great house in Barbican, and betook himself to a smaller in High Holborn, among those that open backward into Lincoln's-Inn Fields." The date of that famous march of the Army through London, to tame the tumultuous Presbyterianism of the City, rescue Parliament from its domination, and compel a policy more favourable to Independency and Toleration, was August 6 and 7, 1647 (see *antè*, pp. 553-4). Milton's removal from Barbican may be assigned, therefore, to September or October in the same year.

Change we, then, from those eastern purlieus of Aldersgate Street and Barbican, where we have been observing Milton for seven years, to a scene farther west, more within the cognisance of Londoners generally, and nearer to those two Houses of Parliament which the Army had rescued for the time from Presbyterian leadership within and Presbyterian mob-law without. Holborn was not then the dense continuity of houses it is now; there were more spaces in it of gardens and greenery, and the houses had not crept as far as Oxford Street; but it was, as now, the familiar thoroughfare of relief from the narrower and noisier Fleet Street and Strand, and the part of it which Milton had chosen was the most convenient. The actual house which he took may be still extant, wedged somewhere in the labyrinthine block between Great Turnstile and Little Turnstile; but one could judge but poorly from present appearances how pleasant may have been its old outlook to the rear. The fine open area of Lincoln's-Inn Fields was then only partly built round, and was used as a lounge and bowling-green by the lawyers and citizens. The houses in the neighbourhood were mostly new ones. [Footnote: Cunningham's London: *Holborn* and *Lincoln's-Inn Fields*.]

MEDITATIONS AND OCCUPATIONS IN THE HOUSE IN HIGH HOLBORN: MILTON'S SYMPATHIES WITH THE ARMY CHIEFS AND THE EXPECTANT REPUBLICANS.

When Milton removed to High Holborn, with his wife, their infant daughter, and the two nephews, the King was in the third and least disagreeable stage of his captivity. His detention with the Scots at Newcastle, and his subsequent residence under Parliamentary custody at Holmby House, were affairs of the Barbican period; and, by Joyce's act of the previous June, his Majesty had been for some months in the keeping of the Army, very generously treated, and permitted at last to reside, with much of restored state-ceremony, at his own palace of Hampton Court. Fairfax, Cromwell, Ireton, and the other Army-chiefs, from their headquarters at Putney, were negotiating with him; and, the march of the Army through London having disabled the ultra-Presbyterians for the moment and transferred the ascendancy to the Independents, people were looking forward to a settlement on the basis of an established Presbyterian Church for the nation at large, but with liberty of conscience and of worship for Dissenters. For Milton, among others, this was a pleasant prospect. His sympathies, nay his personal interests, were wholly with the Independents; all that the Army had done had his approbation; and, whatever he might have had to say now (with the strong new lights he had obtained since 1641) as to the propriety of a Presbyterian Establishment on its own merits, he was probably prepared to accept such an Establishment, if with a sufficient guarantee of Toleration. Now, although he cannot have retained, more than other people, any strong confidence in Charles personally, any real hope of his voluntary and unreserved assent to a system of kingly government limited by great constitutional checks, yet a Treaty with Charles by the Independents rather than the Presbyterians must have seemed to him the most feasible way of reaching the end in view. Hence, while the King was at Hampton Court, and the Army-chiefs, with Cromwell most prominent among them, were plying his royal mind with arguments to bring him round, there can have been no private person more interested in their endeavours, more willing to believe them in the right, than Milton.

Hardly had he been settled in his new house in High Holborn, however, when there came the snap of all those negotiations by the King's flight from Hampton Court to the Isle of Wight (Nov. 11, 1647). Then, I conceive, Milton's mood changed, in exact unison with the change of mood at the same time among the Army-chiefs and other leading Independents. For a month or two, indeed, there may have been some interest, some faint prolongation of hope, in attending to the proceedings of Parliament in pursuit of the King, and their attempt to obtain his assent to the Four Bills. But, from the moment when that attempt failed, and the two Houses passed their indignant resolutions that there should be no more communications with the King (Jan. 1647-8), all hesitation must have ceased. From that moment Milton was a Republican at heart. From that moment he was one of those who, with Vane, Marten, Cromwell, Ireton, and the Army officers generally, had forsworn all future allegiance to the Man in the Isle of Wight, and looked forward, through whatever intermediate difficulties, to his deposition and punishment, and the conversion of England into some kind of free Commonwealth. In such a matter, it could not, of course, be expected that a private citizen like Milton, who had no ambition to rank with Lilburne and other London Levellers of the coarser order, would anticipate Cromwell, Vane, and Ireton. He expressly says himself that, though he had been so prominent as a speculative politician, had made certain great questions of the time more peculiarly his own, had written largely on them and publicly identified his name with them, yet he had not hitherto taken any direct part in the immediate practical question of the future constitution of the State, but had left it to the appointed authorities [Footnote: *Df. Sec. pro Pop. Angl.*, published in 1654]. Not the less are we to imagine that the time of his residence in High Holborn, while the King was a prisoner in the Isle of Wight, was the time when those high and semi-poetic Republican sentiments which seem always to have been congenial to him, and which his classic readings may have nurtured, took a definite

shape applicable to England. From the end of 1647, I should say, Milton has to be reckoned as a foremost spirit in the band of expectant English Republicans.

Whether the issue was to be a Republic or not was a question which Milton had to leave in the hands of the Army and Parliament. While they were slowly working it out, what could he do but occupy himself, as patiently as possible, with his books and studies? There is evidence, accordingly, that three pieces of work, already begun or projected by him in Aldersgate Street or Barbican, were prosecuted with some increased diligence in his house in High Holborn. One of these was the collection of materials for a *Thesaurus Linguae Latinae*, or *Latin Dictionary*, which he hoped some time to complete. Another was the composition of a *History of England*, or *History of Britain*, from the earliest times to the Norman Conquest:—nay, though that was the form it ultimately took, the original project was nothing less than Hume anticipated, or a complete *History of England*, brought down in a continuous thread from the remotest origins of the nation to Milton's own time. The third was the long-meditated *Body of Divinity*, or *Methodical Digest of Christian Doctrine*. Here, surely, were three huge enough tasks of sheer hackwork hung round the neck of a poet! Milton's liking all his life for such labours of compilation, however, is as remarkable as his liking for pedagogy. Nor, though we may regard the tasks as hackwork now, were they so regarded by Milton. To amass gradually by readings in the Latin classics a collection of idioms and choice references, with a view to a Dictionary that should be an improvement even on that of Stephanus, was a side-labour to which a scholar, who was also a poet, might well dedicate a bit of each day or a week or two at intervals. To write a complete History of England, or even to compile, from Geoffrey of Monmouth, Bede, and the old chroniclers, a popular summary of the early legendary History of Britain, and of the History of the Saxon Kings and Church, was a blending of daily recreation with useful labour. Above all,

the compilation of a System of Divinity was no mere dry drudgery for Milton, but a business of serious personal interest. From an early date he had resolved on some such compendium for his own use; he had ever since kept it in view and made notes for it; but his notions of the form it should take had undergone a change. "I entered," he says, "upon an assiduous course of study in my youth, beginning with the books of the Old and New Testament in their original languages, and going diligently through a few of the shorter Systems of Divines, in imitation of whom I was in the habit of classing under certain heads whatever passages of Scripture occurred for extraction, to be made use of hereafter as occasion might require. At length I resorted with increased confidence to some of the more copious Theological Treatises, and to the examination of the arguments advanced by the conflicting parties respecting certain disputed points of faith." Apparently he was still in this stage of his design in the Aldersgate period; for then, as we have seen (*antè*, pp. 254-5), one of his exercises with his pupils on Sundays was the dictation to them of a Tractate on Christian Divinity digested from such approved Protestant Divines as Amesius and Wollebius. But this method, he tells us, had ceased to satisfy him. Often he had found the theologians quibbling and sophistical, more anxious to "evade adverse reasonings" and establish foregone conclusions than to arrive at the truth. "According to my judgment, therefore," he adds, "neither my creed nor my hope of salvation could be safely trusted to such guides; and yet it appeared highly requisite to possess some methodical Tractate of Christian Doctrine, or at least to attempt such a disquisition as might be useful in establishing my faith or assisting my memory. I deemed it therefore safest and most advisable to compile for myself, by my own labour and study, some original treatise which should be always at hand, derived solely from the Word of God itself, and executed with all possible fidelity, seeing I could have no wish to practise any imposition on myself in such a matter." In all probability the preparations for the work on this new

plan began in the house in High Holborn. For some years England had been in such a state of theological ferment that it was impossible not to inquire how much of the traditional Orthodoxy had real warrant in the Bible and how much was mere matter of inveterate opinion; in one important particular Milton, to his own surprise, had found himself standing out publicly as the champion of what was thought a horrible heresy; might it not be well to go over the whole ground, and fix one's whole Christian creed so as to be able to give an account of it, when called upon, in every other particular? The Westminster Assembly, like other Assemblies before it, had laboured out a Confession of Faith which it wished to impose on the entire community; but, as "it was only to the individual faith of each man that God had opened up the way of eternal salvation," was it not the duty of every Englishman to examine that Confession before accepting it as his own, or even to compile his own private Confession first and let the comparison follow at leisure? [Footnote: Phillips's Memoir at several points; Milton's *Def. Sec.*; and Preface to his posthumous "Treatise on Christian Doctrine" (Sumner's Translation, 1825). Phillips mentions expressly the *History of England* as occupying Milton in High Holborn; but the most interesting allusion to it is Milton's own in his *Def. Sec.*, where the words are "Ad historiam gentis, ab ultimâ origine repetitam, ad hæc usque tempora, si possem, perpetuo filo deduoendam, me converti."]

**STILL UNDER THE BAN OF THE PRESBYTERIANS:
TESTIMONY OF THE LONDON MINISTERS AGAINST HERESIES
AND BLASPHEMIES: MILTON IN THE BLACK LIST.**

Alas! Milton, busy with these occupations in his room looking out upon Lincoln's-Inn Fields, could not shut out the continued hue and cry after him on account of his Divorce heresy. It was more than two years since his wife had returned to him; he had then closed the controversy so far as it was a personal one; he was now respectably in routine, as a married man with one

child. But the world round about, more especially the clerical part of it, had not forgiven him his Divorce Pamphlets. Were they not still in circulation, doing infinite harm? Had not their infamous doctrine become one of the heresies of the age, counting other unblushing exponents, and not a few practical adherents? Keep silence as he now might, move as he might from Aldersgate Street to Barbican and from Barbican to High Holborn, would not his dark reputation dog him, sit at his doorstep, and gaze in at his windows? Actually it did. The series of attacks on Milton for his Divorce Doctrine, begun by Herbert Palmer and other mouthpieces of the Westminster Assembly in 1644, and continued in that and subsequent years by the Stationers' Company, Featley, Paget, Prynne, Edwards, Baillie, and others, had not ceased at the close of 1647. One fresh attack, of some significance in itself, may be instanced as a sample of the rest.

London, it is to be remembered, was now under Presbyterian Church-government. In every parish there was the Parochial or Congregational Court, consisting of the minister and lay-elders, charged with all the ecclesiastical concerns of the parish, and with the right of spiritual censure over the parishioners. The parishes were also grouped into Classes of ministers and lay-elders. At last there had come into operation even the crowning device of Provincial Synods for all London, in which representative ministers and elders met to discuss metropolitan Church affairs generally and to revise the proceedings of Classes and Congregations. The first of these Provincial Synods, with Dr. Gouge for Prolocutor, had met in St. Paul's in May 1647, and had continued its sittings twice a week in Sion College till November 8, 1647, when its half-year of office expired, and it was succeeded by the Second Provincial Synod, under the Prolocutorship of Dr. Lazarus Seaman. Now, had London been perfect in its Presbytery according to the extreme rigour of the Scottish model, Milton could not possibly have escaped the clutch of one or other of these Church-judicatories. As a resident in Barbican, he had been, I think, in the

parish of St. Botolph without Aldersgate; and, when he removed to High Holborn, he came into the parish of St. Andrew, Holborn. Had the Scottish strictness prevailed in London, the minister of either of these parishes would have felt himself bound to bring Milton before the parochial consistory for his Divorce heresy [Footnote: From Newcourt's *Repertorium* and Wood's *Ath.* III. 812, I learn that the Curate or Vicar of St. Botolph's, Aldersgate, "in the late rebellious times," was George Hall, a son of Bishop Hall and himself promoted to the Bishopric of Chester after the Restoration; and the Rector of St. Andrew's, Holborn, before the civil troubles was Dr. John Hacket, already well known to us (Vol. II. 225-8), and also afterwards a Bishop. Both of these, as strenuous Prelatists, must have been dispossessed from their charges long before the time with which we are now concerned; and I have not been able to ascertain who were their Presbyterian successors at this exact date.—There may be some significance in the fact that the parish minister before whom Milton's brother Christopher and his father-in-law Mr. Powell performed the necessary ceremony of taking the Covenant, with a view to their admission to compound for their Delinquency, was William Barton, minister of John Zachary (*antè*, p. 485 and p. 634). The parish of St. John Zachary was one of the parishes of Aldersgate Ward, and the church stood at the north-west corner of Maiden Lane, till it was burnt down in the Great Fire of 1666; after which it was not rebuilt, and the parish of St. John Zachary was united to that of St. Ann in the same ward. Had Milton found Mr. Barton of John Zachary's a more convenient minister to have dealings with than other ministers of the Aldersgate Street and Barbican neighbourhood; and did he attend Mr. Barton's church when he attended any? If so, and if we are right in identifying this William Barton with the minister of the same name whose Metrical Version of the Psalms was preferred by the Lords to Rous's (see *antè*, p. 425), their metrical sympathies may have had something to do with the connexion.—The fact that a son of Bishop Hall's was Curate or

Vicar of St. Botolph's, Aldersgate, at the time when the Bishop and another son of his were attacking Milton for his part in the Smectymnuean controversy, and speaking of him as then living in a "suburb sink about London," and collecting gossip about him, was not known to me when I was engaged on that part of the Biography (Vol. II. p. 390 et seq.); but it may be worth remembering even now.]; or, if the duty had been neglected, Classis IV., to which the parish of St. Botolph belonged, or Classis VIII., to which the parish of St. Andrew belonged, would have interfered; or, finally, in the case of so notorious an offender, the Provincial Synod itself would not have been asleep. True, the censure that could have been inflicted would only have been spiritual; but, by zealous management, especially if the culprit were obstinate, such spiritual censure might have led to farther prosecution by the secular courts. Certainly, if Milton had been in Scotland, this would have happened. Certainly it would have happened in London if the English Presbyterians had succeeded in subjecting that city to the grip of their absolute or ideal Presbytery. But they had not succeeded, and it was their constant lamentation that they had not. Though the Presbyterian organization of London had been voted on trial, the Congregationalist principle still asserted itself in the existence of many independent congregations and meeting-houses; though sometimes interfering with the less respectable of these, Parliament and the law- courts had taken no steps for their general suppression; and, by belonging to one of them, a Londoner of peculiar opinions might have the comfort and respectability of being a church-goer like his neighbours, and yet avoid unpleasant inquisitorship. Then, again, through what the ultra-Presbyterians regarded as the Erastian backwardness of Parliament, those offences for which the parochial or other Church-judicatories might inflict even spiritual censures had been very strictly defined. Only for certain faults of ignorance or of scandalous life, enumerated and specified by Act of Parliament, could the Presbyterian Church- judicatories debar from the communion; in any case lying beyond

that range they could not act without reference to the superior authority of a great Parliamentary Commission (*antè*, pp. 399, 405, 423). Sore had been the complaints of the Presbyterians over this limitation of the powers of Church discipline, as well as over the negligence of Parliament in not having yet passed such an Act against Heresies and Blasphemies as might enable the State to use the sterner discipline of fines, imprisonment, scourging, and hanging, in aid of true Christianity. Even as things were, however, it may be wondered that some zealot did not try to bring Milton's case within the powers actually assigned to the Church-courts, or to push it on the notice of the secular judges in virtue of such Acts as did exist against Heresy. There was very good reason, however, for not making the experiment. It had already been tried and had failed. Twice had Milton's case been brought before Parliament, and Parliament had distinctly declined to trouble him. Evidently, whatever the hotter Presbyterians desired, Milton was safe in the respect entertained for him personally by some of those who were at the head of affairs, or in an opinion prevailing in high quarters that the publication of a new speculation on Divorce was not an offence for which a man otherwise eminent ought to be questioned at law.

What cannot be done in one way, however, may sometimes be done in another. Not only was London the central stronghold of English Presbyterianism; the power of Presbyterianism there centralized was a kind of Proteus. One of its forms was the Westminster Assembly, a large nucleus of which consisted of ministers from London and the suburbs; another, since May 1647, was the London Provincial Synod. But, in aid of these two bodies, and including many that belonged to both, there was a third, of vaguer character, in that Sion College conclave which the London clergy had instituted of their own accord for the concoction of notions that might take shape in the Assembly or the Synod (*antè*, p. 394). Now, in December 1647, this Sion College conclave, "since they could do no more," sent forth a Presbyterian manifesto of some magnitude. It was "*A Testimony to the*

Truth of Jesus Christ, and to our Solemn League and Covenant; as also against the Errors, Heresies, and Blasphemies of these times, and the Toleration of them: wherein is inserted a Catalogue of the said Errors, &c.: subscribed by the Ministers of Christ within the Province of London, Dec. 14, 1647."

This Testimony, which was immediately published, [Footnote: London: Printed by A. M. for Tho. Underhill at the Bible in Wood Street: 1648.] bore the signatures of 58 London ministers in all, of whom 41 signed to the whole document, while 17, being members of Assembly, abstained from signing to those parts that related particularly to the Confession of Faith and the Directory of Worship, not because they did not thoroughly approve of those parts, but because they thought themselves precluded, by constitutional etiquette, from publicly affirming portions of the Assembly's work which still waited full Parliamentary sanction. All the 58, however, subscribed to that main portion of the Testimony which consisted in an enumeration, and condemnation of certain "abominable errors, damnable heresies, and horrid blasphemies." Among the seventeen members of Assembly so subscribing were Dr. Lazarus Seaman of Allhallows, Bread Street (Milton's native parish), then Prolocutor of the London Provincial Synod; Dr. Gouge of Blackfriars, ex-Prolocutor of the same; Dr. Hoyle of Stepney, Dr. Tuckney, and Messrs. Gataker, Calamy, Ashe and Case; and among the forty-one others were Samuel Clarke of Benetfink, Christopher Love of Anne's, Aldersgate, John Downam of Allhallows, Thames Street, Henry Roborough, one of the scribes of the Assembly and minister of Leonard's, Eastcheap, and John Wallis, sub-clerk of the Assembly, now uniting as well as he could the duties of that office and the parish-cure of Gabriel's, Fenchurch Street, with his mathematical proclivities and his association with the "physicists" of the Invisible College. And what were the errors, heresies, and blasphemies, thus publicly certified against by these London divines and the rest? They were classified with great

punctuality under nineteen heads, each head being subdivided into specific varieties of error, and the chief heretics under each openly named. First came Anti-Scripturism, or "Errors against the divine authority of Holy Scriptures," associated with the names of John Goodwill and Laurence Clarkson; then, in four heads and their subdivisions, came Anti-Trinitarianism, or "Errors against the nature and essence of God, against the Trinity, against the Deity of the Son of God, and against the Deity and divine worship of the Holy Ghost," the culprits named for chief condemnation in this department being Biddle and Paul Best; and so on the catalogue proceeds through various forms of Arminianism, Antinomianism, Seekerism, Anti-Sabbatarianism, Antipædobaptism, Anabaptism, Materialism or Mortalism, ending in Tolerationism. Among the Arminians denounced as notorious are Paul Best again, Paul Hobson, but especially John Goodwin again, and the Episcopalian and Royalist Dr. Henry Hammond, whose *Practical Catechism*, published in 1644, is cited as full of Arminian error. Among the Antinomians are denounced Randall, Simson, Eaton, Crisp, and Erbury; among the Seekers, Saltmarsh and Jos. Salmon; among the Anti-Sabbatarians, Saltmarsh again; among the Antipædobaptists and Anabaptists, Saltmarsh again, Tombes, and Webb. In a special group, as opposing magistracy and lawful oaths, are mentioned Roger Williams, Samuel Gorton, and Dr. Henry Hammond again; the chief representative of the tremendous doctrine of Materialism or the Denial of the Immortality of the Soul is R. O., the anonymous author of the tract on *Man's Mortality*; and among the leading Tolerationists or representatives of the grand error of Liberty of Conscience, "patronizing and promoting all other errors, heresies, and blasphemies whatsoever," are named Roger Williams again and Paul Best again.—One head or department in this long black list we have reserved. It is the 17th in order, including "Errors touching Marriage and Divorce." Here the anonymous author of a pamphlet called *Little Nonsuch*, published in 1646, bears the brunt of the obloquy, on

account of the opinion that, as "that marriage is most just which is made without any ambitious or covetous end," so, "if this liking and mutual correspondency happen betwixt the nearest of kindred, then it is also the most natural, the most lawful, and according to the primitive (Patriarchal) purity and practice." But Milton comes in company with this *Little Nonsuch*, as hardly less worthy of execration on account of his Divorce Doctrine. The main proposition of his *Doctrine and Discipline of Divorce* is extracted textually from page 6 of the Second or 1644 Edition of that treatise, to show what a dreadful doctrine had been there maintained; but, in case this should not seem enough, the Testifying Divines, in the marginal note where they give the reference, add the words, "Peruse the whole book." They do not name Milton fully, but only by his initials "J. M.," as on the title-page of his Treatise. [Footnote: There is a general account of this *Testimony* of the London ministers in Dec. 1647 in Neal's Puritans, III. 359-363; but the account in the text is from the published copy of the Testimony itself.]

Sold at the shop of that very Underhill in Wood Street who had been the publisher of three of Milton's own pamphlets in the Smectymnuan Controversy in 1641 (*antè*, p. 450), this *Testimony* of the London ministers had an extensive circulation. It was adopted, in fact, as the authorized manifesto of all the English Presbyterianism then most militant for that full right of ecclesiastical and civil control over heresy and its dissemination which Parliament hitherto had refused to recognise. In a short time, accordingly, it received the adhesion of 64 ministers in Gloucestershire, 84 in Lancashire, 83 in Devonshire, and 71 in Somersetshire. Nor was this subscription of the same printed document by 360 of the most active Presbyterian ministers throughout England a mere appeal to public opinion. It was intended as an aid to Presbyterianism in its anxious endeavour to obtain even yet all it wanted from Parliament. One observes, for example, that, within a month after the manifesto of the London ministers had gone

forth from Sion College, *i.e.* on the 12th of January, 1647-8, a petition was presented to Parliament by the London Provincial Synod itself, praying for various extensions and amendments of the Presbyterian system in the City, among which was the better establishment of Church censures for notorious and scandalous offenders. [Footnote: Neal's *Puritans*, III. 359-363; and *Lords Journals*, Jan. 12, 1647-8; but see also Halley's *Lancashire and its Puritanism* (1869), I. 467 *et seq.*]

At least two of the heretics denounced in the Sion College manifesto published replies. The Royalist Dr. Henry Hammond thought it worth while to defend his *Practical Catechism* in a tract called *Views of some Exceptions, &c.* [Footnote: Wood's *Ath.* III. 494-5.] John Goodwin of Coleman Street, who had been more largely attacked, and who indeed had reason to believe that the manifesto was mainly directed against himself, replied with his usual cool stoutness in a pamphlet called *Sion College Visited*. He there rebukes his accusers for their uncharitableness, unfairness, and malice in seeking to "exasperate the sword of the civil magistrate" against pious and peaceable citizens who had done them no injury. [Footnote: Jackson's *Life of Goodwin*. 172-175.] In effect, this reply of Goodwin's answered for the others as well as for himself. Milton, at all events, let the thing pass unnoticed. Entering his house in High Holborn, it may have been enough for him to repeat to himself, by way of comment, the lines he had already written—

"I did but prompt the age to quit their clogs
By the known rules of ancient liberty,
When straight a barbarous noise environs me
Of owls and cuckoos, asses, apes, arid dogs;"

or perhaps, by way of more determinate conclusion, his other and ever famous line,

"New *Presbyter* is but old *Priest* writ large."

ANOTHER LETTER FROM CARLO DATI: TRANSLATION OF NINE PSALMS FROM THE HEBREW.

Exactly at this time, when the repeated attentions of *New Presbyter* in England must have been annoying Milton, he had a friendly gleam from the land of the *Old Priest*. Carlo Dati had duly received his Latin Epistle of the previous April, and had acknowledged it in a long Italian letter, dated Nov. 1, 1647, but which may not have reached Milton till Jan. 1647- 8, or even later. The letter still exists in Dati's own hand, and the following is a translation of as much of it as can interest us here:—

All Illmo. Sig. Gio. Miltoni, Londra [meaning literally "To the most illustrious Signor John Milton, London;" but this is merely the polite Italian form of correspondence, and implies no more than "To Mr. John Milton, London."]

When all hope of receiving letters from you was dead in me, most keen as was my desire for such, lo! there arrives one to delight me more than I can express with this most grateful pen. O what feelings of boundless joy that little paper raise in my heart—a paper written by a friend so admirable and so dear; bringing to me, after so long a time and from so distant a land, news of the welfare of one about whom I was as anxious as I was uncertain, and assuring me that there remains so fresh and so kind a remembrance of myself in the noble soul of Signor John Milton! Already I knew what regard he had for my country; which reckons herself fortunate in having in great England (separated, as the Poet said, from our world) one who magnifies her glories, loves her citizens, celebrates her writers, and can himself write and discourse with such propriety and grace in her beautiful idiom. And precisely this it is that moves me to reply in Italian to the exquisite Latin

letter of my honoured friend, who has such a very singular faculty of reviving dead tongues and making foreign ones his own; hoping that there may be something agreeable to him in the sound of a language which he speaks and knows so well. I will take the same opportunity of earnestly begging you to be please to honour with your verses the glorious memory of Signor Francesco Rovai, a distinguished Florentine poet prematurely dead, and, to the best of my belief, well known to you: this having already been done at my request by the very eminent Nicolas Heinsius and Isaac Vossius of Holland, peculiarly intimate and valued friends of mine, and famous scholars of our age. [Footnote: About Nicolas Heinsius (1620-1681) and his intimacy with Dati and the other Florentine wits, see Vol. I. 721 2. Both he and Isaac Vossius (1618-1688) will reappear in closer connexion with Milton himself.] Signor Francesco was noble by birth, endowed by nature with a genius of the highest kind, which was enriched by culture and by unwearied study of the finest sciences. He understood Greek excellently, spoke French, and wrote Latin and Italian wonderfully. He composed Tragedies, and excelled also in lyrical Canzoni, in which he praised heroes and discountenanced all vice, particularly in one set of seven made against the seven capital sins. He was well-bred, courteous, a favourite with our Princes, or uncorrupted manners, and most religious. He died young, without having published his works: a splendid obituary ceremonial is being prepared for him by his friends, faulty only in the fact that the charge of the funeral oration has been imposed upon me. Should you be pleased to send me, as I hope, some fruit of your charming genius for such a purpose, you will oblige me not only, but all my country; and, when the Poems of Signor Francesco are published, with the eulogisms upon him, I will see that copies are sent you.—But, since I have begin to speak of our language and our poets, let me communicate to you one of the observations which, in the leisure-hours left me from my mercantile business, I occasionally amuse

myself with making on our writers. The other day, while I was reflecting on that passage in Petrarch's *Triomf' d'Amor*, C. 3:

"Dura legge d'Amor! mà benchè obliqua,
Servar conviensi, però ch' ella aggiunge
Di cielo in terra, universale, antiqua,"

[Footnote: "Hard law of Love! but, however unjust, it must be kept, because it reaches from heaven to earth, universal, eternal."]

I perceived that already the gifted Castelvetro had noted in it some resemblance to the lines in Horace, Ode I. 33:

"Sic visum Veneri; cui placet impares
Formas atque animos sub juga ahenea
Sævo mittere cum joco,"—

[Footnote: "So it seemed good to Venus; whose pleasure it is, in savage jest, to bind unlike forms and minds in a brazen yoke of union."]

excellently imitated by the reviver of Pindaric and Anacreontic poesy, Gabriello Chiabrera, in Canzonetta 18:

"Ah! che vien cenere
Penando un amator benche fedele!
Cosi vuol Venere,
Nata nell' ocean, nume crudele."

[Footnote: "Ah that there should be ashes from the torture of a lover, though faithful! So Venus wills it, the ocean-born, a cruel deity."]

To me these verses look like a little bit taken from Horace, as the remainder is taken from Tibullus, not without a notable improvement; for in Tibullus, Eleg. I. 2, one reads this threat against the revealers of Love's secrets:—

"Nam, fuerit quicumque loquax, is sanguine natam,
Is Venerem e rapido sentiet esse mari."

[Footnote: "For whosoever is indiscreet with his tongue, he shall feel
that Venus was born of blood and came from the rapid sea."]

[Dati then suggests the reading of *rabido* in the last line and discusses the
subject in six folio pages, with passages from Catullus, Ovid, Virgil,
Horace, Seneca, Claudian, Homer, Tasso, &c.; and then proceeds as
follows]:

I communicate to you these considerations of mine, sure of being
excused, and kindly advised by your exquisite learning in such matters as I
submit, urgently begging you to pardon me if excess of affection, the sense
of being so long without you, and our great intimacy, have made me exceed
the limits proper for a letter.—It is an extreme grief to me that the
convulsions of the kingdom have disturbed your studies; and I anxiously
await your Poems, in which I believe I shall have large room for admiring
the delicacy of your genius, even if I except those which are in depreciation
of my Religion, and which, as coming from a friendly mouth, may well be
excused, though not praised. This will not hinder me from receiving the
others, conscious as I am of my own zeal for freedom. Meanwhile I beg
Heaven to make and keep you happy, and to keep me in your remembrance,
giving me proofs thereof by your generous commands. All friends about me
send you salutations and very affectionate respects.

Your most devoted,

Florence, 1st Nov. 1647. CARLO DATI [Footnote: The original of this
letter is in the possession of Mr. J. Fitchett Marsh of Warrington, who has
printed facsimiles of the opening and closing words ("*All' Illmo. Sig. Gio.
Miltoni, Londra,*" and "*Ser. Devotino. Carlo Dati*") in his Milton Papers. To
Mr. Marsh's kindness I owe the transcript from which I have made the

translation; and the words within brackets, describing the omitted portion in the middle, are Mr. Marsh's own.]

Circumstanced as Milton was when he received this letter, he can hardly have been in a mood to respond sufficiently to its minute and overflowing *dilettantismo*. The amiability and polite affectionateness, perceptible even yet through the dilettantism, may have been pleasant to him; and he may have noted the subtle and delicate expression of sympathy with his domestic unhappiness which seems to be conveyed in the passages quoted, as if by accident, from Petrarch, Horace, Chiabrera, and Tibullus. Dati may have been there replying to that portion of Milton's letter in which he had vaguely intimated his private melancholy in being doomed to unfit companionship; or he may have heard more particular rumours in Florence of Milton's marriage-mishap and its consequences. At all events, there is no trace of any answer by Milton to this long epistle from Dati, or of any poetical contribution sent by him, as Dati had requested, to the exequies of the interesting Rovai.

About the time when Milton should have been answering Dati's epistle, enclosing the requested tribute to the memory of Rovai, and also the exquisite comments which Dati expected on his quotations from Petrarch, Horace, Chiabrera, and Tibullus, his occupation, we find, was very different. "*April, 1648, J. M. Nine of the Psalms done into Metre, wherein all but what is in a different character are the very words of the Text translated from the Original;*" such is the heading prefixed by Milton himself to the Translations of Psalms LXXX.-LXXXVIII. which are now included among his Poetical Works. [Footnote: The heading stands so in the Second Edition of Milton's Miscellaneous Poems, published by himself in 1678.] Through some mornings and evenings of that month, therefore, we can see him, in his house in High Holborn, with the Hebrew Bible before him, making it his effort to translate, as literally as possible, these nine

Psalms into English verse. On looking at the result, as it now stands among his Poems, with Hebrew words printed occasionally in the margin, and every phrase for which there is not a voucher in the original printed carefully in italics, one has little difficulty in perceiving one of the motives of Milton in this metrical experiment. It was his knowledge of the interest then felt in the chance of some English metrical version of the Psalms that should supersede, for popular purposes and in public worship, the old version of Sternhold and Hopkins. Rous's version, with amendments, had been recommended by the Westminster Assembly, and approved by the Commons (*antè*, 425); the Lords were still standing out for Barton's competing version (*antè*, 512); other versions were in the background, but had been heard of. In these circumstances, might not a true poet, attending to all the essential conditions, and especially to the prime one of exactness to the Hebrew original, exhibit at least a specimen of a better version than any yet offered?

Unfortunately, if this was Milton's intention, it cannot be said that he succeeded. By all the critics it is admitted that his version of those Nine Psalms is inferior to what we should have expected from him; nor is it, I think, the mere prejudice of habit that leads those that have been accustomed to one particular revision of Rous's version—that which has been the Scottish authorized Psalter since 1650—to prefer Psalms LXXX.-LXXXVIII. as there given, rude though the versification is, to the Translations of the same Psalms proposed even by Milton. Something of this impression may have prevailed even in 1648, if, as is likely enough, Milton took the trouble of showing his translations to some who were interested in the question of the new Psalter, and wavering between Rous's and Barton's. On the faith of dates, however, there is another interest to us now in these careful translations by Milton of Psalms LXXX.-LXXXVIII. in April 1648. Why did he choose those particular Psalms? Not for metrical experiment only, but also because their mood fitted him. He needed the

strong Hebrew of those Psalms himself, and he drank it in afresh from the text that he might reproduce it for himself and others. Petrarch, Tibullus, Horace, Chiabrera! silence all such for the time, and let the Hebrew Psalmist speak! Thus (Psalm LXXX.):—

"Turn us again; thy grace divine
To us, O God, vouchsafe;
Cause thou thy face on us to shine,
And then we shall be safe."

Or again, with reference to the dangers then gathering round Parliamentary England (Psalm LXXXIII.):—

"For they consult with all their might,
And all as one in mind
Themselves against thee they unite,
And in firm union bind.
The tents of Edom, and the brood
Of scornful Ishmael,
Moab, with them of Hagar's blood
That in the desert dwell,
Geba and Ammon, there conspire,
And hateful Amalec,
The Philistines, and they of Tyre,
Whose bounds the sea doth check.
With them great Asshur also bands
And doth confirm the knot
All these have lent their armed hands
To aid the sons of Lot.
Do to them as to Midian bold
That wasted all the coast,

To Sisera, and, as is told
Thou didst do to Jabin's host,
When at the brook of Kishon old
They were repulsed and slain,
At Endor quite cut off, and rolled
As dung upon the plain."

Or perhaps, with closer personal reference, such lines as these (Psalm LXXXVII.):—

"The Lord shall write it in a scroll
That ne'er shall be outworn,
When He the nations doth enroll,
That this man there was born:
Both they who sing and they who dance
With sacred songs are there;
In thee fresh brooks and soft streams glance,
And all my fountains clear."

MILTON THROUGH THE SECOND CIVIL WAR: HIS PERSONAL INTEREST IN IT, AND DELIGHT IN THE ARMY'S TRIUMPH: HIS SONNET TO FAIRFAX.

While these translations were being written, there was the ominous rumour of the Engagement between the Scots and the King in the Isle of Wight, terrifying all men's minds with the prospect of a Second Civil War. We have seen what effects this prospect had on the English Parliament—how the resolute mood of the winter of 1647-8 was changed into a mood of timidity; how negotiations with the King were again talked of; how the Presbyterians recovered from their temporary submission to the Independents, and began to turn on them rather than on the King; how, in order to repudiate the

Republican sentiments appearing in the Army and elsewhere, the Commons pledged themselves to a continuance of Royalty and the House of Lords, and, in order to please the English Presbyterians and the Scots, the two Houses passed at length the tremendous Ordinance against Heresies and Blasphemies, making the least of them punishable with imprisonment and the graver punishable with death. This last Ordinance, passed May 2, 1648, the very day before the meeting of the Third Provincial Synod of London in Sion College, must have given great satisfaction to that body, but may well have spread alarm through general society. Beyond a doubt, most of those persons who had been denounced as notorious heretics and blasphemers in the Sion College manifesto of the preceding December were, by this Ordinance, liable to death if they did not recant. With due zeal on the part of the prosecution, nothing could have saved from the scaffold such of Milton's co-heretics as Biddle, Paul Best, the anonymous Mortalist R. O. (Richard Overton, or Clement Wrighter?), or even perhaps John Goodwin. Milton's particular heresy not being specifically named in the Ordinance, it would have been more difficult to apply it to him; but, if the terrible Presbyterian discipline which the Ordinance favoured were once imposed upon London, there would have been ingenuity enough to include Milton somehow among those worthy of minor punishment.

The comfort was that, before the Ordinance could come into real effect, before the terrible Presbyterian discipline it promised could be set up, the SECOND CIVIL WAR had to be fought through. How would that war end? Would it end in a triumph of Presbyterianism in hypocritical reconciliation with Royalty; or, despite the ugly mustering of forces in all parts of England to aid Duke Hamilton and his Scottish invasion, would it end, after all, in the triumph of that little English Army of Independents and Sectaries which had always beaten before, and might now, though distrusted and discountenanced by its own masters, prove once more its matchless mettle? With what anxiety, through May, June, July, and August 1648, must Milton,

with myriads of other Englishmen, have revolved these questions! With what anxiety must he have watched Fairfax's movements round London, his preliminary smashings of the Royalist Insurrection in Kent and Essex, and then the concentration of his efforts (June 12) on the siege of Colchester! With what anxiety must he have followed Cromwell into Wales, heard of his doings against the insurgents there, and then of his rapid march into the north (Aug. 3—10), to meet the invading Scottish Army under Duke Hamilton! But O the relief at last! O the news upon news of that glorious month of August 1648! Hamilton and the Scots utterly routed by Cromwell in the three days' battle of Preston (Aug. 17-19); Colchester at last surrendered to Fairfax (Aug 28); the Prince of Wales a fugitive back to Holland with his useless fleet (Aug. 28); the little English Army of Independents and Sectaries were more everywhere the victor, and the Parliament and the Presbytery-besotted Londoners ruefully accepting the victory when they would have been nearly as glad of a defeat! No fear now of any very violent execution of the Ordinance against Heresies and Blasphemies, or of a Presbyterian discipline of absolutely intolerable stringency! The Army and the Independents were once more supreme.

The sole piece of Milton's verse that has come down to us from the time of the Second Civil War is an expression of his joy at its happy conclusion. It is in the form of a Sonnet to Fairfax. The Sonnet is generally printed with the mere heading "*To the Lord General Fairfax;*" but in the original in Milton's own hand among the Cambridge MSS. one reads this heading through a line of erasure; "*On ye Lord Gen. Fairfax at ye seige of Colchester.*" This assigns the Sonnet to the end of August, or to September, 10-48.

"Fairfax, whose name in arms through Europe rings,
And fills all mouths with envy or with praise,
And all her jealous monarchs with amaze,

And rumours loud that daunt remotest kings,
Thy firm unshaken virtue ever brings
Victory home, though new rebellions raise
Their Hydra-heads, and the false North displays
Her broken League to imp their serpent wings:
O yet a nobler task awaits thy hand,
For what can War but endless war still breed,
Till Truth and Right from Violence be freed,
And public Faith cleared from the shameful brand
Of public Fraud! In vain doth Valour bleed,
While Avarice and Rapine share the land."

[Footnote: For obvious reason, Milton could not print this Sonnet in the Second or 1673 Edition of his Minor Poems. It was first printed by Phillips at the end of his Memoir of Milton prefixed to the English translation of Milton's State Letters in 1688; and Toland inserted it in his Life of Milton in 1698.]

Through the later months of 1648 Milton's heart must have been wholly with Fairfax and the other Army-chiefs, as he saw them driving things, cautiously at first, but more and more boldly by degrees, into the exact course marked out by this Sonnet. Their very professions were that, having finished the war and crushed the Hydra-heads of the new rebellions, they must and would proceed to the yet nobler task of preventing future wars, by freeing Truth and Right once for all from Violence, and clearing the public Faith of England from the brand of public Fraud. Hence, from September to December, the adoption by the Army of that peculiarly intrepid policy which has been described in our last chapter. Though the Parliament began their new Treaty with the King in the Isle of Wight, there were significant signs from the first that the Army regarded the Treaty with utter disdain; as the Treaty proceeded, regiment after regiment spoke out, each with its manifesto calling for justice on the King, and otherwise more or less

democratic; and so till the Army rose at last collectively, issued its great Remonstrance and programme of a Democratic Constitution (Nov. 16), dragged the King from his unfinished Treaty at Newport to safer keeping in Hurst Castle (Dec. 1), and itself marched into London to superintend the sequel (Dec. 2). Nominally in the centre of all this was the Lord General Fairfax, with Ireton as his chief adviser. Cromwell had not yet returned from his work in the north.

BIRTH OF MILTON'S SECOND CHILD: ANOTHER LETTER FROM CARLO DATI.

In the very midst of these thrilling public events there inserts itself a little domestic incident of Milton's life in Holborn. Oct. 25, 1648, his second child was born, two years and three months after the first. This also was a daughter, and they called her Mary after her mother. From that date on to our limit of time in the present volume we have no distinct incident of the Holborn household to record, unless it be the receipt of another letter from Carlo Dati. Although the amiable young Italian had received no answer to his last, of Nov. 1647, there had meantime readied him, by some slow conveyance, those copies of the Latin portion of Milton's published volume of Poems which had been promised him as long ago as April of the same year. This occasioned the following letter:—

Illmo. Sig. e Pron Osso [literally, "Most Illustrious Sir and Most Honoured Master," but the phrase is merely one of custom].

As far back as the end of last year I replied to your very courteous and elegant letter, thanking you affectionately for the kind remembrance you are pleased to entertain of me. I wrote, as I do now, in Italian, knowing my language to be so dear and familiar to you that in your mouth it scarcely appears like a foreign tongue. Since then I have received two copies of your

most erudite Poems, and there could not have reached me a more welcome gift; for, though small, it is of infinite value, as being a gem from the treasure of Signor John Milton. And, in the words of Theocritus:—

[Greek: hæ megala chariz
eoro xiyn holigo, panta de gimanta ta par' philon.]

"Great grace may be
In a slight gift: all from a friend is precious."

I return you therefore my very best thanks, and pray Heaven to put it in my power to show my devoted appreciation of your merit. There are some pieces of news which I will not keep from you, because I am sure, from your kindness, they will be agreeable to you. The most Serene Grand Duke my master has been pleased to appoint me to the Chair and Lectureship of Humanity in the Florentine Academy, vacant by the death of the very learned Signor Giovanni Doni of Florence. This is a most honourable office, and has always been held by gentlemen and scholars of this country, as by Poliziano, the two Vettori, and the two Adriani, luminaries in the world of letters. Last week, on the death of the Most Serene Prince Lorenzo of Tuscany, uncle of the reigning Grand Duke, I made the funeral oration; when it is published, it shall be my care to send you a copy. I have on hand several works, such as, please God, may lead to a better opinion of me among my learned and kind friends. Signor Valerio Chimentelli has been appointed by his Highness to be Professor of Greek Literature in Pisa, and there are great expectations from him. Signors Frescobaldi, Coltellini, Francini, Galilei, and many others unite in sending you affectionate salutations; and I, as under more obligation to you than any of the others, remain ever yours to command. [No signature, but addressed on the outside, *All Illmo. Signor e Pron Osso, Il Signor Giovanni Miltoni, Londra.*] [Footnote: The Italian of this letter is printed in the Appendix to Mr.

Mitford's Life of Milton prefixed to Pickering's edition of Milton's Works, and was communicated, I believe, by the late Mr. Watts of the British Museum from the original in that collection. It is doubtless the copy which Milton received. Of the Doni mentioned in the letter, as Dati's predecessor in the chair of Belles Lettres at Florence, we had a glimpse Vol. I. p. 746. He died, Mr. Watts says, in Dec. 1647, and left to Dati the charge of publishing his works. Frescobaldi, Coltellini, and Francini are already known (Vol. I. 725-9); the Galilei mentioned is not the great Galileo, who had died in 1642, but his natural son Vincenzo Galilei, also a man of talent.—As we take leave of Dati at this point, for some time at least, I may quote an interesting sentence, respecting one of his intentions in later life, from the notices of him in Salvini's *Fasti Consolari dell' Accademia Fiorentina* (1717): "He had particularly in view the publication of the letters which he had received from various literary men, such as John Milton, Isaac Vossius, Paganino Gaudenzio, Giovanni Rodio, Valerio Chimentelli, and Nicolas Heinsius: from the last he had a very large number." When he died, Jan. 11, 1675, a few months after Milton, he had not fulfilled this intention; but it is likely, as we have seen (*antè*, p.655), that there has survived from among his papers only the one letter of Milton to him which Milton himself published.] Florence, Dec. 4, 1648.

While this letter was on its way to Milton, and possibly before it could have reached him, there had enacted itself, close within his view in High Holborn, that final catastrophe of a great political drama the boom of which was not to stop within the British Islands, but was to be heard in Italy itself and all the foreign world.

CHAPTER III.

THE TWO HOUSES IN THE GRASP OF THE ARMY: FINAL EFFORTS FOR THE KING: PRIDE'S PURGE AND ITS CONSEQUENCES—THE KING BROUGHT FROM HURST CASTLE TO WINDSOR: ORDINANCE FOR HIS TRIAL PASSED BY THE COMMONS ALONE: CONSTITUTION OF THE COURT—THE TRIAL IN WESTMINSTER HALL: INCIDENTS OF THE SEVEN SUCCESSIVE DAYS: THE SENTENCE—LAST THREE DAYS OF CHARLES'S LIFE: HIS EXECUTION AND BURIAL.

In taking the King out of the Isle of Wight, and lodging him for a time in the solitary keep of Hurst Castle on the Hampshire coast, the Army had proclaimed their intention of bringing him to public justice, and it was that they might compel this result that they had marched into London with Fairfax at their head. As they desired that the proceedings should be regular, they had resolved that the two Houses of Parliament, or at least one of them, should conduct the business.

THE TWO HOUSES IN THE GRASP OF THE ARMY: THEIR FINAL EFFORTS FOR THE KING: PRIDE'S PURGE AND ITS CONSEQUENCES.

Here was their difficulty. On Dec. 2, 1648, when the Army took possession of London, there were nineteen Peers present in their places in the House of Lords: viz. the Earl of Manchester, as Speaker; the Earls of Pembroke, Rutland, Salisbury, Suffolk, Lincoln, Mulgrave, Middlesex, Stamford, Northumberland, and Nottingham; Viscount Save and Sele; and Lords

Howard, Maynard, Dacres, Montague, North, Hunsdon, and Berkeley. From such a body the Army could not hope much. Three or four of them might be reckoned on as thorough-going; but to most a crisis had come which was too terrible. Ah! had they foreseen it six years before, had they then foreseen that their own order and all the pleasantness of their aristocratic lives would go down in the contest to which they were lending themselves, would their choice between the two sides have been the same? To have sat on through those six years, a mere residuary rag of the English Peerage, at variance with the King and the vast majority of their own order; to have figured through the struggle as nominally the superior House, but really the mere ciphers of the Commons; to have had to throw all their aristocratic dignity and all their permissible conservatism at last into the miserable form of partisanship with a despotic Presbyterianism and zeal for the suppression of Sects, Heresies, and Independency:—here was a retrospect for men of rank, men of ambition, men of pride in their pedigrees! And now to have an Army of these Independents, Sectaries, and Heretics, holding them by the throat, and prepared to dictate to them the alternative of their own annihilation or their assent to a deed of horror!—Such being the position of the Lords, how was it with the Commons? In that House about 260 members were still giving attendance, or were at hand to attend when wanted. On the 2nd of December there were 232 in the House. A staunch minority of these were Independents in league with the Army; but the decided majority were men of the Presbyterian party, full of regrets at the failure of the Treaty of Newport, but ready to resume negotiations with the King on the basis of the terms offered him in that Treaty, or indeed now on any other basis on which there could be agreement. Detestation of the Army was, therefore, the ruling feeling in this House too: but the detestation was mingled with dread. With regiments at their doors, with regiments posted here and there on the skirts of the City, all alert against any symptom of a rising of the Presbyterian Londoners, they could not hope now for any

chance of seeing the Army overmastered for them by the only means left-popular tumult and a carnage in the streets. All that the Commons could do, therefore, was to be sullen, and offer a passive resistance. [Footnote: Lords and Commons Journals of Dec. 2, 1648; and Records of Divisions in Commons Journals through the previous month. There were thirteen divisions in that month, showing an attendance ranging from 80 to 261.]

It was on Monday the 4th and Tuesday the 5th of December that the attitude which the two Houses meant to take towards the Army was definitely ascertained. On the first of these days, the news of the King's removal to Hurst Castle having meanwhile arrived, there was a fierce debate in the Commons over that act of the Army, the Presbyterians protesting against its "insolency," and at length carrying, by a majority of 136 votes to 102, a Resolution that it had been done "without the knowledge or consent" of the House. On the same day the House proceeded to a debate, continued all through the night, and till nine o'clock next morning, on the results of the Treaty of Newport. The Presbyterian speakers, such as Sir Robert Harley, Sir Benjamin Rudyard, Harbottle Grimstone, Sir Simonds D'Ewes, and Clement Walker, contended that the King's concessions were satisfactory; the negative was maintained by a succession of speakers, among whom were the two Vanes. The Presbyterians, having originally put the question in this form, "Whether the King's Answers to the Propositions of both Houses be satisfactory," did not risk a division on so wide an issue, but thought it more prudent to divide on the previous question, "Whether this question shall now be put." Having carried this in the negative by 144 to 93, they were enabled to shape the question in this likelier form, "That the Answers of the King to the Propositions of both Houses are a ground for the House to proceed upon for the Settlement of the Peace of the Kingdom;" and it was on the question in this form that the debate was protracted through the night of the 4th and into the 5th. The most extraordinary incident of the debate on the 5th was

the appearance made by Prynne. He had been a member of the House only a month, having taken his seat for Newport in Cornwall on the 7th of November; and he now came forward, the poor indomitable man, with a speech of vast length and most elaborate composition, in favour of that sovereign whose reign had been to him of all men ruinous and horrible. With his face muffled to hide the scars of his old mutilations by the hangman's knife, he stood up, and, after a touching recitation of all that he had suffered, denounced the Army and its outrages on Parliamentary freedom, expounded his views of Presbyterianism and right constitutional government, and pleaded earnestly for a reconciliation with Charles. His speech, if it was actually delivered as it is printed, must have occupied four or five hours in the delivery; but one must suppose he gave only part of it and reserved the rest for the press. He was heard, he says, with great attention, and had the satisfaction not only of pleasing his own party, but also of making converts. At one time or another during the debate there had been, he says, as many as 340 members present; but many of these had been wearied out by the long night-sitting. Accordingly in the final vote on Tuesday morning there were 129 for the affirmative in the question, and only 83 for the negative: *i.e.* in a House of 212 there were three-fifths for a reconciliation with the King, and two-fifths for complying with the Army and bringing the King to justice. The concurrence of the Lords with the majority in the Commons was a matter of course. It was given the same day, *nem. con.*, Manchester being in the chair, and only fourteen other Peers present. By way of tempering the whole result as much as possible, a Committee was appointed by the Commons to wait on Fairfax and his officers that afternoon, with a view to "the keeping and preserving a good correspondence" between Parliament and the Army. [Footnote: Commons and Lords Journals of the days named; Clement Walker's Hist, of Indep. Part. II. pp. 28, 29; and Parl. Hist. III. 1147-1239. Of these 92 closely printed columns of the Parl. Hist. 86 are taken up with a reprint of Prynne's

speech, as published by himself in the end of Jan. 1648-9. The editor remarks on the fact that, with the exception of Clement Walker, none of the contemporary writers mention Prynne's speech at all. This confirms the supposition that it cannot have been so large in delivery as it is in print. Yet that it must have been very large appears not only from Prynne's own account, but also from who says: "This he held on the affirmative with so many strong and solid reasons, arguments, and precedents both out of Divinity, Law, History, and policy, and with so clear a confutation of the opposite argument, that no man took up the bucklers against him."]

The Army had their own plan for bringing about a "good correspondence," and they put it in operation on the two following days, Dec. 6 and 7. Not troubling themselves with the Lords—who met for mere form on each of these days (only seven present on the first and eight on the other)—they applied their plan to the Commons. It consisted in what was called PRIDE'S PURGE, the style of which was as follows:—On the morning of the 6th, when the members were going into the House, they found all the entrances blocked by two or three regiments of soldiers, under the command of Colonels Pride, Hewson, and Sir Hardress Waller. Every member, as he came up, was scrutinized by these armed critics, and especially by Colonel Pride, who had a list of names in his hand, and some people about him to point out members he did not know. If a member passed this scrutiny, they let him in; if not, they begged him not to think of taking his place in the House, and, if he persisted, hauled him back, and locked him up in one of the empty law-courts conveniently near. Mr. Prynne, who made a conspicuous resistance, was locked up in this way; Sir Robert Harley, Sir William Waller, Sir Samuel Luke, Sir Robert Pye, General Massey, Clement Walker, Sir Simonds D'Ewes, Sir Benjamin Rudyard, and others and others, including even Nathaniel Fiennes, who had shown momentary weakness, were similarly disposed of; till at length the members who had presented themselves were sifted into two divisions—a

goodly band regularly within the House, and forty-one fuming outside as prisoners in the law-courts. Messages passed and repassed between the two divisions, and the House made some faint show of protest and of anxiety for the release of the arrested. Any decided motion to this effect, however, was prevented by a communication to the House from Fairfax and his General Council of Officers. Colonel Axtell and some other officers, being admitted, announced the message verbally, and it was subsequently presented in writing by Colonel Whalley. Under the name of "Humble Proposals and Desires," this paper reminded the House of their former votes for expelling and disabling Denzil Holles, General Massey, and the rest of the Presbyterian Eleven impeached by the Army in 1647, and demanded that these members, irregularly and scandalously re-admitted to their places, should be again excluded and held to trial. It farther demanded that about 90 members, alleged to have been more or less in complicity with the Scots in their late invasion of England, should be disabled; it prayed for an immediate repeal of the Votes on which the Treaty of Newport had proceeded, and of the Vote of the previous day for reliance on that Treaty; and it begged all truly patriotic members to form themselves visibly into a phalanx, apart from the others, that they might be counted and known. In fact, the message not only adopted Pride's rough measure of that day as authorized by the whole Army, but represented it as only a friendly interposition, doing for the House in part what the House must be anxious to do more fully for itself. So the afternoon passed, the forty-one, still remaining in durance, visited by various persons who had Fairfax's or Pride's permission, and especially by Hugh Peters. He took a list of their names, discoursed with them, released Rudyard and Fiennes, and promised the rest that they should be removed to fit quarters for the night in Wallingford House. As night came on, however, and Wallingford House was not available, they were taken, under guard, to a common victualling-house near, jocularly called *Hell*; and here, some of them walking about,

and others stretched on benches and chairs, or on the floor, in two upper rooms, they spent the night "reading and singing psalms to God." Next day there were again requests from the House to Fairfax for their release. It could not be granted; but they were marched through the streets to better accommodation in two inns in the Strand, called the Swan and the King's Head. Meanwhile Pride's watch at the doors of the House had been effectively continued. There were several new arrests on the 7th; many members, not arrested, were forcibly turned back; and many more, among whom was Denzil Holies, kept prudently out of the way. Altogether, the number of the arrested was 47, and that of the excluded 96. It was a purgation quite sufficient for the Army's purpose. This was proved by a vote actually taken in the House on the 7th, after the purgation was complete. "The question being propounded, That the House proceed with the Proposals of the Army," it was carried by 50 to 28 that the question should be put and the Proposals proceeded with. As most of the minority in this division withdrew in consequence, the House was reduced from that moment to just such a tight little Parliamentary body as the Army desired. [Footnote: Lords and Commons Journals of days named; Rushw. VII. 1353-1356; Parl. Hist. III. 1240-1249 (a careful compilation of contemporary accounts).]

Cromwell was again among them. He had returned to town on the evening of the 6th, and he was in his place in the Commons on the 7th, receiving the thanks of the House, through the Speaker, for his "very great and eminently faithful services" in Wales, Scotland, and the North of England. He had not been concerned in the design of Pride's Purge, and the business was half over before his arrival in town; but he quite approved of what had been done, and said he would maintain it. The younger Vane, on the other hand, had been so staggered by the proceeding that he had withdrawn from the scene, to avoid further responsibility. [Footnote: Commons Journals, Dec. 7; Parl. Hist. III. 1246; and Godwin, III. 31.]

For a fortnight after Pride's Purge, the two Houses, reduced now to such dimensions as might suit the Army's purpose, went on transacting various business. The attendance in the Lords had dwindled to five, four, and even to three, raised on one occasion to seven. In the Commons the attendance does not seem to have ever exceeded 50 or 60. It is in the proceedings of this House, of course, that one sees the steady direction of affairs towards the end prescribed by the Army. There were all kinds of items of employment during the fortnight, including orders about the Navy, orders in mercantile matters, discharges of some of the secluded and imprisoned members, votes condemning those who continued contumacious and had ventured on protests in print, receptions of petitions and addresses of confidence from various public bodies, and attendance by such as chose on a special Fast-day Sermon preached by Hugh Peters. But through these miscellaneous proceedings one notes the main track in such votes as these:—Dec. 12, Vote for repealing all former votes and acts condoning the faults of Denzil Holles and the rest of the impeached Presbyterian leaders, and on the same day a Vote declaring the re-opening of a Treaty with the King in the Isle of Wight to have been dishonourable and apparently destructive to the good of the kingdom; Dec. 13, A farther Vote, in compliance with the Army's Proposals, disowning entirely the Treaty in the Isle of Wight, and repealing the Vote of the previous week for proceeding to a settlement on the grounds supplied by the King's Answers in that Treaty; Dec. 23, Resolution, "That it be referred to a Committee to consider how to proceed in a way of justice against the King and other capital offenders, and that the said Committee do present their opinions thereupon to the House with all convenient speed." The Committee so appointed consisted of 38 members of the House, among whom were St. John, Whitlocke, Skippon, Lord Grey, Lord Lisle, Sir Henry Mildmay, Pennington, and Henry Marten. [Footnote: Lords and Commons Journals from Dec. 8 to Dec. 23; Parl. Hist. III. 1247-1253; Whitlocke, Dec. 23.] Cromwell was not of the Committee, and some

of those put upon it were not likely to attend. Indeed, though the Resolution passed without a division, the reluctance of some who were present had appeared in the course of the debate. They argued that there was no precedent in History for the judicial trial of a King, and that, if the Army were determined that Charles should be punished capitally, the business should be left to the Army itself as an exceptional and irregular power.

**THE KING BROUGHT FROM HURST CASTLE TO WINDSOR:
ORDINANCE FOR HIS TRIAL PASSED BY THE COMMONS
ALONE: CONSTITUTION OF THE COURT.**

Some days before the Resolution of Dec. 23 was adopted by the Commons, the Army had taken steps for bringing the King nearer to London, to abide the issue. He had been in Hurst Castle for about a fortnight, rather poorly lodged in the old apartments of the keep, and complaining of the fogs that rose from the salt-water marshes around, with their beds of ooze and sea-kelp. His amusement had been in the sight of the passing ships, in his daily walk along the narrow neck of shingle connecting the castle with the mainland, and in the companionship of his select attendants in the evenings, when the drawbridge was up, the guard set, the woodfires blazing indoors, and the candles lit. He had brought with him from Newport fourteen personal attendants in all, including his two gentlemen of the bedchamber, Mr. James Harrington (afterwards known as the author of *Oceana*) and Mr. Thomas Herbert. Both these gentlemen, though their principles and connexions were originally Parliamentary, had, in the course of their long attendance on the royal captive, contracted a respectful affection for him. Harrington, indeed, had been speaking out so openly in praise of his Majesty's conduct in the Newport Treaty, and of the talent he had shown in his debates with the Presbyterian divines, that those who were in charge had thought it unsafe to let him remain in the service. He had therefore been

dismissed, and the duty of immediate waiting on the King had been left entirely to Mr. Herbert.

It was at midnight on the 16th or 17th of December that this gentleman, asleep in the little room he occupied next to the King's chamber, was roused by hearing the drawbridge outside let down, and some horsemen enter the Castle. Next morning he found that the King had heard the noise too, and was curious to know the cause. Mr. Herbert went out to inquire, and came back with the information that Major Harrison had arrived in the night. Nothing more was said at the moment, and the King went to prayers; but later in the day the King seemed very much discomposed, and told Herbert that Harrison was the very man against whom he had most frequently received private warnings. He had never, to his knowledge, seen the Major, but he had heard much of the wild enthusiasm of his character; and, if assassination were intended, and this man were to be the agent, what likelier place than the lonely sea-keep where they then were? To relieve his Majesty's mind if possible, Mr. Herbert went out to make farther inquiries. He soon returned with the intelligence that the purpose of Harrison's visit was to arrange for his Majesty's removal to Windsor Castle. Nothing could be more agreeable to the King than the prospect of "leaving the worst to enjoy the best Castle in England;" and all fear vanished.

After two nights, Major Harrison left the Castle mysteriously as he had come, and without having seen the King or spoken to any of his attendants. He had made the necessary arrangements, and the actual removal of the King was to be superintended by the same Colonel Cobbet who had managed his abduction from the Isle of Wight. This officer, arriving two days afterwards, formally announced his business; and, his Majesty being very willing, there was no delay. Passing along the spit of land from Hurst Castle to Milford, they found a body of horse there waiting; and, under this convoy, they rode inland through Hampshire, gradually leaving the sea

behind. By a route through the New Forest and past Romsey, they reached Winchester, where they made some stay, the Mayor, Aldermen, and Clergymen of the City, and many of the gentry round, coming in dutifully to pay their respects. Thence to New Alresford, and so to Farnham in Surrey. It was on the road between these two towns that they passed another troop of horse drawn up in good order, which immediately closed up in the rear and went on with them. The King was particularly struck with the appearance of the commander of this troop, a man gallantly mounted, with a velvet montero on his head, a new buff- coat, and a crimson silk scarf round his waist, who, as the King passed at an easy pace, saluted him splendidly "*alia soldado*" and received a gracious bow in return. Inquiring of Mr. Herbert who he was, the King was greatly surprised to learn he was the dreadful Major Harrison. He looked a real soldier, the King said, and, if there might be trust in men's faces, was not the man to be an assassin. On arriving at Farnham, where they spent the night in a private house, the King took care to pay considerable attention to Harrison. Standing by the fire before supper, in a large wainscoted room full of people, he singled out Harrison at the other end, beckoned him to come up, took him by the arm, and led him to a window-recess, where they conversed for half an hour. Apparently Harrison's words were not so satisfactory as his looks. He disowned indignantly any such design against the King as had been imputed to him, but added something to the effect that great and small alike must be subject to Law, and that Justice could pay no respect to persons. The King, who had never yet brought himself to imagine the possibility of his public trial in any form, saw no particular significance in Harrison's words, but thought them "affectedly spoken," and broke off the conversation. He was very cheerful at supper, greatly to the delight of his suite. Next day, taking Bagshot on the way and dining at Lord Newburgh's house there, they arrived at Windsor, and were received by Colonel Whichcot, the officer in command. It was the very day, Saturday Dec. 23, on which the Commons had appointed their

Committee for considering the means of bringing the King to justice, and the Committee were holding their first meeting in Westminster that afternoon. The news had probably not yet reached Windsor, or it remained unknown to the King. He took up his abode in his royal apartments in the Castle; and the next day, as he paused in his Sunday walk round the exterior, he looked with no especial anxiety Londonwards, but rejoiced once more in the view of the Thames flowing by Eton, and the far expanse of lull and valley, villages and fair houses, noble even in its wintry leaflessness and the dull gloom of the December air. [Footnote: Herbert's *Memoirs*, 126-145; Rushworth VII. 1371; *Parl. Hist.* III. 126.]

Christmas-week having passed, and the Committee for justice on the King having had several meetings, the Commons, on the 1st of January 1648-9, passed a Resolution and an Ordinance. The Resolution was "That, by the fundamental laws of this kingdom, it is Treason in the King of England for the time being to levy war against the Parliament and Kingdom of England;" the Ordinance was one beginning "Whereas it is notorious that Charles Stuart, the now King of England," and ending with the appointment of a High Court of Justice for the Trial of the King, to consist of about 150 persons named as Commissioners and Judges expressly for the purpose. Five Peers were named first on this Commission; then Chief Justices Rolle and St. John and Chief Baron Wylde; then Fairfax, Cromwell, Ireton, and many more members of the Commons and Army Officers; but a considerable proportion of those named were Lawyers, Aldermen, and Citizens, not members of the House. Any twenty of the Commissioners were to be a quorum.—On the following day (Jan. 2), the Resolution and Ordinance having been sent up to the Lords for their concurrence, there was a scene of agony in that House. As many as twelve Peers had mustered for the occasion, including four of the five whom the Commons had named first in the dreadful Commission. Unanimously and passionately all the Peers present rejected both Resolution and Ordinance, the Earl of Denbigh

declaring he "would be torn in pieces rather than have any share in so infamous a business," and the Earl of Pembroke, who came nearest to neutrality, saying he "loved not businesses of life and death." Having hurled this defiance at the Commons, the Lords were powerless for more, and adjourned for a week.

It was a week of rapid action and counter-defiance by the Commons. Not a few of the feebler spirits, indeed, had taken leave of absence. Whitlocke, for one, had gone into the country. The Clerk of the House, Mr. Elsyng, had feigned ill-health and resigned. Nevertheless, with a temporary substitute to do Mr. Elsyng's duty, the House pushed on. Jan. 3, they sent two of their number to inspect the Journals of the Lords and ascertain formally the proceedings of that House on the preceding day. When these were reported, some were for impeaching the twelve Peers as co-Delinquents with the King. To the majority, however, such a course appeared quite unnecessary; it was enough to declare that, as the Lords would not concur, the Commons would act without their concurrence. Jan. 4, after a debate with locked doors, this momentous Resolution was passed: "That the Commons of England in Parliament assembled do declare, That the People are, under God, the original of all just power; and do also declare, That the Commons of England in Parliament assembled, being chosen by and representing the People, have the supreme power in this nation; and do also declare, That whatsoever is enacted, or declared for law, by the Commons in Parliament assembled hath the force of a law, and all the People of this nation are concluded thereby, although the consent and concurrence of the King, or House of Peers, be not had thereunto." The Ordinance for a High Court of Justice for the King's trial had meanwhile been re-introduced, with the omission of the five Peers, the three Judges, and some other reluctant persons named in the original Ordinance, and with the addition of two eminent lawyers not there named; so that Fairfax, Cromwell, and Treton now stood at the top of a total list of 135 judicial Commissioners. Hurried

through the proper three stages, this Bill became law by the authority of the Commons alone, Jan. 6,—On the 9th of January, when the Peers re-assembled after their adjournment, seven being present, they made a faint attempt to recover influence. They sketched out an Ordinance to the effect that whatsoever King of England should *in future* levy war against the Parliament and the Kingdom should be guilty of High Treason, and they appointed a Committee to prepare such an Ordinance. At the same time, ignoring the virtual abolition of their House by the Commons, they endeavoured to renew communications between the two Houses in the usual manner, by sending a message about various matters of mere ordinary business that had been pending between the two. This led to a curious proof that even in the thoroughgoing body that now constituted the Commons there was still a difference between most thoroughgoing and moderately thoroughgoing. There was first a division on the question whether the messengers from the Lords should be received at all; and, while 31 voted for admitting them, a minority of 18, with Henry Marten and Ludlow for their tellers, voted *No*. Then, after the messengers had been received and had delivered their message, it was debated whether they should be dismissed with the customary answer that the House would reply in due course by messengers of their own. Out of 52 present, 19 voted *No* (Ireton one of the tellers), and 33 voted for keeping up the usual courtesy. But, though a majority were thus for treating the Lords as still extant, practically the whole House was in the same ultra- democratic temper. That very day, for example, on the report of a Committee, orders were given for the engraving of a new Great Seal, with instructions that on one side there should be a map of England and Ireland, with the Islands of Jersey and Guernsey, also the English and Irish arms, and the words "The Great Seal of England: 1648," and on the reverse a representation of the House of Commons sitting, and the motto "In the First Year of Freedom by God's blessing restored: 1648." The deviser of these emblems was the Republican

Henry Marten. [Footnote: Lords and Commons Journals of days named; Rushworth, VII. 1379 *et seq.*; Parl. Hist. III. 1253-1258; Whitlocke under dates given.]

Not even yet did Charles realize the extent of his danger. Well-treated at Windsor, and allowed the liberty of walking on the terrace and in the grounds, he had kept up his spirits wonderfully, and had been heard to say he "doubted not but within six months to see peace in England, and, in case of not restoring, to be righted from Ireland, Denmark, and other places." Even after information of the proceedings of the Commons and their rupture with the Lords had reached him, he scouted the idea of the public trial which was threatened. They dared not do such a thing! At the utmost, he expected that the Commons might venture to depose him, confine him in the Tower or elsewhere, and call upon the Prince of Wales, or perhaps the Duke of York or the Duke of Gloucester, to assume the succession! [Footnote: Herbert's Memoirs, 145-156; Whitlocke, II. 488.]

Meanwhile the Court appointed to try the King had met to constitute itself. Formal proclamation of its authority and of its business had been made in various public places in London; and, in a series of meeting held in the Painted Chamber in Westminster, preliminaries had been arranged. Not so many as half of the Commissioners appointed by the Ordinance seem to have attended at any of these meetings. Fairfax, who was present at the first (Jan. 8), recoiled then and there, and never went back. [Footnote: In Notes and Queries for July 6, 1872, Mr. William J. Thorns gave a carefully prepared list of the 135 persons named King's Judges by the Second Ordinance for the Trial, so printed as to show which of them really took part in the business thus assigned them, and to what extent, and which of them abstained wholly or withdrew before the close of the proceedings.] For President of the Court, with the title "Lord High President," there was chosen John Bradshaw, one of the lawyers added in the second form of the

Ordinance, to make up for the omission there of the three Judges from the regular Law-Courts who had been appointed in the first Ordinance, but had been excused. He was over sixty years of age; had been eminent for some time in his profession; and had recently been one of a group of lawyers raised to the serjeantcy, with a view to their promotion to the Bench. As counsel for the prosecution, four lawyers, not on the Commission, were appointed, one of them John Cook, and another the learned Dutchman Dr. Dorislaus. Although these arrangements had been made before the 12th of January, another week elapsed before the Court was quite ready. The vaults under the Painted Chamber, which was to be the ordinary place of meeting of the Court, when not sitting in Westminster Hall for the open trial, had to be searched and secured against any attempt of the Guy Fawkes kind; a bullet-proof hat, it is said, had to be made for Bradshaw: the Mace and Sword of State had to be brought from their usual repositories; &c. The two Houses of Parliament meanwhile met from day to day, four or five Peers still keeping up the pretence of their corporate existence, and about 50 Commons transacting this or that business as it happened, without the least reference to the Peers. Prynne, from his confinement in the King's Head Tavern in the Strand, had issued a defence of the King in the form of *A Brief Memento to the Present Unparliamentary Juncto*; and a good deal of the time of the Commons was taken up with notices of this pamphlet and votes for the prosecution of its author. [Footnote: Rushworth, VII, 1389-1394; Lords and Commons Journals; and Godwin's Hist. of the Commonwealth, II. 621 and 664-668.]

THE TRIAL IN WESTMINSTER HALL: INCIDENTS OF THE SEVEN SUCCESSIVE DAYS: THE SENTENCE.

On Friday, Jan. 19, Charles was brought from Windsor in a coach, guarded by a body of horse under Harrison's command, and conveyed through

Brentford and Hammersmith to St. James's Palace. That same night he was removed to Whitehall; and, on the afternoon of Saturday the 20th, he was taken thence to Cotton House, adjoining Westminster Hall. This great hall, used for Strafford's trial, had now been fitted up for the King's, and the High Court of Justice were already assembled in it, waiting their prisoner. Bradshaw was in the chair, and sixty-six more of the Commissioners were present. Among them were Cromwell, Ireton, Henry Marten, Edmund Ludlow, General Hammond, Lord Grey of Groby, several Baronets and Knights, Colonels Ewer, Hawson, Robert Lilburne, Okey, Pride, Hutchinson, Purefoy, Sir Hardress Waller, and Whalley, with Major Harrison, Alderman Pennington of London, and three barristers. The hall was crowded with spectators, both on the floor and in the galleries; and order was kept by a guard of red-coats under Colonel Axtell. As the Court was forming itself, there had been a rather startling interruption by a woman's voice from one of the galleries. It was that of Lady Fairfax, who had gone in indignant curiosity, and, on hearing her husband's name read in the Commission, called out loudly to this effect, "He is not here, and will never be; you do him wrong to name him." This interruption was over, and the Court composed, when Charles was brought in by Colonel Hacker, and a select guard of officers armed with halberts. The Serjeant-at-Arms receiving him, and preceding him with the mace, he was conducted to the bar, where a chair of crimson velvet had been set for him. Some of his own servants followed him and stood round him. He looked sternly at the Court and at the people in the galleries; then sat down, keeping on his hat; then stood up, and turned round to look at the soldiers and the multitude; then sat down again, still with his hat on. He was now face to face with his judges. He looked at them carefully, and recognised about eight as personally known to him. [Footnote: Rushworth, VII. 1394-1399, and Herbert, 150-161. It is strange to find some points of contradiction between these two trustworthy accounts. Herbert, after apparently implying that the King had

been brought from Windsor to St James's *before* the 19th, makes his removal from St. James's to Whitehall occur on that day. Rushworth brings him to St. James's exactly on the 19th, and removes him to Whitehall next morning. Again, Herbert makes the King conveyed from Whitehall to Cotton House "in a sedan or close chair," and describes the walk through the posted guards, along King Street and Palace Yard, adding that only he himself was allowed to go with the King that way; whereas Rushworth says that the King was brought to Cotton House from Whitehall by water, "guarded by musketeers in boats." Rushworth's accounts, written at the moment, ought to be more accurate in such particulars, and especially in dates, than Herbert's, written from recollection; but Herbert can hardly have been wrong in the matter of the sedan chair. Perhaps, while the King went in such a chair, Herbert accompanying him, most of the King's servants went by water. For the names of all the sixty-seven King's Judges present on the first day of the Trial see Mr. Thomb's list in *Notes and Queries*, July 6, 1872. The figure 20 there appended to a name intimates presence that day.— Among those of the 135 appointed Judges who did not attend on that day or on any subsequent one, and therefore must be supposed to have agreed with Fairfax in disowning the entire business, we may note Skippon, Sir Arthur Haselrig, Sir William Brereton, Desborough, Lambert, Overton, Lord Lisle, and Algernon Sidney.]

The proceedings of the Trial will be best exhibited in the following condensed account of the particulars of each day:—

Saturday, Jan. 20:—The President, in a brief address to the King, informed him of the business on which the Court had met, and called on him to hear the Charge against him. Solicitor Cook, standing within the bar, on the King's right, then began to state the Charge, but was interrupted by the King, who held out a stick which he had in his hand, and laid it softly twice or thrice on the Solicitor's shoulder, bidding him stop. Bradshaw

having interfered, the Solicitor continued his statement, and delivered in his Charge in writing, which Bradshaw called on the Clerk of the Court to read. Charles again interrupted, and continued to interrupt; but, Bradshaw telling him that he would be heard afterwards if he had anything to say, the document was at length read. It accused Charles Stuart, King of England, of having "traitorously and maliciously levied war against the present Parliament and the People therein represented;" and it supported the Charge by a recitation of specific acts of the King done in the First Civil War from June 1642 to 1646, and again more generally of acts done in 1648 before and during the Second Civil War. Charles had smiled often as the Charge was read; and, when the President at the close asked what answer he had to give, begged to know by what authority he had been brought thither. He had been in treaty with Parliament in the Isle of Wight; he had been forcibly taken thence; he saw no Lords present; the crown of England was hereditary and not elective; in whose name was this Court held? "In that of the Commons of England," Bradshaw replied; and there ensued a skirmish between him and the King on the question of authority, which Bradshaw ended by adjourning the Court till Monday at ten o'clock.

*Monday, Jan. 22:-*After a consultation in the Painted Chamber, the Court met in Westminster Hall, *seventy* members present, and answering to their names. The skirmish between Bradshaw and the King was renewed: Bradshaw requiring the King's Answer to the Charge "either by confessing or denying," and the King refusing the Court's jurisdiction, not for his own sake alone, he said, but "for the freedom and liberty of the people of England," imperilled by the assumption of the Court's legality. "Sir, I must interrupt you," said Bradshaw; "which I would not do, but that what you do is not agreeable to the proceedings of any Court of Justice." No Court, he said, could permit its own authority to be questioned; the King must not go out into such wide discourses; he must give a punctual and direct answer. No such answer would the King give; he would have law and reason for his

being in that place at all. "Sir, you are not to dispute our authority," again interrupted Bradshaw; "you are told it again by the Court: Sir, it will be taken notice of you that you stand in contempt of the Court, and your contempt will be recorded accordingly." The King "did not know how a King might be a delinquent by any law he ever heard of;" but any Delinquent might put in a demurrer. And so on and on for a considerable time, the Clerk of the Court reading out the Resolution of the Court that the King should give his answer, and the King still insisting on giving reasons why he would not. "Serjeant, take away the prisoner," said the Lord President at last; and the King, still talking, was removed to Cotton House. —He left in writing, for subsequent publication, the reasons he wanted to state to the Court that day. The chief of them was that no earthly power could justly call a King to account. He quoted, as Scripture authority, Eccles. viii. 4: "Where the word of a King is, there is power; and who may say unto him, What dost thou?" But he appealed also to the Law and Custom of England.

*Tuesday, Jan. 23:-*The Court again met in Westminster Hall, 63 Commissioners present. Solicitor Cook moved that, the King having refused to plead either Guilty or Not Guilty, the rule for such cases of contumacy should be applied to him, his refusal taken *pro confesso*, and judgment pronounced. The Lord President, calling the King's attention to this motion, offered him another opportunity of pleading, which he used only to return to the discourses of the two previous days. "Clerk, do your duty!" said Bradshaw at last. "Duty, Sir!" exclaimed the King; and, the Clerk having again read out a paper requiring the King's positive answer to the Charge, and the King still refusing, "Clerk, record "the default," said Bradshaw, "and, gentlemen, you that took "charge of the prisoner, take him back again." That night, like the preceding, was spent in Cotton House.

Wednesday, Jan. 24, and Thursday, Jan. 25:—No public meetings of the Court in Westminster Hall on these days; but more private sessions in the Painted Chamber for the purpose of receiving the depositions of witnesses,—the Court having determined that, though not obliged to that course, they would adopt it for their own satisfaction. Accordingly there were examined more than thirty witnesses from various parts of England— "W. C., of Patrington in Holderness, in the county of York, gentleman, aged 42;" "W. B., of Wixhall, in the county of Salop, gentleman;" "H. H., of Stratford-upon-Avon in Warwickshire;" "R. L., of Cotton in Nottinghamshire, tiler;" "J. W., of Ross in Herefordshire, shoemaker;" "S. L., of Nottingham, maltster, aged 30 years;" "A. Y., citizen and barber-surgeon of London, aged 29;" "H. G., of Gray's Inn, in the county of Middlesex, gentleman;" &c. &c. They deposed to various acts of the King seen by themselves, from the setting up of his standard at Nottingham onwards. Papers in the King's own hand, or by his authority, were also produced and read. Finally, the Court, "taking into consideration the whole matter," resolved to proceed to sentence on the King as "a tyrant, traitor, and murderer," and as "a public enemy to the Commonwealth of England."

Friday, Jan. 26:—A private sitting of the Court in the Painted Chamber, in which the Sentence was drafted, agreed to, and ordered to be engrossed.

Saturday, Jan. 27:—First another private meeting in the Painted Chamber to settle the procedure of the Court for the day, and give President Bradshaw instructions for his behaviour in any contingency that might arise, one of them being that he "should hear the King say what he would before the sentence, and not after." Then, about one o'clock, an adjournment to full state in Westminster Hall. The Lord President was now robed in scarlet, and there were 67 Commissioners present. The Court having been opened, Charles, whose presence had not been required on the three preceding days, was brought in. As he went to his place, the soldiers in the

Hall called out "Justice," "Justice," and "Execution!" till the Court commanded silence. The King, in his usual posture, with his hat on, immediately began to speak. The President told him he would have liberty to do so, but must hear the Court first. After some farther attempts to speak then, the King submitted; and Bradshaw, reminding him of what had passed in the first three meetings of the Court, related the subsequent action of the Court, and their conclusion on the whole matter, and called upon him to say anything he pleased in bar of judgment, provided it were in his own defence, and not in renewed challenge of the Court's jurisdiction. With difficulty keeping off the forbidden topic, Charles dwelt on the dangers of a hasty sentence, and urged a special request which he had reserved for the occasion. It was that, before sentence was read, he should be permitted to have a conference with the Lords and Commons in the Painted Chamber. Bradshaw, though he gave it as his opinion that the request only tended to delay, and was in fact a farther declining of the jurisdiction of the Court, yet announced that the Court would withdraw to consider it. There was therefore a private consultation for half an hour in the Court of Wards, the King meanwhile being removed from the Great Hall. When the Court had returned thither, and the King had been brought back, Bradshaw intimated that the consultation had been *pro forma* only, that the request could not be granted, that the Court must proceed to sentence. There was another painful altercation, the King pressing his request for delay, and seeming to hint he had some important proposal to make to the Lords and Commons (abdication in favour of the Prince of Wales, it was afterwards guessed); and Bradshaw trying to stop him. At length, the King ceasing to interrupt, Bradshaw's words took continuous form for a minute or two in that kind of address which a Judge makes to a capital criminal before passing sentence. "Make an O yes," he said in conclusion to the officers, "and command silence while the Sentence is read." The Clerk then read out the sentence as it had been engrossed on parchment, as follows:—"Whereas the Commons

of England in Parliament, &c. [a statement of the purpose of the Court, an insertion of the Charge against Charles, and a record of his refusal to plead and the consequent proceedings of the Court], *this Court doth adjudge that the said Charles Stuart, as a Tyrant, Traitor, Murderer, and a Public Enemy, shall be put to death by the severing of his head from his body.* "The President then said, "The sentence now read and published is the act, sentence, judgement, and resolution of the whole Court;" whereupon all the Commissioners stood up to express their assent. "His Majesty then said, Will you hear me a word, Sir? *President:* Sir, you are not to be heard after the sentence. *King:* No, Sir? *President:* No, Sir, by your favour. Sir. Guard, withdraw your prisoner. *King:* I *may* speak after sentence, by your favour, Sir; I *may* speak after sentence, ever. By your favour, hold [the guard, one must suppose, now hustling around Charles]. The sentence, Sir—I say Sir, I do—I am not suffered to speak; Expect what justice other people will have." As he passed out with the guard, there were again cries from the soldiers of "Justice," "Justice," and some brutes among them puffed their tobacco-smoke in front of him, and threw their pipes in his way. He was taken to Whitehall and thence to St. James's. [Footnote: Abridged mainly from Rushworth's collection of accounts in 30 folio pages (VII. 1395-1425). The sixty-seven of the King's judges who were present in Westminster Hall on the 27th, when the sentence was pronounced, are to be regarded as the men most resolute in the business, the committed Regicides. Two of these (George Fleetwood and Thomas Wayte) came in at the last moment, not having attended any of the previous meetings of the Court from the beginning of the Trial on the 20th. On the other hand, some nine or ten who had been present on one, two, or even all of the three previous public days of the Trial (the 20th, 22nd, and 23rd), had dropped off before the sentence; among them whome I note Alderman Isaac Pennington. He had been present all the three previous days; but could not reconcile himself to the conclusion. Of the sixty-seven who did reconcile themselves to it, *fifty-one*,

as I reckon, are conspicuous for their unswerving steadiness throughout the proceedings, never having missed a day in their attendance from the 20th to the 27th inclusively. Among these are Bradshaw, Cromwell, Ireton, Marten, General Hammond, Ludlow, Lord Grey of Groby, Sir John Danvers, Pride, Purefoy, Hewson, Hutchinson, Robert Lilburne, Okey, Sir Hardress Waller, Whalley, Harrison, Sir M. Livesy, and Thomas Scott. Several of those, however, who had missed one or even two of the days of the Trial had done so accidentally, or for some reason of business, and not from flinching. Finally, of the sixty-seven who were present at the sentence, and stood up when it was pronounced to signify their concurrence, several were either reluctant at the time, or at all events afterwards wished people to believe that they were.]

LAST THREE DAYS OF CHARLES'S LIFE: HIS EXECUTION AND BURIAL.

The last two days and three nights of Charles's life were spent by him in the utmost possible privacy. From the first day of his trial, by an order of the Commons, procured by the intercession of Hugh Peters, he had been allowed to have Dr. Juxon, ex-Bishop of London, constantly in attendance upon him; and there was a fresh order continuing this favour after the sentence. Except Juxon and the faithful gentleman of the bedchamber, Thomas Herbert, the King did not desire company; and it was a relief to him when, on the remonstrances of these two with Hacker, that officer desisted from his intention of placing two musketeers on guard in his chamber. [Footnote: Commons Journals of the 20th and the 27th, and Herbert, 182-3.]

On the evening of the 27th, the day of the sentence, the King's nephew, the Prince Elector, who had special permission to see him, came for the purpose, accompanied by the Duke of Richmond, the Marquis of Hertford,

the Earls of Southampton and Lindsey, and some other noblemen. They had to be content with a message of thanks through Herbert, and went sorrowfully away. The same evening there also arrived Mr. Henry Seymour, with a letter from the Prince of Wales, dated from the Hague a few days before. This messenger, having been admitted by Colonel Hacker, did see the King, and knelt passionately at his feet, while he read the letter, and returned some verbal answer. There then remained only Herbert and Juxon with the King; but, as the night came on, Herbert was sent out on a message. He was to take a ring which the King gave him, an emerald between two diamonds, and deliver it to a lady living in Channel Row, who would know what it meant. The night was very dark; but Herbert, having got the pass-word from Colonel Tomlinson, who was in command outside, made his way through the sentries to the house indicated. He saw the lady, and, on delivering the ring, received from her a sealed cabinet. It was a box of diamonds and other jewels, chiefly broken Georges and Garters, which had been deposited with the lady, who was the King's laundress and wife of Sir William Wheeler. Returning with it to St. James's, Herbert found Juxon just gone to his lodging near, and the King alone. Herbert slept that night in the King's chamber, as he had done since the beginning of the trial, a pallet-bed having been brought in for the purpose by the King's order, and placed near his own bed. As always, the wax-light in the silver basin was kept faintly burning. [Footnote: Herbert, 170-178; and Wood's Ath. IV. 28-31. Wood's account was derived from Herbert himself, and substantially is the same as Herbert's own in his published *Memoirs*, but with additional particulars, of which some are peculiarly interesting.]

Of the next day, Sunday the 28th, there is nothing to record, save that in the morning the King opened the cabinet of jewels, and that the rest of the day was passed in hearing a sermon from Juxon on Romans ii. 16, and in private readings and devotions. Clement Walker, indeed, foists into this day a myth he had heard about a certain "paper-book" tendered to the King by

"some of the grandees of the Army and Parliament," offering him his "life and some shadow of regality" on conditions of such a portentous character, so "destructive to the fundamental Government, Religion, Laws, Liberties, and Properties of the People," that his Majesty firmly refused them. The air was full of such myths. [Footnote: Clement Walker's Hist. of Independency, Part II, 109, 110.]

On Monday, the 29th, the two royal children then in England, the Princess Elizabeth, thirteen years old, and the Duke of Gloucester, a boy of eight, came to St. James's to bid their father farewell. The Princess, as the elder, and the more sensible of her father's condition, was weeping excessively; the younger boy, seeing his sister weep, took the like impression, and sobbed in sympathy and fright. He sat with them for some time at a window, taking them on his knees and kissing them, and talking with them of their duty to their mother, and to their eldest brother the Prince of Wales, who should be rightful King of England in long future years, when they would hardly remember their dead father. He distributed to them most of the jewels from the recovered casket; and at last, when the time allotted for the interview was over, and the door was opened from without, he rose hastily, again kissed them and blessed them, and then turned about to hide his own tears, while they departed crying miserably. [Footnote: Herbert, 178-180. In one particular there is a discrepancy between Herbert's account of the two days immediately succeeding Charles's sentence and the account found in Rushworth and others. Herbert says that on Saturday, after the sentence, Charles was taken from Westminster Hall back to Whitehall, "whence after two hours' space he was removed to St. James's." Accordingly it is at St. James's, as in the text, that Herbert represents Charles as passing the Saturday night and the Sunday and Monday. In Rushworth, on the other hand, the King remains at Whitehall through Saturday night and Sunday; and it is not till Monday that he is removed to

St. James's, where he sees his children. Herbert's surely is the better authority in this matter.]

And what of surrounding London, what of England, what of the three kingdoms, and the world beyond the seas? A King condemned as a Traitor and a Murderer by a fraction of his subjects; his children taking farewell of him; his time on earth now measured by hours, and the hours by the ticks of a clock; the hum close at hand of carpenters at work in hideous, unnameable preparations! Was there then to be no arrest, might there be no delay? Would not the very stones of London rise and mutiny; might not the land around, even if led but by popular fury, surge in to the rescue; from beyond the seas might there not come execration sufficient, and some foreign voice to stop?

Nearly eight weeks, it is to be remembered, had elapsed since the Army had assumed the absolute political mastery by Pride's Purge of the Commons; and somewhat more than three weeks since the small stump of the Commons which they had fitted for their purpose had voted the Peers a farce, declared all power to reside in itself, and appointed the High Court of Justice for the Trial of the King. If there was to be interposition for Charles, from within Great Britain or from abroad, there had therefore been time for it before his Trial actually began, or at least before his Sentence. What had been the appearances? Among foreign powers and potentates a mere curious amazement, a feeling that the strange Islanders had gone mad, too mad to be meddled with: in France perhaps, where Mazarin had his own notions, even a pleasure in the sense of being unable to interfere and a willingness to see the English fury burn itself out in its own way. The French Ambassador in England had, indeed, conveyed a letter from Queen Henrietta Maria, addressed to the Speaker of the House of Commons; but the House had passed it by, and left it unanswered. Then, among the English Royalists abroad! Among *them*, of course, a phrenzy unutterable,—

passionate pacings of rooms and courtyards in the foreign towns that quartered them; wild clamours of grief wherever a few of them were gathered together; mingled sobbings, curses, prayers, gnashings of teeth, at the thought of what was passing in the home-island beyond their reach! But what within that island itself? What of England and London? The population, as we know, consisted of three sections—the numerous Independents and Sectaries; the multitudinous Presbyterians; and the suppressed and all but silenced Prelatists, or adherents of the old Church of England, What had been the signs from these three sections? Well, while petitions had come in to the Commons from the "well-affected," *i.e.* the Independents and Sectaries, of various counties, praying for justice on Delinquents of whatever rank, and therefore virtually adhering to the Army; while the Independents of the City of London itself had bestirred themselves in the same sense, and, in spite of the opposition of the Lord Mayor and most of the Aldermen, had carried at a Guildhall meeting an Address from the Common Council to the Commons, which the Commons received with great form and much expression of thanks; while all this had been done in the Army's interest, there had been much fainter counter-demonstrations, from either the Prelatists or the Presbyterians, than might have been expected. The Prelatists, believing their interference would do harm, had remained in dumb horror: only Dr. John Gauden and Dr. Henry Hammond had ventured on protestations in the King's behalf, addressed to Fairfax and the Army Council. The Presbyterians, having more liberty in the way of speech, had certainly not been silent. What indignation among them, what outcries, during the last seven weeks, over the suppression of all legal authority, and the monstrous usurpation of power by the Army-Grandeess and their heretical adherents! Among the Presbyterian multitudes of London there had been no protester in this sense more brave than Prynne. Whatever could be done with pen and ink, or by vehement verbal messages, in addition to his published *Brief Memento*, from his durance in the King's

Head Tavern, he had done, and continued to do. Clement Walker was hardly less active. From the Presbyterian Clergy of the City also, notwithstanding the exertions of Hugh Peters and others, in private conferences with them, to keep them from interfering, there did come voices of remonstrance. The Westminster Assembly, or what of the body then remained sitting, had signified their unanimous desire for the King's release; and forty-seven ministers, meeting at Sion College, had drawn up and signed a document, addressed to Fairfax, in which they protested most earnestly, in the name of Religion and general morality, and also of the Solemn League and Covenant, against the usurpation of power by the Army and the violence intended to the King's person. There had been manifestations to the same effect from Presbyterian ministers in various parts of the country, in which, it appears, even some of the Independent ministers had joined. Finally, there was all Presbyterian Scotland. What of it? The Scottish Parliament had met in Edinburgh on the 4th of January, and had been greatly agitated by the news, received from the Earl of Lothian, Sir John Chiesley, and William Glendinning, then acting as Scottish Commissioners in London, "how that above 160 members of the House of Commons were extrudit the House by the blasphemous Army," and how there was no doubt but the King's life was in peril. There had been an express to London in consequence, with instructions to the Commissioners to do their best, by every form of entreaty and remonstrance, to avert the dreaded catastrophe. Both before and during the Trial, accordingly, these Commissioners, aided by Mr. Blair and other Commissioners of the Scottish Kirk, had been going to and fro in London, reasoning, threatening, and imploring. Charles Stuart was King of Scotland; the whole Scottish nation was loyal to Monarchy in him and in his race; from all the pulpits in Scotland there were prayers for him, and forgiveness of his past errors in pity of his present state; would the English nation dare, in defiance of all this, and in outrage of the League and Covenant, to put him to death? [Footnote: Commons Journals, Jan. 15,

1648-9; Neal's Puritans, III. 490-6; Whitlocke Jan. 3; Walker's History of Independency, Part II. 61-87; Balfour's Annals, III. 373 *et seq.* Life of Robert Blair (Wodrow Society), pp. 213-215.]

All this before the King's trial had actually begun, or at least before his sentence. And what now that the sentence had been pronounced, and Charles in St. James's was making ready for his doom? The Trial had been swift; hardly more than the expectation of it can have reached foreign shores; of the actual sentence many parts of England were yet ignorant. Only at the centre, only in London itself, could there be interference at this last moment. To the last there were some efforts. After the sentence the pleadings and protests of the Scottish Commissioners became nearly frantic in their vehemence, the Presbyterianism of London too numb for farther expression itself, but speaking through the Scots. All to no effect. Nor was greater attention paid to the intercession of the only foreign Power that then made an effort to save Charles. The States- General of Holland had sent over a special embassy for the purpose; but, though the Ambassadors were in London on the 29th and were received that day with most ceremonious respect by the Commons as well as by the Lords, they knew that they had come on a vain errand.

Why was all in vain? For one very simple and yet very sufficient reason. At the centre of England was a will that had made itself adamant, by express vow and deliberation beforehand, for the very hour which had now arrived, and that, amid all entreaties and pleadings of men, women, classes, corporations, and nations, would go through with the business that had been begun. Relentings there were near the centre, but not at the very centre. Fairfax had relented; Pennington had relented; others who had taken part in the Trial had relented; Vane, St. John, Skippon, Fiennes, leaders hitherto, had withdrawn from the work, and were looking on moodily; there was an agony over what was coming among many that had helped to bring it to

pass. Only some fifty or sixty governing Englishmen, with OLIVER CROMWELL in the midst of them, were prepared for every responsibility, and stood inexorably to their task. *They* were the will of England now, and they had the Army with them. What proportion of England besides went with them it might be difficult to estimate. One private Londoner, at all events, can be named, who approved thoroughly of their policy, and was ready to testify the same. While the sentenced King was at St. James's there were lying on Milton's writing-table in his house in High Holborn at least the beginnings of a pamphlet on which he had been engaged during the King's Trial, and in which, in vehement answer to the outcry of the Presbyterians generally, but with particular references also to the printed protests of Prynne, the appeals of the Prelatists Hammond and Gauden, and the interferences of the Scots and the Dutch, he was to defend all the recent acts of the Army, Pride's Purge included, justify the existing government of the Army-chiefs and the fragment of Parliament that assisted them, inculcate Republican beliefs on his countrymen, and prove to them above all this proposition: "*That it is lawful, and hath been held so through all ages, for any who have the power, to call to account a Tyrant, or wicked King, and, after due conviction, to depose and put him to death, if the ordinary Magistrate have neglected or denied to do it!*" The pamphlet was not to come out in time to bear practically on the deed which it justified; but, while the King was yet alive, it was planned, sketched, and in part written. [Footnote: Commons Journals, Jan, 22 and 29; Lords Journals, Jan. 29; Rushworth, VII. 1426-7; Milton's *Tenure of Kings and Magistrates*, and his *Def. Sec.*—That Milton's *Tenure of Kings and Magistrates*, though not published till after the King's death, had been on hand before, if not completed, might be inferred from the pamphlet itself, the language and *tense* of some parts of which are scarcely explicable otherwise. But see his account of the composition of the pamphlet in his *Def. Sec.* He there says that the book did not come out till after the King's death, and consequently

had no direct influence in bringing about that fact; but this very statement, and the sentences which precede it, confirm what is said in the text as to the time when the pamphlet was schemed and begun.]

Actually on Monday, Jan. 29, while the Dutch Ambassadors were having their audiences with the two Houses, the Death-Warrant was out, as follows:—

"At the High Court of Justice for the Trying and Judging of Charles Stuart, King of England, January XXIXth, Anno Dom. 1648.

"Whereas Charles Stuart, King of England, is and standeth convicted, attainted, and condemned of High Treason and other high Crimes, and sentence upon Saturday last was pronounced upon him by this Court to be put to death by the severing of his head from his body; of which sentence execution yet remaineth to be done: These are therefore to will and require you to see the said sentence executed in the open street before Whitehall upon the morrow, being the Thirtieth day of this instant month of January, between the hours of Ten in the morning and Five in the afternoon of the said day, with full effect. And for so doing this shall be your sufficient warrant. And these are to require all Officers and Soldiers and other the good people of this Nation to be assisting unto you in this service. Given under our hands and seals:—

"Jo. Bradshawe Ri. Deane Thos. Horton
Tho. Grey Robert Tichborne J. Jones
O. Cromwell H. Edwardes John Moore
Edw. Whalley Daniel Blagrove Gilb. Millington
M. Livesey Owen Rowe G. Fleetwood
John Okey William Perfoy J. Alured
J. Danvers Ad. Scrope Rob. Lilburne
Jo. Bouchier James Temple Will. Say
H. Ireton A. Garland Anth. Stapley
Tho. Mauleverer Edm. Ludlowe Gre. Norton
Har. Waller Henry Marten Tho. Challoner
John Blakiston Vint. Potter Thomas Wogan
J. Hutchinson Wm. Constable John Venn
Willi. Goffe Rich. Ingoldesby Gregory Clements
Tho. Pride Will. Cawley Jo. Downes
Pe. Temple J. Barkestead Tho. Wayte
T. Harrison Isaa. Ewer Tho. Scot
J. Hewson John Dixwell Jo. Carew
Hen. Smyth Valentine Wauton Miles Corbet.
Per. Pelham Simon Mayne

"To Colonel Francis Hacker, Colonel Huncks, and Lieutenant-Colonel Phayre; and to every of them." [Footnote: The original of this Warrant, a parchment eighteen inches wide and ten inches deep, is in the possession of the House of Lords, having been produced before that body by Colonel Hacker in 1660, and then retained. Mr. William J. Thorns, who has minutely inspected it, made it the subject of a curious and interesting inquiry in *Notes and Queries*, July 6 and July 13, 1872. He observes that the date of the Warrant itself, and the words "upon Saturday last" for the day of the sentence, are written over erasures and in a different hand from the rest, and

that the word "Thirtieth" for the day of execution is inserted in a space too large for it; and, for this and other reasons, he arrives at the conclusion that we see the document now in its second state, and that a good number of the signatures were not attached to it on the 29th, but had been attached to it on an earlier day when it was in its first state. His conjecture, on the whole, is that it had been expected, at the private meeting of the Court on Friday the 2eth, when the sentence was *agreed upon*, that it might be *pronounced* that same day, and *executed* the next day (Saturday the 27th), and that a warrant to that effect had then been drawn up and signed; but that, this idea having been abandoned, for whatever reason, and the Sentence not having been pronounced till Saturday, it was thought better, at the meeting on Monday the 29th, still to use the first Warrant with its signatures, only with the dates altered, and with additional signatures then obtained, than to write out a fresh warrant and apply for second signatures from absentees who had signed the first.—It is noteworthy that, though sixty-seven of the Commissioners had, as we have seen, virtually constituted themselves "the Regicides" by being present in Westminster Hall on Saturday when the Sentence was pronounced, and then standing up in assent to it, nine of these did not attach their names to the Warrant. They were Francis Allen, Thomas Andrews, General Hammond, Edmund Harvey, William Heveningham, Cornelius Holland, John Lisle, Nicholas Love, and Colonel Matthew Tomlinson. Subtract these *nine* from the *sixty-seven*, and the number of the signers to the Warrant ought to be *fifty-eight*. But they are *fifty-nine*. Who, then, is the *fifty-ninth*? Cromwell's young kinsman, Colonel Richard Ingoldsby, who, though a member of the Court, had attended none of its meetings till precisely that of the 29th, the date of the Warrant. Here comes in Clarendon's famous story, a distortion of some convenient rigmarole of Ingoldsby's own in later times. Ingoldsby, says Clarendon, "always abhorring the action in his heart," had purposely kept away from every meeting of the Court, till, chancing to look into the Painted Chamber on the

fatal 29th, he was clutched by Cromwell, dragged to the table on which the Warrant lay, and compelled to sign it, Cromwell forcibly holding his hand and tracing the letters for him, with loud laughter at the joke! More by token, as Clarendon reports him, if his name on the Warrant "were compared with what he had ever writ himself," the difference would be seen! Unfortunately, Mr. Thoms, who has made this comparison, vouches that no difference can be detected, and that the name "Rich. Ingoldsby" in the Warrant "is as bold and free as signature can be," and could never have been written by a hand held by another's. *Ex uno omnes*. In the hard straits that were coming eleven years hence, there were to be others of the signers of the Warrant, besides Ingoldsby, who were to aver that they did it under compulsion, Cromwell and Henry Marten sitting beside each other, smearing each other's faces with ink in their fun, and overbearing the scrupulous with jeers or threats. The simple fact I believe to be (and this I do believe) that Cromwell was anxious that the Warrant should be well signed, and reasoned, or perhaps remonstrated, with some waverers, as he had done with young Hammond of the Isle of Wight in a similar case two months before. Cromwell was now in his fiftieth year.]

In the King's last hours he had offers of the spiritual services of Messrs. Calamy, Vines, Caryl, Dell, and other Presbyterian ministers, and hardly had these gone when Mr. John Goodwin of Coleman Street came to St. James's, all by himself, with the like offer. They were all dismissed with thanks, the King intimating that he desired no other attendance than that of Bishop Juxon. Late into the night of the 29th, accordingly, the Bishop remained with the King in private. After he had gone, Charles spent about two hours more in reading and praying, and then lay down to sleep, Mr. Herbert lying on the pallet-bed close to his. For about four hours he slept soundly; but very early in the morning, when it was still dark, he awoke, opened the curtain of his bed, and called Mr. Herbert. The call disturbed Herbert suddenly from a dreamy doze into which he had fallen after a very

restless night; and, when he got up and was assisting the King to dress by the light of the wax-cake that had been kept burning in the chamber as usual, the King observed a peculiarly scared look on his face. Herbert, on being asked the cause, told his Majesty he had had an extraordinary dream. The King desiring to know what it was, Herbert related it. In his doze, he said, he had heard some one knock at the chamber-door. Thinking it might be Colonel Hacker, and not willing to disturb the King till he himself heard the knock, he had lain still. A second time, however, the knock came; and this time, he thought, his Majesty had heard the knock, and told him to open the door and see who it was. He did go to the door, and, on opening it, was surprised to see a figure standing there in pontifical habits whom he knew to be the late Lord Archbishop of Canterbury, Dr. Laud. He knew him well, having often seen him in his life. The figure said he had something to say to the King, and desired to enter. Then, as Herbert thought, the King having been told who it was, and having given permission, the Archbishop had entered, making a profound obeisance to the King in the middle of the room, a second on coming nearer, and at last falling on his knees as the King gave him his hand to kiss. Then the King raised him, and the two went to the window together, and discoursed there, Herbert keeping at a distance, and not knowing of what they talked, save that he noticed the King's face to be very pensive, and heard the Archbishop give a deep sigh. After a little they ceased to talk, and the Archbishop, again kissing the King's hand, retired slowly, with his face still to the King, making three reverences as before. The third reverence was so low that, as Herbert thought, the Archbishop had fallen prostrate on his face, and he had been in the act of stepping to help him up when he had been awakened by the King's call. The impression had been so lively that he had still looked about the room as if all had been real.—Herbert having thus told his dream, the King said it was remarkable, the rather because, if Laud had been alive, and they had been talking together as in the dream, it was very likely, albeit he loved the

Archbishop well, he might have said something to him that would have occasioned his sigh. There was yet more conversation between the King and Herbert by themselves, the King selecting with some care the dress he was to wear, and especially requiring an extra under-garment because of the sharpness of the weather, lest he should shake from cold, and people should attribute it to fear. While they were still conversing, poor Herbert in such anguish as may be imagined, Dr. Juxon arrived, at the precise hour the King had appointed the night before.

An hour or two still had to elapse before the last scene. Charles arranged with Herbert about the distribution of some of his favourite books, with some trinkets. His Bible, with annotations in his own hand, and some special accompanying instructions, was to be kept for the Prince of Wales; a large silver ring-sundial of curious device was to go to the Duke of York; a copy of King James's Works, with another book, was left for the Duke of Gloucester; for the Princess Elizabeth Hooker's Ecclesiastical Polity, Bishop Andrewes's Sermons, and some other things. These arrangements made, the King was for an hour alone with Juxon, during which time he received the Communion. Then, Herbert having been re-admitted, the Bishop again went to prayer, and read the 27th chapter of Matthew; which, by a coincidence in which the King found comfort, chanced to be one of the lessons in the Rubric for that day. While they were yet thus religiously engaged, there came Colonel Hacker's knock. They allowed him to knock twice before admitting him; and then, entering with some trepidation, he announced that it was time to go to Whitehall. The King told him to go forth, and he would follow presently.

It was about ten o'clock in the morning (Tuesday, Jan. 30) when the procession was formed, from St. James's, through the Park, to Whitehall. With Bishop Juxon on his right hand, Colonel Tomlinson on his left, Herbert following close, and a guard of halberdiers in front and behind, the

King walked, at his usual very fast pace, through the Park, soldiers lining the whole way, with colours flying and drums beating, and such a noise rising from the gathered crowd that it was hardly possible for any two in the procession to hear each other speak. Herbert had been told to bring with him the silver clock or watch that hung usually by the King's bedside, and on their way through the Park the King asked what o'clock it was and gave Herbert the watch to keep. A rude fellow from the mob kept abreast with the King for some time, staring at his face as if in wonder, till the Bishop had him turned away. There is a tradition that, when the procession came to the end of the Park, near the present passage from Spring Gardens, the King pointed to a tree, and said that tree had been planted by his brother Henry. Arrived at last at the stairs leading into Whitehall, he was taken, through the galleries of the Palace, to the bed-chamber he had usually occupied while residing there; and here he had some farther time allowed him for rest and devotion with Juxon alone. Having sent Herbert for some bread and wine, he ate a mouthful of the bread and drank a small glass of claret. Here Herbert broke down so completely that he felt he could not accompany the King to the scaffold, and Juxon had to take from him the white satin cap he had brought by the King's orders to be put on at the fatal moment. At last, a little after twelve o'clock, Hacker's signal was heard outside, and Juxon and Herbert went on their knees, affectionately kissing the King's hands. Juxon being old and feeble, the King helped him to rise, and then, commanding the door to be opened, followed Hacker. With soldiers for his guard, he was conveyed, along some of the galleries of the old Palace, now no longer extant, to the New Banqueting Hall, which Inigo Jones had built, and which still exists. Besides the soldiers, many men and women had crowded into the Hall, from whom, as his Majesty passed on, there was heard a general murmur of commiseration and prayer, the soldiers themselves not objecting, but appearing grave and respectful.

Through a passage broken in the wall of the Banqueting Hall, or more probably through one of the windows dismantled for the purpose, Charles emerged on the scaffold, in the open street, fronting the site of the present Horse Guards. The scaffold was hung with black, and carpeted with black, the block and the axe in the middle; a number of persons already stood upon it, among whom were several men with black masks concealing their faces; in the street in front, all round the scaffold, were companies of foot and horse; and beyond these, as far as the eye could reach, towards Charing Cross on the one side and Westminster Abbey on the other, was a closely-packed multitude of spectators. The King, walking on the scaffold, looked earnestly at the block, and said something to Hacker as if he thought it were too low; after which, taking out a small piece of paper, on which he had jotted some notes, he proceeded to address those standing near him. What he said may have taken about ten minutes or a quarter of an hour to deliver, and appears, from the short-hand report of it which has been preserved, to have been rather incoherent. "Now, Sirs," he said at one point, "I must show you both how you are out of the way, and I will put you in the way. First, you are out of the way; for certainly all the way you ever have had yet, as I could find by anything, is in the way of conquest. Certainly this is an ill way; for conquest, Sirs, in my opinion, is never just, except there be a good just cause, either for matter of wrong, or just title; and then, if you go beyond it, the first quarrel that you have to it, *that* makes it unjust at the end that was just at first." A little farther on, when he had begun a sentence, "For the King indeed I will not," a gentleman chanced to touch the axe. "Hurt not the axe," he interrupted; "*that* may hurt me," and then resumed. "As for the King, the Laws of the Land will clearly instruct you for that; therefore, because it concerns my own particular, I only give you a touch of it. For the People: and truly I desire their liberty and freedom as much as anybody whomsoever; but I must tell you that their liberty and freedom consists in having of Government those laws by which their life and their goods may

be most their own. It is not having *share* in Government, Sirs; that is nothing pertaining to them. A subject and a sovereign are clean different things; and therefore, until they do that—I mean, that you put the People in that liberty, as I say—certainly they will never enjoy themselves." In conclusion he said he would have liked to have a little more time, so as to have put what he meant to say "in a little more order and a little better digested," and gave the paper containing the heads of his speech to Juxon. As he had said nothing specially about Religion, Juxon reminded him of the omission. "I thank you very heartily, my Lord," said Charles, "for that I had almost forgotten it. In truth, Sirs, my conscience in Religion, I think it very well known to the world; and therefore I declare before you all that I die a Christian, according to the profession of the Church of England as I found it left me by my father; and this honest man (the Bishop) I think will witness it." There were some more words, addressed particularly to Hacker and the other officers; and once more, seeing a gentleman go too near the axe, he called out, "Take heed of the axe; pray, take heed of the axe." Then, taking the white satin cap from Juxon, he put it on, and, with the assistance of Juxon and the chief executioner, pushed his hair all within it. Some final sentences of pious import then passed between the King and Juxon, and the King, having taken off his cloak and George, and given the latter to Juxon, with the word "Remember," knelt down, and put his neck on the block. After a second or two he stretched out his hands, and the axe descended, severing the head from the body at one blow. There was a vast shudder through the mob, and then a universal groan. [Footnote: Herbert's Memoirs, 183—194; Wood's Ath. (repeating Herbert), IV. 32—36; Rushworth, VJI 1428-1431; Fuller's Church Hist. (ed. 1842) TTI. 500, 501; Disraeli's Charts J. (ed. 1831) V. 449-50; Cunningham's London, *Whitehall*. Herbert only mentions the fact of his dream in the body of his Memoir; but the detailed account of it in his own words, written in 1680, is given in the Appendix, 217-222, and in a note in Wood's Ath. as above.—The coherence of

Charles's last speech seems to have struck Fuller, who says that, "though taken in shorthand by one eminent therein," it is done defectively. I rather think it is punctually literal. I find in the Stationers' Registers this entry, under date Jan. 31, 1648-9: "Peter Cole entered for his copy, under the hand of Mr. Mabbott, King Charles his Speech upon the Scaffold, with the manner of his Suffering, on Jan. 30, 1648." I suppose this is the Report afterwards repeated by Rushworth, though objected to by Fuller. Was Rushworth the reporter?]

Immediately after the execution Juxon and the sorrowing Herbert were allowed to take charge of the corpse. Embalmed, coffined in wood and lead, and covered with a velvet pall, it lay for some days in St. James's Palace, where crowds came to see it. There was some difficulty about the place of burial. Charles himself having left no directions on the subject, Juxon and Herbert thought that the fittest place would be King Henry the Seventh's Chapel, in Westminster Abbey, containing as it did the tombs of his four immediate predecessors, and those of his grandmother Mary, Queen of Scots, and his brother Prince Henry. The authorities, however, considering that this place was too public and would attract inconvenient crowds, Juxon and Herbert next proposed the Royal Chapel in Windsor, where some of his earlier predecessors had been buried, and among them Henry VIII. To this no objection was made, and on the 7th of February the body was conveyed from St. James's to Windsor in a hearse drawn by six horses, and followed by four mourning coaches. Colonel Whichcot, the Governor of the Castle, having been shown the order, allowed Herbert and those with him to select whatever spot they chose. They thought first of what was called "the tomb-house," built by Cardinal Wolsey, and intended by him as a splendid sepulchre for his master, Henry VIII.; but they decided against it, partly because it was not within the Royal Chapel, but only adjoining it, and partly because they were uncertain whether Henry VIII. (of whose exact place of burial the tradition had been lost) might not actually have been buried in the

"tomb-house," and they recollected that this particular predecessor of Charles was not one of his favourites. He had been heard, in occasional discourses, to express dislike of Henry's conduct in appropriating Church revenues and demolishing religious edifices. They therefore fixed on the vault where Edward IV. was interred, on the north side of the choir, near the altar. The vault was opened for the purpose, and preparations for the interment there were going on, when (Feb. 8) the Duke of Richmond, the Marquis of Hertford, and the Earls of Southampton and Lindsey, with Dr. Juxon, arrived from London, specially authorized by the House of Commons to attend the funeral, and the Duke empowered to arrange all wholly as he thought fit. Herbert and those with him having then resigned the duty into the hands of these great persons, there was a new inquiry as to the best spot for the grave. The "tomb-house" was again looked at, and the choir of the Chapel diligently re-investigated. At length, a spot in the choir having been detected where the pavement sounded hollow when struck - - "being about the middle of the choir, over against the eleventh seat on the Sovereign's side"—the stones and earth were removed, and a vault was disclosed; in which there were two leaden coffins close together, one very large and the other small. From the velvet palls covering them, some portions in their original purple colour, and others turned into fox-tawny or coal-black by the damp, there was no doubt that they were the coffins of Henry VIII. and his third wife, Lady Jane Seymour. As there was just room for one coffin more in the vault, it was determined that the fact of its being the vault of Henry VIII, now accidentally discovered after so long a time, should be no bar to the burial of Charles in the otherwise suitable vacancy. Accordingly, on Friday the 9th of February, the body was brought from the royal bed-chamber, where it had been meanwhile lying, to St. George's Hall, and thence, with slow and solemn pace, to the Chapel. It was borne on the shoulders of some gentlemen in mourning; the noblemen in mourning held up the pall; and Colonel Whichcot, with several gentlemen, officers,

and attendants, followed. As they were moving from the Hall to the Chapel, the sky, which had been previously clear, darkened with snow, which fell so fast that, before they reached the Chapel, the black velvet pall was white with the flakes. The coffin having been set down near the vault, ex-Bishop Juxon would have read the burial-service over it according to the form of the Book of Common Prayer; but, though permission to do so seemed to be implied in the wording of the order granted to the Duke of Richmond by the House of Commons, and though the noblemen present were desirous that it should be done, Colonel Whichcot did not think himself entitled to allow any service except that of the new Presbyterian Directory. Without any service at all, therefore, save what may have been rendered by the tears and muttered words of those who stood by, the coffin was deposited, about three o'clock in the afternoon, in the vacant space in the vault. A kind of scarf or scroll of lead, about five inches broad, had been soldered to it, bearing this inscription in capital letters: "KING CHARLES, 1648." At the time of his death, King Charles was forty-eight years, two months, and eleven days old, and he had reigned twenty-three years and ten months. [Footnote: Herbert's Memoirs, 194-216; Commons Journals, Feb. 8; Fuller's, Church Hist., III. 501-4.—In March 1813 some workmen, employed in making a passage from under the choir of the Royal Chapel at Windsor to a mausoleum erected by George III. in the "tomb- house" described in the text, accidentally broke into the vault containing the bodies of Charles I., Henry VIII., and Queen Jane Seymour. The fact having been reported to the Prince Regent, a careful examination was ordered. It was made April 1, 1813, in the presence of the Prince Regent himself, the Duke of Cumberland, Count Munster, the Dean of Windsor, Sir Henry Hallford (Physician to the King and the Prince Regent), and Mr. B. C. Stevenson. The coffin of Charles I. was examined with great minuteness, and corresponded in every particular with the account given by Herbert. When the black velvet pall had been removed, the coffin was found to be of plain lead, with the leaden scroll

encircling it, bearing the inscription "KING CHARLES, 1648," in large legible characters. A square opening was then cut in the upper lid, so that the contents might be clearly seen. An internal wooden coffin was found to be very much decayed, and the body was found to be carefully wrapped up in cerecloth, into the folds of which there had been poured abundantly some unctuous substance mixed with resin. With considerable difficulty the cerecloth was removed from the face, and then, despite the discolouring and the decay of some parts, the features of Charles I., as represented in coins and busts, and especially in Vandyke's portraits of him, could be distinctly recognised. There was the oval face, with the peaked beard. When, by farther removal of the cerecloth, they had disengaged the entire head, they found it to be loose from the body. On taking it out, they saw that "the muscles of the neck had evidently retracted themselves considerably, and the fourth cervical vertebra was found to be cut through its substance transversely, leaving the surfaces of the divided portions perfectly smooth and even—an appearance which could have been produced only by a heavy blow indicted by a very sharp instrument." The hair, which was thick at the back, looked nearly black; but, when a portion of it was afterwards cleaned and dried, the colour was found to be a beautiful dark brown,—that of the beard a redder brown. The body was not examined below the neck; and, the head having been replaced, the coffin was soldered up again and the vault closed. (See account by Sir Henry Halford, quoted by Bliss in his edition of Wood's Ath. IV. 39-42.)]

*** END OF THE PROJECT GUTENBERG EBOOK THE LIFE OF
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